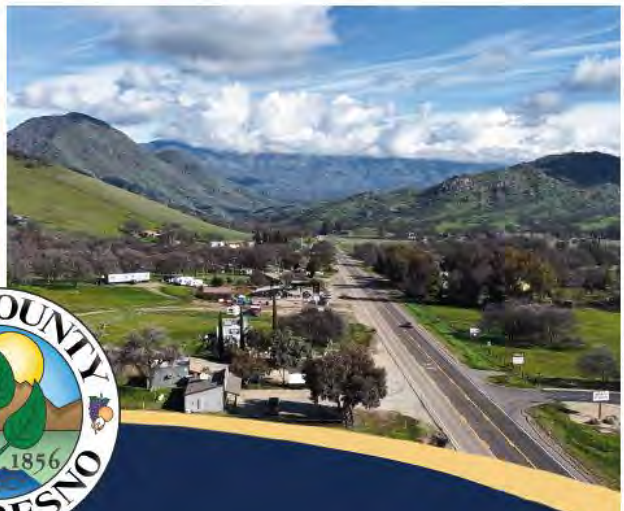

CEC SECTION 9111 REPORT

FRESNO COUNTY REPORT PURSUANT TO CALIFORNIA ELECTIONS CODE SECTION 9111

Analysis of the Proposed Fresno County Transportation Improvement Act Initiative

AUGUST 2026

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EXECUTIVE SUMMARY

B. Executive Summary

1. Introduction

Pursuant to Elections Code section 9111, this report evaluates the Fresno County Transportation Improvement Act Initiative (Initiative). Section 9111 calls for a report that addresses the Initiative's potential fiscal impact, the consistency with the County's General Plan, the effect on the use of land, the location of housing, and the ability to meet regional housing needs, infrastructure funding, the ability to attract and retain businesses and employment, the use of vacant land, various other impacts, and specific questions and topics raised by the Board of Supervisors. This report was ordered, along with additional specific questions by the Board of Supervisors at the meeting on July 14, 2026, with delivery of the report ordered within 30 days, consistent with section 9111's requirement.

2. Description of the Initiative

This initiative would implement a half-cent tax to provide funding for improving the pavement conditions in the County of Fresno, primarily in local neighborhood roads and provide more complete street elements and active transportation than previous years. The Initiative sets aside funding for transit and Fresno Yosemite Airport (FYI). The Initiative does not continue the governance provided by Fresno County Transportation Authority (FCTA) from the previous measure and shifts the administrative responsibilities to Fresno Council of Governments (FCOG). The Initiative continues to support transportation infrastructure and uses programmatic requirements to ensure performance targets would be either met or prioritized, including pedestrian, bicycle, and public transit transportation infrastructure, disadvantaged communities, and addressing the worst local neighborhood roads in the County. The funding is directed away from capacity expansion of mixed-use transportation improvements as well as construction of new transportation infrastructure in new growth areas. The funding is directed to support, among other priorities, improving the worst roads according to their Pavement Condition Index (PCI), disadvantaged communities, safe routes to schools, active transportation, complete streets, public transit, and the Fresno Yosemite Airport.

3. Findings and Conclusions

The Initiative would invest billions of dollars into transportation infrastructure and public transit throughout the region. The impacts of this investment will be primarily experienced in local roads, active transportation facilities, schools, and public transportation. The Initiative directs a substantial portion of local agency funding into

work like Complete Streets, Active Transportation, and Safe Routes to Schools. Jurisdictions will also receive funding to improve the conditions of their very worst roads.

The following conclusions are provided as a brief summary of the report's findings:

- The Initiative would create a stable, long-term transportation funding stream and strengthen local road preservation, transit, active transportation, safety, and access compared with allowing Measure C to expire without replacement.
- The initiative does not provide similar benefits to the Regional Transportation System to Measure C.
- The Initiative is more prescriptive and less flexible than prior Measure C programs. Its "worst first" PCI priorities, Complete Streets and active-transportation mandates, disadvantaged-community set-asides, capacity restrictions, and new-growth limitations would change how jurisdictions program transportation funds and would require shifting of other revenues, if available, toward heavily traveled and regional facilities.
- The Initiative is not consistent with the Fresno County General Plan. While at a program level the Initiative is generally consistent with the principal direction of the General Plan that support transportation funding and investment in existing communities, however, the restrictive nature of the Initiative is not consistent with General Plan provisions that seek to accommodate future growth as a result of projected populations and state mandated growth initiatives (e.g., Regional Housing Needs Allocation).
- The Initiative would improve the County's worst roads, but the available funding is expected to only maintain the current average PCI of 65. The stated PCI 70 objective will require additional $29.5 million per year to be funded by the County.
- Worst First pavement repair provisions, disadvantaged community requirements and bike lane and safe route to schools mandates may result in an overall decline in PCI if preventative maintenance funding cannot be secured from other sources. Further, it will direct funds from high volume County roads to low volume streets.
- The four-percent regional road allocation is small relative to documented regional needs and prior Measure C practice. Major freeway, interchange, freight, arterial, and growth-related improvements would continue to depend on RTMF, Caltrans, State and Federal funds, competitive grants, and other local match sources, but typically cannot rely on initiative funding which will also lower competitive matching fund potential. Region's ability to leverage matching funds through

competitive programs would be diminished compared to Measure C's performance.

- Transit and active transportation investments would provide important mobility, accessibility, equity, safety, health, and localized travel benefits primarily to transit-dependent, but the available evidence does not show that those investments would materially reduce countywide peak-period congestion through 2049.
- The Initiative would create project related jobs. However, its lack of focus on improving regional connectivity will likely dampen economic development and the jobs that new development would bring.
- Implementation would require clarifying and defining terms used ambiguously and contradictory throughout that directly exclude the County infrastructure, such as regional vs. local roads, neighborhood vs. rural, maintenance vs. improvement.
- Implementation would require clear governance firewalls, decision rights, compliance and appeal procedures, transition rules, and consolidated operating guidance because the Initiative transfers broad administrative authority to FCOG while leaving multiple roles and standards undefined.
- The Initiative would invest approximately $806 million in Fresno County over 30 years on transportation infrastructure. However, due to the many restrictions and mandates contained in the Initiative, not all of these funds will go towards the County's highest priority needs. As a result, diversion of other County funds (ex: general fund) from their current uses towards high-priority County projects that are not consistent with the Initiative's priorities will be necessary. Further, the initiative will require construction of some improvements not currently contemplated or not a priority for the County, resulting in added future maintenance costs. These costs have the potential to be substantial, but quantifying these costs is beyond the scope of this report.

INTRODUCTION

C. Introduction

1. Scope of the Report

To provide analysis of the Initiative (Appendix H.6) in compliance with California Elections Code, Section 9111, which is provided in full in Appendix I. The report addresses the following:

- Fiscal Impact
- Consistency with Plans, Planning and Zoning
- Land Use Effects and Housing Impacts
- Impacts on Funding for Infrastructure
- Impacts on Businesses and Employment
- Impacts on the Uses of Vacant Land
- Impacts on Agricultural Lands and Open Space, Traffic Congestion, existing business districts and developed areas designated for revitalization
- Other Matters Requested by the Board of Supervisors

The scope of this report is to evaluate the Initiative. This report seeks to answer each of the Section 9111 components to the best of the ability of staff, in the allotted time. The report evaluates effects within the unincorporated area as well as effects on the broader countywide and regional transportation systems.

Data and information for each component required by Section 9111 will be provided, following an introduction of the context, methodology, and scope of the report as well as a summary and description of the Initiative.

This report is informational. It is not an argument for or against the Initiative. It does not determine the legal validity of the initiative nor provide an official legal opinion. It does not replace any action required of the Board of Supervisors, the County Election Official, County Counsel, or other responsible agencies.

2. Basis of Report and Methodology

The County of Fresno's Department of Public Works and Planning used past transportation infrastructure project delivery experience, public studies, Fresno County and Fresno Council of Governments data, to evaluate the feasibility of delivering each of the Initiative's requirements. The Department utilized VRPA Technologies' experience and expertise with implementation plan development with Measure C and other transportation measures across the state, to help aggregate and validate datasets

within their field of expertise and familiarity with conditions and factors relating to the past measure and current transportation environment.

Additionally, County staff identified that the Board asked over 50 distinct questions at the July 14th meeting. Those questions are presented in Appendix J. Other questions were asked in session that may have duplicated content or intent, and to the greatest extent practicable, staff have consolidated and phrased questions and responses in a manner that is intended to reduce duplication of effort and improve the efficacy of the answers contained herein.

This report evaluates the 30-year time period that coincides with the term of the Initiative. It compares:

- Transportation funding availability and impacts of the Initiative should it pass; and
- Measure C (2006) expiring with no replacement in place.

This report and its methodology:

1. Assumes that the Initiative would be approved by voters;
2. Does not account for when the Initiative is voted on or when it goes into effect;
3. Use dates based upon those provided in the Initiative;
4. Assumes the Initiative starting revenues are $113m as provided within the Initiative;
5. Provides calculations using current year dollars and are adjusted to the year in question based upon quoted inflation rates. Figures provided should be interpreted as year 1, 2, …, 30 rather than starting or ending on a specific year. Shifting of the Initiative starting year is beyond the scope of this report.
6. Evaluates funding availability and impact for only the proposed Initiative. The evaluation of other potential transportation funding opportunities is beyond the limits of this report.
7. Uses documents provided to the Public for comment and then published and approved by the Board of Supervisors and other governing bodies, such as the County General Plan, Regional Transportation Plan, etc., to provide the policy and guidance for the discussion of prospective projects and infrastructure development.
8. Uses industry defined terms in accordance with their context in the report. i.e. planning, transportation construction, economics.

Given the variables explained above, there are too many scenarios to model and analyze within the timeframe allowed under Elections Code § 9111. Because of that, the analysis contained herein does not foreclose impacts and funding availability that are lesser or greater than prescribed through the report's specific methodology.

The report is presented as factual, neutral, and technically supported; distinguishes technical findings from legal and policy determinations; identifies assumptions and uncertainties; and avoids presenting the proponents' revenue or job projections as independently verified County findings.

3. Report Contributors

The primary authors of this report consist of staff within the County of Fresno's Department of Public Works and Planning, analysts and engineers whose positions are funded by the Road Fund and primary responsibilities relate to the design and delivery of transportation infrastructure to the unincorporated areas of the County, and to cooperate with the unincorporated cities in the delivery of joint projects.

The underlying question that drove this evaluation of the Initiative was "Can the County build the transportation infrastructure demanded by this Initiative with the resources provided by this Initiative?"

While the Department of Public Works and Planning for the County will be tasked with providing the services required by the Initiative, the effects of the Initiative, however, are not limited to the unincorporated transportation infrastructure within the County, so additional analysis, maps, and data were commissioned via the County's on-call consultant, VRPA Technologies.

4. Current Context

a. Recent Context

The Initiative is intended to replace the existing local half cent (0.5%) transportation-funding sales tax with a version intended to address different goals and challenges. As a frame of reference, the existing context can be helpful to understanding the conditions and functional role that this will and will not serve.

For 40 years, Measure C has been used to fund: Local Transportation (34.6% of allocations), Regional Public Transit (24% total, 19.7% transit agencies and remainder to studies and minor programs), Regional Transportation (30.4% total, 29.4% Streets and Highways, 1% Airports), Grade Separations & Alternative Transportation (6%), Environmental Enhancement (3.5%), and Administration & Planning (1.5%). It has been administered and governed with a high degree of flexibility to enable agencies to

respond to the changing needs and variable contexts of the region and individual entities.

Over its lifespans (the original 20-year measure was extended by an additional 20 years, in 2006), Measure C has been used to fund freeways and expressways, interchanges, regional roadways, and connectivity improvements and maintenance. It has provided a steady and reliable local funding source which has regularly been leveraged for capacity increasing and congestion relief projects without being tied to specific success metrics. It has funded increases in transit services and bicycle, pedestrian, and ADA improvements. It has also enabled elected leaders and transportation officials to plan for and address various transportation needs including local priority projects and transit without programmatic requirements directing funding prioritization.

b. New Initiative

The Initiative is not a simple extension of those same Measure C criteria with a different set of allocation percentages. It is a replacement of Measure C rather than an extension. It would mandate prioritized requirements that deviate from industry standard maintenance practices to address the most costly segments to repair first and simultaneously require new and costly facility retrofits in those communities. The Initiative is clear in its intent to deliver on infrastructure to local neighborhood roads. It's less clear about how it would be useable to keep those neighborhoods connected to each other and the region as a whole. It also places no value on how many vehicles a particular road services when determining priorities.

c. Immediate Challenges

Implementation challenges will be caused by the loss of the previous measure, which may delay or reduce the County's ability to implement level-of-service (LOS) improvements, freight, emergency-access, planned growth, and operational projects.

High Traffic Roads

Throughout the past 40 years, Measure C has primarily funded the County's regional, high traffic roads: the collectors, the arterials, the super-arterials, and the expressways. Capacity increasing projects like the State Route 180 extensions, Veterans Boulevard Corridor, Willow Avenue Widening, Academy Avenue and Mountain View Avenue Widening projects, which were given the highest priority because they have the widest reaching impact. They carry the largest amount of volume traffic. They allow the people of the County, and the goods produced and consumed by them, to get where they need to go. That funding is set to expire next year and no matter if this Initiative succeeds or

fails, the funding for improvements to those roads that the County has come to expect is not continuing and the level of service that the County has become accustomed to for major throughfares will have to decrease. There will be a difference in what we could accomplish in the past with the previous measure and the future without it.

New-Growth Areas

One of the most significant challenges the County will face is how to maintain consistency in roadway capacity and planned growth. While the General Plan directs the County to prioritize maintenance and rehabilitation, it also requires the County to plan and program capacity improvements based on roadway-system needs, LOS objectives, safety, congestion, and future growth necessary to accommodate countywide population projections as well as state mandated growth initiatives (e.g., Regional House Needs Allocations) without the support of the Initiative.

The end of the previous Measure C will impact transportation infrastructure for adopted County growth areas and state-mandated housing actions. The General Plan directs growth to cities and existing unincorporated communities, but it also contains adopted community plans, specific plans, reserve areas, state-mandated housing provisions, and unincorporated growth policies requiring adequate road access and infrastructure. Some areas that are planned but not yet substantially developed will require new sources of financing. For example, maintenance and upgrades to Friant Road are planned due to the pendency of planning documents for areas surrounding the regional roadway for planned new town development like Friant Ranch.

5. Acronyms and Defined Terms

AMI	Area Median Income
ATP	Active Transportation Program
CEA	Executive Office of the President, Council of Economic Advisors
CEC	California Elections Code
COC	Citizens Oversight Committee
CMAQ	Congestion Mitigation and Air Quality Improvement Program
DUC	Disadvantaged Unincorporated Community
FAT	Fresno Yosemite International Airport
FAX	Fresno Area Express, the City of Fresno public transit agency
FCOG	Fresno Council of Governments
FCTA	Fresno County Transportation Authority
FCTIA	Fresno County Transportation Improvement Act
FY	Fiscal Year
GHG	Greenhouse Gases
HBP	Highway Bridge Program
HSIP	Highway Safety Improvement Program
HUTA	Highway Users Tax Account
Initiative	Fresno County Transportation Improvement Act Initiative
LOS	Level-of-service
NSR	Neighborhood Streets and Roads
PCI	Pavement Condition Index
PMS	Pavement Management System
PWP	County of Fresno Public Works and Planning
RMRA	Road Maintenance and Rehabilitation Account (Senate Bill 1 or SB-1)
RTMF	Regional Transportation Mitigation Fee
SRTS	Safe Routes to Schools
STBG	Surface Transportation Block Grant
TDA	Transportation Development Act
VMT	Vehicle Miles Traveled

INITIATIVE SUMMARY

D. Initiative Summary

The Fresno County Transportation Improvement Act Initiative (Initiative) is a citizens' driven local initiative, designed to replace the current half-cent (0.5%) transactions & use sales tax that has been levied under the existing Measure C (originally passed in 1986, and extended in 2006), and to update and replace the rules and guidance associated with allocations and usage of the derived funding. As written, the Initiative would be effective for 30 years, with an operative date of July 1, 2027. The existing Measure C will expire June 30, 2027. The Initiative version is largely based on the proposed Measure C 2025 Extension version that was prepared by the Steering Committee organized under the Fresno County of Governments (FCOG) Policy Board.

Under the Initiative, the administering agency would be FCOG, which is a regional organization of fifteen incorporated cities and Fresno County governments within the County, that was established by Joint Powers Agreement in 1969 and has been serving as the Federal Regional Transportation Planning Agency (RPT), and State Metropolitan Planning Organization (MPO). FCOG is governed by a Policy Board composed of representatives from each of the cities and the County, and functions on a "double-weighted" voting system, which requires that any action taken by the Policy Board be approved by a majority of members representing a minimum of 40% of the population.

If adopted, the Initiative would allocate 65% of the revenue toward neighborhood streets and roads through allocations to the cities and County, 25% for public transit through allocations to Fresno Area Express, Clovis Transit, Fresno County Rural Transit Agency, 4% for regional transportation projects allocated on a project-basis through FCOG, 4% for access and innovation through zero-fare programs for public transit and remaining funds for transportation clean energy, travel choice programs, and technological innovation, 1% for regional transportation allocated to Fresno Yosemite Airport, and 1% for administration through FCOG and the California State Department of Tax and Fee Administration, which would operate as the tax authority for collections and initial disbursements under the Initiative.

The Initiative establishes a range of programmatic requirements, performance targets, and spending restrictions. It emphasizes maintaining the existing road system, adopting a prioritization of either "disadvantaged unincorporated communities" or "worst condition pavement first" for transportation maintenance projects. It also prioritizes development of new transportation infrastructure for pedestrians, personal mobility devices, bicycles, public transit, and access to school properties over expansion of exclusively road transportation. The funding is directed *toward* maintenance of existing transportation infrastructure and pedestrian, bicycle, and public transit transportation infrastructure improvements. The funding is directed *away* from capacity expansion of automobile-

centric transportation infrastructure and transportation infrastructure for new growth areas and new developments.

Annual audits and oversight of the program will be conducted by a Citizens Oversight Committee composed of members selected by the FCOG Policy Board to represent various diverse regional needs and includes selection policies that ensures the membership mix includes citizens representing urban/rural interests, unincorporated and incorporated interests, and each of the Fresno County supervisorial districts.

The Initiative in full is provided in Appendix I.

ELECTION 9111 REPORT

E. Election 9111 Report

Election Code Section 9111. (a) During the circulation of the petition or before taking either action described in subdivisions (a) and (b) of Section 9118, the board of supervisors may refer the proposed initiative measure to a county agency or agencies for a report on any or all of the following:

1. Fiscal Impact

(1) Its fiscal impact.

The Initiative would replace the existing half-cent (0.5%) transportation-funding sales tax, Measure C, which expires in 2027, with a new half-cent transportation-funding sales tax, under new restrictions and guidance for use, and providing new allocation formulas. The anticipated total regional revenue derived from the Initiative, based on a 3% average annual growth factor, is nominally $5.584 billion over the 30 years of the Initiative, based on the $113 million 2026-27 revenue estimate for the existing Measure C.

The 3% annualized growth rate was arrived at by examining the past performance of the existing Measure C, removing outlier years that could be easily attributable to extraordinary historical economic events (namely the Great Recession and Coronavirus epidemic), and then revising downward somewhat to account for the relatively lower 30-year economic forecasts projected by the United States Office of Management and Budget, to arrive at what we consider a relatively conservative figure. It's also important to note that the existing Measure C, which helps provide some degree of reference and datapoints for this analysis, is scheduled to expire and may not be simply extended, and so is not intended to be compared directly as a fiscal alternative.

The IMPLAN Based Economic Analysis prepared for the Initiative by PenberaParis, LLC and presented with the elections certification of the Initiative's signatures, used a 4% figure and appears to base the numbers on the Initiative proponents' average annual revenue proposal, rather than historical trend data regarding actual receipts. The 4% figure appears to be roughly based on the raw historical average of the existing Measure C's growth rate. The report also quotes but cannot substantiate revenue exceeding $7.4 billion. Removing varying outliers from receipt data provides a weighted average of approximately 3.5%, which the authors of this report revised downward to bring closer to projected future growth rates, which trend lower when compared against historical analogs. In providing calculations based on a 3% annual growth factor, this report seeks to provide a more realistic assessment of the Initiative, from which to calibrate expectations of potential impacts of this Initiative in a wider context. Each half-percent shift in the projected growth rate accounts for roughly $500 million of total

revenue differentiation over the life of the Initiative as a consequence of compounding aggregation.

A three percent annual sales tax growth assumption is supportable and appropriately conservative for a 30-year forecast. A 3.5 percent assumption can be justified from adjusted historical Measure C performance, but recent underperformance, a negative fiscal year, the 2.9 percent current projection, and long-horizon recession risk support retaining three percent. Four percent is comparatively optimistic.

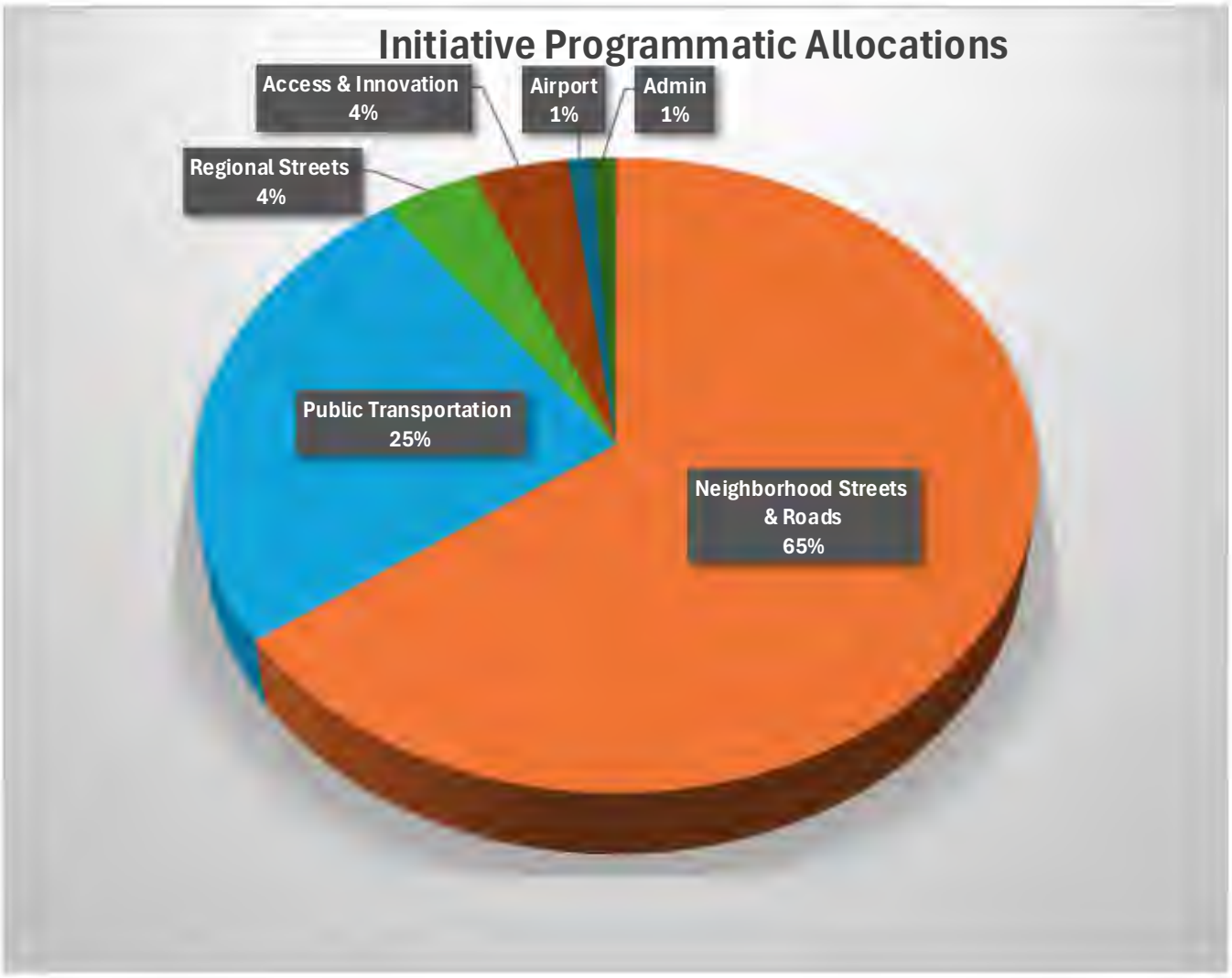
a. Initiative Programmatic Allocations

Programmatic allocations under the Initiative would amount to the following:

E.1.a-1 – Initiative Programmatic Allocations Table

Program	Allocation	Total Allocation	First 10 Years	First Year
Neighborhood Streets & Roads	65%	$3,629,407,762.55	$874,550,268.12	$76,287,462.94
Public Transportation	25%	$1,395,926,062.52	$336,365,487.74	$29,341,331.90
Regional Streets	4%	$223,348,170.00	$53,818,478.04	$4,694,613.10
Access & Innovation	4%	$223,348,170.00	$53,818,478.04	$4,694,613.10
Airport	1%	$55,837,042.50	$13,454,619.51	$1,173,653.28
Administration	1%	$55,837,042.50	$13,454,619.51	$1,173,653.28

E.1.a-2 – Initiative Programmatic Allocations Chart



a.01. Neighborhood Streets and Roads Program

The *Neighborhood Streets and Roads Program* is allocated to support local street and road repair and maintenance, traffic safety, active transportation, bicycle and pedestrian facilities, and safe routes to school. It is designated to be disbursed by formula described within the initiative. Each agency would receive annually: a base minimum allocation of $400,000, with the remainder of the programmatic allocation distributed based on a weighted disbursement formula of jurisdictional population (80%; derived from the California Department of Finance annual estimated population update) and road miles (20%; derived from Fresno Council of Governments Pavement Management Program). For purposes of conducting this analysis within the time constraints of the study, the weighted allocation percentage is assumed to remain static for the duration of the Initiative. However, population trends have historically shown the incorporated cities growing at a faster rate than the unincorporated areas. Should this trend continue, over

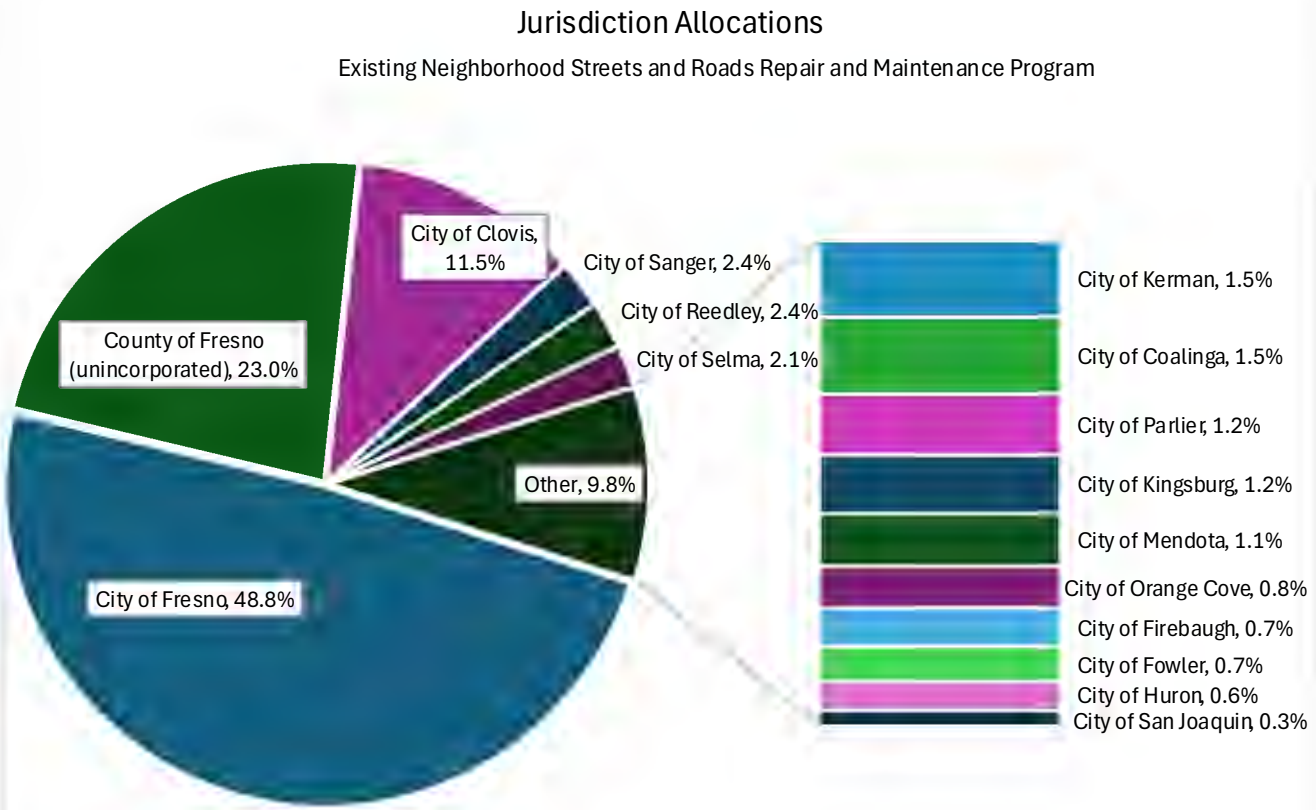
time the County's percentage of the program would decrease while the incorporated areas, especially Fresno & Clovis, would increase. Modeling that trend is beyond the scope of this study.

Each agency's Neighborhood Streets and Roads (NSR) Program allocation share is shown in the table below, in millions of dollars:

E.1.a-3 Jurisdiction Allocation Table

Agency	Allocation %	30-Year NSR	Average NSR	First 10 Years	Avg. First 10 Years	First Year
Fresno City	48.8%	1,689.45	56.32	399.55	39.95	34.51
Fresno County	23.1%	806.04	26.87	197.3	19.73	16.54
Clovis	11.5%	407.3	13.58	103.34	10.33	8.44
Sanger	2.4%	94.5	3.15	25.4	2.54	2.08
Reedley	2.4%	94.5	3.15	26.09	2.61	2.08
Selma	2.1%	84.19	2.81	23.95	2.39	1.87
Kerman	1.5%	63.56	2.12	18.7	1.87	1.45
Coalinga	1.5%	63.56	2.12	19.17	1.92	1.45
Parlier	1.2%	53.25	1.77	16.53	1.65	1.24
Kingsburg	1.2%	53.25	1.77	16.93	1.69	1.24
Mendota	1.1%	49.81	1.66	16.22	1.62	1.17
Orange Cove	0.8%	39.5	1.32	13.17	1.32	0.96
Firebaugh	0.7%	36.06	1.2	12.28	1.23	0.89
Fowler	0.7%	36.06	1.2	12.54	1.25	0.89
Huron	0.6%	32.62	1.09	11.55	1.16	0.82
San Joaquin	0.3%	22.31	0.74	7.9	0.79	0.61

E.1.a-4 Jurisdiction Allocation Chart



a.02. Public Transportation Program

The *Public Transportation Program* is designated to be disbursed by an allocation percentage to the three local transit agencies currently operating in the County-region. The following table provides a quick breakdown of each of their shares (which would remain unchanged throughout the Initiative), totals and average annual allocations:

E.1.a-5 Public Transportation Funding by Operator Table

Transit Operator	Share	30-Year Amount	Average/Year	First Year
Fresno Area Express	70%	$977.1 million	$32.6 million	$20,538,932.33
Fresno County Rural Transit Agency	20%	$279.2 million	$9.3 million	$5,868,266.38
Clovis Transit	10%	$139.6 million	$4.7 million	$2,934,133.19

The Public Transportation Program is intended to help provide for the operations, maintenance, and capital costs for maintaining and improving public transportation services throughout the countywide region. Each agency that would receive funds under this section would be required by the Initiative to improve performance, increase stops and service area coverage, and increase frequency or reliability of services. No specific goals are defined nor consequences for not meeting goals. Additionally, FCOG would perform a Regional Transit Consolidation Study to identify opportunities to coordinate or consolidate transit services, intending to provide a more integrated regional transit network.

a.03. Minor Programs under the Initiative (1-4%)

The *Regional Connectivity Program* would receive 4% of annual revenue for regional street, road, and highway projects which provide direct local benefits. These funds would be competitively allocated by FCOG through project solicitations and prioritization of submissions, and selected projects would need to advance at least one key specified outcome, such as: safety, multimodal travel, air quality, reduced vehicle miles traveled, or access to jobs and other benefits. Funding would be provided to agencies leading selected projects through reimbursement-based cooperative agreements. Given the extreme decrease in funding and funding requirement and restrictions, projects that increase capacity are functionally excluded.

The *Access & Innovation Program* would set-aside 4% of the annual revenues to first fund the implementation and maintenance of zero-fare transit for the disabled, veterans, and active-duty personnel, seniors (62 and up), children and students, through the three transit agencies. Funding remaining after that obligation is met, to the extent that there is any, would be made competitively available for clean-energy infrastructure, travel-choice and mobility projects, broadband and telecommuting support, and emerging transportation technologies. Public agencies would be eligible to apply directly, or private-sector entities or nonprofits could apply with agency support. The Initiative does not establish a fixed or formulaic division between fare subsidies and competitive grants, so the amount available for other uses would be dependent upon the cost of the

prioritized transit subsidization. Without subsidy limits, it is likely that this will run out of funding before grants could be offered.

The *Airport Program* would be allocated 1% of annual revenue directly to Fresno Yosemite International Airport for operations, infrastructure, multimodal connectivity, and transportation-access improvements. The Initiative does not subject this allocation to specific performance metrics, matching requirements, or project listing.

The *Administration Program* would receive an annual 1% allocation under the Initiative, to fund FCOG's administration and program oversight costs, annual work programs related to coordination efforts, program guidelines and related studies, reporting and technical assistance, regional project prioritization, independent auditing, public outreach, advisory-committee support, and development and maintenance of a publicly searchable database of reported spending, and for the costs associated with tax collection and distribution, as levied by the California Department of Tax and Fee Administration. The allocation is the Initiative's dedicated funding source for FCOG's administration expenses, and would not get allocated to other agencies unless operating in coordination, under an FCOG administrative work program.

Because of the smaller size of these programs and because of their formulaic disbursement, the totals potentially available for each of these smaller programs are included in the programmatic allocations table Chart E.1.a-2, above.

2. Consistency with County Plans and Planning and Zoning

(2) Its effect on the internal consistency of the county's general and specific plans, including the housing element, the consistency between planning and zoning, and the limitations on county actions under Section 65008 of the Government Code and Chapters 4.2 (commencing with Section 65913) and 4.3 (commencing with Section 65915) of Division 1 of Title 7 of the Government Code.

a. Summary

This section reviews and analyzes the Initiative consistency with the transportation and land use-related policy and implementation program framework of the Fresno County 2024 General Plan. This analysis addresses whether the Initiative's funding structure, project-eligibility rules, performance requirements, planning procedures, and implementation provisions support, constrain, or otherwise affect implementation of the General Plan.

At a program level, the Initiative is generally consistent with the principal direction of the 2024 General Plan. Examples of consistency include:

- Preservation of the existing roadway system
- Use of pavement management information to drive improvements
- Expansion of public transportation
- Development of Complete Streets
- Development of Safe Routes to Schools
- Prioritization of disadvantaged unincorporated communities
- Interagency coordination
- Use of local revenues to pursue outside funding

However, the Initiative is not consistent with the General Plan especially as it relates to restrictions on the use of Initiative revenue, as specified in various provisions throughout the Initiative's legislative language. Those restrictions may impact which County transportation projects can be funded, when capacity projects can proceed, and whether Initiative local-street funds can support road construction serving planned growth areas.

The most significant issue of consistency concerns roadway capacity and planned growth. While the General Plan directs the County to prioritize maintenance and rehabilitation, it also requires the County to plan and program capacity improvements based on roadway-system needs, level-of-service (LOS) objectives, safety, congestion,

and future growth necessary to accommodate countywide population projections as well as state mandated growth initiatives (e.g., Regional House Needs Allocations).

Because of these conflicts, the Initiative would result in internal inconsistency with the County's General Plan.

The Initiative limits annual capacity-increasing spending from the Existing Neighborhood Streets and Roads Program to five percent and requires every local street and road in a jurisdiction to achieve a PCI of 65 or above before those funds may be used for capacity-increasing projects. There is one exception to the minimum PCI of 65 requirement that allows capacity increasing projects when they consist of public transportation lanes, Class I/IV bike facilities, or safety motivated turn lanes. The Initiative also prohibits use of that program for street or roadway construction in defined new growth areas and new town developments.

The table below summarizes the preliminary consistency findings by major transportation and land use planning topic. The classifications reflect a program-level review of the Initiative against the applicable goals and policies of the Fresno County 2024 General Plan. A finding of "generally consistent" indicates that the Initiative broadly supports the direction of the General Plan, although implementation details may affect the degree of consistency. "Conditional" or "implementation-dependent" findings indicate that consistency will depend on future project selection, administrative procedures, technical criteria, funding availability, or implementing guidance. A finding of "likely inconsistent" identifies provisions that may constrain or impact implementation of adopted General Plan policies.

E.2.a-1 Summary Fresno County Land Use - FCTIA Consistency Matrix[1]

Planning Topic	Preliminary Classification	Summary Finding
Roadway preservation and maintenance	Consistent; implementation-dependent	The 65 percent local-street program, PCI objectives, industry-standard PMS requirement, and lowest-PCI priority support General Plan maintenance and rehabilitation policies. Guidance is needed to preserve preventive maintenance and life-cycle cost efficiency.
Roadway capacity, LOS, and congestion	Not inconsistent	The five-percent annual cap and PCI 65 prerequisite may constrain implementation of

[1] *Sources: Fresno County General Plan Policy Document, Final February 2024; Fresno County Transportation Improvement Act ordinance dated January 26, 2026*

		TR-A.3, TR-A.13, the Road Improvement Program, and adopted growth-related improvements.
Complete Streets and active transportation	Consistent; criteria needed	Complete Streets, ATP linkage, bicycle-facility targets, Safe Routes to School requirements, and DUC priorities strongly support LU-F.8, TR-A.1, TR-A.23-.24, TR-D, and EJ policies.
Public transportation	Consistent; fixed-formula issue	The 25 percent transit program supports TR-B policies. Fixed agency shares and mandatory priorities may reduce flexibility to respond to future demand, cost-effectiveness, or service changes.
Regional connectivity and freight	Not consistent; project-selection dependent	The Regional Connectivity Program supports coordinated regional, State-route, arterial, freight, airport, safety, and multimodal improvements. Competitive project determination, funding limitations, and reimbursement-only delivery may affect project readiness.
Land use, infill, and planned growth	Not consistent re: funding constraint	The existing-neighborhood focus supports infill and compact growth, but the new-growth-area prohibition may affect transportation infrastructure for adopted County growth areas and state-mandated housing actions.
Disadvantaged unincorporated communities	Consistent; County flexibility reduced	The 12-15 percent County set-aside and infrastructure priorities support EJ-A.11, EJ-A.16, and EJ-B, but may limit use of the County's formula allocation elsewhere until specified conditions are met.
Funding and grant leverage	Consistent; verification needed	Bonding, fund accumulation, matching-fund authority, and outside-funding strategies support TR-A.12-.13 and PF-B. The adequacy of local match and administrative resources requires fiscal confirmation.

b. Fresno County General Plan Policy Framework

Fresno County’s 2024 General Plan establishes a policy horizon through 2042 and beyond. Its central themes include protection of agricultural land, urban-centered and compact growth, efficient extension of infrastructure, a multimodal transportation system that supports economic and freight mobility, improved air quality, health and safety, affordable housing, and environmental justice.

b.01. Transportation and Circulation

Goal TR-A calls for a unified, multimodal, coordinated, and cost-efficient countywide street and highway system. Policies TR-A.3 and TR-A.13 give priority to maintenance, rehabilitation, reconstruction, safety, and operation of the existing system while also recognizing capacity and congestion improvements. Policy TR-A.5 requires countywide priority programming using technical tools such as RATE and PMS. Policies TR-A.7-.8 require coordination with Fresno COG, Caltrans, cities, and adjacent jurisdictions. Policies TR-A.12-.13 require pursuit and strategic use of outside and matching funds.

The General Plan also contains Complete Streets and VMT policies. TR-A.1 incorporates Complete Streets standards into County roadway design; TR-A.23 and TR-A.24 address urban and rural Complete Streets; TR-A.2 and TR-A.25 address VMT review; TR-C.2 gives priority to transportation-system management before construction of new lanes; and Goal TR-D and Policies TR-D.1-.9 establish a connected bikeway network and funding framework.

b.02. Land Use and Growth Direction

The General Plan directs intensive development to cities and existing unincorporated communities where public facilities and infrastructure are available or can be provided consistent with adopted land use plans. Goal LU-F and Policies LU-F.1-.4 support mixed-use, transit-oriented, higher-density, and infill development. Policy LU-F.8 requires Complete Streets design guidelines. Goal LU-G and related policies promote orderly growth, coordination with cities, adequate services, and road access for unincorporated community development.

b.03. Public Facilities, Funding, and Environmental Justice

Goal PF-A of the General Plan requires timely infrastructure and an adequate level of service for existing and future development. Goal PF-B and Policies PF-B.1-.7 require equitable and financially feasible funding, fair-share contributions, public financing plans, and allocation of costs among benefiting properties. Environmental Justice Policies EJ-A.11 and EJ-A.16 prioritize disadvantaged communities for infrastructure and active transportation funding and require tracking of infrastructure deficits and funding efforts. Goal EJ-B and Policies EJ-B.1-.5 support walking, bicycling, Safe Routes to School, and bicycle-facility investment.

b.04. Consistency in Implementation

Part 3 of the General Plan requires that County capital projects, specific plans, development agreements, subdivision approvals, zoning, and development projects must be consistent with the General Plan. Transportation implementation programs require a regularly updated Road Improvement Program that includes maintenance, rehabilitation, reconstruction, capacity, operational, and safety projects; continued pursuit of transportation funding; preparation of Complete Streets guidelines; transit coordination; and implementation of the Regional Bicycle and Recreational Trails Master Plan.

c. Detailed Land Use and Planning Consistency Analysis

c.01. Roadway Preservation, Pavement Management, and Safety

Generally Consistent; implementation-dependent

The Initiative's largest program is generally aligned with the General Plan's preservation priorities. The ordinance requires an industry-standard pavement-management system, prioritizes existing neighborhood roads with the lowest PCI or project areas in need of improvement in disadvantaged communities, permits a broad range of maintenance and rehabilitation work, and establishes pavement-performance objectives. This direction supports TR-A.3, TR-A.5, TR-A.12-.13, and Implementation Program TR-A.B.

The consistency finding is implementation-dependent because the General Plan requires programming based on the total needs of the roadway system, and the Initiative's lowest-PCI priority could be interpreted more narrowly than a life-cycle pavement-management strategy.

c.02. Roadway capacity, LOS, and congestion

Likely Inconsistent

The General Plan balances preservation, operational efficiency, VMT reduction, and selective capacity improvements. TR-A.3 establishes LOS objectives and authorizes capacity programming based on total system needs. TR-A.13 identifies capacity improvements as a funding priority after maintenance and safety. TR-C.2 requires consideration of transportation-system management before new lanes. TR-A.2 and TR-A.25 require VMT analysis under the California Environmental Quality Act (CEQA).

The Initiative may constrain this balance. No more than five percent of a jurisdiction's annual Existing Neighborhood Streets and Roads allocation may be spent on capacity-increasing projects, and every local street and road in the jurisdiction must first reach PCI 65 or above. Exceptions are limited to dedicated transit lanes, dedicated and protected Class I or IV facilities, and safety-motivated turn-lane or intersection improvements supported by traffic studies.

The restriction does not necessarily prohibit but functionally precludes capacity projects funded through the Regional Connectivity Program (subject to funding availability), development impact fees, RTMF, State or Federal programs, or other local sources. Nevertheless, it may delay or reduce the County's ability to implement LOS, freight, emergency-access, planned-growth, and operational projects where the local-street allocation is the practical source of match or gap funding.

c.03. Complete Streets, Bicycle, Pedestrian, and Safe Routes to School

Generally Consistent

The Initiative is strongly aligned with the updated General Plan's explicit Complete Streets and active transportation policies. The Initiative requires Complete Streets features where feasible; ties improvements to adopted Active Transportation Plans; requires preservation of existing pedestrian and bicycle access during maintenance; provides detailed facility standards; establishes Class I/Class IV mileage targets; and requires Safe Routes to School planning and project delivery.

These provisions support LU-F.8, TR-A.1, TR-A.14-.15, TR-A.23-.24, TR-B.7, Goal TR-D and Policies TR-D.1-.9, EJ-A.11, and EJ-B.1-.5. The Initiative also provides a formal (but yet to be defined) infeasibility process under which a jurisdiction or agency must use best efforts and, after a noticed public hearing, document why a project requirement is not feasible.

Implementation criteria remain necessary. County standards should address right-of-way, drainage, utilities, terrain, agricultural equipment, wildfire evacuation, maintenance, environmental constraints, cost, safety, and the distinction between urban and rural Complete Streets. These criteria should be coordinated with the County's Roadway Design Standards, Complete Streets Design Guidelines, ATP, and Regional Bicycle and Recreational Trails Master Plan.

c.04. Public Transportation and Transit-Dependent Populations

Generally Consistent; formula-dependent

The Public Transportation Program supports Goal TR-B and Policies TR-B.1-.7 by funding operations, maintenance, capital improvements, expanded frequency and hours, paratransit, first/last-mile connections, service coordination, accessibility, and five-year transit improvement plans. The Access and Innovation Program's zero-fare priority for seniors, students, people with disabilities, veterans, active-duty military personnel, and children also supports TR-B.5 and the General Plan's health and equity themes.

Consistency is conditional because the ordinance fixes the distribution of transit revenue at 10% to Clovis Transit, 70% to Fresno Area Express, and 20% to FCRTA. The General Plan calls for service responsive to existing and future demand, cost-effectiveness, transit-supportive development, and pursuit of all available funding. A fixed formula could become less consistent with those objectives if ridership, service areas, operating costs, population, or responsibilities materially change over the 30-year period.

c.05. Regional Connectivity, Freight, Airport Access, and Interagency Coordination

Conditional; project-selection dependent

The Regional Connectivity Program supports TR-A.7-.8, TR-A.11-.14, TR-F.3, and the General Plan's service-efficiency and economic-development themes. Eligible projects include State highways, regional transportation projects, and major local arterials serving more than one city or area. Project selection must consider VMT reduction, multimodal travel, safety, air quality, access to jobs, and other local benefits, and may prioritize projects that leverage State and Federal funds.

The one-percent airport allocation is compatible with the General Plan's recognition of aviation, goods movement, airport access, and agricultural commerce.

The four-percent regional subprogram may also provide an alternative source for capacity or growth-related projects that are restricted under the local-street program. Consistency depends on whether the public project-selection process produces a balanced portfolio responsive to the County's unincorporated, freight, emergency, and regional needs.

The reimbursement-only cooperative agreement structure may affect smaller or cash-constrained implementing agencies, including the County, because agencies must initially expend funds and are not provided advance funding. This is primarily an implementation and fiscal issue, but it may affect the practical timing of General Plan projects.

c.06. Land Use Patterns, Infill, Vacant Parcels, and Urban Growth

Conditional; potentially inconsistent re: funding constraint

The Initiative does not amend County land-use designations, zoning, densities, or entitlement procedures. Its effects on land use would arise from transportation-funding eligibility. The emphasis on existing neighborhoods, repair, transit, active transportation, and mixed-income transit-oriented development generally supports the General Plan's urban-centered growth, infill, mixed-use, and pedestrian/transit-oriented policies.

The principal concern is the prohibition on using Existing Neighborhood Streets and Roads funds for street or roadway construction in defined new growth areas and new town developments. The General Plan directs growth to cities and existing unincorporated communities, but it also contains adopted community plans, specific plans, reserve areas, state-mandated housing provisions, and unincorporated growth policies requiring adequate road access and infrastructure. Some areas that are planned but not yet substantially developed could fall within the Initiative definition and face restricted access to Initiative funding.

The prohibition may therefore support infill while limiting one source of infrastructure funding for adopted growth.

c.07. Disadvantaged Unincorporated Communities and Environmental Justice

Generally consistent; County flexibility reduced

The Initiative requires the County to spend a minimum of between 12-15% of its local allocation in identified disadvantaged unincorporated communities, with the precise percentage determined through a Complete Streets needs assessment. It also prioritizes low-PCI roads and requires active-transportation and Safe Routes to School analyses.

These provisions strongly support EJ-A.11, EJ-A.16, Goal EJ-B, and related policies.

They may, however, reduce the County's discretion to address high-priority road, bridge, emergency, or maintenance needs elsewhere in the unincorporated area until the Initiative’s conditions for redirecting set-aside funds are satisfied. The County should quantify both the documented DUC need and the effect of the set-aside on the balance of its unincorporated transportation program.

The table in Appendix L provides a detailed comparison of the Initiative’s principal funding, eligibility, planning, and implementation provisions with the transportation, land use, public facilities, environmental justice, and General Plan consistency policies contained in the Fresno County 2024 General Plan. The matrix expands upon the summary findings presented in the Summary Fresno County Land Use – FCTIA Consistency Matrix table (Section E.2.a) by identifying the applicable General Plan provision, describing the relevant policy direction, explaining the Initiative’s relationship to that policy, assigning a preliminary consistency classification, and identifying planning or implementation considerations that may require additional County review. The classifications are programmatic and recognize that ultimate consistency may depend on future project selection, technical criteria, funding availability, administrative procedures, and project-specific General Plan review.

The Initiative is generally consistent with the General Plan's preservation, pavement-management, Complete Streets, transit, active-transportation, environmental-justice, and interagency-coordination direction. Consistency is conditional where fixed formulas and implementation procedures reduce flexibility, and potentially inconsistent where requiring worst first approach to pavement repairs, as well as the five percent capacity cap, PCI 65 prerequisite, and new-growth-area prohibition constraints on adopted LOS improvement, freight, emergency-access, housing, and planned-growth projects.

3. Land Use Effects, & Housing Impacts

(4) Its effect on the use of land, the impact on the availability and location of housing, and the ability of the county to meet its regional housing needs.

The Fresno County Housing Element does prioritize infill development for affordable housing projects with established infrastructure, including roads. However, because infrastructure is needed to support low- and very-low-income housing, most current and future Regional Housing Needs Allocation (RHNA) sites are in underdeveloped spheres of influence (SOI) within the Fresno/Clovis Metropolitan Area. It is unclear if the funds can be used to support infrastructure needed for these sites as they are not currently development, and the Initiative restricts the County's ability to expand road systems in new growth areas. Further impacts on housing are outside the general provisions of this report and the Initiative at large.

The Initiative would permit, but not require, jurisdictions to use revenues derived from the tax to support transportation and related costs enabling mixed-income housing in mixed-use districts within existing neighborhoods. Where jurisdictions elect to use funds in such a manner, this authority might modestly support infill, affordable housing, and transit-oriented development.

The prohibition on Initiative-funded street and roadway construction uses in new-growth areas could reduce the availability of this particular revenue stream for supporting infrastructure serving low-and very-low-income developed and other peripheral development compared to the allocations of the previous Measure C.

4. Impacts on Funding for Infrastructure

(4) Its impact on funding for infrastructure of all types, including, but not limited to, transportation, schools, parks, and open space. The report may also discuss whether the measure would be likely to result in increased infrastructure costs or savings, including the costs of infrastructure maintenance, to current residents and businesses.

a. Transportation – Funding

The funding made available through this program is explained in the fiscal Section 1 above. All of the funding is related to transportation infrastructure. As described in the section above, based on a 3% average annual growth factor, the expected revenue of the measure is nominally $5.584 billion over the 30 years of the Initiative, all of which would be for transportation or transportation related infrastructure. The funds would effectively be distributed between the programs and categories below:

- Existing Neighborhood Streets and Roads Repair and Maintenance Program (65%) (NSR)
- Public Transportation Program (25%)
- Regional Connectivity Program (Airport and Regional Road Improvements) (5%)
- Access and Innovation Program (4%)
- Administration, Performance Measures, Requirements, and Indicators Program (1%)

A brief summary of the 5 primary programs follows:

a.01. Repairing Rebuilding and Maintaining Road System (65%)

Eligible uses include a broad range of street and roadway improvements, with substantial emphasis on bicycle and pedestrian facilities. The Initiative requires all streets and roads constructed or improved, in whole or in part, with NSR revenue to incorporate Complete Streets features whenever feasible, with the objective of creating an integrated neighborhood Complete Streets system. As defined elsewhere in the Initiative, these elements generally include curb, gutter, drainage, sidewalk, and landscaping improvements. Some non-pavement improvements are mandatory. Others are discretionary but may receive priority because they address safety or other identified needs. Road-expansion and capacity-increasing projects are generally restricted, subject to limited exceptions.

a.02. Public Transportation Program 25%

This program would receive an allocation of approximately $1.395 billion over the 30 years of the Initiative, starting with $29.34 million in Year 1, which would be designated to be disbursed by allocation percentage to the three local transit agencies currently

operating in the County-region, with Fresno Area Express receiving a 70% share, Fresno County Rural Transit Agency 20%, and Clovis Transit 10%.

The Public Transportation Program is intended to help provide for the operations, maintenance, and capital costs for maintaining and improving public transportation services throughout the countywide region. Each agency that would receive funds under this program would be required by the Initiative to improve performance, increase stops and service area coverage, and increase frequency or reliability of services. Additionally, FCOG would perform a Regional Transit Consolidation Study to identify opportunities to coordinate or consolidate transit services, intending to provide a more integrated regional transit network.

a.03. Regional Connectivity Program 4%

This program would provide a total of approximately $223.3 million over 30 years in funding for regional projects on the state highway system, regional transportation projects, and projects on major local arterials that serve more than one city or area of the county region, on a competitive basis. Because of the competitive nature and Caltrans' eligibility, it's not possible to predict with any accuracy at this stage what portion would be allocated to each agency in the region, or which types of facilities would be impacted. From the defined eligible facilities, it can be inferred that the primary facilities targeted by this allocation would be subject to Caltrans, the County, or City of Fresno/Clovis' jurisdiction, likely with interlinked needs and requirements. The annual allocation would start at approximately $4.7 million, which would not include any funding that could be acquired by leveraging these funds for matching fund grants.

a.04. Airport 1%

The Initiative includes this set-aside as a component within the Regional Connectivity Program but would not be allocated competitively or be subject to additional restrictions. The funding would be used to "support operations, infrastructure, transportation access improvements, and multi-modal connections to and from the airport" (4.60.090(A)). This would translate to approximately $1.17 million of revenue (starting in Year 1), which would equate to approximately 0.5% of the Fresno Yosemite International Airport's operating revenues, as identified in the City of Fresno's Adopted FY 2026-27 Budget. The majority of their revenues are attributable to service charges, intergovernmental revenues, and carryover balance. The Airport Department's reporting interest accrual is a larger share of their annual budget, at $2.2 million. However, Chandler Airport is excluded from the Initiative funding.

That said, Measure C's airport funds have historically been very successful in leveraging matching funds, attaining a matching fund ratio of nearly 9:1 over the life of the Measure. There is no reason to assume that the matching fund ratio would substantially change under Initiative's similar program. As a result, it is reasonable to

expect that Fresno Yosemite Airport could leverage the expected $55.8 million from the Initiative into approximately $500 million in additional grant funding, resulting in a potential total airport investment of $556 million.

a.05. Access and Innovation Program 4%

The Initiative's 4% Access and Innovation Program could expect to be allocated approximately $223.3 million over 30 years, starting with $4.7 million in Year 1. The program would first be prioritized to fund the implementation and maintenance of zero-fare transit for the disabled, veterans, and active-duty personnel, seniors (62 and up), children and students, through the three transit agencies. Remaining funding, if any, would be made competitively available for clean-energy infrastructure, travel-choice and mobility projects, broadband and telecommuting support, and emerging transportation technologies. The Initiative does not establish a fixed or formulaic division between fare subsidies and competitive grants, so the amount available for other uses would be dependent upon the cost of the prioritized transit subsidization, and the Department has been unable to identify the extent of which funding might be available under this program.

b. Transportation – Pavement Conditions

The Initiative establishes conditions governing how each jurisdiction may expend NSR funds. Principal requirements include:

Section 4.60.070

- Paragraph A.6 requires all streets and roads constructed or improved, in whole or in part, with NSR revenue to incorporate Complete Streets features whenever feasible, with the objective of creating an integrated neighborhood Complete Streets system. As defined elsewhere in the FCTIA ordinance, these elements generally include curb, gutter, drainage, sidewalk, and landscaping improvements.
- Paragraph B.2.a - j identifies the projects and project features eligible for NSR funding. Eligible uses encompass a broad range of street and roadway improvements, with substantial emphasis on pedestrian and bicycle facilities. Road-expansion and capacity-increasing projects are generally restricted, subject to limited exceptions addressed elsewhere in this Section 9111 Report.
- Paragraph B.6 requires Fresno County to expend between 12% and 15% of its NSR allocation within disadvantaged unincorporated communities, as defined by California Government Code Section 65302.10.
- Paragraph B.7 requires each jurisdiction to prioritize roads with the lowest PCI scores or project areas in need of improvement within disadvantaged neighborhoods and communities.

- Paragraph C establishes the Active Transportation component of the NSR Program. Although some eligible improvements are discretionary, the section also imposes specific requirements, including:
- Paragraph C.3 – Roads funded through this program must include sidewalks, paths, and walkways.
- Paragraph C.6 – Roads funded through this program that do not include pavement widening must include a Class I or Class IV bicycle facility. As defined by FCTIA, Class I and Class IV facilities require separate or protected operating space from the roadway and may include limited at-grade crossing points.
- Paragraph D identifies transportation improvements supporting transit-oriented development as eligible expenditures under the NSR Program.
- Paragraph F identifies Safe Routes to School projects as eligible expenditures under the NSR Program.
- Paragraph G establishes FCTIA ordinance performance requirements, including:
- Paragraph G.1 requires each jurisdiction to maintain an average PCI of at least 70.
- Paragraph G.2 requires the County to construct at least 36 miles of Class I or Class IV bicycle facilities.
- Paragraph G.3 requires the County and the 13 cities other than Fresno and Clovis to complete at least 45 Safe Routes to School projects, equivalent to an average of 1.5 projects annually or 15 projects during each 10-year period.

ANALYSIS

These provisions raise several considerations relevant to evaluating the effect of the FCTIA ordinance on Fresno County's roadway network.

1. Although the NSR Program receives 65% of total FCTIA revenue, the program is not limited to pavement repair and maintenance. Eligible uses include a broad range of street and roadway improvements, with substantial emphasis on bicycle and pedestrian facilities. Expenditures for these other purposes reduce the amount available for pavement preservation.
2. Some non-pavement improvements are mandatory. Others are discretionary but may receive priority because they address safety or other identified needs. In either case, these expenditures would reduce the amount of NSR funding available for pavement repair and maintenance.
3. At the funding levels evaluated in this section, the requirement to achieve and maintain an average PCI of 70 does not appear attainable.

The PCI requirement is therefore the principal focus of the analysis that follows.

Pavement conditions within the region are managed through a pavement management systems (PMS). Fresno County uses StreetSaver as its pavement management tool and coordinates with the Fresno Council of Governments (Fresno COG), which has

retained Nicholas Consulting Engineers (NCE) to assess and compile pavement conditions for the 15 cities and the County. NCE's most recent report, issued in 2025, used data from the 2024/25 Pavement Management Program update and provides the primary technical basis for this portion of the Section 9111 analysis.

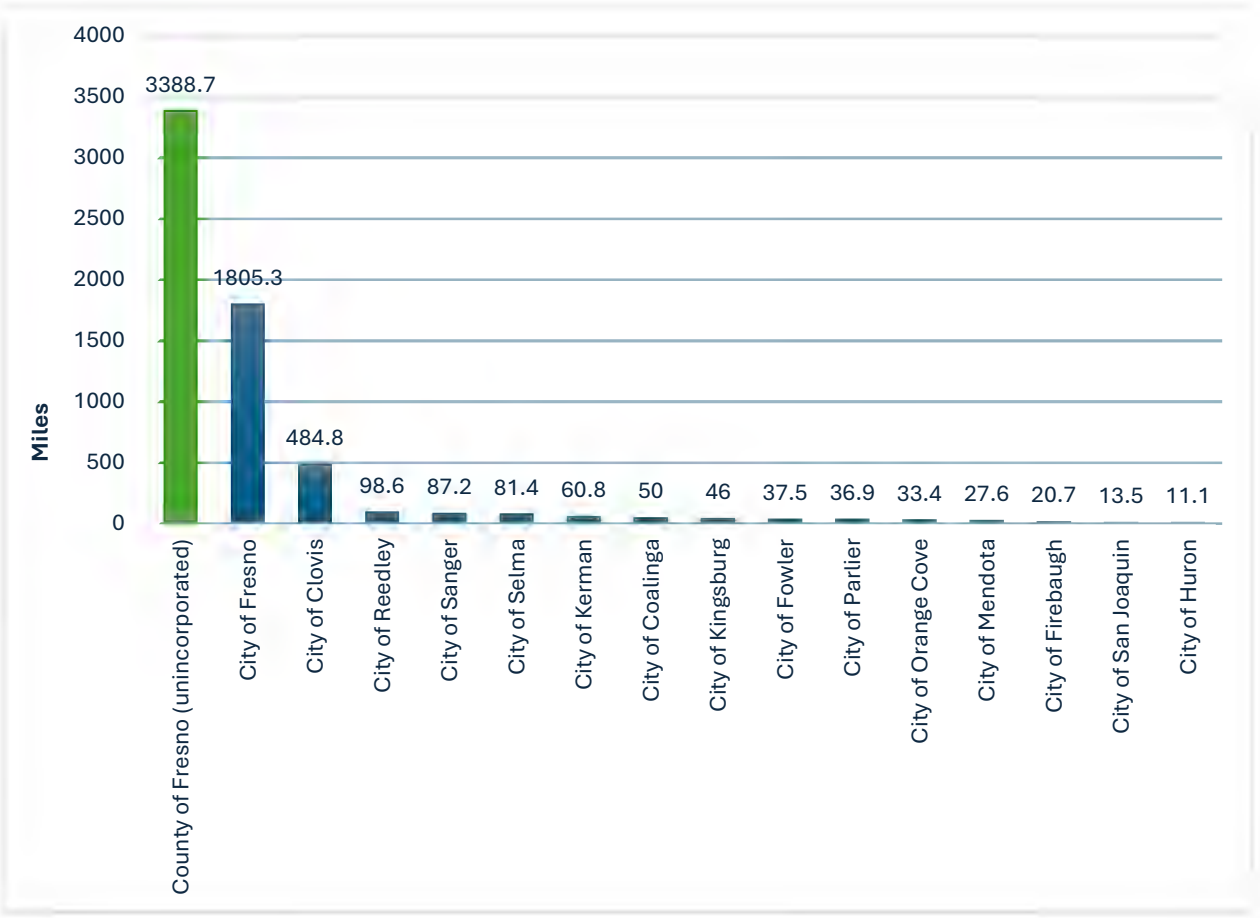
Pavement conditions are evaluated using their Pavement Condition Index (PCI), which is a score ranging from good (70-100) to very poor (0-24). The following table, excerpted from the NCE 2025 report describes the four pavement conditions, and their respective PCI ranges:

E.4.b-1 Pavement Condition Descriptions Table

Condition Category	PCI Range	Description
Good	70 – 100	Pavements with minimal surface distress that may include some hairline longitudinal/transverse cracks and/or weathering. The pavement structure is sound, and minor oxidation may occur.
Fair	50 – 69	Pavements with significant distress that is predominantly non-load-related, such as longitudinal/transverse cracks, bleeding, block cracking, weathering, raveling, etc. The pavement structure is sound, and some oxidation has occurred.
Poor	25 – 49	Pavements with moderate to severe surface distresses. Extensive weathering or raveling, block cracking, and load-related distresses such as alligator cracking, rutting, and potholes may occur.
Very Poor	0 – 24	Pavements with severe weather-related distress and large quantities of load-related distress. These pavements are nearing the end of their service life.

To place the PCI requirement within context, the number of centerline miles each jurisdiction is responsible for is shown in the following Figure:

E.4.b-2 Pavement Miles by Jurisdiction Chart



* Source data: NCE Technical Memorandum Fresno Regional Analysis 11/07/2025

The NCE 2025 study's recent average PCI ratings per agency are provided in the excerpted table below:

E.4.b-3 Average PCI per Jurisdiction (NCE) Chart

4.2 PCI Comparison with Neighboring Agencies

Figure 4 shows the County's average network PCI compared to neighboring agencies as well as the statewide average PCI from the 2022 California Statewide Local Streets and Roads Needs Assessment[4]. The County's PCI of 66 positions the County one point above the 2022 statewide average of 65.

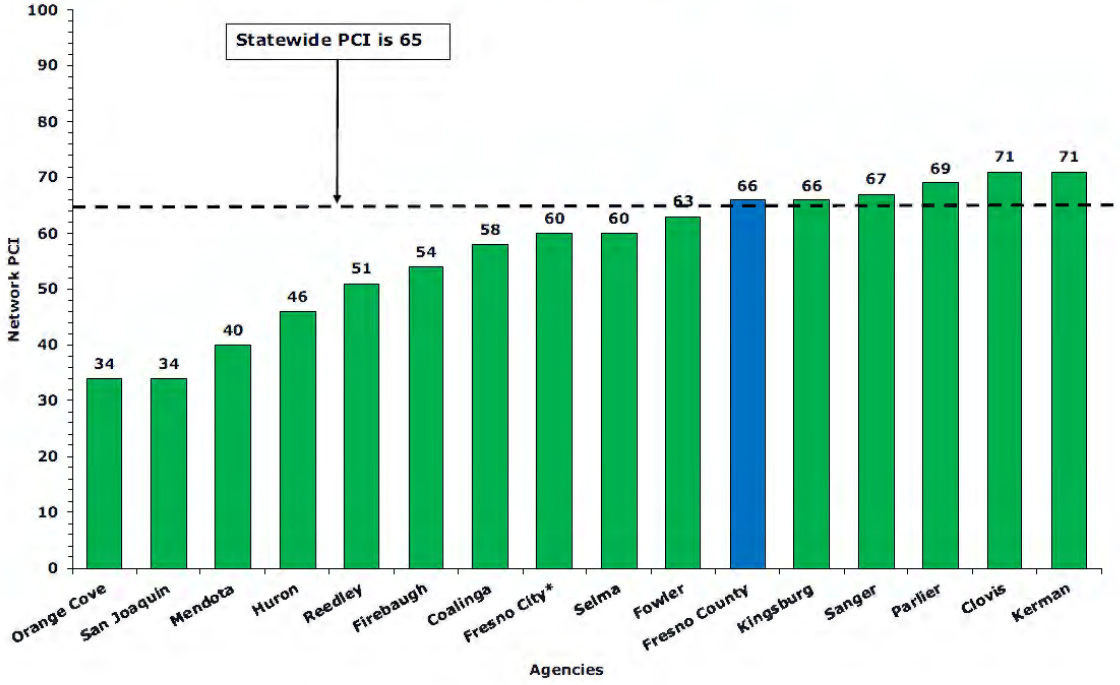


Figure 4. Network PCI for Different Agencies.

Here is the relative condition of jurisdictional roads, from that same report:

E.4.b-4 Jurisdiction Current Pavement Conditions (NCE) Chart

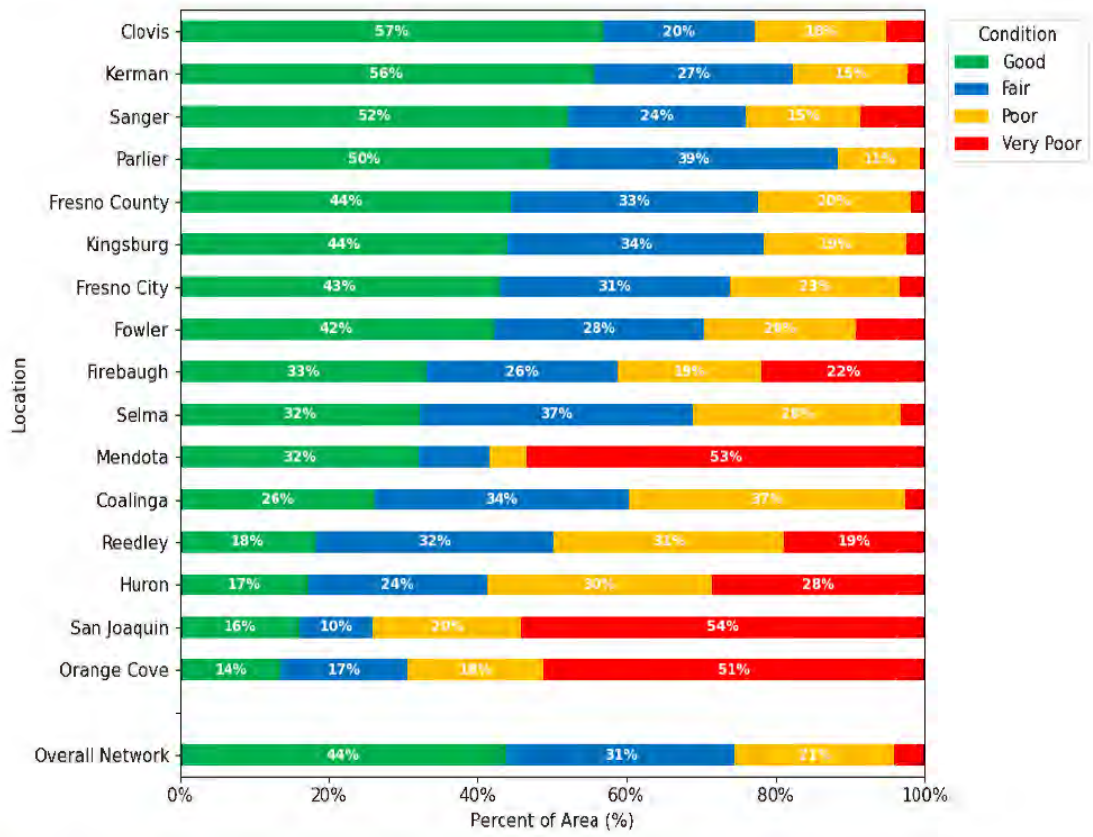
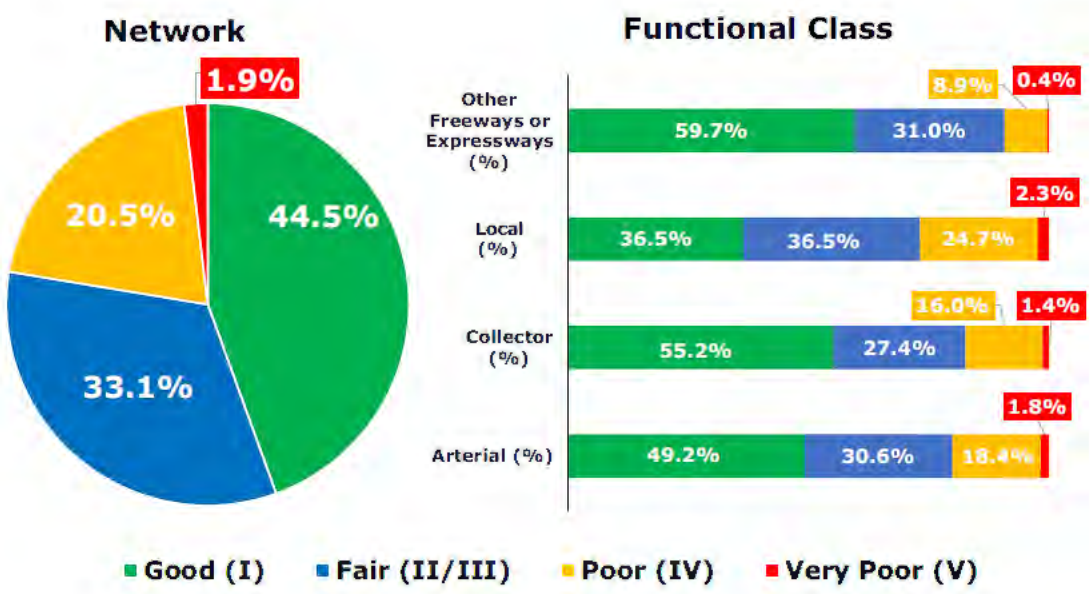


Figure 1. Current Pavement Conditions (Jurisdictions vs. Overall Network)

Fresno County maintains 3,389 centerline miles of paved roads with an estimated value of $4.1 billion. The network includes 447 centerline miles of arterials, 2,071 centerline miles of local roads, and 193 centerline miles of expressways. Total lane mileage is more than twice the centerline mileage as all County roads have at least two lanes and some have four. The 2025 report identified an average network PCI of 66; however, by 2026 the average had declined slightly to 65. Based on 2025 conditions, 44.5% of the network was rated Good, 33.1% Fair, 20.5% Poor, and 1.9% Very Poor.

The following Figure presents the of the County roadway network by condition.

E.4.b-5 Fresno County Road Conditions Chart



Under the Initiative, each jurisdiction is required to prioritize roads with the lowest PCI scores or project areas in need of improvement within disadvantaged neighborhoods and communities, independent of average daily traffic (ADT) usage. While this provides a clear strategy for the spending of Initiative funds, this “worst first” prioritization strategy may create an implementation challenge for the various jurisdictions. That is, that a balanced Pavement Management System (PMS) strategy combines costly rehabilitation of failed roads with much cheaper preventive maintenance that preserves roads in good condition, and that accounts for ADT to help ensure that the most used roads are kept in better shape for the use of all.

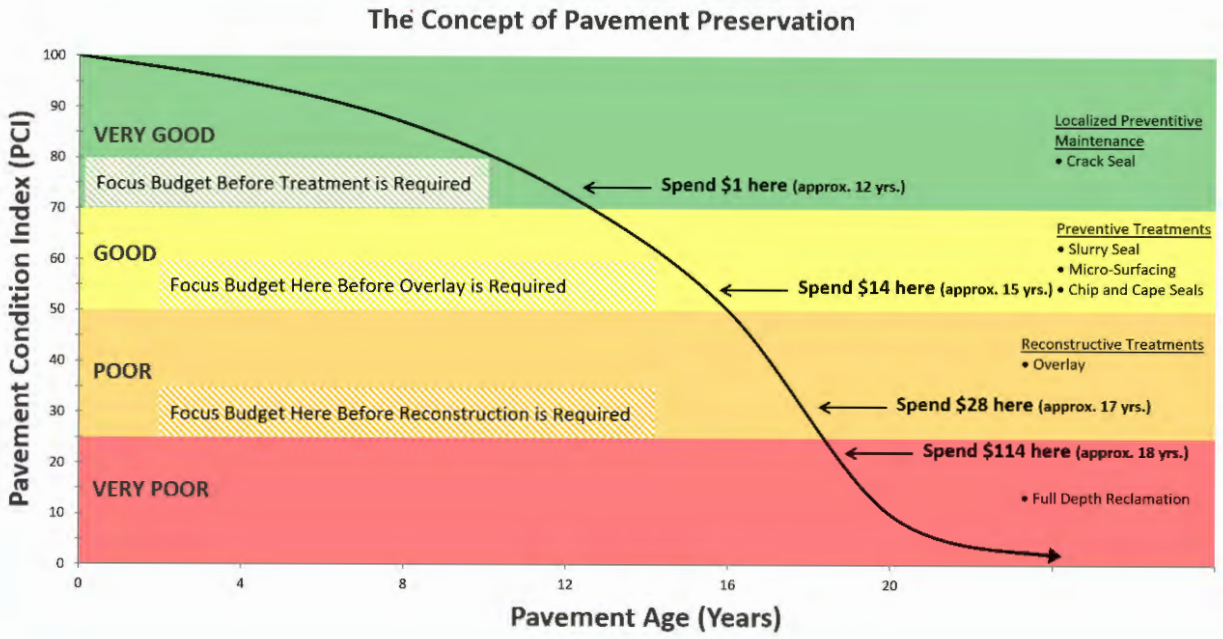
The funding from the Initiative would enable jurisdictions to improve the conditions of their very worst roads; however, the prioritization method prescribed in the Initiative is a significant deviation from recognized, cost-effective industry standard pavement maintenance practices, precisely because it will, without allowing for ADT and other considerations, result in directing much of the NSR allocation toward costly rehabilitation and reconstructions of roads that aren’t heavily used. This may result in a temporary increase of average PCI by ‘raising the floor,’ but this unmitigated “worst first” prioritization target approach would direct Initiative resources away from cheaply maintaining more heavily relied upon infrastructure – the connectors and arterial roads that connect local neighborhoods to businesses, to each other, and to the broader community and region – which will simultaneously result in ‘lowering the ceiling’ on the PCI network, precisely where it’s most used. When considering the additional complete street requirements that are included when those local roads are reconstructed, the

prioritization requirements may sink a large chunk of the Initiative funding precisely where it'll be seen least and least relied upon.

It's important to note that the Initiative does not prohibit jurisdictions from utilizing other funding in accordance with balanced PMS principles, and that the net result may be that gas tax funding may need to be wholly redirected towards higher PCI/higher ADT maintenance target points, to ensure that the network roads don't fall into disrepair by following the prioritization metrics of this report. and represents a shift in prioritization from industry practices to focus maintenance funding on preventing system-wide PCI averages to fall through targeted treatments.

The following table illustrates a pavement condition index and the corresponding treatments and approximate proportional costs associated with maintaining them:

E.4.b-6 The Concept of Pavement Preservation Chart



NCE estimates that increasing the County's average network PCI to 70, the lower threshold of the "Good" category, would require approximately $2.2 billion in pavement repair and preventive maintenance expenditures over the next 10 years. With the funds available from this initiative, the County would be able to reduce the amount of "Very Poor" roads but would need to direct other funds toward preventing "Very Good" and "Good" roads with high volumes of traffic from becoming "Good" and "Fair" roads.

During the first ten years The NCE report indicates that at a funding level of $112.5 million per year, the county can maintain its current average PCI of 65 or 66. Under the initiative, total County funding for road repairs should increase from its current $110

million to $116 million. Under that scenario, NCI predicted the deferred maintenance would be about $1.3 billion, a slight decrease from the current $1.5 billion. Note that of the $110 million and $116 million, only $10 million and $16 million, respectively, are to the expiring measure and new Initiative. The total available funding could maintain an average PCI near 65, but it cannot achieve an average PCI of 70; approximately $29.5 million more per year would be needed to reach the 4.60.070(G)(1) requirement of 70 under the cited assumptions.

In short, the Initiative does not provide enough revenue to raise the PCI to the 70 PCI goal. Furthermore, the revenue provided is not entirely usable for raising PCI since other stated goals such as Complete Streets, Class I/IV bike facilities, Active Transportation, Safe Routes to Schools, and other related requirements take directly from the same funds. These added features increase the overall cost of a maintenance project by 100-200%. It is estimated that the Initiative will provide marginally better funding for maintenance after considering the cost increase of these other features.

c. Transportation – Disadvantaged Unincorporated Communities

12-15% of County allocation must be to disadvantaged unincorporated communities (DUCs) unless all PCI is 70 average in DUCs and every DUC road has a minimum PCI is 65.

The Initiative defines a disadvantaged unincorporated community using paragraph (2) of subdivision (a) of Section 65302.10 of the California Government Code. A very similar basis was also used in Appendix B-2 of the Fresno County 2000 General Plan Policy Document, while more recent DUC listings used a slightly different criteria to determine which communities are disadvantaged. The DUCs listed in the 2000 General Plan Policy Document are Ashlan-Chateau, Biola, Britten-Cherry, Burrel, Cantua Creek, Carillo, Caruthers, Church-Floyd, Church-Valentine, Cornelia-Floral, Del Rey, Easton, El Porvenir, Five Points, Laton, Madera-Date, Malaga, Monmouth, Muscat-Valentine, O'Neill Farms, Parlier-Elm, Raisin City, Riverdale, Tombstone Territory, Tranquillity, and Yuba. These communities are mapped in Appendix M and will be used in combination with engineer estimates to present the potential costs to deliver this set aside. It is possible that more communities have become disadvantaged in the last 26 years and a more accurate assessment that would take more time to investigate would be performed to assess the County's compliance with these clauses of the Initiative in order to add additional road segments. These segments would be identified in the needs assessment of 4.60.070.6 and 4.60.140.A.3.

Road segments directly servicing DUCs contain a total of 54.37 road miles. The current number of road miles in DUCs with a rating under 65 is 22.7 miles. These can be broken down into the ranges shown below. The following table provides the approximate number of miles in the DUCs according to their approximate pavement condition, the approximate cost of the appropriate treatment to improve the road condition to “Very Good” without right-of-way acquisition and full new complete streets infrastructure and with extensive right-of-way acquisition and full new complete streets infrastructure. It is unrealistic to assume that all these roads would require right-of-way acquisition and that full complete streets infrastructure would be found feasible in all locations. Subtracting the roads that already have sidewalks in the DUCs, and assuming that approximately 13 miles of the remaining roads would not be found to be feasible due to encroachments, too narrow right-of-way, utilities, or other physical constraints, approximately 24 miles of roadway (engineer’s rough estimate) might require complete streets elements. The final column provides an engineer’s estimate of if 24 miles would likely include new Complete Streets features with right-of-way (ROW) acquisition and the remainder where only the roadway treatment or reclamation would likely be feasible.

E.4.c-1 Disadvantaged Community Approximate Miles and Treatment Cost Calculation Table

Type of Treatment	Miles in DUCs (approximately)	Estimated Cost
Basic Overlay for roads in Good condition	12.2	$31,150,000
Reconstructive overlay for roads in Poor condition	7.6	$24,590,000
Full depth reclamation for roads in Very Poor condition	2.8	$13,950,000
	subtotal	$69,690,000
External funding (assuming 1/3 complete streets receiving funding at 15% match)		($13,550,000)
Expected total cost	total	$56,100,000

It is important to note that complete streets elements for disadvantaged communities have frequently received external funding grants that range from 70% externally funded to 100% externally funded. Assuming 1/3 of the Complete Streets project miles would be successful in receiving external state or Federal funding with a weighted average of 15% match (based on recent complete streets projects in existing DUCs) the expected costs of completing the required allocation for DUCs to approximately $56,100,000,

which would likely be most of the DUC set aside ($1.9 mil to $2.4mil annually) throughout the measure.

d. Active Transportation – Pedestrian & Bicycle Facilities

Section 4.60.070(C) and (G) of the Initiative requires that the at least 120 miles of new Class I and Class IV facilities shall be constructed and maintained by 2057 (through the lifespan of the Initiative). Of these, the cities of Fresno and Clovis would be jointly responsible for at least 84 miles, and the County would be responsible for at least 36 miles. The County share can be shared with the other 13 Cities. The Initiative allows for routine maintenance to account for up to 20% of this requirement, which would leave a minimum new installation requirement of 67.2 miles for the two cities, and 28.8 miles for the County. As a general rule of thumb, owing to right of way restrictions, density factors, and comparatively higher traffic speeds, the County would almost exclusively be inclined to utilize Class I mixed-use pedestrian/bicycle facilities, whereas cheaper Class IV facilities that separate bicycle traffic from roadway via delineation might be more appropriately used in metropolitan areas with higher density and comparative traffic. Accordingly, the County has only 19 miles of Class IV facilities included in our Active Transportation Plan, versus 218.5 miles of Class I.

For purposes of this analysis, we applied a presumed typical per-mile cost for Class I facilities based on recent County projects (typical cost shown in appendix) and the typical cost delineated in the City of Fresno's Active Transportation Plan, which both agencies agreed, is an approximate $1.16 million/mile. The Class IV per-mile cost of $0.31 million/mile was taken directly from the City's Active Transportation Plan. The presumed proportional breakdown of the Cities' combined Class I/Class IV facilities that would be used to satisfy the requirements under the initiative is based on the comparative new-facility mileage between the identified facility types, under the City of Fresno's ATP (150 miles of Class I versus 60 miles of Class IV). Due to the time constraints and the grouped project delivery requirements, the City of Clovis' planning documentation was not analyzed independently.

Assuming all 28.8 required new miles of County-required facilities are Class I facilities, that component would require $33,408,000 of the County's Neighborhood Streets and Roads allocated funding – roughly 4.2% of the County's allocation. Assuming the Cities' portion is composed of 48 miles of Class I and 19.2 miles of Class IV, that would require $61,632,000 – roughly 2.93% of the Cities' combined allocations.

The County may be credited with Class I and Class IV facilities that might be constructed by the other cities within the region (excluding the cities of Fresno and Clovis), pursuant to 4.60.070(G)(2)(c), and Safe Routes to Schools projects that

incorporate Class I or Class IV facilities may be dual credited towards satisfaction of both the SRTS and Active Transportation requirements, pursuant to 4.60.070(G)(2)(d).

e. Regional Transportation

The Initiative Neighborhood Streets and Roads Program (NSR) contains provisions that allow use of a portion of those funds on regional projects under certain conditions and with certain limitations. An agency may spend up to 5% of the NSR allocation on road expansion or capacity-increasing projects. However, in order to be eligible, an agency must reach and maintain a minimum Pavement Condition Index, or PCI (as described in Section 4.b of this report), of 65 on *every* local road within its jurisdiction. In comparison with the deferred and anticipated maintenance obligations listed in the Pavement Management Program study and considering all potential sources of funding that could be available for street repair and maintenance, including the Initiative NSR Program, reaching this threshold appears to be highly unlikely with current and Initiative funding alone for most regional jurisdictions, and could not be maintained with existing and Initiative funding should it ever be reached. If the 65 PCI threshold is not met, these NSR funds can still be used on regional projects, but they must meet one or more of the following criteria:

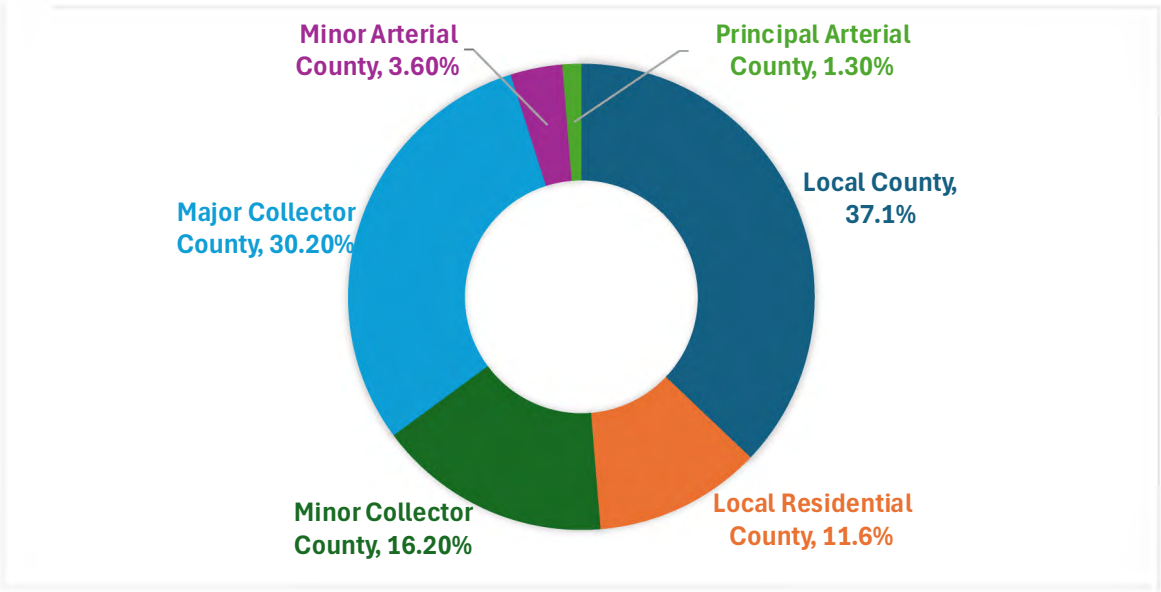
- Dedicated Public Transit Lanes
- Dedicated and protected Class I or Class IV Facilities
- Safety improvements at intersections

The Initiative also includes the competitive Regional Connectivity program which would provide a total of approximately $223.3 million in funding for the state highway system, regional transportation projects, and projects on major local arterials that serve more than one city or area of the county region.

The primary challenge for the County of Fresno regarding these funds is that the County as a jurisdiction maintains most of the region’s regional connective roads and requires a reliable source of funding for when they require expansion or capacity-increasing improvement.

These roads are critical for providing agricultural, freight, school, emergencies, evacuation, tourism, and community access. Their primary needs are for preservation, bridge and culvert work, shoulders, drainage, safety, geometric correction, and reliable access – but capacity-increasing is not an inconsequential consideration. The chart below shows the distribution of road classifications under the County’s jurisdiction:

E.4.e-1 Functional Classification of County Roads Chart



Most of the Initiative's discretionary funds will be directed within the County's inventory toward neighborhood County roads. It is not clear if rural local, collector, or arterial roads may be funded with NSR. Any roads that are not deemed eligible will require a substantial directional shift in road prioritization and will require the County to secure other sources of funding to fulfill regional needs by maintaining and expanded the County's major roads.

The four-percent competitive Regional Connectivity allocation for roads (about $223.3 million over 30 years) provides *some* local regional funding but not sufficient funding to provide all of the documented multi-billion-dollar existing and anticipated regionally funding requirements. Contextually, almost the entire Initiative funding would be required to meet those regional deferred maintenance, anticipated maintenance, and growth needs. Its restrictions and competitive structure may limit joint funding and matching leverage, while RTMF cannot replace the missing regional investment because it is limited to growth-related impacts. The various restrictions and limitations contained in the initiative all but preclude projects that increase capacity.

The limited funding availability and restrictions placed upon available funding through this program combine to create a challenge that is likely to constrain growth by restricting infrastructure improvements necessary to keep up with development growth. RTMF's application limitation to growth-related impacts can provide fractional capacity investment, but there will almost always be a funding gap that must be made up for projects to proceed. HUTA and RMRA gas taxes are restricted from investing into most capacity increasing projects (except through managed-lane projects like carpool lanes,

and even then, only via HUTA, and those would only be feasible on the most heavily traveled roads).

Lacking a robust and reliable local source of funding that can be steadily invested into regional capacity needs will prevent many projects from moving forward, which will increase congestion and limit further development, thereby constraining the regions' ability to keep up with housing and industry growth demands, and the obligations imposed by the housing element in the General Plan.

The one-percent airport allocation is different: historical leveraging suggests approximately $55.8 million could support roughly $500 million in matching funds and about $556 million in total airport investment.

f. Transportation – Public Transit

The Fresno-Clovis Metropolitan Area Short-Range Transit Plan reports that approximately 74.7% of County commute trips are made by single-occupant automobile, 11.6% by carpool, 0.9% by public transit, and 1.9% by walking or bicycling. During Fiscal Year 2025, Fresno County transit operators carried approximately 11.25 million passenger trips, traveled approximately 9.1 million service miles, and operated approximately 743,600 service hours. This equates to an average of approximately 30,800 passenger boardings per calendar day. Fresno Area Express accounted for approximately 10.4 million of those trips, or 92.4% of the countywide total. Clovis Stageline and Round Up together carried approximately 303,800 trips, while the Fresno County Rural Transit Agency carried approximately 177,700 trips. These passenger trip totals include transfers and should therefore not be interpreted as a directly equivalent number of automobile trips.

The ability of increased transit ridership to reduce congestion depends specifically on how many new riders would otherwise have driven during the congested period and on the roadways experiencing the congestion. Passenger counts, non-work trips, paratransit trips, students, seniors, people without access to automobiles, and other riders without access to vehicles depend upon public transportation for critical needs, access to jobs and healthcare, and daily trips and the initiative's funding will support the essential service of transportation for those currently dependent on it.

The Initiative would direct 25% of net revenue to public transportation agencies, which the Fiscal Impact calculations estimate at a total of $1.396 billion in directed revenues over the 30 years, starting at approximately $29.3 million in Year 1, and averaging $46.6 million per year. Accordingly, transit investments funded by the Initiative would provide meaningful mobility, accessibility, environmental, and service benefits and could reduce automobile travel on selected routes or corridors, to the extent that additional travelers opt to utilize public transport.

Additionally, the Access and Innovation Program's prioritization of funding the implementation and maintenance of zero-fare transit for the disabled, veterans, and active-duty personnel, seniors (62 and up), children and students, through the three transit agencies, would improve equitable transportation access for those populations. Once that program is funded, remaining funds would become available for other innovative projects or continued investment, if any, in transit such as hub joint locations between local transit agencies.

g. Transportation – Air Travel

The Initiative's funding would augment the other enterprise fund allocation sources available to Fresno Yosemite International Airport (FAT) and would account for a relatively small $1.17 million (Year 1) of their budgeted FY 2026-27 revenue (roughly 0.5% of their annual $232.67 million revenue).

Fresno Yosemite International Airport is the largest commercial passenger airport in the Central Valley between Los Angeles and Sacramento. In 2025, FAT served a record 2,752,392 arriving and departing passengers, including 433,636 international passengers traveling between Fresno and Mexico.

FAT is the 12th-largest commercial-service airport in California by passenger boardings. FAT also handled more than 20 million pounds of air cargo during 2025.

The expiring Measure C invested 1% of the overall program in Fresno County airports. The Initiative also would invest 1%. The expiring Measure C allowed investments at FAT and at Chandler airports, while the Initiative only allows investments at FAT. The total airport investment from the Initiative would be approximately $55.8 million.

Historically, Measure C airport funds were very successful in leveraging matching funds. In fact, the matching fund ratio was about 9:1 over the life of the Measure. There is no reason to assume that the matching fund ratio would change substantially under Initiative's program. As a result, it is reasonable to expect that Fresno County could receive $500 million in matching funds, resulting in a total airport investment of $556 million.

h. Schools

The Initiative would directly affect the funding of transportation infrastructure for schools through the Safe Routes to Schools (SRTS) requirements. Each jurisdiction is required to perform Safe Routes to Schools Implementation and Performance Analysis in cooperation with the school districts within its jurisdictional bounds every five years (4.60.160 and 4.60.080.H.2). The SRTS analysis must consider serious injuries and fatalities within a one-mile radius of each school, and the analysis will guide

prioritization of SRTS projects. The Initiative requires 150 SRTS to be completed by 2057, 105 of which must be within the cities of Fresno and Clovis, with the remaining districts responsible for 45 (1-2 projects per year and 15 every ten years). The Fresno County Superintendent of Schools lists over 30 districts, some of which are single-school districts, while the largest of these districts contain 50-100+ schools.

In recent years, the County has performed walk audits at 35 schools to assess needs. Some have been funded with Measure C and some have been funded with a $242,814 Safe Routes to Schools grant through the Pedestrian and Bicycle Safety Program. This Initiative would fund ongoing efforts by Public Works and Planning to improve safety for pedestrians and cyclists near schools, providing additional funding for both continuing these efforts and providing matching local funds for future grant applications for projects identified both through the walk audits and developed in coordination with the school districts.

i. Parks

The funds of the initiative are not allocated to park construction and maintenance, though there are some impacts for accessing parks depending on how jurisdictions choose to use their allocations in the initiative. Construction of trails exclusively for recreation are expressly prohibited, but parks are expressly mentioned in the bulk of the jurisdiction allocation as a priority for transportation that connect parks with other community elements (homes, schools, community services, public transportation and places of employment), under both the B. Repair, Maintain, and Connect Local Streets and Roads Program (p. 7) and C. Active Transportation (p. 10), as well as maintenance of parks adjacent to bicycle and pedestrian facilities under E. Bicycle and Pedestrian Facilities Maintenance (p. 12).

B. 1. Expenditures under this subsection shall prioritize improvements to local streets that connect to existing neighborhood homes, schools, parks, community services, public transportation, and places of employment.

C. 1. Jurisdictions that receive funds under this section may expend those funds to create a comprehensive, connected network of pedestrian and bicycle routes that link homes, workplaces, schools, parks, transit, and

E. Bicycle and Pedestrian Facilities Maintenance. Jurisdictions receiving funds under this section may use the funds for maintenance

of bicycle and pedestrian facilities, including, but not limited to, landscaping and tree care; pavement, root-damage, and pothole repairs; irrigation system operation and repair; lighting, signage, striping, and surface resurfacing; litter and weed removal; utility costs; and maintenance of adjacent trailheads or parks.

The impact of this funding directly for parks would be low due to the restrictions on exclusively recreational trails, assuming this precludes the funds from being used on trails within parks which start and end within each park. Because of the prioritization of connecting destinations, it is possible that future implementation guidance would clarify that trails through parks that provide connection to other destinations may be eligible for trail funding from this initiative.

j. Open Space

There is no funding in this initiative for decreasing the amount of open space in the County. As pedestrian and bicycle transportation infrastructure is itself open space, there is the potential for nominal increases in open spaces in urban areas where structures could be removed to convert to pedestrian and bicycle transportation infrastructure, but as physical and right-of-way constraints are conditional throughout the measure as “where feasible,” it is possible that this measure would have little to no impact on open spaces.

5. Impacts on Businesses and Employment

(5) Its impact on the community's ability to attract and retain business and employment.

As a sales tax, the tax burden is entirely driven and borne by consumer spending, and is directly comparable to the previous Measure C. If adopted, consumer spending would not be measurably impacted compared to current conditions, as it would replace the existing half cent (0.5%) sales tax Measure C with the half cent (0.5%) sales tax Initiative without any overlap. The alternative no-measure scenario would result in consumers seeing a savings of $5 for every $1,000 of spent.

If adopted, the Initiative would provide direct impacts experienced by: local construction contractors; engineering and environmental consultants who provide design and development of plans, specifications, and compliance reporting for projects and regional planning; staffing resources at the various agencies; and equipment and materials purchased by the various agencies for road work and transit operations. Indirect and Induced impacts would be felt through driven business-to-business transactions through the supply chain, and through resultant continued household spending and monetary circulation impacts on the local economy.

The Initiative would support direct work in road repair, reconstruction, paving, bridge and drainage maintenance, traffic signals, sidewalks, bicycle facilities, transit operations, vehicle and equipment acquisition, engineering, environmental review, planning, project management, construction management, inspection, public engagement, technology, clean-energy infrastructure, and administrative oversight. Indirect effects would occur through purchases of asphalt, concrete, aggregate, fuel, vehicles, equipment, professional services, and other inputs. Induced effects would occur when workers and business owners spend resulting income in the local economy.

For purposes of job supporting benefits, the Department acknowledges the generally speculative nature of such calculations and has attempted to apply authoritative source figures to the greatest extent possible, but has had to adjust figures based on a myriad of assumed and aggregated factors. As such, these figures represent an exercise in rough economic forecasting and should not, by themselves, be taken as authoritative or complete. Additional or more authoritative calculations might've been created or sourced if more time had been allowed.

Accordingly, to aggregate the information and ensure that the comparison is as close to reality as possible, we have applied a 2.2% per year inflationary factor (based on long term inflation projections from the Congressional Budget Office and Federal Reserve) to future year revenues to approximate a constant-year value, which this analysis will refer to as 2026$. Applying to the nominal revenue projections from the Fiscal Impact

summary to represent a conservative relative projected decrease in spending-value over the term of the Initiative, as seen in the following table:

E.5-1 Spending-Value Table

Year	Nominal Revenue	2026$ Value
1	$ 117,365,327.60	$ 114,838,872.41
2	$ 120,886,287.43	$ 115,737,806.83
3	$ 124,512,876.05	$ 116,643,777.92
4	$ 128,248,262.33	$ 117,556,840.76
5	$ 132,095,710.20	$ 118,477,050.86
6	$ 136,058,581.51	$ 119,404,464.18
7	$ 140,140,338.95	$ 120,339,137.09
8	$ 144,344,549.12	$ 121,281,126.42
9	$ 148,674,885.60	$ 122,230,489.44
10	$ 153,135,132.16	$ 123,187,283.88
11	$ 157,729,186.13	$ 124,151,567.90
12	$ 162,461,061.71	$ 125,123,400.14
13	$ 167,334,893.56	$ 126,102,839.67
14	$ 172,354,940.37	$ 127,089,946.05
15	$ 177,525,588.58	$ 128,084,779.28
16	$ 182,851,356.24	$ 129,087,399.87
17	$ 188,336,896.93	$ 130,097,868.75
18	$ 193,987,003.83	$ 131,116,247.37
19	$ 199,806,613.95	$ 132,142,597.64
20	$ 205,800,812.37	$ 133,176,981.97
21	$ 211,974,836.74	$ 134,219,463.24
22	$ 218,334,081.84	$ 135,270,104.83
23	$ 224,884,104.30	$ 136,328,970.62
24	$ 231,630,627.43	$ 137,396,124.99
25	$ 238,579,546.25	$ 138,471,632.81
26	$ 245,736,932.64	$ 139,555,559.49
27	$ 253,109,040.61	$ 140,647,970.92
28	$ 260,702,311.83	$ 141,748,933.51
29	$ 268,523,381.19	$ 142,858,514.20
30	$ 276,579,082.62	$ 143,976,780.45
Total	$ 5,583,704,250.08	$ 3,866,344,533.48

The Executive Office of the President, Council of Economic Advisers (CEA), issued a memorandum in September 2011 that concluded that a single job-year (full time equivalent job) is created or supported by every $76,923 in transportation spending (13,000 job-years per $1 billion), based on their analysis of both macroeconomic data and actual job-creation experience from transportation-related infrastructure and

investments under the American Recovery and Reinvestment Act of 2009. This CEA figure included a historical analysis for the basis of their assumed figure, and a defined 64% direct and indirect impacts, 36% induced impacts split, aggregated into their assumed job-year figure.

To adjust that number to an approximated relevant 2026$ figure: the direct and indirect portion (64%) was adjusted by applying the Social Security Administration wage growth statistics for 2011 to 2024 (62.5% their last year of aggregated data that could be found), and then supplemented with Bureau of Labor Statistics (BLS) annual growth statistics for 2024-25 and 2025-26 (each of those years was 3.4%), which provided an compounded wage-growth factor of 73.78% (2011-2026); the induced portion (36%) was adjusted by applying the BLS' Consumer Price Index calculated figure for 2011-2026 (49.69%). The resultant aggregated compound variable applied to the CEA figure was 1.643876 (representing a combined 64.39% compounded growth rate, over the 15-year period), which equates to a 2026$ Adjusted CEA figure of $126,451/job-year.

Applying this figure to the constant-year 2026$ values from the above chart, we can estimate that approximately 30,575.62 FTE Job-Years would be supported by the Initiative over its 30-year timespan, starting with 908.16 in Year 1 and escalating to 1,138.59 in Year 30.

E.5-2 FTE Job Years Table

Year	2026$ Value	Job-Years
1	$114,838,872.41	908.16
2	$115,737,806.83	915.27
3	$116,643,777.92	922.44
4	$117,556,840.76	929.66
5	$118,477,050.86	936.93
6	$119,404,464.18	944.27
7	$120,339,137.09	951.66
8	$121,281,126.42	959.11
9	$122,230,489.44	966.62
10	$123,187,283.88	974.18
11	$124,151,567.90	981.81
12	$125,123,400.14	989.49
13	$126,102,839.67	997.24
14	$127,089,946.05	1005.05
15	$128,084,779.28	1012.91
16	$129,087,399.87	1020.84
17	$130,097,868.75	1028.83
18	$131,116,247.37	1036.89
19	$132,142,597.64	1045.00
20	$133,176,981.97	1053.18
21	$134,219,463.24	1061.43
22	$135,270,104.83	1069.74
23	$136,328,970.62	1078.11
24	$137,396,124.99	1086.55
25	$138,471,632.81	1095.05
26	$139,555,559.49	1103.63
27	$140,647,970.92	1112.26
28	$141,748,933.51	1120.97
29	$142,858,514.20	1129.75
30	$143,976,780.45	1138.59
Total	$3,866,344,533.48	30575.62

The above corresponds to what we can expect the annual and aggregated job impacts to be, as spread among the regional agencies, various businesses and industries, and tertiary circulatory effects.

Lacking specific granular budgetary and spending data from the various regional agencies, this report cannot specify the levels to which each of those sectors or industries would be impacted. A generalized net-result of impacts to businesses and employment comes down to an Initiative scenario vs a “no measure” scenario. This Initiative would preserve much of the economic circulation and spend for construction

contracts, consultants, aggregate and paving materials, and salaries and benefits that are currently supported by the expiring Measure C. A “no measure” scenario would see much of that stopped entirely, without an alternative funding source. The “no measure” scenario would not stop all spending on those things, but a rough visualization of impact could be approximated based on the proportion of the County’s Roads budget revenues that are currently composed on Measure C funding: roughly 7.5-10% of revenues over the past 5 years, not including any additional amounts that were a result of leveraging the Measure C funding for project grants.

Gross Initiative spending is not the same as net countywide economic gain because the tax transfers private purchasing power to public transportation investment. Even so, the Initiative provides a stronger economic platform than no replacement measure through stable preservation, access, safety, mobility, employment support, and limited grant leverage. Its principal economic limitation is the small and uncertain regional-capacity program needed for freight, traded-sector, industrial, and major employment-site competitiveness.

A key element of Fresno County’s Comprehensive Economic Development Strategy was a Strengths, Weaknesses, Opportunities, and Threats (SWOT) Analysis of its economic position for the 2025-2030 period, providing key insight into areas for which the County can leverage its dominion and control to affect economic development outcomes. The analysis identified “aging infrastructure, investments not keeping pace with growth” as a threat to Fresno County’s long-range economic position along with “talent out migration.” Separately, the analysis identified inland ports, distribution and logistics industry expansion, and intra-county transportation improvements as key opportunities for the County to capitalize to strengthen its economic position.

The Initiative has the potential to influence, shape, and direct the trajectory of the County’s economic development strategy in real terms, particularly when evaluated in terms identified in Fresno County’s Economic Development SWOT Analysis and the competing demands on transportation infrastructure it suggests, particularly relative to the County’s agricultural sector and its emerging distribution and logistics sector.

Chief among these initiatives is the Fresno County Business and Industrial Campus, a proposed, approximately 2,940-acre area located south of the City of Fresno near Malaga identified in the Fresno County 2024 General Plan. The Campus, the sole specifically-identified project of its kind within the General Plan, faces infrastructure hurdles that could be exacerbated by the limited funding and restrictions that would be created under Section 4.60.090 of the Initiative.

As drafted in the Initiative, regional connectivity projects – including those that would assist in maintaining and upgrading Highway 99 along with arterials connected to the east of Highway 99 within the study area – are required to compete for available funding

through the public process laid out in the program section rather than being prescribed as part of an identified expenditure plan subject to later amendment. Additionally, as previously mentioned, the program features shallower local funding than historically available and when compared to neighboring counties, all of whom would serve as prospective competitors to recruit and retain users of the Campus.

With funding prioritization largely aimed toward the local road network, the Initiative is likely to have a more pronounced beneficial impact on local industry clusters, whereby trade and workforce remain largely local, with access to these industries – such as healthcare or local education institutions – improved as the quality of local transportation infrastructure rises. This approach eschews transportation capacity as the driver of growth and toward accessibility as a support system for domestic economic vitality, leaves long-range, large-scale economic development opportunities within traded industry clusters undetermined and subject to change over the life of the Initiative while buttressing local industry clusters' ability to sustain workforce and deliver key services to the Fresno County economy.

6. Impacts on the Uses of Vacant Land

(6) Its impact on the uses of vacant parcels of land.

Direct impacts to the uses of vacant land would be minimal aside from vacant land that would also be considered “open space.” Those impacts would also be limited in scope to project-specific impacts. See Section 7.a Impact on Agricultural Lands and Open Space, below.

Indirect potential impacts include encouraging infill vs expansion beyond urban areas into agricultural spaces. There may also be right-of-way acquisition of vacant land adjacent to new transportation projects for use in construction projects.

7. Various Impacts

(7) Its impact on agricultural lands, open space, traffic congestion, existing business districts, and developed areas designated for revitalization.

a. Impact on Agricultural Lands and Open Space

Under the initiative, impacts to agricultural lands and open space are expected to be limited. Certain project-level right-of-way requirements may require limited travel-way encroachment. That likelihood increases where separated bike/pedestrian facilities are included in designs, without feasibility exception. Where that would conflict with Williamson Act regulations, the general plan, or other statutory or regulatory requirements, a defensible feasibility exemption could be pursued.

There is potential for increased pedestrian and bicycle access to open spaces as the Initiative requires an Active Transportation Analysis that includes requiring "actionable strategies" to facilitate travel to open spaces as a major point of interest or destination as part of the formal analysis.

> *Actionable strategies to improve and construct new sidewalks, pathways, and bicycle facilities within existing neighborhoods in compliance with established metrics of this Act in order to facilitate travel to major points of interest or destination centers, including, but not limited to, employment centers, educational facilities, parks and open spaces, and medical services. (H.1.b, p. 14)*

However, given that "trails designed strictly for recreational purposes" (C.11, p. 12) are ineligible for funding under the initiative, the use of an open space as a destination would be ambiguously similar to recreation which makes implementation of trails to open spaces unlikely using the measure's funds.

Indirect impacts may also include direct acquisition of open space land for right-of-way for expanding roads to accommodate pedestrian and bicycle facilities and theoretical reduction in development of open spaces in favor of infill development as a result of emphasis of the funding of this measure for transportation infrastructure for new infill developments of low-cost housing.

b. Traffic Congestion

Overview

This section provides a comprehensive evaluation of Fresno County's existing transportation infrastructure, including current roadway conditions, deferred maintenance, and anticipated future transportation needs. This section is primarily concerned with traffic congestion and projected growth impacts. An in-depth discussion of the system's pavement condition and needs is included in Section E.4.b.

Effect of Regional Street, Road and Highway System Projects on Traffic Congestion

To support the analysis, the Fresno Council of Governments (Fresno COG) provided traffic-model performance measures and level-of-service mapping for three conditions:

- 2023 Base Year, representing existing transportation and development conditions;
- 2049 No Project, representing projected population, employment, and development growth through 2049, while including only transportation improvements anticipated within the first two years of the Draft 2026 RTP/SCS; and
- 2049 Project, representing the Draft 2026 RTP/SCS and incorporating projected growth and development together with the transportation improvements identified for implementation through the 2049 planning horizon.

The level of service (LOS) mapping evaluates both AM and PM peak hour conditions for the broader Fresno County region and the more concentrated Fresno-Clovis Metropolitan Area. The traffic model results include urban and rural development, State highways, local roadways, and through travel, thereby reflecting the full range of transportation activity occurring within the County.

Basis for Using the 2049 Project Condition

The 2049 Project condition from the Draft 2026 RTP/SCS is used as the future-year condition because it is the current Fresno COG long-range transportation planning scenario and is directly compatible with the 2023 base year used in this analysis. Fresno COG's current modeling framework evaluates a 2023 base condition and two corresponding 2049 scenarios: the 2049 No Project condition and the 2049 Project condition.

The 2049 Project condition incorporates:

- Population, employment, land-use, and development assumptions projected through 2049
- The transportation projects and improvements identified in the Draft 2026 RTP/SCS
- Updated travel-model inputs and assumptions
- Current regional transportation policies and investment priorities
- The transportation network is expected to be in place by 2049, the end of the current RTP/SCS planning horizon

Why the 2022 RTP/SCS Results Are Not Used

The 2022 RTP/SCS was developed four years ago, and its results are now superseded by the Draft 2026 RTP/SCS, which uses a modeling horizon of 2049. The 2022 RTP/SCS was developed under a different modeling cycle. Its performance measures used a 2019 base year and a 2046 horizon year, rather than the 2023 base year and 2049 horizon year used for the Draft 2026 RTP/SCS.

Relationship to the Initiative Analysis

The 2049 Project condition is also the more appropriate future benchmark for the Section 9111 analysis because it represents Fresno COG's current assessment of future growth and transportation improvements during most of the Initiative's proposed operating period. Although the Initiative would extend beyond the 2049 RTP/SCS horizon to approximately 2057, the 2049 scenario is the latest officially modeled long-range condition supplied by Fresno COG and is substantially closer to the end of the measure period than the superseded 2046 scenario.

The 2049 Project condition does not represent the transportation network that would be funded solely by the Initiative. It reflects the broader Draft 2026 RTP/SCS improvement program and assumes the availability of multiple local, State, Federal, and regional funding sources. It is used to illustrate the anticipated transportation system after implementation of the currently planned improvement package and to compare those results with the 2049 No Project condition.

Preliminary Findings

Comparison of the 2023 Base Year with the 2049 No Project and 2049 Project conditions indicates that congestion is not solely attributable to future growth. Significant freeway, interchange, downtown, and arterial bottlenecks are already present under existing conditions.

Under the 2049 No Project condition, projected growth and development generally increase or extend operational stress, particularly within the Fresno-Clovis Metropolitan Area. The 2049 Project condition demonstrates that the transportation improvements included in the Draft 2026 RTP/SCS provide localized operational benefits and help

address selected congestion points. However, the planned improvements do not eliminate all major freeway, interchange, downtown, and arterial constraints by 2049. The analysis therefore indicates that Fresno County's future transportation needs include both continued preservation of the existing roadway system and targeted mobility, operational, safety, and capacity improvements. Pavement preservation and mobility improvements address different transportation needs, and neither substitutes for the other. A summary of the principal findings is provided in Table E.7.b-1.

E.7.b-1 Summary of Principal Findings Table

Topic	Preliminary Finding
2023 base congestion	The 2023 base maps show that congestion is already present before future growth. Most rural facilities operate at LOS A-B, while LOS D-F is concentrated in the Fresno-Clovis Metropolitan Area (FCMA), on major State routes, and at selected urban and regional bottlenecks.
2049 travel demand	Fresno COG projects population growth of approximately 7.8 percent from 2023 to 2049 with projects. Total vehicle mile traveled (VMT) increases approximately 2.5 percent, while total VMT per capita declines approximately 4.9 percent.
Through travel	Through-trip VMT increases approximately 4.3 percent and is essentially unchanged by the 2049 Project package compared with the No-Project case. Through travel rises from about 24.6 percent to 25.0 percent of total VMT.
2049 no-Project congestion	The 2049 No-Project maps show that lower-LOS conditions remain concentrated in and approaching the FCMA, with additional stress on portions of the freeway, interchange, and arterial system. Most rural modeled roads remain at LOS A-B.
2049 Project effect	The 2049 Project maps show localized improvements and redistribution of congestion compared with the No-Project condition, but significant AM and PM peak bottlenecks remain on major regional facilities and urban arterials.
Project effect on VMT	Compared with 2049 without projects, the 2049 Project package lowers total daily VMT by about 81,649, or 0.34 percent, and lowers VMT per capita by 0.08. The effect is measurable but modest.
Overall conclusion	The map comparison supports a combined strategy: pavement preservation; targeted safety and operational improvements; interchange and bottleneck projects; selected capacity improvements; freight and through-trip management; and multimodal investments that produce demonstrable mobility benefits.

Purpose, Scope, and Data Framework

Important Scope Distinctions

The 2023 traffic-model baseline is the appropriate existing-year comparison for 2049 travel model performance.

The supplied map set now provides comparable AM and PM peak LOS mapping for the 2023 base year, the 2049 No Project condition, and the 2049 Project condition with transportation improvements.

- The LOS comparison is map-based and qualitative. The supplied materials do not provide segment-mile totals by LOS, volume-to-capacity ratios, speeds, delay, or a link-by-link change table.

- LOS describes modeled traffic operations; it does not measure pavement condition, collision risk, geometric deficiencies, drainage, shoulders, bridge condition, emergency access, or maintenance needs.
- For purposes of this report, the 2049 Project maps are treated as the with-improvements condition, and the 2049 No Project maps are treated as the future condition without the transportation improvement package.

Table E.7.b-2 summarizes the data sources, analysis years and scenarios, geographic coverage, and manner in which each source is used.

E.7.b-2 Data Sources and Analytical Scope Table

Source	Year / Scenario	Geographic Scope	Use
Fresno COG traffic-model summary	2023 base; 2049 without projects; 2049 with projects (Project)	Countywide region	Daily VMT, through-trip VMT, population, and per-capita VMT.
Countywide LOS map set	2023 Base, 2049 No Project, and 2049 Project; AM and PM peaks	Fresno County region	Qualitative comparison of roadway segment LOS A-F and N/A for existing and future conditions.
FCMA LOS map set	2023 Base, 2049 No Project, and 2049 Project; AM and PM peaks	Fresno-Clovis Metropolitan Area	Detailed qualitative comparison of urban freeway, interchange, and arterial LOS.
Initiative and County technical materials	Current review materials	County and regional	Initiative eligibility, implementation, pavement, and transportation-needs context.

The analysis relies only on the 2023 base-year and 2049 horizon-year information supplied by Fresno COG for purposes of comparing existing and future traffic-model and LOS conditions.

Fresno COG 2023 Existing and 2049 Traffic Model Comparison

The Fresno COG traffic model summary for the 2023 base year and 2049 scenarios provides 2023 existing conditions and two 2049 cases: No-Project and with Project (reference Table E.7.b-3. The with-Project case is the primary future comparison because it reflects implementation of the Project (2026 RTP/SCS) transportation improvement network. The No-project case shows the incremental effect of that project package.

Population and Total Travel

Population increases by approximately 78,275 residents, or 7.81 percent, between the 2023 existing condition and the 2049 with-Project condition. Total daily VMT increases by approximately 585,011, or 2.53 percent. Total travel therefore grows at a substantially slower rate than population.

Per-Capita Travel

Total VMT per capita declines from 23.09 to 21.95, a reduction of approximately 4.94 percent. When through trips are excluded, VMT per capita declines from 17.41 to 16.46,

a reduction of approximately 5.46 percent. These results indicate improved travel efficiency or reduced resident-generated driving per person, even though total travel continues to increase.

E.7.b-3 Fresno COG Traffic-Model Performance Measures Table

Performance Measure	2023 Existing	2049 No-Project	2049 With Project	Change: Existing to With Project	Percent Change	Project Effect: With vs. No Project
Total VMT	23,140,594	23,807,254	23,725,605	+585,011	+2.53%	-81,649
Through-trip VMT	5,693,477	5,939,976	5,940,014	+246,537	+4.33%	+38
Population	1,002,377	1,080,549	1,080,652	+78,275	+7.81%	+103
VMT per capita	23.09	22.03	21.95	-1.14	-4.94%	-0.08
VMT per capita excluding through trips	17.41	16.54	16.46	-0.95	-5.46%	-0.08

Source: Fresno COG traffic-model summary for the 2023 base year and 2049 scenarios. Values are countywide daily results. Project effect equals 2049 with projects minus 2049 without projects.

Figures E.7.b-1 through E.7.b-14 illustrate the traffic-model performance measures and level-of-service conditions used to compare existing and future transportation conditions in Fresno County.

- Figures E.7.b-1 and E.7.b-2 summarize changes in total vehicle miles traveled, through-trip travel, population, and per-capita VMT between the 2023 base year and the 2049 scenarios.
- Figures E.7.b-3 through E.7.b-8 present countywide AM and PM peak roadway conditions for the 2023 Base, 2049 No-Project, and 2049 Project conditions.
- While Figures E.7.b-9 through E.7.b-14 provide the corresponding level-of-service detail for the Fresno-Clovis Metropolitan Area.

Collectively, the figures show where congestion currently occurs, how projected growth may affect roadway operations, and the extent to which the transportation improvements included in the Draft 2026 RTP/SCS may provide localized operational benefits. Because the source materials do not include segment-mile totals by LOS, speeds, delay, volume-to-capacity ratios, or link-by-link change data, the figures are used for qualitative comparison rather than calculation of a numerical congestion benefit.

E.7.b-1 Daily VMT Comparison - 2023 Existing and 2049 No-Project and Project Figure

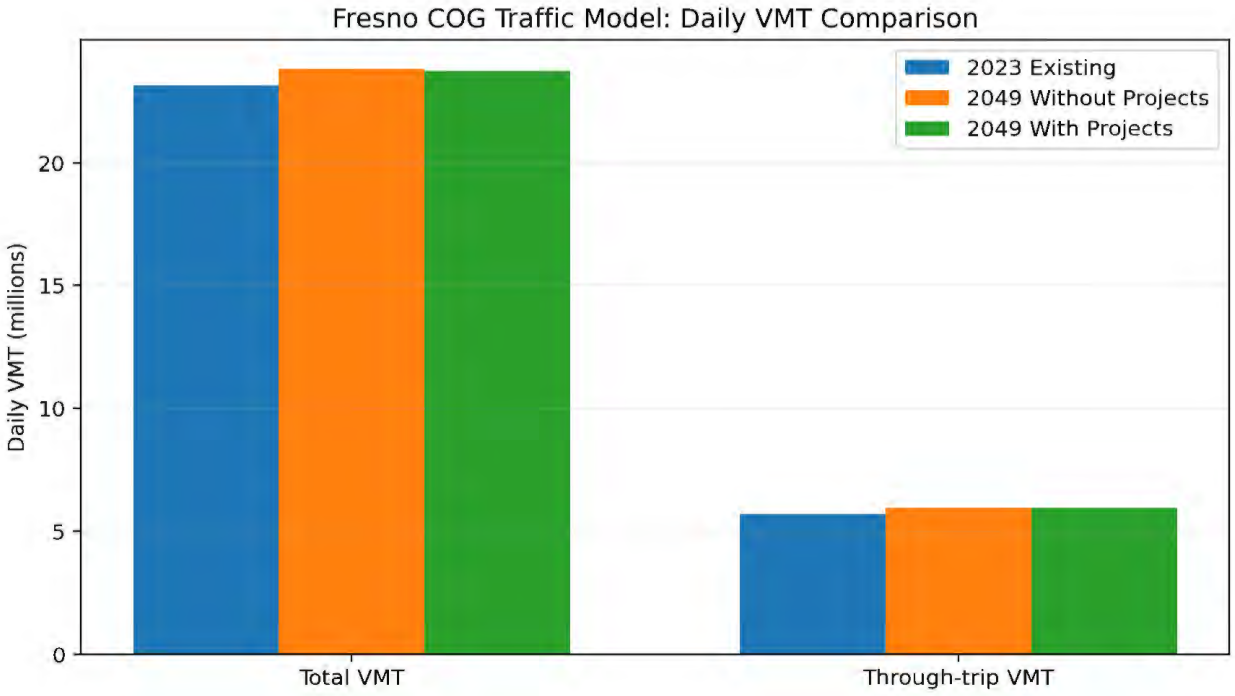


FIGURE E.7.b-2
Percent Change in Key Measures - 2023 to 2049 With Project

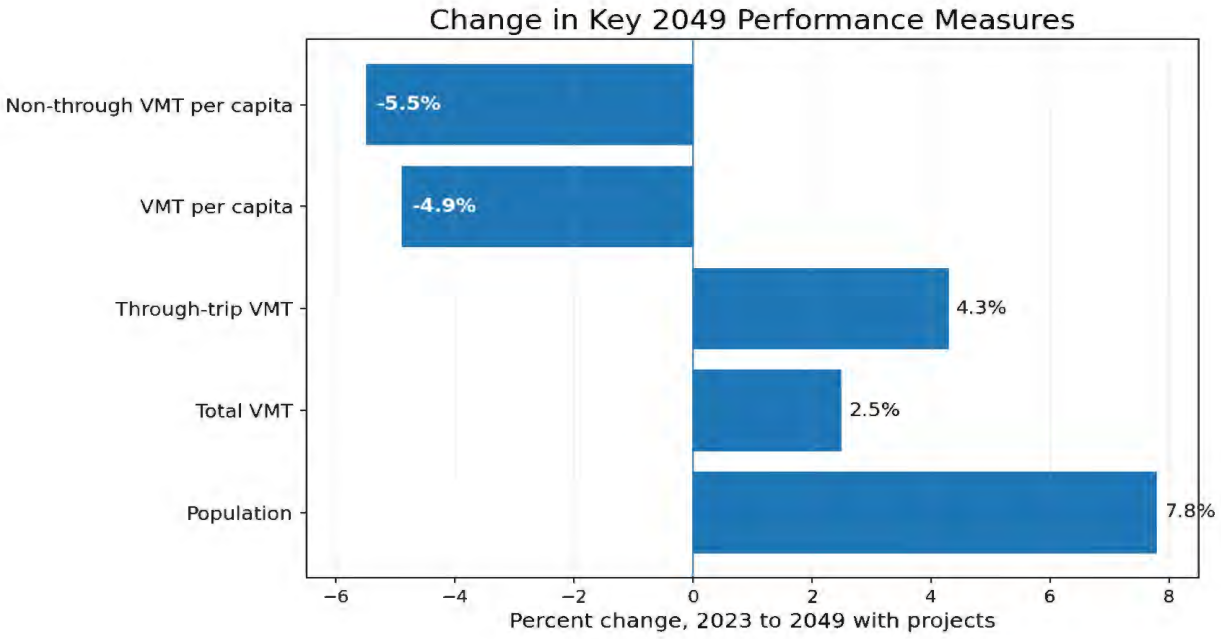
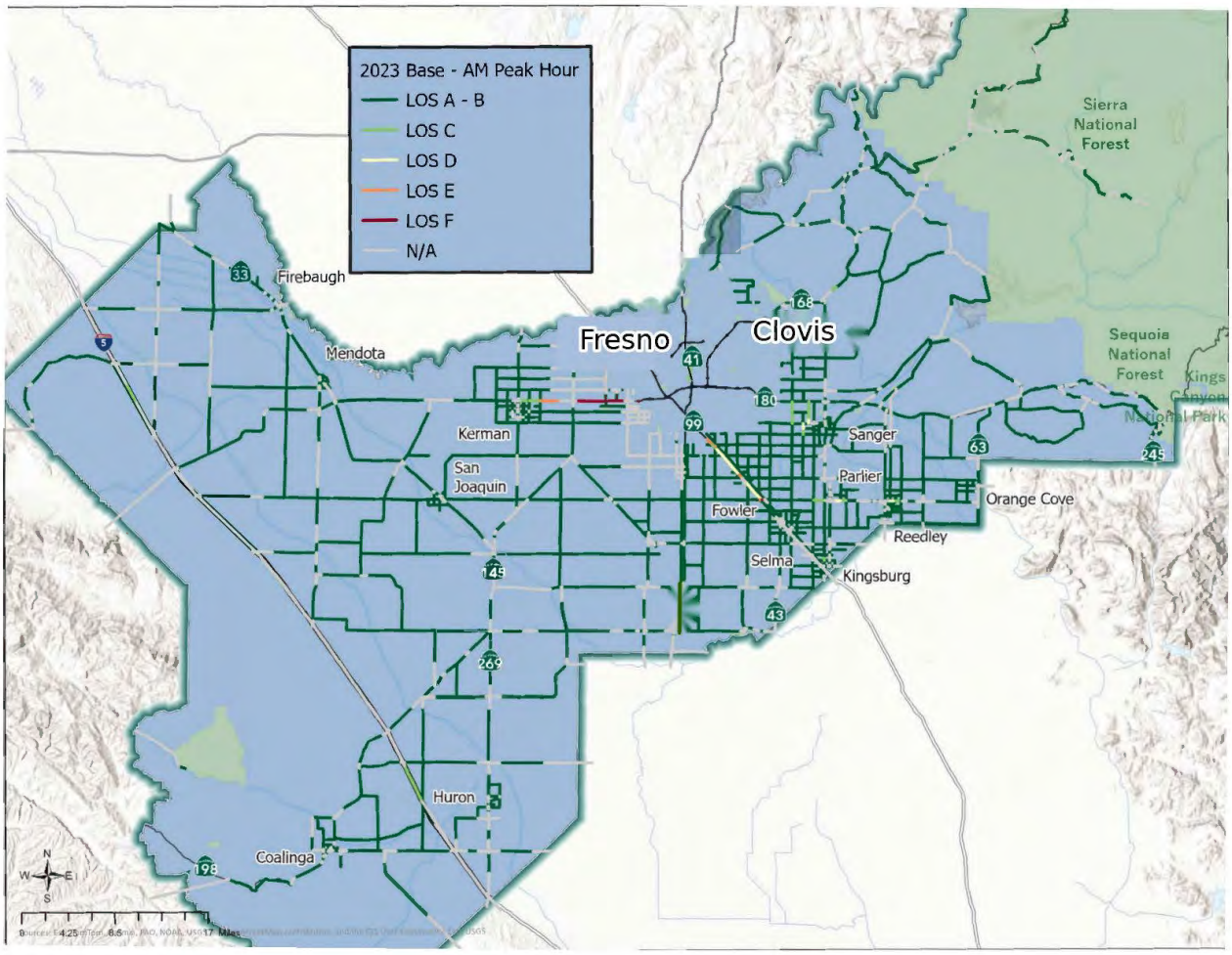
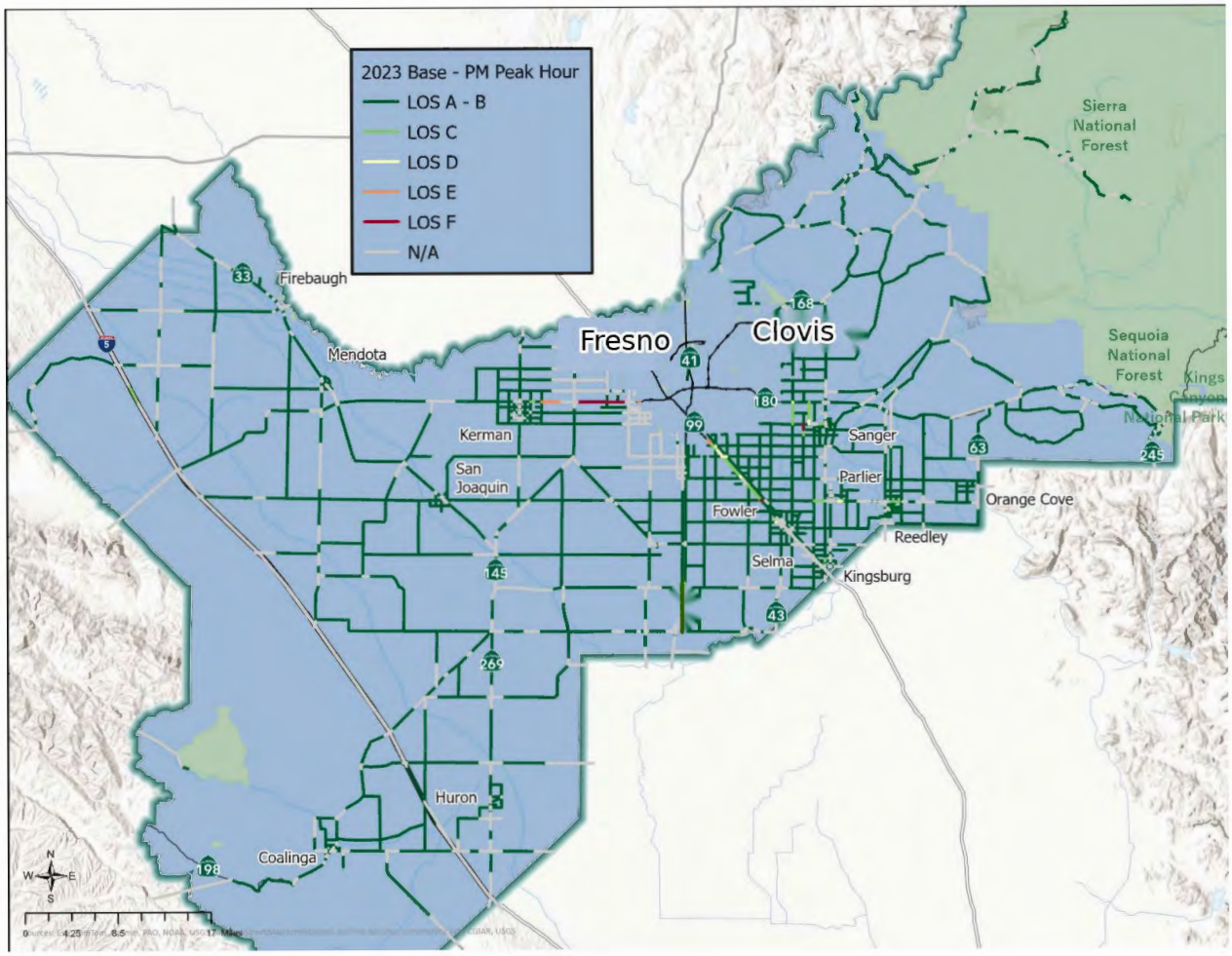


FIGURE E.7.b-3
Fresno County Region - 2023 Base AM-Peak Level of Service
LOS Is Shown for the Rural Area Outside of the FCMA



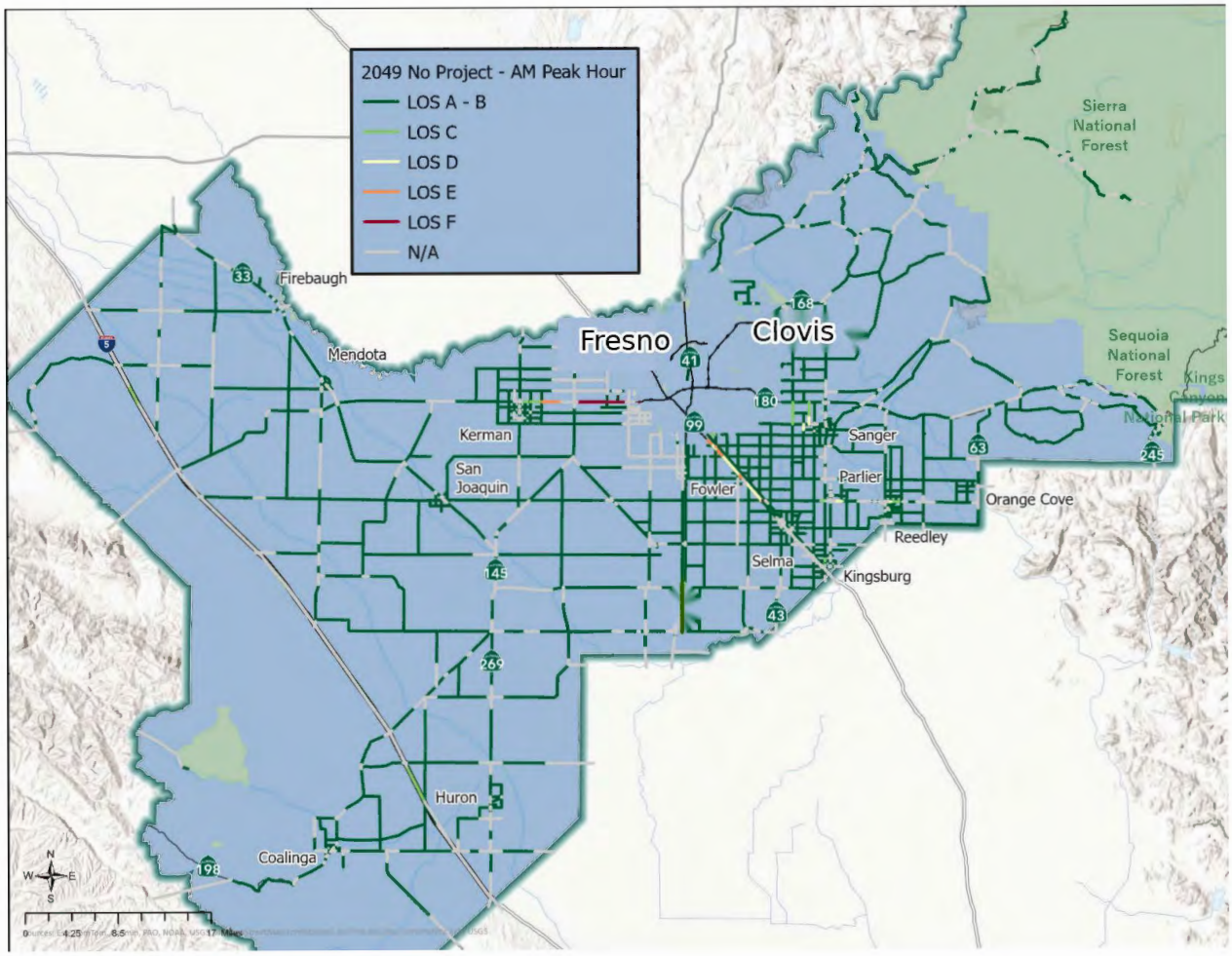
Source: Fresno COG congestion and level-of-service mapping package. The map is used for qualitative comparison; no segment-mile totals by LOS are provided.

FIGURE E.7.b-4.
Fresno County Region - 2023 Base PM-Peak Level of Service
LOS Is Shown for the Rural Area Outside of the FCMA



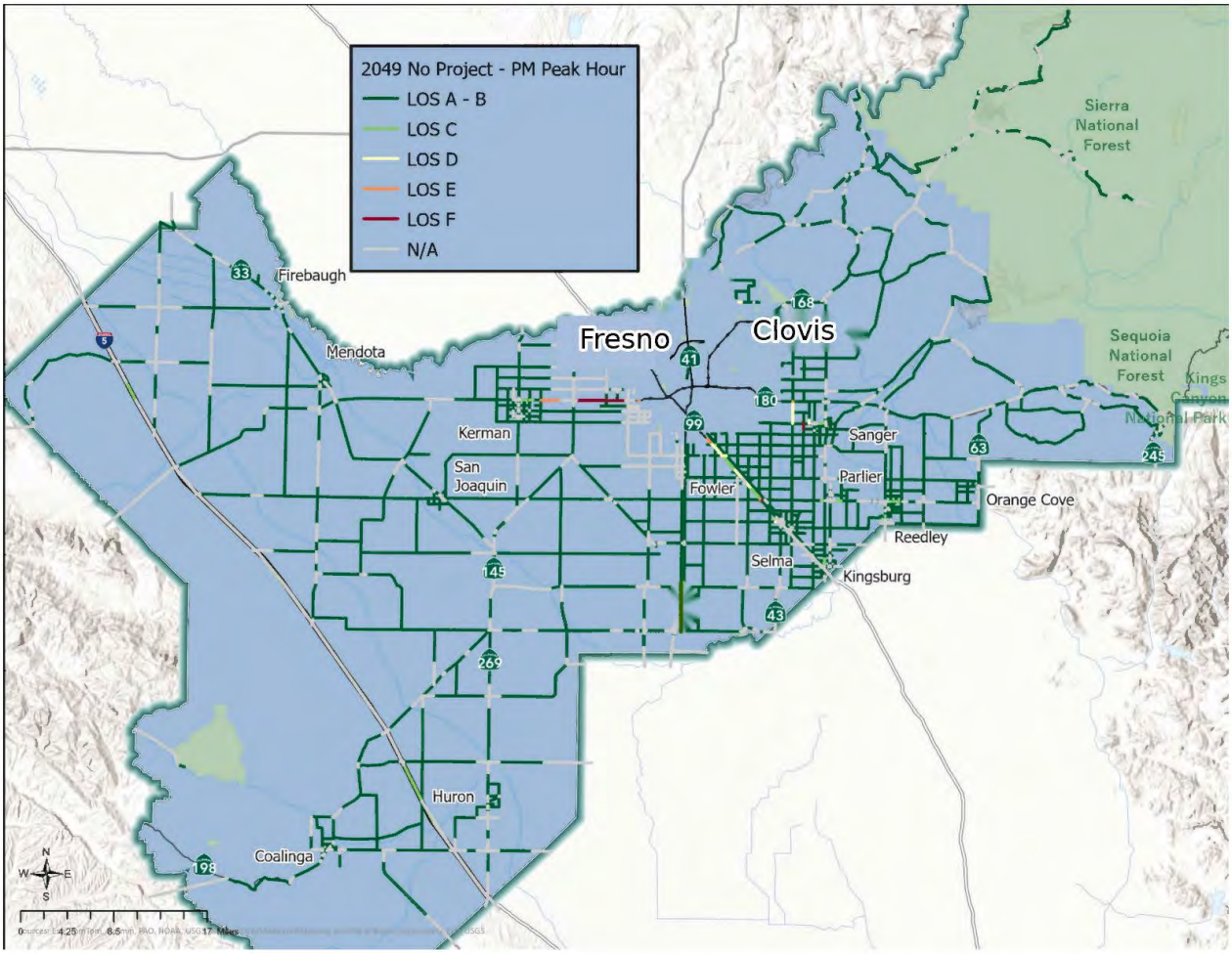
Source: Fresno COG congestion and level-of-service mapping package. The map is used for qualitative comparison; no segment-mile totals by LOS are provided.

FIGURE E.7.b-5
Fresno County Region - 2049 No-Project AM-Peak Level of Service
LOS Is Shown for the Rural Area Outside of the FCMA



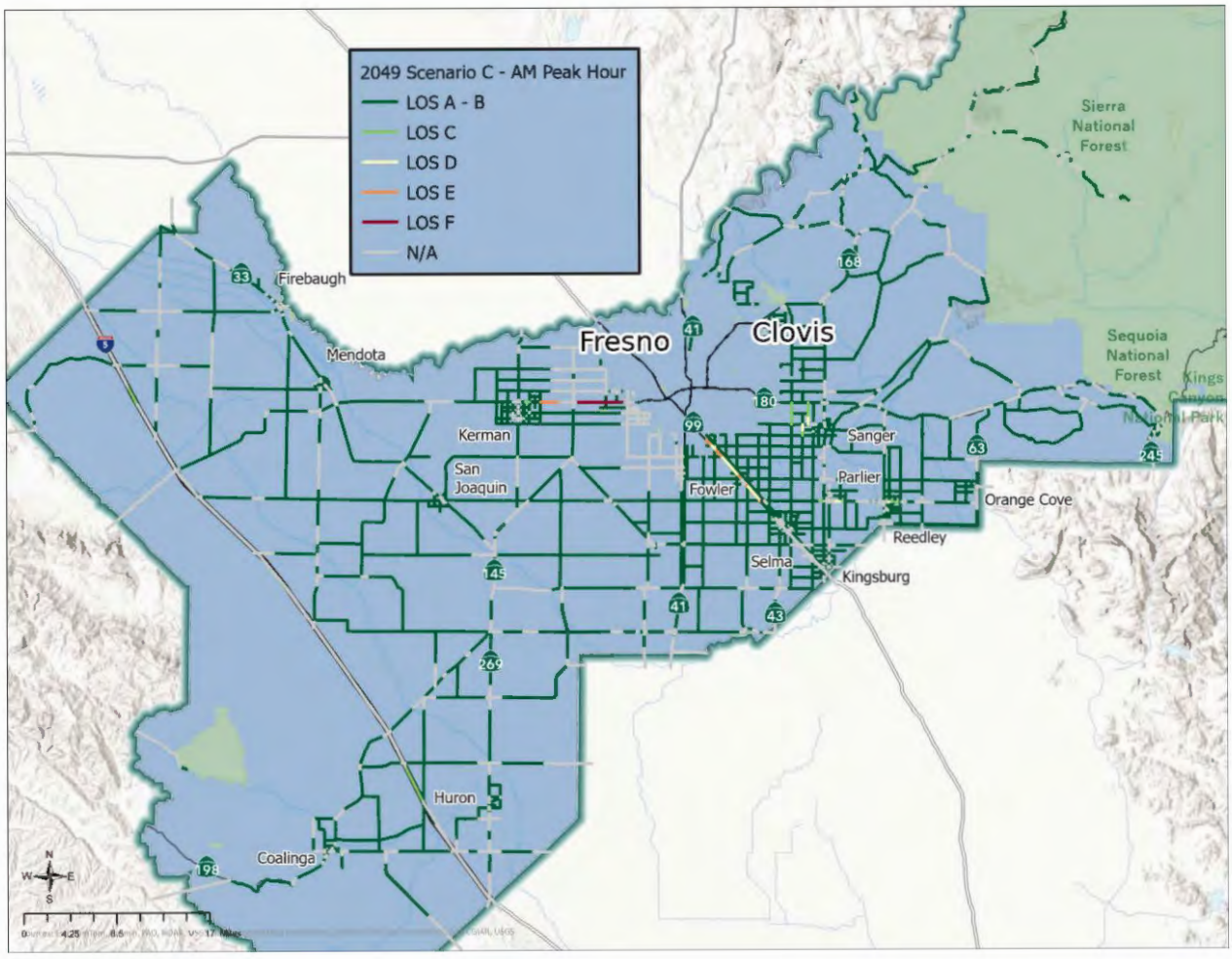
Source: Fresno COG congestion and level-of-service mapping package. The map is used for qualitative comparison; no segment-mile totals by LOS are provided.

FIGURE E.7.b-6
Fresno County Region - 2049 No-Project PM-Peak Level of Service
LOS Is Shown for the Rural Area Outside of the FCMA



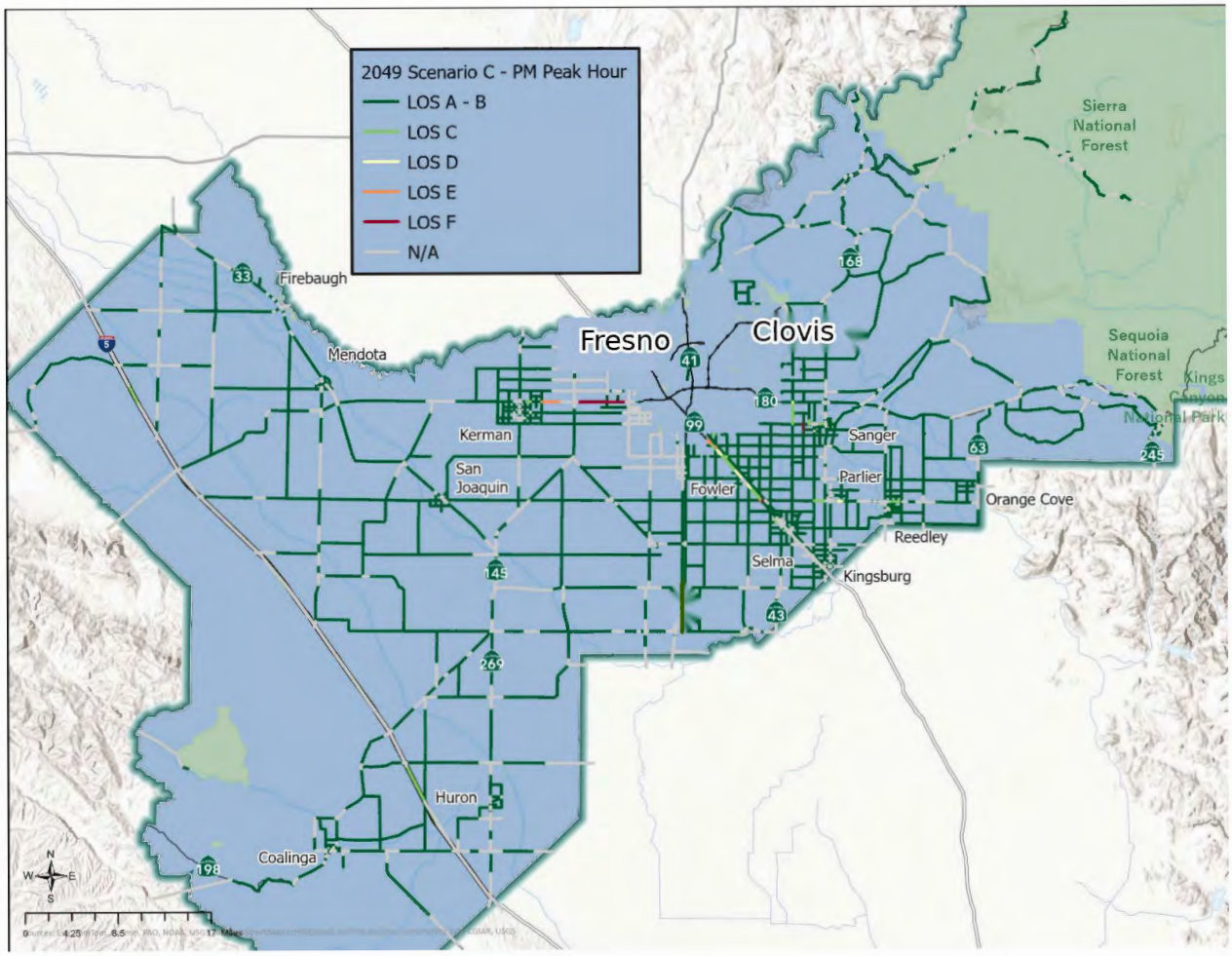
Source: Fresno COG congestion and level-of-service mapping package. The map is used for qualitative comparison; no segment-mile totals by LOS are provided.

FIGURE E.7.b-7
Fresno County Region - 2049 Project AM-Peak Level of Service
LOS Is Shown for the Rural Area Outside of the FCMA



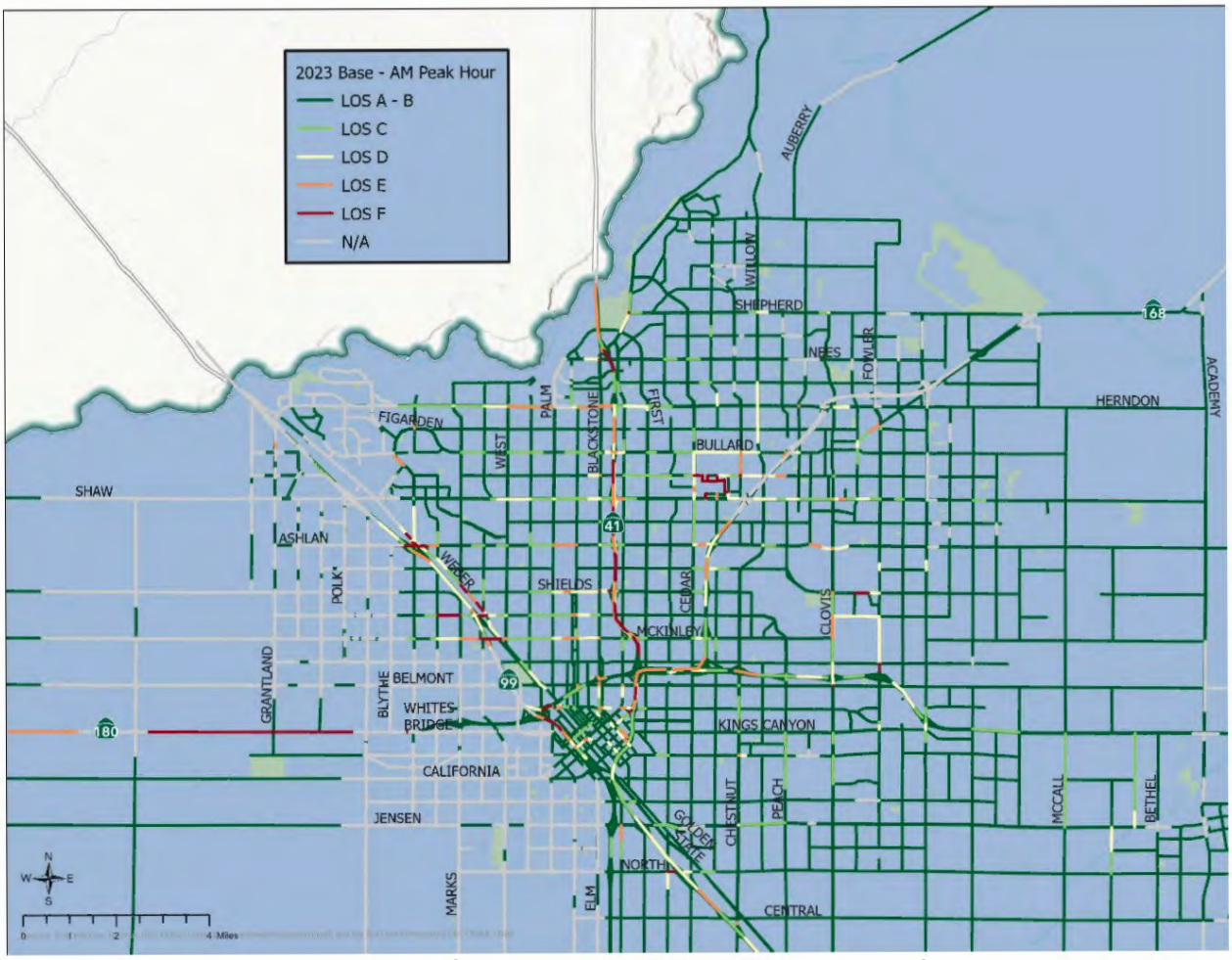
Source: Fresno COG congestion and level-of-service mapping package. The map is used for qualitative comparison; no segment-mile totals by LOS are provided.

FIGURE E.7.b-8
Fresno County Region - 2049 Project PM-Peak Level of Service
LOS Is Shown for the Rural Area Outside of the FCMA



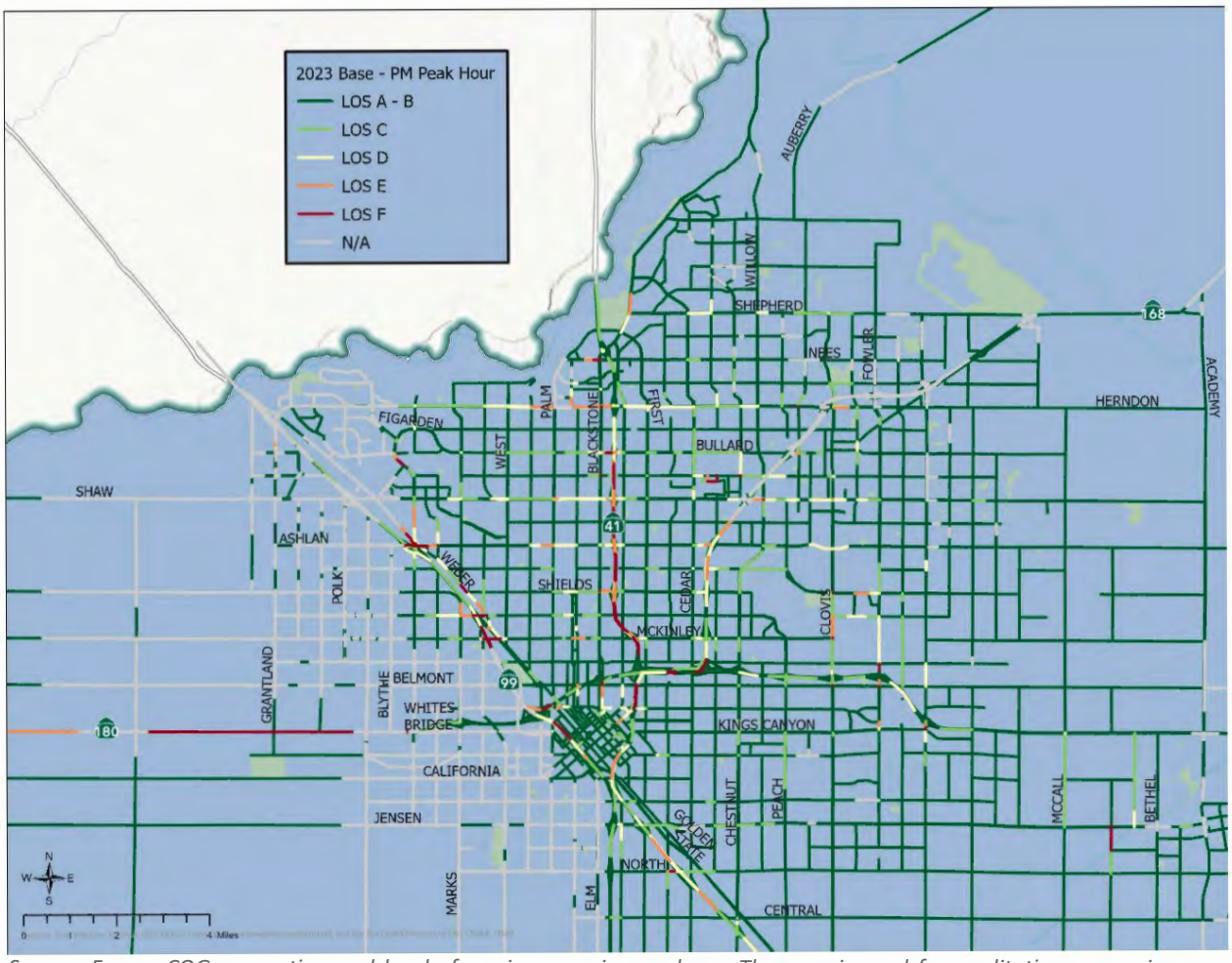
Source: Fresno COG congestion and level-of-service mapping package. The map is used for qualitative comparison; no segment-mile totals by LOS are provided.

FIGURE E.7.b-9
Fresno-Clovis Metropolitan Area - 2023 Base AM-Peak Level of Service



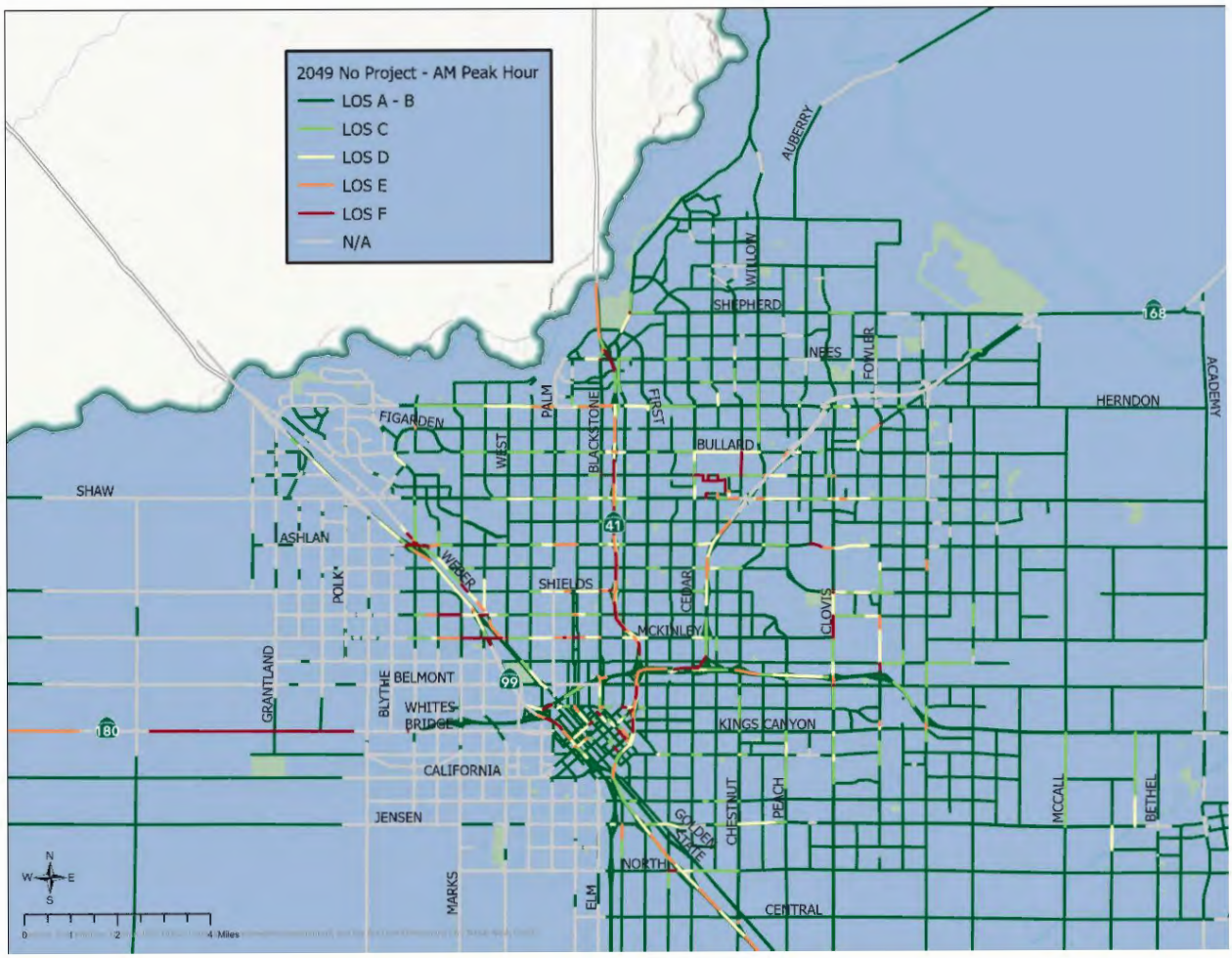
Source: Fresno COG congestion and level-of-service mapping package. The map is used for qualitative comparison; no segment-mile totals by LOS are provided.

FIGURE E.7.b-10
Fresno-Clovis Metropolitan Area - 2023 Base PM-Peak Level of Service



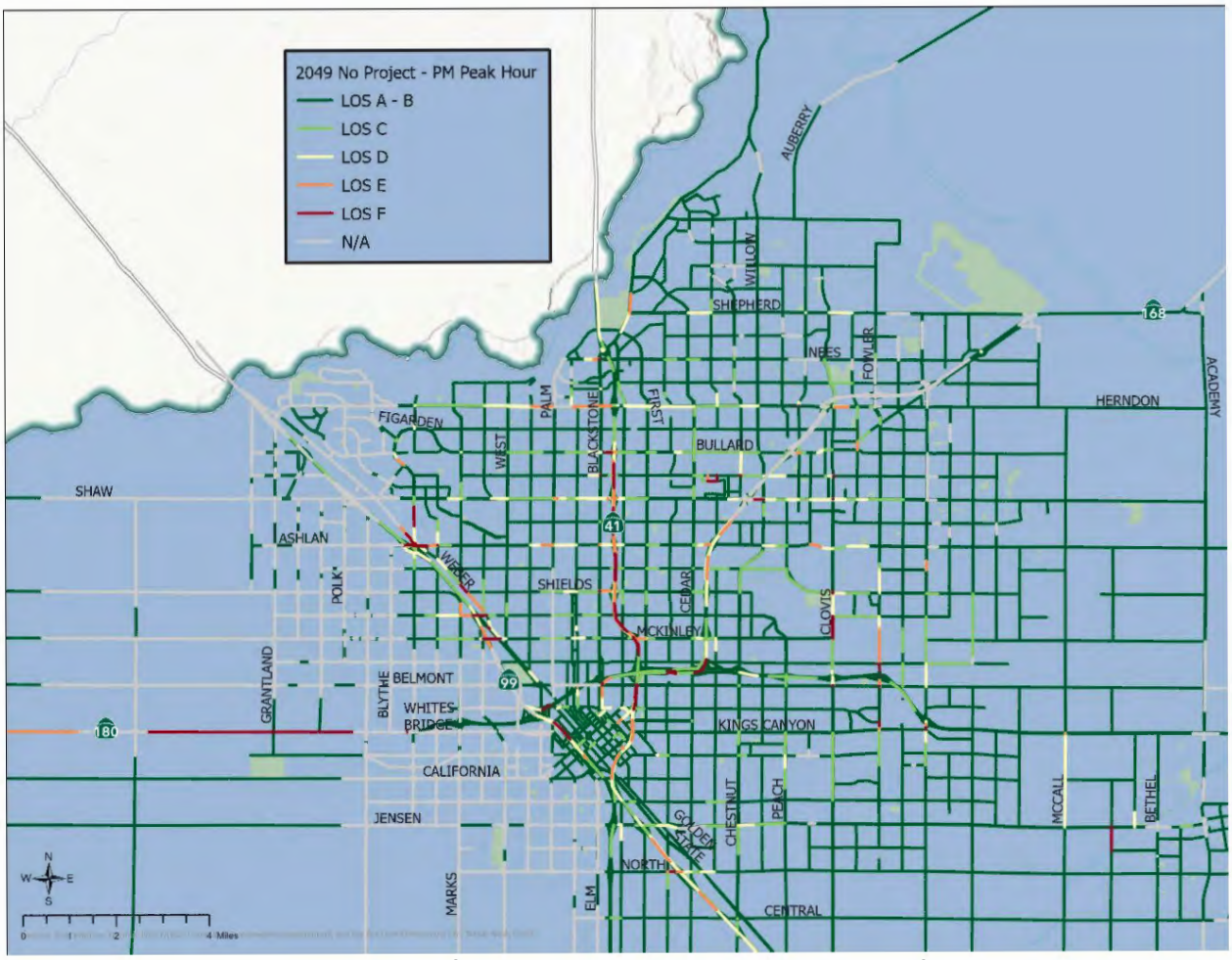
Source: Fresno COG congestion and level-of-service mapping package. The map is used for qualitative comparison; no segment-mile totals by LOS are provided.

FIGURE E.7.b-11
Fresno-Clovis Metropolitan Area - 2049 No-Project AM-Peak Level of Service



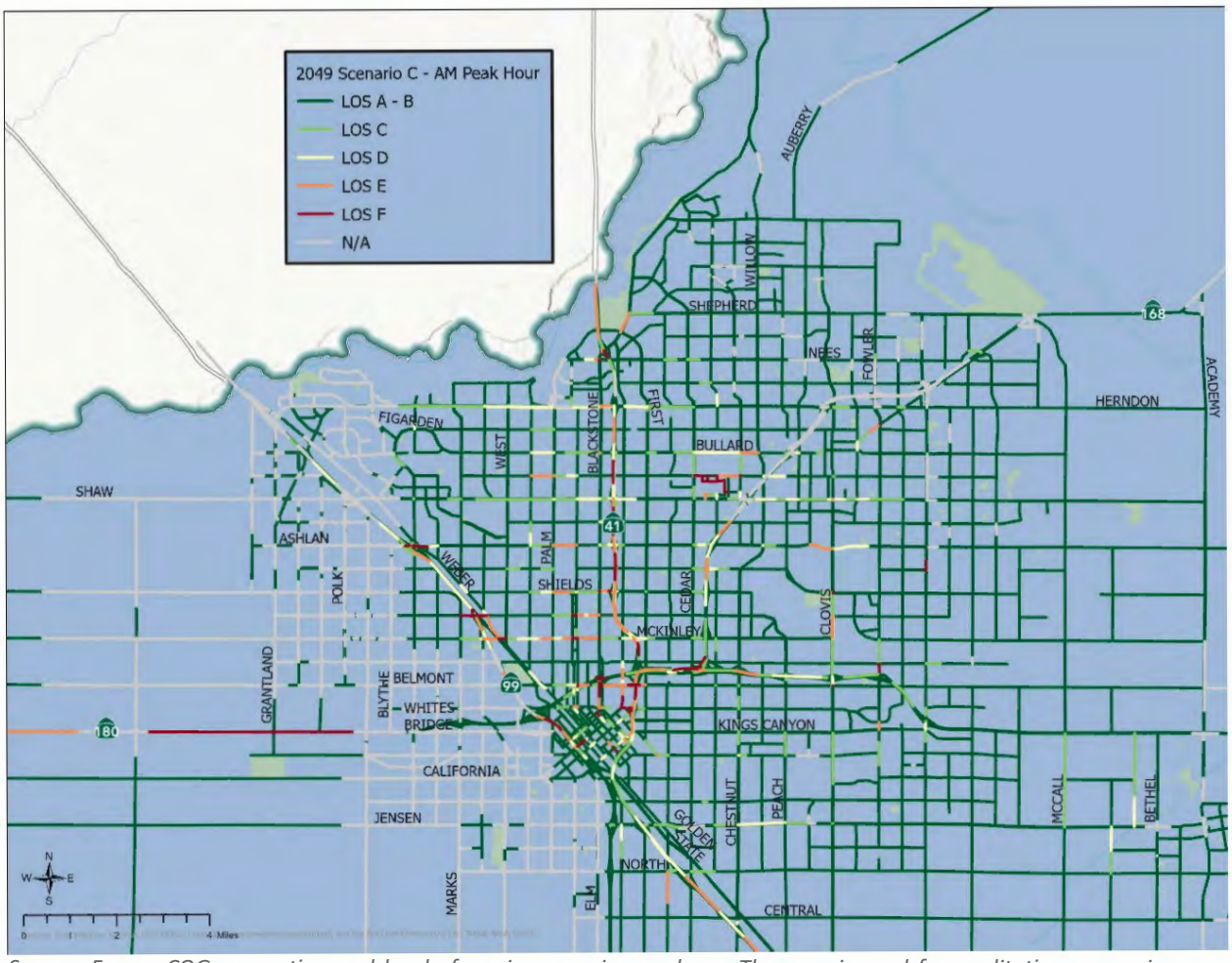
Source: Fresno COG congestion and level-of-service mapping package. The map is used for qualitative comparison; no segment-mile totals by LOS are provided.

FIGURE E.7.b-12
Fresno-Clovis Metropolitan Area - 2049 No-Project PM-Peak Level of Service



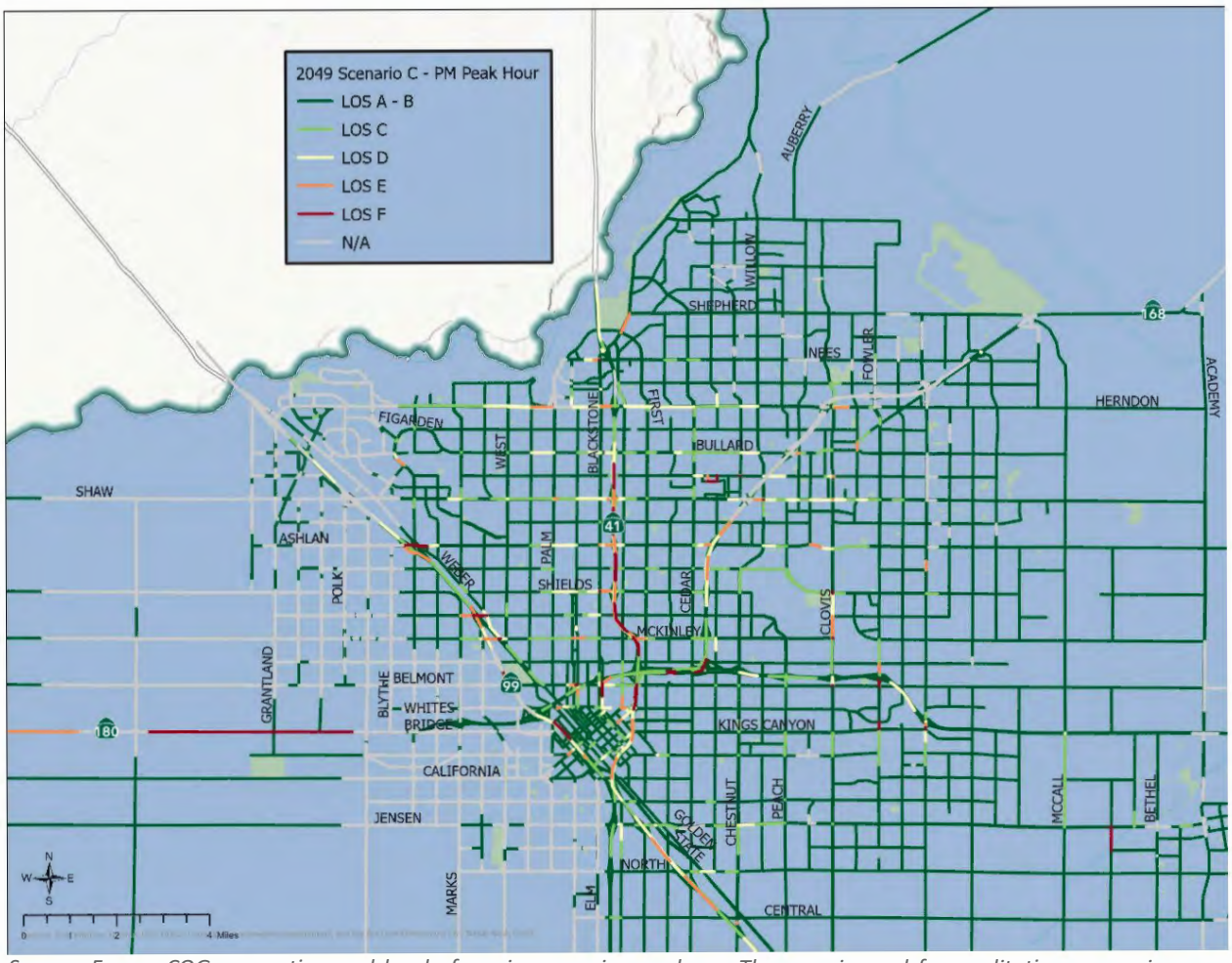
Source: Fresno COG congestion and level-of-service mapping package. The map is used for qualitative comparison; no segment-mile totals by LOS are provided.

FIGURE E.7.b-13
Fresno-Clovis Metropolitan Area - 2049 Project AM-Peak Level of Service



Source: Fresno COG congestion and level-of-service mapping package. The map is used for qualitative comparison; no segment-mile totals by LOS are provided.

FIGURE E.7.b-14
Fresno-Clovis Metropolitan Area - 2049 Project PM-Peak Level of Service



Source: Fresno COG congestion and level-of-service mapping package. The map is used for qualitative comparison; no segment-mile totals by LOS are provided.

Through Travel

Through-trip VMT increases by approximately 246,537 daily miles, or 4.33 percent. Through trips account for approximately 24.6 percent of total VMT in 2023 and approximately 25.0 percent in the 2049 with-project case. The Project package has essentially no effect on through-trip VMT: the with-Project result is only 38 daily VMT higher than the No-Project result. This suggests that through travel is driven primarily by regional geography, interregional movement, and external demand rather than by the local Project package.

Effect of the Project in 2049

Compared with the 2049 No-Project case, the Project reduces total VMT by approximately 81,649 daily miles, or 0.34 percent. It reduces total VMT per capita by 0.08 and non-through VMT per capita by 0.08. The Project therefore produces a modest VMT benefit but does not eliminate growth in total travel or materially affect through travel.

Comparative Level of Service Analysis: 2023 Base and 2049 Scenarios

The Fresno COG map set provides countywide and FCMA roadway level-of-service results for the 2023 base year and two 2049 conditions: No Project and Project with transportation improvements. Each condition is shown for both the AM and PM peak hours. This permits a direct visual comparison of where congestion exists today, where it is projected to worsen without improvements, and the extent to which the Project network changes future operations.

The comparison is qualitative. The maps use consistent LOS categories and roadway symbology, but the supplied record does not include segment-level volumes, capacities, speeds, delays, volume-to-capacity ratios, or lane-mile totals by LOS. Therefore, the analysis identifies patterns and corridors but does not assign a numerical congestion benefit to any individual project.

Countywide LOS Comparison

Across all scenarios, most modeled rural and intercommunity facilities remain at LOS A-B during both peak periods. Existing and future lower-LOS conditions are concentrated primarily in the FCMA, around selected incorporated communities, and on major State route and regional approaches. The countywide maps therefore do not support a conclusion that capacity expansion is needed uniformly across the County; they support targeted improvements at recurring bottlenecks while preserving rural access and roadway condition.

Countywide Comparative Findings

The 2023 maps establish that lower-LOS conditions already exist near the metropolitan core, Kerman, and selected State-route and urban approaches. The 2049 no-Project maps retain the generally favorable rural pattern but show continued or increased stress

in the urbanized portion of the region. The Project maps show localized changes and some operational relief compared with the no-Project condition, but the overall countywide pattern remains dominated by metropolitan-area bottlenecks rather than widespread rural congestion.

The PM peak generally displays a broader distribution of LOS C-D and localized LOS E-F conditions than the AM peak on selected approaches and urbanized corridors. This difference reinforces the need to evaluate both peak periods and to avoid relying on an AM-only assessment when establishing transportation priorities.

Fresno-Clovis Metropolitan Area LOS Comparison

The FCMA maps provide the clearest evidence of existing and future operational needs. The 2023 base maps already show LOS D-F on portions of SR 41, SR 99 and the Weber corridor, SR 180 and downtown approaches, and selected arterial segments. Thus, a portion of the future need reflects existing deficiencies rather than growth alone.

Under the 2049 no-Project condition, lower-LOS segments become more extensive or more pronounced on portions of the freeway and interchange system and the arterial grid. Project changes the location or severity of some lower-LOS segments and appears to provide localized benefits, but substantial AM and PM-peak constraints remain on major regional facilities, downtown approaches, and selected north-south and east-west arterials.

Comparative LOS Findings and Transportation-Need Implications

Table E.7.b-4 compares levels of service findings from the maps provided above.

E.7.b-4 Comparative Level-of-Service Findings Table

Geography / Peak	2023 Base	2049 No Project	2049 Project With Improvements	Transportation-Need Implication
Countywide - AM	Most rural and intercommunity facilities operate at LOS A-B. Lower LOS is concentrated near the FCMA, Kerman, and selected State-route or urban approaches.	The broad rural pattern remains favorable, while lower-LOS conditions become more visible around the metropolitan area and selected regional connections.	The overall countywide pattern remains similar to the no-Project condition. Localized changes occur, but the improvement network does not eliminate metropolitan bottlenecks.	Countywide needs are concentrated. Preserve rural access and pavement while targeting operational and capacity improvements at specific bottlenecks.
Countywide - PM	The PM peak retains LOS A-B predominantly outside urban areas, with localized LOS D-F near the FCMA and selected communities and corridors.	PM congestion is more dispersed on portions of the metropolitan approaches and selected urbanized corridors, but most rural facilities remain LOS A-B.	The Project provides localized changes and some relief, but persistent lower-LOS segments remain in and approaching the FCMA.	PM conditions confirm the need for peak-specific corridor, interchange, signal, incident-management, and bottleneck treatments.
FCMA - AM	Existing congestion is already present on portions of SR 41, SR 99/Weber, SR 180, downtown approaches, and selected north-south and east-west arterials.	Lower-LOS conditions become more extensive or pronounced on the freeway system, interchange approaches, and selected arterial corridors.	Some conditions appear to be improved or redistributed relative to no Project, but LOS E-F remains on major freeway, downtown, and arterial segments.	Existing deficiencies and future growth both contribute to the need. Improvements should be corridor-specific rather than uniformly applied.
FCMA - PM	The PM peak shows a broader distribution of LOS C-D and localized LOS E-F than the AM peak on several freeway and arterial segments.	The no-Project condition shows continued and expanded stress on the freeway/interchange system and the arterial grid.	The Project reduces or shifts some localized congestion but leaves substantial PM bottlenecks on major regional and urban facilities.	The PM peak demonstrates that transportation improvements are needed in addition to pavement preservation, including operations and selected capacity projects.

The following key results were observed:

- Existing operational deficiencies are material. The 2023 base maps show that congestion is not solely the result of future population or employment growth.
- The 2049 No-Project condition retains favorable operations on most rural facilities but increases or extends congestion in the FCMA and on selected metropolitan approaches.
- The 2049 with Project provides localized improvements or redistribution of congestion, but it does not eliminate major AM- and PM-peak bottlenecks.
- The comparison supports targeted interchange, auxiliary-lane, turn-lane, signal-coordination, bottleneck-removal, incident-management, transit-priority, freight, and selected capacity improvements rather than a uniform countywide widening program.
- Many of the most constrained facilities are State highways or cross-jurisdictional corridors, requiring coordination among Fresno COG, Caltrans, Fresno County, and the cities.
- Favorable LOS on rural roads does not establish that those roads lack transportation needs; pavement, bridge, drainage, shoulder, safety, freight,

agricultural access, emergency response, evacuation, and community-access needs are not measured by LOS.

Integrated Existing-2049 Comparative Assessment

Table E.7.b-5 shows the transportation needs implications based on a comparison of the existing conditions to 2049 conditions without and with the Project.

Urban and Regional Bottlenecks

The 2023 and 2049 maps (Figures E.7.b-3 through E.7.b-14) indicate that targeted capacity and operational improvements remain necessary in the FCMA and on major regional corridors in order to improve roadway operations. The 2023 base maps establish that several bottlenecks already exist, while the 2049 no-Project maps show continued or expanded stress. The Project provides localized changes and some relief but leaves significant AM and PM-peak operational problems. Potential needs include interchange reconstruction, auxiliary lanes, turn lanes, signal coordination, bottleneck removal, transit-priority treatments, incident management, freight improvements, and selected lane additions. The maps do not support a blanket conclusion that all roadways require capacity expansion, but they do show that a preservation-only strategy would leave documented operational deficiencies unresolved.

Rural and Unincorporated Needs

Favorable modeled LOS on many rural roads should not be interpreted as an absence of need. Rural County roads provide agricultural, freight, school, emergency, evacuation, tourism, and community access. Their primary needs may be preservation, bridge and culvert work, shoulders, drainage, safety, geometric correction, and reliable access rather than recurring peak-period congestion. Those needs are not measured by the supplied LOS maps.

E.7.b-5 Integrated Existing and Future Conditions Table

Topic	Existing Condition	2049 / Future Condition	Transportation-Need Implication
Population and demand	2023 population: 1.002 million.	2049 with-Project population: 1.081 million, up 7.81%.	Additional travel demand and access needs occur even with moderate growth.
Total VMT	23.141 million daily VMT.	23.726 million daily VMT, up 2.53%.	System use increases; maintenance and operational demand do not decline.
Per-capita VMT	23.09 total; 17.41 excluding through trips.	21.95 total; 16.46 excluding through trips.	Per-person travel efficiency improves, supporting VMT-reduction goals.
Through travel	5.693 million daily VMT; 24.6% of total.	5.940 million daily VMT; 25.0% of total.	Regional/freight/external corridor needs remain and grow faster than total VMT.
Roadway operations	2023 base maps show existing LOS D-F on portions of the FCMA freeway, interchange, and arterial system; most rural facilities are LOS A-B.	2049 no Project increases or extends lower-LOS conditions in the FCMA. Project changes some localized conditions but leaves substantial AM- and PM-peak bottlenecks.	Existing and future needs support targeted operations and capacity improvements; a preservation-only strategy would not resolve documented bottlenecks.
Pavement condition	2025 County PCI 66; 22.4% Poor/Very Poor.	No 2049 pavement-condition forecast supplied. Current-budget PCI reaches 49 by 2034/35.	Preservation deficit may become severe well before 2049.
Deferred maintenance	$883.4 million current pavement backlog.	$2.50 billion by FY 2034/35 at current funding.	Future mobility improvements must be planned alongside escalating asset-repair costs.
Project effect	Not applicable.	With-Project total VMT is 0.34% below No-Project. Map differences are localized; major regional and urban bottlenecks remain.	The Project package provides measurable but modest systemwide demand benefits and targeted operational benefits; it does not resolve all congestion or through travel.

Freight and Through-Trip Needs

The increase in through-trip VMT and its growing share of total VMT reinforce the importance of State highways and regional corridors. Because the project package has essentially no effect on through-trip VMT, strategies should focus on safely and reliably accommodating external and freight travel, managing bottlenecks, improving pavement durability on heavy-load routes, and leveraging State and Federal programs rather than assuming local demand-management measures will eliminate through travel.

Multimodal Needs

The reduction in VMT per capita is consistent with a future transportation program that combines land-use efficiency, transit, active transportation, and roadway operations. However, the attached materials do not quantify transit ridership, bicycle or pedestrian mode share, accessibility, travel time, or the contribution of individual Project categories. Future multimodal investments should therefore be prioritized using documented demand, safety, access, equity, and cost-effectiveness measures.

Relationship to the Proposed Transportation Initiative

The proposed Initiative emphasizes repair of existing streets and roads, transit, active transportation, safety, and regional connectivity. It also limits use of the Existing Neighborhood Streets and Roads Program for capacity-increasing projects. It provides a separate Regional Connectivity allocation for regional streets, roads, highways, and major arterials, but limits these improvements to transit, bike, or pedestrian improvements.

Findings noted below indicate that the Initiative's preservation emphasis addresses a documented need, but the 2049 LOS maps also show continuing targeted capacity and operational needs. To the extent direct local-road funds are restricted, major bottleneck, interchange, freight, and growth-related improvements may depend on the Regional Connectivity Program, RTMF where legally eligible, State and Federal funding, Caltrans programming, or other local sources. The 2049 project transportation improvement network should not be assumed to be fully funded by the Initiative.

Preliminary LOS Assessment Findings

- The 2023 base maps show that significant operational deficiencies already exist in the FCMA and on selected State-route, freeway, interchange, and arterial segments.
- Fresno COG projects population growth of approximately 7.8 percent and total VMT growth of approximately 2.5 percent between 2023 and 2049 with projects.
- Total and non-through VMT per capita decline by approximately 4.9 and 5.5 percent, respectively, indicating improved travel efficiency but not a reduction in total system use.
- Through-trip VMT grows approximately 4.3 percent and is not materially changed by the Project package, reinforcing the need for regional, State-highway, freight, and external-trip strategies.
- The 2049 No-Project maps show that most rural facilities remain at LOS A-B, while lower-LOS conditions remain concentrated in and approaching the FCMA and on selected regional corridors.
- The Project provides localized operational improvements or redistribution of congestion compared with the no-Project condition, but significant AM- and PM-peak freeway, interchange, downtown, and arterial bottlenecks remain.
- The PM peak maps show that congestion can be broader or directionally different than AM-peak conditions; both periods should be considered in project prioritization.
- The Project package modestly lowers 2049 total VMT compared with the No-Project condition, but the reduction is not large enough to eliminate congestion, through travel, or infrastructure needs.

- The map comparison supports a balanced program of preservation, safety, operations, targeted capacity, freight, transit, active transportation, bridge, drainage, and emergency-access investments.
- The remaining analytical gap is quantitative rather than cartographic: segment-level LOS, volume, capacity, delay, speed, V/C, jurisdiction, and project-coding information is needed to rank and quantify individual bottlenecks and benefits.

Effect of Transit Improvements on Traffic Congestion

Construction of capacity-increasing roadway improvements can directly affect traffic congestion by increasing the amount of traffic a facility can accommodate. Where added capacity is sufficient to meet existing or projected demand, congestion may be eliminated or substantially reduced. Where the improvement provides only part of the capacity needed, it may still reduce delay, improve travel-time reliability, or relieve a specific bottleneck.

Transit improvements affect congestion less directly. A new route, increased service frequency, longer operating hours, improved transfers, reduced fares, or faster and more reliable service may cause some travelers to shift from private automobiles to transit. The congestion benefit depends primarily on whether the improvement attracts discretionary riders, travelers who have access to an automobile but choose transit because it offers a competitive combination of travel time, reliability, comfort, convenience, and cost. Transit improvements that primarily serve existing riders or transit-dependent populations provide important mobility, accessibility, equity, and economic benefits, but do not necessarily remove a corresponding number of vehicles from congested roadways.

Current Fresno County travel patterns indicate that transit accounts for a relatively small portion of commute travel. The Fresno-Clovis Metropolitan Area Short-Range Transit Plan reports that approximately 74.7 percent of County commute trips are made by single-occupant automobile, 11.6 percent by carpool, 0.9 percent by public transit, and 1.9 percent by walking or bicycling. Thus, the single-occupant-vehicle commute share is approximately 83 times the transit share. The same plan states that most Fresno County transit riders currently use transit out of necessity rather than as a discretionary alternative to driving.

Fresno County's transit systems nevertheless provide a substantial amount of service. During Fiscal Year 2025, Fresno County transit operators carried approximately 11.25 million passenger trips, traveled approximately 9.1 million service miles, and operated approximately 743,600 service hours. This equates to an average of approximately 30,800 passenger boardings per calendar day. Fresno Area Express accounted for approximately 10.4 million trips, or 92.4 percent of the countywide total. Clovis Stageline

and Round Up together carried approximately 303,800 trips, while the Fresno County Rural Transit Agency carried approximately 177,700 trips.

These passenger trip totals should not be interpreted as an equivalent number of automobile trips removed from the roadway system. Passenger counts include transfers, non-work trips, paratransit trips, students, seniors, people without access to automobiles, and other riders who may not otherwise have driven. A transit passenger boarding therefore does not necessarily represent one fewer vehicle trip. The ability of increased transit ridership to reduce congestion depends specifically on how many new riders would otherwise have driven during the congested period and on the roadways experiencing the congestion.

Fresno Area Express operates the County's largest and highest-frequency transit network. In Fiscal Year 2025, FAX operated 19 fixed routes, used a fleet of 132 buses, and scheduled as many as 113 buses during peak commute periods. The system carried approximately 22 passengers per service hour. FAX's principal rapid-transit facility is the approximately 15.7-mile Q Bus Rapid Transit corridor, and the regional Short-Range Transit Plan identifies 15-minute service on Routes 9, 34, and 38. The Q operates at approximately 10-minute frequencies during peak periods and uses features such as off-board fare collection and traffic-signal priority. However, the existing system does not constitute a countywide grade-separated rail or exclusive-busway network that consistently provides transit with a travel-time advantage over automobile travel.

The Initiative would direct 25 percent of net revenue to public transportation, estimated in the fiscal analysis at approximately $1.396 billion over 30 years, or an arithmetic average of approximately $46.5 million annually. The formula would provide approximately $32.6 million annually to FAX, $9.3 million to FCRTA, and $4.7 million to Clovis Transit, based on the 30-year average. These funds could materially improve transit operations, service frequency, accessibility, paratransit, first- and last-mile connections, passenger facilities, and fleet condition. However, the Initiative does not commit the revenue to a grade-separated transit system, an exclusive regional busway network, or defined corridor travel-time improvements that would make transit faster than driving on the principal congested freeway and arterial corridors.

The Fresno COG 2049 traffic-model results provide additional context. The complete 2049 Project package, which includes roadway, transit, active transportation, land-use, and other improvements, reduces total daily VMT by approximately 81,649 miles, or 0.34 percent, compared with the 2049 No-Project condition. Because the model result reflects the entire RTP/SCS improvement package, it does not isolate the portion of the reduction attributable to transit. The model also shows that substantial AM- and PM-peak bottlenecks remain after implementation of the full Project network. These findings indicate that multimodal investments provide a measurable benefit, but that the

systemwide effect on congestion is modest and does not eliminate major freeway, interchange, downtown, and arterial constraints.

Accordingly, transit investments funded by the Initiative would provide meaningful mobility, accessibility, equity, environmental, and service benefits and could reduce automobile travel on selected routes or corridors. However, based on the existing 0.9 percent transit commute share, the concentration of ridership among existing and transit-dependent users, the limited extent of high-frequency service, and the absence of a committed grade-separated or exclusive right-of-way network, the available information does not demonstrate that the Initiative-funded transit improvements would produce a substantial countywide reduction in traffic congestion by 2049. A more supportable conclusion is that countywide congestion levels are not expected to be materially different as a result of the transit improvements alone, although localized reductions in vehicle trips, VMT, or congestion could occur where service becomes sufficiently frequent, direct, reliable, and competitive with automobile travel.

Effect of Active Transportation Improvements on Traffic Congestion

The discussion regarding the ability of transit improvements to reduce traffic congestion also applies, in part, to active transportation investments. New sidewalks, bicycle facilities, trails, protected crossings, and related improvements may cause some travelers, particularly those making shorter trips, to shift from private automobiles to walking, bicycling, scooters, or other active modes. However, the magnitude of that shift depends on trip distance, network connectivity, safety, travel time, physical ability, access to secure bicycle parking, and the availability of showers or changing facilities at workplaces and other destinations. Current American Community Survey estimates indicate that bicycling accounts for less than 1 percent and walking approximately 1 percent of Fresno County commute trips, suggesting that a substantial increase would be required before active transportation could materially affect countywide peak-period traffic volumes. These commute statistics do not capture recreational trips, school trips, occasional bicycle use, or trips combining bicycling or walking with transit.

Weather is an additional constraint on year-round active transportation use in Fresno County. Fresno’s climate is characterized more by prolonged summer heat than by severe winter cold. National Weather Service climate normals indicate that Fresno’s average July high is approximately 97.7 degrees Fahrenheit, while the average January high is approximately 55.4 degrees and the average January low is approximately 40.6 degrees. Historical records show that Fresno has experienced as few as 15 and as many as 69 days in a year with temperatures of 100 degrees or higher, with the record of 69 days occurring in 2021. Such conditions can make walking, bicycling, and scooter use less comfortable or practical during midday and afternoon periods, particularly for longer trips or travelers who must arrive in work clothing.

Transportation research confirms that bicycle and pedestrian activity is sensitive to weather, although the degree of sensitivity varies by location, trip purpose, infrastructure, and traveler characteristics. Studies have found that temperature, precipitation, and humidity significantly affect bicycle volumes; cycling generally increases as temperatures become more favorable, but the benefit levels off and, in some settings, reverses during very hot conditions. Research also indicates that cycling tends to be more weather-sensitive than walking and that rainfall can reduce active transportation use during and after the period of precipitation.

Accordingly, active transportation improvements would provide important safety, accessibility, health, and mobility benefits and could reduce automobile use for some short trips. However, the available information does not demonstrate that these improvements, by themselves, would produce a substantial countywide reduction in peak-period congestion by 2049. Fresno County's dispersed development pattern, trip distances, summer heat, cooler and occasionally wet or foggy winter conditions, and the limited availability of workplace showers, changing areas, and secure bicycle storage may constrain the number of motorists who regularly shift to active modes. For purposes of this analysis, congestion levels in 2049 may therefore be expected to remain broadly similar with or without the active transportation improvements unless future travel-model results demonstrate a measurable reduction in vehicle trips, VMT, or peak-hour roadway demand.

Magnitude of Regional Need

A full modeling of system-wide LOS with the necessary improvements funded is beyond the scope of this report. However, an order of magnitude assessment of the potential costs of these investments can be approximated by looking at the unsuccessful 2022 effort by FCTA to renew Measure C. As a part of the technical studies leading up to development of the 2022 expenditure plan, FCTA and Fresno COG did an evaluation of regional system needs. That study was presented and adopted by the multidisciplinary Technical Working Group and the Measure C renewal steering committee. That effort identified about $4.5 billion in Regional needs.

This amount was not the total need, but rather the need that could reasonably be expected to be obtainable from a combination of all available funding sources. It was a "fiscally constrained" need, with the total need being higher. Those same studies identified an unconstrained need of approximately $6 billion.

Conclusion

The Initiative would provide a substantial new source of transportation funding and would address several documented needs, but the individual program categories would affect congestion in different ways. The Initiative allocates 65 percent of net revenue to the Existing Neighborhood Streets and Roads Repair and Maintenance Program and 25

percent to public transportation. It also requires or permits substantial investment in sidewalks, bicycle facilities, Safe Routes to School, and other active transportation improvements. By comparison, only 5 percent is allocated to the Regional Connectivity Program, including 1 percent for Fresno Yosemite International Airport and 4 percent for regional street, road, highway, and major arterial improvements. The local-road, transit, and active transportation programs would provide important preservation, safety, accessibility, equity, health, and mobility benefits, but those benefits should not be assumed to produce an equivalent reduction in peak-period traffic congestion.

The 2023 and 2049 LOS comparisons demonstrate that Fresno County's transportation needs extend beyond pavement maintenance and multimodal access. Significant freeway, interchange, downtown, and arterial bottlenecks already exist in the 2023 base year and generally increase or become more extensive under the 2049 No-Project condition. The 2049 Project condition reflects the broader transportation improvement package contained in the Draft 2026 RTP/SCS and provides localized operational benefits; however, substantial AM- and PM-peak congestion remains within the Fresno-Clovis Metropolitan Area and along major regional corridors. The full 2049 Project package reduces total daily VMT by approximately 81,649 miles, or 0.34 percent, compared with the No-Project condition. Because that scenario includes roadway, transit, active transportation, land-use, and other improvements financed from multiple anticipated sources, the modeled reduction cannot be attributed solely to the Initiative or to any one program category.

Transit improvements funded through the Initiative would expand mobility and access for existing riders, transit-dependent populations, and some discretionary riders. They could also reduce automobile travel on selected routes or corridors where service becomes sufficiently frequent, direct, reliable, and competitive with driving. Nevertheless, transit currently represents approximately 0.9 percent of Fresno County commute travel, compared with approximately 74.7 percent for single-occupant automobiles, and the existing system does not provide a countywide grade-separated rail or exclusive-busway network with a consistent travel-time advantage over driving. Accordingly, the available evidence does not demonstrate that the Initiative-funded transit improvements, by themselves, would produce a substantial countywide reduction in peak-period congestion by 2049, although localized reductions in vehicle trips, VMT, or delay may occur.

Active transportation improvements would similarly provide substantial safety, accessibility, health, recreational, and short-trip mobility benefits. New sidewalks, protected crossings, bicycle facilities, and trails may cause some travelers to shift from automobiles to walking, bicycling, scooters, or other active modes. However, walking and bicycling together currently account for only about 1.9 percent of County commute travel, and regular use is affected by trip length, network continuity, physical ability,

secure bicycle parking, workplace shower or changing facilities, and Fresno County's seasonal weather, including prolonged summer heat. These investments may reduce automobile use for some shorter trips, but the available information does not show that they would materially change countywide peak-period congestion by themselves. Transit and active transportation improvements therefore complement, but do not substitute for, the targeted interchange, bottleneck, operational, safety, freight, and capacity improvements identified through the LOS analysis.

Overall, the Initiative would materially increase funding for local street and road preservation and would provide significant transit and active transportation benefits throughout Fresno County. However, the LOS analysis and the transit and active transportation assessments indicate that the Initiative's multimodal investments are unlikely, by themselves, to resolve the major freeway, interchange, downtown, arterial, freight, and regional mobility constraints projected through 2049. The 4-percent allocation for regional surface transportation projects would not be sufficient to implement the broader 2049 Project network or address the substantial congestion that remains even after that network is assumed to be in place. Fresno County would continue to depend on RTMF revenues where legally eligible, Caltrans programming, State and Federal formula funds, competitive grants, and other local matching resources, many of which are restricted, competitive, or uncertain. The Initiative would therefore strengthen the County's local preservation and multimodal transportation programs, but it would leave a substantial funding gap for the regional operational and capacity improvements needed through the 2049 RTP/SCS horizon and the end of the measure period.

Sources Reviewed

- Fresno COG, Traffic Model Summary Performance Measures: 2023 Base, 2049 Without Projects, and 2049 With Projects.
- Fresno COG, Countywide Congestion and Level-of-Service Maps: 2023 Base, 2049 No Project, and 2049 Project, AM and PM peak hours.
- Fresno COG, Fresno-Clovis Metropolitan Area Congestion and Level-of-Service Maps: 2023 Base, 2049 No Project, and 2049 Project, AM and PM peak hours.
- Fresno County Transportation Improvement Act Ordinance dated January 26, 2026.
- American Community Survey, 2024
- National Weather Service
- 2022 Measure C Renewal Expenditure Plan

c. Existing Business Districts & Developed Areas Designated for Revitalization

Business districts and areas designated for revitalization within the county-region are primarily located in and near the downtown area of the City of Fresno, under their Downtown Neighborhoods Community Plan, and within the Fulton Corridor Specific Plan. For both categories, impacts of the Initiative would be highly project-specific and depend on the jurisdictions to allocate or not allocate Initiative funds for transportation infrastructure to support them.

8. Other Matters Requested by the Board of Supervisors

(8) Any other matters the Board of Supervisors requests to be in the report.

a. Review and Interpretation of Initiative Legislative Language

A review and general analysis of the Initiative's language reveal some provisions that appear ambiguous, generate internal inconsistencies, or raise potential risk in the pursuit of compliance. The following detailed analysis identifies some of the areas of concern within the Initiative.

a.01. Feasibility Exemptions

Most notable of the various provisions examined under this section are the 12 references to feasibility in gauging compliance with requirements embedded into various funding provisions.

Provisions featuring feasibility clauses can largely be segmented into two categories: statements of policy and technical requirements. While ambiguity over defining what is, or more importantly what is not, "feasible" is a matter of critical concern to lawfully implementing the Initiative, we place greater emphasis on its effect on technical requirements than statements of policy.

They are as follows:

- *(A)(6) – Statement of Policy – "All streets and roads constructed or improved in whole or in part with revenue from the Fund shall include complete street features, whenever **feasible**, to create an overall complete street system for neighborhoods. To reduce overall costs under a single contract, jurisdictions that receive funds under this section may also use other funding sources to address the entire roadway infrastructure under one project."*
- *(C)(3) – Statement of Policy – "Every street or road constructed or reconstructed in whole or in part with revenue from the Fund pursuant to this subsection shall include sidewalks, paths, walkways, or equivalent facilities, where **feasible** and according to the adopted Active Transportation Plan in each jurisdiction."*
- *4.60.070 (C)(5) – Technical Requirement – "Where **feasible**, every expressway, super-arterial, arterial, or collector road constructed in whole or in part with revenue from the Fund pursuant to this subsection shall include accommodations for bicycle travel at minimum by a striped shoulder with a minimum width of four feet. This four-foot shoulder may be provided as a bike lane or a cycle track. If an existing expressway, super-arterial, or collector road is reconstructed and reconstruction includes pavement widening, that project shall be subject to this requirement."*

- *4.60.070 (C)(9)(a)(iii) – Technical Requirement – "Within the Fresno-Clovis Metropolitan Area, Class I Facilities constructed with funds expended under this subsection are a minimum of 12 feet in width, where **feasible**."*
- *4.60.070 (C)(9)(a)(v)(II) – Technical Requirement – "Within the Fresno-Clovis Metropolitan Area, Class I Facilities constructed with funds expended under this subsection are a minimum of 12 feet in width, where **feasible**."*
- *4.60.080 (A) – Statement of Policy – "Twenty-five percent of the annual revenue in the Fund shall be allocated to support an integrated, rapid, resilient, and cost-effective transit network that coordinates public transportation services, where **feasible**, to reduce costs of service and avoid service duplication, and prioritize improving public transportation system access and use."*
- *4.60.80(G)(I) – Technical Requirement – "For each transit agency receiving funds under this section, transit accessibility performance shall demonstrate year-over-year improvement. Performance shall be measured using a composite index composed of the following indicators: (1) percentage change in total ridership; (2) percentage of urban routes operating at 15-minute or better headways and, in rural areas, average transit travel time relative to comparable personal vehicle travel times or an equivalent accessibility metric; (3) average travel distance or time required to reach a defined set of key destinations; (4) average number of transfers required on commonly used routes; (5) average transfer wait times; and (6) on-time performance, measured as the percentage of trips operating on schedule from origin to destination. Where **feasible**, each indicator shall be reported both in aggregate and disaggregated by demographic, geographic, and rider group."*
- *4.60.130 (B)(1), (3) – Technical Requirement – "Projects funded in part or in whole with revenues from the Fund shall incorporate design and implementation elements that address heat, increased precipitation and flooding, wildfire management, and improvements to air quality, including through the following:*
  - *Where **feasible**, the addition, establishment, and maintenance of landscaping and tree canopy along pedestrian walkways, bicycle facilities, local and major roads, highways, and trails in the public right-of-way; provided, however, that each project shall include an analysis of the elements considered, and if trees or shade canopy elements are not included, the project shall document the reasons for such exclusion. …*
  - *Where **feasible**, the addition of curb, gutter, and stormwater drainage improvements."*
- *4.60.130(D) – Technical Requirement – "All streets and roads constructed or improved in whole or in part with revenue from the Fund shall include complete street features, where **feasible**."*
- *4.60.130(G) – Technical Requirement – "Jurisdictions or agencies shall use best efforts to implement projects consistent with the intent of this Act. In the event a*

*jurisdiction or agency determines that a proposed project or project requirement is not **feasible**, the jurisdiction or agency shall, following a duly noticed public hearing, formally declare and document the reasons for such infeasibility."*

Of the technical requirement provisions that feature ambiguous feasibility clauses, only one provides a mechanism for declaring infeasibility. That provision, found in the Design and Implementation Elements section of the Initiative (see 4.60.130(G), the final paragraph in the list above), requires jurisdictions to use best efforts to comply with the Initiative's requirements when utilizing revenue generated by the tax. In circumstances where compliance is not feasible, agencies are required to "document the reasons for such infeasibility" following a public hearing where such infeasibility is declared publicly.

The Initiative provides no standards for an agency to determine that projects or project requirements specified within the Initiative create a state of infeasibility. Additionally, the Initiative provides no framework for dispute resolution should Fresno COG find the recipient agency's declaration of infeasibility unpersuasive.

As such, this provision has a high likelihood of generating conflict between recipient agencies and Fresno COG over the validity of feasibility findings.

Other technical requirement provisions, including bike lane width requirements (see #4 and 5 above), active transportation implementation requirements for local streets and roads (see #2 and 3 above), additionally do not call out requirements for declaring infeasibility.

A separate provision under the Active Transportation subprogram, §4.60.070(C)(6), requires a determination from a licensed engineer to determine whether there is insufficient right-of-way or other physical constraints prohibiting an agency from installing Class I and Class IV facilities. This specific provision, which omits the word "feasible," is the only one in the Initiative making specific reference to a licensed engineer having a role in determining the feasibility of a project requirement.

Due to the lack of clarity, there is real potential for future disputes regarding compliance with the Initiative. The lack of clear guidelines for establishing feasibility in compliance with project requirements would likely require courts to interpret the intent of the Initiative's drafters, thereby generating inconsistent interpretation and application across provisions.

a.02. PCI restrictions for capacity-increasing projects

The Initiative's §4.60.070(B)(3) clearly requires that jurisdictions cannot expend funds from the Neighborhood Streets and Roads Repair and Maintenance (NSR) Program on "road expansion or capacity-increasing projects" until "every local street and road within the jurisdiction…" reaches a Pavement Condition Index score of 65 or above.

The Initiative does not define what constitutes a “local street” or a “local road” and thereby may create potential conflict over the characterization of roads to meet the PCI 65 threshold to enable utilization of NSR funding for capacity-increasing projects.

Separately, the Initiative does not define the timeline or date of PCI measurement that would enable agencies to “unlock” the ability to utilize 5% of NSR funding for road expansion or capacity-increasing projects, nor does it specify if agencies may carryover qualified proceeds for road expansion projects across years when PCI may be below 65 across all local streets and roads.

a.03. Safety and mobility exemptions to road expansion

The provision following the PCI restriction, §4.60.070(B)(4), provides an exemption to the PCI restriction and the 5% limit on NSR funding for roads, so long as a capacity-increasing project involves “significant safety or mobility benefits, as supported by traffic studies that demonstrate reductions in fatalities and serious injuries for all road users.”

As drafted:

> Road expansion or capacity-increasing projects shall not be prohibited by paragraph 3 if they involve significant safety or mobility benefits, as supported by traffic studies that demonstrate reductions in fatalities and serious injuries for all road users. Eligible road expansion or capacity increasing projects shall only include the following:
>
> a. Dedicated public transportation lanes.
>
> b. Dedicated and protected Class I or Class IV Facilities.
>
> c. Safety-motivated turn lanes or intersection improvements that protect all road users and that do not impede bicycle or pedestrian facilities.
>
> *FCTIA, §4.60.070(B)(4)*

Due to the provision’s ambiguous construction, §4.60.070(B)(4) may be interpreted as a constructive prohibition on all road expansion projects other than the three project types prescribed in §§(a)-(c), regardless of whatever bona fide safety or mobility benefits may be sought through other proposed projects outside the scope of those subparagraphs.

a.04. Disadvantaged Unincorporated Community set-aside provisions

The Initiative’s NSR Program calls for a minimum of between 12-15% of the program to be set aside for disadvantaged unincorporated communities (DUC), to be determined by Fresno COG following a needs assessment of complete streets within DUCs.

The provision, §4.60.070(B)(6), provides that the county may redirect DUC set-aside funding to other unincorporated areas of the county “once identified needs have been met, the average Pavement Condition Index score for all disadvantaged unincorporated

communities reaches 70, and each local road within all disadvantaged unincorporated communities attains a Pavement Condition Index score of at least 65."

The DUC set-aside reallocation provision does not provide a method for certification of how "identified needs" could be met, thereby exposing the County to potential vulnerability in any attempt to reallocate funds away from DUCs and toward other unincorporated areas that do not meet the specific definition under the Government Code.

a.05. Worst First vs. Pavement Management System

Two provisions within the NSR Program call for differing approaches to selecting projects.

§4.60.070(B)(2)(a) permits agencies to utilize Initiative proceeds to repave and reconstruct local streets to prevent deterioration utilizing "an industry-standard pavement management system designed to inform cost-effective roadway maintenance."

Separately, §4.60.070(B)(7) requires agencies to prioritize roads with the lowest Pavement Condition Index score or project areas in need of improvement in disadvantaged neighborhoods and communities.

These two provisions are likely to come into conflict, as they often produce significantly different outcomes for project lists. However, the language is clear that "worst first" prioritization is a requirement, whereas utilization of a pavement management system is of second order.

a.06. Bicycle Facility Requirements

NSR Program - Within the Active Transportation subprogram of the NSR Program, the Initiative requires agencies to *"include accommodations for bicycle travel at a minimum by Class I **and** Class IV Facilities, unless there is insufficient right-of-way or if there are other physical constraints as determined by a licensed engineer"* when reconstructing paving without widening or other intense treatment (Initiative, §4.60.070(C)(6)), emphasis ours). Class I facilities, known as bike paths or shared use/multiuse trails, are bike facilities fully separated from the roadway, exclusively for the use of bikes and pedestrians. Class IV facilities, known as protected bike lanes or cycle tracks, provide a bikeway for the exclusive use by bicycles. What differentiates this from a Class I facility is that it cannot be used by pedestrians or vehicles, and it must include horizontal and/or vertical separation. These horizontal and vertical separators can include flexible posts, on-street parking, grade separation, railing, or planters. As drafted, subparagraph (6) of the Active Transportation program calls for agencies to construct both bike paths and protected bike lanes when engaging in most pavement reconstruction projects, with only limited exemption via feasibility assessment by a licensed engineer. As such, this

provision could have a material impact on the recipient agency's project scope and costs.

Subparagraph (7) requires that funding for the conversion of travel lanes into Class I and Class IV facilities be “roughly equivalent based on expenditures,” due to the differing costs of the facility classes, though no basis for equivalency is stated. This provision raises concerns over the agency's approach to budgeting projects and whether they can properly comply with the Active Transportation subprogram’s requirements.

Regional Connectivity Program - The Initiative cross-references its bicycle facility requirements stated for road reconstruction and pavement widening within the NSR Program’s Active Transportation subprogram into the Regional Connectivity Program. The practical effect of this cross-reference means that County regional expressways, super-arterials, arterials, and connectors along with state highways are subject to the requirements to place Class I, Class IV, or both adjacent to the applicable regional roadway. Along with previously-stated concerns regarding the feasibility of complying with the bicycle facility requirements, duplicative bicycle class facilities, and “roughly equivalent” expenditures on bicycle facilities, this cross-reference raises additional concerns about compliance and implementation of the Initiative within state highway facilities and whether they would be deemed ineligible due to lack of cooperation or compliance by Caltrans.

a.07. Recreational Trail Exclusion

The NSR Program’s Active Transportation subprogram expressly bars the use of Initiative proceeds for “trails designed strictly for recreational purposes.”

This exclusion does not define “recreational trail” and leaves open for interpretation and dispute whether funding specific trails within the County and recipient cities would constitute mixed-use for transportation and recreation.

a.08. Safe Routes to School Project Count

The Safe Routes to School Subprogram of the NSR Program states a goal of “at least 150 Safe Routes to School projects shall be completed by 2057,” specifying that a project includes “infrastructure, engineering improvements, and traffic calming strategies…” (§ 4.60.070(G)(3)). Of the 150 Safe Routes to School projects required under the performance evaluation subsection, the County and cities other than Fresno and Clovis are responsible for at least 45 projects. However, with no defined minimum scope, cost, or completion, recipient agencies could implement small or low-cost measures under any of the three project types to be considered a completed Safe Routes to School project.

a.09. Transit Performance Metrics

The Public Transportation Program of the Initiative calls for year-over-year performance improvement by Fresno County's three transit agencies – Fresno Area Express, Clovis Transit, and Fresno County Rural Transit.

To measure performance, the Initiative specifies a composite index that includes percentage change in total ridership; percentage of urban routes operating at 15-minute or better headways and, in rural areas, average transit travel time relative to comparable personal vehicle travel times or an equivalent accessibility metric; average travel distance or time required to reach a defined set of key destinations; average number of transfers required on commonly used routes; average transfer wait times; and on-time performance, measured as the percentage of trips operating on schedule from origin to destination (Initiative § 4.60.080(G)(1)).

The Initiative does not provide weighting within the composite index it calls for, which has the potential to mischaracterize and misreport the performance of transit agencies and their operations, particularly for agencies that have reached ridership maturity.

a.10. Paratransit Expenditure Mandate

The Public Transportation Program additionally requires recipient agencies' first transit expenditures be directed toward paratransit and other transit alternatives for elderly and disabled residents (§4.60.080(D)). The Initiative also requires transit agencies to certify to Fresno COG that their first transit expenditure was directed at paratransit. While the Initiative provision contemplates many potential expenditures, it does not set a minimum amount that must first be expended before transit agencies direct funding to other elements of operations and maintenance. As such, the provision gives transit agencies broad authority to attest to Fresno COG that they spent as little as $1 of Initiative revenue on paratransit before directing resources elsewhere.

a.11. Amendments to the Initiative

Section 8 and §4.60.180 of the Initiative address amendments to the Initiative.

Section §4.60.180 details the process for the Fresno COG Policy Board to initiate and the Board of Supervisors to adopt amendments to the Initiative, expressly prohibiting the elimination of programs and requiring voter approval to modify reallocation of revenues within the programs. It is not uncommon for self-help transportation sales tax measures to specify a threshold of approval for voter-approved amendments. However, the provision is silent on the requisite threshold of voter approval to amend the Initiative.

As of this writing, California voters are slated to vote on Proposition 43, a constitutional amendment that would raise voter approval thresholds to enact, extend, or increase local special taxes from 50%, as specified in California Cannabis Coalition v. City of Upland (3 Cal. 5th 924). Without thresholds specifically referenced, current authority on

Proposition 218 governs the approval threshold for the measure. Depending on the outcome of Proposition 43, the originator of a proposed voter-approved amendment to the Initiative may determine the threshold required.

Under the current authority governing Proposition 218, an amendment placed on the ballot at the request of Fresno COG and/or the Board of Supervisors would require two-thirds majority voter approval. However, a citizen initiative amendment to the Initiative would only require a simple majority.

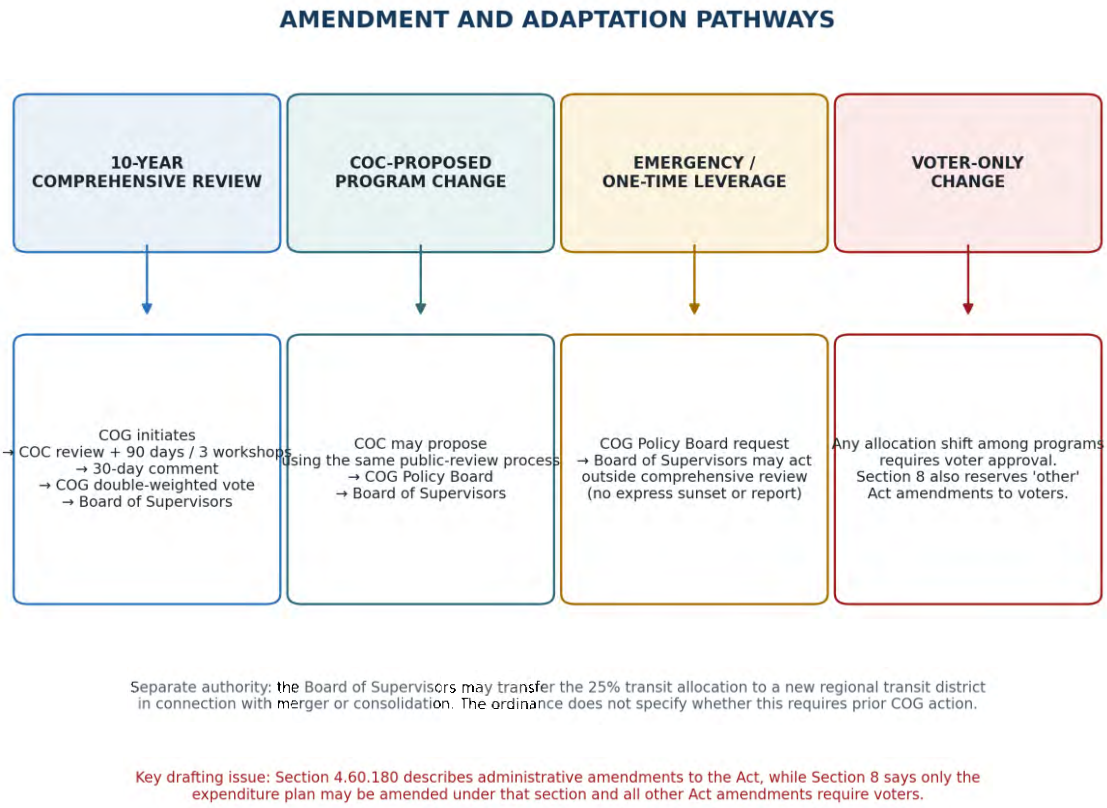
If voters approve Proposition 43 during the November 2026 election, the thresholds for either route to the ballot (commencing in 2028) would be governed by the same two-thirds majority standard.

a.12. Board of Supervisors' Exigent Amendment Powers

The Initiative provides an exigent circumstances exception to its amendment process. As drafted, the Board of Supervisors may circumvent the review process and amend the Initiative to address a locally declared emergency, immediate threat to public health and safety, or to timely leverage large-scale, one-time state or federal funding opportunities. Circumvention of the comprehensive public review is only possible after request from the Fresno COG Policy Board. While this provision has an obvious check on the Board of Supervisors upfront via the request from the Fresno COG Policy Board, there is no review procedure by which exigent amendments can be subsequently reviewed, sunset, or otherwise limited without the consent of the Board. As such, this exception could be broadly interpreted and lead to adjustments to the Initiative made under exigent circumstances that lead to permanence. Such exigent amendments with long-range or permanent implications could include removing the various limitations and prohibitions on utilizing NSR program funding for road expansion or capacity-increasing projects.

The figure below presents the principal governance and administrative actions needed before implementation and at key milestones throughout the Initiative period.

E.8a-1 Amendment and adaptation pathways under the proposed Initiative Figure



b. Specific Questions

A detailed list of questions asked by the Board of Supervisors at the July 14, 2026 Board Meeting are included in Appendix J.

c. Administrative Uncertainties and Implementation Risks

Eliminating the independent FCTA board and assigning most administration and programming to FCOG broadens city participation but concentrates rulemaking, selection, monitoring, audit, oversight-support, and potential applicant roles in one organization subject to a different voting structure than under Measure C, likely to generate uncertain outcomes on project funding, oversight, and compliance within each individual program along with a city-influenced approach to amending elements of the Initiative. The Initiative does not fully define role separation, residual FCTA assets and

liabilities, first-level compliance decisions, cure and appeal procedures, audit firewalls, or a unified successor implementation plan. These gaps should be addressed through written delegations, institutional firewalls, a consolidated program manual, transparent decision routes, and formal dispute procedures.

The table below summarizes the highest-risk implementation issues, their potential exposure, and measures that could reduce or manage those risks.

E.8.c-1 Highest-risk implementation issues Table

Risk	Level	Exposure	Mitigation
FCTA transition	High	No assignment of legacy contracts, grants, balances, staff, records, litigation, bonds, or RTMF interests; statutory termination occurs after tax collection ends.	Transition agreement, closing plan, asset/liability schedule, records protocol, and counsel opinion.
County–COG fiscal mechanics	High	Annual appropriation is stated, but payment authority, cash ownership, interest, encumbrances, carryover, refunds, and reconciliation are not.	Fiscal-agent agreement, treasury flow, chart of accounts, monthly reconciliation, and payment delegation.
Bond authority	High	COG may “consider” or issue bonds, while RTC §7285.5(b) deems the County an authority for the cited bond law; security and issuer are unclear.	Bond-counsel validation; designate issuer, pledge, covenants, debt policy, disclosure, and approval.
Amendment conflict	High	Section 4.60.180 allows COG/BOS amendments; Section 8 limits that route to expenditure-plan changes and reserves other Act changes to voters.	Conforming amendment before ballot or formal limiting interpretation adopted with the implementation manual.
Complete Streets language	High	Class I “and” Class IV minimum in addition to Complete Streets requirements, four-foot shoulder sentence, multiple feasibility standards, and no COG concurrence rule.	Text correction and engineering-exception protocol.

Risk	Level	Exposure	Mitigation
Appeals	High	COG must invent claims/dispute rules after enactment; unrestricted design could create inconsistent or self-reviewing decisions.	Adopt neutral multi-level process before first funding agreement or claim.
COG conflicts/ capacity	High	COG performs nearly every regional administrative function and may apply for funds; 1% must cover an extensive workload.	Functional firewalls, staffing plan, cost allocation, independent reviewers, and service-level metrics.
Audit duplication	Medium	Recipient, COG, and COC audits may overlap while important risks remain untested.	Annual coordinated audit plan and single systemwide financial/compliance audit.
2029 implementation gap	Medium	Database, studies, plans, local hiring goals, and performance baselines are delayed two years after operations begin.	Interim rules, ledger, baseline, and transition work program effective July 1, 2027.
Formula and target ambiguity	Medium	Base-allocation shortfall, collective-mile credits, SRTS shares, metric improvement, and 12–15% methodology lack rules.	Published methodologies, data sources, proration, crediting, cure, and annual target trajectories.

Additional Drafting and Administration Questions and Concerns

- Does “appropriated each fiscal year to COG” require transfer of cash, creation of a COG custodial account, or County payment on COG-approved claims?
- Who owns and allocates investment earnings, and do program percentages apply to interest and prior-year recoveries?
- May COG charge road and transit recipients for section 4.60.140 studies in addition to the 1% administrative program, and who approves the allocation method?
- What happens if a recipient accumulates funds longer than five years, a project is delayed, or a regional funding cycle cannot commit the projected amount?
- How are future refunds, CDTFA true-ups, litigation escrow, or invalid-tax repayment allocated across programs and recipients?

- Which local agency is responsible when a project crosses jurisdictions, and how are maintenance, title, indemnity, environmental review, and cost overruns assigned?
- Does the County's 12–15% disadvantaged-community minimum apply before COG completes the 2029 needs assessment; if so, what interim percentage governs?
- Do all feasibility exceptions require a public hearing, or only exceptions invoked under section 4.60.130(G); does an engineer's determination alone suffice under section 4.60.070(C)(6)?
- What evidentiary threshold supports "significant safety or mobility benefits" for capacity projects, and does that clause waive the 5% cap, the PCI prerequisite, or only the general prohibition?
- How are the COC's two annual audit provisions coordinated with the COG independent audit, and who contracts with and pays the auditor?

E.8.c-2 Initiative Legislative Language Ambiguity and Inconsistency Summary Table

No	Issue	Provision	Ambiguity/Inconsistency	Potential Impacts
1	PCI 65 prerequisite for capacity	§ 4.60.070 (B)(3)	"Every local street and road" must reach PCI 65 before capacity spending. "Local street and road," newly failed segments, and measurement date are undefined.	The condition may indefinitely bear capacity projects or appear to be impossible to certify.
2	Safety and mobility exception	§ 4.60.070 (B)(4)	"Significant safety or mobility benefits" and required traffic studies are not defined; the eligible exception list is narrow.	Agencies may reach different conclusions or face challenges.
3	When DUC needs are met	§ 4.60.070 (B)(6)	Redirection is allowed after identified needs are met, average DUC PCI reaches 70, and each local road reaches 65, but "identified needs" and certification are undefined.	Funds may remain restricted indefinitely or be redirected prematurely.
4	Lowest-PCI priority versus PMS efficiency	§ 4.60.070 (B)(7); § 4.60.070 (B)(2)(a)	The Initiative prioritizes lowest-PCI roads while also requiring an industry-standard PMS designed for cost-effective maintenance. These strategies may not select the same projects.	A worst-first interpretation could reduce network-wide cost effectiveness.
5	Overlapping Complete Streets triggers	§ 4.60.070 (A)(6); § 4.60.070 (C)(3),(5), (6); § 4.60.130	Multiple provisions use different project triggers, standards, and exceptions.	Agencies may apply inconsistent requirements to repair, overlay, reconstruction, widening, and regional projects.

		(D), (E), (G)		
6	Meaning of “where feasible”	Multiple sections	No common technical, fiscal, environmental, right-of-way, utility, maintenance, safety, or legal criteria are stated.	Decisions may be inconsistent and expose agencies to disputes or litigation.
7	Class I and Class IV requirement	§ 4.60.070 (C)(6)	The phrase “at a minimum by Class I and Class IV Facilities” may require both facility types, although they are distinct designs.	Project scope and right-of-way cost could be materially affected.
8	“Roughly equivalent” expenditures	§ 4.60.070 (C)(7)	Lane-conversion funding must be roughly equivalent because Class I and IV costs differ, but no equivalency basis is stated.	Agencies cannot reliably budget or certify compliance.
9	Recreational trail exclusion	§ 4.60.070 (C)(11)	Trails designed strictly for recreation are ineligible, but mixed transportation / recreation facilities are not defined.	Multiuse trails may be disputed.
10	Regional projects subject to local active-transportation paragraphs	§ 4.60.090 (D) cross-reference to § 4.60.070 (C)(5)-(6)	The cross-reference applies bicycle requirements to major roads, regional projects, and highways, including Caltrans facilities, but interaction with state ownership and design authority is not stated.	Some regional projects may be infeasible, ineligible, or more costly.
11	Safe Routes to School project count	§ 4.60.070 (G)(3)	“Project” has no minimum scope, cost, phase, or completion definition; five per year and 50 per ten years are alternate schedules.	Small or phased actions could be counted inconsistently.
12	CARB target requirement	§ 4.60.070 (G)(4)	Jurisdictions must pursue reductions consistent with quadrennial CARB targets, but the applicable target, measurement method, and funding consequence are unstated.	Compliance may be difficult to determine and may change over time.
13	Transit year-over-year improvement	§ 4.60.080 (G)(1)	Performance must improve every year using a composite index, but weights, baseline, statistical significance, service disruptions, and external factors are not addressed.	An agency could be noncompliant despite reasonable performance or mature service levels.
14	Transit-supportive infrastructure growth	§ 4.60.080 (G)(2)	The annual percentage increase “shall grow every year,” but the baseline and treatment of completed transit networks/reaching logistical capacity are unclear.	
15	Paratransit funds “first being used”	§ 4.60.080 (D)	The certification does not state the amount or level of service that	Expenditures on paratransit could range from nominal to

			must be funded before other transit uses.	consuming most transit revenue.
16	Meaning of Regional Connectivity “provide funding” dates	§ 4.60.090 (B)(1)	Provision asserts that Fresno COG must provide funding by specified dates for multi-year periods. Language implies that funding is available on the scheduled date, rather than over the life of the funding window. Additionally, it does not specify the conditions precedent for projects to qualify during the funding window.	It is unclear whether dates require project selection, commitment, agreement execution, or cash availability.
17	COC diversity seats and selection	§ 4.60.170 (C)-(E)	Five seats represent “diversity” without defined categories; selection is by a Policy Board made up of city mayors and the BOS Chair/designee.	Representation, recruitment, and selection criteria may be disputed.
18	Voter-approved amendment threshold	§ 4.60.180; Section 8	The Act requires reallocation of proceeds within programs be approved by voters but does not specify a threshold of approval.	Amendment authority may be uncertain.
19	Emergency amendment exception	§ 4.60.180 (E)	The Board may amend outside the comprehensive process for a locally declared emergency, immediate threat, or large one-time funding opportunity, but standards, duration, notice, and limits are unstated.	Exception could be interpreted broadly.

In sum, the Initiative features 21 ambiguity or internal-consistency issues that generate significant concerns about the ultimate implementation if approved by voters. The highest-priority matters are the meaning, flow of oversight and review, and ultimate arbiter for 'feasible' requirements; the PCI 65 capacity prerequisite; the narrow safety/mobility exception for capacity-increasing NSR spending; new-growth definitions; certification that DUC needs are met; conflict between worst-first prioritization and life-cycle pavement management; overlapping Complete Streets triggers; “Class I and Class IV” requirements; transit performance metrics; amendment thresholds; and the duration and limits of emergency amendments.

d. Implementation Guidance – Suggested Clarifications.

In terms of implementation there is an overall shift in prioritization from past measures which would mean a recalibration of where and how transportation infrastructure is designed and constructed throughout the region. This will present a combination of implementation benefits and challenges. A great number of the challenges of the measure are yet to be determined as they depend on whether the internal ambiguity of the measure can be resolved through the guidance for implementation that would be developed later. A non-comprehensive list of findings and conclusions from the report will be followed by a list of suggested clarifications will be listed for that implementation guidance. The following suggested clarifications in the officially generated implementation guidance for this initiative in addition to the ambiguities presented under Section E.8.

d.01. 4.60.070.A.6

All streets and roads constructed or improved in whole or in part with revenue from the Fund shall include complete street features, whenever feasible, to create an overall complete street system for neighborhoods.

Implementation guidance should clarify as to who would determine what is feasible in this context. Is it the jurisdiction's engineers, COG, the Citizen's Oversite Committee, or other? Define "improved" for this context to clarify the difference between maintaining existing infrastructure that would not necessarily trigger a complete street, such as repairing a pothole, from making a new construction or improvement that would trigger this requirement. This is particularly relevant for the County as thousands of County miles do not connect to neighborhood schools, parks, etc.

d.02. 4.60.070.A.6 D.1.Transit-Oriented Development

A jurisdiction that receives funds under this section may expend the funds to support transportation and other costs to enable housing in mixed-use zone districts within existing neighborhoods.

Implementation guidance should clarify what "other costs" might include, especially in areas related to transportation but not necessarily considered transportation costs, such as wastewater processing for gutter run-off, or laying conduit for future projects.

d.03. ***4.60.070.B.1***

Expenditures under this subsection shall prioritize improvements to local streets that connect to existing neighborhood homes, schools, parks, community services, public transportation, and places of employment.

Implementation guidance should clarify if a trail *through* a park which connects to other destinations is eligible.

d.04. ***4.60.070.B.2.a***

Components for routine accommodation of bicycle and pedestrian travel shall be incorporated, as appropriate, as part of construction projects, including sidewalks, bicycle facilities, rehabilitation and curb ramps, and elements to improve resilience, safety, and accessibility.

Implementation guidance should clarify what “as appropriate” means, especially along rural roads that are not intended for or designed to incorporate bicycle and pedestrian travel. The guidance might not require a jurisdiction to activate extensive approval and feasibility procedures on the definition of a project that already has “appropriate” components.

d.05. ***4.60.070.B.3***

Each jurisdiction may spend no more than 5% of its allocation under the Existing Neighborhood Streets and Roads Repair and Maintenance Program on road expansion or capacity-increasing projects per year. Before a jurisdiction can expend funds pursuant to this paragraph, every local street and road within the jurisdiction shall reach a Pavement Condition Index score of 65 or above.

Implementation guidance could clarify what “local” streets and roads are, that are required for meeting the PCI score limit. Within the County, roads are classified as

“Local County” (37.1%) or “Local Residential” (11.6%). Are both subject to the limit? Or does this only refer to streets and roads within communities or cities?

d.06. ***4.60.070.B.7***

Jurisdictions shall prioritize funding for existing neighborhood roads with the lowest Pavement Condition Index score or in project areas in need of improvement in disadvantaged neighborhoods and communities.

Implementation guidance should clarify that neighborhood roads with the lowest Pavement Condition Index and surrounding roads can be included as part of the project in order to take advantage of economies of scale and minimize mobilization costs by performing work throughout a specific area. Illustrative example: A 0.15-mile segment with a PCI of 1 should be at or near the highest priority, but can these funds *only* be used on that road segment and then moving on to the next lowest segment, or can adjacent and nearby segments with higher – but still poor – PCI be included within the same project and also receive funding; or must prioritization by numerical PCI take precedence? Could a jurisdiction categorize a local neighborhood as containing a low average or median PCI and perform work throughout that area as a prioritization of “low PCI” or must the segment PCI take precedence?

Must the lowest PCI prioritization be interpreted for the entire segment-set or is there interpretive room for following cost effective maintenance practices to target the lowest PCI for each category of pavement preservation as shown in “The Concept of Pavement Preservation Chart” in Section 4.b Transportation – Pavement Conditions.

d.07. ***4.60.070.C.3***

Every street or road constructed or reconstructed in whole or in part with revenue from the Fund pursuant to this subsection shall include sidewalks, paths, walkways, or equivalent facilities, where feasible and according to the adopted Active Transportation Plan in each jurisdiction.

Guidance regarding “equivalent facilities” could clarify where Yield Roadways (refer to 4.60.070.H.1 below) already in use throughout the County would satisfy this requirement.

d.08. ***4.60.070.C.6***

All roadways receiving pavement reconstruction without pavement widening, rehabilitation, or an overlay, slurry seal, chip seal, or seal coat funded in whole or in part with revenue from the Fund pursuant to this subsection shall include accommodations for bicycle travel at a minimum by Class I and Class IV Facilities, unless there is insufficient right-of-way or if there are other physical constraints as determined by a licensed engineer.

Guidance could clarify if the “and” between Class I and Class IV is setting a standard that is set by these two classes or prescribing the installation of both sets of facilities into a project.

d.09. ***4.60.070.G.1.***

The average Pavement Condition Index score for each jurisdiction that receives funds under this section, including arterial, collector, and neighborhood streets, shall be maintained at a minimum average level of 70.

Guidance could clarify prospective consequences, if any, if minimum average PCI not met, as well as when and how that might be measured. For some jurisdictions this Initiative’s funding is essential to achieve this goal and by including it as evaluative performance it should be clarified whether or not jurisdictions could be penalized for failure to meet this standard by withholding the funds needed to achieve it. Is a minimum average of PCI of 70 required by a certain timeframe, or is that to be measured and averaged over the entire lifespan of the Initiative?

d.10. ***4.60.070.H.1***

An Active Transportation Analysis addressing Class I, II, III, and IV Facilities that promote connectivity and complete streets throughout the county region and its urbanized areas

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Guidance to define “urbanized” areas within the unincorporated regions of the County could be augmented with Active Transportation considerations for “rural” communities throughout the County. The County’s Rural Area Complete Streets (TR-A.24) contains options for active transportation beyond the 4 class facilities that are currently in use throughout the County. The complete streets facilities according to the General Plan are as follows:

TR-A.24 Rural Area Complete Streets
The County shall strive to serve all users on rural roadways in the county by designing and constructing rural roadways to serve safely bicyclists, transit passengers, and agricultural machinery operators. This includes:
a. Constructing wide shoulders to provide a safe space for bicyclists, and agricultural machinery vehicles;
b. Removing visual barriers along rural roads, particularly near intersections, to improve the visibility of bicyclists; and
c. Coordinating with local jurisdictions and Fresno COG to ensure multimodal connections are established and maintained …

The County’s functional classification system recognizes differences in roadway functions and standards between urban/suburban areas and rural areas, but the road classifications in the County General Plan provide direction according to road classification in the following table.

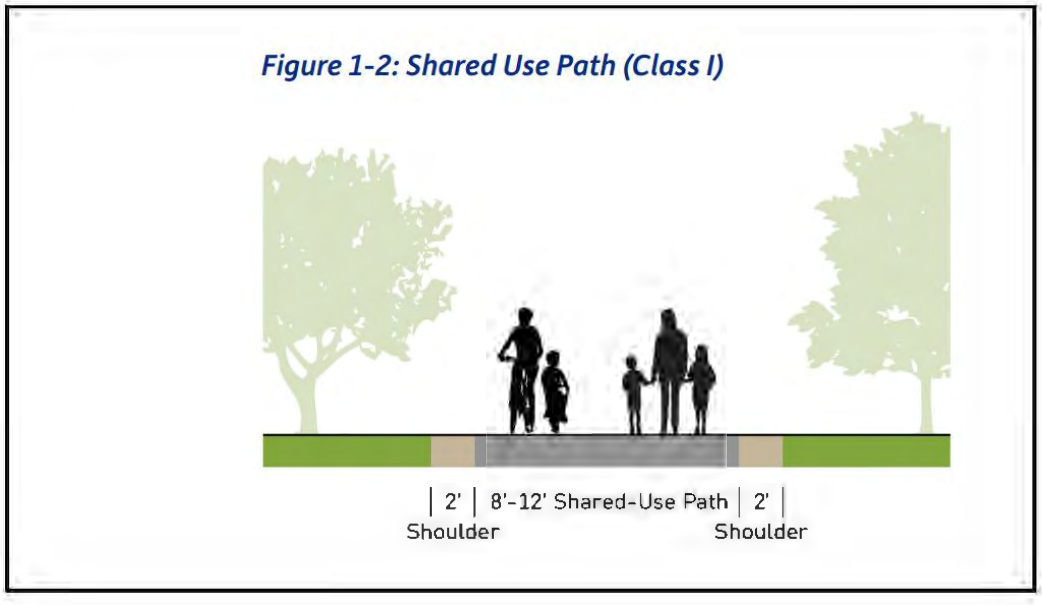
E.8.d-1 County General Plan Road Classification Table

Road Classification	Bike Facilities*	Transit Facilities
Expressway	I	Out of the travel way
Super Arterials	I, II, III	Urban: Out of the travel way Rural: Shoulder or turnout
Arterials	I, II, III	Out of the travel way Rural: road shoulder or turnout (context dependent)
Collectors	I, II, III	Out of the travel way of the road
Local Roads	Not specified	Not specified

* Class I are mixed-use pedestrian/bicycle facilities physically separated from the roadway. Class II and III are bike lanes on the road. Class IV cyclist-only facilities that are separated from the roadway by delineators.

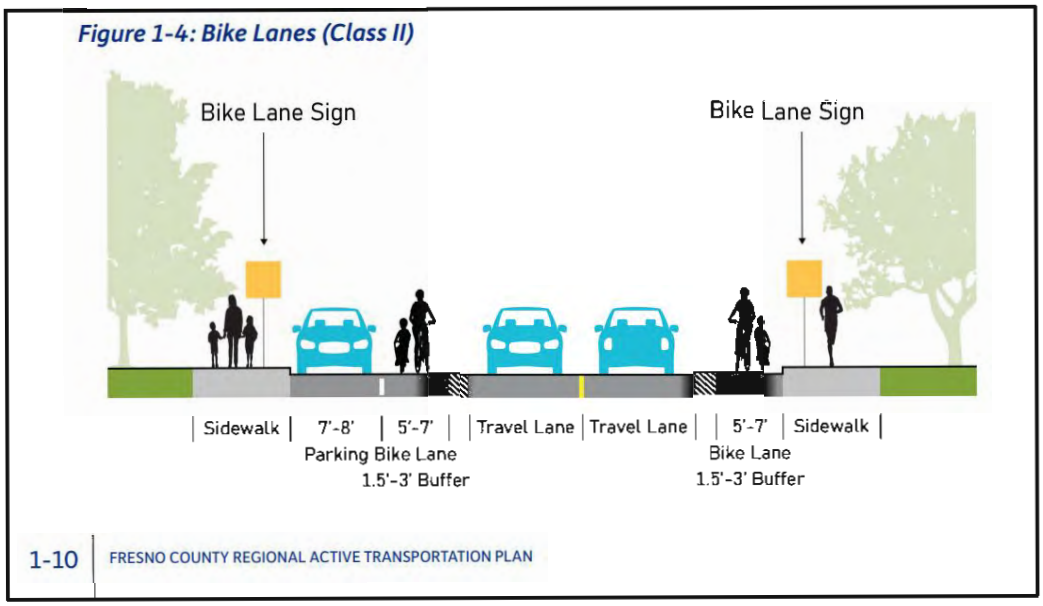
There are six types of pedestrian and bicycle facilities in use throughout the county-region (Fresno County Active Transportation Plan) to provide pedestrian and bicycle facilities, including:

E.8.d-2 Class I: Shared Use Path Figure



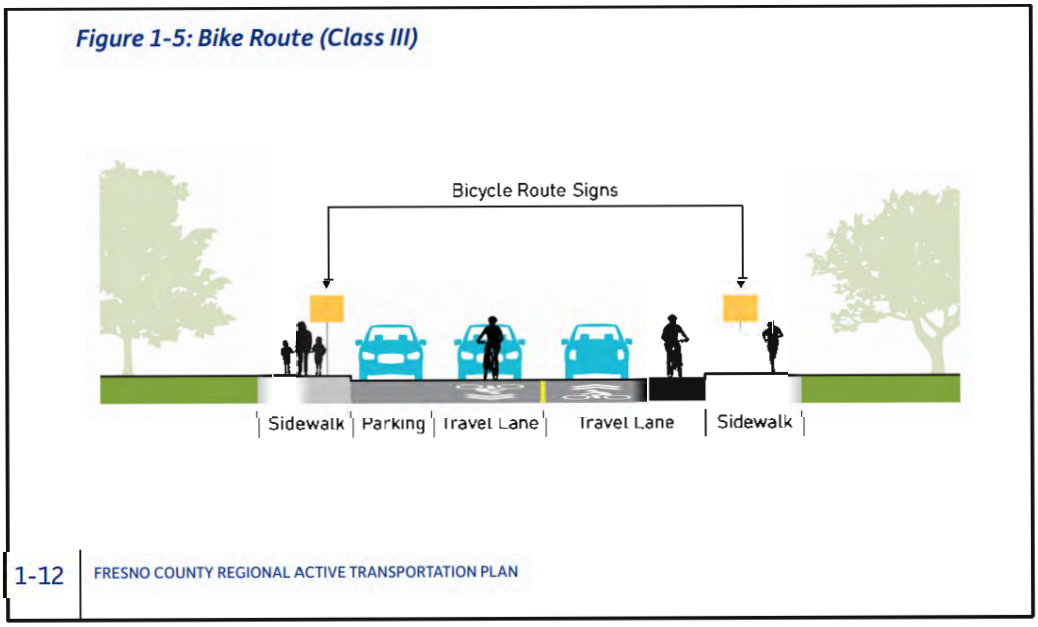
Separated from the road and are for both pedestrians and bicyclists to share the travel way of the path.

E.8.d-3 Class II: Bike Lanes Figure



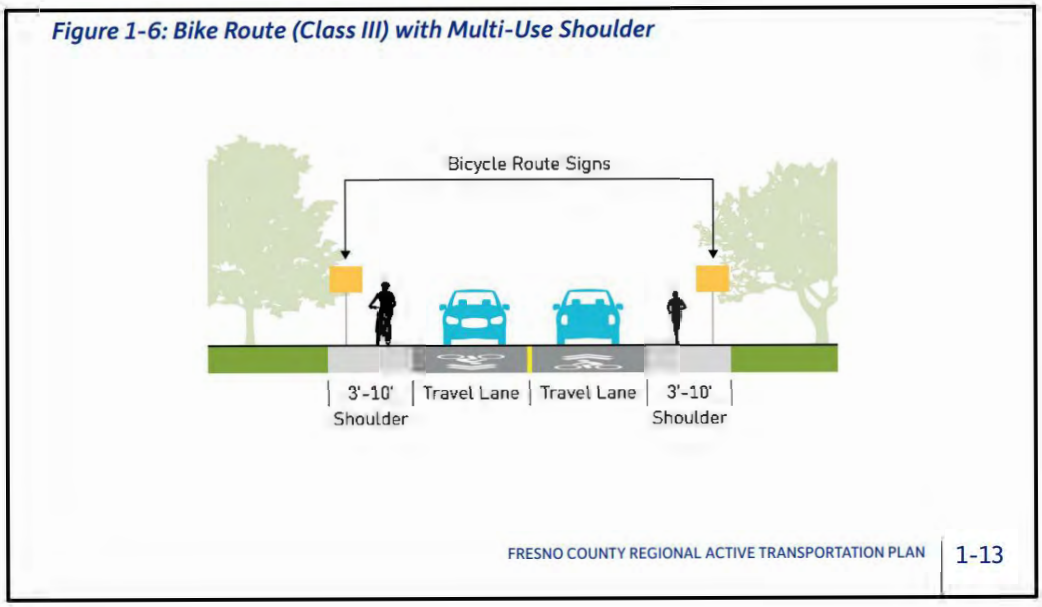
Bike lanes are on the road and distinct from pedestrian sidewalks.

E.8.d-4 Class III Bike Route Signs Figure



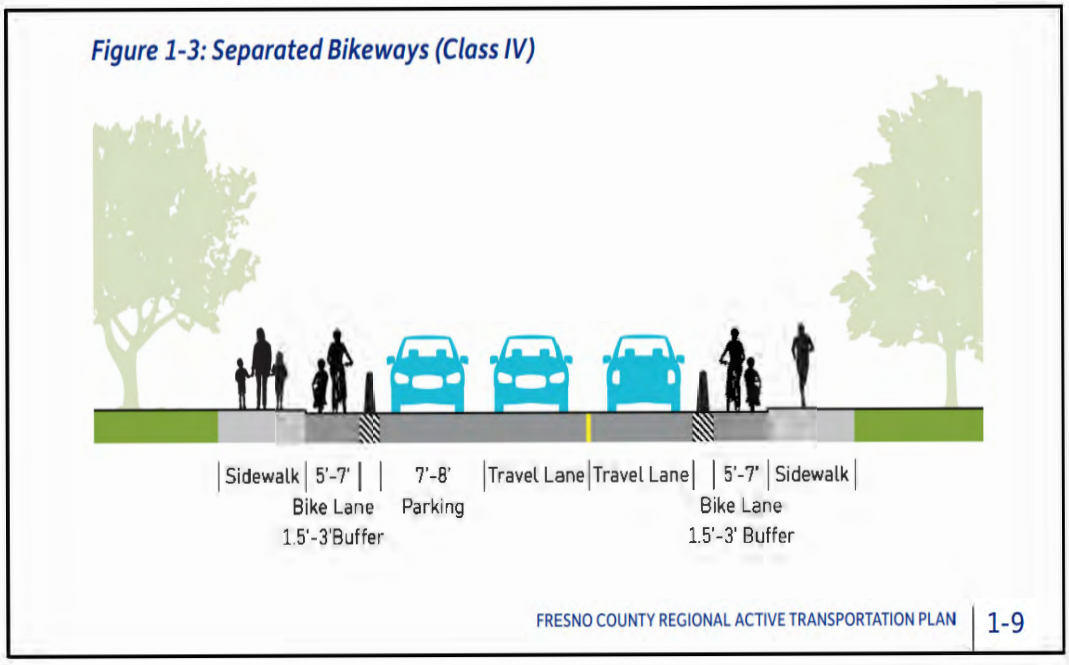
Bikes share the road with cars, separate from pedestrian sidewalks.

E.8.d-4 Class III Bike Routes Multi-Use Shoulder Figure



Bicycles and pedestrians share use of 3'-10' shoulders

E.8.d-5 Class IV Separated Bikeways Figure

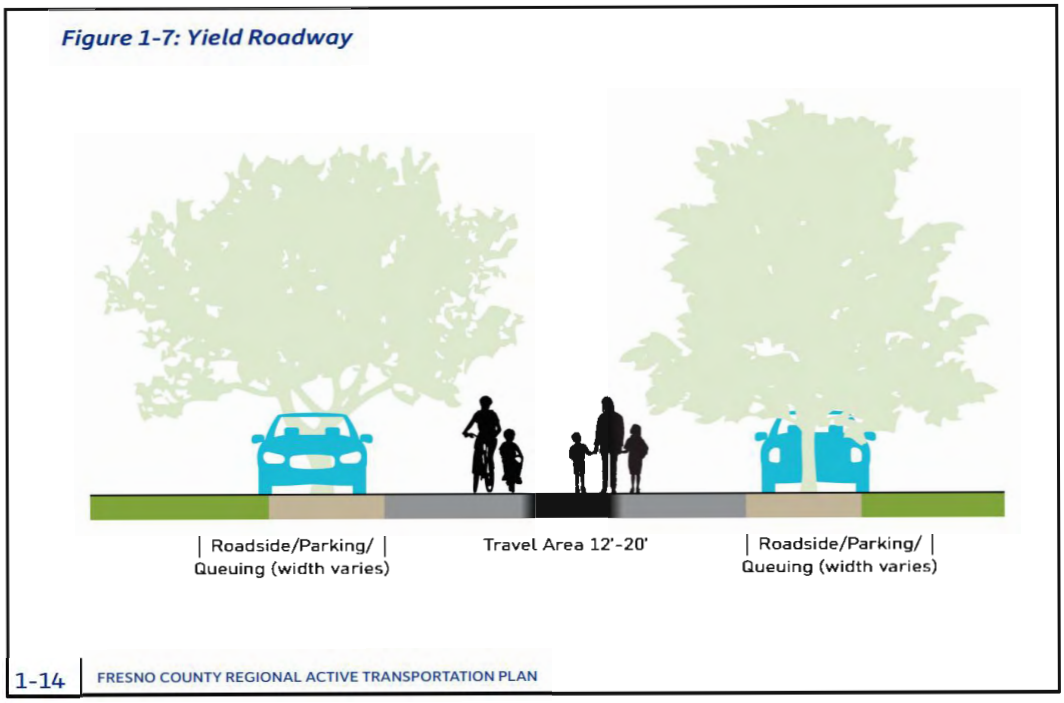


Bicycles and pedestrians each travel on their own independent pathways that are separated from vehicles. Bicycle lanes may be on the road but are separated by a vertical element/barrier from the vehicular travel way.

While the Initiative only references Class I, II, III, and IV Active transportation facilities, the Regional Active Transportation plan also references Yield Roadways:

Yield Roadways – Pedestrians, cyclists, and vehicles share the travel area of roads. These are particularly useful in rural areas as they are designed for carrying fewer than 400 daily trips and are limited in width to 12'-20' to encourage slow speeds.

E.8.d-6 Yield Roadway Figure



The concept of complete streets is a stated goal of both the General Plan and the Initiative. While the Initiative specifically encourages Class I and Class IV bicycle facilities, the General Plan provides specifically for Class I, II, or III on non-local roads aside from expressways (Class I only). Since Class I (mixed use for pedestrians and bicyclists) are eligible for funding within the Initiative, the County could implement the required facilities of the Initiative in compliance with the General Plan for these roads. While the initiative suggests that any reconstruction of expressway, super-arterial, arterial or collector road shall include, at minimum, a striped shoulder with a minimum width of four feet, such a striped shoulder would be incompatible with General Plan guidance for expressway construction as only Class I facilities are permitted. This would not make maintenance of expressways ineligible for funding under the Initiative unless the construction had a road widening element as the condition is contingent on "feasibility."

As the Regional Active Transportation Plan is referenced as the functioning guide for implementing these elements, all six types of pedestrian and bicycle facilities would satisfy the requirements in the Initiative for complete streets. The requirements for

Active Transportation, however, would render routine maintenance for existing roads with Class II Bike Lanes, Class III (both Bike Route with Multi Use Shoulder and Bike Route), and Yield Roadways ineligible for funding for funding with this measure if there are no physical constraints and sufficient right of way, directing the funding toward maintenance projects with Class I and Class IV facilities or constructing Class I or Class IV facilities. 4.60.070.C.3

e. Findings and Conclusions

The Initiative would have the greatest impact on funding for transportation infrastructure as it provides a $5.584 billion dollar investment in the region of Fresno County.

e.01. Fiscal Impact

Approximately $5.584 billion dollars would be generated using a half-cent (0.5%) sales tax. In its first year, this would be approximately $76 million for neighborhood streets and roads, $29 million for public transportation, $4.7 million for regional streets, $4.7 million for access and innovation, $1.2 million for the Fresno Yosemite Airport, and $1.2 million for administration. The neighborhood streets and roads program would be allocated to each jurisdiction, with the City of Fresno receiving approximately 49%, the County of Fresno receiving approximately 23%, the City of Clovis receiving 12%, the Cities of Sanger, Reedley, and Selma receiving approximately 2% of the funds, the Cities of Kerman, Coalinga, Parlier, Kingsburg and Mendota receiving approximately 1-2% of the funds, and the Cities of Orange Cove, Firebaugh, Fowler, Huran and San Joaquin receiving less than 1% of the funds. The Public Transportation Program would be allocated to the three local transit agencies currently operating in the region: 70% for Fresno Area Express, 20% for Fresno County Regional Transit Agency, and 10% for Clovis Transit. The regional streets portion would be allocated competitively, as well as any grant funds for access and innovation program, if available from the access and innovation program after a zero-fare transit program is implemented.

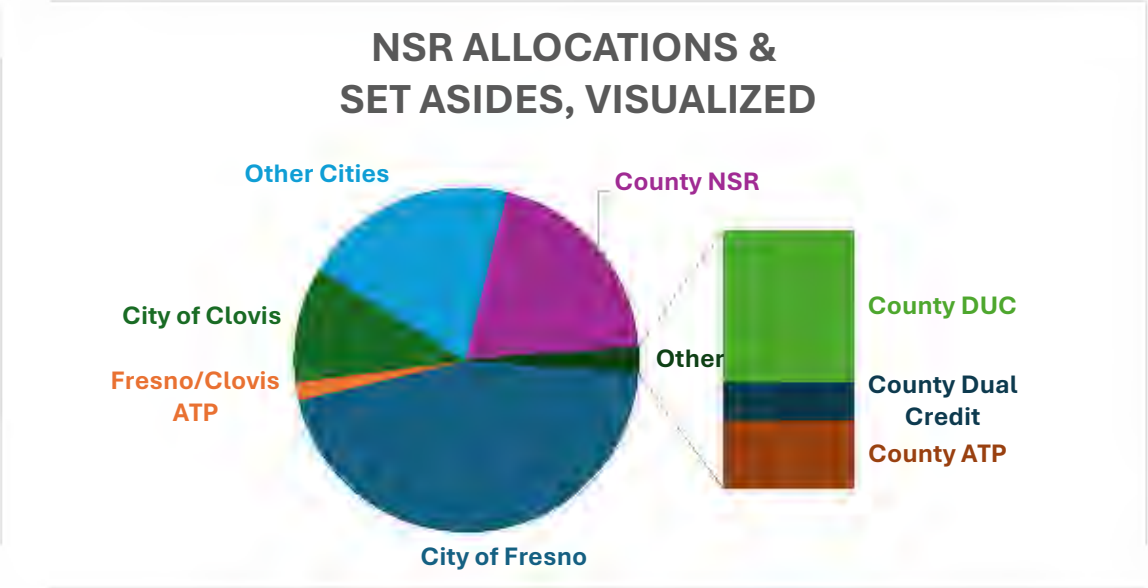
e.02. Consistency with County Plans and Planning and Zoning

The Initiative places restrictions on the funding provided that is not consistent with the County of Fresno 2024 General Plan provisions that seek to accommodate future growth, particularly programming capacity improvements based on system needs, LOS objectives, and congestion, particularly for countywide population projections and state mandated growth initiatives (e.g. Regional House Needs Allocations). The Initiative is consistent with the principal direction of the 2024 General Plan, such as in preservation of the existing roadway system, use of pavement management information to improve road conditions, expanding public transit, Complete Streets, Safe Routes to Schools, investment in disadvantaged unincorporated communities, interagency coordination, and using local funds to pursue matching state and federal funds.

e.03. Impacts on Funding for Infrastructure

The Initiative's investment of approximately $5.584 billion over 30 years would positively impact the region's transportation infrastructure. The Initiative establishes measurable countywide outputs: a minimum average Pavement Condition Index of 70 for funded jurisdictions; at least 120 miles of new Class I or Class IV facilities by 2057, including 84 miles assigned collectively to Fresno and Clovis and 36 miles assigned to the County and other agencies (collectively); and at least 150 Safe Routes to School projects, including 105 assigned to Fresno and Clovis and 45 assigned collectively to the remaining cities and County. Up to 20% of the 120-mile Class I/IV requirement may be met through routine maintenance. Additionally, the County would be subject to a 12-15% set-aside requirement (to be determined annually, by FCOG) for the maintenance and improvement of Disadvantaged Unincorporated Community roads until "identified needs have been met, the average Pavement Condition Index score for all disadvantaged unincorporated communities reaches 70, and each local road within all disadvantaged unincorporated communities attains a Pavement Condition Index score of at least 65." The expected requirements for the County and Incorporated Cities include specific "set asides" for bike trails (ATP) and disadvantaged communities (DUC, County-specific requirement) are shown in the table below:

E.8.e-01 NSR Allocations & Set Asides Visualized Chart



Jurisdictions will receive funding to improve the conditions of their very worst roads. The prioritization of which roads would receive funding, however, is restricted in a way that deviates from a recognized, cost-effective industry-standard pavement maintenance practices. This deviation from industry-standard practices will result in a lower average PCI but better roads might deteriorate into conditions that are more expensive to maintain, depending on how much jurisdictions are able to allocate their funds toward

their higher ADT roads and able to optimizing their funds to take advantage of the cost-effective industry standards shown in “The Concept of Pavement Preservation” table E.4.b-6, above.

Schools, local neighborhood roads, bicycle, pedestrian, and transit infrastructure will be improved with the Initiative’s funds, leaving the various jurisdictions to allocate or secure additional funds outside of the Initiative for regional roads as they are able. For the County of Fresno, this will be a particular challenge with its custody of many of the roads that connect the various communities throughout the region. The County will be tasked, whether this Initiative passes or not, with securing other sources of funding to maintain and construct major roads throughout the County.

Schools, specifically, will experience formalized coordination between school districts and the jurisdictions providing transportation infrastructure that will build on existing efforts to provide SRTS. The Initiative funding will establish prioritization of projects, increased coordination between jurisdictions and school districts, increased transparency through public meetings, and increased analysis of need, but without formal definitions of how large the mandated 150 SRTS projects will be, the scale of the impact and the amount of the funds set aside for SRTS will depend on implementation guidance developed at a later point.

Public transit will receive a substantial investment, which will have a significant impact on those who rely on it for their sole source of independent travel, in large part due to a zero-fare transit program for the disabled, veterans, active-duty personnel, seniors, children, and students. While the impact will be substantial for the individuals using the services, current usage of the transit system in Fresno-Clovis for commuting is less than one percent. This means that, while the funding may result in increased ridership, the benefit will be experienced by a small minority of County residents.

Regional infrastructure will be funded on a competitive basis, but the Initiative funding will decrease to 13% of current Measure C funding. Congestion analysis shows LOS dropping as a result over the lifetime of the Initiative. RTMF and other grants may decrease some of that impact.

The Fresno Yosemite International Airport will continue to receive funds which it can leverage as matching funds, which, if it is as successful at that leveraging as to continue to achieve a 9:1 matching ratio, might result in a $556 million dollar investment in the airport for the $55.8 million investment from the Initiative.

Fresno County needs a combined strategy of pavement preservation and targeted safety, operational, interchange, bottleneck, freight, and selected capacity improvements. The 2049 RTP/SCS project network provides localized benefits but leaves substantial freeway, interchange, arterial, and other regional needs unmet.

Transit and active transportation provide meaningful benefits for transit-dependent, but neither substitutes for targeted roadway and regional-system improvements nor materially changes countywide congestion by itself.

The Initiative provides $5.584 billion for transportation infrastructure over the course of the 30 years of the Initiative, with several constraints on how the funds may be used. The funds will be inadequate to cover all of the region's transportation infrastructure needs and establishes prioritization of how the funds will be used. It prioritizes the roads in the worst pavement conditions rather than on average daily travel and standard industry pavement condition strategies. It prioritizes neighborhood and local roads over regional transportation. It prioritizes areas surrounding schools, public transit for those who depend on it as their primary means of independent travel and infill new developments. The constraints within the measure will increase transparency and decrease amount of "very poor" local neighborhood roads throughout the County, but the jurisdictions will not be provided resources with this measure to meet regional road demands, maintaining the most cost-effective system-wide maintenance program and to use these funds to invest in new growth areas. The Initiative provides a prioritization of precisely how the $5.584 billion would be spent over the next 30 years, which will augment but not satisfy the regional and jurisdictional transportation infrastructure needs.

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Appendix G. Other Documents / Sources Referenced in the Initiative and Report

References to other documents and sources in the Initiative were generated using AI tools. All content was reviewed by staff, but staff cannot guarantee complete accuracy.

1. Other Documents

- California Streets & Highways Code
- California Revenue & Taxation Code
- California Government Code
- California Vehicle Code
- California Public Utilities Code
- California Air Resources Board
- California Department of Tax & Fee Administration
- California Department of Finance
- California Highway Design Manual
    - Bicycle Transportation Design
- California Manual on Uniform Traffic Control Devices
- California Design Information Bulletin DIB 89
- Americans with Disabilities Act
- United States Code

2. State Laws Cited Through the Initiative

1. Streets and Highways Code § 890.4(a)
   Cited in 4.60.020.C
2. Streets and Highways Code § 890.4(b)
   Cited in 4.60.020.D
3. Streets and Highways Code § 890.4(c)
   Cited in 4.60.020.E
4. Streets and Highways Code § 890.4(d)
   Cited in 4.60.020.F
5. Revenue & Taxation Code Div. 2 Part 1.6 (commencing § 7251)
   Cited in 4.60.030.A, B, D; 4.60.250; 4.60.280.D; 4.60.290; 4.60.300
6. Revenue & Taxation Code Div. 2 Part 1 (commencing § 6001)
   Cited in 4.60.250
7. Revenue & Taxation Code Div. 2 Part 1.7 (commencing § 7280)
   Cited in 4.60.290
8. Revenue & Taxation Code § 6203
   Cited in 4.60.260.B
9. Revenue & Taxation Code § 6067
   Cited in 4.60.270

10. Revenue & Taxation Code § 6366
    Cited in 4.60.280.C.2
11. Revenue & Taxation Code § 6366.1
    Cited in 4.60.280.C.2
12. Revenue & Taxation Code § 6701
    Cited in 4.60.260.A.4
13. Revenue & Taxation Code § 6702
    Cited in 4.60.260.A.4
14. Revenue & Taxation Code § 6711
    Cited in 4.60.260.A.4
15. Revenue & Taxation Code § 6715
    Cited in 4.60.260.A.4
16. Revenue & Taxation Code § 6737
    Cited in 4.60.260.A.4
17. Revenue & Taxation Code § 6797
    Cited in 4.60.260.A.4
18. Revenue & Taxation Code § 6828
    Cited in 4.60.260.A.4
19. Government Code § 65302.10(a)(2)
    Cited in 4.60.070.B.6
20. Government Code §§ 87200 et seq.
    Cited in 4.60.170.J
21. Government Code § 54950 (Brown Act)
    Cited in 4.60.170.I
22. Vehicle Code § 22352.5
    Cited in 4.60.070.F.3
23. Vehicle Code § 4000
    Cited in 4.60.280.B.2.a; 4.60.280.C.7
24. Vehicle Code § 9840
    Cited in 4.60.280.B.2.a; 4.60.280.C.7
25. Public Utilities Code § 21411
    Cited in 4.60.280.B.2.a; 4.60.280.C.7

3. Federal Laws Cited Through the Initiative

1. 26 U.S.C. § 267(b)
   Cited in 4.60.260.B.1
2. Americans with Disabilities Act (ADA)
   Cited in 4.60.070.B.2.g; 4.60.070.B.2.h

4. Referenced Technical Manuals / Design Standards

1. California Highway Design Manual, Chapter 1000 (“Bicycle Transportation Design”)
   Cited in 4.60.070.C.9.a.ii; 4.60.070.C.9.a.vi; 4.60.070.C.9.b; 4.60.070.C.10
2. California Manual on Uniform Traffic Control Devices (CA MUTCD)
   Cited in 4.60.070.C.9.b
3. Caltrans Design Information Bulletin (DIB) 89 – Class IV Bikeway Guidance
   Cited in 4.60.070.C.9.c
4. Robert’s Rules of Order
   Cited in 4.60.170.I

5. Sources in the Report

- U.S. Bureau of Labor Statistics, Consumer Price Index Statistics
- U.S. Bureau of Labor Statistics, Compensation 2024 to 2025
- U.S. Bureau of Labor Statistics, Compensation 2025 to 2026
- Social Security Administration, Average Wage Indexing Series
- Congressional Budget Office, Budget and Economic Outlook: 2026 to 2036
- 2025 Pavement Management Program Update, Nichols Consulting Engineers
- Fresno Regional Analysis Technical Memorandum, Nichols Consulting Engineers
- General Plan - County of Fresno
- Active Transportation Plan - Fresno Council of Governments
- Active Transportation Plan – City of Fresno
- Fresno COG Traffic Model Summary Performance Measures
- Fresno COG, Fresno-Clovis Metropolitan Area Congestion and Level of Service Maps 2023
- National Weather Service
- YouTube “Fresno County Board of Supervisors Meeting 7/14/2026 (closed captioning transcript)

4. Robert's Rules of Order
   Governs Citizens Oversight Committee meetings
   Cited in 4.60.170.I

5. Sources in the Report

- U.S. Bureau of Labor Statistics, Consumer Price Index Statistics
- U.S. Bureau of Labor Statistics, Compensation 2024 to 2025
- U.S. Bureau of Labor Statistics, Compensation 2025 to 2026
- Social Security Administration, Average Wage Indexing Series
- Congressional Budget Office, Budget and Economic Outlook: 2026 to 2036
- 2025 Pavement Management Program Update, Nichols Consulting Engineers
- Fresno Regional Analysis Technical Memorandum, Nichols Consulting Engineers
- General Plan - County of Fresno
- Fresno COG Traffic Model Summary Performance Measures
- Fresno COG, Fresno-Clovis Metropolitan Area Congestion and Level of Service Maps 2023
- National Weather Service

Appendix H. Board Item in full

- **Agenda item**
- **Resolution**
- **Certificate of Sufficiency**
- **Notice of Intention**
- **Proponent Statement of Acknowledgement**
- **Full Text of Measure**
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- **Affidavit of Publication**
- **Blank Copy of Petition**
- **Errata and Redlined Resolution**
- **Additional Information (Economic Analysis)**

Board Agenda Item 7.1

DATE: July 14, 2026

TO: Board of Supervisors

SUBMITTED BY: James A. Kus, County Clerk/Registrar of Voters

SUBJECT: Adopt a Resolution Calling an Election for the Fresno County Transportation Improvement Act Initiative Measure or Refer the Initiative Measure to a County Agency or Agencies for a Report Pursuant to Elections Code Section 9111

RECOMMENDED ACTION(S):

1. **Receive "Certificate of Sufficiency" dated July 8, 2026, with respect to the initiative petition entitled "Fresno County Transportation Improvement Act" filed with the Fresno County Clerk/Registrar of Voters on January 26, 2026, pursuant to Elections Code Section 9115; and**

2. **Pursuant to California Elections Code Section 9118, your Board must take action on one of the following:**

   a) **Submit the "Fresno County Transportation Improvement Act" without alteration, to the voters pursuant to Elections Code Section 1405; and adopt Resolution calling an election for the "Fresno County Transportation Improvement Act" to be consolidated with the November 3, 2026, Consolidated Statewide General Election; or**

   b) **Refer the "Fresno County Transportation Improvement Act" to a County agency or agencies for a report on the effect of the proposed ordinance (e.g., fiscal impact), pursuant to Elections Code Section 9111, and direct staff to present the report to your Board no later than August 13, 2026, at which time your Board would adopt a Resolution calling for an election pursuant to Elections Code Section 1405.**

The recommended actions will allow your Board to conduct its ministerial duties regarding the initiative petition entitled "Fresno County Transportation Improvement Act" ("Initiative Measure"). After receipt of the "Certificate of Sufficiency" from the Fresno County Clerk/Registrar of Voters, your Board is required to take action under California Elections Code Section 9118 on the Initiative Measure, as detailed in Recommended Action No. 2. This item is countywide.

ALTERNATIVE ACTION(S):

There are no viable alternative actions.

FISCAL IMPACT:

Should your Board decide to approve Recommended Action No. 2(a), the cost to consolidate the election for the Initiative Measure with the November 3, 2026, Consolidated Statewide General Election is estimated by the Fresno County Clerk/Registrar of Voters to be $606,000 in NCC. Sufficient appropriations and estimated revenues will be included in County Clerk-Elections Org 2850 FY 2026-27 Recommended Budget request.

DISCUSSION:

The Fresno County Clerk/Registrar of Voters ("Registrar") has determined that the proponents of the Initiative Measure, Lynn Ashbeck, Jerry P. Dyer, Veronica Garibay, and Joan E. Eaton (the "Proponents"), collected more than the minimum number of valid Fresno County registered voter signatures to qualify the Initiative Measure for placement on an election ballot for consideration of Fresno County voters.

On January 26, 2026, pursuant to Elections Code Section 9100 *et seq.*, the Proponents submitted to the Registrar, a Notice of Intention to Circulate Petition to adopt an ordinance that would impose a Countywide one-half percent (0.5%) transactions and use tax to be used for specified transportation purposes for a period of thirty (30) years.

The proposed ordinance provides for the following:

- Use of Proceeds: Sixty-five percent of the proceeds would be allocated to the County and incorporated cities to repair, rebuild, and maintain roads to improve travel time, accessibility, safety, and public health. Each jurisdiction will annually receive a base allocation, and additional allocations will be based on population and public roadway miles. Twenty-five percent of the proceeds would be allocated to support public transportation services, with 10% going to Clovis Transit, 70% to Fresno Area Express, and 20% to the Fresno County Rural Transit Agency. One percent of the proceeds would be allocated to the Fresno Yosemite International Airport. Four percent of the proceeds would be allocated to fund regional street, road, and highway improvement projects. Four percent of the proceeds would be allocated to support zero-fare public transit programs for people with disabilities, veterans, seniors, children, and students, and to award grants for clean-energy projects and future transportation technologies. The remaining 1% of the proceeds would be allocated to the Fresno Council of Governments ("FCOG") for administrative and oversight purposes.

- Accountability: Tax proceeds will be deposited into a fund maintained by the County and will be appropriated to the FCOG, who will annually allocate the proceeds to the County, incorporated cities, and local transit agencies. FCOG will develop program requirements, complete studies, review fiscal and compliance reports, and conduct annual independent audits. A Citizens Oversight Committee ("Committee") of 11 members will be appointed by the FCOG Policy Board, and the Committee will conduct public meetings held at least quarterly, review reports, and oversee annual fiscal and compliance audits.

On February 17, 2026, the Proponents filed with the Registrar adequate proof of publication for the Notice of Intention and the Ballot Title and Summary, pursuant to Elections Code Sections 9105 and 9108, and were permitted to circulate the initiative petition for signatures.

Under Elections Code Section 9118, for the initiative petition to be declared sufficient, registered voters equal to no less than 10% of the entire vote cast in Fresno County for all candidates for Governor in the last gubernatorial election preceding publication of the Notice of Intention must sign the initiative petition (i.e., a minimum of 21,909 valid signatures). On April 14, 2026, the Proponents filed the initiative petition with the Registrar containing 32,562 signatures.

In accordance with Elections Code Sections 9114 and 9115, the Registrar applied a random sampling technique to verify signatures on the initiative petition. On July 8, 2026, the Registrar determined that the Proponents collected the required number of qualified signatures to permit, subject to your Board's approval, the Initiative Measure to be placed on a ballot.

Upon presentation of the Registrar's Certificate of Sufficiency, Elections Code Section 9118 requires your Board to either submit the Initiative Measure, without alteration, to the voters by adopting a Resolution calling

for an election for the Initiative Measure to be held on the November 3, 2026, Consolidated Statewide General Election (Recommended Action No. 2(a)) or order a report on the effect of the Initiative Measure from any County of Fresno agency or agencies to be presented to the Board no later than August 13, 2026, at which time the Board would be required to call an election for the Initiative Measure (Recommended Action No. 2(b)).

Pursuant to Elections Code Section 9111, the report may discuss the Initiative Measure's fiscal impact; effect on the internal consistency of the County's General Plan, the consistency between planning and zoning, and its effect on land use and the availability and location of housing; impact on infrastructure funding, including whether the Initiative Measure would be likely to increase infrastructure costs or savings and maintenance to residents and businesses; impact on retaining/attracting County business and employment; impact on uses of vacant parcels of land, agricultural land, open space, traffic congestion, existing business districts, and developed areas designated for revitalization; and "any other matters" of interest to your Board.

Should the Board decide to approve Recommended Action No. 2(b), your Board may order a report to be presented at its next regular meeting scheduled for August 11, 2026 or call a special meeting by August 13, 2026.

The legal deadline for your Board to call an election for this Initiative Measure to be consolidated with the November 3, 2026, Consolidated Statewide General Election is August 7, 2026. If your Board does not call a special meeting and order the report to be presented by August 7, 2026, Elections Code Section 1405 would require your Board to either call an election for the Initiative Measure to be consolidated with the March 7, 2028, Statewide Primary Election or order a Special Election to be held no less than 88 days nor more than 103 days after the date the Board orders the Special Election.

ATTACHMENTS INCLUDED AND/OR ON FILE:

Resolution
On file with Clerk - Certificate of Sufficiency
On file with Clerk - Notice of Intention
On file with Clerk - Proponent Statement of Acknowledgement
On file with Clerk - Full Text of Measure
On file with Clerk - Title and Summary
On file with Clerk - Affidavit of Publication
On file with Clerk - Blank Copy of Petition

CAO ANALYST:

Amy Ryals

BEFORE THE BOARD OF SUPERVISORS

OF THE

COUNTY OF FRESNO, STATE OF CALIFORNIA

IN THE MATTER OF:

CALLING A COUNTYWIDE ELECTION TO BE CONSOLIDATED WITH THE STATEWIDE GENERAL ELECTION TO BE HELD ON NOVEMBER 3, 2026, FOR THE PURPOSE OF SUBMITTING TO THE ELECTORS OF FRESNO COUNTY AN INITIATIVE MEASURE RELATING TO THE ESTABLISHMENT OF A NEW COUNTYWIDE RETAIL TRANSACTIONS AND USE TAX	) RESOLUTION

WHEREAS, on April 14, 2026, Proponents submitted to the Fresno County Clerk/Registrar of Voters a citizens initiative petition ("Petition") signed by not less than 10% of the entire vote cast in Fresno County for all candidates for Governor at the last gubernatorial election preceding the publication of the Proponents' Notice of Intention to Circulate a Petition; and

WHEREAS, the Petition proposes an ordinance, attached hereto as Exhibit A, to create a new retail transactions and use tax to be spent for the purposes specified in the ordinance to benefit the County of Fresno, the incorporated cities in Fresno County, and local transit agencies ("Measure"); and

WHEREAS, on July 8, 2026, pursuant to Elections Code Section 9115, subdivision (b), the Fresno County Clerk/Registrar of Voters completed a full signature verification of the Petition, finding that the Petition is signed by the requisite number of qualified voters to declare the Petition sufficient; and

WHEREAS, on July 14, 2026, pursuant to Elections Code Section 9115, the Fresno County Clerk/Registrar of Voters certified the results of the examination of the Petition to the County of Fresno Board of Supervisors at its regular meeting; and

WHEREAS, pursuant to Elections Code Sections 1405, subdivision (a), and 9118, subdivision (b), the County of Fresno Board of Supervisors shall submit the Measure, without alteration, to the voters in the next statewide election; and

WHEREAS, a Statewide General Election will be held on November 3, 2026; and

WHEREAS, pursuant to Elections Code Sections 10400 *et seq*., the County of Fresno Board of Supervisors seeks consolidation of the countywide election on the Measure relating to the proposed ordinance with the November 3, 2026, Statewide General Election; and

WHEREAS, under Elections Code Sections 10400 *et seq*., the County of Fresno Board of Supervisors has the power and authority to order the consolidation of local elections with the Statewide General Election; and

WHEREAS, the Proponents have requested that the Measure be designated "Measure S"; and

WHEREAS, approval of a majority of the electors voting upon the Measure is required for passage of the Measure.

NOW THEREFORE, be it resolved as follows:

1. The Board hereby calls, orders, and proclaims a countywide election at which the Measure relating to the proposed ordinance shall be submitted to the qualified voters of Fresno County pursuant to Elections Code Sections 1405, subdivision (a), and 9118, subdivision (b).
2. Under Elections Code Sections 10400 *et seq*., the Board hereby orders the countywide election for this Measure to be consolidated with the November 3, 2026, Statewide General Election and placed on the ballot at that election.
3. The Board acknowledges that the consolidated election will be held and conducted in the manner prescribed in Elections Code Section 10418.
4. The Fresno County Clerk/Registrar of Voters is designated as the elections official for the election, and the Fresno County Clerk/Registrar of Voters is hereby authorized and directed to provide all notices and take all other actions necessary to holding the election, including, but not limited to, providing notices of times within which arguments for and against are submitted.
5. The ballot question hereby approved for the election is as follows:

Fresno County Transportation Improvement Act. Shall the measure to fix neighborhood streets; repair and keep our roads in safe condition; improve safety for children walking and biking to school; improve public transportation, including free transit services for seniors, veterans, people with disabilities, and students; repair sidewalks and trails; by replacing Fresno County's existing half-cent transportation sales tax, initially providing approximately $110 million annually for 30 years, requiring independent oversight, annual audits, and local control, be adopted?

Yes ___ No ___

6. The Fresno County Clerk/Registrar of Voters is hereby authorized and directed to cause the complete text of the Measure to be printed as indicated in the attached Exhibit A in the County of Fresno Voter Information Guide, and a copy of the Measure shall be made available to a voter upon request.

7. The Measure shall be designated on the ballot by a letter, as provided in Elections Code Section 13116. Based on the Proponents' request, the Fresno County Board of Supervisors requests that the Fresno County Clerk/Registrar of Voters designate the ballot Measure as Measure "S."

8. Arguments in favor of and in opposition to the Measure and rebuttal arguments shall be permitted and shall be filed with the Fresno County Clerk/Registrar of Voters in accordance with applicable provisions of the Elections Code, including Sections 9161 through 9167. As provided in Elections Code Section 9162, the Fresno County Board of Supervisors or any member of the Board is hereby authorized to act as an author of any ballot argument prepared in connection with the election on the Measure.

9. The Fresno County Clerk/Registrar of Voters shall fix the dates for submission of arguments and rebuttals as provided for in the Elections Code.

10. Pursuant to Elections Code Section 9160, subdivision (b), the County Counsel is directed to prepare an impartial analysis of the Measure.

11. Pursuant to Elections Code Section 9160, subdivision (c), the Auditor-Controller/Treasurer-Tax Collector is directed to prepare a fiscal impact statement which estimates the amount of any increase or decrease in revenues or costs to the County of Fresno if the Measure is adopted.

12. The County Administrative Officer, or his designee, is authorized and directed to work with the Fresno County Clerk/Registrar of Voters and take all steps necessary to place the Measure and any associated materials on the ballot.

[SIGNATURE PAGE TO FOLLOW]

THE FOREGOING, was passed and adopted by the following vote of the Board of Supervisors of the County of Fresno this _____ day of _____, 2026, to wit:

AYES:

NOES:

ABSENT:

ABSTAINED:

_____
Garry Bredefeld, Chairman of the Board of Supervisors
of the County of Fresno

ATTEST:
Bernice E. Seidel
Clerk of the Board of Supervisors
County of Fresno, State of California

By: _____
Deputy

Exhibit A

Fresno County Transactions and Use Tax:
Fresno County Transportation Improvement Act Measure

Full Text of Measure

The people of the County of Fresno ordain as follows:

SECTION 1. TITLE.

This Act shall be known, and may be cited, as the "Fresno County Transportation Improvement Act."

SEC. 2. FINDINGS AND DECLARATIONS.

The people of the County of Fresno hereby find and declare all of the following:

(a) Fresno County is a great place to live and raise a family, but crumbling streets, unsafe roads, and lack of transportation options threaten our quality of life.

(b) Aging infrastructure, including the roads connecting our cities and the sidewalks on streets near our homes, schools, and parks, is in serious need of investment. An estimated $5.4 billion is needed to bring roads to "good" and "safe" condition and reduce deferred maintenance.

(c) Connected and well-maintained streets and roads, as well as enhanced safety improvements and traffic calming measures, facilitate access by first responders and reduce the time it takes to respond to emergencies.

(d) More than 100 people are killed and over 300 are severely injured on Fresno County roads each year, with pedestrians and bicyclists facing disproportionate risk. Improving roadway safety and building and maintaining protected pedestrian and bike lanes are urgently needed.

(e) Repairing, rebuilding, and maintaining the road system will improve travel time, accessibility, traffic safety, and public health, and will also address transportation related costs.

(f) Since 1986, transportation sales tax proceeds have largely been spent on state freeways and new roads, leaving local roads in disrepair. Pothole-riddled streets lead to increased costs for car maintenance and fuel, with repairs from pothole damage costing each driver up to $2,000.

(g) Approximately 80% of public transit users in Fresno County are entirely dependent on public transportation and lack access to a private vehicle. Current public transportation services do not transport people to all the places they need to go and often do not operate at the times people need to travel. Additionally, the rising cost of housing in Fresno County and the

lack of services in rural areas often force longer commutes and trips to access doctor's appointments and grocery stores.

(h) To keep Fresno County safe, livable, and thriving, we need to invest in projects to reduce traffic, fix crumbling streets and roads, and improve transportation countywide.

(i) The increasing frequency of major rain and flooding events, extreme heat, and forest fires requires investments in resilient infrastructure to decrease property damage and improve public health and safety.

(j) This Act is focused on the essential transportation improvements that will make our existing roads safer and more efficient, improve our transit system, and make life better for Fresno County residents by increasing access to jobs, education, healthcare, groceries, and other basic amenities.

(k) The time is now. Without this measure, we will experience further road deterioration; little to no investment in basic infrastructure like sidewalks, crosswalks, curbs, gutters, bike lanes, and trails; and a reduction in transportation services countywide.

(l) Funding from this Act is guaranteed to go directly to Fresno County transportation priorities and nothing else. The funds go directly into a special account politicians can't touch and, if the funds are misused, violators will be subject to possible criminal prosecution by the Fresno County District Attorney and State Attorney General.

(m) Independent audits every year and a Citizens Oversight Committee will ensure transparency and that funds are spent on transportation priorities as the voters intend.

SEC. 3. PURPOSE AND INTENT.

It is the intent of the people of the County of Fresno in enacting this Act to do all of the following:

(a) Fix what matters most by repairing and maintaining existing local streets and roads first.

(b) Keep people and our kids safe by investing in safety improvements, including enhanced lighting, road safety, and safe routes to school.

(c) Get people where they need to go efficiently by improving the accessibility and affordability of public transit systems that connect the public to essential services and amenities.

(d) Improve transportation alternatives by building and maintaining bikeways, pedestrian facilities, and public transit options.

(e) Keep the transportation system safe with repairs, retrofits, and safety upgrades, allowing students, seniors, and people with disabilities to travel safely.

(f) Allow seniors, students, people with disabilities, veterans, and active military personnel to access public transit at no cost.

(g) Create thousands of local quality jobs that pay a living wage and provide healthcare and retirement benefits for workers.

(h) Build strong, vibrant communities by adding shade, trees, and other features to combat heat, beautify transportation corridors, and ensure no neighborhood is left behind.

(i) Foster innovation by making smart investments that keep our county competitive and connected — now and in the future.

(j) Reduce air pollution to protect Fresno County's environment and quality of life.

(k) Protect taxpayers with strict accountability measures, including independent audits and citizens' oversight, to ensure funds are spent as intended by voters.

SEC. 4. FRESNO COUNTY TRANSPORTATION IMPROVEMENT ACT.

Chapter 4.60 is added to Title 4 of the Ordinance Code of Fresno County to read as follows:

Chapter 4.60. Fresno County Transportation Improvement Act

4.60.010. Title.

This chapter shall be known as the Fresno County Transportation Improvement Act.

4.60.020. Definitions.

For the purposes of this chapter, the following definitions shall apply:

A. "Act" means the Fresno County Transportation Improvement Act.

B. "Board of Supervisors" means the Fresno County Board of Supervisors.

C. "Class I Facilities" means bike paths or shared-use paths that provide a completely separated right-of-way designated for the exclusive use of bicycles and pedestrians, with crossflows by motorists minimized, as defined in subdivision (a) of Section 890.4 of the California Streets and Highways Code.

D. "Class II Facilities" means bike lanes that provide a restricted right-of-way designated for the exclusive or semi-exclusive use of bicycles, with through travel by motor vehicles or pedestrians prohibited, but with vehicle parking and crossflows by pedestrians and motorists permitted, as defined in subdivision (b) of Section 890.4 of the California Streets and Highways Code.

E. “Class III Facilities” means bike routes that provide a right-of-way on-street or off-street, designated by signs or permanent markings and shared with pedestrians and motorists, as defined in subdivision (c) of Section 890.4 of the California Streets and Highways Code.

F. “Class IV Facilities” means cycle tracks or separated bikeways that provide a right-of-way designated exclusively for bicycle travel adjacent to a roadway and that are separated from vehicular traffic by physical elements, including, but not limited to, grade separations, flexible posts, inflexible physical barriers, or on-street parking, as defined in subdivision (d) of Section 890.4 of the California Streets and Highways Code.

G. “Committee” means the Citizens Oversight Committee established pursuant to Section 4.60.170.

H. “Complete street” means a transportation facility that is planned, designed, constructed, operated, and maintained to provide comfortable and convenient mobility, and improve accessibility and connectivity to essential community destinations for all users, regardless of whether they are traveling as pedestrians, bicyclists, public transportation riders, or drivers.

I. “Council of Governments” means the Fresno Council of Governments.

J. “County” means the county government of the County of Fresno.

K. “County region” or “District” means the geographic territory of the County of Fresno, including all incorporated and unincorporated areas therein.

L. “Existing neighborhoods” means neighborhoods in existence within the adopted legal boundaries of each jurisdiction with permanent structures and public infrastructure or public utilities as of November 3, 2026.

M. “Fund” means the Fresno County Transportation Improvement Act Fund established by Section 4.60.040.

N. “Operative Date” means July 1, 2027.

4.60.030. Purpose.

This Act is adopted to achieve the following purposes, and directs that the provisions hereof be interpreted to accomplish those purposes:

A. To impose a retail transactions and use tax in accordance with the provisions of Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code.

B. To adopt a retail transactions and use tax ordinance that incorporates provisions identical to those of the Sales and Use Tax Law of the State of California insofar as those provisions are not inconsistent with the requirements and limitations contained in Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code.

C. To adopt a retail transactions and use tax ordinance that imposes a tax and provides a measure therefor that can be administered and collected by the California Department of Tax and Fee Administration in a manner that adapts itself as fully as practicable to, and requires the least possible deviation from, the existing statutory and administrative procedures followed by the California Department of Tax and Fee Administration in administering and collecting the California State Sales and Use Taxes.

D. To adopt a retail transactions and use tax ordinance that can be administered in a manner that will be, to the greatest degree possible, consistent with the provisions of Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code, minimizes the cost of collecting the transactions and use taxes, and at the same time, minimizes the burden of record keeping upon persons subject to taxation under the provisions of this Act.

E. To raise appropriate revenues to support transportation investments and programs to fix and maintain roads, improve neighborhood infrastructure, enhance public transit and rideshare options, and support active transportation. These programs include the following:

1. The Existing Neighborhood Streets and Roads Repair and Maintenance Program, which is intended to bring the road systems within the incorporated cities and the rural unincorporated areas of the county region, including arterials, collectors, and neighborhood streets, to an average Pavement Condition Index (PCI) of 70, which is within the "Good" category as indicated in the Pavement Management System (PMS) report. Funds under this program go directly to incorporated cities and the County for local street and road repair and maintenance, traffic safety, active transportation, bicycle and pedestrian facilities, and safe routes to school.

2. The Public Transportation Program, which addresses public transit systems and services throughout the county region. The funding under this program will be used to improve bus, microtransit, and mass transit frequencies; paratransit services; transit infrastructure, such as shelters and transfer centers; and point-to-point programs for seniors, children, students, veterans, active military personnel, and mobility-challenged individuals.

3. The Regional Connectivity Program, which facilitates the movement of people and goods, and the efficient delivery of services, by providing matching funds for major projects benefiting multiple jurisdictions within the county region that enhance connectivity along major corridors, strengthen connections within the urban area and between the cities and rural communities, and foster economic growth.

4. The Access and Innovation Program, which provides for planning and projects that enable new technologies, invest in zero-emission infrastructure, and increase access to destinations.

5. The Administration, Performance Measures, Requirements, and Indicators Program, which includes administration and planning activities of the Council of Governments.

F. To require annual audits and oversight by a citizens oversight committee to ensure funds are used exclusively for these purposes.

4.60.040. Fresno County Transportation Improvement Act Fund.

There is hereby established in the treasury of the County a special fund called the Fresno County Transportation Improvement Act Fund, which shall be maintained by the County.

4.60.050. Receipt of Proceeds.

All revenue generated by this Act shall be deposited into the Fresno County Transportation Improvement Act Fund.

4.60.060. Use of Proceeds.

A. Monies in the Fund shall be used to reimburse the County for the costs imposed by the California Department of Tax and Fee Administration to collect and administer the tax imposed by this Act, pursuant to Section 4.60.210.

B. The remaining monies in the Fund shall be appropriated each fiscal year to the Council of Governments solely for the purposes specified in this Act.

4.60.070. Existing Neighborhood Streets and Roads Repair and Maintenance Program.

A. 1. Sixty-five percent of the annual revenue in the Fund shall be allocated for the purpose of repairing, rebuilding, and maintaining the road system in the incorporated cities and the unincorporated areas of the county region to improve travel time and accessibility, traffic safety, and public health, as further provided in subsections B to H, inclusive.

2. a. The Council of Governments shall make separate allocations of funds under this section to each of the incorporated cities within the county region, for expenditures by each city within its own jurisdiction, and to the County, for expenditures in the unincorporated areas of the county region.

b. Funds allocated under this paragraph 2 shall be distributed as follows:

i. Each jurisdiction shall receive a base allocation of four hundred thousand dollars ($400,000) each year.

ii. Following allocations made under clause i, the balance of funding to be allocated under this section shall be allocated in proportion to each jurisdiction's population based on the most recent population estimates prepared by the California Department of Finance, weighted 80 percent, and in proportion to each jurisdiction's number of maintained public roadway miles as determined by the most recent Pavement Condition Survey, weighted 20 percent. The allocation to the County shall be based on the population and roadway miles in the unincorporated areas of the county region.

3. Each jurisdiction may use funds provided under this section for any program specified in this section.

4. Nothing in this Act prohibits the eligible jurisdictions from issuing bonds or using other financing mechanisms secured by future revenues to accelerate implementation of this section.

5. Jurisdictions may accumulate program funds for up to five years for match purposes or to fund large-scale projects.

6. All streets and roads constructed or improved in whole or in part with revenue from the Fund shall include complete street features, whenever feasible, to create an overall complete street system for neighborhoods. To reduce overall costs under a single contract, jurisdictions that receive funds under this section may also use other funding sources to address the entire roadway infrastructure under one project.

7. Eligible expenditures under this program include all recognized project phases, including planning and environmental analysis; conceptual, preliminary, and design engineering; right-of-way acquisition, support, and relocation; utilities relocation; construction engineering and inspection; vehicles and equipment; direct staff time, including salary and benefits; consultants and construction contractors selected pursuant to local agency selection processes; and labor, materials, and equipment for day labor.

B. Repair, Maintain, and Construct Local Streets and Roads Program.

1. Jurisdictions that receive funds under this section may expend those funds for purposes of the Repair, Maintain, and Construct Local Streets and Roads Program established by this subsection B. Expenditures under this subsection shall prioritize improvements to local streets that connect to existing neighborhood homes, schools, parks, community services, public transportation, and places of employment. Project development, capital, and maintenance costs shall be eligible for expenditures under this subsection.

2. Projects eligible for expenditures under the Repair, Maintain, and Construct Local Streets and Roads Program shall include all of the following:

a. Repaving and reconstruction of existing local streets to prevent deterioration of the roadway system, based on an industry-standard pavement management system designed to inform cost-effective roadway maintenance. Components for routine accommodation of bicycle and pedestrian travel shall be incorporated, as appropriate, as part of construction projects, including sidewalks, bicycle facilities, rehabilitation and curb ramps, and elements to improve resilience, safety, and accessibility.

b. Public sidewalk repair, reconstruction, and construction in existing neighborhoods; construction of new and maintenance of additional pedestrian facility improvements, including pedestrian bridges, retaining walls, and guardrails; maintenance of pedestrian and bicycle safety improvements, including, but not limited to, safe-hit posts, painted safety zones, green bicycle lanes, and crosswalks; and rehabilitation of other bicycle facilities, such as bicycle paths.

c. Programmatic improvements to the transportation system to make it safer for all users and help achieve greenhouse gas (GHG) reduction requirements. Projects eligible for expenditures may include, but are not limited to, all of the following:

i. Traffic calming projects to reduce vehicular speeds and improve safety, including speed bumps/humps; new or improved pedestrian safety measures, such as ladder crosswalks, curb extensions (bulb-outs) on corners, and pedestrian islands in the medians of major thoroughfares; new and upgraded bicycle lanes and paths; traffic striping and channelization; and bicycle and personal mobility device parking facilities. Quick builds, pilot projects, permanent improvements, intersection redesigns, and larger corridor projects are eligible for expenditures. Related landscaping components may be included.

ii. Installation, maintenance, and upgrade of traffic signs and signals, including for pedestrians and bicyclists; and communications systems, including changeable message signs for incident and special-event traffic management.

d. Multimodal street improvements to improve pedestrian, bicycle, transit, and vehicle circulation and connectivity.

e. Pothole repair, crack sealing, slurry sealing, asphalt overlays, resurfacing, slab replacement, permeable pavement, vegetation control, curb and gutter maintenance, stormwater and drainage controls, shoulder grading, guardrail and barrier repair, bridge maintenance, sign and marking upkeep, street sweeping, landscaping and beautification, and snow and ice removal.

f. Streetlights, signals, traffic calming and other safety features; standard traffic lights, flashing signals, green arrows, pedestrian signals, out-of-service signals, guardrails, rumble strips, sign and pavement marking, speed humps, speed tables, raised crosswalks, and horizontal devices, such as roundabouts and bulb-outs; traffic signal timing, traffic operations centers, and Intelligent Transportation System components.

g. Sidewalks, alleys, bikeways, pedestrian safety features, infrastructure compliant with the Americans with Disabilities Act, crosswalks, traffic calming features, including flashing beacons, lighting, and neighborhood slow zones, pedestrian and bicycle overcrossings and undercrossings, pedestrian paths, walkways, bikeways, and protected bicycle facilities.

h. New curb ramps compliant with the Americans with Disabilities Act, reconstruction of existing ramps, and related roadway work to permit ease of movement.

i. Vehicles and equipment may be purchased with funds provided under this Act only when necessary to carry out work associated with projects funded under this Act. Costs for such purchases must be charged proportionally to each funded project based on actual or reasonably estimated use and may not exceed the pro rata share attributable to projects funded under this Act.

j. Litter-abatement activities pursuant to a state matching-funds program.

3. Each jurisdiction may spend no more than 5 percent of its allocation under the Existing Neighborhood Streets and Roads Repair and Maintenance Program on road expansion or capacity-

increasing projects per year. Before a jurisdiction can expend funds pursuant to this paragraph, every local street and road within the jurisdiction shall reach a Pavement Condition Index score of 65 or above.

4. Road expansion or capacity-increasing projects shall not be prohibited by paragraph 3 if they involve significant safety or mobility benefits, as supported by traffic studies that demonstrate reductions in fatalities and serious injuries for all road users. Eligible road expansion or capacity increasing projects shall only include the following:

a. Dedicated public transportation lanes.

b. Dedicated and protected Class I or Class IV Facilities.

c. Safety-motivated turn lanes or intersection improvements that protect all road users and that do not impede bicycle or pedestrian facilities.

5. Funds shall not be used for street or roadway construction in new growth areas or new town developments.

a. For purposes of this paragraph 5, "new growth areas" means geographic areas designated for future residential, commercial, industrial, or mixed-use development that, as of the passage date of this Act, were not zoned for urban development, substantially developed with permanent structures and public infrastructure, and included within an adopted municipal or regional growth boundary, service area, or comprehensive plan authorizing such development. Preliminary approvals, conceptual plans, or applications pending approval shall not be considered evidence of existence.

b. For purposes of this paragraph 5, "new town developments" means large-scale, master-planned developments intended to function as self-contained communities, including residential, commercial, public, and transportation infrastructure that were not incorporated, approved, or under active construction as of the passage date of this Act and require the extension of new public streets, roadways, or transportation infrastructure to serve the development. Preliminary approvals, conceptual plans, or applications pending approval shall not be considered evidence of existence.

6. The County shall annually expend a minimum of between 12 percent and 15 percent of its local allocation in identified disadvantaged unincorporated communities, as defined by paragraph (2) of subdivision (a) of Section 65302.10 of the California Government Code. The Council of Governments shall determine the specific minimum percentage by completing a needs assessment of complete streets pursuant to Section 4.60.140. The County may spend any remaining funds set aside for disadvantaged unincorporated communities in other unincorporated areas of the county region once identified needs have been met, the average Pavement Condition Index score for all disadvantaged unincorporated communities reaches 70, and each local road within all disadvantaged unincorporated communities attains a Pavement Condition Index score of at least 65.

7. Jurisdictions shall prioritize funding for existing neighborhood roads with the lowest Pavement Condition Index score or in project areas in need of improvement in disadvantaged neighborhoods and communities.

C. Active Transportation.

1. Jurisdictions that receive funds under this section may expend those funds to create a comprehensive, connected network of pedestrian and bicycle routes that link homes, workplaces, schools, parks, transit, and other destinations.

2. Funds expended pursuant to this subsection C may be used to redesign existing streets to be complete streets, prioritizing non-car options, increasing the safety and comfort of pedestrians and cyclists, and improving connections to transit.

3. Every street or road constructed or reconstructed in whole or in part with revenue from the Fund pursuant to this subsection shall include sidewalks, paths, walkways, or equivalent facilities, where feasible and according to the adopted Active Transportation Plan in each jurisdiction.

4. Any maintenance to a street or road funded in whole or in part with revenue from the Fund pursuant to this subsection shall, at a minimum, maintain the existing level of pedestrian and bicycle access, facilities, and safety features along and across the street, road, or highway.

5. Where feasible, every expressway, super-arterial, arterial, or collector road constructed in whole or in part with revenue from the Fund pursuant to this subsection shall include accommodations for bicycle travel at minimum by a striped shoulder with a minimum width of four feet. This four-foot shoulder may be provided as a bike lane or a cycle track. If an existing expressway, super-arterial, or collector road is reconstructed and reconstruction includes pavement widening, that project shall be subject to this requirement.

6. All roadways receiving pavement reconstruction without pavement widening, rehabilitation, or an overlay, slurry seal, chip seal, or seal coat funded in whole or in part with revenue from the Fund pursuant to this subsection shall include accommodations for bicycle travel at a minimum by Class I and Class IV Facilities, unless there is insufficient right-of-way or if there are other physical constraints as determined by a licensed engineer. This four-foot shoulder may be provided as a bike lane or a cycle track.

7. On a multi-lane roadway, funds expended pursuant to this subsection may be used for conversion of travel lanes to bicycle facilities, provided the responsible agency has determined that excess roadway capacity exists and that the bicycle facilities are allowable. Owing to the different costs associated with Class I and Class IV Facilities, funding for this requirement must be roughly equivalent based on expenditures. A jurisdiction may meet this requirement through a combination of other state, federal, and local funding sources, aside from revenue from the Fund. Safe Routes to Schools projects that include Class I or Class IV Facilities may be counted toward satisfying this requirement.

8. Jurisdictions that expend funds under this subsection shall not expend funds on privately owned streets and roads.

9. Jurisdictions that expend funds under this subsection shall certify to the Council of Governments that expenditures of funds under this subsection meet the following criteria:

a. With respect to Class I Facilities:

i. Class I Facilities are not limited to bicycle use and are available for pedestrian use. Canal banks located in existing neighborhoods that cannot be paved may also be considered Class I Facilities for purposes of this Act.

ii. Class I Facilities, including shared-use paths constructed with funds expended under this subsection, are to the greatest extent possible designed in accordance with the bicycle path design criteria set forth in Chapter 1000 (Bicycle Transportation Design) of the California Highway Design Manual.

iii. Within the Fresno–Clovis Metropolitan Area, Class I Facilities constructed with funds expended under this subsection are a minimum of 12 feet in width, where feasible.

iv. Within the Fresno–Clovis Metropolitan Area, Class I Facilities constructed with funds expended under this subsection are designed so that at-grade crossings are limited to one crossing every one-half mile at signalized intersections for new developments, where feasible and provided that such design does not violate property owner rights.

v. Class I Facilities constructed within existing neighborhoods are designed so that mid-block crossings on collectors, arterials, super-arterials, or expressways satisfy one of the following:

I. Each crossing is controlled by at-grade pedestrian waiting mechanisms, including signalized or flashing crossings or other warning devices.

II. Each crossing is controlled with grade-separated crossings when warranted due to pedestrian or bicycle safety risks, where feasible.

vi. Class I bikeways in rural areas that link rural communities and cities are, to the greatest extent possible, constructed in accordance with Chapter 1000 (Bicycle Transportation Design) of the California Highway Design Manual.

b. Class II and Class III bikeways are, to the greatest extent possible, designed and installed in accordance with Chapter 1000 (Bicycle Transportation Design) of the California Highway Design Manual and the California Manual on Uniform Traffic Control Devices.

c. Class IV bikeways, including separated bikeways or cycle tracks, are, to the greatest extent possible, designed and installed in accordance with Caltrans Design Information Bulletin 89.

10. Any new or modified types of facilities shall be eligible for funding under the Existing Neighborhood Streets and Roads Repair and Maintenance Program if such facilities are included in any future revision of the California Highway Design Manual or related Caltrans design guidance.

11. Trails designed strictly for recreational purposes shall be ineligible for expenditures under this Act.

D. Transit-Oriented Development.

1. A jurisdiction that receives funds under this section may expend the funds to support transportation and other costs to enable housing in mixed-use zone districts within existing neighborhoods. The jurisdiction shall ensure the developments are mixed income and include deed-restricted units affordable to lower-income households.

2. For the purpose of this subsection D, lower-income means 80 percent or less of Area Median Income (AMI), including low-income (50 to 80 percent of AMI), very low-income (30 to 50 percent of AMI), and extremely low-income (below 30 percent of AMI).

E. Bicycle and Pedestrian Facilities Maintenance.

Jurisdictions receiving funds under this section may use the funds for maintenance of bicycle and pedestrian facilities, including, but not limited to, landscaping and tree care; pavement, root-damage, and pothole repairs; irrigation system operation and repair; lighting, signage, striping, and surface resurfacing; litter and weed removal; utility costs; and maintenance of adjacent trailheads or parks.

F. Safe Routes to School.

1. A jurisdiction that receives funds under this section may use this funding to support Safe Routes to School (SRTS) projects, including infrastructure, education, outreach, and planning to support safe transportation to and from schools.

2. Each jurisdiction shall coordinate with school districts within its boundaries to identify and ensure the highest-priority SRTS projects are funded each year. Funds shall be used to prioritize SRTS projects identified as highest priority and urgent.

3. Funds may be used to achieve conformance with Section 22352.5 of the California Vehicle Code, lowering the speed limit in school zones to twenty miles per hour by January 1, 2031. When updating signage and other compliance needs in school zones, jurisdictions should seek to make other SRTS improvements where needed and appropriate.

G. The following metrics shall be used to evaluate performance under this section:

1. The average Pavement Condition Index score for each jurisdiction that receives funds under this section, including arterial, collector, and neighborhood streets, shall be maintained at a minimum average level of 70.

2. At least 120 miles of new Class I or Class IV Facilities shall be maintained and constructed by 2057, as identified in the applicable Active Transportation Plan for each jurisdiction. This requirement shall be apportioned as follows:

a. The cities of Fresno and Clovis shall collectively be responsible for at least 84 miles.

b. The County shall be responsible for at least 36 miles.

c. Any Class I or Class IV Facilities constructed by the remaining cities may be credited toward fulfilling the County's obligation under this paragraph 2.

d. Safe Routes to Schools projects that include new Class I or Class IV Facilities may be counted toward satisfaction of this requirement.

e. Up to 20 percent of this requirement may be met through routine maintenance.

3. a. At least 150 Safe Routes to School projects shall be completed by 2057 that improve walkability, safety, and connectivity for students and reduce serious injuries and fatalities. Projects shall include infrastructure, engineering improvements, and traffic-calming strategies to enhance safety and accessibility for walking and bicycling within a one-mile radius of school zones.

b. The requirement imposed by subparagraph a shall be apportioned as follows:

i. The cities of Fresno and Clovis shall collectively be responsible for at least 105 projects.

ii. The remaining cities and the County shall collectively be responsible for at least 45 projects.

c. Jurisdictions may collectively satisfy the requirement imposed by subparagraph a by one or more of the following:

i. By completing five Safe Routes to School projects per year, 70 percent in the cities of Fresno and Clovis and 30 percent in the remaining incorporated cities and the unincorporated areas of the county region.

ii. By completing at least 50 projects every 10 years, 70 percent in the cities of Fresno and Clovis and 30 percent in the remaining cities and the unincorporated areas of the county region.

4. The County and each incorporated city within the county region shall pursue reductions in greenhouse gas emissions consistent with targets established quadrennially by the California Air Resources Board.

H. By July 1, 2029, each jurisdiction within the county region, to be eligible for continued funding under this section, shall complete and adopt an Active Transportation and Safe Routes to Schools Implementation and Performance Analysis to establish a baseline assessment and track progress towards achieving the established metrics of this Act. A jurisdiction may use funds allocated in this section to pay the reasonable costs of developing the analysis. The analysis shall include the following:

1. An Active Transportation Analysis addressing Class I, II, III, and IV Facilities that promote connectivity and complete streets throughout the county region and its urbanized areas. This analysis shall, at a minimum, include all of the following:

a. A regional sidewalk, bikeway, and trail inventory assessing the condition, connectivity, and accessibility of sidewalks and pedestrian and bicycle pathways.

b. Actionable strategies to improve and construct new sidewalks, pathways, and bicycle facilities within existing neighborhoods in compliance with established metrics of this Act in order to facilitate travel to major points of interest or destination centers, including, but not limited to, employment centers, educational facilities, parks and open spaces, and medical services.

c. Adopted Active Transportation Plans or Fresno Regional Active Transportation Plans shall serve as the guiding document for the upgrade, installation, and funding of active transportation facilities, provided that the plans include the requirements identified in subparagraphs a and b.

2. A Safe Routes to School (SRTS) analysis developed in coordination with the school districts within its jurisdictional boundaries. The analysis shall include:

a. The number of serious injuries and fatalities within a one-mile radius of each school during the previous five years and annual reduction targets.

b. The highest-priority SRTS projects to be funded to ensure compliance with this section.

c. Adopted SRTS projects or similar plans shall serve as the guiding document for the upgrade, installation, and funding of SRTS facilities, provided that the plans include requirements identified in subparagraphs a and b of paragraph 1 and are coordinated with school districts within the jurisdiction's boundaries.

3. Each jurisdiction within the county region shall develop Active Transportation and Safe Routes to Schools Implementation and Performance Analysis through a robust public process. The public process shall include, at a minimum, all of the following:

a. The jurisdiction shall notify the public of its intent to initiate an analysis and publicly notice the process through which it will solicit public input.

b. The jurisdiction shall hold at least three publicly noticed meetings to solicit public input. Meetings shall be held at accessible locations outside of regular business hours. Translation of materials and interpretation shall be provided.

c. Upon completion of the public meetings, the jurisdiction shall prepare, publish, and formally adopt an analysis, which shall include a prioritized list of projects to be funded during the ensuing five-year period and an accompanying analysis documenting the manner in which public input was solicited, reviewed, and incorporated into the final recommendations, following a public review period of not less than 30 days.

d. Funded projects shall be included in a public database maintained by the Council of Governments, and progress toward completion shall be reported annually until completion, consistent with subsection J of Section 4.60.110.

4.60.080. Public Transportation Program.

A. Twenty-five percent of the annual revenue in the Fund shall be allocated to support an integrated, rapid, resilient, and cost-effective transit network that coordinates public transportation services, where feasible, to reduce costs of service and avoid service duplication, and prioritize improving public transportation system access and use.

B. The Council of Governments shall allocate funding under this section as follows:

1. Ten percent to Clovis Transit.

2. Seventy percent to Fresno Area Express.

3. Twenty percent to the Fresno County Rural Transit Agency.

C. Funds provided under this section shall be expended for the following purposes:

1. Operations, maintenance, and capital costs for maintaining and improving public transportation services.

2. Expanded hours and increased frequency of transit services; evening and weekend service; non-emergency medical transportation; increased frequency between and among cities and communities; first and last mile connections; emergency planning; service integration; paratransit service; community shuttles; and university and college transit options.

3. Deployment of buses, microtransit, carshare, rideshare, vanpool, and Bus Rapid Transit or light rail services.

4. Public transit supportive infrastructure, including disability access infrastructure; sheltered and weather protective bus stops; lighting at bus stops; trash disposal; enhanced pedestrian and bicycle facilities that improve access to transit stops; optimized traffic signals for smoother traffic flow; and investments in modern vehicles and technology, including real-time tracking and audible announcements for passengers. At main hubs and transit centers, where possible, public transportation operators are encouraged to provide and improve water stations and public restrooms.

D. Each transit agency shall ensure services are available for continued support for paratransit, curb-to-curb, van, taxi, and other transportation services for seniors 62 years old and older, and people with disabilities who are unable to use fixed-route transit services. Funds may be expended for operations support, replacement of accessible vans, and replacement and upgrades of supporting equipment. Each year, each transit agency shall certify to the Council of Governments that revenue provided under this section is first being used for this subsection D.

E. Transportation agencies may use the funds allocated under this section for public transportation projects that are included in a local agency capital improvement program or annual budget, or that are approved by resolution at a public hearing of each local agency identifying the eligible project or list of projects or programs.

F. Funds in this section may be used by the Council of Governments to conduct a Regional Transit Consolidation Study to identify opportunities to coordinate or consolidate transit services in order to achieve a seamless passenger travel system for the public, provided that any study, recommendation, or resulting action ensures the protection of public transit employees, including the preservation of wages, benefits, collective bargaining rights, and employment security. The findings and recommendations of the study shall be considered for implementation by the Council of Governments Policy Board.

G. The following metrics shall be used to evaluate performance under this section:

1. For each transit agency receiving funds under this section, transit accessibility performance shall demonstrate year-over-year improvement. Performance shall be measured using a composite index composed of the following indicators: (1) percentage change in total ridership; (2) percentage of urban routes operating at 15-minute or better headways and, in rural areas, average transit travel time relative to comparable personal vehicle travel times or an equivalent accessibility metric; (3) average travel distance or time required to reach a defined set of key destinations; (4) average number of transfers required on commonly used routes; (5) average transfer wait times; and (6) on-time performance, measured as the percentage of trips operating on schedule from origin to destination. Where feasible, each indicator shall be reported both in aggregate and disaggregated by demographic, geographic, and rider group.

2. For each transit agency receiving funds under this section, the annual percentage increase in transit-supportive infrastructure shall grow every year. Performance shall be measured by quantifiable increases in the following: (1) the number of bus stops and multimodal access points that meet or exceed applicable local, state, and federal accessibility standards; and (2) the linear miles, area coverage, or facility count of bicycle, sidewalk, and pedestrian infrastructure providing direct access to bus stops, transit hubs, schools, population centers, employment centers, and essential services.

H. By July 1, 2029, each transit agency, to be eligible for continued funding under this section, shall complete and adopt a Public Transit Improvement Plan to establish a baseline assessment and track progress towards improving the metrics described in paragraphs 1 and 2 of subsection G of this section. Funds allocated in this section may be used by an agency to pay the reasonable costs of developing the Plan. The Plan shall include the following:

1. Proposed transit service improvement and expansion plans, including mass transit, micro-transit and on-demand transit services.

2. Programs and services that provide continued support for paratransit, curb-to-curb, van, taxi, and other transportation services for those who are unable to use fixed-route transit services, including seniors 62 years old and older and people with disabilities.

3. Strategies for how Fund revenues will be leveraged with state and federal funding to maximize program and service impact.

4. Strategies for the coordination of services and programs across the transit agencies.

I. Each transit agency shall develop a Public Transit Improvement Plan through a robust public process, which shall include, at a minimum, all of the following:

1. The agency shall notify the public of its intent to initiate a plan and publicly notice the process through which it will solicit public input.

2. The agency shall hold at least three publicly noticed meetings to solicit public input. Meetings shall be held at accessible locations outside of regular business hours. Translation of materials and interpretation shall be provided.

3. Upon completion of the public meetings, the agency shall prepare, publish, and formally adopt a plan, which shall include a prioritized list of projects to be funded during the ensuing five-year period and an accompanying analysis documenting the manner in which public input was solicited, reviewed, and incorporated into the final recommendations, following a public review period of not less than 30 days.

4. Funded projects shall be included in a public database maintained by the Council of Governments, and progress toward completion shall be reported annually until completion, consistent with subsection J of Section 4.60.110.

4.60.090. Regional Connectivity Program.

A. One percent of the annual revenue in the Fund shall be allocated to the Fresno Yosemite International Airport. Funds may be used to support operations, infrastructure, transportation access improvements, and multi-modal connections to and from the airport.

B. Four percent of the annual revenue in the Fund shall be allocated to fund regional street, road, and highway improvement projects with direct local benefits.

1. The Council of Governments shall provide funding on the following schedule:

a. By June 30, 2028, for years 1 to 7 of this Act.

b. By June 30, 2034, for years 8 to 15 of this Act.

c. By June 30, 2041, for years 16 to 24 of this Act.

d. By June 30, 2048, for the remaining years of this Act.

2. Agencies eligible for funding under this subsection B shall include the incorporated cities within the county region, the County, and the California Department of Transportation.

3. Projects funded under this subsection B may include projects on the state highway system, regional transportation projects, and projects on major local arterials that serve more than one city or area of the county region. Funds allocated under this section may be used as matching funds for litter-abatement activities pursuant to a state matching-funds program.

4. Each agency shall request project funding from the Council of Governments, which shall be provided through a cooperative funding agreement. These agreements shall allocate funding for the initial project phases. All funding agreements shall reimburse implementing agencies for funds expended. The agreements shall not provide agencies with advance funding.

5. The Council of Governments shall conduct a public engagement process to identify and prioritize projects in the county region. Selected projects shall achieve one or more of the following: reduced vehicle miles traveled, increased multi-modal travel, increased safety by reducing the number of collisions of all road users, improved air quality, increased access to good local jobs, or other direct local benefits to communities. The Council of Governments may prioritize projects that identify state and federal funding to leverage matching funds. The agencies shall complete this process as follows:

a. The Council of Governments shall notify the Citizens Oversight Committee of its intent to initiate a public process and publicly notice the process through which it will solicit public input.

b. The Council of Governments shall publish project solicitation guidelines for projects that further the goals identified in this paragraph 5 and allow at least 60 days for eligible agencies to submit proposals.

c. Upon receipt of project proposals, the Council of Governments shall publish a list of projects and hold at least three publicly noticed meetings across the county region, with at least one on the east side of the county region, at least one on the west side of the county region, and at least one in the urban metro area, for public input. Meetings shall be held at accessible locations outside of regular business hours, and translation of materials and live interpretation shall be provided.

d. Following the public workshops, the Council of Governments shall prepare and publish a list of projects recommended for funding, together with an analysis documenting how public input was considered and incorporated into the recommendations.

e. Projects will be considered and approved by the Council of Governments Policy Board at least 30 days after the list of projects is publicly posted.

6. The Council of Governments may consider bonding future revenues if project needs and deliverability exceed available cash flow.

C. Agencies that receive funds under this section shall report project progress to the Council of Governments. Any project cost increases not associated with subsequent project phases shall be thoroughly justified by the implementing agency, and a funding agreement amendment shall be approved prior to the expenditure of funds in excess of the approved project budget. Agencies that receive any funds under this section shall furnish, install, and maintain project funding signage recognizing the funding contributed by this Act.

D. All major roads, regional transportation projects, and highways constructed, improved, or reconstructed under this section shall comply with paragraphs 5 and 6 of subsection C of Section 4.60.070.

4.60.100. Access and Innovation Program.

A. Four percent of the annual revenue in the Fund shall be allocated for planning and projects that enable new technologies, invest in zero-emission infrastructure, and increase access to destinations.

B. The Council of Governments shall first allocate funds to Clovis Transit, Fresno Area Express, and the Fresno County Rural Transit Agency to ensure the implementation and maintenance of zero-fare programs for special populations. For purposes of this subsection, "special populations" means people with disabilities, veterans and active-duty military personnel, seniors 62 years of age and older, children, and students.

C. If funds remain after the purposes under subsection B are met, the Council of Governments shall award competitive grants, and shall develop implementation policies and guidelines, for projects in the following categories:

1. Clean Energy Projects, which may include electric-vehicle charging stations, hydrogen fueling facilities, compressed natural gas infrastructure, and similar clean-fuel facilities; a Regional Zero-Emission Vehicle Readiness and Implementation Plan developed by the Council of Governments; local agency Zero-Emission Vehicle Readiness and Implementation Plans; clean-vehicle power support facilities; microgrid or solar electric-vehicle battery-charging infrastructure; autonomous vehicle infrastructure projects; or other projects or programs that further clean transportation goals.

2. Travel Choice Projects, which may include regional transportation hubs and micro-mobility hubs designed to provide and identify a range of connected travel choices; innovations in micro-mobility; increased opportunities for telecommuting; and broadband infrastructure to support telecommuting and educational facility purposes.

3. Future Technology Projects, which may include other new technology applications or improvements in emerging or future transportation technologies.

D. The agencies eligible to apply for funding under subsection C shall include the incorporated cities within the county region, the County, the Council of Governments, Fresno Area Express, the Fresno County Rural Transit Agency, and Clovis Transit. Private-sector entities, nonprofit organizations, or other governmental agencies may also submit applications for funding, provided that such applications are submitted through, and sponsored by, the local government agency of the jurisdiction in which the project is located. The incorporated cities within the county region and the County shall generally serve as the primary applicants for program funds; however, for projects or programs of a regional nature, the Council of Governments may serve as the appropriate applicant. For any competitive grant program for which the Council of Governments seeks to apply for funding, the Council of Governments shall adopt a written policy establishing an independent panel to review and score all applications.

4.60.110. Administration, Performance Measures, Requirements, and Indicators Program.

One percent of the annual revenue in the Fund shall be allocated to the Council of Governments to administer this Act. Activities that may be funded under this section shall include the following:

A. Preparing and adopting an annual work program and budget outlining planned expenditures, oversight activities, and administrative costs, and distributing funds pursuant to this Act.

B. Developing requirements for each funding program established by this Act and undertaking specialized studies needed to implement those programs effectively.

C. Undertaking and completing the reporting requirements and technical assistance pursuant to Section 4.60.140.

D. Establishing and updating priority lists for regional connectivity, in coordination with member jurisdictions and consistent with this Act.

E. Conducting an independent audit to ensure compliance, fiscal integrity, and accountability to the public.

F. Conducting reviews to ensure compliance with and progress towards attainment of performance measures under each program.

G. Carrying out ongoing outreach and public education efforts to keep taxpayers informed about project progress, financial performance, and planned updates.

H. Issuing bonds when appropriate to expedite project delivery, reducing overall project costs by leveraging future revenues for near-term improvements.

I. Providing staff support to advisory committees and furnishing staff- or consultant-based technical assistance to member jurisdictions to ensure consistent, equitable, and effective program implementation. Technical assistance may also include grant preparation and submission.

J. Developing and implementing a searchable public database that allows the public to easily access information on how funds are used and how they align with guiding principles and any implementing guideline requirements.

4.60.120. Local Hiring Preference.

Projects funded by this Act are intended to provide direct and indirect economic benefits to the county region through investments in infrastructure and related construction-associated economic activity, including the creation of well-paying jobs for the county region's businesses and residents. In furtherance of these objectives, the Council of Governments, in coordination with its member agencies, shall develop and implement reasonable local hiring and contracting goals and related strategies to help maximize these economic benefits by July 1, 2029, and shall be updated every five years thereafter.

4.60.130. Design and Implementation Elements.

A. Funds allocated to each jurisdiction shall supplement, not supplant, other sources of revenue.

B. Projects funded in part or in whole with revenues from the Fund shall incorporate design and implementation elements that address heat, increased precipitation and flooding, wildfire management, and improvements to air quality, including through the following:

1. Where feasible, the addition, establishment, and maintenance of landscaping and tree canopy along pedestrian walkways, bicycle facilities, local and major roads, highways, and trails in the public right-of-way; provided, however, that each project shall include an analysis of the elements considered, and if trees or shade canopy elements are not included, the project shall document the reasons for such exclusion.

2. Funding shall be prioritized for projects in neighborhoods and communities with lower tree canopy coverage.

3. Where feasible, the addition of curb, gutter, and stormwater drainage improvements.

4. Vegetation management.

C. Funds may be used for the maintenance of landscaping and tree canopy along pedestrian walkways, bicycle facilities, local and major roads, highways, and trails in the public right-of-way, including, but not limited to, irrigation system operation and repair, pruning, landscape and tree canopy preservation, and litter and weed removal.

D. All streets and roads constructed or improved in whole or in part with revenue from the Fund shall include complete street features, where feasible.

E. Expenditures under this Act for street maintenance and repair are encouraged to include complete street elements that do not require additional pavement width.

F. It is the intent of the people of Fresno County that each jurisdiction that receives funding under this Act adopt and follow "dig once" construction project principles, requiring public and private roadway projects to accommodate the installation of conduit to support community needs, including but not limited to, broadband fiber optics, stormwater systems, and sidewalks.

G. Jurisdictions or agencies shall use best efforts to implement projects consistent with the intent of this Act. In the event a jurisdiction or agency determines that a proposed project or project requirement is not feasible, the jurisdiction or agency shall, following a duly noticed public hearing, formally declare and document the reasons for such infeasibility.

H. Funds made available under this Act may be used, in whole or in part, as matching funds for eligible state and federal programs in order to increase benefits to residents of the county region.

4.60.140. Council of Governments Reporting Requirements and Technical Assistance.

A. By July 1, 2029, the Council of Governments shall complete and adopt the following studies and analyses to establish a baseline assessment and track progress towards achieving metrics described in Sections 4.60.070 and 4.60.080. The Council of Governments shall be eligible to receive reimbursement for reasonable costs incurred in completing the required studies and analyses from the jurisdictions and agencies that receive funding in sections 4.60.070 and 4.60.080. The studies and analyses shall include the following:

1. A countywide Pavement Management System analysis, the results of which shall be furnished to each eligible agency. The Council of Governments shall use the Pavement Management System analysis to evaluate each agency's progress toward achieving metrics described in paragraph 1 of subsection G of Section 4.60.070.

2. A Regional Transit Agency Service Consolidation study in coordination with the existing transit agencies and jurisdictions to assess the feasibility of consolidating services to achieve a seamless passenger system for the public.

3. A needs assessment of complete streets, including determining the Pavement Condition Index of disadvantaged unincorporated communities pursuant to paragraph 6 of subsection B of Section 4.60.070.

B. The Council of Governments shall establish and regularly update protocols and procedures to assist jurisdictions and agencies in the implementation of this Act. Protocols and procedures may include the following:

1. Compliance with Act requirements at the annual, five-year, and ten-year intervals.

2. Technical assistance to eligible jurisdictions and agencies to comply with Act requirements.

3. Standard reporting templates.

4. Guidelines for implementation of the competitive funding program described in subsection C of Section 4.60.100.

4.60.150. Reporting and Review Requirements.

A. Each agency that receives funds under this Act shall complete and submit to the Council of Governments an annual independent audit to verify that program funds were expended in compliance with the requirements of this Act. Any agency found to be out of compliance shall be subject to withholding of program funds until appropriate reimbursements are made and compliance is achieved.

B. On an annual basis, each agency that receives funds under this Act shall complete and submit a performance report to the Council of Governments identifying expended funds and projects that used proceeds from this Act in whole or in part. Any agency that expends funds allocated under Section 4.60.070 on services shall also describe such uses in its annual report. The Council of Governments shall establish any additional reporting requirements necessary to carry out the purposes of this Act.

C. The Council of Governments shall conduct an independent audit of the proceeds generated by this Act, as well as the expenditures from the Fund. An independent auditor's report may be funded by the revenues from the Fund. This shall include an accounting of revenues received and expenditures made from the Fund and shall be presented annually to the Council of Governments and Board of Supervisors and made available for public review. The audit report shall be posted on the internet website of the Council of Governments.

D. On an annual basis, the Council of Governments shall publish a report identifying projects completed or supported by Fund revenues by eligible agencies.

E. By July 1, 2029, and updated annually thereafter, the Council of Governments shall develop and implement a public database that allows the public to easily access information on how funds are used, completed projects, progress towards projects under construction, and compliance with the requirements of this Act.

F. The Council of Governments shall establish compliance check requirements, fund accumulation and noncompliance requirements, claims and dispute-resolution procedures, monitoring and reporting requirements, including the establishment of deadlines for reports required under this section, and an audit requirement for jurisdictions that receive funds under this Act.

4.60.160. Five Year Plan Updates.

A. Each jurisdiction's Active Transportation and Safe Routes to Schools Implementation and Performance Analysis required by subsection H of Section 4.60.070, and each transit agency's Public Transit Improvement Plan required by subsection H of Section 4.60.080, shall be updated every five years over the life of this Act through a robust public process.

B. The public process required by subsection A shall include, at a minimum, all of the following:

1. The jurisdiction or agency shall notify the public of its intent to initiate an update to the adopted plan or plans and publicly notice the process through which it will solicit public input.

2. The jurisdiction or agency shall hold at least three publicly noticed meetings to solicit public input. Meetings shall be held at accessible locations outside of regular business hours. Translation of materials and live interpretation shall be provided.

3. Upon completion of the public meetings, the jurisdiction or agency shall prepare, publish, and formally adopt an updated plan or analysis, which shall include a prioritized list of projects to be funded during the ensuing five-year period and an accompanying analysis documenting the manner in which public input was solicited, reviewed, and incorporated into the final recommendations, following a public review period of not less than 30 days.

4. Funded projects shall be included in a public database maintained by the Council of Governments, and progress toward completion shall be reported annually until completion, consistent with subsection J of Section 4.60.110.

C. The countywide Pavement Management System analysis prepared by the Council of Governments pursuant to paragraph 1 of subsection a of Section 4.60.140 shall be updated every five years following its initial publication.

4.60.170. Citizens Oversight Committee.

A. The Citizens Oversight Committee shall be formed within six months following the effective date of this Act.

B. The purpose of the Committee is to inform the public and to ensure that expenditures from the proceeds of the tax imposed by this Act are spent in accordance with the Act, and the Committee shall have the following responsibilities:

1. Receiving, reviewing, and recommending action on independent financial and performance audits.

2. Receiving, reviewing, and recommending action on reports, studies, and plans directly related to programs, revenues, or expenditures.

3. Reviewing and commenting on expenditures for consistency with this Act.

4. Annually reviewing sales-tax expenditures and publicizing findings.

5. Presenting recommendations and findings in a formal annual public report.

6. Conducting the comprehensive review of the Act, at a minimum, every ten years pursuant to section 4.60.170.

7. Referring any misuse of revenue to the Fresno County District Attorney, the Attorney General, and any other appropriate agency.

C. The Committee shall consist of 11 members. Each member shall satisfy all of the following:

1. Be a United States citizen who is at least 18 years of age and a resident of Fresno County.

2. Not be a holder of any elected office.

3. Not be an employee of the County, any incorporated city in the county region, the Fresno County Rural Transit Agency, Caltrans, or the Council of Governments.

4. Have no financial interest in any Council of Governments-funded project.

D. The membership of the Committee shall be comprised as follows:

1. Six members shall be at-large public members who satisfy the following geographic requirements:

a. Three members shall reside within the Fresno-Clovis Metropolitan Area.

b. Three members shall reside outside the Fresno-Clovis Metropolitan Area, including one member from the east side of the county region, one from the west side of the county region, and one from an unincorporated area.

c. At least one member shall reside in each of the five Fresno County supervisorial districts.

2. Five members representing the diversity of the county region, providing a balance of viewpoints.

E. Committee members shall be selected by the Council of Governments Policy Board, consisting of the mayors of the incorporated cities in the county region and the Chair of the Fresno County Board of Supervisors or their designee. Whenever vacancies occur, openings shall be publicly noticed at least 60 days prior to the application deadline.

F. Members shall serve four-year terms and may serve consecutive terms. Members shall receive compensation of fifty dollars ($50) for each meeting attended.

G. Members shall serve no more than eight years, except that a member appointed to an initial term of less than four years may serve up to 10 total years. Vacancies shall be filled using the same selection process for the remainder of the term. Terms shall be staggered to avoid replacing more than two members in any recruitment period.

H. The Committee shall annually select a Chair and Vice Chair from among its members, each serving a one-year term. The Chair shall call meetings, set agendas, and preside over meetings. The Vice Chair shall perform these duties in the Chair's absence.

I. The Committee shall meet at least quarterly and at such additional times as the Committee deems necessary. All meetings shall comply with the Ralph M. Brown Act and shall be conducted in accordance with Robert's Rules of Order. The Committee shall not employ proxy voting.

J. Members of the Committee shall annually file a Statement of Economic Interests in accordance with Chapter 7 of Title 9 of the California Government Code.

K. The Committee may establish subcommittees to carry out specific aspects of its duties. All subcommittees shall consist of an odd number of members.

L. A quorum shall consist of a majority of active Committee members. Actions shall be approved by a simple majority of the quorum present.

M. The Council of Governments shall provide technical and administrative staffing support, subject to Committee approval. Staffing costs and necessary outside services shall be paid from the monies identified in Section 4.60.110. Expert staff may be requested to present information to the Committee as needed.

N. The Committee shall review all reports published by each city and the County detailing planned budgets and financial expenditures of proceeds from the Fund.

O. The Committee shall oversee an annual fiscal and compliance audit using an independent auditor, identifying all directly funded projects and accumulated revenues and expenditures. The Committee shall oversee and publish an annual report presenting audit results to the Council of Governments Policy Board.

4.60.180. Amendments to The Act

A. It is the intent of the people of the County of Fresno that this Act be amended only through a public review process, except as expressly provided in this section and only to the extent the amendment is consistent with the purposes and intent of this Act.

B. 1. The Council of Governments Policy Board shall initiate a comprehensive review of the Act, at a minimum, every ten years and refer the public review process to the Citizens Oversight Committee.

2. The Citizens Oversight Committee shall conduct the comprehensive review and evaluation of the Act.

3. The Citizens Oversight Committee shall oversee the public process, which shall allow a minimum of 90 days to conduct at least three public workshops. At least one public workshop shall be held in the east side of the county region, at least one public workshop shall be held in the west

side of the county region, and at least one public workshop shall be held in the urban metro area. Public meetings shall be accessible to the public and held at accessible locations outside of regular business hours. Translation of materials and live interpretation services shall be provided.

4. Following the public process, the Committee shall submit evaluation findings and recommendations to the Council of Governments Policy Board and the public for review and input. The Committee shall allow a minimum of 30 days for public comment.

5. a. The Council of Governments Policy Board shall consider evaluation findings and recommendations at a public hearing and shall adopt proposed amendments to the Act at the next regularly scheduled meeting. The Council of Governments Policy Board shall approve any amendments in accordance with its double-weighted voting system.

b. Each member shall be assigned a weighted voting percentage based on population. Approval of any action shall require satisfaction of both of the following conditions:

i. Jurisdictions representing over 40 percent of the population of the county region must be in favor of an action.

ii. A majority of all members must support the action.

6. The Council of Governments Policy Board shall submit any proposed amendments to the Act to the Board of Supervisors, which may adopt the amendments only if the amendments further the purposes of this Act.

C. The Citizens Oversight Committee may propose amendments to the programs established by this Act under the public review procedures provided in subsection B and shall submit any proposed amendments to the Council of Governments Policy Board and the Board of Supervisors for approval as provided by paragraphs 5 and 6 of subsection B.

D. The people of the County of Fresno declare that the elimination of any program established by this Act does not further the purposes of the Act. Any modification to the allocation of revenues between programs established by this Act shall require approval of the voters.

E. After a request from the Council of Governments Policy Board, the Board of Supervisors may amend the Act outside the comprehensive review process to address a locally declared emergency, an immediate threat to public health and safety, or the need to timely leverage large-scale, one-time state or federal funding opportunities.

F. During the term of this Act, the Board of Supervisors may authorize the transfer of public transportation funding allocated under Section 4.60.080 to a newly created regional transit district, or similar entity, in connection with a merger or consolidation of the existing public transportation agencies identified in Section 4.60.080.

4.60.190. Supplement to Existing Funding For Transportation.

The people of the County of Fresno find and declare that the transportation infrastructure needs of the county region require more resources than what are currently provided. In adopting this Act, the people of the County of Fresno choose to provide additional resources to supplement, and not supplant, local, state, federal, and other funding for transportation infrastructure county-wide.

4.60.200. Regional Transportation Mitigation Fee.

A. Consistent with existing law, the Regional Transportation Mitigation Fee Program established in 2006 as part of Measure C may be used to provide funding for projects funded by this Act, provided that such use is consistent with state law governing impact mitigation fees.

B. The Council of Governments, consistent with nexus requirements, shall have the authority to allocate Regional Transportation Mitigation Fee revenues based upon regional priority needs within the county region, in a manner consistent with Sections 4.60.070 to 4.60.100, inclusive, and in a manner consistent with state law governing impact mitigation fees.

C. No later than June 30, 2028, all jurisdictions shall extend the Joint Powers Agreement establishing the Regional Transportation Mitigation Fee Program, consistent with Section 7 of that Joint Powers Agreement. Any city or the County that elects not to implement the Regional Transportation Mitigation Fee shall forfeit annually from its allocation under Section 4.60.070 an amount equal to the Regional Transportation Mitigation Fee that would otherwise have been paid for development projects within that jurisdiction during the applicable year. An agency that elects not to implement the Regional Transportation Mitigation Fee shall notify the Council of Governments of that decision and shall file an advisory report with the Council of Governments for each development project indicating the amount of the fee that would have been paid. The Council of Governments shall calculate the total annual Regional Transportation Mitigation Fee obligation for that agency and deduct the appropriate amount from that agency's allocation under Section 4.60.070.

4.60.210. Contract with State.

Prior to the operative date of this chapter, the County shall contract with the California Department of Tax and Fee Administration to perform all functions incident to the administration and operation of this transactions and use tax ordinance, provided that, if the County shall not have contracted with the California Department of Tax and Fee Administration prior to the operative date of this chapter, it shall nevertheless so contract and in such a case the operative date of this chapter shall be the first day of the first calendar quarter following the execution of such a contract.

4.60.220. Transactions Tax Rate.

For the privilege of selling tangible personal property at retail, a tax is hereby imposed upon all retailers in the incorporated and unincorporated territory of the District at the rate of 0.5 percent of the gross receipts of any retailer from the sale of all tangible personal property sold at retail in said territory on and after the operative date of this Act.

4.60.230. Place Of Sale.

For the purposes of this Act, all retail sales are consummated at the place of business of the retailer unless the tangible personal property sold is delivered by the retailer or his agent to an out-of-state destination or to a common carrier for delivery to an out-of-state destination. The gross receipts from such sales shall include delivery charges, when such charges are subject to the state sales and use tax, regardless of the place to which delivery is made. In the event a retailer has no permanent place of business in the State or has more than one place of business, the place or places at which the retail sales are consummated shall be determined under rules and regulations to be prescribed and adopted by the California Department of Tax and Fee Administration.

4.60.240. Use Tax Rate.

An excise tax is hereby imposed on the storage, use or other consumption in the District of tangible personal property purchased from any retailer on and after the operative date of this Act for storage, use or other consumption in said territory at the rate of 0.5 percent of the sales price of the property. The sales price shall include delivery charges when such charges are subject to state sales or use tax regardless of the place to which delivery is made.

4.60.250. Adoption Of Provisions Of State Law.

Except as otherwise provided in this Act and except insofar as they are inconsistent with the provisions of Part 1.6 of Division 2 of the Revenue and Taxation Code, all of the provisions of Part 1 (commencing with Section 6001) of Division 2 of the Revenue and Taxation Code are hereby adopted and made a part of this Act as though fully set forth herein.

4.60.260. Limitations On Adoption Of State Law And Collection Of Use Taxes.

In adopting the provisions of Part 1 of Division 2 of the Revenue and Taxation Code:

A. Wherever the State of California is named or referred to as the taxing agency, the name of this County shall be substituted therefor. However, the substitution shall not be made when:

1. The word "State" is used as a part of the title of the State Controller, State Treasurer, State Treasury, or the Constitution of the State of California.

2. The result of that substitution would require action to be taken by or against this County or any agency, officer, or employee thereof rather than by or against the California Department of Tax and Fee Administration, in performing the functions incident to the administration or operation of this Act.

3. In those sections, including, but not limited to, sections referring to the exterior boundaries of the State of California, where the result of the substitution would be to:

a. Provide an exemption from this tax with respect to certain sales, storage, use, or other consumption of tangible personal property which would not otherwise be exempt from this tax while such sales, storage, use, or other consumption remain subject to tax by the State under the provisions of Part 1 of Division 2 of the Revenue and Taxation Code; or

b. Impose this tax with respect to certain sales, storage, use, or other consumption of tangible personal property which would not be subject to tax by the state under the said provision of that code.

4. In Sections 6701, 6702 (except in the last sentence thereof), 6711, 6715, 6737, 6797 or 6828 of the Revenue and Taxation Code.

B. The word "District" shall be substituted for the word "State" in the phrase "retailer engaged in business in this State" in Section 6203 and in the definition of that phrase in Section 6203.

1. "A retailer engaged in business in the County" shall also include any retailer that, in the preceding calendar year or the current calendar year, has total combined sales of tangible personal property in this state or for delivery in the State by the retailer and all persons related to the retailer that exceeds five hundred thousand dollars ($500,000). For purposes of this section, a person is related to another person if both persons are related to each other pursuant to Section 267(b) of Title 26 of the United States Code and the regulations thereunder.

4.60.270. Permit Not Required.

If a seller's permit has been issued to a retailer under Section 6067 of the Revenue and Taxation Code, an additional transactor's permit shall not be required by this Act.

4.60.280. Exemptions And Exclusions.

A. There shall be excluded from the measure of the transactions tax and the use tax the amount of any sales tax or use tax imposed by the State of California or by any city, city and county, or county pursuant to the Bradley-Burns Uniform Local Sales and Use Tax Law or the amount of any state-administered transactions or use tax.

B. There are exempted from the computation of the amount of transactions tax the gross receipts from:

1. Sales of tangible personal property, other than fuel or petroleum products, to operators of aircraft to be used or consumed principally outside the County in which the sale is made and directly and exclusively in the use of such aircraft as common carriers of persons or property under the authority of the laws of this State, the United States, or any foreign government.

2. Sales of property to be used outside the District that is shipped to a point outside the District, pursuant to the contract of sale, by delivery to such point by the retailer or his agent, or by delivery by the retailer to a carrier for shipment to a consignee at such point. For the purposes of this paragraph, delivery to a point outside the District shall be satisfied:

a. With respect to vehicles (other than commercial vehicles) subject to registration pursuant to Chapter 1 (commencing with Section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with Section 21411 of the Public Utilities Code, and undocumented vessels registered

under Division 3.5 (commencing with Section 9840) of the Vehicle Code by registration to an out-of-District address and by a declaration under penalty of perjury, signed by the buyer, stating that such address is, in fact, his or her principal place of residence; and

b. With respect to commercial vehicles, by registration to a place of business out-of-District and declaration under penalty of perjury, signed by the buyer, that the vehicle will be operated from that address.

3. The sale of tangible personal property if the seller is obligated to furnish the property for a fixed price pursuant to a contract entered into prior to the operative date of this Act.

4. A lease of tangible personal property which is a continuing sale of such property, for any period of time for which the lessor is obligated to lease the property for an amount fixed by the lease prior to the operative date of this Act.

5. For the purposes of subparagraphs 3 and 4 of this section, the sale or lease of tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

C. There are exempted from the use tax imposed by this Act, the storage, use or other consumption in this County of tangible personal property:

1. The gross receipts from the sale of which have been subject to a transactions tax under any state-administered transactions and use tax ordinance.

2. Other than fuel or petroleum products purchased by operators of aircraft and used or consumed by such operators directly and exclusively in the use of such aircraft as common carriers of persons or property for hire or compensation under a certificate of public convenience and necessity issued pursuant to the laws of this State, the United States, or any foreign government. This exemption is in addition to the exemptions provided in Sections 6366 and 6366.1 of the Revenue and Taxation Code of the State of California.

3. If the purchaser is obligated to purchase the property for a fixed price pursuant to a contract entered into prior to the operative date of this Act.

4. If the possession of, or the exercise of any right or power over, the tangible personal property arises under a lease which is a continuing purchase of such property for any period of time for which the lessee is obligated to lease the property for an amount fixed by a lease prior to the operative date of this Act.

5. For the purposes of subparagraphs 3 and 4 of this section, storage, use, or other consumption, or possession of, or exercise of any right or power over, tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

6. Except as provided in subparagraph 7, a retailer engaged in business in the District shall not be required to collect use tax from the purchaser of tangible personal property, unless the retailer ships or delivers the property into the District or participates within the District in making the sale of the property, including, but not limited to, soliciting or receiving the order, either directly or indirectly, at a place of business of the retailer in the District or through any representative, agent, canvasser, solicitor, subsidiary, or person in the District under the authority of the retailer.

7. "A retailer engaged in business in the District" shall also include any retailer of any of the following: vehicles subject to registration pursuant to Chapter 1 (commencing with Section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with Section 21411 of the Public Utilities Code, or undocumented vessels registered under Division 3.5 (commencing with Section 9840) of the Vehicle Code. That retailer shall be required to collect use tax from any purchaser who registers or licenses the vehicle, vessel, or aircraft at an address in the District.

D. Any person subject to use tax under this Act may credit against that tax any transactions tax or reimbursement for transactions tax paid to a district imposing, or retailer liable for a transactions tax pursuant to Part 1.6 of Division 2 of the Revenue and Taxation Code with respect to the sale to the person of the property the storage, use, or other consumption of which is subject to the use tax.

4.60.290. Amendments to California Revenue and Taxation Code.

All amendments subsequent to the effective date of this Act to Part 1 of Division 2 of the Revenue and Taxation Code relating to sales and use taxes and which are not inconsistent with Part 1.6 and Part 1.7 of Division 2 of the Revenue and Taxation Code, and all amendments to Part 1.6 and Part 1.7 of Division 2 of the Revenue and Taxation Code, shall automatically become a part of this Act, provided however, that no such amendment shall operate so as to affect the rate of tax imposed by this Act.

4.60.300. Enjoining Collection Forbidden.

No injunction or writ of mandate or other legal or equitable process shall issue in any suit, action, or proceeding in any court against the State or the County, or against any officer of the State or the County, to prevent or enjoin the collection under this Act, or Part 1.6 of Division 2 of the Revenue and Taxation Code, of any tax or any amount of tax required to be collected.

4.60.310. Termination of Transactions and Use Tax.

This chapter shall remain operative for 30 years from the operative date of this Act and shall be repealed by operation of this section on that date, unless a later measure is adopted before that date which deletes or extends the termination date.

SEC. 5. EFFECTIVE DATE.

This Act shall take effect 10 days after the certification by the Board of Supervisors of the election results indicating passage of the measure by a majority of the voters casting votes in the election; however, the Operative Date of the tax imposed by this measure shall be July 1, 2027.

SEC. 6. SEVERABILITY.

If any section, subsection, sentence, clause, phrase or word of this Act is for any reason held to be invalid by a court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Act. The people of the County of Fresno hereby declare they would have passed and adopted this Act and each and all provisions hereof irrespective of the fact that any one or more of said provisions be declared invalid.

SEC. 7. LIBERAL CONSTRUCTION.

This measure is an exercise of the initiative power of the people of the County of Fresno to implement a special tax to fund the purposes set forth in the Act, and it shall be liberally construed to effectuate these purposes.

SEC. 8. AMENDMENTS.

The expenditure plan adopted pursuant to this Act may be amended in accordance with Section 4.60.180. Any other amendments to this Act shall require approval by the voters of the County of Fresno.

SEC. 9. CONFLICTING MEASURES.

This measure is intended to be comprehensive. It is the intent of the people of the County of Fresno that, in the event this measure and one or more measures relating to a special tax to fund transportation infrastructure shall appear on the same ballot, the provisions of the other measure or measures shall be deemed in conflict with this measure. In the event that this measure receives a greater number of affirmative votes, the provisions of this measure shall prevail in their entirety, and all provisions of the other measure or measures shall be null and void.

County of Fresno
COUNTY CLERK/REGISTRAR OF VOTERS
JAMES A. KUS

July 8, 2026

CERTIFICATE OF PETITION

I, James A. Kus, County Clerk/Registrar of Voters of the County of Fresno, State of California, by and through the undersigned certifies that:

The petition **FRESNO COUNTY TRANSPORTATION IMPROVEMENT ACT** was filed in the Fresno County Clerk's Department on April 14, 2026:

Number of sections submitted:	**2,114**
Number of signatures submitted:	**32,562**
Number of signatures verified:	**29,752**
Number of signatures found NOT valid:	**7,547**
(Includes 74 duplicates)	
Number of signatures found valid:	**22,205**
Number of signatures required for sufficiency:	**21,909**

THE PETITION IS FOUND TO BE ***SUFFICIENT***.

IN WITNESS WHEREFORE, I HAVE HEREUNTO SET MY HAND AND AFFIXED MY OFFICIAL SEAL THIS **8th** of **JULY, 2026**.

James A. Kus
County Clerk/Registrar of Voters

BY: Shelby Torres
Staff Analyst

2221 Kern Street • Fresno, California 93721
Elections (559)600-8683 • Toll-Free (844)977-8683 • Fax (559)488-3279
Email: Clerk-Elections@FresnoCountyCA.gov

The County of Fresno is an Equal Employment Opportunity Employer

NOTICE OF INTENTION TO CIRCULATE PETITION

Notice is hereby given by the persons whose names appear hereon of their intention to circulate the petition within the County of Fresno for the purpose of continuing a half-cent county sales tax—without raising taxes—to keep local dollars here at home to fix our local roads, improve public transit, and create good-paying local jobs, with independent citizen oversight. A statement of the reasons of the proposed action as contemplated in the petition is as follows:

Fresno County is a great place to live, work, and raise a family—but our transportation system is falling behind. Crumbling streets, unsafe roads, limited transit options, and aging infrastructure threaten our quality of life, economy, and safety. Residents experience these impacts every day through longer commutes, damaged vehicles, unsafe walking conditions, and fewer transportation choices.

The good news is we can address these challenges by fixing local roads, keeping our dollars here at home, creating good-paying local jobs, and keeping Fresno County residents connected—without raising taxes. Maintaining a half-cent transportation sales tax is essential to fixing what matters most and building a safer, healthier, and more connected county for generations to come.

For nearly four decades, local transportation sales tax funds have largely focused on building and expanding major state freeways, while neighborhood streets, sidewalks, and rural roads connecting our communities have been left behind. As a result, many local roads are now in poor condition. Pothole-riddled streets can cost each driver up to $2,000 in vehicle repairs, while deferred road maintenance across Fresno County has grown to an estimated $5.4 billion. Without a reliable local funding source, these costs will continue to rise, placing a greater burden on families, seniors, and small businesses.

Maintaining a sales tax allows Fresno County to fix what matters most by prioritizing the repair and maintenance of neighborhood streets and roads. These investments will improve traffic safety, reduce travel times, and ensure emergency responders can reach residents quickly when it matters most. The plan also invests in basic infrastructure that many neighborhoods still lack—sidewalks, crosswalks, curb and gutter, streetlights, bike lanes, and safer routes to schools—so children, seniors, and people with disabilities can move safely through their communities.

Reliable public transportation is another critical need. Nearly 80 percent of transit riders in Fresno County depend entirely on public transit and have no access to a private vehicle. Yet current services often do not run frequently enough or to the places people need to go. This initiative allows us to improve the efficiency of our transit services, better connecting residents to jobs, schools, doctor appointments, grocery stores, and other essential services.

Funds are legally protected, independently audited each year, and overseen by a citizens' oversight committee to ensure every dollar is spent as voters intend. These investments will create thousands of good-paying local jobs, strengthen the local economy, and improve air quality by supporting more and better transportation options.

The choice is clear. Without this measure, roads will continue to deteriorate, critical safety improvements will be delayed, and transit services will be reduced. By maintaining a sales tax, Fresno County can fix local roads, protect taxpayers, and build a transportation system that works for everyone—now and in the future.

Join us at www.movingfresnoforward.com or info@movingfresnoforward.com

Signature: Lynne Ashbeck

Print Name: Lynne Ashbeck

Address: 1033 Tyler St, Clovis 93612

Signature: JERRY P DYER

Print Name: JERRY P. DYER

Address: 2600 FRESNO ST., CA 93721

Signature:

Print Name: Veronica Garibay

Address: 2210 San Joaquin St, Fresno 93721

Signature: Joan E. Eaton

Print Name: Joan E. Eaton

Address: 1260 Fulton St Ste 200 Fresno CA 93721

FILED

JAN 26 2026

FRESNO COUNTY CLERK

By: DEPUTY

ACKNOWLEDGEMENT OF PROPONENT

I, Lynne Ashbeck, acknowledge that it is a misdemeanor under state law (Section 18650 of the Elections Code) to knowingly or willfully allow the signatures on an initiative petition to be used for any purpose other than qualification of the proposed measure for the ballot. I certify that I will not knowingly or willfully allow the signatures for this initiative to be used for any purpose other than qualification of the measure for the ballot.

Lynne Ashbeck
Signature of Proponent

Dated this 21 day of January, 2026

FILED
JAN 26 2026
FRESNO COUNTY CLERK
By DEPUTY

ACKNOWLEDGEMENT OF PROPONENT

I, JERRY DYER, acknowledge that it is a misdemeanor under state law (Section 18650 of the Elections Code) to knowingly or willfully allow the signatures on an initiative petition to be used for any purpose other than qualification of the proposed measure for the ballot. I certify that I will not knowingly or willfully allow the signatures for this initiative to be used for any purpose other than qualification of the measure for the ballot.

JERRY P. DYER

Signature of Proponent

Dated this 22ND day of January, 2026

FILED

JAN 26 2026

FRESNO COUNTY CLERK

By DEPUTY

ACKNOWLEDGEMENT OF PROPONENT

I, Joan E. Eaton, acknowledge that it is a misdemeanor under state law (Section 18650 of the Elections Code) to knowingly or willfully allow the signatures on an initiative petition to be used for any purpose other than qualification of the proposed measure for the ballot. I certify that I will not knowingly or willfully allow the signatures for this initiative to be used for any purpose other than qualification of the measure for the ballot.

Joan E. Eaton
Signature of Proponent

Dated this 23 day of January, 2026

FILED
JAN 26 2026
FRESNO COUNTY CLERK
By _____ DEPUTY

ACKNOWLEDGEMENT OF PROPONENT

I, Veronica Gamboa, acknowledge that it is a misdemeanor under state law (Section 18650 of the Elections Code) to knowingly or willfully allow the signatures on an initiative petition to be used for any purpose other than qualification of the proposed measure for the ballot. I certify that I will not knowingly or willfully allow the signatures for this initiative to be used for any purpose other than qualification of the measure for the ballot.

Signature of Proponent

Dated this 22 day of January, 2026

FILED
JAN 26 2026
FRESNO COUNTY CLERK
By DEPUTY

FILED
JAN 26 2026
FRESNO COUNTY CLERK
By DEPUTY

The people of the County of Fresno ordain as follows:

SECTION 1. TITLE.

This Act shall be known, and may be cited, as the "Fresno County Transportation Improvement Act."

SEC. 2. FINDINGS AND DECLARATIONS.

The people of the County of Fresno hereby find and declare all of the following:

(a) Fresno County is a great place to live and raise a family, but crumbling streets, unsafe roads, and lack of transportation options threaten our quality of life.

(b) Aging infrastructure, including the roads connecting our cities and the sidewalks on streets near our homes, schools, and parks, is in serious need of investment. An estimated $5.4 billion is needed to bring roads to "good" and "safe" condition and reduce deferred maintenance.

(c) Connected and well-maintained streets and roads, as well as enhanced safety improvements and traffic calming measures, facilitate access by first responders and reduce the time it takes to respond to emergencies.

(d) More than 100 people are killed and over 300 are severely injured on Fresno County roads each year, with pedestrians and bicyclists facing disproportionate risk. Improving roadway safety and building and maintaining protected pedestrian and bike lanes are urgently needed.

(e) Repairing, rebuilding, and maintaining the road system will improve travel time, accessibility, traffic safety, and public health, and will also address transportation related costs.

(f) Since 1986, transportation sales tax proceeds have largely been spent on state freeways and new roads, leaving local roads in disrepair. Pothole-riddled streets lead to increased costs for car maintenance and fuel, with repairs from pothole damage costing each driver up to $2,000.

(g) Approximately 80% of public transit users in Fresno County are entirely dependent on public transportation and lack access to a private vehicle. Current public transportation services do not transport people to all the places they need to go and often do not operate at the times people need to travel. Additionally, the rising cost of housing in Fresno County and the lack of services in rural areas often force longer commutes and trips to access doctor's appointments and grocery stores.

(h) To keep Fresno County safe, livable, and thriving, we need to invest in projects to reduce traffic, fix crumbling streets and roads, and improve transportation countywide.

(i) The increasing frequency of major rain and flooding events, extreme heat, and forest fires requires investments in resilient infrastructure to decrease property damage and improve public health and safety.

(j) This Act is focused on the essential transportation improvements that will make our existing roads safer and more efficient, improve our transit system, and make life better for Fresno County residents by increasing access to jobs, education, healthcare, groceries, and other basic amenities.

(k) The time is now. Without this measure, we will experience further road deterioration; little to no investment in basic infrastructure like sidewalks, crosswalks, curbs, gutters, bike lanes, and trails; and a reduction in transportation services countywide.

(l) Funding from this Act is guaranteed to go directly to Fresno County transportation priorities and nothing else. The funds go directly into a special account politicians can't touch and, if the funds are misused, violators will be subject to possible criminal prosecution by the Fresno County District Attorney and State Attorney General.

(m) Independent audits every year and a Citizens Oversight Committee will ensure transparency and that funds are spent on transportation priorities as the voters intend.

SEC. 3. PURPOSE AND INTENT.

It is the intent of the people of the County of Fresno in enacting this Act to do all of the following:

(a) Fix what matters most by repairing and maintaining existing local streets and roads first.

(b) Keep people and our kids safe by investing in safety improvements, including enhanced lighting, road safety, and safe routes to school.

(c) Get people where they need to go efficiently by improving the accessibility and affordability of public transit systems that connect the public to essential services and amenities.

(d) Improve transportation alternatives by building and maintaining bikeways, pedestrian facilities, and public transit options.

(e) Keep the transportation system safe with repairs, retrofits, and safety upgrades, allowing students, seniors, and people with disabilities to travel safely.

(f) Allow seniors, students, people with disabilities, veterans, and active military personnel to access public transit at no cost.

(g) Create thousands of local quality jobs that pay a living wage and provide healthcare and retirement benefits for workers.

(h) Build strong, vibrant communities by adding shade, trees, and other features to combat heat, beautify transportation corridors, and ensure no neighborhood is left behind.

(i) Foster innovation by making smart investments that keep our county competitive and connected — now and in the future.

(j) Reduce air pollution to protect Fresno County's environment and quality of life.

(k) Protect taxpayers with strict accountability measures, including independent audits and citizens' oversight, to ensure funds are spent as intended by voters.

SEC. 4. FRESNO COUNTY TRANSPORTATION IMPROVEMENT ACT.

Chapter 4.60 is added to Title 4 of the Ordinance Code of Fresno County to read as follows:

Chapter 4.60. Fresno County Transportation Improvement Act

4.60.010. Title.

This chapter shall be known as the Fresno County Transportation Improvement Act.

4.60.020. Definitions.

For the purposes of this chapter, the following definitions shall apply:

A. "Act" means the Fresno County Transportation Improvement Act.

B. "Board of Supervisors" means the Fresno County Board of Supervisors.

C. "Class I Facilities" means bike paths or shared-use paths that provide a completely separated right-of-way designated for the exclusive use of bicycles and pedestrians, with crossflows by motorists minimized, as defined in subdivision (a) of Section 890.4 of the California Streets and Highways Code.

D. "Class II Facilities" means bike lanes that provide a restricted right-of-way designated for the exclusive or semi-exclusive use of bicycles, with through travel by motor vehicles or pedestrians prohibited, but with vehicle parking and crossflows by pedestrians and motorists permitted, as defined in subdivision (b) of Section 890.4 of the California Streets and Highways Code.

E. "Class III Facilities" means bike routes that provide a right-of-way on-street or off-street, designated by signs or permanent markings and shared with pedestrians and motorists, as defined in subdivision (c) of Section 890.4 of the California Streets and Highways Code.

F. "Class IV Facilities" means cycle tracks or separated bikeways that provide a right-of-way designated exclusively for bicycle travel adjacent to a roadway and that are separated from vehicular traffic by physical elements, including, but not limited to, grade separations, flexible posts, inflexible physical barriers, or on-street parking, as defined in subdivision (d) of Section 890.4 of the California Streets and Highways Code.

G. "Committee" means the Citizens Oversight Committee established pursuant to Section 4.60.170.

H. "Complete street" means a transportation facility that is planned, designed, constructed, operated, and maintained to provide comfortable and convenient mobility, and improve accessibility and connectivity to essential community destinations for all users, regardless of whether they are traveling as pedestrians, bicyclists, public transportation riders, or drivers.

I. "Council of Governments" means the Fresno Council of Governments.

J. "County" means the county government of the County of Fresno.

K. "County region" or "District" means the geographic territory of the County of Fresno, including all incorporated and unincorporated areas therein.

L. "Existing neighborhoods" means neighborhoods in existence within the adopted legal boundaries of each jurisdiction with permanent structures and public infrastructure or public utilities as of November 3, 2026.

M. "Fund" means the Fresno County Transportation Improvement Act Fund established by Section 4.60.040.

N. "Operative Date" means July 1, 2027.

4.60.030. Purpose.

This Act is adopted to achieve the following purposes, and directs that the provisions hereof be interpreted to accomplish those purposes:

A. To impose a retail transactions and use tax in accordance with the provisions of Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code.

B. To adopt a retail transactions and use tax ordinance that incorporates provisions identical to those of the Sales and Use Tax Law of the State of California insofar as those provisions are not inconsistent with the requirements and limitations contained in Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code.

C. To adopt a retail transactions and use tax ordinance that imposes a tax and provides a measure therefor that can be administered and collected by the California Department of Tax and Fee Administration in a manner that adapts itself as fully as practicable to, and requires the least

possible deviation from, the existing statutory and administrative procedures followed by the California Department of Tax and Fee Administration in administering and collecting the California State Sales and Use Taxes.

D. To adopt a retail transactions and use tax ordinance that can be administered in a manner that will be, to the greatest degree possible, consistent with the provisions of Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code, minimizes the cost of collecting the transactions and use taxes, and at the same time, minimizes the burden of record keeping upon persons subject to taxation under the provisions of this Act.

E. To raise appropriate revenues to support transportation investments and programs to fix and maintain roads, improve neighborhood infrastructure, enhance public transit and rideshare options, and support active transportation. These programs include the following:

1. The Existing Neighborhood Streets and Roads Repair and Maintenance Program, which is intended to bring the road systems within the incorporated cities and the rural unincorporated areas of the county region, including arterials, collectors, and neighborhood streets, to an average Pavement Condition Index (PCI) of 70, which is within the "Good" category as indicated in the Pavement Management System (PMS) report. Funds under this program go directly to incorporated cities and the County for local street and road repair and maintenance, traffic safety, active transportation, bicycle and pedestrian facilities, and safe routes to school.

2. The Public Transportation Program, which addresses public transit systems and services throughout the county region. The funding under this program will be used to improve bus, microtransit, and mass transit frequencies; paratransit services; transit infrastructure, such as shelters and transfer centers; and point-to-point programs for seniors, children, students, veterans, active military personnel, and mobility-challenged individuals.

3. The Regional Connectivity Program, which facilitates the movement of people and goods, and the efficient delivery of services, by providing matching funds for major projects benefiting multiple jurisdictions within the county region that enhance connectivity along major corridors, strengthen connections within the urban area and between the cities and rural communities, and foster economic growth.

4. The Access and Innovation Program, which provides for planning and projects that enable new technologies, invest in zero-emission infrastructure, and increase access to destinations.

5. The Administration, Performance Measures, Requirements, and Indicators Program, which includes administration and planning activities of the Council of Governments.

F. To require annual audits and oversight by a citizens oversight committee to ensure funds are used exclusively for these purposes.

4.60.040. Fresno County Transportation Improvement Act Fund.

There is hereby established in the treasury of the County a special fund called the Fresno County Transportation Improvement Act Fund, which shall be maintained by the County.

4.60.050. Receipt of Proceeds.

All revenue generated by this Act shall be deposited into the Fresno County Transportation Improvement Act Fund.

4.60.060. Use of Proceeds.

A. Monies in the Fund shall be used to reimburse the County for the costs imposed by the California Department of Tax and Fee Administration to collect and administer the tax imposed by this Act, pursuant to Section 4.60.210.

B. The remaining monies in the Fund shall be appropriated each fiscal year to the Council of Governments solely for the purposes specified in this Act.

4.60.070. Existing Neighborhood Streets and Roads Repair and Maintenance Program.

A. 1. Sixty-five percent of the annual revenue in the Fund shall be allocated for the purpose of repairing, rebuilding, and maintaining the road system in the incorporated cities and the unincorporated areas of the county region to improve travel time and accessibility, traffic safety, and public health, as further provided in subsections B to H, inclusive.

2. a. The Council of Governments shall make separate allocations of funds under this section to each of the incorporated cities within the county region, for expenditures by each city within its own jurisdiction, and to the County, for expenditures in the unincorporated areas of the county region.

b. Funds allocated under this paragraph 2 shall be distributed as follows:

i. Each jurisdiction shall receive a base allocation of four hundred thousand dollars ($400,000) each year.

ii. Following allocations made under clause i, the balance of funding to be allocated under this section shall be allocated in proportion to each jurisdiction's population based on the most recent population estimates prepared by the California Department of Finance, weighted 80 percent, and in proportion to each jurisdiction's number of maintained public roadway miles as determined by the most recent Pavement Condition Survey, weighted 20 percent. The allocation to the County shall be based on the population and roadway miles in the unincorporated areas of the county region.

3. Each jurisdiction may use funds provided under this section for any program specified in this section.

4. Nothing in this Act prohibits the eligible jurisdictions from issuing bonds or using other financing mechanisms secured by future revenues to accelerate implementation of this section.

5. Jurisdictions may accumulate program funds for up to five years for match purposes or to fund large-scale projects.

6. All streets and roads constructed or improved in whole or in part with revenue from the Fund shall include complete street features, whenever feasible, to create an overall complete street system for neighborhoods. To reduce overall costs under a single contract, jurisdictions that receive funds under this section may also use other funding sources to address the entire roadway infrastructure under one project.

7. Eligible expenditures under this program include all recognized project phases, including planning and environmental analysis; conceptual, preliminary, and design engineering; right-of-way acquisition, support, and relocation; utilities relocation; construction engineering and inspection; vehicles and equipment; direct staff time, including salary and benefits; consultants and construction contractors selected pursuant to local agency selection processes; and labor, materials, and equipment for day labor.

B. Repair, Maintain, and Construct Local Streets and Roads Program.

1. Jurisdictions that receive funds under this section may expend those funds for purposes of the Repair, Maintain, and Construct Local Streets and Roads Program established by this subsection B. Expenditures under this subsection shall prioritize improvements to local streets that connect to existing neighborhood homes, schools, parks, community services, public transportation, and places of employment. Project development, capital, and maintenance costs shall be eligible for expenditures under this subsection.

2. Projects eligible for expenditures under the Repair, Maintain, and Construct Local Streets and Roads Program shall include all of the following:

a. Repaving and reconstruction of existing local streets to prevent deterioration of the roadway system, based on an industry-standard pavement management system designed to inform cost-effective roadway maintenance. Components for routine accommodation of bicycle and pedestrian travel shall be incorporated, as appropriate, as part of construction projects, including sidewalks, bicycle facilities, rehabilitation and curb ramps, and elements to improve resilience, safety, and accessibility.

b. Public sidewalk repair, reconstruction, and construction in existing neighborhoods; construction of new and maintenance of additional pedestrian facility improvements, including pedestrian bridges, retaining walls, and guardrails; maintenance of pedestrian and bicycle safety improvements, including, but not limited to, safe-hit posts, painted safety zones, green bicycle lanes, and crosswalks; and rehabilitation of other bicycle facilities, such as bicycle paths.

c. Programmatic improvements to the transportation system to make it safer for all users and help achieve greenhouse gas (GHG) reduction requirements. Projects eligible for expenditures may include, but are not limited to, all of the following:

i. Traffic calming projects to reduce vehicular speeds and improve safety, including speed bumps/humps; new or improved pedestrian safety measures, such as ladder crosswalks, curb extensions (bulb-outs) on corners, and pedestrian islands in the medians of major thoroughfares; new and upgraded bicycle lanes and paths; traffic striping and channelization; and bicycle and personal mobility device parking facilities. Quick builds, pilot projects, permanent improvements, intersection redesigns, and larger corridor projects are eligible for expenditures. Related landscaping components may be included.

ii. Installation, maintenance, and upgrade of traffic signs and signals, including for pedestrians and bicyclists; and communications systems, including changeable message signs for incident and special-event traffic management.

d. Multimodal street improvements to improve pedestrian, bicycle, transit, and vehicle circulation and connectivity.

e. Pothole repair, crack sealing, slurry sealing, asphalt overlays, resurfacing, slab replacement, permeable pavement, vegetation control, curb and gutter maintenance, stormwater and drainage controls, shoulder grading, guardrail and barrier repair, bridge maintenance, sign and marking upkeep, street sweeping, landscaping and beautification, and snow and ice removal.

f. Streetlights, signals, traffic calming and other safety features; standard traffic lights, flashing signals, green arrows, pedestrian signals, out-of-service signals, guardrails, rumble strips, sign and pavement marking, speed humps, speed tables, raised crosswalks, and horizontal devices, such as roundabouts and bulb-outs; traffic signal timing, traffic operations centers, and Intelligent Transportation System components.

g. Sidewalks, alleys, bikeways, pedestrian safety features, infrastructure compliant with the Americans with Disabilities Act, crosswalks, traffic calming features, including flashing beacons, lighting, and neighborhood slow zones, pedestrian and bicycle overcrossings and undercrossings, pedestrian paths, walkways, bikeways, and protected bicycle facilities.

h. New curb ramps compliant with the Americans with Disabilities Act, reconstruction of existing ramps, and related roadway work to permit ease of movement.

i. Vehicles and equipment may be purchased with funds provided under this Act only when necessary to carry out work associated with projects funded under this Act. Costs for such purchases must be charged proportionally to each funded project based on actual or reasonably estimated use and may not exceed the pro rata share attributable to projects funded under this Act.

j. Litter-abatement activities pursuant to a state matching-funds program.

3. Each jurisdiction may spend no more than 5 percent of its allocation under the Existing Neighborhood Streets and Roads Repair and Maintenance Program on road expansion or capacity-increasing projects per year. Before a jurisdiction can expend funds pursuant to this paragraph, every local street and road within the jurisdiction shall reach a Pavement Condition Index score of 65 or above.

4. Road expansion or capacity-increasing projects shall not be prohibited by paragraph 3 if they involve significant safety or mobility benefits, as supported by traffic studies that demonstrate reductions in fatalities and serious injuries for all road users. Eligible road expansion or capacity increasing projects shall only include the following:

a. Dedicated public transportation lanes.

b. Dedicated and protected Class I or Class IV Facilities.

c. Safety-motivated turn lanes or intersection improvements that protect all road users and that do not impede bicycle or pedestrian facilities.

5. Funds shall not be used for street or roadway construction in new growth areas or new town developments.

a. For purposes of this paragraph 5, "new growth areas" means geographic areas designated for future residential, commercial, industrial, or mixed-use development that, as of the passage date of this Act, were not zoned for urban development, substantially developed with permanent structures and public infrastructure, and included within an adopted municipal or regional growth boundary, service area, or comprehensive plan authorizing such development. Preliminary approvals, conceptual plans, or applications pending approval shall not be considered evidence of existence.

b. For purposes of this paragraph 5, "new town developments" means large-scale, master-planned developments intended to function as self-contained communities, including residential, commercial, public, and transportation infrastructure that were not incorporated, approved, or under active construction as of the passage date of this Act and require the extension of new public streets, roadways, or transportation infrastructure to serve the development. Preliminary approvals, conceptual plans, or applications pending approval shall not be considered evidence of existence.

6. The County shall annually expend a minimum of between 12 percent and 15 percent of its local allocation in identified disadvantaged unincorporated communities, as defined by paragraph (2) of subdivision (a) of Section 65302.10 of the California Government Code. The Council of Governments shall determine the specific minimum percentage by completing a needs assessment of complete streets pursuant to Section 4.60.140. The County may spend any remaining funds set aside for disadvantaged unincorporated communities in other unincorporated areas of the county region once identified needs have been met, the average Pavement Condition Index score for all disadvantaged unincorporated communities reaches 70, and each local road

within all disadvantaged unincorporated communities attains a Pavement Condition Index score of at least 65.

7. Jurisdictions shall prioritize funding for existing neighborhood roads with the lowest Pavement Condition Index score or in project areas in need of improvement in disadvantaged neighborhoods and communities.

C. Active Transportation.

1. Jurisdictions that receive funds under this section may expend those funds to create a comprehensive, connected network of pedestrian and bicycle routes that link homes, workplaces, schools, parks, transit, and other destinations.

2. Funds expended pursuant to this subsection C may be used to redesign existing streets to be complete streets, prioritizing non-car options, increasing the safety and comfort of pedestrians and cyclists, and improving connections to transit.

3. Every street or road constructed or reconstructed in whole or in part with revenue from the Fund pursuant to this subsection shall include sidewalks, paths, walkways, or equivalent facilities, where feasible and according to the adopted Active Transportation Plan in each jurisdiction.

4. Any maintenance to a street or road funded in whole or in part with revenue from the Fund pursuant to this subsection shall, at a minimum, maintain the existing level of pedestrian and bicycle access, facilities, and safety features along and across the street, road, or highway.

5. Where feasible, every expressway, super-arterial, arterial, or collector road constructed in whole or in part with revenue from the Fund pursuant to this subsection shall include accommodations for bicycle travel at minimum by a striped shoulder with a minimum width of four feet. This four-foot shoulder may be provided as a bike lane or a cycle track. If an existing expressway, super-arterial, or collector road is reconstructed and reconstruction includes pavement widening, that project shall be subject to this requirement.

6. All roadways receiving pavement reconstruction without pavement widening, rehabilitation, or an overlay, slurry seal, chip seal, or seal coat funded in whole or in part with revenue from the Fund pursuant to this subsection shall include accommodations for bicycle travel at a minimum by Class I and Class IV Facilities, unless there is insufficient right-of-way or if there are other physical constraints as determined by a licensed engineer. This four-foot shoulder may be provided as a bike lane or a cycle track.

7. On a multi-lane roadway, funds expended pursuant to this subsection may be used for conversion of travel lanes to bicycle facilities, provided the responsible agency has determined that excess roadway capacity exists and that the bicycle facilities are allowable. Owing to the different costs associated with Class I and Class IV Facilities, funding for this requirement must be roughly equivalent based on expenditures. A jurisdiction may meet this requirement through a combination of other state, federal, and local funding sources, aside from revenue from the

Fund. Safe Routes to Schools projects that include Class I or Class IV Facilities may be counted toward satisfying this requirement.

8. Jurisdictions that expend funds under this subsection shall not expend funds on privately owned streets and roads.

9. Jurisdictions that expend funds under this subsection shall certify to the Council of Governments that expenditures of funds under this subsection meet the following criteria:

a. With respect to Class I Facilities:

i. Class I Facilities are not limited to bicycle use and are available for pedestrian use. Canal banks located in existing neighborhoods that cannot be paved may also be considered Class I Facilities for purposes of this Act.

ii. Class I Facilities, including shared-use paths constructed with funds expended under this subsection, are to the greatest extent possible designed in accordance with the bicycle path design criteria set forth in Chapter 1000 (Bicycle Transportation Design) of the California Highway Design Manual.

iii. Within the Fresno–Clovis Metropolitan Area, Class I Facilities constructed with funds expended under this subsection are a minimum of 12 feet in width, where feasible.

iv. Within the Fresno–Clovis Metropolitan Area, Class I Facilities constructed with funds expended under this subsection are designed so that at-grade crossings are limited to one crossing every one-half mile at signalized intersections for new developments, where feasible and provided that such design does not violate property owner rights.

v. Class I Facilities constructed within existing neighborhoods are designed so that mid-block crossings on collectors, arterials, super-arterials, or expressways satisfy one of the following:

I. Each crossing is controlled by at-grade pedestrian waiting mechanisms, including signalized or flashing crossings or other warning devices.

II. Each crossing is controlled with grade-separated crossings when warranted due to pedestrian or bicycle safety risks, where feasible.

vi. Class I bikeways in rural areas that link rural communities and cities are, to the greatest extent possible, constructed in accordance with Chapter 1000 (Bicycle Transportation Design) of the California Highway Design Manual.

b. Class II and Class III bikeways are, to the greatest extent possible, designed and installed in accordance with Chapter 1000 (Bicycle Transportation Design) of the California Highway Design Manual and the California Manual on Uniform Traffic Control Devices.

c. Class IV bikeways, including separated bikeways or cycle tracks, are, to the greatest extent possible, designed and installed in accordance with Caltrans Design Information Bulletin 89.

10. Any new or modified types of facilities shall be eligible for funding under the Existing Neighborhood Streets and Roads Repair and Maintenance Program if such facilities are included in any future revision of the California Highway Design Manual or related Caltrans design guidance.

11. Trails designed strictly for recreational purposes shall be ineligible for expenditures under this Act.

D. Transit-Oriented Development.

1. A jurisdiction that receives funds under this section may expend the funds to support transportation and other costs to enable housing in mixed-use zone districts within existing neighborhoods. The jurisdiction shall ensure the developments are mixed income and include deed-restricted units affordable to lower-income households.

2. For the purpose of this subsection D, lower-income means 80 percent or less of Area Median Income (AMI), including low-income (50 to 80 percent of AMI), very low-income (30 to 50 percent of AMI), and extremely low-income (below 30 percent of AMI).

E. Bicycle and Pedestrian Facilities Maintenance.

Jurisdictions receiving funds under this section may use the funds for maintenance of bicycle and pedestrian facilities, including, but not limited to, landscaping and tree care; pavement, root-damage, and pothole repairs; irrigation system operation and repair; lighting, signage, striping, and surface resurfacing; litter and weed removal; utility costs; and maintenance of adjacent trailheads or parks.

F. Safe Routes to School.

1. A jurisdiction that receives funds under this section may use this funding to support Safe Routes to School (SRTS) projects, including infrastructure, education, outreach, and planning to support safe transportation to and from schools.

2. Each jurisdiction shall coordinate with school districts within its boundaries to identify and ensure the highest-priority SRTS projects are funded each year. Funds shall be used to prioritize SRTS projects identified as highest priority and urgent.

3. Funds may be used to achieve conformance with Section 22352.5 of the California Vehicle Code, lowering the speed limit in school zones to twenty miles per hour by January 1, 2031. When updating signage and other compliance needs in school zones, jurisdictions should seek to make other SRTS improvements where needed and appropriate.

G. The following metrics shall be used to evaluate performance under this section:

1. The average Pavement Condition Index score for each jurisdiction that receives funds under this section, including arterial, collector, and neighborhood streets, shall be maintained at a minimum average level of 70.

2. At least 120 miles of new Class I or Class IV Facilities shall be maintained and constructed by 2057, as identified in the applicable Active Transportation Plan for each jurisdiction. This requirement shall be apportioned as follows:

a. The cities of Fresno and Clovis shall collectively be responsible for at least 84 miles.

b. The County shall be responsible for at least 36 miles.

c. Any Class I or Class IV Facilities constructed by the remaining cities may be credited toward fulfilling the County's obligation under this paragraph 2.

d. Safe Routes to Schools projects that include new Class I or Class IV Facilities may be counted toward satisfaction of this requirement.

e. Up to 20 percent of this requirement may be met through routine maintenance.

3. a. At least 150 Safe Routes to School projects shall be completed by 2057 that improve walkability, safety, and connectivity for students and reduce serious injuries and fatalities. Projects shall include infrastructure, engineering improvements, and traffic-calming strategies to enhance safety and accessibility for walking and bicycling within a one-mile radius of school zones.

b. The requirement imposed by subparagraph a shall be apportioned as follows:

i. The cities of Fresno and Clovis shall collectively be responsible for at least 105 projects.

ii. The remaining cities and the County shall collectively be responsible for at least 45 projects.

c. Jurisdictions may collectively satisfy the requirement imposed by subparagraph a by one or more of the following:

i. By completing five Safe Routes to School projects per year, 70 percent in the cities of Fresno and Clovis and 30 percent in the remaining incorporated cities and the unincorporated areas of the county region.

ii. By completing at least 50 projects every 10 years, 70 percent in the cities of Fresno and Clovis and 30 percent in the remaining cities and the unincorporated areas of the county region.

4. The County and each incorporated city within the county region shall pursue reductions in greenhouse gas emissions consistent with targets established quadrennially by the California Air Resources Board.

H. By July 1, 2029, each jurisdiction within the county region, to be eligible for continued funding under this section, shall complete and adopt an Active Transportation and Safe Routes to Schools Implementation and Performance Analysis to establish a baseline assessment and track progress towards achieving the established metrics of this Act. A jurisdiction may use funds allocated in this section to pay the reasonable costs of developing the analysis. The analysis shall include the following:

1. An Active Transportation Analysis addressing Class I, II, III, and IV Facilities that promote connectivity and complete streets throughout the county region and its urbanized areas. This analysis shall, at a minimum, include all of the following:

a. A regional sidewalk, bikeway, and trail inventory assessing the condition, connectivity, and accessibility of sidewalks and pedestrian and bicycle pathways.

b. Actionable strategies to improve and construct new sidewalks, pathways, and bicycle facilities within existing neighborhoods in compliance with established metrics of this Act in order to facilitate travel to major points of interest or destination centers, including, but not limited to, employment centers, educational facilities, parks and open spaces, and medical services.

c. Adopted Active Transportation Plans or Fresno Regional Active Transportation Plans shall serve as the guiding document for the upgrade, installation, and funding of active transportation facilities, provided that the plans include the requirements identified in subparagraphs a and b.

2. A Safe Routes to School (SRTS) analysis developed in coordination with the school districts within its jurisdictional boundaries. The analysis shall include:

a. The number of serious injuries and fatalities within a one-mile radius of each school during the previous five years and annual reduction targets.

b. The highest-priority SRTS projects to be funded to ensure compliance with this section.

c. Adopted SRTS projects or similar plans shall serve as the guiding document for the upgrade, installation, and funding of SRTS facilities, provided that the plans include requirements identified in subparagraphs a and b of paragraph 1 and are coordinated with school districts within the jurisdiction's boundaries.

3. Each jurisdiction within the county region shall develop Active Transportation and Safe Routes to Schools Implementation and Performance Analysis through a robust public process. The public process shall include, at a minimum, all of the following:

a. The jurisdiction shall notify the public of its intent to initiate an analysis and publicly notice the process through which it will solicit public input.

b. The jurisdiction shall hold at least three publicly noticed meetings to solicit public input. Meetings shall be held at accessible locations outside of regular business hours. Translation of materials and interpretation shall be provided.

c. Upon completion of the public meetings, the jurisdiction shall prepare, publish, and formally adopt an analysis, which shall include a prioritized list of projects to be funded during the ensuing five-year period and an accompanying analysis documenting the manner in which public input was solicited, reviewed, and incorporated into the final recommendations, following a public review period of not less than 30 days.

d. Funded projects shall be included in a public database maintained by the Council of Governments, and progress toward completion shall be reported annually until completion, consistent with subsection J of Section 4.60.110.

4.60.080. Public Transportation Program.

A. Twenty-five percent of the annual revenue in the Fund shall be allocated to support an integrated, rapid, resilient, and cost-effective transit network that coordinates public transportation services, where feasible, to reduce costs of service and avoid service duplication, and prioritize improving public transportation system access and use.

B. The Council of Governments shall allocate funding under this section as follows:

1. Ten percent to Clovis Transit.

2. Seventy percent to Fresno Area Express.

3. Twenty percent to the Fresno County Rural Transit Agency.

C. Funds provided under this section shall be expended for the following purposes:

1. Operations, maintenance, and capital costs for maintaining and improving public transportation services.

2. Expanded hours and increased frequency of transit services; evening and weekend service; non-emergency medical transportation; increased frequency between and among cities and communities; first and last mile connections; emergency planning; service integration; paratransit service; community shuttles; and university and college transit options.

3. Deployment of buses, microtransit, carshare, rideshare, vanpool, and Bus Rapid Transit or light rail services.

4. Public transit supportive infrastructure, including disability access infrastructure; sheltered and weather protective bus stops; lighting at bus stops; trash disposal; enhanced pedestrian and bicycle facilities that improve access to transit stops; optimized traffic signals for smoother traffic flow; and investments in modern vehicles and technology, including real-time tracking and audible announcements for passengers. At main hubs and transit centers, where possible, public transportation operators are encouraged to provide and improve water stations and public restrooms.

D. Each transit agency shall ensure services are available for continued support for paratransit, curb-to-curb, van, taxi, and other transportation services for seniors 62 years old and older, and people with disabilities who are unable to use fixed-route transit services. Funds may be expended for operations support, replacement of accessible vans, and replacement and upgrades of supporting equipment. Each year, each transit agency shall certify to the Council of Governments that revenue provided under this section is first being used for this subsection D.

E. Transportation agencies may use the funds allocated under this section for public transportation projects that are included in a local agency capital improvement program or annual budget, or that are approved by resolution at a public hearing of each local agency identifying the eligible project or list of projects or programs.

F. Funds in this section may be used by the Council of Governments to conduct a Regional Transit Consolidation Study to identify opportunities to coordinate or consolidate transit services in order to achieve a seamless passenger travel system for the public, provided that any study, recommendation, or resulting action ensures the protection of public transit employees, including the preservation of wages, benefits, collective bargaining rights, and employment security. The findings and recommendations of the study shall be considered for implementation by the Council of Governments Policy Board.

G. The following metrics shall be used to evaluate performance under this section:

1. For each transit agency receiving funds under this section, transit accessibility performance shall demonstrate year-over-year improvement. Performance shall be measured using a composite index composed of the following indicators: (1) percentage change in total ridership; (2) percentage of urban routes operating at 15-minute or better headways and, in rural areas, average transit travel time relative to comparable personal vehicle travel times or an equivalent accessibility metric; (3) average travel distance or time required to reach a defined set of key destinations; (4) average number of transfers required on commonly used routes; (5) average transfer wait times; and (6) on-time performance, measured as the percentage of trips operating on schedule from origin to destination. Where feasible, each indicator shall be reported both in aggregate and disaggregated by demographic, geographic, and rider group.

2. For each transit agency receiving funds under this section, the annual percentage increase in transit-supportive infrastructure shall grow every year. Performance shall be

measured by quantifiable increases in the following: (1) the number of bus stops and multimodal access points that meet or exceed applicable local, state, and federal accessibility standards; and (2) the linear miles, area coverage, or facility count of bicycle, sidewalk, and pedestrian infrastructure providing direct access to bus stops, transit hubs, schools, population centers, employment centers, and essential services.

H. By July 1, 2029, each transit agency, to be eligible for continued funding under this section, shall complete and adopt a Public Transit Improvement Plan to establish a baseline assessment and track progress towards improving the metrics described in paragraphs 1 and 2 of subsection G of this section. Funds allocated in this section may be used by an agency to pay the reasonable costs of developing the Plan. The Plan shall include the following:

1. Proposed transit service improvement and expansion plans, including mass transit, micro-transit and on-demand transit services.

2. Programs and services that provide continued support for paratransit, curb-to-curb, van, taxi, and other transportation services for those who are unable to use fixed-route transit services, including seniors 62 years old and older and people with disabilities.

3. Strategies for how Fund revenues will be leveraged with state and federal funding to maximize program and service impact.

4. Strategies for the coordination of services and programs across the transit agencies.

I. Each transit agency shall develop a Public Transit Improvement Plan through a robust public process, which shall include, at a minimum, all of the following:

1. The agency shall notify the public of its intent to initiate a plan and publicly notice the process through which it will solicit public input.

2. The agency shall hold at least three publicly noticed meetings to solicit public input. Meetings shall be held at accessible locations outside of regular business hours. Translation of materials and interpretation shall be provided.

3. Upon completion of the public meetings, the agency shall prepare, publish, and formally adopt a plan, which shall include a prioritized list of projects to be funded during the ensuing five-year period and an accompanying analysis documenting the manner in which public input was solicited, reviewed, and incorporated into the final recommendations, following a public review period of not less than 30 days.

4. Funded projects shall be included in a public database maintained by the Council of Governments, and progress toward completion shall be reported annually until completion, consistent with subsection J of Section 4.60.110.

4.60.090. Regional Connectivity Program.

A. One percent of the annual revenue in the Fund shall be allocated to the Fresno Yosemite International Airport. Funds may be used to support operations, infrastructure, transportation access improvements, and multi-modal connections to and from the airport.

B. Four percent of the annual revenue in the Fund shall be allocated to fund regional street, road, and highway improvement projects with direct local benefits.

1. The Council of Governments shall provide funding on the following schedule:

a. By June 30, 2028, for years 1 to 7 of this Act.

b. By June 30, 2034, for years 8 to 15 of this Act.

c. By June 30, 2041, for years 16 to 24 of this Act.

d. By June 30, 2048, for the remaining years of this Act.

2. Agencies eligible for funding under this subsection B shall include the incorporated cities within the county region, the County, and the California Department of Transportation.

3. Projects funded under this subsection B may include projects on the state highway system, regional transportation projects, and projects on major local arterials that serve more than one city or area of the county region. Funds allocated under this section may be used as matching funds for litter-abatement activities pursuant to a state matching-funds program.

4. Each agency shall request project funding from the Council of Governments, which shall be provided through a cooperative funding agreement. These agreements shall allocate funding for the initial project phases. All funding agreements shall reimburse implementing agencies for funds expended. The agreements shall not provide agencies with advance funding.

5. The Council of Governments shall conduct a public engagement process to identify and prioritize projects in the county region. Selected projects shall achieve one or more of the following: reduced vehicle miles traveled, increased multi-modal travel, increased safety by reducing the number of collisions of all road users, improved air quality, increased access to good local jobs, or other direct local benefits to communities. The Council of Governments may prioritize projects that identify state and federal funding to leverage matching funds. The agencies shall complete this process as follows:

a. The Council of Governments shall notify the Citizens Oversight Committee of its intent to initiate a public process and publicly notice the process through which it will solicit public input.

b. The Council of Governments shall publish project solicitation guidelines for projects that further the goals identified in this paragraph 5 and allow at least 60 days for eligible agencies to submit proposals.

c. Upon receipt of project proposals, the Council of Governments shall publish a list of projects and hold at least three publicly noticed meetings across the county region, with at least one on the east side of the county region, at least one on the west side of the county region, and at least one in the urban metro area, for public input. Meetings shall be held at accessible locations outside of regular business hours, and translation of materials and live interpretation shall be provided.

d. Following the public workshops, the Council of Governments shall prepare and publish a list of projects recommended for funding, together with an analysis documenting how public input was considered and incorporated into the recommendations.

e. Projects will be considered and approved by the Council of Governments Policy Board at least 30 days after the list of projects is publicly posted.

6. The Council of Governments may consider bonding future revenues if project needs and deliverability exceed available cash flow.

C. Agencies that receive funds under this section shall report project progress to the Council of Governments. Any project cost increases not associated with subsequent project phases shall be thoroughly justified by the implementing agency, and a funding agreement amendment shall be approved prior to the expenditure of funds in excess of the approved project budget. Agencies that receive any funds under this section shall furnish, install, and maintain project funding signage recognizing the funding contributed by this Act.

D. All major roads, regional transportation projects, and highways constructed, improved, or reconstructed under this section shall comply with paragraphs 5 and 6 of subsection C of Section 4.60.070.

4.60.100. Access and Innovation Program.

A. Four percent of the annual revenue in the Fund shall be allocated for planning and projects that enable new technologies, invest in zero-emission infrastructure, and increase access to destinations.

B. The Council of Governments shall first allocate funds to Clovis Transit, Fresno Area Express, and the Fresno County Rural Transit Agency to ensure the implementation and maintenance of zero-fare programs for special populations. For purposes of this subsection, "special populations" means people with disabilities, veterans and active-duty military personnel, seniors 62 years of age and older, children, and students.

C. If funds remain after the purposes under subsection B are met, the Council of Governments shall award competitive grants, and shall develop implementation policies and guidelines, for projects in the following categories:

1. Clean Energy Projects, which may include electric-vehicle charging stations, hydrogen fueling facilities, compressed natural gas infrastructure, and similar clean-fuel facilities; a Regional Zero-Emission Vehicle Readiness and Implementation Plan developed by the Council of Governments; local agency Zero-Emission Vehicle Readiness and Implementation Plans; clean-vehicle power support facilities; microgrid or solar electric-vehicle battery-charging infrastructure; autonomous vehicle infrastructure projects; or other projects or programs that further clean transportation goals.

2. Travel Choice Projects, which may include regional transportation hubs and micro-mobility hubs designed to provide and identify a range of connected travel choices; innovations in micro-mobility; increased opportunities for telecommuting; and broadband infrastructure to support telecommuting and educational facility purposes.

3. Future Technology Projects, which may include other new technology applications or improvements in emerging or future transportation technologies.

D. The agencies eligible to apply for funding under subsection C shall include the incorporated cities within the county region, the County, the Council of Governments, Fresno Area Express, the Fresno County Rural Transit Agency, and Clovis Transit. Private-sector entities, nonprofit organizations, or other governmental agencies may also submit applications for funding, provided that such applications are submitted through, and sponsored by, the local government agency of the jurisdiction in which the project is located. The incorporated cities within the county region and the County shall generally serve as the primary applicants for program funds; however, for projects or programs of a regional nature, the Council of Governments may serve as the appropriate applicant. For any competitive grant program for which the Council of Governments seeks to apply for funding, the Council of Governments shall adopt a written policy establishing an independent panel to review and score all applications.

4.60.110. Administration, Performance Measures, Requirements, and Indicators Program.

One percent of the annual revenue in the Fund shall be allocated to the Council of Governments to administer this Act. Activities that may be funded under this section shall include the following:

A. Preparing and adopting an annual work program and budget outlining planned expenditures, oversight activities, and administrative costs, and distributing funds pursuant to this Act.

B. Developing requirements for each funding program established by this Act and undertaking specialized studies needed to implement those programs effectively.

C. Undertaking and completing the reporting requirements and technical assistance pursuant to Section 4.60.140.

D. Establishing and updating priority lists for regional connectivity, in coordination with member jurisdictions and consistent with this Act.

E. Conducting an independent audit to ensure compliance, fiscal integrity, and accountability to the public.

F. Conducting reviews to ensure compliance with and progress towards attainment of performance measures under each program.

G. Carrying out ongoing outreach and public education efforts to keep taxpayers informed about project progress, financial performance, and planned updates.

H. Issuing bonds when appropriate to expedite project delivery, reducing overall project costs by leveraging future revenues for near-term improvements.

I. Providing staff support to advisory committees and furnishing staff- or consultant-based technical assistance to member jurisdictions to ensure consistent, equitable, and effective program implementation. Technical assistance may also include grant preparation and submission.

J. Developing and implementing a searchable public database that allows the public to easily access information on how funds are used and how they align with guiding principles and any implementing guideline requirements.

4.60.120. Local Hiring Preference.

Projects funded by this Act are intended to provide direct and indirect economic benefits to the county region through investments in infrastructure and related construction-associated economic activity, including the creation of well-paying jobs for the county region's businesses and residents. In furtherance of these objectives, the Council of Governments, in coordination with its member agencies, shall develop and implement reasonable local hiring and contracting goals and related strategies to help maximize these economic benefits by July 1, 2029, and shall be updated every five years thereafter.

4.60.130. Design and Implementation Elements.

A. Funds allocated to each jurisdiction shall supplement, not supplant, other sources of revenue.

B. Projects funded in part or in whole with revenues from the Fund shall incorporate design and implementation elements that address heat, increased precipitation and flooding, wildfire management, and improvements to air quality, including through the following:

1. Where feasible, the addition, establishment, and maintenance of landscaping and tree canopy along pedestrian walkways, bicycle facilities, local and major roads, highways, and trails in the public right-of-way; provided, however, that each project shall include an analysis of the elements considered, and if trees or shade canopy elements are not included, the project shall document the reasons for such exclusion.

2. Funding shall be prioritized for projects in neighborhoods and communities with lower tree canopy coverage.

3. Where feasible, the addition of curb, gutter, and stormwater drainage improvements.

4. Vegetation management.

C. Funds may be used for the maintenance of landscaping and tree canopy along pedestrian walkways, bicycle facilities, local and major roads, highways, and trails in the public right-of-way, including, but not limited to, irrigation system operation and repair, pruning, landscape and tree canopy preservation, and litter and weed removal.

D. All streets and roads constructed or improved in whole or in part with revenue from the Fund shall include complete street features, where feasible.

E. Expenditures under this Act for street maintenance and repair are encouraged to include complete street elements that do not require additional pavement width.

F. It is the intent of the people of Fresno County that each jurisdiction that receives funding under this Act adopt and follow "dig once" construction project principles, requiring public and private roadway projects to accommodate the installation of conduit to support community needs, including but not limited to, broadband fiber optics, stormwater systems, and sidewalks.

G. Jurisdictions or agencies shall use best efforts to implement projects consistent with the intent of this Act. In the event a jurisdiction or agency determines that a proposed project or project requirement is not feasible, the jurisdiction or agency shall, following a duly noticed public hearing, formally declare and document the reasons for such infeasibility.

H. Funds made available under this Act may be used, in whole or in part, as matching funds for eligible state and federal programs in order to increase benefits to residents of the county region.

4.60.140. Council of Governments Reporting Requirements and Technical Assistance.

A. By July 1, 2029, the Council of Governments shall complete and adopt the following studies and analyses to establish a baseline assessment and track progress towards achieving metrics described in Sections 4.60.070 and 4.60.080. The Council of Governments shall be eligible to receive reimbursement for reasonable costs incurred in completing the required studies and analyses from the jurisdictions and agencies that receive funding in sections 4.60.070 and 4.60.080. The studies and analyses shall include the following:

1. A countywide Pavement Management System analysis, the results of which shall be furnished to each eligible agency. The Council of Governments shall use the Pavement Management System analysis to evaluate each agency's progress toward achieving metrics described in paragraph 1 of subsection G of Section 4.60.070.

2. A Regional Transit Agency Service Consolidation study in coordination with the existing transit agencies and jurisdictions to assess the feasibility of consolidating services to achieve a seamless passenger system for the public.

3. A needs assessment of complete streets, including determining the Pavement Condition Index of disadvantaged unincorporated communities pursuant to paragraph 6 of subsection B of Section 4.60.070.

B. The Council of Governments shall establish and regularly update protocols and procedures to assist jurisdictions and agencies in the implementation of this Act. Protocols and procedures may include the following:

1. Compliance with Act requirements at the annual, five-year, and ten-year intervals.

2. Technical assistance to eligible jurisdictions and agencies to comply with Act requirements.

3. Standard reporting templates.

4. Guidelines for implementation of the competitive funding program described in subsection C of Section 4.60.100.

4.60.150. Reporting and Review Requirements.

A. Each agency that receives funds under this Act shall complete and submit to the Council of Governments an annual independent audit to verify that program funds were expended in compliance with the requirements of this Act. Any agency found to be out of compliance shall be subject to withholding of program funds until appropriate reimbursements are made and compliance is achieved.

B. On an annual basis, each agency that receives funds under this Act shall complete and submit a performance report to the Council of Governments identifying expended funds and projects that used proceeds from this Act in whole or in part. Any agency that expends funds allocated under Section 4.60.070 on services shall also describe such uses in its annual report. The Council of Governments shall establish any additional reporting requirements necessary to carry out the purposes of this Act.

C. The Council of Governments shall conduct an independent audit of the proceeds generated by this Act, as well as the expenditures from the Fund. An independent auditor's report may be

funded by the revenues from the Fund. This shall include an accounting of revenues received and expenditures made from the Fund and shall be presented annually to the Council of Governments and Board of Supervisors and made available for public review. The audit report shall be posted on the internet website of the Council of Governments.

D. On an annual basis, the Council of Governments shall publish a report identifying projects completed or supported by Fund revenues by eligible agencies.

E. By July 1, 2029, and updated annually thereafter, the Council of Governments shall develop and implement a public database that allows the public to easily access information on how funds are used, completed projects, progress towards projects under construction, and compliance with the requirements of this Act.

F. The Council of Governments shall establish compliance check requirements, fund accumulation and noncompliance requirements, claims and dispute-resolution procedures, monitoring and reporting requirements, including the establishment of deadlines for reports required under this section, and an audit requirement for jurisdictions that receive funds under this Act.

4.60.160. Five Year Plan Updates.

A. Each jurisdiction's Active Transportation and Safe Routes to Schools Implementation and Performance Analysis required by subsection H of Section 4.60.070, and each transit agency's Public Transit Improvement Plan required by subsection H of Section 4.60.080, shall be updated every five years over the life of this Act through a robust public process.

B. The public process required by subsection A shall include, at a minimum, all of the following:

1. The jurisdiction or agency shall notify the public of its intent to initiate an update to the adopted plan or plans and publicly notice the process through which it will solicit public input.

2. The jurisdiction or agency shall hold at least three publicly noticed meetings to solicit public input. Meetings shall be held at accessible locations outside of regular business hours. Translation of materials and live interpretation shall be provided.

3. Upon completion of the public meetings, the jurisdiction or agency shall prepare, publish, and formally adopt an updated plan or analysis, which shall include a prioritized list of projects to be funded during the ensuing five-year period and an accompanying analysis documenting the manner in which public input was solicited, reviewed, and incorporated into the final recommendations, following a public review period of not less than 30 days.

4. Funded projects shall be included in a public database maintained by the Council of Governments, and progress toward completion shall be reported annually until completion, consistent with subsection J of Section 4.60.110.

C. The countywide Pavement Management System analysis prepared by the Council of Governments pursuant to paragraph 1 of subsection a of Section 4.60.140 shall be updated every five years following its initial publication.

4.60.170. Citizens Oversight Committee.

A. The Citizens Oversight Committee shall be formed within six months following the effective date of this Act.

B. The purpose of the Committee is to inform the public and to ensure that expenditures from the proceeds of the tax imposed by this Act are spent in accordance with the Act, and the Committee shall have the following responsibilities:

1. Receiving, reviewing, and recommending action on independent financial and performance audits.

2. Receiving, reviewing, and recommending action on reports, studies, and plans directly related to programs, revenues, or expenditures.

3. Reviewing and commenting on expenditures for consistency with this Act.

4. Annually reviewing sales-tax expenditures and publicizing findings.

5. Presenting recommendations and findings in a formal annual public report.

6. Conducting the comprehensive review of the Act, at a minimum, every ten years pursuant to section 4.60.170.

7. Referring any misuse of revenue to the Fresno County District Attorney, the Attorney General, and any other appropriate agency.

C. The Committee shall consist of 11 members. Each member shall satisfy all of the following:

1. Be a United States citizen who is at least 18 years of age and a resident of Fresno County.

2. Not be a holder of any elected office.

3. Not be an employee of the County, any incorporated city in the county region, the Fresno County Rural Transit Agency, Caltrans, or the Council of Governments.

4. Have no financial interest in any Council of Governments-funded project.

D. The membership of the Committee shall be comprised as follows:

1. Six members shall be at-large public members who satisfy the following geographic requirements:

a. Three members shall reside within the Fresno-Clovis Metropolitan Area.

b. Three members shall reside outside the Fresno-Clovis Metropolitan Area, including one member from the east side of the county region, one from the west side of the county region, and one from an unincorporated area.

c. At least one member shall reside in each of the five Fresno County supervisorial districts.

2. Five members representing the diversity of the county region, providing a balance of viewpoints.

E. Committee members shall be selected by the Council of Governments Policy Board, consisting of the mayors of the incorporated cities in the county region and the Chair of the Fresno County Board of Supervisors or their designee. Whenever vacancies occur, openings shall be publicly noticed at least 60 days prior to the application deadline.

F. Members shall serve four-year terms and may serve consecutive terms. Members shall receive compensation of fifty dollars ($50) for each meeting attended.

G. Members shall serve no more than eight years, except that a member appointed to an initial term of less than four years may serve up to 10 total years. Vacancies shall be filled using the same selection process for the remainder of the term. Terms shall be staggered to avoid replacing more than two members in any recruitment period.

H. The Committee shall annually select a Chair and Vice Chair from among its members, each serving a one-year term. The Chair shall call meetings, set agendas, and preside over meetings. The Vice Chair shall perform these duties in the Chair's absence.

I. The Committee shall meet at least quarterly and at such additional times as the Committee deems necessary. All meetings shall comply with the Ralph M. Brown Act and shall be conducted in accordance with Robert's Rules of Order. The Committee shall not employ proxy voting.

J. Members of the Committee shall annually file a Statement of Economic Interests in accordance with Chapter 7 of Title 9 of the California Government Code.

K. The Committee may establish subcommittees to carry out specific aspects of its duties. All subcommittees shall consist of an odd number of members.

L. A quorum shall consist of a majority of active Committee members. Actions shall be approved by a simple majority of the quorum present.

M. The Council of Governments shall provide technical and administrative staffing support, subject to Committee approval. Staffing costs and necessary outside services shall be paid from the monies identified in Section 4.60.110. Expert staff may be requested to present information to the Committee as needed.

N. The Committee shall review all reports published by each city and the County detailing planned budgets and financial expenditures of proceeds from the Fund.

O. The Committee shall oversee an annual fiscal and compliance audit using an independent auditor, identifying all directly funded projects and accumulated revenues and expenditures. The Committee shall oversee and publish an annual report presenting audit results to the Council of Governments Policy Board.

4.60.180. Amendments to The Act

A. It is the intent of the people of the County of Fresno that this Act be amended only through a public review process, except as expressly provided in this section and only to the extent the amendment is consistent with the purposes and intent of this Act.

B. 1. The Council of Governments Policy Board shall initiate a comprehensive review of the Act, at a minimum, every ten years and refer the public review process to the Citizens Oversight Committee.

2. The Citizens Oversight Committee shall conduct the comprehensive review and evaluation of the Act.

3. The Citizens Oversight Committee shall oversee the public process, which shall allow a minimum of 90 days to conduct at least three public workshops. At least one public workshop shall be held in the east side of the county region, at least one public workshop shall be held in the west side of the county region, and at least one public workshop shall be held in the urban metro area. Public meetings shall be accessible to the public and held at accessible locations outside of regular business hours. Translation of materials and live interpretation services shall be provided.

4. Following the public process, the Committee shall submit evaluation findings and recommendations to the Council of Governments Policy Board and the public for review and input. The Committee shall allow a minimum of 30 days for public comment.

5. a. The Council of Governments Policy Board shall consider evaluation findings and recommendations at a public hearing and shall adopt proposed amendments to the Act at the next regularly scheduled meeting. The Council of Governments Policy Board shall approve any amendments in accordance with its double-weighted voting system.

b. Each member shall be assigned a weighted voting percentage based on population. Approval of any action shall require satisfaction of both of the following conditions:

i. Jurisdictions representing over 40 percent of the population of the county region must be in favor of an action.

ii. A majority of all members must support the action.

6. The Council of Governments Policy Board shall submit any proposed amendments to the Act to the Board of Supervisors, which may adopt the amendments only if the amendments further the purposes of this Act.

C. The Citizens Oversight Committee may propose amendments to the programs established by this Act under the public review procedures provided in subsection B and shall submit any proposed amendments to the Council of Governments Policy Board and the Board of Supervisors for approval as provided by paragraphs 5 and 6 of subsection B.

D. The people of the County of Fresno declare that the elimination of any program established by this Act does not further the purposes of the Act. Any modification to the allocation of revenues between programs established by this Act shall require approval of the voters.

E. After a request from the Council of Governments Policy Board, the Board of Supervisors may amend the Act outside the comprehensive review process to address a locally declared emergency, an immediate threat to public health and safety, or the need to timely leverage large-scale, one-time state or federal funding opportunities.

F. During the term of this Act, the Board of Supervisors may authorize the transfer of public transportation funding allocated under Section 4.60.080 to a newly created regional transit district, or similar entity, in connection with a merger or consolidation of the existing public transportation agencies identified in Section 4.60.080.

4.60.190. Supplement to Existing Funding For Transportation.

The people of the County of Fresno find and declare that the transportation infrastructure needs of the county region require more resources than what are currently provided. In adopting this Act, the people of the County of Fresno choose to provide additional resources to supplement, and not supplant, local, state, federal, and other funding for transportation infrastructure county-wide.

4.60.200. Regional Transportation Mitigation Fee.

A. Consistent with existing law, the Regional Transportation Mitigation Fee Program established in 2006 as part of Measure C may be used to provide funding for projects funded by this Act, provided that such use is consistent with state law governing impact mitigation fees.

B. The Council of Governments, consistent with nexus requirements, shall have the authority to allocate Regional Transportation Mitigation Fee revenues based upon regional priority needs

within the county region, in a manner consistent with Sections 4.60.070 to 4.60.100, inclusive, and in a manner consistent with state law governing impact mitigation fees.

C. No later than June 30, 2028, all jurisdictions shall extend the Joint Powers Agreement establishing the Regional Transportation Mitigation Fee Program, consistent with Section 7 of that Joint Powers Agreement. Any city or the County that elects not to implement the Regional Transportation Mitigation Fee shall forfeit annually from its allocation under Section 4.60.070 an amount equal to the Regional Transportation Mitigation Fee that would otherwise have been paid for development projects within that jurisdiction during the applicable year. An agency that elects not to implement the Regional Transportation Mitigation Fee shall notify the Council of Governments of that decision and shall file an advisory report with the Council of Governments for each development project indicating the amount of the fee that would have been paid. The Council of Governments shall calculate the total annual Regional Transportation Mitigation Fee obligation for that agency and deduct the appropriate amount from that agency's allocation under Section 4.60.070.

4.60.210. Contract with State.

Prior to the operative date of this chapter, the County shall contract with the California Department of Tax and Fee Administration to perform all functions incident to the administration and operation of this transactions and use tax ordinance, provided that, if the County shall not have contracted with the California Department of Tax and Fee Administration prior to the operative date of this chapter, it shall nevertheless so contract and in such a case the operative date of this chapter shall be the first day of the first calendar quarter following the execution of such a contract.

4.60.220. Transactions Tax Rate.

For the privilege of selling tangible personal property at retail, a tax is hereby imposed upon all retailers in the incorporated and unincorporated territory of the District at the rate of 0.5 percent of the gross receipts of any retailer from the sale of all tangible personal property sold at retail in said territory on and after the operative date of this Act.

4.60.230. Place Of Sale.

For the purposes of this Act, all retail sales are consummated at the place of business of the retailer unless the tangible personal property sold is delivered by the retailer or his agent to an out-of-state destination or to a common carrier for delivery to an out-of-state destination. The gross receipts from such sales shall include delivery charges, when such charges are subject to the state sales and use tax, regardless of the place to which delivery is made. In the event a retailer has no permanent place of business in the State or has more than one place of business, the place or places at which the retail sales are consummated shall be determined under rules and regulations to be prescribed and adopted by the California Department of Tax and Fee Administration.

4.60.240. Use Tax Rate.

An excise tax is hereby imposed on the storage, use or other consumption in the District of tangible personal property purchased from any retailer on and after the operative date of this Act for storage, use or other consumption in said territory at the rate of 0.5 percent of the sales price of the property. The sales price shall include delivery charges when such charges are subject to state sales or use tax regardless of the place to which delivery is made.

4.60.250. Adoption Of Provisions Of State Law.

Except as otherwise provided in this Act and except insofar as they are inconsistent with the provisions of Part 1.6 of Division 2 of the Revenue and Taxation Code, all of the provisions of Part 1 (commencing with Section 6001) of Division 2 of the Revenue and Taxation Code are hereby adopted and made a part of this Act as though fully set forth herein.

4.60.260. Limitations On Adoption Of State Law And Collection Of Use Taxes.

In adopting the provisions of Part 1 of Division 2 of the Revenue and Taxation Code:

A. Wherever the State of California is named or referred to as the taxing agency, the name of this County shall be substituted therefor. However, the substitution shall not be made when:

1. The word "State" is used as a part of the title of the State Controller, State Treasurer, State Treasury, or the Constitution of the State of California.

2. The result of that substitution would require action to be taken by or against this County or any agency, officer, or employee thereof rather than by or against the California Department of Tax and Fee Administration, in performing the functions incident to the administration or operation of this Act.

3. In those sections, including, but not limited to, sections referring to the exterior boundaries of the State of California, where the result of the substitution would be to:

a. Provide an exemption from this tax with respect to certain sales, storage, use, or other consumption of tangible personal property which would not otherwise be exempt from this tax while such sales, storage, use, or other consumption remain subject to tax by the State under the provisions of Part 1 of Division 2 of the Revenue and Taxation Code; or

b. Impose this tax with respect to certain sales, storage, use, or other consumption of tangible personal property which would not be subject to tax by the state under the said provision of that code.

4. In Sections 6701, 6702 (except in the last sentence thereof), 6711, 6715, 6737, 6797 or 6828 of the Revenue and Taxation Code.

B. The word "District" shall be substituted for the word "State" in the phrase "retailer engaged in business in this State" in Section 6203 and in the definition of that phrase in Section 6203.

1. "A retailer engaged in business in the County" shall also include any retailer that, in the preceding calendar year or the current calendar year, has total combined sales of tangible personal property in this state or for delivery in the State by the retailer and all persons related to the retailer that exceeds five hundred thousand dollars ($500,000). For purposes of this section, a person is related to another person if both persons are related to each other pursuant to Section 267(b) of Title 26 of the United States Code and the regulations thereunder.

4.60.270. Permit Not Required.

If a seller's permit has been issued to a retailer under Section 6067 of the Revenue and Taxation Code, an additional transactor's permit shall not be required by this Act.

4.60.280. Exemptions And Exclusions.

A. There shall be excluded from the measure of the transactions tax and the use tax the amount of any sales tax or use tax imposed by the State of California or by any city, city and county, or county pursuant to the Bradley-Burns Uniform Local Sales and Use Tax Law or the amount of any state-administered transactions or use tax.

B. There are exempted from the computation of the amount of transactions tax the gross receipts from:

1. Sales of tangible personal property, other than fuel or petroleum products, to operators of aircraft to be used or consumed principally outside the County in which the sale is made and directly and exclusively in the use of such aircraft as common carriers of persons or property under the authority of the laws of this State, the United States, or any foreign government.

2. Sales of property to be used outside the District that is shipped to a point outside the District, pursuant to the contract of sale, by delivery to such point by the retailer or his agent, or by delivery by the retailer to a carrier for shipment to a consignee at such point. For the purposes of this paragraph, delivery to a point outside the District shall be satisfied:

a. With respect to vehicles (other than commercial vehicles) subject to registration pursuant to Chapter 1 (commencing with Section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with Section 21411 of the Public Utilities Code, and undocumented vessels registered under Division 3.5 (commencing with Section 9840) of the Vehicle Code by registration to an out-of-District address and by a declaration under penalty of perjury, signed by the buyer, stating that such address is, in fact, his or her principal place of residence; and

b. With respect to commercial vehicles, by registration to a place of business out-of-District and declaration under penalty of perjury, signed by the buyer, that the vehicle will be operated from that address.

3. The sale of tangible personal property if the seller is obligated to furnish the property for a fixed price pursuant to a contract entered into prior to the operative date of this Act.

4. A lease of tangible personal property which is a continuing sale of such property, for any period of time for which the lessor is obligated to lease the property for an amount fixed by the lease prior to the operative date of this Act.

5. For the purposes of subparagraphs 3 and 4 of this section, the sale or lease of tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

C. There are exempted from the use tax imposed by this Act, the storage, use or other consumption in this County of tangible personal property:

1. The gross receipts from the sale of which have been subject to a transactions tax under any state-administered transactions and use tax ordinance.

2. Other than fuel or petroleum products purchased by operators of aircraft and used or consumed by such operators directly and exclusively in the use of such aircraft as common carriers of persons or property for hire or compensation under a certificate of public convenience and necessity issued pursuant to the laws of this State, the United States, or any foreign government. This exemption is in addition to the exemptions provided in Sections 6366 and 6366.1 of the Revenue and Taxation Code of the State of California.

3. If the purchaser is obligated to purchase the property for a fixed price pursuant to a contract entered into prior to the operative date of this Act.

4. If the possession of, or the exercise of any right or power over, the tangible personal property arises under a lease which is a continuing purchase of such property for any period of time for which the lessee is obligated to lease the property for an amount fixed by a lease prior to the operative date of this Act.

5. For the purposes of subparagraphs 3 and 4 of this section, storage, use, or other consumption, or possession of, or exercise of any right or power over, tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

6. Except as provided in subparagraph 7, a retailer engaged in business in the District shall not be required to collect use tax from the purchaser of tangible personal property, unless the retailer ships or delivers the property into the District or participates within the District in

making the sale of the property, including, but not limited to, soliciting or receiving the order, either directly or indirectly, at a place of business of the retailer in the District or through any representative, agent, canvasser, solicitor, subsidiary, or person in the District under the authority of the retailer.

7. "A retailer engaged in business in the District" shall also include any retailer of any of the following: vehicles subject to registration pursuant to Chapter 1 (commencing with Section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with Section 21411 of the Public Utilities Code, or undocumented vessels registered under Division 3.5 (commencing with Section 9840) of the Vehicle Code. That retailer shall be required to collect use tax from any purchaser who registers or licenses the vehicle, vessel, or aircraft at an address in the District.

D. Any person subject to use tax under this Act may credit against that tax any transactions tax or reimbursement for transactions tax paid to a district imposing, or retailer liable for a transactions tax pursuant to Part 1.6 of Division 2 of the Revenue and Taxation Code with respect to the sale to the person of the property the storage, use, or other consumption of which is subject to the use tax.

4.60.290. Amendments to California Revenue and Taxation Code.

All amendments subsequent to the effective date of this Act to Part 1 of Division 2 of the Revenue and Taxation Code relating to sales and use taxes and which are not inconsistent with Part 1.6 and Part 1.7 of Division 2 of the Revenue and Taxation Code, and all amendments to Part 1.6 and Part 1.7 of Division 2 of the Revenue and Taxation Code, shall automatically become a part of this Act, provided however, that no such amendment shall operate so as to affect the rate of tax imposed by this Act.

4.60.300. Enjoining Collection Forbidden.

No injunction or writ of mandate or other legal or equitable process shall issue in any suit, action, or proceeding in any court against the State or the County, or against any officer of the State or the County, to prevent or enjoin the collection under this Act, or Part 1.6 of Division 2 of the Revenue and Taxation Code, of any tax or any amount of tax required to be collected.

4.60.310. Termination of Transactions and Use Tax.

This chapter shall remain operative for 30 years from the operative date of this Act and shall be repealed by operation of this section on that date, unless a later measure is adopted before that date which deletes or extends the termination date.

SEC. 5. EFFECTIVE DATE.

This Act shall take effect 10 days after the certification by the Board of Supervisors of the election results indicating passage of the measure by a majority of the voters casting votes in the election; however, the Operative Date of the tax imposed by this measure shall be July 1, 2027.

SEC. 6. SEVERABILITY.

If any section, subsection, sentence, clause, phrase or word of this Act is for any reason held to be invalid by a court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Act. The people of the County of Fresno hereby declare they would have passed and adopted this Act and each and all provisions hereof irrespective of the fact that any one or more of said provisions be declared invalid.

SEC. 7. LIBERAL CONSTRUCTION.

This measure is an exercise of the initiative power of the people of the County of Fresno to implement a special tax to fund the purposes set forth in the Act, and it shall be liberally construed to effectuate these purposes.

SEC. 8. AMENDMENTS.

The expenditure plan adopted pursuant to this Act may be amended in accordance with Section 4.60.180. Any other amendments to this Act shall require approval by the voters of the County of Fresno.

SEC. 9. CONFLICTING MEASURES.

This measure is intended to be comprehensive. It is the intent of the people of the County of Fresno that, in the event this measure and one or more measures relating to a special tax to fund transportation infrastructure shall appear on the same ballot, the provisions of the other measure or measures shall be deemed in conflict with this measure. In the event that this measure receives a greater number of affirmative votes, the provisions of this measure shall prevail in their entirety, and all provisions of the other measure or measures shall be null and void.

Fresno County Transportation Improvement Act

The proposed measure, if approved by the voters, would create a Fresno County (County) ordinance imposing a one-half percent (0.5%) transactions and use tax, commonly referred to as a sales tax, for thirty years to be used for specified transportation purposes (Measure).

The tax will be imposed in accordance with and incorporate provisions of state law. The California Department of Tax and Fee Administration will administer and collect the tax.

Tax proceeds will be deposited into a fund maintained by the County and will be appropriated to the Fresno Council of Governments (COG). COG will annually allocate the proceeds to the County, incorporated cities (Cities), and local transit agencies for the purposes specified in the Measure, including:

- Sixty-five percent (65%) of the proceeds would be allocated to the County and Cities to repair, rebuild, and maintain roads to improve travel time, accessibility, safety, and public health. Each jurisdiction will annually receive a base allocation, and additional allocations will be based on population and public roadway miles.
- Twenty-five percent (25%) of the proceeds would be allocated to support public transportation services, with ten percent (10%) going to Clovis Transit, seventy percent (70%) to Fresno Area Express, and twenty percent (20%) to the Fresno County Rural Transit Agency.
- One percent (1%) of the proceeds would be allocated to the Fresno Yosemite International Airport.
- Four percent (4%) of the proceeds would be allocated to fund regional street, road, and highway improvement projects.
- Four percent (4%) of the proceeds would be allocated to support zero-fare public transit programs for people with disabilities, veterans, seniors, children, and students, and to award grants for clean-energy projects and future transportation technologies.
- One percent (1%) of the proceeds would be allocated to COG for administrative and oversight purposes.

The Measure requires COG to develop program requirements, complete studies, review fiscal and compliance reports, and conduct annual independent audits.

The Measure will establish a Citizens Oversight Committee (Committee) of eleven members appointed by the COG Policy Board. The Committee will conduct public meetings held at least quarterly, review reports, and oversee annual fiscal and compliance audits.

If any part of the ordinance created by the Measure is invalid, it will not affect the rest of the ordinance.

FILED
FEB 10 2026
FRESNO COUNTY CLERK
By DEPUTY

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ATTENTION: Karla Young
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FILED
FEB 17 2026
FRESNO COUNTY CLERK
By DEPUTY

COUNTY OF FRESNO
STATE OF CALIFORNIA

The undersigned states:
McClatchy Newspapers in and on all dates herein stated was a corporation, and the owner and publisher of The Fresno Bee.
The Fresno Bee is a daily e-Edition and printed newspaper of general circulation now published, and on all-the-dates herein stated was published in the City of Fresno, County of Fresno, and has been adjudged a newspaper of general circulation by the Superior Court of the County of Fresno, State of California, under the date of November 28, 1994, Action No. 520058-9.
The undersigned is and on all dates herein mentioned was a citizen of the United States, over the age of twenty-one years, and is the principal clerk of the printer and publisher of said newspaper; and that the notice, a copy of which is hereto annexed, marked Exhibit A, hereby made a part hereof, was published in The Fresno Bee in each issue thereof (in type not smaller than nonpareil), on the following dates.

1.0 insertion(s) published on:
02/13/26 Print

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Marketplace Link

Mary Castro
DIGITALLY SIGNED

Mary Castro

Sherry J Chasteen
DIGITALLY SIGNED

Sworn to and subscribed before me on Feb 13, 2026, 9:32 AM EST

Online Notary Public. This notarial act involved the use of online audio/video communication technology. Notarization facilitated by SIGNiX®

PUBLIC NOTICE

NOTICE OF INTENTION TO CIRCULATE PETITION

Notice is hereby given by the persons whose names appear hereon of their intention to circulate the petition within the County of Fresno for the purpose of continuing a half-cent county sales tax–without raising taxes–to keep local dollars here at home to fix our local roads, improve public transit, and create good-paying local jobs, with independent citizen oversight. A statement of the reasons of the proposed action as contemplated in the petition is as follows:
Fresno County is a great place to live, work, and raise a family–but our transportation system is falling behind. Crumbling streets, unsafe roads, limited transit options, and aging infrastructure threaten our quality of life, economy, and safety. Residents experience these impacts every day through longer commutes, damaged vehicles, unsafe walking conditions, and fewer transportation choices.
The good news is we can address these challenges by fixing local roads, keeping our dollars here at home, creating good-paying local jobs, and keeping Fresno County residents connected–without raising taxes. Maintaining a half-cent transportation sales tax is essential to fixing what matters most and building a safer, healthier, and more connected county for generations to come.
For nearly four decades, local transportation sales tax funds have largely focused on building and expanding major state freeways, while neighborhood streets, sidewalks, and rural roads connecting our communities have been left behind. As a result, many local roads are now in poor condition. Pothole-riddled streets can cost each driver up to $2,000 in vehicle repairs, while deferred road maintenance across Fresno County has grown to an estimated $5.4 billion. Without a reliable local funding source, these costs will continue to rise, placing a greater burden on families, seniors, and small businesses.
Maintaining a sales tax allows Fresno County to fix what matters most by prioritizing the repair and maintenance of neighborhood streets and roads. These investments will improve traffic safety, reduce travel times, and ensure emergency responders can reach residents quickly when it matters most. The plan also invests in basic infrastructure that many neighborhoods still lack–sidewalks, crosswalks, curb and gutter, streetlights, bike lanes, and safer routes to schools–so children, seniors, and people with disabilities can move safely through their communities.
Reliable public transportation is another critical need. Nearly 80 percent of transit riders in Fresno County depend entirely on public transit and have no access to a private vehicle. Yet current services often do not run frequently enough or to the places people need to go. This initiative allows us to improve the efficiency of our transit services, better connecting residents to jobs, schools, doctor appointments, grocery stores, and other essential services.
Funds are legally protected, independently audited each year, and overseen by a citizens' oversight committee to ensure every dollar is spent as voters intend. These investments will create thousands of good-paying local jobs, strengthen the local economy, and improve air quality by supporting more and better transportation options.
The choice is clear. Without this measure, roads will continue to deteriorate, critical safety improvements will be delayed, and transit services will be reduced. By maintaining a sales tax, Fresno County can fix local roads, protect taxpayers, and build a transportation system that works for everyone–now and in the future.

Join us at www.movingfresnoforward.com or info@movingfresnoforward.com

Signature: /s/
Print Name: Lynne Ashbeck
Address: 1033 Fifth St., Clovis 93612
Signature: /s/
Print Name: Veronica Garibay
Address: 2210 San Joaquin St., Fresno 93721
Signature: /s/
Print Name: Jerry P. Dyer
Address: 2600 Fresno St., CA 93721
Signature: /s/
Print Name: Joan E. Eaton
Address: 1260 Fulton St Ste 200 Fresno CA 93721

Fresno County Transportation Improvement Act

The proposed measure, if approved by the voters, would create a Fresno County (County) ordinance imposing a one-half percent (0.5%) transactions and use tax, commonly referred to as a sales tax, for thirty years to be used for specified transportation purposes (Measure).
The tax will be imposed in accordance with and incorporate provisions of state law. The California Department of Tax and Fee Administration will administer and collect the tax.
Tax proceeds will be deposited into a fund maintained by the County and will be appropriated to the Fresno Council of Governments (COG). COG will annually allocate the proceeds to the County, incorporated cities (Cities), and local transit agencies for the purposes specified in the Measure, including:

- Sixty-five percent (65%) of the proceeds would be allocated to the County and Cities to repair, rebuild, and maintain roads to improve travel time, accessibility, safety, and public health. Each jurisdiction will annually receive a base allocation, and additional allocations will be based on population and public roadway miles.
- Twenty-five percent (25%) of the proceeds would be allocated to support public transportation services, with ten percent (10%) going to Clovis Transit, seventy percent (70%) to Fresno Area Express, and twenty percent (20%) to the Fresno County Rural Transit Agency.
- One percent (1%) of the proceeds would be allocated to the Fresno Yosemite International Airport.
- Four percent (4%) of the proceeds would be allocated to fund regional street, road, and highway improvement projects.
- Four percent (4%) of the proceeds would be allocated to support zero-fare public transit programs for people with disabilities, veterans, seniors, children, and students, and to award grants for clean-energy projects and future transportation technologies.
- One percent (1%) of the proceeds would be allocated to COG for administrative and oversight purposes.

The Measure requires COG to develop program requirements, complete studies, review fiscal and compliance reports, and conduct annual independent audits.
The Measure will establish a Citizens Oversight Committee (Committee) of eleven members appointed by the COG Policy Board. The Committee will conduct public meetings held at least quarterly, review reports, and oversee annual fiscal and compliance audits.
If any part of the ordinance created by the Measure is invalid, it will not affect the rest of the ordinance.

IPL 0313650

INITIATIVE MEASURE TO BE SUBMITTED DIRECTLY TO THE VOTERS

The county counsel has prepared the following title and summary of the chief purpose and points of the proposed measure:

Fresno County Transportation Improvement Act

The proposed measure, if approved by the voters, would create a Fresno County (County) ordinance imposing a one-half percent (0.5%) transactions and use tax, commonly referred to as a sales tax, for thirty years to be used for specified transportation purposes (Measure).

The tax will be imposed in accordance with and incorporate provisions of state law. The California Department of Tax and Fee Administration will administer and collect the tax.

Tax proceeds will be deposited into a fund maintained by the County and will be appropriated to the Fresno Council of Governments (COG). COG will annually allocate the proceeds to the County, incorporated cities (Cities), and local transit agencies for the purposes specified in the Measure, including:

- **Sixty-five percent (65%) of the proceeds would be allocated to the County and Cities to repair, rebuild, and maintain roads to improve travel time, accessibility, safety, and public health. Each jurisdiction will annually receive a base allocation, and additional allocations will be based on population and public roadway miles.**
- **Twenty-five percent (25%) of the proceeds would be allocated to support public transportation services, with ten percent (10%) going to Clovis Transit, seventy percent (70%) to Fresno Area Express, and twenty percent (20%) to the Fresno County Rural Transit Agency.**
- **One percent (1%) of the proceeds would be allocated to the Fresno Yosemite International Airport.**
- **Four percent (4%) of the proceeds would be allocated to fund regional street, road, and highway improvement projects.**
- **Four percent (4%) of the proceeds would be allocated to support zero-fare public transit programs for people with disabilities, veterans, seniors, children, and students, and to award grants for clean-energy projects and future transportation technologies.**
- **One percent (1%) of the proceeds would be allocated to COG for administrative and oversight purposes.**

The Measure requires COG to develop program requirements, complete studies, review fiscal and compliance reports, and conduct annual independent audits.

The Measure will establish a Citizens Oversight Committee (Committee) of eleven members appointed by the COG Policy Board. The Committee will conduct public meetings held at least quarterly, review reports, and oversee annual fiscal and compliance audits.

If any part of the ordinance created by the Measure is invalid, it will not affect the rest of the ordinance.

OFFICIAL TOP FUNDERS. Valid only for February 2026
Petition circulation paid for by Fresno County Residents for Better Roads and Safe Streets,
sponsored by nonprofit community organizations and labor organizations
Committee major funding from:
Central Valley Community Foundation

Latest info: https://www.movingfresnoforward.com

NOTICE OF INTENT TO CIRCULATE PETITION

Notice is hereby given by the persons whose names appear hereon of their intention to circulate the petition within the County of Fresno for the purpose of continuing a half-cent county sales tax—without raising taxes—to keep local dollars here at home to fix our local roads, improve public transit, and create good-paying local jobs, with independent citizen oversight. A statement of the reasons of the proposed action as contemplated in the petition is as follows:

Fresno County is a great place to live, work, and raise a family—but our transportation system is falling behind. Crumbling streets, unsafe roads, limited transit options, and aging infrastructure threaten our quality of life, economy, and safety. Residents experience these impacts every day through longer commutes, damaged vehicles, unsafe walking conditions, and fewer transportation choices.

The good news is we can address these challenges by fixing local roads, keeping our dollars here at home, creating good-paying local jobs, and keeping Fresno County residents connected—without raising taxes. Maintaining a half-cent transportation sales tax is essential to fixing what matters most and building a safer, healthier, and more connected county for generations to come.

For nearly four decades, local transportation sales tax funds have largely focused on building and expanding major state freeways, while neighborhood streets, sidewalks, and rural roads connecting our communities have been left behind. As a result, many local roads are now in poor condition. Pothole-riddled streets can cost each driver up to $2,000 in vehicle repairs, while deferred road maintenance across Fresno County has grown to an estimated $5.4 billion. Without a reliable local funding source, these costs will continue to rise, placing a greater burden on families, seniors, and small businesses.

Maintaining a sales tax allows Fresno County to fix what matters most by prioritizing the repair and maintenance of neighborhood streets and roads. These investments will improve traffic safety, reduce travel times, and ensure emergency responders can reach residents quickly when it matters most. The plan also invests in basic infrastructure that many neighborhoods still lack—sidewalks, crosswalks, curb and gutter, streetlights, bike lanes, and safer routes to schools—so children, seniors, and people with disabilities can move safely through their communities.

Reliable public transportation is another critical need. Nearly 80 percent of transit riders in Fresno County depend entirely on public transit and have no access to a private vehicle. Yet current services often do not run frequently enough or to the places people need to go. This initiative allows us to improve the efficiency of our transit services, better connecting residents to jobs, schools, doctor appointments, grocery stores, and other essential services.

Funds are legally protected, independently audited each year, and overseen by a citizens' oversight committee to ensure every dollar is spent as voters intend. These investments will create thousands of good-paying local jobs, strengthen the local economy, and improve air quality by supporting more and better transportation options.

The choice is clear. Without this measure, roads will continue to deteriorate, critical safety improvements will be delayed, and transit services will be reduced. By maintaining a sales tax, Fresno County can fix local roads, protect taxpayers, and build a transportation system that works for everyone—now and in the future.

Join us at www.movingfresnoforward.com or info@movingfresnoforward.com

Signature: /s/

Print Name: Lynne Ashbeck

Address: 1033 Fifth St., Clovis 93612

Signature: /s/

Print Name: Jerry P. Dyer

Address: 2600 Fresno St., CA 93721

Signature: /s/

Print Name: Veronica Garibay

Address: 2210 San Joaquin St., Fresno 93721

Signature: /s/

Print Name: Joan E. Eaton

Address: 1260 Fulton St Ste 200 Fresno CA 93721

INITIATIVE MEASURE TO BE SUBMITTED DIRECTLY TO THE VOTERS

The people of the County of Fresno ordain as follows:

SECTION 1. TITLE.

This Act shall be known, and may be cited, as the "Fresno County Transportation Improvement Act."

SEC. 2. FINDINGS AND DECLARATIONS.

The people of the County of Fresno hereby find and declare all of the following:

(a) Fresno County is a great place to live and raise a family, but crumbling streets, unsafe roads, and lack of transportation options threaten our quality of life.

(b) Aging infrastructure, including the roads connecting our cities and the sidewalks on streets near our homes, schools, and parks, is in serious need of investment. An estimated $5.4 billion is needed to bring roads to "good" and "safe" condition and reduce deferred maintenance.

(c) Connected and well-maintained streets and roads, as well as enhanced safety improvements and traffic calming measures, facilitate access by first responders and reduce the time it takes to respond to emergencies.

(d) More than 100 people are killed and over 300 are severely injured on Fresno County roads each year, with pedestrians and bicyclists facing disproportionate risk. Improving roadway safety and building and maintaining protected pedestrian and bike lanes are urgently needed.

(e) Repairing, rebuilding, and maintaining the road system will improve travel time, accessibility, traffic safety, and public health, and will also address transportation related costs.

(f) Since 1986, transportation sales tax proceeds have largely been spent on state freeways and new roads, leaving local roads in disrepair. Pothole-riddled streets lead to increased costs for car maintenance and fuel, with repairs from pothole damage costing each driver up to $2,000.

(g) Approximately 80% of public transit users in Fresno County are entirely dependent on public transportation and lack access to a private vehicle. Current public transportation services do not transport people to all the places they need to go and often do not operate at the times people need to travel. Additionally, the rising cost of housing in Fresno County and the lack of services in rural areas often force longer commutes and trips to access doctor's appointments and grocery stores.

(h) To keep Fresno County safe, livable, and thriving, we need to invest in projects to reduce traffic, fix crumbling streets and roads, and improve transportation countywide.

(i) The increasing frequency of major rain and flooding events, extreme heat, and forest fires requires investments in resilient infrastructure to decrease property damage and improve public health and safety.

(j) This Act is focused on the essential transportation improvements that will make our existing roads safer and more efficient, improve our transit system, and make life better for Fresno County residents by increasing access to jobs, education, healthcare, groceries, and other basic amenities.

(k) The time is now. Without this measure, we will experience further road deterioration; little to no investment in basic infrastructure like sidewalks, crosswalks, curbs, gutters, bike lanes, and trails; and a reduction in transportation services countywide.

(l) Funding from this Act is guaranteed to go directly to Fresno County transportation priorities and nothing else. The funds go directly into a special account politicians can't touch and, if the funds are misused, violators will be subject to possible criminal prosecution by the Fresno County District Attorney and State Attorney General.

(m) Independent audits every year and a Citizens Oversight Committee will ensure transparency and that funds are spent on transportation priorities as the voters intend.

SEC. 3. PURPOSE AND INTENT.

It is the intent of the people of the County of Fresno in enacting this Act to do all of the following:

(a) Fix what matters most by repairing and maintaining existing local streets and roads first.

(b) Keep people and our kids safe by investing in safety improvements, including enhanced lighting, road safety, and safe routes to school.

(c) Get people where they need to go efficiently by improving the accessibility and affordability of public transit systems that connect the public to essential services and amenities.

(d) Improve transportation alternatives by building and maintaining bikeways, pedestrian facilities, and public transit options.

(e) Keep the transportation system safe with repairs, retrofits, and safety upgrades, allowing students, seniors, and people with disabilities to travel safely.

(f) Allow seniors, students, people with disabilities, veterans, and active military personnel to access public transit at no cost.

(g) Create thousands of local quality jobs that pay a living wage and provide healthcare and retirement benefits for workers.

(h) Build strong, vibrant communities by adding shade, trees, and other features to combat heat, beautify transportation corridors, and ensure no neighborhood is left behind.

(i) Foster innovation by making smart investments that keep our county competitive and connected — now and in the future.

(j) Reduce air pollution to protect Fresno County's environment and quality of life.

(k) Protect taxpayers with strict accountability measures, including independent audits and citizens' oversight, to ensure funds are spent as intended by voters.

SEC. 4. FRESNO COUNTY TRANSPORTATION IMPROVEMENT ACT.

Chapter 4.60 is added to Title 4 of the Ordinance Code of Fresno County to read as follows:

Chapter 4.60. Fresno County Transportation Improvement Act

4.60.010. Title.

This chapter shall be known as the Fresno County Transportation Improvement Act.

4.60.020. Definitions.

For the purposes of this chapter, the following definitions shall apply:

A. "Act" means the Fresno County Transportation Improvement Act.

B. "Board of Supervisors" means the Fresno County Board of Supervisors.

C. "Class I Facilities" means bike paths or shared-use paths that provide a completely separated right-of-way designated for the exclusive use of bicycles and pedestrians, with crossflows by motorists minimized, as defined in subdivision (a) of Section 890.4 of the California Streets and Highways Code.

D. "Class II Facilities" means bike lanes that provide a restricted right-of-way designated for the exclusive or semi-exclusive use of bicycles, with through travel by motor vehicles or pedestrians prohibited, but with vehicle parking and crossflows by pedestrians and motorists permitted, as defined in subdivision (b) of Section 890.4 of the California Streets and Highways Code.

E. "Class III Facilities" means bike routes that provide a right-of-way on-street or off-street, designated by signs or permanent markings and shared with pedestrians and motorists, as defined in subdivision (c) of Section 890.4 of the California Streets and Highways Code.

F. "Class IV Facilities" means cycle tracks or separated bikeways that provide a right-of-way designated exclusively for bicycle travel adjacent to

a roadway and that are separated from vehicular traffic by physical elements, including, but not limited to, grade separations, flexible posts, inflexible physical barriers, or on-street parking, as defined in subdivision (d) of Section 890.4 of the California Streets and Highways Code.

G. "Committee" means the Citizens Oversight Committee established pursuant to Section 4.60.170.

H. "Complete street" means a transportation facility that is planned, designed, constructed, operated, and maintained to provide comfortable and convenient mobility, and improve accessibility and connectivity to essential community destinations for all users, regardless of whether they are traveling as pedestrians, bicyclists, public transportation riders, or drivers.

I. "Council of Governments" means the Fresno Council of Governments.

J. "County" means the county government of the County of Fresno.

K. "County region" or "District" means the geographic territory of the County of Fresno, including all incorporated and unincorporated areas therein.

L. "Existing neighborhoods" means neighborhoods in existence within the adopted legal boundaries of each jurisdiction with permanent structures and public infrastructure or public utilities as of November 3, 2026.

M. "Fund" means the Fresno County Transportation Improvement Act Fund established by Section 4.60.040.

N. "Operative Date" means July 1, 2027.

4.60.030. Purpose.

This Act is adopted to achieve the following purposes, and directs that the provisions hereof be interpreted to accomplish those purposes:

A. To impose a retail transactions and use tax in accordance with the provisions of Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code.

B. To adopt a retail transactions and use tax ordinance that incorporates provisions identical to those of the Sales and Use Tax Law of the State of California insofar as those provisions are not inconsistent with the requirements and limitations contained in Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code.

C. To adopt a retail transactions and use tax ordinance that imposes a tax and provides a measure therefor that can be administered and collected by the California Department of Tax and Fee Administration in a manner that adapts itself as fully as practicable to, and requires the least possible deviation from, the existing statutory and administrative procedures followed by the California Department of Tax and Fee Administration in administering and collecting the California State Sales and Use Taxes.

D. To adopt a retail transactions and use tax ordinance that can be administered in a manner that will be, to the greatest degree possible, consistent with the provisions of Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code, minimizes the cost of collecting the transactions and use taxes, and at the same time, minimizes the burden of record keeping upon persons subject to taxation under the provisions of this Act.

E. To raise appropriate revenues to support transportation investments and programs to fix and maintain roads, improve neighborhood infrastructure, enhance public transit and rideshare options, and support active transportation. These programs include the following:

1. The Existing Neighborhood Streets and Roads Repair and Maintenance Program, which is intended to bring the road systems within the incorporated cities and the rural unincorporated areas of the county region, including arterials, collectors, and neighborhood streets, to an average Pavement Condition Index (PCI) of 70, which is within the "Good" category as indicated in the Pavement Management System (PMS) report. Funds under this program go directly to incorporated cities and the County for local street and road repair and maintenance, traffic safety, active transportation, bicycle and pedestrian facilities, and safe routes to school.

2. The Public Transportation Program, which addresses public transit systems and services throughout the county region. The funding under this program will be used to improve bus, microtransit, and mass transit frequencies; paratransit services; transit infrastructure, such as shelters and transfer centers; and point-to-point programs for seniors, children, students, veterans, active military personnel, and mobility-challenged individuals.

3. The Regional Connectivity Program, which facilitates the movement of people and goods, and the efficient delivery of services, by providing matching funds for major projects benefiting multiple jurisdictions within the county region that enhance connectivity along major corridors, strengthen connections within the urban area and between the cities and rural communities, and foster economic growth.

4. The Access and Innovation Program, which provides for planning and projects that enable new technologies, invest in zero-emission infrastructure, and increase access to destinations.

5. The Administration, Performance Measures, Requirements, and Indicators Program, which includes administration and planning activities of the Council of Governments.

F. To require annual audits and oversight by a citizens oversight committee to ensure funds are used exclusively for these purposes.

4.60.040. Fresno County Transportation Improvement Act Fund.

There is hereby established in the treasury of the County a special fund called the Fresno County Transportation Improvement Act Fund, which shall be maintained by the County.

4.60.050. Receipt of Proceeds.

All revenue generated by this Act shall be deposited into the Fresno County Transportation Improvement Act Fund.

4.60.060. Use of Proceeds.

A. Monies in the Fund shall be used to reimburse the County for the costs imposed by the California Department of Tax and Fee Administration to collect and administer the tax imposed by this Act, pursuant to Section 4.60.210.

B. The remaining monies in the Fund shall be appropriated each fiscal year to the Council of Governments solely for the purposes specified in this Act.

4.60.070. Existing Neighborhood Streets and Roads Repair and Maintenance Program.

A. 1. Sixty-five percent of the annual revenue in the Fund shall be allocated for the purpose of repairing, rebuilding, and maintaining the road system in the incorporated cities and the unincorporated areas of the county region to improve travel time and accessibility, traffic safety, and public health, as further provided in subsections B to H, inclusive.

2. a. The Council of Governments shall make separate allocations of funds under this section to each of the incorporated cities within the county region, for expenditures by each city within its own jurisdiction, and to the County, for expenditures in the unincorporated areas of the county region.

b. Funds allocated under this paragraph 2 shall be distributed as follows:

i. Each jurisdiction shall receive a base allocation of four hundred thousand dollars ($400,000) each year.

ii. Following allocations made under clause i, the balance of funding to be allocated under this section shall be allocated in proportion to each jurisdiction's population based on the most recent population estimates prepared by the California Department of Finance, weighted 80 percent, and in proportion to each jurisdiction's number of maintained public roadway miles as determined by the most recent Pavement Condition Survey, weighted 20 percent. The allocation to the County shall be based on the population and roadway miles in the unincorporated areas of the county region.

3. Each jurisdiction may use funds provided under this section for any program specified in this section.

4. Nothing in this Act prohibits the eligible jurisdictions from issuing bonds or using other financing mechanisms secured by future revenues to accelerate implementation of this section.

5. Jurisdictions may accumulate program funds for up to five years for match purposes or to fund large-scale projects.

6. All streets and roads constructed or improved in whole or in part with revenue from the Fund shall include complete street features, whenever feasible, to create an overall complete street system for neighborhoods. To reduce overall costs under a single contract, jurisdictions that receive funds under this section may also use other funding sources to address the entire roadway infrastructure under one project.

7. Eligible expenditures under this program include all recognized project phases, including planning and environmental analysis; conceptual, preliminary, and design engineering; right-of-way acquisition, support, and relocation; utilities relocation; construction engineering and inspection; vehicles and equipment; direct staff time, including salary and benefits; consultants and construction contractors selected pursuant to local agency selection processes; and labor, materials, and equipment for day labor.

B. Repair, Maintain, and Construct Local Streets and Roads Program.

1. Jurisdictions that receive funds under this section may expend those funds for purposes of the Repair, Maintain, and Construct Local Streets and Roads Program established by this subsection B. Expenditures under this subsection shall prioritize improvements to local streets that connect to existing neighborhood homes, schools, parks, community services, public transportation, and places of employment. Project development, capital, and maintenance costs shall be eligible for expenditures under this subsection.

2. Projects eligible for expenditures under the Repair, Maintain, and Construct Local Streets and Roads Program shall include all of the following:

a. Repaving and reconstruction of existing local streets to prevent deterioration of the roadway system, based on an industry-standard pavement management system designed to inform cost-effective roadway maintenance. Components for routine accommodation of bicycle and pedestrian travel shall be incorporated, as appropriate, as part of construction projects, including sidewalks, bicycle facilities, rehabilitation and curb ramps, and elements to improve resilience, safety, and accessibility.

b. Public sidewalk repair, reconstruction, and construction in existing neighborhoods; construction of new and maintenance of additional pedestrian facility improvements, including pedestrian bridges, retaining walls, and guardrails; maintenance of pedestrian and bicycle safety improvements, including, but not limited to, safe-hit posts, painted safety zones, green bicycle lanes, and crosswalks; and rehabilitation of other bicycle facilities, such as bicycle paths.

c. Programmatic improvements to the transportation system to make it safer for all users and help achieve greenhouse gas (GHG) reduction requirements. Projects eligible for expenditures may include, but are not limited to, all of the following:

i. Traffic calming projects to reduce vehicular speeds and improve safety, including speed bumps/humps; new or improved pedestrian safety measures, such as ladder crosswalks, curb extensions (bulb-outs) on corners, and pedestrian islands in the medians of major thoroughfares; new and upgraded bicycle lanes and paths; traffic striping and channelization; and bicycle and personal mobility device parking facilities. Quick builds, pilot projects, permanent improvements, intersection redesigns, and larger corridor projects are eligible for expenditures. Related landscaping components may be included.

ii. Installation, maintenance, and upgrade of traffic signs and signals, including for pedestrians and bicyclists; and communications systems, including changeable message signs for incident and special-event traffic management.

d. Multimodal street improvements to improve pedestrian, bicycle, transit, and vehicle circulation and connectivity.

e. Pothole repair, crack sealing, slurry sealing, asphalt overlays, resurfacing, slab replacement, permeable pavement, vegetation control, curb and gutter maintenance, stormwater and drainage controls, shoulder grading, guardrail and barrier repair, bridge maintenance, sign and marking upkeep, street sweeping, landscaping and beautification, and snow and ice removal.

f. Streetlights, signals, traffic calming and other safety features; standard traffic lights, flashing signals, green arrows, pedestrian signals, out-of-service signals, guardrails, rumble strips, sign and pavement marking, speed humps, speed tables, raised crosswalks, and horizontal devices, such as roundabouts and bulb-outs; traffic signal timing, traffic operations centers, and Intelligent Transportation System components.

g. Sidewalks, alleys, bikeways, pedestrian safety features, infrastructure compliant with the Americans with Disabilities Act, crosswalks, traffic calming features, including flashing beacons, lighting, and neighborhood slow zones, pedestrian and bicycle overcrossings and undercrossings, pedestrian paths, walkways, bikeways, and protected bicycle facilities.

h. New curb ramps compliant with the Americans with Disabilities Act, reconstruction of existing ramps, and related roadway work to permit ease of movement.

i. Vehicles and equipment may be purchased with funds provided under this Act only when necessary to carry out work associated with projects funded under this Act. Costs for such purchases must be charged proportionally to each funded project based on actual or reasonably estimated use and may not exceed the pro rata share attributable to projects funded under this Act.

j. Litter-abatement activities pursuant to a state matching-funds program.

3. Each jurisdiction may spend no more than 5 percent of its allocation under the Existing Neighborhood Streets and Roads Repair and Maintenance Program on road expansion or capacity-increasing projects per year. Before a jurisdiction can expend funds pursuant to this paragraph, every local street and road within the jurisdiction shall reach a Pavement Condition Index score of 65 or above.

4. Road expansion or capacity-increasing projects shall not be prohibited by paragraph 3 if they involve significant safety or mobility benefits, as supported by traffic studies that demonstrate reductions in fatalities and serious injuries for all road users. Eligible road expansion or capacity increasing projects shall only include the following:

a. Dedicated public transportation lanes.

b. Dedicated and protected Class I or Class IV Facilities.

c. Safety-motivated turn lanes or intersection improvements that protect all road users and that do not impede bicycle or pedestrian facilities.

5. Funds shall not be used for street or roadway construction in new growth areas or new town developments.

a. For purposes of this paragraph 5, "new growth areas" means geographic areas designated for future residential, commercial, industrial, or mixed-use development that, as of the passage date of this Act, were not zoned for urban development, substantially developed with permanent structures and public infrastructure, and included within an adopted municipal or regional growth boundary, service area, or comprehensive plan authorizing such development. Preliminary approvals, conceptual plans, or applications pending approval shall not be considered evidence of existence.

b. For purposes of this paragraph 5, "new town developments" means large-scale, master-planned developments intended to function as self-contained communities, including residential, commercial, public, and transportation infrastructure that were not incorporated, approved, or under active construction as of the passage date of this Act and require the extension of new public streets, roadways, or transportation infrastructure to serve the development. Preliminary approvals, conceptual plans, or applications pending approval shall not be considered evidence of existence.

6. The County shall annually expend a minimum of between 12 percent and 15 percent of its local allocation in identified disadvantaged unincorporated communities, as defined by paragraph (2) of subdivision (a) of Section 65302.10 of the California Government Code. The Council of Governments shall determine the specific minimum percentage by completing a needs assessment of complete streets pursuant to Section 4.60.140. The County may spend any remaining funds set aside for disadvantaged unincorporated communities in other unincorporated areas of the county region once identified needs have been met, the average Pavement Condition Index score for all disadvantaged unincorporated communities reaches 70, and each local road within all disadvantaged unincorporated communities attains a Pavement Condition Index score of at least 65.

7. Jurisdictions shall prioritize funding for existing neighborhood roads with the lowest Pavement Condition Index score or in project areas in need of improvement in disadvantaged neighborhoods and communities.

C. Active Transportation.

1. Jurisdictions that receive funds under this section may expend those funds to create a comprehensive, connected network of pedestrian and bicycle routes that link homes, workplaces, schools, parks, transit, and other destinations.

2. Funds expended pursuant to this subsection C may be used to redesign existing streets to be complete streets, prioritizing non-car options, increasing the safety and comfort of pedestrians and cyclists, and improving connections to transit.

3. Every street or road constructed or reconstructed in whole or in part with revenue from the Fund pursuant to this subsection shall include sidewalks, paths, walkways, or equivalent facilities, where feasible and according to the adopted Active Transportation Plan in each jurisdiction.

4. Any maintenance to a street or road funded in whole or in part with revenue from the Fund pursuant to this subsection shall, at a minimum, maintain the existing level of pedestrian and bicycle access, facilities, and safety features along and across the street, road, or highway.

5. Where feasible, every expressway, super-arterial, arterial, or collector road constructed in whole or in part with revenue from the Fund pursuant to this subsection shall include accommodations for bicycle travel at minimum by a striped shoulder with a minimum width of four feet. This four-foot shoulder may be provided as a bike lane or a cycle track. If an existing expressway, super-arterial, or collector road is reconstructed and reconstruction includes pavement widening, that project shall be subject to this requirement.

6. All roadways receiving pavement reconstruction without pavement widening, rehabilitation, or an overlay, slurry seal, chip seal, or seal coat funded in whole or in part with revenue from the Fund pursuant to this subsection shall include accommodations for bicycle travel at a minimum by Class I and Class IV Facilities, unless there is insufficient right-of-way or if there are other physical constraints as determined by a licensed engineer. This four-foot shoulder may be provided as a bike lane or a cycle track.

7. On a multi-lane roadway, funds expended pursuant to this subsection may be used for conversion of travel lanes to bicycle facilities, provided the responsible agency has determined that excess roadway capacity exists and that the bicycle facilities are allowable. Owing to the different costs associated with Class I and Class IV Facilities, funding for this requirement must be roughly equivalent based on expenditures. A jurisdiction may meet this requirement through a combination of other state, federal, and local funding sources, aside from revenue from the Fund. Safe Routes to Schools projects that include Class I or Class IV Facilities may be counted toward satisfying this requirement.

8. Jurisdictions that expend funds under this subsection shall not expend funds on privately owned streets and roads.

9. Jurisdictions that expend funds under this subsection shall certify to the Council of Governments that expenditures of funds under this subsection meet the following criteria:

a. With respect to Class I Facilities:

i. Class I Facilities are not limited to bicycle use and are available for pedestrian use. Canal banks located in existing neighborhoods that cannot be paved may also be considered Class I Facilities for purposes of this Act.

ii. Class I Facilities, including shared-use paths constructed with funds expended under this subsection, are to the greatest extent possible designed in accordance with the bicycle path design criteria set forth in Chapter 1000 (Bicycle Transportation Design) of the California Highway Design Manual.

iii. Within the Fresno–Clovis Metropolitan Area, Class I Facilities constructed with funds expended under this subsection are a minimum of 12 feet in width, where feasible.

iv. Within the Fresno–Clovis Metropolitan Area, Class I Facilities constructed with funds expended under this subsection are designed so that at-grade crossings are limited to one crossing every one-half mile at signalized intersections for new developments, where feasible and provided that such design does not violate property owner rights.

v. Class I Facilities constructed within existing neighborhoods are designed so that mid-block crossings on collectors, arterials, super-arterials, or expressways satisfy one of the following:

I. Each crossing is controlled by at-grade pedestrian waiting mechanisms, including signalized or flashing crossings or other warning devices.

II. Each crossing is controlled with grade-separated crossings when warranted due to pedestrian or bicycle safety risks, where feasible.

vi. Class I bikeways in rural areas that link rural communities and cities are, to the greatest extent possible, constructed in accordance with Chapter 1000 (Bicycle Transportation Design) of the California Highway Design Manual.

b. Class II and Class III bikeways are, to the greatest extent possible, designed and installed in accordance with Chapter 1000 (Bicycle Transportation Design) of the California Highway Design Manual and the California Manual on Uniform Traffic Control Devices.

c. Class IV bikeways, including separated bikeways or cycle tracks, are, to the greatest extent possible, designed and installed in accordance with Caltrans Design Information Bulletin 89.

10. Any new or modified types of facilities shall be eligible for funding under the Existing Neighborhood Streets and Roads Repair and Maintenance Program if such facilities are included in any future revision of the California Highway Design Manual or related Caltrans design guidance.

11. Trails designed strictly for recreational purposes shall be ineligible for expenditures under this Act.

D. Transit-Oriented Development.

1. A jurisdiction that receives funds under this section may expend the funds to support transportation and other costs to enable housing in mixed-use zone districts within existing neighborhoods. The jurisdiction shall ensure the developments are mixed income and include deed-restricted units affordable to lower-income households.

2. For the purpose of this subsection D, lower-income means 80 percent or less of Area Median Income (AMI), including low-income (50 to 80 percent of AMI), very low-income (30 to 50 percent of AMI), and extremely low-income (below 30 percent of AMI).

E. Bicycle and Pedestrian Facilities Maintenance.

Jurisdictions receiving funds under this section may use the funds for maintenance of bicycle and pedestrian facilities, including, but not limited to, landscaping and tree care; pavement, root-damage, and pothole repairs; irrigation system operation and repair; lighting, signage, striping, and surface resurfacing; litter and weed removal; utility costs; and maintenance of adjacent trailheads or parks.

F. Safe Routes to School.

1. A jurisdiction that receives funds under this section may use this funding to support Safe Routes to School (SRTS) projects, including infrastructure, education, outreach, and planning to support safe transportation to and from schools.

2. Each jurisdiction shall coordinate with school districts within its boundaries to identify and ensure the highest-priority SRTS projects are funded each year. Funds shall be used to prioritize SRTS projects identified as highest priority and urgent.

3. Funds may be used to achieve conformance with Section 22352.5 of the California Vehicle Code, lowering the speed limit in school zones to twenty miles per hour by January 1, 2031. When updating signage and other compliance needs in school zones, jurisdictions should seek to make other SRTS improvements where needed and appropriate.

G. The following metrics shall be used to evaluate performance under this section:

1. The average Pavement Condition Index score for each jurisdiction that receives funds under this section, including arterial, collector, and neighborhood streets, shall be maintained at a minimum average level of 70.

2. At least 120 miles of new Class I or Class IV Facilities shall be maintained and constructed by 2057, as identified in the applicable Active Transportation Plan for each jurisdiction. This requirement shall be appor-

tioned as follows:

a. The cities of Fresno and Clovis shall collectively be responsible for at least 84 miles.

b. The County shall be responsible for at least 36 miles.

c. Any Class I or Class IV Facilities constructed by the remaining cities may be credited toward fulfilling the County's obligation under this paragraph 2.

d. Safe Routes to Schools projects that include new Class I or Class IV Facilities may be counted toward satisfaction of this requirement.

e. Up to 20 percent of this requirement may be met through routine maintenance.

3. a. At least 150 Safe Routes to School projects shall be completed by 2057 that improve walkability, safety, and connectivity for students and reduce serious injuries and fatalities. Projects shall include infrastructure, engineering improvements, and traffic-calming strategies to enhance safety and accessibility for walking and bicycling within a one-mile radius of school zones.

b. The requirement imposed by subparagraph a shall be apportioned as follows:

i. The cities of Fresno and Clovis shall collectively be responsible for at least 105 projects.

ii. The remaining cities and the County shall collectively be responsible for at least 45 projects.

c. Jurisdictions may collectively satisfy the requirement imposed by subparagraph a by one or more of the following:

i. By completing five Safe Routes to School projects per year, 70 percent in the cities of Fresno and Clovis and 30 percent in the remaining incorporated cities and the unincorporated areas of the county region.

ii. By completing at least 50 projects every 10 years, 70 percent in the cities of Fresno and Clovis and 30 percent in the remaining cities and the unincorporated areas of the county region.

4. The County and each incorporated city within the county region shall pursue reductions in greenhouse gas emissions consistent with targets established quadrennially by the California Air Resources Board.

H. By July 1, 2029, each jurisdiction within the county region, to be eligible for continued funding under this section, shall complete and adopt an Active Transportation and Safe Routes to Schools Implementation and Performance Analysis to establish a baseline assessment and track progress towards achieving the established metrics of this Act. A jurisdiction may use funds allocated in this section to pay the reasonable costs of developing the analysis. The analysis shall include the following:

1. An Active Transportation Analysis addressing Class I, II, III, and IV Facilities that promote connectivity and complete streets throughout the county region and its urbanized areas. This analysis shall, at a minimum, include all of the following:

a. A regional sidewalk, bikeway, and trail inventory assessing the condition, connectivity, and accessibility of sidewalks and pedestrian and bicycle pathways.

b. Actionable strategies to improve and construct new sidewalks, pathways, and bicycle facilities within existing neighborhoods in compliance with established metrics of this Act in order to facilitate travel to major points of interest or destination centers, including, but not limited to, employment centers, educational facilities, parks and open spaces, and medical services.

c. Adopted Active Transportation Plans or Fresno Regional Active Transportation Plans shall serve as the guiding document for the upgrade, installation, and funding of active transportation facilities, provided that the plans include the requirements identified in subparagraphs a and b.

2. A Safe Routes to School (SRTS) analysis developed in coordination with the school districts within its jurisdictional boundaries. The analysis shall include:

a. The number of serious injuries and fatalities within a one-mile radius of each school during the previous five years and annual reduction targets.

b. The highest-priority SRTS projects to be funded to ensure compliance with this section.

c. Adopted SRTS projects or similar plans shall serve as the guiding document for the upgrade, installation, and funding of SRTS facilities, provided that the plans include requirements identified in subparagraphs a and b of paragraph 1 and are coordinated with school districts within the jurisdiction's boundaries.

3. Each jurisdiction within the county region shall develop Active Transportation and Safe Routes to Schools Implementation and Performance Analysis through a robust public process. The public process shall include, at a minimum, all of the following:

a. The jurisdiction shall notify the public of its intent to initiate an analysis and publicly notice the process through which it will solicit public input.

b. The jurisdiction shall hold at least three publicly noticed meetings to solicit public input. Meetings shall be held at accessible locations outside of regular business hours. Translation of materials and interpretation shall be provided.

c. Upon completion of the public meetings, the jurisdiction shall prepare, publish, and formally adopt an analysis, which shall include a prioritized list of projects to be funded during the ensuing five-year period and an accompanying analysis documenting the manner in which public input was solicited, reviewed, and incorporated into the final recommendations, following a public review period of not less than 30 days.

d. Funded projects shall be included in a public database maintained by the Council of Governments, and progress toward completion shall be reported annually until completion, consistent with subsection J of Section 4.60.110.

4.60.080. Public Transportation Program.

A. Twenty-five percent of the annual revenue in the Fund shall be allocated to support an integrated, rapid, resilient, and cost-effective transit network that coordinates public transportation services, where feasible, to reduce costs of service and avoid service duplication, and prioritize improving public transportation system access and use.

B. The Council of Governments shall allocate funding under this section as follows:

1. Ten percent to Clovis Transit.

2. Seventy percent to Fresno Area Express.

3. Twenty percent to the Fresno County Rural Transit Agency.

C. Funds provided under this section shall be expended for the following purposes:

1. Operations, maintenance, and capital costs for maintaining and improving public transportation services.

2. Expanded hours and increased frequency of transit services; evening and weekend service; non-emergency medical transportation; increased frequency between and among cities and communities; first and last mile connections; emergency planning; service integration; paratransit service; community shuttles; and university and college transit options.

3. Deployment of buses, microtransit, carshare, rideshare, vanpool, and Bus Rapid Transit or light rail services.

4. Public transit supportive infrastructure, including disability access infrastructure; sheltered and weather protective bus stops; lighting at bus stops; trash disposal; enhanced pedestrian and bicycle facilities that improve access to transit stops; optimized traffic signals for smoother traffic flow; and investments in modern vehicles and technology, including real-time tracking and audible announcements for passengers. At main hubs and transit centers, where possible, public transportation operators are encouraged to provide and improve water stations and public restrooms.

D. Each transit agency shall ensure services are available for continued support for paratransit, curb-to-curb, van, taxi, and other transportation services for seniors 62 years old and older, and people with disabilities who are unable to use fixed-route transit services. Funds may be expended for operations support, replacement of accessible vans, and replacement and upgrades of supporting equipment. Each year, each transit agency shall certify to the Council of Governments that revenue provided under this section is first being used for this subsection D.

E. Transportation agencies may use the funds allocated under this section for public transportation projects that are included in a local agency capital improvement program or annual budget, or that are approved by resolution at a public hearing of each local agency identifying the eligible project or list of projects or programs.

F. Funds in this section may be used by the Council of Governments to conduct a Regional Transit Consolidation Study to identify opportunities to coordinate or consolidate transit services in order to achieve a seamless passenger travel system for the public, provided that any study, recommendation, or resulting action ensures the protection of public transit employees, including the preservation of wages, benefits, collective bargaining rights, and employment security. The findings and recommendations of the study shall be considered for implementation by the Council of Governments Policy Board.

G. The following metrics shall be used to evaluate performance under this section:

1. For each transit agency receiving funds under this section, transit accessibility performance shall demonstrate year-over-year improvement. Performance shall be measured using a composite index composed of the following indicators: (1) percentage change in total ridership; (2) percentage of urban routes operating at 15-minute or better headways and, in rural areas, average transit travel time relative to comparable personal vehicle travel times or an equivalent accessibility metric; (3) average travel distance or time required to reach a defined set of key destinations; (4) average number of transfers required on commonly used routes; (5) average transfer wait times; and (6) on-time performance, measured as the percentage of trips operating on schedule from origin to destination. Where feasible, each indicator shall be reported both in aggregate and disaggregated by demographic, geographic, and rider group.

2. For each transit agency receiving funds under this section, the annual percentage increase in transit-supportive infrastructure shall grow every year. Performance shall be measured by quantifiable increases in the following: (1) the number of bus stops and multimodal access points that meet or exceed applicable local, state, and federal accessibility standards; and (2) the linear miles, area coverage, or facility count of bicycle, sidewalk, and pedestrian infrastructure providing direct access to bus stops, transit hubs, schools, population centers, employment centers, and essential services.

H. By July 1, 2029, each transit agency, to be eligible for continued funding under this section, shall complete and adopt a Public Transit Improvement Plan to establish a baseline assessment and track progress towards improving the metrics described in paragraphs 1 and 2 of subsection G of this section. Funds allocated in this section may be used by an agency to pay the reasonable costs of developing the Plan. The Plan shall include the following:

1. Proposed transit service improvement and expansion plans, including mass transit, micro-transit and on-demand transit services.

2. Programs and services that provide continued support for paratransit, curb-to-curb, van, taxi, and other transportation services for those who are unable to use fixed-route transit services, including seniors 62 years old and older and people with disabilities.

3. Strategies for how Fund revenues will be leveraged with state and federal funding to maximize program and service impact.

4. Strategies for the coordination of services and programs across the transit agencies.

I. Each transit agency shall develop a Public Transit Improvement Plan through a robust public process, which shall include, at a minimum, all of the following:

1. The agency shall notify the public of its intent to initiate a plan and publicly notice the process through which it will solicit public input.

2. The agency shall hold at least three publicly noticed meetings to solicit public input. Meetings shall be held at accessible locations outside of regular business hours. Translation of materials and interpretation shall be provided.

3. Upon completion of the public meetings, the agency shall prepare, publish, and formally adopt a plan, which shall include a prioritized list of projects to be funded during the ensuing five-year period and an accompanying analysis documenting the manner in which public input was solicited, reviewed, and incorporated into the final recommendations, following a public review period of not less than 30 days.

4. Funded projects shall be included in a public database maintained by the Council of Governments, and progress toward completion shall be reported annually until completion, consistent with subsection J of Section 4.60.110.

4.60.090. Regional Connectivity Program.

A. One percent of the annual revenue in the Fund shall be allocated to the Fresno Yosemite International Airport. Funds may be used to support operations, infrastructure, transportation access improvements, and multi-modal connections to and from the airport.

B. Four percent of the annual revenue in the Fund shall be allocated to fund regional street, road, and highway improvement projects with direct local benefits.

1. The Council of Governments shall provide funding on the following schedule:

a. By June 30, 2028, for years 1 to 7 of this Act.

b. By June 30, 2034, for years 8 to 15 of this Act.

c. By June 30, 2041, for years 16 to 24 of this Act.

d. By June 30, 2048, for the remaining years of this Act.

2. Agencies eligible for funding under this subsection B shall include the incorporated cities within the county region, the County, and the California Department of Transportation.

3. Projects funded under this subsection B may include projects on the state highway system, regional transportation projects, and projects on major local arterials that serve more than one city or area of the county region. Funds allocated under this section may be used as matching funds for litter-abatement activities pursuant to a state matching-funds program.

4. Each agency shall request project funding from the Council of Governments, which shall be provided through a cooperative funding agreement. These agreements shall allocate funding for the initial project phases. All funding agreements shall reimburse implementing agencies for funds expended. The agreements shall not provide agencies with advance funding.

5. The Council of Governments shall conduct a public engagement process to identify and prioritize projects in the county region. Selected projects shall achieve one or more of the following: reduced vehicle miles traveled, increased multi-modal travel, increased safety by reducing the number of collisions of all road users, improved air quality, increased access to good local jobs, or other direct local benefits to communities. The Council of Governments may prioritize projects that identify state and federal funding to leverage matching funds. The agencies shall complete this process as follows:

a. The Council of Governments shall notify the Citizens Oversight Committee of its intent to initiate a public process and publicly notice the process through which it will solicit public input.

b. The Council of Governments shall publish project solicitation guidelines for projects that further the goals identified in this paragraph 5 and allow at least 60 days for eligible agencies to submit proposals.

c. Upon receipt of project proposals, the Council of Governments shall publish a list of projects and hold at least three publicly noticed meetings across the county region, with at least one on the east side of the county region, at least one on the west side of the county region, and at least one in the urban metro area, for public input. Meetings shall be held at accessible locations outside of regular business hours, and translation of materials and live interpretation shall be provided.

d. Following the public workshops, the Council of Governments shall prepare and publish a list of projects recommended for funding, together with an analysis documenting how public input was considered and incorporated into the recommendations.

e. Projects will be considered and approved by the Council of Governments Policy Board at least 30 days after the list of projects is publicly

posted.

6. The Council of Governments may consider bonding future revenues if project needs and deliverability exceed available cash flow.

C. Agencies that receive funds under this section shall report project progress to the Council of Governments. Any project cost increases not associated with subsequent project phases shall be thoroughly justified by the implementing agency, and a funding agreement amendment shall be approved prior to the expenditure of funds in excess of the approved project budget. Agencies that receive any funds under this section shall furnish, install, and maintain project funding signage recognizing the funding contributed by this Act.

D. All major roads, regional transportation projects, and highways constructed, improved, or reconstructed under this section shall comply with paragraphs 5 and 6 of subsection C of Section 4.60.070.

4.60.100. Access and Innovation Program.

A. Four percent of the annual revenue in the Fund shall be allocated for planning and projects that enable new technologies, invest in zero-emission infrastructure, and increase access to destinations.

B. The Council of Governments shall first allocate funds to Clovis Transit, Fresno Area Express, and the Fresno County Rural Transit Agency to ensure the implementation and maintenance of zero-fare programs for special populations. For purposes of this subsection, "special populations" means people with disabilities, veterans and active-duty military personnel, seniors 62 years of age and older, children, and students.

C. If funds remain after the purposes under subsection B are met, the Council of Governments shall award competitive grants, and shall develop implementation policies and guidelines, for projects in the following categories:

1. Clean Energy Projects, which may include electric-vehicle charging stations, hydrogen fueling facilities, compressed natural gas infrastructure, and similar clean-fuel facilities; a Regional Zero-Emission Vehicle Readiness and Implementation Plan developed by the Council of Governments; local agency Zero-Emission Vehicle Readiness and Implementation Plans; clean-vehicle power support facilities; microgrid or solar electric-vehicle battery-charging infrastructure; autonomous vehicle infrastructure projects; or other projects or programs that further clean transportation goals.

2. Travel Choice Projects, which may include regional transportation hubs and micro-mobility hubs designed to provide and identify a range of connected travel choices; innovations in micro-mobility; increased opportunities for telecommuting; and broadband infrastructure to support telecommuting and educational facility purposes.

3. Future Technology Projects, which may include other new technology applications or improvements in emerging or future transportation technologies.

D. The agencies eligible to apply for funding under subsection C shall include the incorporated cities within the county region, the County, the Council of Governments, Fresno Area Express, the Fresno County Rural Transit Agency, and Clovis Transit. Private-sector entities, nonprofit organizations, or other governmental agencies may also submit applications for funding, provided that such applications are submitted through, and sponsored by, the local government agency of the jurisdiction in which the project is located. The incorporated cities within the county region and the County shall generally serve as the primary applicants for program funds; however, for projects or programs of a regional nature, the Council of Governments may serve as the appropriate applicant. For any competitive grant program for which the Council of Governments seeks to apply for funding, the Council of Governments shall adopt a written policy establishing an independent panel to review and score all applications.

4.60.110. Administration, Performance Measures, Requirements, and Indicators Program.

One percent of the annual revenue in the Fund shall be allocated to the Council of Governments to administer this Act. Activities that may be funded under this section shall include the following:

A. Preparing and adopting an annual work program and budget outlining planned expenditures, oversight activities, and administrative costs, and distributing funds pursuant to this Act.

B. Developing requirements for each funding program established by this Act and undertaking specialized studies needed to implement those programs effectively.

C. Undertaking and completing the reporting requirements and technical assistance pursuant to Section 4.60.140.

D. Establishing and updating priority lists for regional connectivity, in coordination with member jurisdictions and consistent with this Act.

E. Conducting an independent audit to ensure compliance, fiscal integrity, and accountability to the public.

F. Conducting reviews to ensure compliance with and progress towards attainment of performance measures under each program.

G. Carrying out ongoing outreach and public education efforts to keep taxpayers informed about project progress, financial performance, and planned updates.

H. Issuing bonds when appropriate to expedite project delivery, reducing overall project costs by leveraging future revenues for near-term improvements.

I. Providing staff support to advisory committees and furnishing staff- or consultant-based technical assistance to member jurisdictions to ensure consistent, equitable, and effective program implementation. Technical assistance may also include grant preparation and submission.

J. Developing and implementing a searchable public database that allows the public to easily access information on how funds are used and how they align with guiding principles and any implementing guideline requirements.

4.60.120. Local Hiring Preference.

Projects funded by this Act are intended to provide direct and indirect economic benefits to the county region through investments in infrastructure and related construction-associated economic activity, including the creation of well-paying jobs for the county region's businesses and residents. In furtherance of these objectives, the Council of Governments, in coordination with its member agencies, shall develop and implement reasonable local hiring and contracting goals and related strategies to help maximize these economic benefits by July 1, 2029, and shall be updated every five years thereafter.

4.60.130. Design and Implementation Elements.

A. Funds allocated to each jurisdiction shall supplement, not supplant, other sources of revenue.

B. Projects funded in part or in whole with revenues from the Fund shall incorporate design and implementation elements that address heat, increased precipitation and flooding, wildfire management, and improvements to air quality, including through the following:

1. Where feasible, the addition, establishment, and maintenance of landscaping and tree canopy along pedestrian walkways, bicycle facilities, local and major roads, highways, and trails in the public right-of-way; provided, however, that each project shall include an analysis of the elements considered, and if trees or shade canopy elements are not included, the project shall document the reasons for such exclusion.

2. Funding shall be prioritized for projects in neighborhoods and communities with lower tree canopy coverage.

3. Where feasible, the addition of curb, gutter, and stormwater drainage improvements.

4. Vegetation management.

C. Funds may be used for the maintenance of landscaping and tree canopy along pedestrian walkways, bicycle facilities, local and major roads, highways, and trails in the public right-of-way, including, but not limited to, irrigation system operation and repair, pruning, landscape and tree canopy preservation, and litter and weed removal.

D. All streets and roads constructed or improved in whole or in part with revenue from the Fund shall include complete street features, where feasible.

E. Expenditures under this Act for street maintenance and repair are encouraged to include complete street elements that do not require additional pavement width.

F. It is the intent of the people of Fresno County that each jurisdiction that receives funding under this Act adopt and follow "dig once" construction project principles, requiring public and private roadway projects to accommodate the installation of conduit to support community needs, including but not limited to, broadband fiber optics, stormwater systems, and sidewalks.

G. Jurisdictions or agencies shall use best efforts to implement projects consistent with the intent of this Act. In the event a jurisdiction or agency determines that a proposed project or project requirement is not feasible, the jurisdiction or agency shall, following a duly noticed public hearing, formally declare and document the reasons for such infeasibility.

H. Funds made available under this Act may be used, in whole or in part, as matching funds for eligible state and federal programs in order to increase benefits to residents of the county region.

4.60.140. Council of Governments Reporting Requirements and Technical Assistance.

A. By July 1, 2029, the Council of Governments shall complete and adopt the following studies and analyses to establish a baseline assessment and track progress towards achieving metrics described in Sections 4.60.070 and 4.60.080. The Council of Governments shall be eligible to receive reimbursement for reasonable costs incurred in completing the required studies and analyses from the jurisdictions and agencies that receive funding in sections 4.60.070 and 4.60.080. The studies and analyses shall include the following:

1. A countywide Pavement Management System analysis, the results of which shall be furnished to each eligible agency. The Council of Governments shall use the Pavement Management System analysis to evaluate each agency's progress toward achieving metrics described in paragraph 1 of subsection G of Section 4.60.070.

2. A Regional Transit Agency Service Consolidation study in coordination with the existing transit agencies and jurisdictions to assess the feasibility of consolidating services to achieve a seamless passenger system for the public.

3. A needs assessment of complete streets, including determining the Pavement Condition Index of disadvantaged unincorporated communities pursuant to paragraph 6 of subsection B of Section 4.60.070.

B. The Council of Governments shall establish and regularly update protocols and procedures to assist jurisdictions and agencies in the implementation of this Act. Protocols and procedures may include the following:

1. Compliance with Act requirements at the annual, five-year, and ten-year intervals.

2. Technical assistance to eligible jurisdictions and agencies to comply with Act requirements.

3. Standard reporting templates.

4. Guidelines for implementation of the competitive funding program described in subsection C of Section 4.60.100.

4.60.150. Reporting and Review Requirements.

A. Each agency that receives funds under this Act shall complete and submit to the Council of Governments an annual independent audit to verify that program funds were expended in compliance with the requirements of this Act. Any agency found to be out of compliance shall be subject to withholding of program funds until appropriate reimbursements are made and compliance is achieved.

B. On an annual basis, each agency that receives funds under this Act shall complete and submit a performance report to the Council of Governments identifying expended funds and projects that used proceeds from this Act in whole or in part. Any agency that expends funds allocated under Section 4.60.070 on services shall also describe such uses in its annual report. The Council of Governments shall establish any additional reporting requirements necessary to carry out the purposes of this Act.

C. The Council of Governments shall conduct an independent audit of the proceeds generated by this Act, as well as the expenditures from the Fund. An independent auditor's report may be funded by the revenues from the Fund. This shall include an accounting of revenues received and expenditures made from the Fund and shall be presented annually to the Council of Governments and Board of Supervisors and made available for public review. The audit report shall be posted on the internet website of the Council of Governments.

D. On an annual basis, the Council of Governments shall publish a report identifying projects completed or supported by Fund revenues by eligible agencies.

E. By July 1, 2029, and updated annually thereafter, the Council of Governments shall develop and implement a public database that allows the public to easily access information on how funds are used, completed projects, progress towards projects under construction, and compliance with the requirements of this Act.

F. The Council of Governments shall establish compliance check requirements, fund accumulation and noncompliance requirements, claims and dispute-resolution procedures, monitoring and reporting requirements, includ ing the establishment of deadlines for reports required under this section, and an audit requirement for jurisdictions that receive funds under this Act.

4.60.160. Five Year Plan Updates.

A. Each jurisdiction's Active Transportation and Safe Routes to Schools Implementation and Performance Analysis required by subsection H of Section 4.60.070, and each transit agency's Public Transit Improvement Plan required by subsection H of Section 4.60.080, shall be updated every five years over the life of this Act through a robust public process.

B. The public process required by subsection A shall include, at a minimum, all of the following:

1. The jurisdiction or agency shall notify the public of its intent to initiate an update to the adopted plan or plans and publicly notice the process through which it will solicit public input.

2. The jurisdiction or agency shall hold at least three publicly noticed meetings to solicit public input. Meetings shall be held at accessible locations outside of regular business hours. Translation of materials and live interpretation shall be provided.

3. Upon completion of the public meetings, the jurisdiction or agency shall prepare, publish, and formally adopt an updated plan or analysis, which shall include a prioritized list of projects to be funded during the ensuing five-year period and an accompanying analysis documenting the manner in which public input was solicited, reviewed, and incorporated into the final recommendations, following a public review period of not less than 30 days.

4. Funded projects shall be included in a public database maintained by the Council of Governments, and progress toward completion shall be reported annually until completion, consistent with subsection J of Section 4.60.110.

C. The countywide Pavement Management System analysis prepared by the Council of Governments pursuant to paragraph 1 of subsection a of Section 4.60.140 shall be updated every five years following its initial publication.

4.60.170. Citizens Oversight Committee.

A. The Citizens Oversight Committee shall be formed within six months following the effective date of this Act.

B. The purpose of the Committee is to inform the public and to ensure that expenditures from the proceeds of the tax imposed by this Act are spent in accordance with the Act, and the Committee shall have the following responsibilities:

1. Receiving, reviewing, and recommending action on independent financial and performance audits.

2. Receiving, reviewing, and recommending action on reports, studies, and plans directly related to programs, revenues, or expenditures.

3. Reviewing and commenting on expenditures for consistency with this Act.

4. Annually reviewing sales-tax expenditures and publicizing findings.

5. Presenting recommendations and findings in a formal annual public report.

6. Conducting the comprehensive review of the Act, at a minimum, every ten years pursuant to section 4.60.170.

7. Referring any misuse of revenue to the Fresno County District Attorney, the Attorney General, and any other appropriate agency.

C. The Committee shall consist of 11 members. Each member shall satisfy all of the following:

1. Be a United States citizen who is at least 18 years of age and a resident of Fresno County.

2. Not be a holder of any elected office.

3. Not be an employee of the County, any incorporated city in the county region, the Fresno County Rural Transit Agency, Caltrans, or the Council of Governments.

4. Have no financial interest in any Council of Governments-funded project.

D. The membership of the Committee shall be comprised as follows:

1. Six members shall be at-large public members who satisfy the following geographic requirements:

a. Three members shall reside within the Fresno-Clovis Metropolitan Area.

b. Three members shall reside outside the Fresno-Clovis Metropolitan Area, including one member from the east side of the county region, one from the west side of the county region, and one from an unincorporated area.

c. At least one member shall reside in each of the five Fresno County supervisorial districts.

2. Five members representing the diversity of the county region, providing a balance of viewpoints.

E. Committee members shall be selected by the Council of Governments Policy Board, consisting of the mayors of the incorporated cities in the county region and the Chair of the Fresno County Board of Supervisors or their designee. Whenever vacancies occur, openings shall be publicly noticed at least 60 days prior to the application deadline.

F. Members shall serve four-year terms and may serve consecutive terms. Members shall receive compensation of fifty dollars ($50) for each meeting attended.

G. Members shall serve no more than eight years, except that a member appointed to an initial term of less than four years may serve up to 10 total years. Vacancies shall be filled using the same selection process for the remainder of the term. Terms shall be staggered to avoid replacing more than two members in any recruitment period.

H. The Committee shall annually select a Chair and Vice Chair from among its members, each serving a one-year term. The Chair shall call meetings, set agendas, and preside over meetings. The Vice Chair shall perform these duties in the Chair's absence.

I. The Committee shall meet at least quarterly and at such additional times as the Committee deems necessary. All meetings shall comply with the Ralph M. Brown Act and shall be conducted in accordance with Robert's Rules of Order. The Committee shall not employ proxy voting.

J. Members of the Committee shall annually file a Statement of Economic Interests in accordance with Chapter 7 of Title 9 of the California Government Code.

K. The Committee may establish subcommittees to carry out specific aspects of its duties. All subcommittees shall consist of an odd number of members.

L. A quorum shall consist of a majority of active Committee members. Actions shall be approved by a simple majority of the quorum present.

M. The Council of Governments shall provide technical and administrative staffing support, subject to Committee approval. Staffing costs and necessary outside services shall be paid from the monies identified in Section 4.60.110. Expert staff may be requested to present information to the Committee as needed.

N. The Committee shall review all reports published by each city and the County detailing planned budgets and financial expenditures of proceeds from the Fund.

O. The Committee shall oversee an annual fiscal and compliance audit using an independent auditor, identifying all directly funded projects and accumulated revenues and expenditures. The Committee shall oversee and publish an annual report presenting audit results to the Council of Governments Policy Board.

4.60.180. Amendments to The Act

A. It is the intent of the people of the County of Fresno that this Act be amended only through a public review process, except as expressly provided in this section and only to the extent the amendment is consistent with the purposes and intent of this Act.

B. 1. The Council of Governments Policy Board shall initiate a comprehensive review of the Act, at a minimum, every ten years and refer the public review process to the Citizens Oversight Committee.

2. The Citizens Oversight Committee shall conduct the comprehensive review and evaluation of the Act.

3. The Citizens Oversight Committee shall oversee the public process, which shall allow a minimum of 90 days to conduct at least three public workshops. At least one public workshop shall be held in the east side of the county region, at least one public workshop shall be held in the west side of the county region, and at least one public workshop shall be held in the urban metro area. Public meetings shall be accessible to the public and held at accessible locations outside of regular business hours. Translation of materials and live interpretation services shall be provided.

4. Following the public process, the Committee shall submit evaluation findings and recommendations to the Council of Governments Policy Board and the public for review and input. The Committee shall allow a minimum of 30 days for public comment.

5. a. The Council of Governments Policy Board shall consider evaluation findings and recommendations at a public hearing and shall adopt proposed amendments to the Act at the next regularly scheduled meeting. The Council of Governments Policy Board shall approve any amendments in accordance with its double-weighted voting system.

b. Each member shall be assigned a weighted voting percentage based on population. Approval of any action shall require satisfaction of both of the following conditions:

i. Jurisdictions representing over 40 percent of the population of the county region must be in favor of an action.

ii. A majority of all members must support the action.

6. The Council of Governments Policy Board shall submit any proposed amendments to the Act to the Board of Supervisors, which may adopt the amendments only if the amendments further the purposes of this Act.

C. The Citizens Oversight Committee may propose amendments to the programs established by this Act under the public review procedures provided in subsection B and shall submit any proposed amendments to the Council of Governments Policy Board and the Board of Supervisors for approval as provided by paragraphs 5 and 6 of subsection B.

D. The people of the County of Fresno declare that the elimination of any program established by this Act does not further the purposes of the Act. Any modification to the allocation of revenues between programs established by this Act shall require approval of the voters.

E. After a request from the Council of Governments Policy Board, the Board of Supervisors may amend the Act outside the comprehensive review process to address a locally declared emergency, an immediate threat to public health and safety, or the need to timely leverage large-scale, one-time state or federal funding opportunities.

F. During the term of this Act, the Board of Supervisors may authorize the transfer of public transportation funding allocated under Section 4.60.080 to a newly created regional transit district, or similar entity, in connection with a merger or consolidation of the existing public transportation agencies identified in Section 4.60.080.

4.60.190. Supplement to Existing Funding For Transportation.

INITIATIVE MEASURE TO BE SUBMITTED DIRECTLY TO THE VOTERS

The people of the County of Fresno find and declare that the transportation infrastructure needs of the county region require more resources than what are currently provided. In adopting this Act, the people of the County of Fresno choose to provide additional resources to supplement, and not supplant, local, state, federal, and other funding for transportation infrastructure county-wide.

4.60.200. Regional Transportation Mitigation Fee.

A. Consistent with existing law, the Regional Transportation Mitigation Fee Program established in 2006 as part of Measure C may be used to provide funding for projects funded by this Act, provided that such use is consistent with state law governing impact mitigation fees.

B. The Council of Governments, consistent with nexus requirements, shall have the authority to allocate Regional Transportation Mitigation Fee revenues based upon regional priority needs within the county region, in a manner consistent with Sections 4.60.070 to 4.60.100, inclusive, and in a manner consistent with state law governing impact mitigation fees.

C. No later than June 30, 2028, all jurisdictions shall extend the Joint Powers Agreement establishing the Regional Transportation Mitigation Fee Program, consistent with Section 7 of that Joint Powers Agreement. Any city or the County that elects not to implement the Regional Transportation Mitigation Fee shall forfeit annually from its allocation under Section 4.60.070 an amount equal to the Regional Transportation Mitigation Fee that would otherwise have been paid for development projects within that jurisdiction during the applicable year. An agency that elects not to implement the Regional Transportation Mitigation Fee shall notify the Council of Governments of that decision and shall file an advisory report with the Council of Governments for each development project indicating the amount of the fee that would have been paid. The Council of Governments shall calculate the total annual Regional Transportation Mitigation Fee obligation for that agency and deduct the appropriate amount from that agency's allocation under Section 4.60.070.

4.60.210. Contract with State.

Prior to the operative date of this chapter, the County shall contract with the California Department of Tax and Fee Administration to perform all functions incident to the administration and operation of this transactions and use tax ordinance, provided that, if the County shall not have contracted with the California Department of Tax and Fee Administration prior to the operative date of this chapter, it shall nevertheless so contract and in such a case the operative date of this chapter shall be the first day of the first calendar quarter following the execution of such a contract.

4.60.220. Transactions Tax Rate.

For the privilege of selling tangible personal property at retail, a tax is hereby imposed upon all retailers in the incorporated and unincorporated territory of the District at the rate of 0.5 percent of the gross receipts of any retailer from the sale of all tangible personal property sold at retail in said territory on and after the operative date of this Act.

4.60.230. Place Of Sale.

For the purposes of this Act, all retail sales are consummated at the place of business of the retailer unless the tangible personal property sold is delivered by the retailer or his agent to an out-of-state destination or to a common carrier for delivery to an out-of-state destination. The gross receipts from such sales shall include delivery charges, when such charges are subject to the state sales and use tax, regardless of the place to which delivery is made. In the event a retailer has no permanent place of business in the State or has more than one place of business, the place or places at which the retail sales are consummated shall be determined under rules and regulations to be prescribed and adopted by the California Department of Tax and Fee Administration.

4.60.240. Use Tax Rate.

An excise tax is hereby imposed on the storage, use or other consumption in the District of tangible personal property purchased from any retailer on and after the operative date of this Act for storage, use or other consumption in said territory at the rate of 0.5 percent of the sales price of the property. The sales price shall include delivery charges when such charges are subject to state sales or use tax regardless of the place to which delivery is made.

4.60.250. Adoption Of Provisions Of State Law.

Except as otherwise provided in this Act and except insofar as they are inconsistent with the provisions of Part 1.6 of Division 2 of the Revenue and Taxation Code, all of the provisions of Part 1 (commencing with Section 6001) of Division 2 of the Revenue and Taxation Code are hereby adopted and made a part of this Act as though fully set forth herein.

4.60.260. Limitations On Adoption Of State Law And Collection Of Use Taxes.

In adopting the provisions of Part 1 of Division 2 of the Revenue and Taxation Code:

A. Wherever the State of California is named or referred to as the taxing agency, the name of this County shall be substituted therefor. However, the substitution shall not be made when:

1. The word "State" is used as a part of the title of the State Controller, State Treasurer, State Treasury, or the Constitution of the State of California.

2. The result of that substitution would require action to be taken by or against this County or any agency, officer, or employee thereof rather than by or against the California Department of Tax and Fee Administration, in performing the functions incident to the administration or operation of this Act.

3. In those sections, including, but not limited to, sections referring to the exterior boundaries of the State of California, where the result of the substitution would be to:

a. Provide an exemption from this tax with respect to certain sales, storage, use, or other consumption of tangible personal property which would not otherwise be exempt from this tax while such sales, storage, use, or other consumption remain subject to tax by the State under the provisions of Part 1 of Division 2 of the Revenue and Taxation Code; or

b. Impose this tax with respect to certain sales, storage, use, or other consumption of tangible personal property which would not be subject to tax by the state under the said provision of that code.

4. In Sections 6701, 6702 (except in the last sentence thereof), 6711, 6715, 6737, 6797 or 6828 of the Revenue and Taxation Code.

B. The word "District" shall be substituted for the word "State" in the phrase "retailer engaged in business in this State" in Section 6203 and in the definition of that phrase in Section 6203.

1. "A retailer engaged in business in the County" shall also include any retailer that, in the preceding calendar year or the current calendar year, has total combined sales of tangible personal property in this state or for delivery in the State by the retailer and all persons related to the retailer that exceeds five hundred thousand dollars ($500,000). For purposes of this section, a person is related to another person if both persons are related to each other pursuant to Section 267(b) of Title 26 of the United States Code and the regulations thereunder.

4.60.270. Permit Not Required.

If a seller's permit has been issued to a retailer under Section 6067 of the Revenue and Taxation Code, an additional transactor's permit shall not be required by this Act.

4.60.280. Exemptions And Exclusions.

A. There shall be excluded from the measure of the transactions tax and the use tax the amount of any sales tax or use tax imposed by the State of California or by any city, city and county, or county pursuant to the Bradley-Burns Uniform Local Sales and Use Tax Law or the amount of any state-administered transactions or use tax.

B. There are exempted from the computation of the amount of transactions tax the gross receipts from:

1. Sales of tangible personal property, other than fuel or petroleum products, to operators of aircraft to be used or consumed principally outside the County in which the sale is made and directly and exclusively in the use of such aircraft as common carriers of persons or property under the authority of the laws of this State, the United States, or any foreign government.

2. Sales of property to be used outside the District that is shipped to a point outside the District, pursuant to the contract of sale, by delivery to such point by the retailer or his agent, or by delivery by the retailer to a carrier for

shipment to a consignee at such point. For the purposes of this paragraph, delivery to a point outside the District shall be satisfied:

a. With respect to vehicles (other than commercial vehicles) subject to registration pursuant to Chapter 1 (commencing with Section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with Section 21411 of the Public Utilities Code, and undocumented vessels registered under Division 3.5 (commencing with Section 9840) of the Vehicle Code by registration to an out-of-District address and by a declaration under penalty of perjury, signed by the buyer, stating that such address is, in fact, his or her principal place of residence; and

b. With respect to commercial vehicles, by registration to a place of business out-of-District and declaration under penalty of perjury, signed by the buyer, that the vehicle will be operated from that address.

3. The sale of tangible personal property if the seller is obligated to furnish the property for a fixed price pursuant to a contract entered into prior to the operative date of this Act.

4. A lease of tangible personal property which is a continuing sale of such property, for any period of time for which the lessor is obligated to lease the property for an amount fixed by the lease prior to the operative date of this Act.

5. For the purposes of subparagraphs 3 and 4 of this section, the sale or lease of tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

C. There are exempted from the use tax imposed by this Act, the storage, use or other consumption in this County of tangible personal property:

1. The gross receipts from the sale of which have been subject to a transactions tax under any state-administered transactions and use tax ordinance.

2. Other than fuel or petroleum products purchased by operators of aircraft and used or consumed by such operators directly and exclusively in the use of such aircraft as common carriers of persons or property for hire or compensation under a certificate of public convenience and necessity issued pursuant to the laws of this State, the United States, or any foreign government. This exemption is in addition to the exemptions provided in Sections 6366 and 6366.1 of the Revenue and Taxation Code of the State of California.

3. If the purchaser is obligated to purchase the property for a fixed price pursuant to a contract entered into prior to the operative date of this Act.

4. If the possession of, or the exercise of any right or power over, the tangible personal property arises under a lease which is a continuing purchase of such property for any period of time for which the lessee is obligated to lease the property for an amount fixed by a lease prior to the operative date of this Act.

5. For the purposes of subparagraphs 3 and 4 of this section, storage, use, or other consumption, or possession of, or exercise of any right or power over, tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

6. Except as provided in subparagraph 7, a retailer engaged in business in the District shall not be required to collect use tax from the purchaser of tangible personal property, unless the retailer ships or delivers the property into the District or participates within the District in making the sale of the property, including, but not limited to, soliciting or receiving the order, either directly or indirectly, at a place of business of the retailer in the District or through any representative, agent, canvasser, solicitor, subsidiary, or person in the District under the authority of the retailer.

7. "A retailer engaged in business in the District" shall also include any retailer of any of the following: vehicles subject to registration pursuant to Chapter 1 (commencing with Section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with Section 21411 of the Public Utilities Code, or undocumented vessels registered under Division 3.5 (commencing with Section 9840) of the Vehicle Code. That retailer shall be required to collect use tax from any purchaser who registers or licenses the vehicle, vessel, or aircraft at an address in the District.

D. Any person subject to use tax under this Act may credit against that tax any transactions tax or reimbursement for transactions tax paid to a district imposing, or retailer liable for a transactions tax pursuant to Part 1.6 of Division 2 of the Revenue and Taxation Code with respect to the sale to the person of the property the storage, use, or other consumption of which is subject to the use tax.

4.60.290. Amendments to California Revenue and Taxation Code.

All amendments subsequent to the effective date of this Act to Part 1 of Division 2 of the Revenue and Taxation Code relating to sales and use taxes and which are not inconsistent with Part 1.6 and Part 1.7 of Division 2 of the Revenue and Taxation Code, and all amendments to Part 1.6 and Part 1.7 of Division 2 of the Revenue and Taxation Code, shall automatically become a part of this Act, provided however, that no such amendment shall operate so as to affect the rate of tax imposed by this Act.

4.60.300. Enjoining Collection Forbidden.

No injunction or writ of mandate or other legal or equitable process shall issue in any suit, action, or proceeding in any court against the State or the County, or against any officer of the State or the County, to prevent or enjoin the collection under this Act, or Part 1.6 of Division 2 of the Revenue and Taxation Code, of any tax or any amount of tax required to be collected.

4.60.310. Termination of Transactions and Use Tax.

This chapter shall remain operative for 30 years from the operative date of this Act and shall be repealed by operation of this section on that date, unless a later measure is adopted before that date which deletes or extends the termination date.

SEC. 5. EFFECTIVE DATE.

This Act shall take effect 10 days after the certification by the Board of Supervisors of the election results indicating passage of the measure by a majority of the voters casting votes in the election; however, the Operative Date of the tax imposed by this measure shall be July 1, 2027.

SEC. 6. SEVERABILITY.

If any section, subsection, sentence, clause, phrase or word of this Act is for any reason held to be invalid by a court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Act. The people of the County of Fresno hereby declare they would have passed and adopted this Act and each and all provisions hereof irrespective of the fact that any one or more of said provisions be declared invalid.

SEC. 7. LIBERAL CONSTRUCTION.

This measure is an exercise of the initiative power of the people of the County of Fresno to implement a special tax to fund the purposes set forth in the Act, and it shall be liberally construed to effectuate these purposes.

SEC. 8. AMENDMENTS.

The expenditure plan adopted pursuant to this Act may be amended in accordance with Section 4.60.180. Any other amendments to this Act shall require approval by the voters of the County of Fresno.

SEC. 9. CONFLICTING MEASURES.

This measure is intended to be comprehensive. It is the intent of the people of the County of Fresno that, in the event this measure and one or more measures relating to a special tax to fund transportation infrastructure shall appear on the same ballot, the provisions of the other measure or measures shall be deemed in conflict with this measure. In the event that this measure receives a greater number of affirmative votes, the provisions of this measure shall prevail in their entirety, and all provisions of the other measure or measures shall be null and void.

INITIATIVE MEASURE TO BE SUBMITTED DIRECTLY TO THE VOTERS

The county counsel has prepared the following title and summary of the chief purpose and points of the proposed measure:

Fresno County Transportation Improvement Act

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The tax will be imposed in accordance with and incorporate provisions of state law. The California Department of Tax and Fee Administration will administer and collect the tax.

Tax proceeds will be deposited into a fund maintained by the County and will be appropriated to the Fresno Council of Governments (COG). COG will annually allocate the proceeds to the County, incorporated cities (Cities), and local transit agencies for the purposes specified in the Measure, including:

- **Sixty-five percent (65%) of the proceeds would be allocated to the County and Cities to repair, rebuild, and maintain roads to improve travel time, accessibility, safety, and public health. Each jurisdiction will annually receive a base allocation, and additional allocations will be based on population and public roadway miles.**
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The Measure requires COG to develop program requirements, complete studies, review fiscal and compliance reports, and conduct annual independent audits.

The Measure will establish a Citizens Oversight Committee (Committee) of eleven members appointed by the COG Policy Board. The Committee will conduct public meetings held at least quarterly, review reports, and oversee annual fiscal and compliance audits.

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DECLARATION OF CIRCULATOR (To be completed in circulator's own hand after the above signatures have been obtained.)

I, _____ (print name), am 18 years of age or older.

My residence address is _____ (address, city, state, zip). I circulated this section of the petition and witnessed each of the appended signatures being written. Each signature on this petition is, to the best of my information and belief, the genuine signature of the person whose name it purports to be. All signatures on this document were obtained between

the dates of _____ (month, day, year) and _____ (month, day, year). I certify under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed on _____ (month, day, year), at _____ (place of signing), CA. Signature of Circulator _____ (complete signature indicating full name of circulator)

County of Fresno

ERRATA FORM

DATE: July 14, 2026

Agenda Item Number: Item 7.1

TO: Board of Supervisors

FROM: James A. Kus, County Clerk/Registrar of Voters 7/13/26

SUBJECT: Fresno County Transportation Improvement Act

The errata form is being submitted to note revisions/changes to the following document(s) related to the subject agenda item:

☐ Recommendation

☐ Board Agenda Item

☑ Attachments

SUMMARY OF CHANGES:

The ballot question in Section 5 of the attached Resolution calling an election for the "Fresno County Transportation Improvement Act" has been revised from $110 million to $113 million as the initial estimated annual revenue of the proposed retail transactions and use tax, based on the most current information available.

Redlined version of the revised materials are attached.

Revised

BEFORE THE BOARD OF SUPERVISORS

OF THE

COUNTY OF FRESNO, STATE OF CALIFORNIA

IN THE MATTER OF:

CALLING A COUNTYWIDE ELECTION TO BE CONSOLIDATED WITH THE STATEWIDE GENERAL ELECTION TO BE HELD ON NOVEMBER 3, 2026, FOR THE PURPOSE OF SUBMITTING TO THE ELECTORS OF FRESNO COUNTY AN INITIATIVE MEASURE RELATING TO THE ESTABLISHMENT OF A NEW COUNTYWIDE RETAIL TRANSACTIONS AND USE TAX	)	RESOLUTION

WHEREAS, on April 14, 2026, Proponents submitted to the Fresno County Clerk/Registrar of Voters a citizens initiative petition ("Petition") signed by not less than 10% of the entire vote cast in Fresno County for all candidates for Governor at the last gubernatorial election preceding the publication of the Proponents' Notice of Intention to Circulate a Petition; and

WHEREAS, the Petition proposes an ordinance, attached hereto as Exhibit A, to create a new retail transactions and use tax to be spent for the purposes specified in the ordinance to benefit the County of Fresno, the incorporated cities in Fresno County, and local transit agencies ("Measure"); and

WHEREAS, on July 8, 2026, pursuant to Elections Code Section 9115, subdivision (b), the Fresno County Clerk/Registrar of Voters completed a full signature verification of the Petition, finding that the Petition is signed by the requisite number of qualified voters to declare the Petition sufficient; and

WHEREAS, on July 14, 2026, pursuant to Elections Code Section 9115, the Fresno County Clerk/Registrar of Voters certified the results of the examination of the Petition to the County of Fresno Board of Supervisors at its regular meeting; and

WHEREAS, pursuant to Elections Code Sections 1405, subdivision (a), and 9118, subdivision (b), the County of Fresno Board of Supervisors shall submit the Measure, without alteration, to the voters in the next statewide election; and

WHEREAS, a Statewide General Election will be held on November 3, 2026; and

WHEREAS, pursuant to Elections Code Sections 10400 *et seq*., the County of Fresno Board of Supervisors seeks consolidation of the countywide election on the Measure relating to the proposed ordinance with the November 3, 2026, Statewide General Election; and

WHEREAS, under Elections Code Sections 10400 *et seq*., the County of Fresno Board of Supervisors has the power and authority to order the consolidation of local elections with the Statewide General Election; and

WHEREAS, the Proponents have requested that the Measure be designated "Measure S"; and

WHEREAS, approval of a majority of the electors voting upon the Measure is required for passage of the Measure.

NOW THEREFORE, be it resolved as follows:

1. The Board hereby calls, orders, and proclaims a countywide election at which the Measure relating to the proposed ordinance shall be submitted to the qualified voters of Fresno County pursuant to Elections Code Sections 1405, subdivision (a), and 9118, subdivision (b).
2. Under Elections Code Sections 10400 *et seq*., the Board hereby orders the countywide election for this Measure to be consolidated with the November 3, 2026, Statewide General Election and placed on the ballot at that election.
3. The Board acknowledges that the consolidated election will be held and conducted in the manner prescribed in Elections Code Section 10418.
4. The Fresno County Clerk/Registrar of Voters is designated as the elections official for the election, and the Fresno County Clerk/Registrar of Voters is hereby authorized and directed to provide all notices and take all other actions necessary to holding the election, including, but not limited to, providing notices of times within which arguments for and against are submitted.
5. The ballot question hereby approved for the election is as follows:

Fresno County Transportation Improvement Act. Shall the measure to fix neighborhood streets; repair and keep our roads in safe condition; improve safety for children walking and biking to school; improve public transportation, including free transit services for seniors, veterans, people with disabilities, and students; repair sidewalks and trails; by replacing Fresno County's existing half-cent transportation sales tax, initially providing approximately $1130 million annually for 30 years, requiring independent oversight, annual audits, and local control, be adopted?

Yes ___ No ___

6. The Fresno County Clerk/Registrar of Voters is hereby authorized and directed to cause the complete text of the Measure to be printed as indicated in the attached Exhibit A in the County of Fresno Voter Information Guide, and a copy of the Measure shall be made available to a voter upon request.

7. The Measure shall be designated on the ballot by a letter, as provided in Elections Code Section 13116. Based on the Proponents' request, the Fresno County Board of Supervisors requests that the Fresno County Clerk/Registrar of Voters designate the ballot Measure as Measure "S."

8. Arguments in favor of and in opposition to the Measure and rebuttal arguments shall be permitted and shall be filed with the Fresno County Clerk/Registrar of Voters in accordance with applicable provisions of the Elections Code, including Sections 9161 through 9167. As provided in Elections Code Section 9162, the Fresno County Board of Supervisors or any member of the Board is hereby authorized to act as an author of any ballot argument prepared in connection with the election on the Measure.

9. The Fresno County Clerk/Registrar of Voters shall fix the dates for submission of arguments and rebuttals as provided for in the Elections Code.

10. Pursuant to Elections Code Section 9160, subdivision (b), the County Counsel is directed to prepare an impartial analysis of the Measure.

11. Pursuant to Elections Code Section 9160, subdivision (c), the Auditor-Controller/Treasurer-Tax Collector is directed to prepare a fiscal impact statement which estimates the amount of any increase or decrease in revenues or costs to the County of Fresno if the Measure is adopted.

12. The County Administrative Officer, or his designee, is authorized and directed to work with the Fresno County Clerk/Registrar of Voters and take all steps necessary to place the Measure and any associated materials on the ballot.

[SIGNATURE PAGE TO FOLLOW]

THE FOREGOING, was passed and adopted by the following vote of the Board of Supervisors of the County of Fresno this _____ day of _____, 2026, to wit:

AYES:

NOES:

ABSENT:

ABSTAINED:

_____
Garry Bredefeld, Chairman of the Board of Supervisors
of the County of Fresno

ATTEST:
Bernice E. Seidel
Clerk of the Board of Supervisors
County of Fresno, State of California

By: _____
Deputy

Exhibit A

Fresno County Transactions and Use Tax:
Fresno County Transportation Improvement Act Measure

Full Text of Measure

The people of the County of Fresno ordain as follows:

SECTION 1. TITLE.

This Act shall be known, and may be cited, as the "Fresno County Transportation Improvement Act."

SEC. 2. FINDINGS AND DECLARATIONS.

The people of the County of Fresno hereby find and declare all of the following:

(a) Fresno County is a great place to live and raise a family, but crumbling streets, unsafe roads, and lack of transportation options threaten our quality of life.

(b) Aging infrastructure, including the roads connecting our cities and the sidewalks on streets near our homes, schools, and parks, is in serious need of investment. An estimated $5.4 billion is needed to bring roads to "good" and "safe" condition and reduce deferred maintenance.

(c) Connected and well-maintained streets and roads, as well as enhanced safety improvements and traffic calming measures, facilitate access by first responders and reduce the time it takes to respond to emergencies.

(d) More than 100 people are killed and over 300 are severely injured on Fresno County roads each year, with pedestrians and bicyclists facing disproportionate risk. Improving roadway safety and building and maintaining protected pedestrian and bike lanes are urgently needed.

(e) Repairing, rebuilding, and maintaining the road system will improve travel time, accessibility, traffic safety, and public health, and will also address transportation related costs.

(f) Since 1986, transportation sales tax proceeds have largely been spent on state freeways and new roads, leaving local roads in disrepair. Pothole-riddled streets lead to increased costs for car maintenance and fuel, with repairs from pothole damage costing each driver up to $2,000.

(g) Approximately 80% of public transit users in Fresno County are entirely dependent on public transportation and lack access to a private vehicle. Current public transportation services do not transport people to all the places they need to go and often do not operate at the times people need to travel. Additionally, the rising cost of housing in Fresno County and the

lack of services in rural areas often force longer commutes and trips to access doctor's appointments and grocery stores.

(h) To keep Fresno County safe, livable, and thriving, we need to invest in projects to reduce traffic, fix crumbling streets and roads, and improve transportation countywide.

(i) The increasing frequency of major rain and flooding events, extreme heat, and forest fires requires investments in resilient infrastructure to decrease property damage and improve public health and safety.

(j) This Act is focused on the essential transportation improvements that will make our existing roads safer and more efficient, improve our transit system, and make life better for Fresno County residents by increasing access to jobs, education, healthcare, groceries, and other basic amenities.

(k) The time is now. Without this measure, we will experience further road deterioration; little to no investment in basic infrastructure like sidewalks, crosswalks, curbs, gutters, bike lanes, and trails; and a reduction in transportation services countywide.

(l) Funding from this Act is guaranteed to go directly to Fresno County transportation priorities and nothing else. The funds go directly into a special account politicians can't touch and, if the funds are misused, violators will be subject to possible criminal prosecution by the Fresno County District Attorney and State Attorney General.

(m) Independent audits every year and a Citizens Oversight Committee will ensure transparency and that funds are spent on transportation priorities as the voters intend.

SEC. 3. PURPOSE AND INTENT.

It is the intent of the people of the County of Fresno in enacting this Act to do all of the following:

(a) Fix what matters most by repairing and maintaining existing local streets and roads first.

(b) Keep people and our kids safe by investing in safety improvements, including enhanced lighting, road safety, and safe routes to school.

(c) Get people where they need to go efficiently by improving the accessibility and affordability of public transit systems that connect the public to essential services and amenities.

(d) Improve transportation alternatives by building and maintaining bikeways, pedestrian facilities, and public transit options.

(e) Keep the transportation system safe with repairs, retrofits, and safety upgrades, allowing students, seniors, and people with disabilities to travel safely.

(f) Allow seniors, students, people with disabilities, veterans, and active military personnel to access public transit at no cost.

(g) Create thousands of local quality jobs that pay a living wage and provide healthcare and retirement benefits for workers.

(h) Build strong, vibrant communities by adding shade, trees, and other features to combat heat, beautify transportation corridors, and ensure no neighborhood is left behind.

(i) Foster innovation by making smart investments that keep our county competitive and connected — now and in the future.

(j) Reduce air pollution to protect Fresno County's environment and quality of life.

(k) Protect taxpayers with strict accountability measures, including independent audits and citizens' oversight, to ensure funds are spent as intended by voters.

SEC. 4. FRESNO COUNTY TRANSPORTATION IMPROVEMENT ACT.

Chapter 4.60 is added to Title 4 of the Ordinance Code of Fresno County to read as follows:

Chapter 4.60. Fresno County Transportation Improvement Act

4.60.010. Title.

This chapter shall be known as the Fresno County Transportation Improvement Act.

4.60.020. Definitions.

For the purposes of this chapter, the following definitions shall apply:

A. "Act" means the Fresno County Transportation Improvement Act.

B. "Board of Supervisors" means the Fresno County Board of Supervisors.

C. "Class I Facilities" means bike paths or shared-use paths that provide a completely separated right-of-way designated for the exclusive use of bicycles and pedestrians, with crossflows by motorists minimized, as defined in subdivision (a) of Section 890.4 of the California Streets and Highways Code.

D. "Class II Facilities" means bike lanes that provide a restricted right-of-way designated for the exclusive or semi-exclusive use of bicycles, with through travel by motor vehicles or pedestrians prohibited, but with vehicle parking and crossflows by pedestrians and motorists permitted, as defined in subdivision (b) of Section 890.4 of the California Streets and Highways Code.

E. “Class III Facilities” means bike routes that provide a right-of-way on-street or off-street, designated by signs or permanent markings and shared with pedestrians and motorists, as defined in subdivision (c) of Section 890.4 of the California Streets and Highways Code.

F. “Class IV Facilities” means cycle tracks or separated bikeways that provide a right-of-way designated exclusively for bicycle travel adjacent to a roadway and that are separated from vehicular traffic by physical elements, including, but not limited to, grade separations, flexible posts, inflexible physical barriers, or on-street parking, as defined in subdivision (d) of Section 890.4 of the California Streets and Highways Code.

G. “Committee” means the Citizens Oversight Committee established pursuant to Section 4.60.170.

H. “Complete street” means a transportation facility that is planned, designed, constructed, operated, and maintained to provide comfortable and convenient mobility, and improve accessibility and connectivity to essential community destinations for all users, regardless of whether they are traveling as pedestrians, bicyclists, public transportation riders, or drivers.

I. “Council of Governments” means the Fresno Council of Governments.

J. “County” means the county government of the County of Fresno.

K. “County region” or “District” means the geographic territory of the County of Fresno, including all incorporated and unincorporated areas therein.

L. “Existing neighborhoods” means neighborhoods in existence within the adopted legal boundaries of each jurisdiction with permanent structures and public infrastructure or public utilities as of November 3, 2026.

M. “Fund” means the Fresno County Transportation Improvement Act Fund established by Section 4.60.040.

N. “Operative Date” means July 1, 2027.

4.60.030. Purpose.

This Act is adopted to achieve the following purposes, and directs that the provisions hereof be interpreted to accomplish those purposes:

A. To impose a retail transactions and use tax in accordance with the provisions of Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code.

B. To adopt a retail transactions and use tax ordinance that incorporates provisions identical to those of the Sales and Use Tax Law of the State of California insofar as those provisions are not inconsistent with the requirements and limitations contained in Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code.

C. To adopt a retail transactions and use tax ordinance that imposes a tax and provides a measure therefor that can be administered and collected by the California Department of Tax and Fee Administration in a manner that adapts itself as fully as practicable to, and requires the least possible deviation from, the existing statutory and administrative procedures followed by the California Department of Tax and Fee Administration in administering and collecting the California State Sales and Use Taxes.

D. To adopt a retail transactions and use tax ordinance that can be administered in a manner that will be, to the greatest degree possible, consistent with the provisions of Part 1.6 (commencing with Section 7251) of Division 2 of the Revenue and Taxation Code, minimizes the cost of collecting the transactions and use taxes, and at the same time, minimizes the burden of record keeping upon persons subject to taxation under the provisions of this Act.

E. To raise appropriate revenues to support transportation investments and programs to fix and maintain roads, improve neighborhood infrastructure, enhance public transit and rideshare options, and support active transportation. These programs include the following:

1. The Existing Neighborhood Streets and Roads Repair and Maintenance Program, which is intended to bring the road systems within the incorporated cities and the rural unincorporated areas of the county region, including arterials, collectors, and neighborhood streets, to an average Pavement Condition Index (PCI) of 70, which is within the "Good" category as indicated in the Pavement Management System (PMS) report. Funds under this program go directly to incorporated cities and the County for local street and road repair and maintenance, traffic safety, active transportation, bicycle and pedestrian facilities, and safe routes to school.

2. The Public Transportation Program, which addresses public transit systems and services throughout the county region. The funding under this program will be used to improve bus, microtransit, and mass transit frequencies; paratransit services; transit infrastructure, such as shelters and transfer centers; and point-to-point programs for seniors, children, students, veterans, active military personnel, and mobility-challenged individuals.

3. The Regional Connectivity Program, which facilitates the movement of people and goods, and the efficient delivery of services, by providing matching funds for major projects benefiting multiple jurisdictions within the county region that enhance connectivity along major corridors, strengthen connections within the urban area and between the cities and rural communities, and foster economic growth.

4. The Access and Innovation Program, which provides for planning and projects that enable new technologies, invest in zero-emission infrastructure, and increase access to destinations.

5. The Administration, Performance Measures, Requirements, and Indicators Program, which includes administration and planning activities of the Council of Governments.

F. To require annual audits and oversight by a citizens oversight committee to ensure funds are used exclusively for these purposes.

4.60.040. Fresno County Transportation Improvement Act Fund.

There is hereby established in the treasury of the County a special fund called the Fresno County Transportation Improvement Act Fund, which shall be maintained by the County.

4.60.050. Receipt of Proceeds.

All revenue generated by this Act shall be deposited into the Fresno County Transportation Improvement Act Fund.

4.60.060. Use of Proceeds.

A. Monies in the Fund shall be used to reimburse the County for the costs imposed by the California Department of Tax and Fee Administration to collect and administer the tax imposed by this Act, pursuant to Section 4.60.210.

B. The remaining monies in the Fund shall be appropriated each fiscal year to the Council of Governments solely for the purposes specified in this Act.

4.60.070. Existing Neighborhood Streets and Roads Repair and Maintenance Program.

A. 1. Sixty-five percent of the annual revenue in the Fund shall be allocated for the purpose of repairing, rebuilding, and maintaining the road system in the incorporated cities and the unincorporated areas of the county region to improve travel time and accessibility, traffic safety, and public health, as further provided in subsections B to H, inclusive.

2. a. The Council of Governments shall make separate allocations of funds under this section to each of the incorporated cities within the county region, for expenditures by each city within its own jurisdiction, and to the County, for expenditures in the unincorporated areas of the county region.

b. Funds allocated under this paragraph 2 shall be distributed as follows:

i. Each jurisdiction shall receive a base allocation of four hundred thousand dollars ($400,000) each year.

ii. Following allocations made under clause i, the balance of funding to be allocated under this section shall be allocated in proportion to each jurisdiction's population based on the most recent population estimates prepared by the California Department of Finance, weighted 80 percent, and in proportion to each jurisdiction's number of maintained public roadway miles as determined by the most recent Pavement Condition Survey, weighted 20 percent. The allocation to the County shall be based on the population and roadway miles in the unincorporated areas of the county region.

3. Each jurisdiction may use funds provided under this section for any program specified in this section.

4. Nothing in this Act prohibits the eligible jurisdictions from issuing bonds or using other financing mechanisms secured by future revenues to accelerate implementation of this section.

5. Jurisdictions may accumulate program funds for up to five years for match purposes or to fund large-scale projects.

6. All streets and roads constructed or improved in whole or in part with revenue from the Fund shall include complete street features, whenever feasible, to create an overall complete street system for neighborhoods. To reduce overall costs under a single contract, jurisdictions that receive funds under this section may also use other funding sources to address the entire roadway infrastructure under one project.

7. Eligible expenditures under this program include all recognized project phases, including planning and environmental analysis; conceptual, preliminary, and design engineering; right-of-way acquisition, support, and relocation; utilities relocation; construction engineering and inspection; vehicles and equipment; direct staff time, including salary and benefits; consultants and construction contractors selected pursuant to local agency selection processes; and labor, materials, and equipment for day labor.

B. Repair, Maintain, and Construct Local Streets and Roads Program.

1. Jurisdictions that receive funds under this section may expend those funds for purposes of the Repair, Maintain, and Construct Local Streets and Roads Program established by this subsection B. Expenditures under this subsection shall prioritize improvements to local streets that connect to existing neighborhood homes, schools, parks, community services, public transportation, and places of employment. Project development, capital, and maintenance costs shall be eligible for expenditures under this subsection.

2. Projects eligible for expenditures under the Repair, Maintain, and Construct Local Streets and Roads Program shall include all of the following:

a. Repaving and reconstruction of existing local streets to prevent deterioration of the roadway system, based on an industry-standard pavement management system designed to inform cost-effective roadway maintenance. Components for routine accommodation of bicycle and pedestrian travel shall be incorporated, as appropriate, as part of construction projects, including sidewalks, bicycle facilities, rehabilitation and curb ramps, and elements to improve resilience, safety, and accessibility.

b. Public sidewalk repair, reconstruction, and construction in existing neighborhoods; construction of new and maintenance of additional pedestrian facility improvements, including pedestrian bridges, retaining walls, and guardrails; maintenance of pedestrian and bicycle safety improvements, including, but not limited to, safe-hit posts, painted safety zones, green bicycle lanes, and crosswalks; and rehabilitation of other bicycle facilities, such as bicycle paths.

c. Programmatic improvements to the transportation system to make it safer for all users and help achieve greenhouse gas (GHG) reduction requirements. Projects eligible for expenditures may include, but are not limited to, all of the following:

i. Traffic calming projects to reduce vehicular speeds and improve safety, including speed bumps/humps; new or improved pedestrian safety measures, such as ladder crosswalks, curb extensions (bulb-outs) on corners, and pedestrian islands in the medians of major thoroughfares; new and upgraded bicycle lanes and paths; traffic striping and channelization; and bicycle and personal mobility device parking facilities. Quick builds, pilot projects, permanent improvements, intersection redesigns, and larger corridor projects are eligible for expenditures. Related landscaping components may be included.

ii. Installation, maintenance, and upgrade of traffic signs and signals, including for pedestrians and bicyclists; and communications systems, including changeable message signs for incident and special-event traffic management.

d. Multimodal street improvements to improve pedestrian, bicycle, transit, and vehicle circulation and connectivity.

e. Pothole repair, crack sealing, slurry sealing, asphalt overlays, resurfacing, slab replacement, permeable pavement, vegetation control, curb and gutter maintenance, stormwater and drainage controls, shoulder grading, guardrail and barrier repair, bridge maintenance, sign and marking upkeep, street sweeping, landscaping and beautification, and snow and ice removal.

f. Streetlights, signals, traffic calming and other safety features; standard traffic lights, flashing signals, green arrows, pedestrian signals, out-of-service signals, guardrails, rumble strips, sign and pavement marking, speed humps, speed tables, raised crosswalks, and horizontal devices, such as roundabouts and bulb-outs; traffic signal timing, traffic operations centers, and Intelligent Transportation System components.

g. Sidewalks, alleys, bikeways, pedestrian safety features, infrastructure compliant with the Americans with Disabilities Act, crosswalks, traffic calming features, including flashing beacons, lighting, and neighborhood slow zones, pedestrian and bicycle overcrossings and undercrossings, pedestrian paths, walkways, bikeways, and protected bicycle facilities.

h. New curb ramps compliant with the Americans with Disabilities Act, reconstruction of existing ramps, and related roadway work to permit ease of movement.

i. Vehicles and equipment may be purchased with funds provided under this Act only when necessary to carry out work associated with projects funded under this Act. Costs for such purchases must be charged proportionally to each funded project based on actual or reasonably estimated use and may not exceed the pro rata share attributable to projects funded under this Act.

j. Litter-abatement activities pursuant to a state matching-funds program.

3. Each jurisdiction may spend no more than 5 percent of its allocation under the Existing Neighborhood Streets and Roads Repair and Maintenance Program on road expansion or capacity-

increasing projects per year. Before a jurisdiction can expend funds pursuant to this paragraph, every local street and road within the jurisdiction shall reach a Pavement Condition Index score of 65 or above.

4. Road expansion or capacity-increasing projects shall not be prohibited by paragraph 3 if they involve significant safety or mobility benefits, as supported by traffic studies that demonstrate reductions in fatalities and serious injuries for all road users. Eligible road expansion or capacity increasing projects shall only include the following:

a. Dedicated public transportation lanes.

b. Dedicated and protected Class I or Class IV Facilities.

c. Safety-motivated turn lanes or intersection improvements that protect all road users and that do not impede bicycle or pedestrian facilities.

5. Funds shall not be used for street or roadway construction in new growth areas or new town developments.

a. For purposes of this paragraph 5, "new growth areas" means geographic areas designated for future residential, commercial, industrial, or mixed-use development that, as of the passage date of this Act, were not zoned for urban development, substantially developed with permanent structures and public infrastructure, and included within an adopted municipal or regional growth boundary, service area, or comprehensive plan authorizing such development. Preliminary approvals, conceptual plans, or applications pending approval shall not be considered evidence of existence.

b. For purposes of this paragraph 5, "new town developments" means large-scale, master-planned developments intended to function as self-contained communities, including residential, commercial, public, and transportation infrastructure that were not incorporated, approved, or under active construction as of the passage date of this Act and require the extension of new public streets, roadways, or transportation infrastructure to serve the development. Preliminary approvals, conceptual plans, or applications pending approval shall not be considered evidence of existence.

6. The County shall annually expend a minimum of between 12 percent and 15 percent of its local allocation in identified disadvantaged unincorporated communities, as defined by paragraph (2) of subdivision (a) of Section 65302.10 of the California Government Code. The Council of Governments shall determine the specific minimum percentage by completing a needs assessment of complete streets pursuant to Section 4.60.140. The County may spend any remaining funds set aside for disadvantaged unincorporated communities in other unincorporated areas of the county region once identified needs have been met, the average Pavement Condition Index score for all disadvantaged unincorporated communities reaches 70, and each local road within all disadvantaged unincorporated communities attains a Pavement Condition Index score of at least 65.

7. Jurisdictions shall prioritize funding for existing neighborhood roads with the lowest Pavement Condition Index score or in project areas in need of improvement in disadvantaged neighborhoods and communities.

C. Active Transportation.

1. Jurisdictions that receive funds under this section may expend those funds to create a comprehensive, connected network of pedestrian and bicycle routes that link homes, workplaces, schools, parks, transit, and other destinations.

2. Funds expended pursuant to this subsection C may be used to redesign existing streets to be complete streets, prioritizing non-car options, increasing the safety and comfort of pedestrians and cyclists, and improving connections to transit.

3. Every street or road constructed or reconstructed in whole or in part with revenue from the Fund pursuant to this subsection shall include sidewalks, paths, walkways, or equivalent facilities, where feasible and according to the adopted Active Transportation Plan in each jurisdiction.

4. Any maintenance to a street or road funded in whole or in part with revenue from the Fund pursuant to this subsection shall, at a minimum, maintain the existing level of pedestrian and bicycle access, facilities, and safety features along and across the street, road, or highway.

5. Where feasible, every expressway, super-arterial, arterial, or collector road constructed in whole or in part with revenue from the Fund pursuant to this subsection shall include accommodations for bicycle travel at minimum by a striped shoulder with a minimum width of four feet. This four-foot shoulder may be provided as a bike lane or a cycle track. If an existing expressway, super-arterial, or collector road is reconstructed and reconstruction includes pavement widening, that project shall be subject to this requirement.

6. All roadways receiving pavement reconstruction without pavement widening, rehabilitation, or an overlay, slurry seal, chip seal, or seal coat funded in whole or in part with revenue from the Fund pursuant to this subsection shall include accommodations for bicycle travel at a minimum by Class I and Class IV Facilities, unless there is insufficient right-of-way or if there are other physical constraints as determined by a licensed engineer. This four-foot shoulder may be provided as a bike lane or a cycle track.

7. On a multi-lane roadway, funds expended pursuant to this subsection may be used for conversion of travel lanes to bicycle facilities, provided the responsible agency has determined that excess roadway capacity exists and that the bicycle facilities are allowable. Owing to the different costs associated with Class I and Class IV Facilities, funding for this requirement must be roughly equivalent based on expenditures. A jurisdiction may meet this requirement through a combination of other state, federal, and local funding sources, aside from revenue from the Fund. Safe Routes to Schools projects that include Class I or Class IV Facilities may be counted toward satisfying this requirement.

8. Jurisdictions that expend funds under this subsection shall not expend funds on privately owned streets and roads.

9. Jurisdictions that expend funds under this subsection shall certify to the Council of Governments that expenditures of funds under this subsection meet the following criteria:

a. With respect to Class I Facilities:

i. Class I Facilities are not limited to bicycle use and are available for pedestrian use. Canal banks located in existing neighborhoods that cannot be paved may also be considered Class I Facilities for purposes of this Act.

ii. Class I Facilities, including shared-use paths constructed with funds expended under this subsection, are to the greatest extent possible designed in accordance with the bicycle path design criteria set forth in Chapter 1000 (Bicycle Transportation Design) of the California Highway Design Manual.

iii. Within the Fresno–Clovis Metropolitan Area, Class I Facilities constructed with funds expended under this subsection are a minimum of 12 feet in width, where feasible.

iv. Within the Fresno–Clovis Metropolitan Area, Class I Facilities constructed with funds expended under this subsection are designed so that at-grade crossings are limited to one crossing every one-half mile at signalized intersections for new developments, where feasible and provided that such design does not violate property owner rights.

v. Class I Facilities constructed within existing neighborhoods are designed so that mid-block crossings on collectors, arterials, super-arterials, or expressways satisfy one of the following:

I. Each crossing is controlled by at-grade pedestrian waiting mechanisms, including signalized or flashing crossings or other warning devices.

II. Each crossing is controlled with grade-separated crossings when warranted due to pedestrian or bicycle safety risks, where feasible.

vi. Class I bikeways in rural areas that link rural communities and cities are, to the greatest extent possible, constructed in accordance with Chapter 1000 (Bicycle Transportation Design) of the California Highway Design Manual.

b. Class II and Class III bikeways are, to the greatest extent possible, designed and installed in accordance with Chapter 1000 (Bicycle Transportation Design) of the California Highway Design Manual and the California Manual on Uniform Traffic Control Devices.

c. Class IV bikeways, including separated bikeways or cycle tracks, are, to the greatest extent possible, designed and installed in accordance with Caltrans Design Information Bulletin 89.

10. Any new or modified types of facilities shall be eligible for funding under the Existing Neighborhood Streets and Roads Repair and Maintenance Program if such facilities are included in any future revision of the California Highway Design Manual or related Caltrans design guidance.

11. Trails designed strictly for recreational purposes shall be ineligible for expenditures under this Act.

D. Transit-Oriented Development.

1. A jurisdiction that receives funds under this section may expend the funds to support transportation and other costs to enable housing in mixed-use zone districts within existing neighborhoods. The jurisdiction shall ensure the developments are mixed income and include deed-restricted units affordable to lower-income households.

2. For the purpose of this subsection D, lower-income means 80 percent or less of Area Median Income (AMI), including low-income (50 to 80 percent of AMI), very low-income (30 to 50 percent of AMI), and extremely low-income (below 30 percent of AMI).

E. Bicycle and Pedestrian Facilities Maintenance.

Jurisdictions receiving funds under this section may use the funds for maintenance of bicycle and pedestrian facilities, including, but not limited to, landscaping and tree care; pavement, root-damage, and pothole repairs; irrigation system operation and repair; lighting, signage, striping, and surface resurfacing; litter and weed removal; utility costs; and maintenance of adjacent trailheads or parks.

F. Safe Routes to School.

1. A jurisdiction that receives funds under this section may use this funding to support Safe Routes to School (SRTS) projects, including infrastructure, education, outreach, and planning to support safe transportation to and from schools.

2. Each jurisdiction shall coordinate with school districts within its boundaries to identify and ensure the highest-priority SRTS projects are funded each year. Funds shall be used to prioritize SRTS projects identified as highest priority and urgent.

3. Funds may be used to achieve conformance with Section 22352.5 of the California Vehicle Code, lowering the speed limit in school zones to twenty miles per hour by January 1, 2031. When updating signage and other compliance needs in school zones, jurisdictions should seek to make other SRTS improvements where needed and appropriate.

G. The following metrics shall be used to evaluate performance under this section:

1. The average Pavement Condition Index score for each jurisdiction that receives funds under this section, including arterial, collector, and neighborhood streets, shall be maintained at a minimum average level of 70.

2. At least 120 miles of new Class I or Class IV Facilities shall be maintained and constructed by 2057, as identified in the applicable Active Transportation Plan for each jurisdiction. This requirement shall be apportioned as follows:

a. The cities of Fresno and Clovis shall collectively be responsible for at least 84 miles.

b. The County shall be responsible for at least 36 miles.

c. Any Class I or Class IV Facilities constructed by the remaining cities may be credited toward fulfilling the County's obligation under this paragraph 2.

d. Safe Routes to Schools projects that include new Class I or Class IV Facilities may be counted toward satisfaction of this requirement.

e. Up to 20 percent of this requirement may be met through routine maintenance.

3. a. At least 150 Safe Routes to School projects shall be completed by 2057 that improve walkability, safety, and connectivity for students and reduce serious injuries and fatalities. Projects shall include infrastructure, engineering improvements, and traffic-calming strategies to enhance safety and accessibility for walking and bicycling within a one-mile radius of school zones.

b. The requirement imposed by subparagraph a shall be apportioned as follows:

i. The cities of Fresno and Clovis shall collectively be responsible for at least 105 projects.

ii. The remaining cities and the County shall collectively be responsible for at least 45 projects.

c. Jurisdictions may collectively satisfy the requirement imposed by subparagraph a by one or more of the following:

i. By completing five Safe Routes to School projects per year, 70 percent in the cities of Fresno and Clovis and 30 percent in the remaining incorporated cities and the unincorporated areas of the county region.

ii. By completing at least 50 projects every 10 years, 70 percent in the cities of Fresno and Clovis and 30 percent in the remaining cities and the unincorporated areas of the county region.

4. The County and each incorporated city within the county region shall pursue reductions in greenhouse gas emissions consistent with targets established quadrennially by the California Air Resources Board.

H. By July 1, 2029, each jurisdiction within the county region, to be eligible for continued funding under this section, shall complete and adopt an Active Transportation and Safe Routes to Schools Implementation and Performance Analysis to establish a baseline assessment and track progress towards achieving the established metrics of this Act. A jurisdiction may use funds allocated in this section to pay the reasonable costs of developing the analysis. The analysis shall include the following:

1. An Active Transportation Analysis addressing Class I, II, III, and IV Facilities that promote connectivity and complete streets throughout the county region and its urbanized areas. This analysis shall, at a minimum, include all of the following:

a. A regional sidewalk, bikeway, and trail inventory assessing the condition, connectivity, and accessibility of sidewalks and pedestrian and bicycle pathways.

b. Actionable strategies to improve and construct new sidewalks, pathways, and bicycle facilities within existing neighborhoods in compliance with established metrics of this Act in order to facilitate travel to major points of interest or destination centers, including, but not limited to, employment centers, educational facilities, parks and open spaces, and medical services.

c. Adopted Active Transportation Plans or Fresno Regional Active Transportation Plans shall serve as the guiding document for the upgrade, installation, and funding of active transportation facilities, provided that the plans include the requirements identified in subparagraphs a and b.

2. A Safe Routes to School (SRTS) analysis developed in coordination with the school districts within its jurisdictional boundaries. The analysis shall include:

a. The number of serious injuries and fatalities within a one-mile radius of each school during the previous five years and annual reduction targets.

b. The highest-priority SRTS projects to be funded to ensure compliance with this section.

c. Adopted SRTS projects or similar plans shall serve as the guiding document for the upgrade, installation, and funding of SRTS facilities, provided that the plans include requirements identified in subparagraphs a and b of paragraph 1 and are coordinated with school districts within the jurisdiction's boundaries.

3. Each jurisdiction within the county region shall develop Active Transportation and Safe Routes to Schools Implementation and Performance Analysis through a robust public process. The public process shall include, at a minimum, all of the following:

a. The jurisdiction shall notify the public of its intent to initiate an analysis and publicly notice the process through which it will solicit public input.

b. The jurisdiction shall hold at least three publicly noticed meetings to solicit public input. Meetings shall be held at accessible locations outside of regular business hours. Translation of materials and interpretation shall be provided.

c. Upon completion of the public meetings, the jurisdiction shall prepare, publish, and formally adopt an analysis, which shall include a prioritized list of projects to be funded during the ensuing five-year period and an accompanying analysis documenting the manner in which public input was solicited, reviewed, and incorporated into the final recommendations, following a public review period of not less than 30 days.

d. Funded projects shall be included in a public database maintained by the Council of Governments, and progress toward completion shall be reported annually until completion, consistent with subsection J of Section 4.60.110.

4.60.080. Public Transportation Program.

A. Twenty-five percent of the annual revenue in the Fund shall be allocated to support an integrated, rapid, resilient, and cost-effective transit network that coordinates public transportation services, where feasible, to reduce costs of service and avoid service duplication, and prioritize improving public transportation system access and use.

B. The Council of Governments shall allocate funding under this section as follows:

1. Ten percent to Clovis Transit.

2. Seventy percent to Fresno Area Express.

3. Twenty percent to the Fresno County Rural Transit Agency.

C. Funds provided under this section shall be expended for the following purposes:

1. Operations, maintenance, and capital costs for maintaining and improving public transportation services.

2. Expanded hours and increased frequency of transit services; evening and weekend service; non-emergency medical transportation; increased frequency between and among cities and communities; first and last mile connections; emergency planning; service integration; paratransit service; community shuttles; and university and college transit options.

3. Deployment of buses, microtransit, carshare, rideshare, vanpool, and Bus Rapid Transit or light rail services.

4. Public transit supportive infrastructure, including disability access infrastructure; sheltered and weather protective bus stops; lighting at bus stops; trash disposal; enhanced pedestrian and bicycle facilities that improve access to transit stops; optimized traffic signals for smoother traffic flow; and investments in modern vehicles and technology, including real-time tracking and audible announcements for passengers. At main hubs and transit centers, where possible, public transportation operators are encouraged to provide and improve water stations and public restrooms.

D. Each transit agency shall ensure services are available for continued support for paratransit, curb-to-curb, van, taxi, and other transportation services for seniors 62 years old and older, and people with disabilities who are unable to use fixed-route transit services. Funds may be expended for operations support, replacement of accessible vans, and replacement and upgrades of supporting equipment. Each year, each transit agency shall certify to the Council of Governments that revenue provided under this section is first being used for this subsection D.

E. Transportation agencies may use the funds allocated under this section for public transportation projects that are included in a local agency capital improvement program or annual budget, or that are approved by resolution at a public hearing of each local agency identifying the eligible project or list of projects or programs.

F. Funds in this section may be used by the Council of Governments to conduct a Regional Transit Consolidation Study to identify opportunities to coordinate or consolidate transit services in order to achieve a seamless passenger travel system for the public, provided that any study, recommendation, or resulting action ensures the protection of public transit employees, including the preservation of wages, benefits, collective bargaining rights, and employment security. The findings and recommendations of the study shall be considered for implementation by the Council of Governments Policy Board.

G. The following metrics shall be used to evaluate performance under this section:

1. For each transit agency receiving funds under this section, transit accessibility performance shall demonstrate year-over-year improvement. Performance shall be measured using a composite index composed of the following indicators: (1) percentage change in total ridership; (2) percentage of urban routes operating at 15-minute or better headways and, in rural areas, average transit travel time relative to comparable personal vehicle travel times or an equivalent accessibility metric; (3) average travel distance or time required to reach a defined set of key destinations; (4) average number of transfers required on commonly used routes; (5) average transfer wait times; and (6) on-time performance, measured as the percentage of trips operating on schedule from origin to destination. Where feasible, each indicator shall be reported both in aggregate and disaggregated by demographic, geographic, and rider group.

2. For each transit agency receiving funds under this section, the annual percentage increase in transit-supportive infrastructure shall grow every year. Performance shall be measured by quantifiable increases in the following: (1) the number of bus stops and multimodal access points that meet or exceed applicable local, state, and federal accessibility standards; and (2) the linear miles, area coverage, or facility count of bicycle, sidewalk, and pedestrian infrastructure providing direct access to bus stops, transit hubs, schools, population centers, employment centers, and essential services.

H. By July 1, 2029, each transit agency, to be eligible for continued funding under this section, shall complete and adopt a Public Transit Improvement Plan to establish a baseline assessment and track progress towards improving the metrics described in paragraphs 1 and 2 of subsection G of this section. Funds allocated in this section may be used by an agency to pay the reasonable costs of developing the Plan. The Plan shall include the following:

1. Proposed transit service improvement and expansion plans, including mass transit, micro-transit and on-demand transit services.

2. Programs and services that provide continued support for paratransit, curb-to-curb, van, taxi, and other transportation services for those who are unable to use fixed-route transit services, including seniors 62 years old and older and people with disabilities.

3. Strategies for how Fund revenues will be leveraged with state and federal funding to maximize program and service impact.

4. Strategies for the coordination of services and programs across the transit agencies.

I. Each transit agency shall develop a Public Transit Improvement Plan through a robust public process, which shall include, at a minimum, all of the following:

1. The agency shall notify the public of its intent to initiate a plan and publicly notice the process through which it will solicit public input.

2. The agency shall hold at least three publicly noticed meetings to solicit public input. Meetings shall be held at accessible locations outside of regular business hours. Translation of materials and interpretation shall be provided.

3. Upon completion of the public meetings, the agency shall prepare, publish, and formally adopt a plan, which shall include a prioritized list of projects to be funded during the ensuing five-year period and an accompanying analysis documenting the manner in which public input was solicited, reviewed, and incorporated into the final recommendations, following a public review period of not less than 30 days.

4. Funded projects shall be included in a public database maintained by the Council of Governments, and progress toward completion shall be reported annually until completion, consistent with subsection J of Section 4.60.110.

4.60.090. Regional Connectivity Program.

A. One percent of the annual revenue in the Fund shall be allocated to the Fresno Yosemite International Airport. Funds may be used to support operations, infrastructure, transportation access improvements, and multi-modal connections to and from the airport.

B. Four percent of the annual revenue in the Fund shall be allocated to fund regional street, road, and highway improvement projects with direct local benefits.

1. The Council of Governments shall provide funding on the following schedule:

a. By June 30, 2028, for years 1 to 7 of this Act.

b. By June 30, 2034, for years 8 to 15 of this Act.

c. By June 30, 2041, for years 16 to 24 of this Act.

d. By June 30, 2048, for the remaining years of this Act.

2. Agencies eligible for funding under this subsection B shall include the incorporated cities within the county region, the County, and the California Department of Transportation.

3. Projects funded under this subsection B may include projects on the state highway system, regional transportation projects, and projects on major local arterials that serve more than one city or area of the county region. Funds allocated under this section may be used as matching funds for litter-abatement activities pursuant to a state matching-funds program.

4. Each agency shall request project funding from the Council of Governments, which shall be provided through a cooperative funding agreement. These agreements shall allocate funding for the initial project phases. All funding agreements shall reimburse implementing agencies for funds expended. The agreements shall not provide agencies with advance funding.

5. The Council of Governments shall conduct a public engagement process to identify and prioritize projects in the county region. Selected projects shall achieve one or more of the following: reduced vehicle miles traveled, increased multi-modal travel, increased safety by reducing the number of collisions of all road users, improved air quality, increased access to good local jobs, or other direct local benefits to communities. The Council of Governments may prioritize projects that identify state and federal funding to leverage matching funds. The agencies shall complete this process as follows:

a. The Council of Governments shall notify the Citizens Oversight Committee of its intent to initiate a public process and publicly notice the process through which it will solicit public input.

b. The Council of Governments shall publish project solicitation guidelines for projects that further the goals identified in this paragraph 5 and allow at least 60 days for eligible agencies to submit proposals.

c. Upon receipt of project proposals, the Council of Governments shall publish a list of projects and hold at least three publicly noticed meetings across the county region, with at least one on the east side of the county region, at least one on the west side of the county region, and at least one in the urban metro area, for public input. Meetings shall be held at accessible locations outside of regular business hours, and translation of materials and live interpretation shall be provided.

d. Following the public workshops, the Council of Governments shall prepare and publish a list of projects recommended for funding, together with an analysis documenting how public input was considered and incorporated into the recommendations.

e. Projects will be considered and approved by the Council of Governments Policy Board at least 30 days after the list of projects is publicly posted.

6. The Council of Governments may consider bonding future revenues if project needs and deliverability exceed available cash flow.

C. Agencies that receive funds under this section shall report project progress to the Council of Governments. Any project cost increases not associated with subsequent project phases shall be thoroughly justified by the implementing agency, and a funding agreement amendment shall be approved prior to the expenditure of funds in excess of the approved project budget. Agencies that receive any funds under this section shall furnish, install, and maintain project funding signage recognizing the funding contributed by this Act.

D. All major roads, regional transportation projects, and highways constructed, improved, or reconstructed under this section shall comply with paragraphs 5 and 6 of subsection C of Section 4.60.070.

4.60.100. Access and Innovation Program.

A. Four percent of the annual revenue in the Fund shall be allocated for planning and projects that enable new technologies, invest in zero-emission infrastructure, and increase access to destinations.

B. The Council of Governments shall first allocate funds to Clovis Transit, Fresno Area Express, and the Fresno County Rural Transit Agency to ensure the implementation and maintenance of zero-fare programs for special populations. For purposes of this subsection, "special populations" means people with disabilities, veterans and active-duty military personnel, seniors 62 years of age and older, children, and students.

C. If funds remain after the purposes under subsection B are met, the Council of Governments shall award competitive grants, and shall develop implementation policies and guidelines, for projects in the following categories:

1. Clean Energy Projects, which may include electric-vehicle charging stations, hydrogen fueling facilities, compressed natural gas infrastructure, and similar clean-fuel facilities; a Regional Zero-Emission Vehicle Readiness and Implementation Plan developed by the Council of Governments; local agency Zero-Emission Vehicle Readiness and Implementation Plans; clean-vehicle power support facilities; microgrid or solar electric-vehicle battery-charging infrastructure; autonomous vehicle infrastructure projects; or other projects or programs that further clean transportation goals.

2. Travel Choice Projects, which may include regional transportation hubs and micro-mobility hubs designed to provide and identify a range of connected travel choices; innovations in micro-mobility; increased opportunities for telecommuting; and broadband infrastructure to support telecommuting and educational facility purposes.

3. Future Technology Projects, which may include other new technology applications or improvements in emerging or future transportation technologies.

D. The agencies eligible to apply for funding under subsection C shall include the incorporated cities within the county region, the County, the Council of Governments, Fresno Area Express, the Fresno County Rural Transit Agency, and Clovis Transit. Private-sector entities, nonprofit organizations, or other governmental agencies may also submit applications for funding, provided that such applications are submitted through, and sponsored by, the local government agency of the jurisdiction in which the project is located. The incorporated cities within the county region and the County shall generally serve as the primary applicants for program funds; however, for projects or programs of a regional nature, the Council of Governments may serve as the appropriate applicant. For any competitive grant program for which the Council of Governments seeks to apply for funding, the Council of Governments shall adopt a written policy establishing an independent panel to review and score all applications.

4.60.110. Administration, Performance Measures, Requirements, and Indicators Program.

One percent of the annual revenue in the Fund shall be allocated to the Council of Governments to administer this Act. Activities that may be funded under this section shall include the following:

A. Preparing and adopting an annual work program and budget outlining planned expenditures, oversight activities, and administrative costs, and distributing funds pursuant to this Act.

B. Developing requirements for each funding program established by this Act and undertaking specialized studies needed to implement those programs effectively.

C. Undertaking and completing the reporting requirements and technical assistance pursuant to Section 4.60.140.

D. Establishing and updating priority lists for regional connectivity, in coordination with member jurisdictions and consistent with this Act.

E. Conducting an independent audit to ensure compliance, fiscal integrity, and accountability to the public.

F. Conducting reviews to ensure compliance with and progress towards attainment of performance measures under each program.

G. Carrying out ongoing outreach and public education efforts to keep taxpayers informed about project progress, financial performance, and planned updates.

H. Issuing bonds when appropriate to expedite project delivery, reducing overall project costs by leveraging future revenues for near-term improvements.

I. Providing staff support to advisory committees and furnishing staff- or consultant-based technical assistance to member jurisdictions to ensure consistent, equitable, and effective program implementation. Technical assistance may also include grant preparation and submission.

J. Developing and implementing a searchable public database that allows the public to easily access information on how funds are used and how they align with guiding principles and any implementing guideline requirements.

4.60.120. Local Hiring Preference.

Projects funded by this Act are intended to provide direct and indirect economic benefits to the county region through investments in infrastructure and related construction-associated economic activity, including the creation of well-paying jobs for the county region's businesses and residents. In furtherance of these objectives, the Council of Governments, in coordination with its member agencies, shall develop and implement reasonable local hiring and contracting goals and related strategies to help maximize these economic benefits by July 1, 2029, and shall be updated every five years thereafter.

4.60.130. Design and Implementation Elements.

A. Funds allocated to each jurisdiction shall supplement, not supplant, other sources of revenue.

B. Projects funded in part or in whole with revenues from the Fund shall incorporate design and implementation elements that address heat, increased precipitation and flooding, wildfire management, and improvements to air quality, including through the following:

1. Where feasible, the addition, establishment, and maintenance of landscaping and tree canopy along pedestrian walkways, bicycle facilities, local and major roads, highways, and trails in the public right-of-way; provided, however, that each project shall include an analysis of the elements considered, and if trees or shade canopy elements are not included, the project shall document the reasons for such exclusion.

2. Funding shall be prioritized for projects in neighborhoods and communities with lower tree canopy coverage.

3. Where feasible, the addition of curb, gutter, and stormwater drainage improvements.

4. Vegetation management.

C. Funds may be used for the maintenance of landscaping and tree canopy along pedestrian walkways, bicycle facilities, local and major roads, highways, and trails in the public right-of-way, including, but not limited to, irrigation system operation and repair, pruning, landscape and tree canopy preservation, and litter and weed removal.

D. All streets and roads constructed or improved in whole or in part with revenue from the Fund shall include complete street features, where feasible.

E. Expenditures under this Act for street maintenance and repair are encouraged to include complete street elements that do not require additional pavement width.

F. It is the intent of the people of Fresno County that each jurisdiction that receives funding under this Act adopt and follow "dig once" construction project principles, requiring public and private roadway projects to accommodate the installation of conduit to support community needs, including but not limited to, broadband fiber optics, stormwater systems, and sidewalks.

G. Jurisdictions or agencies shall use best efforts to implement projects consistent with the intent of this Act. In the event a jurisdiction or agency determines that a proposed project or project requirement is not feasible, the jurisdiction or agency shall, following a duly noticed public hearing, formally declare and document the reasons for such infeasibility.

H. Funds made available under this Act may be used, in whole or in part, as matching funds for eligible state and federal programs in order to increase benefits to residents of the county region.

4.60.140. Council of Governments Reporting Requirements and Technical Assistance.

A. By July 1, 2029, the Council of Governments shall complete and adopt the following studies and analyses to establish a baseline assessment and track progress towards achieving metrics described in Sections 4.60.070 and 4.60.080. The Council of Governments shall be eligible to receive reimbursement for reasonable costs incurred in completing the required studies and analyses from the jurisdictions and agencies that receive funding in sections 4.60.070 and 4.60.080. The studies and analyses shall include the following:

1. A countywide Pavement Management System analysis, the results of which shall be furnished to each eligible agency. The Council of Governments shall use the Pavement Management System analysis to evaluate each agency's progress toward achieving metrics described in paragraph 1 of subsection G of Section 4.60.070.

2. A Regional Transit Agency Service Consolidation study in coordination with the existing transit agencies and jurisdictions to assess the feasibility of consolidating services to achieve a seamless passenger system for the public.

3. A needs assessment of complete streets, including determining the Pavement Condition Index of disadvantaged unincorporated communities pursuant to paragraph 6 of subsection B of Section 4.60.070.

B. The Council of Governments shall establish and regularly update protocols and procedures to assist jurisdictions and agencies in the implementation of this Act. Protocols and procedures may include the following:

1. Compliance with Act requirements at the annual, five-year, and ten-year intervals.

2. Technical assistance to eligible jurisdictions and agencies to comply with Act requirements.

3. Standard reporting templates.

4. Guidelines for implementation of the competitive funding program described in subsection C of Section 4.60.100.

4.60.150. Reporting and Review Requirements.

A. Each agency that receives funds under this Act shall complete and submit to the Council of Governments an annual independent audit to verify that program funds were expended in compliance with the requirements of this Act. Any agency found to be out of compliance shall be subject to withholding of program funds until appropriate reimbursements are made and compliance is achieved.

B. On an annual basis, each agency that receives funds under this Act shall complete and submit a performance report to the Council of Governments identifying expended funds and projects that used proceeds from this Act in whole or in part. Any agency that expends funds allocated under Section 4.60.070 on services shall also describe such uses in its annual report. The Council of Governments shall establish any additional reporting requirements necessary to carry out the purposes of this Act.

C. The Council of Governments shall conduct an independent audit of the proceeds generated by this Act, as well as the expenditures from the Fund. An independent auditor's report may be funded by the revenues from the Fund. This shall include an accounting of revenues received and expenditures made from the Fund and shall be presented annually to the Council of Governments and Board of Supervisors and made available for public review. The audit report shall be posted on the internet website of the Council of Governments.

D. On an annual basis, the Council of Governments shall publish a report identifying projects completed or supported by Fund revenues by eligible agencies.

E. By July 1, 2029, and updated annually thereafter, the Council of Governments shall develop and implement a public database that allows the public to easily access information on how funds are used, completed projects, progress towards projects under construction, and compliance with the requirements of this Act.

F. The Council of Governments shall establish compliance check requirements, fund accumulation and noncompliance requirements, claims and dispute-resolution procedures, monitoring and reporting requirements, including the establishment of deadlines for reports required under this section, and an audit requirement for jurisdictions that receive funds under this Act.

4.60.160. Five Year Plan Updates.

A. Each jurisdiction's Active Transportation and Safe Routes to Schools Implementation and Performance Analysis required by subsection H of Section 4.60.070, and each transit agency's Public Transit Improvement Plan required by subsection H of Section 4.60.080, shall be updated every five years over the life of this Act through a robust public process.

B. The public process required by subsection A shall include, at a minimum, all of the following:

1. The jurisdiction or agency shall notify the public of its intent to initiate an update to the adopted plan or plans and publicly notice the process through which it will solicit public input.

2. The jurisdiction or agency shall hold at least three publicly noticed meetings to solicit public input. Meetings shall be held at accessible locations outside of regular business hours. Translation of materials and live interpretation shall be provided.

3. Upon completion of the public meetings, the jurisdiction or agency shall prepare, publish, and formally adopt an updated plan or analysis, which shall include a prioritized list of projects to be funded during the ensuing five-year period and an accompanying analysis documenting the manner in which public input was solicited, reviewed, and incorporated into the final recommendations, following a public review period of not less than 30 days.

4. Funded projects shall be included in a public database maintained by the Council of Governments, and progress toward completion shall be reported annually until completion, consistent with subsection J of Section 4.60.110.

C. The countywide Pavement Management System analysis prepared by the Council of Governments pursuant to paragraph 1 of subsection a of Section 4.60.140 shall be updated every five years following its initial publication.

4.60.170. Citizens Oversight Committee.

A. The Citizens Oversight Committee shall be formed within six months following the effective date of this Act.

B. The purpose of the Committee is to inform the public and to ensure that expenditures from the proceeds of the tax imposed by this Act are spent in accordance with the Act, and the Committee shall have the following responsibilities:

1. Receiving, reviewing, and recommending action on independent financial and performance audits.

2. Receiving, reviewing, and recommending action on reports, studies, and plans directly related to programs, revenues, or expenditures.

3. Reviewing and commenting on expenditures for consistency with this Act.

4. Annually reviewing sales-tax expenditures and publicizing findings.

5. Presenting recommendations and findings in a formal annual public report.

6. Conducting the comprehensive review of the Act, at a minimum, every ten years pursuant to section 4.60.170.

7. Referring any misuse of revenue to the Fresno County District Attorney, the Attorney General, and any other appropriate agency.

C. The Committee shall consist of 11 members. Each member shall satisfy all of the following:

1. Be a United States citizen who is at least 18 years of age and a resident of Fresno County.

2. Not be a holder of any elected office.

3. Not be an employee of the County, any incorporated city in the county region, the Fresno County Rural Transit Agency, Caltrans, or the Council of Governments.

4. Have no financial interest in any Council of Governments-funded project.

D. The membership of the Committee shall be comprised as follows:

1. Six members shall be at-large public members who satisfy the following geographic requirements:

a. Three members shall reside within the Fresno-Clovis Metropolitan Area.

b. Three members shall reside outside the Fresno-Clovis Metropolitan Area, including one member from the east side of the county region, one from the west side of the county region, and one from an unincorporated area.

c. At least one member shall reside in each of the five Fresno County supervisorial districts.

2. Five members representing the diversity of the county region, providing a balance of viewpoints.

E. Committee members shall be selected by the Council of Governments Policy Board, consisting of the mayors of the incorporated cities in the county region and the Chair of the Fresno County Board of Supervisors or their designee. Whenever vacancies occur, openings shall be publicly noticed at least 60 days prior to the application deadline.

F. Members shall serve four-year terms and may serve consecutive terms. Members shall receive compensation of fifty dollars ($50) for each meeting attended.

G. Members shall serve no more than eight years, except that a member appointed to an initial term of less than four years may serve up to 10 total years. Vacancies shall be filled using the same selection process for the remainder of the term. Terms shall be staggered to avoid replacing more than two members in any recruitment period.

H. The Committee shall annually select a Chair and Vice Chair from among its members, each serving a one-year term. The Chair shall call meetings, set agendas, and preside over meetings. The Vice Chair shall perform these duties in the Chair's absence.

I. The Committee shall meet at least quarterly and at such additional times as the Committee deems necessary. All meetings shall comply with the Ralph M. Brown Act and shall be conducted in accordance with Robert's Rules of Order. The Committee shall not employ proxy voting.

J. Members of the Committee shall annually file a Statement of Economic Interests in accordance with Chapter 7 of Title 9 of the California Government Code.

K. The Committee may establish subcommittees to carry out specific aspects of its duties. All subcommittees shall consist of an odd number of members.

L. A quorum shall consist of a majority of active Committee members. Actions shall be approved by a simple majority of the quorum present.

M. The Council of Governments shall provide technical and administrative staffing support, subject to Committee approval. Staffing costs and necessary outside services shall be paid from the monies identified in Section 4.60.110. Expert staff may be requested to present information to the Committee as needed.

N. The Committee shall review all reports published by each city and the County detailing planned budgets and financial expenditures of proceeds from the Fund.

O. The Committee shall oversee an annual fiscal and compliance audit using an independent auditor, identifying all directly funded projects and accumulated revenues and expenditures. The Committee shall oversee and publish an annual report presenting audit results to the Council of Governments Policy Board.

4.60.180. Amendments to The Act

A. It is the intent of the people of the County of Fresno that this Act be amended only through a public review process, except as expressly provided in this section and only to the extent the amendment is consistent with the purposes and intent of this Act.

B. 1. The Council of Governments Policy Board shall initiate a comprehensive review of the Act, at a minimum, every ten years and refer the public review process to the Citizens Oversight Committee.

2. The Citizens Oversight Committee shall conduct the comprehensive review and evaluation of the Act.

3. The Citizens Oversight Committee shall oversee the public process, which shall allow a minimum of 90 days to conduct at least three public workshops. At least one public workshop shall be held in the east side of the county region, at least one public workshop shall be held in the west

side of the county region, and at least one public workshop shall be held in the urban metro area. Public meetings shall be accessible to the public and held at accessible locations outside of regular business hours. Translation of materials and live interpretation services shall be provided.

4. Following the public process, the Committee shall submit evaluation findings and recommendations to the Council of Governments Policy Board and the public for review and input. The Committee shall allow a minimum of 30 days for public comment.

5. a. The Council of Governments Policy Board shall consider evaluation findings and recommendations at a public hearing and shall adopt proposed amendments to the Act at the next regularly scheduled meeting. The Council of Governments Policy Board shall approve any amendments in accordance with its double-weighted voting system.

b. Each member shall be assigned a weighted voting percentage based on population. Approval of any action shall require satisfaction of both of the following conditions:

i. Jurisdictions representing over 40 percent of the population of the county region must be in favor of an action.

ii. A majority of all members must support the action.

6. The Council of Governments Policy Board shall submit any proposed amendments to the Act to the Board of Supervisors, which may adopt the amendments only if the amendments further the purposes of this Act.

C. The Citizens Oversight Committee may propose amendments to the programs established by this Act under the public review procedures provided in subsection B and shall submit any proposed amendments to the Council of Governments Policy Board and the Board of Supervisors for approval as provided by paragraphs 5 and 6 of subsection B.

D. The people of the County of Fresno declare that the elimination of any program established by this Act does not further the purposes of the Act. Any modification to the allocation of revenues between programs established by this Act shall require approval of the voters.

E. After a request from the Council of Governments Policy Board, the Board of Supervisors may amend the Act outside the comprehensive review process to address a locally declared emergency, an immediate threat to public health and safety, or the need to timely leverage large-scale, one-time state or federal funding opportunities.

F. During the term of this Act, the Board of Supervisors may authorize the transfer of public transportation funding allocated under Section 4.60.080 to a newly created regional transit district, or similar entity, in connection with a merger or consolidation of the existing public transportation agencies identified in Section 4.60.080.

4.60.190. Supplement to Existing Funding For Transportation.

The people of the County of Fresno find and declare that the transportation infrastructure needs of the county region require more resources than what are currently provided. In adopting this Act, the people of the County of Fresno choose to provide additional resources to supplement, and not supplant, local, state, federal, and other funding for transportation infrastructure county-wide.

4.60.200. Regional Transportation Mitigation Fee.

A. Consistent with existing law, the Regional Transportation Mitigation Fee Program established in 2006 as part of Measure C may be used to provide funding for projects funded by this Act, provided that such use is consistent with state law governing impact mitigation fees.

B. The Council of Governments, consistent with nexus requirements, shall have the authority to allocate Regional Transportation Mitigation Fee revenues based upon regional priority needs within the county region, in a manner consistent with Sections 4.60.070 to 4.60.100, inclusive, and in a manner consistent with state law governing impact mitigation fees.

C. No later than June 30, 2028, all jurisdictions shall extend the Joint Powers Agreement establishing the Regional Transportation Mitigation Fee Program, consistent with Section 7 of that Joint Powers Agreement. Any city or the County that elects not to implement the Regional Transportation Mitigation Fee shall forfeit annually from its allocation under Section 4.60.070 an amount equal to the Regional Transportation Mitigation Fee that would otherwise have been paid for development projects within that jurisdiction during the applicable year. An agency that elects not to implement the Regional Transportation Mitigation Fee shall notify the Council of Governments of that decision and shall file an advisory report with the Council of Governments for each development project indicating the amount of the fee that would have been paid. The Council of Governments shall calculate the total annual Regional Transportation Mitigation Fee obligation for that agency and deduct the appropriate amount from that agency's allocation under Section 4.60.070.

4.60.210. Contract with State.

Prior to the operative date of this chapter, the County shall contract with the California Department of Tax and Fee Administration to perform all functions incident to the administration and operation of this transactions and use tax ordinance, provided that, if the County shall not have contracted with the California Department of Tax and Fee Administration prior to the operative date of this chapter, it shall nevertheless so contract and in such a case the operative date of this chapter shall be the first day of the first calendar quarter following the execution of such a contract.

4.60.220. Transactions Tax Rate.

For the privilege of selling tangible personal property at retail, a tax is hereby imposed upon all retailers in the incorporated and unincorporated territory of the District at the rate of 0.5 percent of the gross receipts of any retailer from the sale of all tangible personal property sold at retail in said territory on and after the operative date of this Act.

4.60.230. Place Of Sale.

For the purposes of this Act, all retail sales are consummated at the place of business of the retailer unless the tangible personal property sold is delivered by the retailer or his agent to an out-of-state destination or to a common carrier for delivery to an out-of-state destination. The gross receipts from such sales shall include delivery charges, when such charges are subject to the state sales and use tax, regardless of the place to which delivery is made. In the event a retailer has no permanent place of business in the State or has more than one place of business, the place or places at which the retail sales are consummated shall be determined under rules and regulations to be prescribed and adopted by the California Department of Tax and Fee Administration.

4.60.240. Use Tax Rate.

An excise tax is hereby imposed on the storage, use or other consumption in the District of tangible personal property purchased from any retailer on and after the operative date of this Act for storage, use or other consumption in said territory at the rate of 0.5 percent of the sales price of the property. The sales price shall include delivery charges when such charges are subject to state sales or use tax regardless of the place to which delivery is made.

4.60.250. Adoption Of Provisions Of State Law.

Except as otherwise provided in this Act and except insofar as they are inconsistent with the provisions of Part 1.6 of Division 2 of the Revenue and Taxation Code, all of the provisions of Part 1 (commencing with Section 6001) of Division 2 of the Revenue and Taxation Code are hereby adopted and made a part of this Act as though fully set forth herein.

4.60.260. Limitations On Adoption Of State Law And Collection Of Use Taxes.

In adopting the provisions of Part 1 of Division 2 of the Revenue and Taxation Code:

A. Wherever the State of California is named or referred to as the taxing agency, the name of this County shall be substituted therefor. However, the substitution shall not be made when:

1. The word "State" is used as a part of the title of the State Controller, State Treasurer, State Treasury, or the Constitution of the State of California.

2. The result of that substitution would require action to be taken by or against this County or any agency, officer, or employee thereof rather than by or against the California Department of Tax and Fee Administration, in performing the functions incident to the administration or operation of this Act.

3. In those sections, including, but not limited to, sections referring to the exterior boundaries of the State of California, where the result of the substitution would be to:

a. Provide an exemption from this tax with respect to certain sales, storage, use, or other consumption of tangible personal property which would not otherwise be exempt from this tax while such sales, storage, use, or other consumption remain subject to tax by the State under the provisions of Part 1 of Division 2 of the Revenue and Taxation Code; or

b. Impose this tax with respect to certain sales, storage, use, or other consumption of tangible personal property which would not be subject to tax by the state under the said provision of that code.

4. In Sections 6701, 6702 (except in the last sentence thereof), 6711, 6715, 6737, 6797 or 6828 of the Revenue and Taxation Code.

B. The word "District" shall be substituted for the word "State" in the phrase "retailer engaged in business in this State" in Section 6203 and in the definition of that phrase in Section 6203.

1. "A retailer engaged in business in the County" shall also include any retailer that, in the preceding calendar year or the current calendar year, has total combined sales of tangible personal property in this state or for delivery in the State by the retailer and all persons related to the retailer that exceeds five hundred thousand dollars ($500,000). For purposes of this section, a person is related to another person if both persons are related to each other pursuant to Section 267(b) of Title 26 of the United States Code and the regulations thereunder.

4.60.270. Permit Not Required.

If a seller's permit has been issued to a retailer under Section 6067 of the Revenue and Taxation Code, an additional transactor's permit shall not be required by this Act.

4.60.280. Exemptions And Exclusions.

A. There shall be excluded from the measure of the transactions tax and the use tax the amount of any sales tax or use tax imposed by the State of California or by any city, city and county, or county pursuant to the Bradley-Burns Uniform Local Sales and Use Tax Law or the amount of any state-administered transactions or use tax.

B. There are exempted from the computation of the amount of transactions tax the gross receipts from:

1. Sales of tangible personal property, other than fuel or petroleum products, to operators of aircraft to be used or consumed principally outside the County in which the sale is made and directly and exclusively in the use of such aircraft as common carriers of persons or property under the authority of the laws of this State, the United States, or any foreign government.

2. Sales of property to be used outside the District that is shipped to a point outside the District, pursuant to the contract of sale, by delivery to such point by the retailer or his agent, or by delivery by the retailer to a carrier for shipment to a consignee at such point. For the purposes of this paragraph, delivery to a point outside the District shall be satisfied:

a. With respect to vehicles (other than commercial vehicles) subject to registration pursuant to Chapter 1 (commencing with Section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with Section 21411 of the Public Utilities Code, and undocumented vessels registered

under Division 3.5 (commencing with Section 9840) of the Vehicle Code by registration to an out-of-District address and by a declaration under penalty of perjury, signed by the buyer, stating that such address is, in fact, his or her principal place of residence; and

b. With respect to commercial vehicles, by registration to a place of business out-of-District and declaration under penalty of perjury, signed by the buyer, that the vehicle will be operated from that address.

3. The sale of tangible personal property if the seller is obligated to furnish the property for a fixed price pursuant to a contract entered into prior to the operative date of this Act.

4. A lease of tangible personal property which is a continuing sale of such property, for any period of time for which the lessor is obligated to lease the property for an amount fixed by the lease prior to the operative date of this Act.

5. For the purposes of subparagraphs 3 and 4 of this section, the sale or lease of tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

C. There are exempted from the use tax imposed by this Act, the storage, use or other consumption in this County of tangible personal property:

1. The gross receipts from the sale of which have been subject to a transactions tax under any state-administered transactions and use tax ordinance.

2. Other than fuel or petroleum products purchased by operators of aircraft and used or consumed by such operators directly and exclusively in the use of such aircraft as common carriers of persons or property for hire or compensation under a certificate of public convenience and necessity issued pursuant to the laws of this State, the United States, or any foreign government. This exemption is in addition to the exemptions provided in Sections 6366 and 6366.1 of the Revenue and Taxation Code of the State of California.

3. If the purchaser is obligated to purchase the property for a fixed price pursuant to a contract entered into prior to the operative date of this Act.

4. If the possession of, or the exercise of any right or power over, the tangible personal property arises under a lease which is a continuing purchase of such property for any period of time for which the lessee is obligated to lease the property for an amount fixed by a lease prior to the operative date of this Act.

5. For the purposes of subparagraphs 3 and 4 of this section, storage, use, or other consumption, or possession of, or exercise of any right or power over, tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not such right is exercised.

6. Except as provided in subparagraph 7, a retailer engaged in business in the District shall not be required to collect use tax from the purchaser of tangible personal property, unless the retailer ships or delivers the property into the District or participates within the District in making the sale of the property, including, but not limited to, soliciting or receiving the order, either directly or indirectly, at a place of business of the retailer in the District or through any representative, agent, canvasser, solicitor, subsidiary, or person in the District under the authority of the retailer.

7. "A retailer engaged in business in the District" shall also include any retailer of any of the following: vehicles subject to registration pursuant to Chapter 1 (commencing with Section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with Section 21411 of the Public Utilities Code, or undocumented vessels registered under Division 3.5 (commencing with Section 9840) of the Vehicle Code. That retailer shall be required to collect use tax from any purchaser who registers or licenses the vehicle, vessel, or aircraft at an address in the District.

D. Any person subject to use tax under this Act may credit against that tax any transactions tax or reimbursement for transactions tax paid to a district imposing, or retailer liable for a transactions tax pursuant to Part 1.6 of Division 2 of the Revenue and Taxation Code with respect to the sale to the person of the property the storage, use, or other consumption of which is subject to the use tax.

4.60.290. Amendments to California Revenue and Taxation Code.

All amendments subsequent to the effective date of this Act to Part 1 of Division 2 of the Revenue and Taxation Code relating to sales and use taxes and which are not inconsistent with Part 1.6 and Part 1.7 of Division 2 of the Revenue and Taxation Code, and all amendments to Part 1.6 and Part 1.7 of Division 2 of the Revenue and Taxation Code, shall automatically become a part of this Act, provided however, that no such amendment shall operate so as to affect the rate of tax imposed by this Act.

4.60.300. Enjoining Collection Forbidden.

No injunction or writ of mandate or other legal or equitable process shall issue in any suit, action, or proceeding in any court against the State or the County, or against any officer of the State or the County, to prevent or enjoin the collection under this Act, or Part 1.6 of Division 2 of the Revenue and Taxation Code, of any tax or any amount of tax required to be collected.

4.60.310. Termination of Transactions and Use Tax.

This chapter shall remain operative for 30 years from the operative date of this Act and shall be repealed by operation of this section on that date, unless a later measure is adopted before that date which deletes or extends the termination date.

SEC. 5. EFFECTIVE DATE.

This Act shall take effect 10 days after the certification by the Board of Supervisors of the election results indicating passage of the measure by a majority of the voters casting votes in the election; however, the Operative Date of the tax imposed by this measure shall be July 1, 2027.

SEC. 6. SEVERABILITY.

If any section, subsection, sentence, clause, phrase or word of this Act is for any reason held to be invalid by a court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Act. The people of the County of Fresno hereby declare they would have passed and adopted this Act and each and all provisions hereof irrespective of the fact that any one or more of said provisions be declared invalid.

SEC. 7. LIBERAL CONSTRUCTION.

This measure is an exercise of the initiative power of the people of the County of Fresno to implement a special tax to fund the purposes set forth in the Act, and it shall be liberally construed to effectuate these purposes.

SEC. 8. AMENDMENTS.

The expenditure plan adopted pursuant to this Act may be amended in accordance with Section 4.60.180. Any other amendments to this Act shall require approval by the voters of the County of Fresno.

SEC. 9. CONFLICTING MEASURES.

This measure is intended to be comprehensive. It is the intent of the people of the County of Fresno that, in the event this measure and one or more measures relating to a special tax to fund transportation infrastructure shall appear on the same ballot, the provisions of the other measure or measures shall be deemed in conflict with this measure. In the event that this measure receives a greater number of affirmative votes, the provisions of this measure shall prevail in their entirety, and all provisions of the other measure or measures shall be null and void.

ITEM #7.1
07/14/2026

From: Andy Levine <andy@betterroadssafestreets.com>
Sent: Wednesday, July 8, 2026 1:54 PM
To: Clerk/BOS
Subject: Economic Analysis study for the Fresno County Transportation Improvement Act measure
Attachments: FCTIA-IMPLAN Study-PenberaParis-FINAL.pdf

CAUTION!!! - EXTERNAL EMAIL - THINK BEFORE YOU CLICK

Report Suspicious

Good Afternoon, Clerk of the Board-

In advance of next Tuesday's agenda item regarding the Fresno County Transportation Improvement Act measure, attached is an Economic Analysis study for inclusion with the item. Of course, please also feel free to share with the Supervisors directly.

Thank you,

Andy

PENBERA
PARIS

IMPLAN Based Economic Analysis
For the
FRESNO COUNTY TRANSPORTATION IMPROVEMENT ACT (FCTIA) MEASURE

Prepared by: PenberaParis, LLC
Joseph J. Penbera, Ph.D., Chairman
Brian Ruditsky, M.B.A., Senior Research Associate

June 2026

Member NAFE
National Association of Forensic Economics

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Executive Summary of FCTIA Measure Economic Analysis:

- The Fresno County Transportation Improvement Act Measure ("Measure" or "FCTIA") is a ½ cent transaction and use tax (sales tax) proposed for Fresno County, California aimed at extending the benefits of the expiring Measure C. The proposed measure would fix neighborhood streets; repair and keep roads in good and safe condition; improve safety for children walking and biking to school; improve public transportation; including free transit services for seniors, veterans, people with disabilities, and students; and repair sidewalks and trails. The Measure would replace Fresno County's existing half-cent transportation sales tax, set to expire in 2027, providing approximately $246 million annually and an estimated $7.4 billion over 30 years. It would also require independent oversight, annual audits, and local control.
- The wording of the Measure is as follows: This Act shall be known, and may be cited, as the "Fresno County Transportation Improvement Act."
- Contained herein is an economic output analysis, including job creation estimate, utilizing the IMPLAN methodology first developed by the University of Minnesota (MIG, Inc.,) and now maintained by the IMPLAN Group, LLC (www.implan.com). IMPLAN is considered a reasonable methodology to determine economic and job creation outputs in defined regions. The most recent IMPLAN software (online version) was utilized, and the most recent data base was purchased (purchased June 2026, latest version 2024), to conduct this analysis. The analysis is based on average projected revenues of $246 million annually for a total of $7.4 billion over the life of the sales tax.
- This study was prepared by Dr. Joseph Penbera and Mr. Brian Ruditsky. Dr. Penbera is a well-known economist and former Senior Fulbright Scholar who has both a long history of analyzing local, state, and federal economies and determining their economic health, and, also, an in-depth understanding of Fresno County and the Central Valley of California. He has also authored and presented research comparing IMPLAN and RIMS II methodologies. Mr. Ruditsky acquired his economic training as an MBA student, and has, over the last decade, prepared IMPLAN and economic impact studies, including four projects in the Central Valley, approved by the U.S. Federal government.
- As the Measure states, the use of funds are guaranteed to go directly to Fresno County transportation priorities and nothing else. Money cannot be taken by State or Federal officials. However, the economic impacts from the sales tax will have a larger economic reach, affecting the Central San Joaquin Valley Region (consisting of Fresno, Tulare, Kings, Mariposa, Merced, and Madera Counties) and California.
- This economic impact study found significant economic and job creation activity related to the FCTIA Measure. Below is a Summary of the economic impacts of the Measure over the next 30 years.

Table 1
Summary of Economic Impacts for the FCTIA Measure for the 30-Year Period

Impact – Jobs Created	
Total Jobs Created	68,190.21
Impact- By Category-in U.S. Dollars	
Labor Income	$5,060,443,076
Employee Compensation	$3,532,568,624
Proprietor Income	$1,527,874,453
Other Property Type Income	$2,125,605,171
Indirect Business Taxes	$520,635,088
Total Value Added	$7,706,683,335
Total Output	$13,458,684,684
Federal Taxes	$1,150,949,519
State Taxes	$478,785,562
County Taxes	$61,739,762
Household Spending, Local Area	$2,890,980,342

1. Reason for the Economic Impact Study:

The purpose of this economic impact Study is two-fold: first, to systematically estimate the regional benefits of the Measure through the application of tested methodology which can be followed by professional economists such that they can duplicate the results, and, otherwise, attest that the findings are valid; and, second, to provide the public – who are the ultimate stakeholders and generate the Measure tax revenue through their purchasing transactions – a work product which contains a narrative of the pathway that the sales tax revenue will follow, specific tables and exhibits which quantify the outcomes, and a summary of these outcomes. The value of the Study, simply stated, is as a means of educating the public and many other stakeholders about what can happen if the funds are administered as proposed in the Measure. It supports a fundamental precept of a democratic society upon which the United States was founded: that informed opinions lead to better decisions.

The Study describes how the inputs to the IMPLAN Study relate to the Measure, traces the IMPLAN protocols utilized in accordance with the IMPLAN software and associated IMPLAN practices, and reports the specific findings in terms of the economic impact of the Measure. The Study strictly relies on the representations contained in the proposed Measure and corresponding public documents previously produced by the Fresno Council of Governments and the Measure proponents. The proponents have confirmed this reliance. Data inputs are based on information from reports and studies directly or indirectly related to the work of the Fresno Council of Governments, or from public documents provided by Measure proponents and accessible online. In the interest of transparency, all sources of information for this analysis are listed in the Exhibits.

2. The IMPLAN Methodology:

IMPLAN has long been accepted by many governmental agencies, the private sector, and many projects as a methodology to model economic findings. Dr. Penbera was invited to speak to Members of Congress in Washington, D.C. and advocated that IMPLAN be recognized as the preferred methodology for studying economic outputs because it generated more valuable information and with fewer possibilities for distorting outputs if the methodology was applied appropriately. In 2012, after he delivered his paper comparing the various regional economic benefits models at the Global Finance Conference held in Chicago, the regional investment center he owns (the California Energy Investment Center), as well as the companies and projects he was advising, began shifting from other methodologies to IMPLAN. In 2022, during the passage of the Reform and Integrity Act, the U.S. Department of Homeland Security published regulations which advised adoption of IMPLAN as the preferred method.

The IMPLAN database is quite rich, and it takes a level of sophistication and experience to understand the User Manual and the software and to apply the proper protocols to the analysis of both IMPLAN and project data. In addition, over the last several years, the IMPLAN Group has invested millions of dollars in updates and improvements. All of this has put a premium cost on the database and the preparation of a Study. It is important to note that for this Study, and as is customary for all of our studies, we have used the most recent software version of IMPLAN and the most current data sets[1] for the region under study.

[1] The most current data was acquired in June 2026.

The following information is derived from the IMPLAN User Guide, and from various other professional descriptions of the methodology as applied. The scientific efficacy of input/output modeling is built on the theoretical constructs of two pioneering economists, Wassily Leontief and Leon Walras. Leontief received the Nobel Memorial Prize in Economic Sciences for development of a national and regional framework for the prediction of the effect of changes in one industry on others, and on government, consumers, and suppliers. Leontief's research is traceable to the general equilibrium theory espoused by Leon Walras in his seminal work, Elements of Pure Economics, published in 1874.

The theoretical formats and formulations lead to practical mathematical modeling which utilize various empirical data bases. These core precepts of a disciplined approach include demonstrating the indirect demand for goods (Walras-Assel model), market flows and growth in the economy, how capital and the desire of capital is a predicate for future services, and the economic changes that are derived from economic choices (known as the Pareto efficiency). When properly applied, IMPLAN modeling can also resolve certain issues crucial to job creation estimation by clarifying how final demand multipliers for output and earnings can be used to estimate direct and indirect economic impacts in the form of direct, indirect, and induced jobs.

The IMPLAN system is a menu-driven microcomputer program that performs complex calculations used to generate social accounts and input/output multipliers. The software performs the necessary calculation -- using the study area data --to create the models. The system allows users to make in-depth examinations of regional, state, multi-county, county or sub-county economies and the impacts that proposed activities are likely to have on these economies.

The IMPLAN data base is second to none in terms of preparing a Study of this kind. Its initial applications were developed for the agricultural sector in the formative years of the national economy. As data collection and statistical analysis became more essential, modeling increased in other sectors and IMPLAN ownership and oversight developed from an academic research base to a more dynamic user base. The accounting conventions for the IMPLAN data track the annual industry accounts produced by the U. S. Bureau of Economic Analysis. This data is reported in the U.S. Benchmark Input-Output Accounts. A benchmark input-output account is produced every five years, soon after the U. S. Economic Census is compiled jointly by the United States Census Bureau (USCB), the Bureau of Economic Analysis (BEA), and the Bureau of Labor Statistics (BLS). In addition to this benchmark input-output account, BEA produces a set of annual industry accounts. Comprehensive and detailed data coverage of the entire U.S. by county, and the ability to incorporate user supplied data at each stage of the model building process, provides a high degree of flexibility both in terms of geographic coverage and model formulation. The basic data are collected by the U.S. Department of Commerce from a variety of sources, such as the Annual Survey of Manufacturers and various annual surveys of the service sector. The data are benchmarked to the Economic Census figures every five years and then updated annually. These figures comprise the national input/output model.

All of this data is pre-processed within the IMPLAN software developed by The IMPLAN Group, LLC. The "processes and calculations" are thus embedded within the programming of the software which renders an "output" based on any "input" in the way a calculator contains mathematical rules for generating output based on data input. To fully understand the complexity of the IMPLAN software and the mathematical models utilized to generate output data requires a deep knowledge of applied economic theory, and experience in preparing and analyzing studies.

PenberaParis has a deep commitment to transparency in economic and financial reporting. Dr. Penbera was appointed Senior Fulbright Scholar in Economics and presented lectures on reporting transparency coincident with the passage of the Sarbannes Oxley Act. As a chairman of the audit committee of private and public companies and a director of two companies which were leaders in their respective industries, he focused on making financial reporting more understandable and accountable. In 2005, he worked in the Office of the Economic Advisor of the President of Poland and was tasked to review the competitiveness of many former public enterprises who were being privatized following the withdrawal of the Soviets from Poland. His paper comparing results of IMPLAN and RIMS II was inspired by his work in Poland and by project analysis relating to the Foreign Immigrant Investor Program under the auspices of the U.S. Homeland Security. When comparing economic outputs of projects of varying sizes, but in the same region, he discovered that, in terms of the empirical results, the job creation outputs were not statistically significant, but the scope and even timeliness of the outputs demonstrated that for a better understanding of economic impacts on a region, there were practical differences which created a preference for the IMPLAN model, including:

- IMPLAN data is updated more frequently than the RIMS II tables.
- IMPLAN has developed an algorithm to fill in the missing numbers where data may be missing for new enterprises because of an absence of these enterprises in a given area.
- IMPLAN generates meaningful tables in a variety of important areas providing the reader with specific economic impacts of a project, thus satisfying the federal government's long recognized requirement that an economic report provides two data sets of information, "job creation" and "economic impact" within the region under study.
- IMPLAN estimates three separate effects, labeled "direct", "indirect" and "induced". The direct effects are based on the economics created by a specific project. The indirect and induced represent the multiplier effects and are usually combined in other input/output models.

Briefly, the *indirect effect* represents purchases made by businesses when their sales rise. For example, a construction firm might order more steel sold in the region. The *induced effect* represents the additional household spending because income has risen. The workers of a construction firm would spend the income they earn from employment on various goods and services, some of which are produced in the region. In general, the larger the region under consideration, and the larger the scope of the underlying purchasing and spending, and depending on the sector, the larger the multipliers would be. In layman's terms, input/output modeling describes a regional or local economy under study in terms of the flow of dollars from purchaser to producers, tracks purchases of, and expenditures on, goods and services in dollars, and traces the flow of dollars between businesses and between businesses and final consumers.

In preparation of the Study, there was a Study Draft offered to the Measure proponents to ensure completeness. Additionally, the Study Draft underwent several passes through the IMPLAN analysis to ensure consistent results. All purchases, including imported goods and services, are identified. When regional economic accounts are created, imports to the region are removed from the initial data, allowing examination of local inter-industry transactions and final purchases. The regional economic accounts are used to construct local level multipliers. Multipliers describe the response of the economy to a stimulus (a change in demand or production). The multipliers represent the Predictive Model. Purchases for final use (final demand) drive an input/output model. Industries producing goods

and services for consumption purchase goods and services from other producers. These other producers, in turn, purchase goods and services. These indirect purchases (or indirect effects) continue until leakages from the region (imports, wages, profits, etc.) represent the end of the cycle. It should be noted that under National Association of Forensic Economists Ethical Precepts, no attempt was made by any person or group to modify the Study in any way that would reflect a departure from the objectivity of findings and professional standards or independence of PenberaParis (www.PenberaParis.com).

The components of the Study include a Table of Contents, Executive Summary, a Summary Table of the Total Economic Impact by Output Category, A Narrative of Key Considerations, Description of the Process and Protocols, Tables and Exhibits, and Attachments. Dr. Penbera has offered, time permitting, to speak with groups, officials, and the media to discuss the Study and its findings.

3. Credentials of Preparers:

Dr. Joseph Penbera.

Dr. Penbera is Chairman of PenberaParis LLC, a California company based in the Fresno area but with a client base that has extended nationally and in foreign countries. He has been cited by Knight Kiplinger, editor/publisher, The Kiplinger Magazine, as one of the best forecast economists in the U.S., and (in 2017) as one of the top economists in the world by the Invest in the US Summit (broadcast by CBS Asia). His opinions are sought out on major economic policy issues facing the nation, state, region, and the world economy. He has been interviewed on KMJ 580/iHeart Radio, the MacNeil Lehrer NewsHour, PBS, and CBS and has been quoted in U.S.A. Today, and many other newspapers. For his ability to investigate complex issues and explain them in ways that are understandable and interesting to the general public, The Business Journal has called him the "Sleuth of the Economic Truth." Dr. Penbera published the first Statistical Abstracts for the Central Valley of California, the first Fresno area CPI, and a series of Central Valley County Economic Forecasts. Dr. Penbera served as Dean and Professor of The Craig School of Business at CSU Fresno, Eaton Fellow of The Futures Institute, and National Program Chairman of the AACSB, the accreditation body for university business schools. He also served as Senior Fulbright Scholar. He co-founded Fresno Tomorrow for at-risk youth, is Director Emeritus of the San Joaquin River Parkway, and served as the Chairman of the Mayor's Council of Economic Advisors during both mayoral terms of Alan Autry. He is a member of the Financial Executives Institute and the National Association of Forensic Economists (NAFE) and abides by NAFE's Statement of Ethical Principles and Professional Practices. He completed the Senior Finance and Audit Programs at the Harvard Business School. He received his Ph.D. from American University, his MPA from the Baruch School, CUNY, and his BA from Rutgers University. He co-authored a book on Business Research which was a Bookwatch BestSeller. He is a U.S. Navy Veteran.

Brian Ruditsky, MBA.

Mr. Ruditsky serves as Senior Research Associate. He received his B.S. from the U.S. Merchant Marine Academy and completed his Master of Business Administration degree at California State University, Fresno. He was trained on the application of the IMPLAN modeling by Professor George Vozikis of The Craig School of Business. Mr. Ruditsky first study came as the head of an IMPLAN MBA team that produced a study of a bioenergy company in the Central Valley that is producing ethanol fuel and jet fuel for the U.S. Navy green fleet initiative and biofuels produced by converting methane from dairies through digestors and distributing energy to the Pacific Gas and Electric system through a state-of-the-art converter. Over the last several years, Mr. Ruditsky has performed many IMPLAN and RIMS II job creation studies both for regional investment centers under the auspices of the U.S. Department of Homeland Security, and for projects based in California and Hawaii. Mr. Ruditsky has worked with Dr. Penbera for more than a decade, and his work is guided by the NAFE's Statement of Ethical Principles and Professional Practices. He is a U.S. Navy Veteran.

Staff Associates.

Maryanne Banich served as Documents Manager and Michael Penbera (director of the California and Hawaii regional investment centers) provided research support.

Special Acknowledgment is made of the work and support of campaign proponents in gathering Measure-specific information. Acknowledgement is also made to those associated with the Fresno Council of Governments and others who prepared various analyses and survey data made available to the public over the course of the 2025 Fresno County Transportation Sales Tax renewal process undertaken (aka Measure C renewal), which helped inform the need for the Measure and the revenue from the Measure that would meet the needs, and information required to develop project categories to which an estimate of spending could be applied.

4. Materials Reviewed and Documentation of Key Inputs to IMPLAN:

(a) Following is a list of publicly available materials that were reviewed:

Exhibit 1: Materials Reviewed and Documentation of Key Inputs to IMPLAN

A. Executive Summary & Core Measure

1. Fresno County Transportation Improvement Act. County Counsel Title and Summary 02/10/26
2. Full Text of Measure from the Act.

B. Revenue Forecasts & Financial Analysis Excel Spreadsheets

3. 2026 Measure C Funding Allocations by Program and Jurisdiction, Nov-6-2025 Steering Committee Meeting.[2]
4. Spreadsheet: Measure C Extension 2007-2027 Revenue (Final) 26-06-24.[3]
5. PenberaParis 5-Year Banding by Categories.[4]

[2] Additional handout at Measure C Renewal Steering Committee meeting held on 11/06/2025.
[3] Provided by FCTA. Available upon request.
[4] Document created by PenberaParis. Available upon request.

C. Regional Planning & Transportation Framework

6. 2026 RTP Projects Dashboard
7. Measure C Extension Strategic Implementation Plan. Plan Adopted in 2013 and revised in 2024. FCTA-2024-Measure-C-SIP-Update-FV-1
8. Fresno COG Regional Pavement Management Plan- Full Report, with Exhibits. 11/07/2025.
9. Fresno COG- 2019-2050 -County Regional Long Range Transit Plan. 6/2019.
10. Selma ATP -Final. 2018.
11. Fresno, Vision Zero Task Force, Action Plan. (Zero Fatalities). May 2026.

D. Active Transportation & Safety Plans

12. Fresno City Active Transportation Plan (ATP)- Final Draft 05/2026
13. Ibid. ATP Appendix D, E, F, and H.
14. Clovis ATP - Final 6/2023
15. Reedley Moves -ATP and Parkway Master Plan- Final. Fall 2023.
16. Roads Q&A Fact Sheet. Sept-25-2025 COG Policy Board Meeting.
17. Public Transportation Q&A Fact Sheet. Sept-25-2025 COG Policy Board Meeting.
18. Fresno County Regional Active Transportation Plan (ATP), May 2024, Chapter 1 – 4.

E. Steering Committee & Community Input

19. Moving Forward Together. Four Phases. Community Findings. September 2025.
20. COG Poll re: Opinions on a Fresno County Transportation Funding Measure. Nov-6-2025 Steering Committee Meeting.
21. Category Informational Presentations. Oct-9-2025 Steering Committee Meeting.
22. Roads and Public Transportation Presentations. Sept-11-2025 Steering Committee Meeting.

F. Public Health & Environmental Findings

23. American Lung Association, State of the Air Report, Fresno, 2026.
24. National Complete Streets Coalition and Smart Growth America: Dangerous by Design, Report, Deadliest Streets in the Deadliest States, Controls for Pedestrians and Bicycles. 2026.

G. BRSS and Other Materials

25. BRSS campaign document: A Citizen-Led Effort for a Better Fresno County, 2026.
26. Filed with County Clerk – 2024–25 Zoo Authority Annual Report.

Items 1 through 5, and 26 were specific to forecasting of Revenue for the term of the Measure. Items 6 through 25 were integral to understanding the environmental, social and planning aspects documenting the transportation funding need overall, the general categories which encompass specific types of projects, and the estimated spending in each category. Items 4-5 are specific to estimating the timelines for spending in each category.

(b) Some general comments on the source documents:

As will be indicated in narratives that follow, the annualized revenue growth rates of previously approved sales tax measures were compared to the forecast growth rate for the proposed Measure, and we determined that the growth rate posited for the proposed Measure is within a historical range relative to other measures adopted in Fresno County.

We recognize that there are other funding sources that support transportation maintenance and development activities, but we assumed that the IMPLAN data base accounts already for the flow of funds derived from funding in various sectors associated with transportation in the region. If, for example, the Measure as proposed had included bonding or other borrowing authority, we would have included that additional funding in our analysis. However, it should be noted that the Measure does have bonding authority.

The 2025 needs assessment was very thorough owing to the professional staff work of the Fresno County Council of Governments and its consultants. The information gathering process involved the identification of jurisdictional needs and plans. The COG astutely applied objective standards (PCI, or Pavement Condition Indexing) to establish current road and street conditions, and then identified the funding needed to bring the County from a fair condition status to a good condition status. Based on the growing gap between current spending and the funding needed, it is reasonable to assume that the current fair status will decline to poor status if the gap is not meaningfully addressed.

It is important to note that to properly generate economic outputs through IMPLAN, we recommended that two practical assumptions be made: one relating to the use of general categories of spending and the other relating to dividing the timeline for spending into six, 5-year bands.

These assumptions were made because the identification of specific projects, by date and estimated cost over the next thirty years, was not possible. When IMPLAN is run in a private sector setting, activities (financing, costs, planning, development, third-party interests, control, management, etc.) are defined within the context of a specific project and in a relatively closed, non-public process even when elements may require the public or public agency approval. But attempting to choose all of the Measure's projects now and assigning costs to each is highly problematic because it would both pre-empt the approval of specific projects under the powers, authority, and oversight stated in the Measure, and it would undermine the process of involving the jurisdictions, communities, and various other stakeholders.

Therefore, in modeling the key inputs and outputs, revenue generation and spending was associated with broad categories of need which encompass types of projects. This decision did not inhibit the assignment of various industry codes which influence outputs such as estimating job creation. As to the timing of spending within these categories, (that is, allocating spending according to category over six, 5-year spending bands), this is not usual when a project encompasses a long period, in this instance over a 30-year period.

Finally, we recognized that there might well be a carry-over of funds from one period to the next and interest would be earned on funds held. Using a conservative approach, two revenue scenarios were considered: one with no funds from interest earnings being included, and a second including estimates of interest earned. Due to the challenge of determining the timing of expenditures related to specific projects, a conservative approach was used. This approach assumed interested was earned on the tax revenue and spent the following year.

5. FCTIA Measure Revenue Assumptions:

The estimate of the annual amount of revenue to be generated under the Measure was made by referring to current sales tax measures and associating their revenue generation with the percentage of sales tax as proposed under the Measure. The comparative revenue generated was derived from the following database https://cdtfa.ca.gov/DataPortal/dataset.htm?url=TaxSalesByCounty.

An analysis was conducted using Measure C, Measure Z as well as the taxable sales from Fresno County[5]. The Measure as proposed has assumed an annual growth rate of 4%. After comparing the sales tax revenue from Measure C, Measure Z and the taxable sales from Fresno County, the 4.0% growth rate was found to be valid. Table 2 shows the comparison of the FCTIA Measure to Measure Z and the taxable sales.

Therefore, there is a reasonable basis for assuming that $246 million will be generated annually under the FCTIA Measure.

Table 2 – Validation of the FCTIA Measure Revenue Growth Assumption

Fiscal Years[6]	Data Type	Source	Revenue Distributed	Compound Annual Growth Rate (CAGR)
2028-2058	County District	FCTIA Measure Forecast	$7,398,613,187 (Estimated)	4.0% (Assumed)
2005-2026[7]	County District	Measure C	$1,514,818,687[8]	4.02%
2005-2025	County District	Zoo Authority (Measure Z)	$287,462,652	3.62%
1997-2025	County Taxable Sales	Fresno County	$395,404,589,391 (Total Revenue)	4.51%

The tax will expire on the 30th anniversary of the operative date.

6. Project Categories:

The Measure dictates that the money raised from the tax will be used for in one of five categories: Neighborhood Streets and Roads Repair and Maintenance Programs, Public Transportation Programs, Access and Innovation, Regional Connectivity, and Administration of the tax. To facilitate the IMPLAN analysis, the proposed Measure expenditures were consolidated into five major program categories. This approach was necessary because the specific projects that will ultimately be funded over the 30-year life of the measure have not yet been identified. Given the long planning horizon, accurately forecasting the type, scale, timing, and duration of individual projects decades into the fu-

[5] https://cdtfa.ca.gov/dataportal/dataset.htm?url=TaxSalesByCounty
[6] State fiscal years as defined from the state of July to June. For the years 2026-2027 that would be FY2027.
[7] Based upon information received from FCTA it has been documented that the rate is 4.02%
[8] Revenue from FY07-08 through May of FY25-26 (11 of 12 months for FY25-26).

ture is not practical. Furthermore, maintaining expenditures at the program level preserves the flexibility intended by the Measure, allowing the oversight committee, Fresno County, and local jurisdictions to direct funding toward future transportation needs and priorities as conditions evolve over time.

Below is a list of the types of projects being considered for funding by the FCTIA Measure's tax revenue.

Table 3
FCTIA Measure Potential Construction Project Types

Construction Projects	IMPLAN Sector	NAICS
Neighborhood Streets and Roads Repair and Maintenance Program		
Repairing Streets and Roads	57	237310
Building Bike and Pedestrian Facilities	49	237310
Building Regional Trail Connections	51	237310
Adding and Enhancing Crosswalks	57	237310
Funding Infill and mixed use development	51	237990
Planning Activities to get to shovel ready projects	439	541330
Public Transportation Program		
FAX Enhancements	400	485113
Clovis Transit enhancements	400	485113
FCRTA rural transit support and expansion	400	485113
Microtransit Services	400	485999
On-Demand Services	400	485991
Future transit projects	400	
Access and Innovation Program		
Evaluation of transportation projects	439	541330
Planning of construction of urban and rural multi-modal regional transportation hubs	439	541330
Zero-emission infrastructure	47	237130
Digital connectivity	50	237130
Grid capacity and energy storage	47	237130
Zero or low cost public transportation fares for special populations	400	485111
Regional Connectivity Program		
Fresno Yosemite International Airport	55	237310
Regional Connectivity Projects	55	237310
Administration, Performance Measures, Requirements, and Indicators Program		
Administration of the function associated with the use of Measure funds	444	541611

7. Regional Information:

A. Study Region Defined:

This tax measure has economic impacts that extend to the state of California. It is assumed that the purchases made with the proceeds from the Measure will be transacted within the State of California to the maximum extent possible. Therefore, when conducting the study, California was used as the regional input in IMPLAN. However, it is important to note that the capital investment is to be within Fresno County.

The IMPLAN model was developed using California as the study region through IMPLAN's Multi-Regional Input-Output (MRIO) framework. This approach allows economic activity generated by the FCTIA Measure expenditures to be traced throughout California while also identifying impacts occurring within Fresno County and the broader Central San Joaquin Valley Region. Because transportation-related purchases and supply chains frequently extend beyond county boundaries, the MRIO framework provides a more comprehensive estimate of economic impacts than a single-county model. Unless otherwise noted, the economic impact tables presented in this study reflect statewide California impacts, while narrative discussions reference Fresno County as the location where the Measure investments occur.

It is also important to note that as Fresno and the mid-section of the State began to experience significant population and commercial growth, there have been attempts to define the counties that should be included in a definition of the Central San Joaquin Valley Region. Some of these definitions included all counties touched by the San Joaquin River. Others seemed to be motivated by attempts to give rural areas a greater political voice and included almost half of the state's 58 counties stretching the region from as far north as Shasta all the way south to Los Angeles County. In the late 1990's, there was an effort to define the regions and develop a development plan for each, and while Fresno was defined as the hub county of the center of the State, the work group never completed its work or even clarified the area to be studied. Various government agencies drew boundaries based upon some sense of how services would be administered. For example, the area defined which applies to medical services included four counties: Fresno, Kings, Tulare, and Madera counties; on the other hand, the Courts of Appeals -5th District area includes nine counties: Fresno, Kings, Tulare, Kern, Madera, Merced, Mariposa, Tuolumne, and Stanislaus.

Appointed as Eaton Fellow in the first think-tank in the CSU system, the Futures Institute, Dr. Penbera studied data sets on social, economic and political characteristics of counties, and authored the initial Statistical Abstracts defining the region as consisting of six core counties –Fresno, Tulare, Kings, Merced, Madera, and Mariposa counties, three extended counties- Kern, Stanislaus, and Tuolumne counties, and one county, San Joaquin, which has been transitioning towards the Sacramento region. It should be noted that the identification of the core counties is consistent with that of the Central Valley Community Foundation's geographic definition of the Central Valley (https://www.fresnoregfoundation.org/communitiesweserve/overview.html) and has been adopted by various organizations studying some of the major planning and land use issues (https://civicwell.org/wp-content/uploads/2022/01/Central-Valley-Regional-Profile.pdf).

Although it may be reasonably assumed that the six core counties will see the bulk of the economic impacts and job creation, the tables in this study show that the economic impacts extend to

the entire state since the purchases related to the Measure will be conducted in California to the maximum extent possible. It is important to note that the region is the most productive agricultural region in the nation and the world, and the economic impacts extend to all areas of the state in terms of such things as value-added activities (for example, in processing, packaging, warehousing, transportation, distribution, wholesaling and retailing, and attendant investment and output in each activity). The area outputs also extend outside of the State, for example, the State of Hawaii is highly dependent on Central California for its food supply.

The IMPLAN software has provided the following regional statistics for the Central San Joaquin Valley Region. This data is also consistent with the most recent data provided by the U.S. Bureau of Census.

Exhibit on Next Page

Exhibit 2 – IMPLAN Regional Statistics

Fresno County

Land Area:	5,963
Total Population:	1,024,125
Total Personal Income:	67,034,943,368
Total Households:	332,847
Gross Regional Product:	64,817,380,998
Total Employed:	580,140

Central San Joaquin Valley Region (without Fresno County)

Land Area:	11,732
Total Population:	1,117,713
Total Personal Income:	63,803,862,912
Total Households:	341,239
Gross Regional Product:	58,659,073,120
Total Employed:	531,794

California (without Fresno County and the Central San Joaquin Valley Region)

Land Area:	138,278
Total Population:	37,289,425
Total Personal Income:	3,401,776,918,665
Total Households:	13,130,631
Gross Regional Product:	3,939,496,968,912
Total Employed:	24,698,357

Combined Study Area

Land Area:	155,973
Total Population:	39,431,263
Total Personal Income:	3,532,615,724,945
Total Households:	13,804,717
Gross Regional Product:	4,062,973,423,030
Total Employed:	25,810,291

B. Fresno County Economic Conditions[9]

Fresno County serves as the economic center of California's San Joaquin/Central California region which is the most productive agricultural and food processing region in the State and the nation, and is developing into an important warehouse, logistics and transportation hub both regionally and in the western United States. The County's strategic location in terms of the movement of goods and services is already supported by major transportation corridors, including State Route 99 and connections to Interstate 5, and is being further enhanced by the multi-billion-dollar high speed rail project whose routing is directly through Fresno County and Central California and connects northern, central, and southern California. Fresno County has an estimated population of 1,035,456 residents in 2025, is among the largest counties in California, and continues to experience population growth despite slower growth trends in many other regions of the state.

Fresno County's economy is supported by more than 19,000 employer establishments that provide employment for approximately 301,700 workers and generates over $16.7 billion in annual payroll.[10] Major industries include agriculture, food processing, healthcare, transportation and warehousing, retail trade, construction, education, and government services. The transportation and warehousing sector generated approximately $3.5 billion in annual revenues, reflecting the County's importance as a regional distribution and logistics center.

The County has also experienced growth trends in healthcare and social assistance activities generating nearly $9.5 billion in annual revenues which makes these sectors drivers of economic activity and also reflective of several economic and social challenges. The County's median household income of $74,201 remains below levels found in many California metropolitan regions. Approximately 18.2 percent of residents live below the federal poverty level. Only 24.3 percent of adults hold a bachelor's degree or higher. U.S. Bureau of Labor Statistics indicate that the Fresno Metropolitan Statistical Area continues to experience unemployment rates significantly above national averages with the April 2026 Fresno region reporting an unemployment rate of approximately 8.1 percent. Average wages in the Fresno metropolitan area have also historically remained below the national average.[11]

Despite these challenges, Fresno County is seen as being fueled by it providing better housing availability and costs and opportunities for business investment in a lower expense environment when compared to the other population centers in the State. In economic terms, one of the major inhibitors to economic diversification and enhanced wage growth at the regional and community level is the lack of capital investment in infrastructure.

C. Economic Benefits of Capital Investments in Transportation Improvements

The proposed transportation improvements sales tax Measure would provide an important source of long-term capital to address infrastructure, public facility, transportation, utility, and community development needs throughout Fresno County. Infrastructure investment is widely recognized

[9] U.S. Census Bureau QuickFacts – Fresno County, California
[10] U.S. Bureau of Labor Statistics – Fresno Economy at a Glance
[11] U.S. Bureau of Labor Statistics – Occupational Employment and Wages in Fresno

as a catalyst for economic growth because it creates both immediate construction-related employment and long-term productivity benefits that support private-sector investment and business expansion.

Projects developed in the course of the application of this capital investment would generate direct construction employment, professional services employment, supplier purchases, and induced spending throughout the local economy. These expenditures would support local contractors, engineers, architects, material suppliers, equipment providers, and service businesses. Given Fresno County's unemployment rate and available workforce, capital investment can provide meaningful opportunities for job creation and workforce participation.

Over the longer term, transportation-related improvements can reduce transportation costs, improve mobility, increase public safety, enhance utility reliability, expand economic development opportunities, and improve the efficiency of goods movement throughout the region. Investments in roads, streets and other transit facilities can assist in the development and maintenance of various other essential infrastructure elements, including water systems, wastewater systems, broadband connectivity, public safety, health care delivery, housing and commercial development, and entertainment and community amenities, among others. Roads and streets in good condition increase the attractiveness of Fresno County for business investment and promote positive perceptions about the quality of life.

Fresno County's growing population, relatively young workforce, and expanding housing demand place associated pressure on existing infrastructure systems. U.S. Census Bureau data indicate that Fresno County added more than 26,000 residents between 2020 and 2025 and issued more than 2,200 building permits in 2025 alone. Ongoing investment in transportation networks is an essential part of the overall infrastructure of Fresno County, and the failure to make these investments would create capacity constraints that limit economic growth and reduce the quality of life for residents and businesses.

Capital investment in transportation improvements can also help address persistent economic disparities by improving access to employment centers, supporting workforce development initiatives, encouraging private-sector investment in underserved areas, and creating construction and permanent employment opportunities. Such investments can strengthen Fresno County's competitive position within California, improve economic resilience, and support long-term increases in income, employment, and business activity.

Given Fresno County's role as the economic hub of the Central Valley, strategic infrastructure investment has the potential to generate benefits extending beyond the County itself by supporting regional commerce, agricultural production, freight movement, business and public services and facilities, housing, intergovernmental planning, and population growth throughout the broader Central California region. As important, the economic benefits of capital investment in transportation improvements over the 30-year period of revenue generation and project spending will be on-going and sustained well beyond the initial construction period and will impact the lives of current and future generations.

D. Industries Impacted and Associated Multipliers

One of the most salient aspects of understanding the regional economy relates to the composition of industries contained within the region and how investments in the economy affect local

area businesses. The following table, taken directly from IMPLAN, shows the top employment multipliers (excluding public sector employers) for the region.[12]

Table 4
Key Employment Multipliers

IMPLAN Sector	Description	Direct Multiplier	Indirect Multiplier	Induced Multiplier
436	Lessors of nonfinancial intangible assets	16.012913	15.012913	2.716186
64	Soybean and other oilseed processing	13.176064	12.176064	3.475837
146	Petroleum refineries	6.415206	5.415206	3.047262
80	Creamery butter manufacturing	5.202218	4.202218	1.366168
416	Wireless telecommunications carriers (except satellite)	5.164673	4.164673	1.136821
159	Nitrogenous fertilizer manufacturing	4.168593	3.168593	1.469618
420	Internet publishing and broadcasting and web search portals	3.901621	2.901621	0.829096
2	Grain farming	3.856134	2.856134	0.966403
155	Other basic organic chemical manufacturing	3.650373	2.650373	0.800815
149	Petroleum lubricating oil and grease manufacturing	3.597313	2.597313	1.004145
13	Poultry and egg production	3.576147	2.576147	0.897722
324	Automobile and light duty motor vehicle manufacturing	3.550657	2.550657	1.027338
152	Industrial gas manufacturing	3.510201	2.510201	0.917997
60	Flour milling	3.458814	2.458814	0.928223
398	Water transportation	3.443502	2.443502	0.590898
414	Cable and other subscription programming	3.251872	2.251872	0.910995
377	Wholesale - Household appliances and electrical and electronic goods	3.188717	2.188717	0.71033
59	Other animal food manufacturing	3.032185	2.032185	0.819649
148	Asphalt shingle and coating materials manufacturing	2.685277	1.685277	0.982142
86	Rendering and meat by-product processing	2.624782	1.624782	0.741226

The following table provides data which differentiates Fresno County from the rest of the State. It is informative in terms of demonstrating the need for the Measure in terms of promoting improvement and growth in several key social and economic dynamics affecting the regional economy.

[12] For employment multipliers, each direct job created by the project would create X number of jobs in the indicated industry.

Table 5 Selected Data for Fresno County		
	County of Fresno[13]	**State of California [14]**
Population	1,035,456	39,431,263
Growth Rate (2020-2025)	2.7%	-0.8%
Under 18	27.2%	21.3%
Hispanic[15]	55.3%	40.8%
Asian	12.4%	17.0%
American Indian[16]	3.2%	1.8%
Veterans	3.2%	3.3%
Land Area in Sq Miles	5,963	155,973
Population/Sq Mile	169.3	252.8
Housing Units/Population Median Value	353,491/$388,800	14,995,410/$734,700
Owner Occupied	55.5%	55.9%
Owner Cost/w Mortgage	$2,065	$2,946
Median Mo. Gros Rent	$1,392	2,036
Building permits	2,271	103,856
Households	324,702	13,548,091
Persons/Household	3.07	2.84
Median Household Income	$74,201	$99,122
H.S. Grad., % >25 yrs. Old	79.1%	84.7%
Bachelor's, % >25 yrs. Old	24.3%	37.1%
% Persons in Poverty[17]	18.2%	11.8%
Per Capita Income	$32,963	$49,513
Total Employer Establishments (2023)	19,144	1,029,689
Employment Growth	2.7%	2.3%
Unemployment %[18,19]	8.1%	5.4%

Salient factors indicating a generalized need for the Measure:

- Regional population is growing even in the face of a decline in the State's population
- There is a higher percentage of pre-college-age persons versus the State
- There is a higher percentage of persons from minority groups
- 47.8% of the Central San Joaquin Valley Region population is in Fresno County

[13] https://www.census.gov/quickfacts/fact/table/CA/PST045224 Version 1 data.
[14] https://www.census.gov/quickfacts/fact/table/CA/PST045224 Version 1 data.
[15] Includes Latino
[16] Include Alaska Native
[17] https://www.labormarketinfo.edd.ca.gov/file/lfmonth/frsn$pds.pdf
[18] https://labormarketinfo.edd.ca.gov/file/lfmonth/frsn$pds.pdf
[19] https://edd.ca.gov/en/about_edd/news_releases_and_announcements/unemployment-january-2026/

- The population density, generally, is rural, but the Fresno metropolitan area is becoming more suburban
- There is a shortage of housing units
- Construction per capita is outpacing State construction
- Housing costs have increased more recently, but are still lower than State-wide costs
- Household size is about 9% larger than the State's household size
- Median household incomes are 25.1% lower than the State median household income
- Per capita income is 33.4% lower than the State per capita income
- The poverty rate is more than 1.5x that of the State rate
- High school graduation rates are, in proportion to the population, 5.6% lower vs. State
- College graduates are, in proportion to the population, 34.5% fewer vs. State
- Small business firms are fewer in proportion to population vs. the State
- The unemployment rate is more than 1.5 times greater than the State's

8. Understanding the Measure:

The following is taken directly from the full text of the FCTIA Measure.

Through the Measure, it is the intent of the people of the County of Fresno in enacting this Act to do all of the following:

a) Fix what matters most by repairing and maintaining existing local streets and roads first.

b) Keep people and our kids safe by investing in safety improvements, including enhanced lighting, road safety, and safe routes to school.

c) Get people where they need to go efficiently by improving the accessibility and affordability of public transit systems that connect the public to essential services and amenities.

d) Improve transportation alternatives by building and maintaining bikeways, pedestrian facilities, and public transit options.

e) Keep the transportation system safe with repairs, retrofits, and safety upgrades, allowing students, seniors, and people with disabilities to travel safely.

f) Allow seniors, students, people with disabilities, veterans, and active military personnel to access public transit at no cost.

g) Create thousands of local quality jobs that pay a living wage and provide healthcare and retirement benefits for workers.

h) Build strong, vibrant communities by adding shade, trees, and other features to combat heat, beautify transportation corridors, and ensure no neighborhood is left behind.

i) Foster innovation by making smart investments that keep our county competitive and connected — now and in the future.

j) Reduce air pollution to protect Fresno County's environment and quality of life.

k) Protect taxpayers with strict accountability measures, including independent audits and citizens' oversight, to ensure funds are spent as intended by voters.

The areas of improvement will be within the boundaries of Fresno County. Revenue from the tax will be distributed to the cities inside of Fresno County as well as the unincorporated portions of the County. The cities which will receive funds are: Clovis, Coalinga, Firebaugh, Fowler, Fresno, Huron, Kerman, Kingsburg, Mendota, Orange Cove, Parlier, Reedley, San Joaquin, Sanger, and Selma.

A Citizen's Oversight Committee will be formed to ensure the revenue raised through the ordinance is used for the specified purposes. The Citizens Oversight Committee will be formed within six months following the effective date of the Act. The committee will consist of 11 members and be responsible for the following:

1. Receiving, reviewing, and recommending action on independent financial and performance audits.
2. Receiving, reviewing, and recommending action on reports, studies, and plans directly related to programs, revenues, or expenditures.
3. Reviewing and commenting on expenditures for consistency with this Act.
4. Annually reviewing sales-tax expenditures and publicizing findings.
5. Presenting recommendations and findings in a formal annual public report.
6. Conducting the comprehensive review of the Act, at a minimum, every ten years pursuant to section 4.60.170.
7. Referring any misuse of revenue to the Fresno County District Attorney, the Attorney General, and any other appropriate agency.

9. IMPLAN and North American Industry Classification Sectors:

There are multiple IMPLAN/North American Industry Classification Sectors (NAICS) primarily affected by the Measure.

- 237310 (Highway, Street, and Bridge Construction)
    - This industry comprises establishments primarily engaged in the construction of highways (including elevated), streets, roads, airport runways, public sidewalks, or bridges. The work performed may include new work, reconstruction, rehabilitation, and repairs. Specialty trade contractors are included in this industry if they are engaged in activities primarily related to highway, street, and bridge construction (e.g., installing guardrails on highways).
    - This NAICS code was used for the following programs:
        - Neighborhood Streets and Roads Repair and Maintenance Program
            - The funds will be used to improve roads, make repairs, and improve transportation in Fresno County.
        - Access and Innovation Programs
            - The funds will be used for improving innovation and access points.

        - Regional Connectivity Program
            - The funds will be used to improve connectivity between the airport and the surrounding areas as well as improve the overall infrastructure.
- 485113 (Bus and Other Motor Vehicle Transit Systems)
    - This U.S. industry comprises establishments primarily engaged in operating local and suburban passenger transportation systems using buses or other motor vehicles over regular routes and on regular schedules within a metropolitan area and its adjacent nonurban areas.
    - This NAICS code was used for the following programs:
        - Public Transportation Program
            - The funds will be used to expand bus routes, support carpools and vanpools, and the Senior Scrip program.
- 541611 (Administrative Management and General Management Consulting Services)
    - This U.S. industry comprises establishments primarily engaged in providing operating advice and assistance to businesses and other organizations on administrative management issues, such as financial planning and budgeting, equity and asset management, records management, office planning, strategic and organizational planning, site selection, new business start-up, and business process improvement. This industry also includes establishments of general management consultants that provide a full range of administrative, human resource, marketing, process, physical distribution, logistics, or other management consulting services to clients.
    - This NAICS code was used for the following program:
        - Administration, Performance Measures, Requirements, and Indicators Program
            - The funds will be used to administer the program and provide oversight.

10. Key Economic and Business Assumptions:

The following are a list of key economic and business assumptions used in the creation of this economic impact study.

- The analysis evaluates the economic impacts associated with the proposed continuation of a half-cent sales tax dedicated to transportation investments over a 30-year period.
- FCTIA Measure revenues were projected using Fresno COG's estimated annual growth rate of 4.0 percent.
- The 4.0 percent annual growth assumption was evaluated against historical economic data and was found to be consistent with long-term Fresno County taxable sales trends and the historical performance of comparable countywide sales tax measures.
- FCTIA Measure revenues were allocated among program categories based on the expenditure plan contained within the proposed measure and supporting information provided by Fresno COG.
- All revenues were assumed to be expended in the year after they were collected.
- IMPLAN industry sectors were assigned based on the predominant economic activity associated with each Measure program category.
- As called for in the Measure, 1.0 percent will be allocated directly to the Fresno Yosemite International Airport for infrastructure and access improvement projects.

- All economic impacts are reported as the cumulative effects occurring within Fresno County over the 30-year analysis period.

11. Economic Inputs for IMPLAN:

Table 5 represents the revenues of the FCTIA Measure for the five periods based on anticipated distributions:

Table 6
Use of FCTIA Measure Funds

Period	Period 1 FY2029 – FY2033	Period 2 FY2034 – FY2038	Period 3 FY2039 – FY2043	Period 4 FY2044 – FY2048	Period 5 FY2049 – FY2053	Period 6 FY2054 – FY2058	Totals
Tax Revenues	$714,510,475	$869,311,243	$1,057,650,047	$1,286,793,000	$1,565,580,438	$1,904,767,984	$7,398,613,187
Roads Repair and Maintenance Program	$464,431,809	$565,052,308	$687,472,531	$836,415,450	$1,017,627,285	$1,238,099,189	$4,809,098,572
Public Transportation Program	$178,627,619	$217,327,811	$264,412,512	$321,698,250	$391,395,109	$476,191,996	$1,849,653,297
Access and Innovation Program	$28,580,419	$34,772,450	$42,306,002	$51,471,720	$62,623,218	$76,190,719	$295,944,527
Regional Connectivity	$35,725,524	$43,465,562	$52,882,502	$64,339,650	$78,279,022	$95,238,399	$369,930,659
Administration	$7,145,105	$8,693,112	$10,576,500	$12,867,930	$15,655,804	$19,047,680	$ 73,986,132

12. Job Creation Estimates:

1. The following summarize the key methodological protocols, and the data inputs previously described herein:

   A. Core Documents. This economic impact study was conducted using the IMPLAN methodology and references from various documents related to the FCTIA Measure and the IMPLAN User's Manual.[20]

   B. Database. In addition, the most recent IMPLAN data was used for this study (purchased 2026) and has been certified by The IMPLAN Group, LLC as the most recent.

   C. Region. The study area includes the state of California.

   D. Inputs. To calculate the economic impact created, the following cash flows were analyzed.

[20] www.IMPLAN.com

a. Neighborhood Streets and Roads Repair and Maintenance Program

Based on information provided at the time of the creation of this study and as specified in the ballot measure submitted to the County of Fresno, it is assumed that each year 65% of the tax revenue will be spent on the construction, repair, and maintenance activities related to both existing and new roads, streets, systems, and facilities.

b. Public Transportation Program

Based on information provided at the time of the creation of this study and as specified in the ballot measure submitted to the County of Fresno, it is assumed that each year 25% of the tax revenue will be spent on public transportation programs.

c. Access and Innovation Program

Based on information provided at the time of the creation of this study and as specified in the ballot measure submitted to the County of Fresno, it is assumed that each year 4% of the tax revenue will be spent on expanding access and innovation programs.

d. Regional Connectivity Program

Based on information provided at the time of the creation of this study and as specified in the ballot measure submitted to the County of Fresno, it is assumed that each year 5% of the tax revenue will be spent on regional connectivity programs.

e. Administration, Performance Measures, Requirements, and Indicators Program

Based on information provided at the time of the creation of this study and as specified in the ballot measure submitted to the County of Fresno, it is assumed that each year 1% of the tax revenue will be spent on the administration and requirement of the program.

Table 7 represents key data inputs to the IMPLAN model to determine the overall economic impact to the region from the FCTIA Measure.

Table 7
IMPLAN Economic Inputs

Period	Period 1 FY2029 – FY2033	Period 2 FY2034 – FY2038	Period 3 FY2039 – FY2043	Period 4 FY2044 – FY2048	Period 5 FY2049 – FY2053	Period 6 FY2054 – FY2058
Roads Repair and Maintenance Program	$464,431,809	$565,052,308	$687,472,531	$836,415,450	$1,017,627,285	$1,238,099,189
Public Transportation Program	$178,627,619	$217,327,811	$264,412,512	$321,698,250	$391,395,109	$476,191,996
Access and Innovation Program	$28,580,419	$34,772,450	$42,306,002	$51,471,720	$62,623,218	$76,190,719
Regional Connectivity	$35,725,524	$43,465,562	$52,882,502	$64,339,650	$78,279,022	$95,238,399
Administration	$7,145,105	$8,693,112	$10,576,500	$12,867,930	$15,655,804	$19,047,680

Table 8 below reflects the number of jobs created by the FCTIA Measure in the five periods.

Table 8
Jobs Created from the FCTIA Measure

Period	Period 1 FY2029 – FY2033	Period 2 FY2034 – FY2038	Period 3 FY2039 – FY2043	Period 4 FY2044 – FY2048	Period 5 FY2049 – FY2053	Period 6 FY2054 – FY2058	Totals
Direct	3,867.77	4,705.74	5,725.25	6,965.64	8,474.77	10,310.85	40,050.02
Indirect	1,242.95	1,512.45	1,840.32	2,239.25	2,724.64	3,315.20	12,874.82
Induced	1,473.99	1,793.46	2,182.13	2,655.01	3,230.38	3,930.40	15,265.37
Total	6,584.72	8,011.65	9,747.70	11,859.90	14,429.78	17,556.46	68,190.21

13. Findings Relating to the Regional Economic Impact Analysis of the Measure:

Terms and Definitions Used in the Tables

Direct Effects – The set of expenditures applied to the I-O multipliers for impact analysis. It is one or more production changes or expenditures made by producers/consumers as a result of an activity or policy. Direct effects can be positive or negative.[21]

[21] https://support.implan.com/hc/en-us/articles/115009668548-Direct-Effects

Indirect Effects – Economic Effects stemming from business-to-business purchases in the supply chain.[22]

Induced Effects – Economic Effects stemming from household spending of Labor Income, after removal of taxes, savings, and commuter income.[23]

Labor Income – Labor Income changes examine how changes in Employee Compensation or Proprietor Income will affect the economy. They are especially useful in general cases, when the Industry in which the compensation change is taking place is unknown, or when a range of Industries are affected by the change, but the value of the change for each Industry Sector is unknown.[24]

Employee Compensation – Employee compensation is the total payroll costs (including benefits) of each industry in the region. It includes the wages and salaries of workers who are paid by employers, as well as benefits such as health and life insurance, retirement payments, and non-cash compensation. Employee compensation is derived for each industry from ES202 and REIS data.[25]

Proprietary Income – Proprietary income consists of payments received by self-employed individuals as income. Any income received for payment of self-employed work, as reported on Federal tax forms, is counted here. This includes income received by private business owners, doctors, lawyers, and so forth.[26]

Other Property Type Income – Other property type income consists of payments for rents, royalties, and dividends. Payments to individuals in the form of rents received on property, royalties from contracts, and dividends paid by corporations are included here as well as corporate profits earned by corporations. Other property type income numbers are derived from U.S. Bureau of Economic Analysis Gross State Product data.[27]

Indirect Business Taxes – Indirect business taxes consist of excise taxes, property taxes, fees, licenses, and sales taxes paid by businesses. These taxes occur during the normal operation of businesses but do not include taxes on profit or income. Indirect business tax numbers are derived from U.S. Bureau of Economic Analysis Gross State Product data.[28]

Total Value Added – The Total Value Added report gives the value added to intermediate goods and services. It is equal to employee compensation plus proprietor income plus other property income plus indirect business taxes.[29]

Total Output – Output represents the value of industry production. Output includes the total production of an industry or project.

Tax Impact – The Tax Impact report describes taxes related to the chosen impact analysis. These estimates are based strictly on the same data underlying the region SAM data (SAM is a set of regional economic accounts, which describe transfers between institutions, as well as, value added components). These values are based on the average for all industries within the model; the average taxes associated with each household income class; the average taxes and transfers associated with each of the government institutions defined by the model.[30]

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[22] https://support.implan.com/hc/en-us/articles/115009499547-Indirect-Effects
[23] https://support.implan.com/hc/en-us/articles/115009668568-Induced-Effects
[24] https://support.implan.com/hc/en-us/articles/115009668468-Labor-Income
[25] https://support.implan.com/hc/en-us/articles/115009506047-Elements-of-IMPLAN-SAM-Tables
[26] https://support.implan.com/hc/en-us/articles/115009506047-Elements-of-IMPLAN-SAM-Tables
[27] https://support.implan.com/hc/en-us/articles/115009506047-Elements-of-IMPLAN-SAM-Tables
[28] https://support.implan.com/hc/en-us/articles/115009506047-Elements-of-IMPLAN-SAM-Tables
[29] https://support.implan.com/hc/en-us/articles/115009498847-Value-Added
[30] https://support.implan.com/hc/en-us/articles/115009679588-Tax-Impact-Report

1. Labor Income and Employee Compensation Produced

Table 9 below identifies the direct, indirect, and induced labor income generated. The total column represents the total labor income generated for the 30-year period, for a total of **$5,060,443,076.**

Table 9
Labor Income – FCTIA Measure

Period	Period 1 FY2029 – FY2033	Period 2 FY2034 – FY2038	Period 3 FY2039 – FY2043	Period 4 FY2044 – FY2048	Period 5 FY2049 – FY2053	Period 6 FY2054 – FY2058	Totals
Direct	306,910,618	373,403,694	454,302,689	552,728,685	672,478,958	818,173,477	3,177,998,121
Indirect	91,901,823	111,832,390	136,079,171	165,579,610	201,475,627	245,149,558	952,018,180
Induced	89,837,309	109,309,672	133,000,202	161,823,544	196,893,539	239,562,509	930,426,776
Totals	488,649,751	594,545,757	723,382,061	880,131,839	1,070,848,125	1,302,885,544	5,060,443,076

Table 10 below identifies the employee compensation generated for the 30-year period, which is a total of **$3,532,568,624.**

Table 10
Employee Compensation – FCTIA Measure

Period	Period 1 FY2029 – FY2033	Period 2 FY2034 – FY2038	Period 3 FY2039 – FY2043	Period 4 FY2044 – FY2048	Period 5 FY2049 – FY2053	Period 6 FY2054 – FY2058	Totals
Direct	184,265,569	224,187,240	272,758,056	331,851,880	403,748,553	491,221,849	1,908,033,148
Indirect	78,322,021	95,307,385	115,970,826	141,112,226	171,704,272	208,924,612	811,341,341
Induced	78,517,887	95,536,766	116,242,328	141,433,975	172,085,212	209,377,967	813,194,135
Totals	341,105,477	415,031,391	504,971,210	614,398,081	747,538,037	909,524,428	3,532,568,624

2. Proprietor and Other Property Type Income Produced.

Table 11 below identifies income generated for proprietors in the defined region. The total for the 30-year period is **$1,527,874,453**.

Table 11
Proprietor Income – FCTIA Measure

Period	Period 1 FY2029 – FY2033	Period 2 FY2034 – FY2038	Period 3 FY2039 – FY2043	Period 4 FY2044 – FY2048	Period 5 FY2049 – FY2053	Period 6 FY2054 – FY2058	Totals
Direct	122,645,049	149,216,455	181,544,633	220,876,804	268,730,405	326,951,627	1,269,964,973
Indirect	13,579,803	16,525,005	20,108,345	24,467,384	29,771,355	36,224,947	140,676,839
Induced	11,319,422	13,772,907	16,757,874	20,389,569	24,808,328	30,184,541	117,232,641
Totals	147,544,274	179,514,367	218,410,851	265,733,758	323,310,088	393,361,115	1,527,874,453

Table 12 below indicates the economic impacts relating to property type income for the measure for the 30-year period. This totals **$2,125,605,171**.

Table 12
Other Property Type Income – FCTIA Measure

Period	Period 1 FY2029 – FY2033	Period 2 FY2034 – FY2038	Period 3 FY2039 – FY2043	Period 4 FY2044 – FY2048	Period 5 FY2049 – FY2053	Period 6 FY2054 – FY2058	Totals
Direct	82,495,989	100,368,985	122,114,217	148,570,616	180,758,871	219,920,806	854,229,484
Indirect	55,826,256	67,931,269	82,658,652	100,577,127	122,380,093	148,905,059	578,278,456
Induced	66,921,871	81,427,330	99,074,997	120,546,247	146,670,790	178,455,996	693,097,230
Totals	205,244,117	249,727,584	303,847,866	369,693,990	449,809,755	547,281,860	2,125,605,171

3. Indirect Business Taxes Generated

Table 13 below identifies the indirect business tax revenues produced during the 30-year period. The total indirect business taxes generated is **$520,635,088.**

Table 13
Indirect Business Tax – FCTIA Measure

Period	Period 1 FY2029 – FY2033	Period 2 FY2034 – FY2038	Period 3 FY2039 – FY2043	Period 4 FY2044 – FY2048	Period 5 FY2049 – FY2053	Period 6 FY2054 – FY2058	Totals
Direct	9,674,422	11,770,413	14,320,508	17,423,087	21,197,850	25,790,425	100,176,705
Indirect	21,569,560	26,245,050	31,934,022	38,854,903	47,276,002	57,521,883	223,401,419
Induced	19,027,376	23,151,295	28,168,588	34,272,921	41,700,133	50,736,651	197,056,964
Totals	50,271,357	61,166,759	74,423,117	90,550,911	110,173,985	134,048,959	520,635,088

4. Total Value Added.

Table 14 below identifies the direct, indirect, and induced total value added during the 30-year period, for a total of **$7,706,683,335.**

Table 14
Total Value Added – FCTIA Measure

Period	Period 1 FY2029 – FY2033	Period 2 FY2034 – FY2038	Period 3 FY2039 – FY2043	Period 4 FY2044 – FY2048	Period 5 FY2049 – FY2053	Period 6 FY2054 – FY2058	Totals
Direct	399,081,029	485,543,093	590,737,413	718,722,388	874,435,679	1,063,884,707	4,132,404,309
Indirect	169,297,640	206,008,709	250,671,845	305,011,639	371,131,723	451,576,500	1,753,698,056
Induced	175,786,556	213,888,298	260,243,787	316,642,712	385,264,463	468,755,155	1,820,580,970
Totals	744,165,225	905,440,100	1,101,653,044	1,340,376,739	1,630,831,865	1,984,216,363	7,706,683,335

5. Total Output.

As indicated in Table 15, the total economic output for the measure during the 30-year period is **$13,458,684,684.**

Table 15
Total Output – FCTIA Measure

Period	Period 1 FY2029 – FY2033	Period 2 FY2034 – FY2038	Period 3 FY2039 – FY2043	Period 4 FY2044 – FY2048	Period 5 FY2049 – FY2053	Period 6 FY2054 – FY2058	Totals
Direct	714,510,475	869,311,243	1,057,650,047	1,286,793,000	1,565,580,438	1,904,767,984	7,398,613,187
Indirect	305,912,288	372,260,470	452,977,269	551,184,144	670,684,520	816,072,464	3,169,091,155
Induced	279,140,306	339,643,384	413,252,948	502,810,815	611,777,616	744,355,273	2,890,980,342
Totals	1,299,563,070	1,581,215,097	1,923,880,265	2,340,787,959	2,848,042,574	3,465,195,721	13,458,684,684

6. Federal, State, and County Tax Impacts, All Tax Categories.

Following is a summary of the Federal, State, and County tax impacts specified by social security, personal, business, and corporate tax generated for the Measure project for the 30-year period.

Tax Impact for the FCTIA Measure Tax

Federal Tax Impact (2026 Dollars)

Institution Receipts	Transfer Type	Description	Employee Compensation	Proprietor Income	Tax on Production and Imports	Households	Corporations	Total
11001	15014	Social Ins Tax- Employee Contribution	$222,634,247	$66,427,742				$289,061,989
11001	15015	Social Ins Tax- Employer Contribution	$198,992,157					$198,992,157
11001	15017	Tax on Production and Imports: Excise Taxes			$17,518,617			$17,518,617
11001	15018	Tax on Production and Imports: Custom Duty			$14,420,632			$14,420,632
11001	15026	Corporate Profits Tax					$100,383,105	$100,383,105
11001	15027	Personal Tax: Income Tax				$530,573,018		$530,573,018
11001	15028	Personal Tax: Estate and Gift Tax						$0
11001	99999	Total Federal Tax	$421,626,404	$66,427,742	$31,939,249	$530,573,018	$100,383,105	$1,150,949,519

State Tax Impacts (2026 Dollars)

			5001	6001	8001		13001	
Institution Receipts	Transfer Type	Description	Employee Compensation	Proprietor Income	Tax on Production and Imports	Households	Corporations	Total
12001	15014	Social Ins Tax- Employee Contribution	$10,389,442					$10,389,442
12001	15015	Social Ins Tax- Employer Contribution	$8,988,173					$8,988,173
12001	15020	Tax on Production and Imports: Sales Tax			$187,753,240			$187,753,240
12001	15021	Tax on Production and Imports: Property Tax			$7,957,427			$7,957,427
12001	15022	Tax on Production and Imports: Motor Vehicle Lic			$6,881,656			$6,881,656
12001	15023	Tax on Production and Imports: Severance Tax			$271,729			$271,729
12001	15024	Tax on Production and Imports: Other Taxes			$28,371,402			$28,371,402
12001	15025	Tax on Production and Imports: S/L NonTaxes			$0			$0
12001	15026	Corporate Profits Tax					$60,131,873	$60,131,873
12001	15027	Personal Tax: Income Tax				$161,681,356.42		$161,681,356
12001	15030	Personal Tax: Motor Vehicle License				$5,508,164.84		$5,508,165
12001	15031	Personal Tax: Property Taxes				$117,262.31		$117,262
12001	15032	Personal Tax: Other Tax (Fish/Hunt)				$733,836.10		$733,836
12001	99999	Total State and Local Tax	$19,377,615		$231,235,455	$168,040,620	$60,131,873	$478,785,562

County Tax Impacts (2026 Dollars)

			5001	6001	8001		13001	
Institution Receipts	Transfer Type	Description	Employee Compensation	Proprietor Income	Tax on Production and Imports	Households	Corporations	Total
12001	15014	Social Ins Tax- Employee Contribution						$0
12001	15015	Social Ins Tax- Employer Contribution						$0
12001	15020	Tax on Production and Imports: Sales Tax			$8,701,846			$8,701,846
12001	15021	Tax on Production and Imports: Property Tax			$46,253,505			$46,253,505
12001	15022	Tax on Production and Imports: Motor Vehicle Lic			$0			$0
12001	15023	Tax on Production and Imports: Severance Tax			$0			$0
12001	15024	Tax on Production and Imports: Other Taxes			$5,833,408			$5,833,408
12001	15025	Tax on Production and Imports: S/L NonTaxes			$276,943			$276,943
12001	15026	Corporate Profits Tax						$0
12001	15027	Personal Tax: Income Tax						$0
12001	15030	Personal Tax: Motor Vehicle License						$0
12001	15031	Personal Tax: Property Taxes				$674,060		$674,060
12001	15032	Personal Tax: Other Tax (Fish/Hunt)						$0
12001	99999	Total State and Local Tax	$0		$61,065,702	$674,060	$0	$61,739,762

The total Federal Tax impacts are as follows:

Table 17 Federal Tax Impacts	
Employee Compensation	$421,626,404
Proprietor Income Taxes	$66,427,742
Indirect Business Taxes	$319,392,349
Households, Personal Income Taxes	$530,573,018
Corporation Taxes	$100,383,105
Total Federal Tax Impact	$1,150,949,519

The total State and Local Tax impacts are as follows:

Table 18 State Tax Impacts	
Employee Compensation	$19,377,615
Proprietor Income Taxes	$0
Tax on Production and Imports	$231,235,455
Household Taxes	$168,040,620
Corporation Taxes	$60,131,873
Total State Tax Impact	$478,785,562

The total County Tax impacts for are as follows:

Table 19 County Tax Impacts	
Employee Compensation	$0
Proprietor Income Taxes	$0
Tax on Production and Imports	$61,605,702
Household Taxes	$674,060
Corporation Taxes	$0
County Tax Impact	$61,739,762

The total of Federal, State, and County tax impacts are: **$1,691,474,842.**

7. Local Spending-Household Income Effect.

The total Local Spending-Household Income Effect for the measure during the 30-year period is **$2,890,980,342.**

Economic impacts generated through household spending are reflected in the induced effects estimated by the IMPLAN model. IMPLAN utilizes Bureau of Labor Statistics Consumer Expenditure Survey data, regional purchasing patterns, and local trade-flow relationships to estimate the portion of labor income that is spent within the study area and subsequently recirculates through the local economy. Based on the estimated $4.130 billion in labor income generated by the FCTIA Measure expenditures, household spending by employees and business proprietors is projected to exceed **$2.89 billion** in additional economic output within Fresno County over the 30-year analysis period. These induced impacts reflect local expenditures on housing, healthcare, retail purchases, food services, transportation, entertainment, and other household goods and services, after accounting for spending leakages outside the region. The induced output generated by household spending is equivalent to approximately 70.0% of the labor income created by the project, indicating a substantial recirculation of income within the Fresno County economy.

14. Summary of Economic Impacts for the Measure:

Table 20 shown on following page summarizes the economic impacts specifically identified in each of the tables above of the IMPLAN Study for The FCTIA Measure.

Table 20
Summary of Economic Impacts for Measure for the 30-Year Period

Impact – Jobs Created	
Total Jobs Created	68,190.21
Impact- By Category-in U.S. Dollars	
Labor Income	$5,060,443,076
Employee Compensation	$3,532,568,624
Proprietor Income	$1,527,874,453
Other Property Type Income	$2,125,605,171
Indirect Business Taxes	$520,635,088
Total Value Added	$7,706,683,335
Total Output	$13,458,684,684
Federal Taxes	$1,150,949,519
State Taxes	$478,785,562
County Taxes	$61,739,762
Household Spending, Local Area	$2,890,980,342

15. Professional Opinions:

Based on the operational, economic, and financial assumptions derived from all data sources, this IMPLAN analysis demonstrates that the Measure creates a substantial impact to the cities of Fresno County, Fresno County, the Central San Joaquin Valley Region, and the State of California. Clearly, the Measure has substantial economic benefit to households, businesses, and governmental institutions in the region, and creates substantial employment, income, and tax benefits.

Appendix A: Excerpts from Item 10, Fresno COG Regional Pavement Management Plan – Full Report, with Exhibits, 11/07/2025

1. The Fresno Council of Governments (COG) is the state-designated public entity providing oversight for regional transportation planning. COG encompasses cities within Fresno County and the unincorporated parts of Fresno County and includes sixteen member jurisdictions. Historically, Fresno COG's sixteen-member jurisdictions have employed a variety of approaches to determine what pavement treatments to perform and where to apply them. While some jurisdictions have used pavement management programs (PMPs), others have employed more traditional approaches. Maintaining an up-to-date PMP is essential for local governments to effectively track road inventories, evaluate pavement conditions, identify maintenance and repair needs, estimate associated costs, prioritize projects, and plan budgets accordingly.

   Due to limited funding, pavement maintenance and repairs have been insufficient throughout Fresno County, with small cities being particularly affected. In 2008, the Countywide average Pavement Condition Index (PCI) was 74, indicating a "good" condition. However, by 2021, it had declined to 57, placing it in the "at risk" category.

   In 2025, Nichols Consulting Engineers Chtd. (NCE) assisted all sixteen member jurisdictions in implementing their PMPs using StreetSaver®, a pavement management decision-support tool developed by the Metropolitan Transportation Commission. All Fresno COG jurisdictions have access to the StreetSaver® PMP to help manage their network. It was therefore possible for Fresno COG to utilize the StreetSaver regional license and perform regional funding analyses. As part of this study, NCE aggregated the PMP databases from all sixteen member jurisdictions to perform the regional analyses. This memorandum presents a compilation of those results, focusing on the budget needs and funding analyses. These analyses illustrate the effects of various funding scenarios on pavement condition and deferred maintenance over a 10-year period. This compiled approach ensures the report can be easily referenced in the future to track regional trends. Fresno COG Regional PMP Update.pdf

2. COG's member jurisdictions maintain approximately 6,283 centerline miles of streets and roads. The majority of the countywide network (97.1%) is composed of asphalt concrete pavements. Of the remaining portion, approximately 2.7% are surface treated roads owned and managed by Fresno County, 0.2% are gravel roads, and less than 0.1% are concrete roads. The PCI is a measure of pavement condition and ranges from 0 to 100. A newly constructed road has a PCI of 100, while a failed road has a PCI of 25 or less. Pavement conditions are affected by the environment, traffic loads and volumes, construction materials, and age. The PCI for the countywide network is 64.8. This value is an area-weighted calculation. The definitions of the pavement condition categories and PCI ranges are shown in Table 2. These are the PCI "breakpoints" used in StreetSaver®.

Figure 1. Countywide Summary of Statistics

Jurisdiction	Centerline Miles	No. of Sections	Paved Area (sf)	Gravel Area (sf)	2025 PCI
Clovis	484.8	3381	85,811,364	0	71
Coalinga	50.0	299	10,940,289	9,396	58
Firebaugh	20.7	165	4,337,338	67,238	54
Fowler	37.5	260	7,883,475	0	63
Fresno (City)	1805.3	19,628	354,633,213	25,500	64
Fresno (County)	3388.7	8,266	428,481,730	431,012	66
Huron	11.1	90	2,324,152	585,034	46
Kerman	60.8	565	12,158,573	0	71
Kingsburg	46.0	319	9,279,698	0	66
Mendota	27.6	225	5,918,760	328,525	40
Orange Cove	33.4	169	6,307,592	327,486	34
Parlier	36.9	340	8,998,486	0	69
Reedley	98.6	1,150	19,528,938	43,300	51
San Joaquin	13.5	95	2,836,451	44,636	34
Sanger	87.2	586	17,694,229	36,256	67
Selma	81.4	537	16,832,112	0	60
Countywide	**6,283**	**36,075**	**993,002,285**	**1,908,382**	**64.8**

The current overall weighted average PCI for the network is 64.8, which places the overall street network pavement condition in the **"Fair" category**. Figure 1 shows the current pavement conditions of all jurisdictions, as well as the overall network conditions. The overall street condition assessment was calculated based on each jurisdiction's paved area and it shows that 43.9% of the pavement network is in "Good" condition, 30.7% is in "Fair" condition, and 25.4% is in "Poor" and "Very Poor" conditions. Note that labels smaller than 10% are not shown on the chart for readability (Figure 1).

Table 1. Pavement Condition by Category

Condition Category	PCI Range	Description
Good	70 – 100	Pavements with minimal surface distress that may include some hairline longitudinal/transverse cracks and/or weathering. The pavement structure is sound, and minor oxidation may occur.
Fair	50 – 69	Pavements with significant distress that is predominantly non-load-related, such as longitudinal/transverse cracks, bleeding, block cracking, weathering, raveling, etc. The pavement structure is sound, and some oxidation has occurred.
Poor	25 – 49	Pavements with moderate to severe surface distresses. Extensive weathering or raveling, block cracking, and load-related distresses such as alligator cracking, rutting, and potholes may occur.
Very Poor	0 – 24	Pavements with severe weather-related distress and large quantities of load-related distress. These pavements are nearing the end of their service life.

Fig. 2: Pavement Condition By Jurisdiction

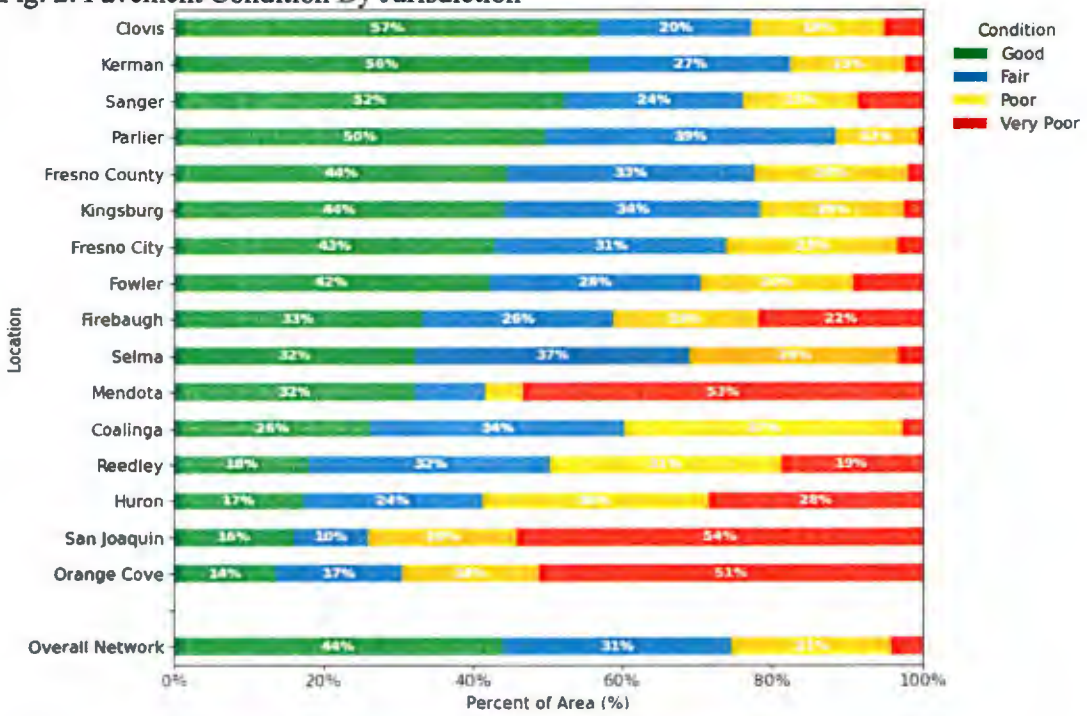


Table 2. Budgetary Needs By Jurisdiction

Jurisdiction	10-Year Budget Needs ($M)
Clovis	431.7
Coalinga	61.6
Firebaugh	26.8
Fowler	40.0
Fresno City	1,988.3
Fresno County	2,162.9
Huron	16.9
Kerman	39.2
Kingsburg	44.2
Mendota	54.8
Orange Cove	60.5
Parlier	38.1
Reedley	158.2
San Joaquin	26.0
Sanger	108.6
Selma	103.2
Countywide	**5,361.0**

NCE met with individual jurisdictions to evaluate the advantages and disadvantages of various pavement treatment strategies. A customized decision tree was developed for each agency, and this was reviewed and formally approved by local agency representatives. The unit costs were estimated using bid tabs from local and neighboring jurisdictions.

3. Discussion of Revenue Sources

The Fresno COG member jurisdictions obtain pavement funding from five primary sources.

The Highway User Tax Account (HUTA) is the California State per-gallon tax on gasoline and diesel fuels. This tax has been the primary source of funding for road maintenance throughout the state for many years. However, the rise of alternative fuels, electric vehicles, and more efficient gasoline-powered vehicles has led to reduced gas consumption and is therefore projected to be a declining revenue source.

The Road Maintenance and Rehabilitation Act (RMRA or SB1), passed in 2017, created a new state revenue source funded by an additional per gallon gas tax as well as a new vehicle-registration tax. This funding source is expected to provide Fresno COG member jurisdictions with more than $49 million per year for road maintenance. As with HUTA, it is expected to be a declining revenue source.

Measure C is a half-cent sales tax passed by Fresno County voters in 1986. This source of revenue provided approximately $1 billion during the first 20 years (Measure C I) for road and street maintenance and construction, and $1.4 billion during the reauthorization period from 2007 to 2026 (Measure C II) for multimodal transportation improvements. The current measure (Measure C II) was extended in 2006 and will be sunset in 2027. A minimum of 15% of the Measure C II funding currently goes to local street and road maintenance.

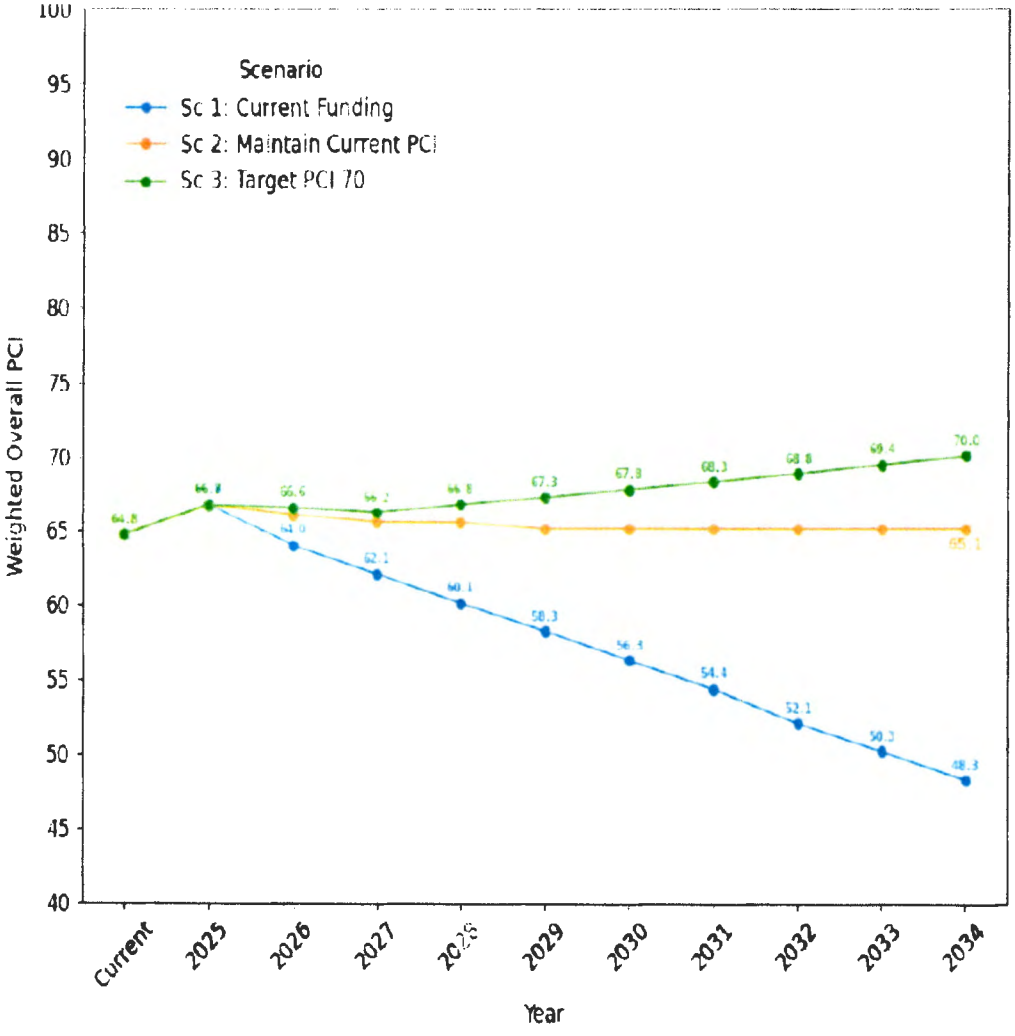
Local Transportation Fund (LTF) is a statewide 0.25 cent general sales tax. It provides transit planning and operation for public transit operators. Local governments receive LTF funds for street and road improvements when there are no unmet transit needs that are deemed reasonable to meet in the areas.

Surface Transportation Block Grant (STBG) is a federal funding source that provides flexible funds for states and local jurisdictions. The STBG can be used to fund a variety of projects including highways, bridges, public roads, pedestrian and bicycle infrastructure, and transit. Because of its flexibility, STBG has served different purposes over time. Due to the high roadway maintenance needs in the Fresno region in recent years, local jurisdictions in Fresno region have chosen to focus on street and road maintenance with STBG funding. The Regional STBG program is competitive and the funding for each jurisdiction may vary from year to year.

4. Funding Analyses Three funding scenarios were selected for analysis to determine the impact of current funding on the countywide condition of streets and roads and on the deferred maintenance (the maintenance and rehabilitation pavement treatments not performed due to insufficient funding) and to determine the funding needed to maintain or improve the current condition of the countywide network. Scenario 1: Current funding levels; Scenario 2: Funding required to maintain the current PCI; Scenario 3: Funding required to improve the current pavement network to PCI of 70, which is Fresno COG's goal Each funding scenario was analyzed over a 10-year period and includes inflation. The projected regional funding for each scenario

and the projected deferred maintenance are shown in Figures 3 to 8. The total 10-year funding for Scenarios 1, 2, 3 are $436.2 million, $3.1 billion and $3.8 billion, respectively.

Dr. Penbera's Comment: An evident and rather large amount of funding is needed to accomplish a PCI of 70 which is just the lowest point of the Good range in Table 1 above. As indicated by Figure 10 below and excerpted from the COG Report, the gap between the current trajectory of conditions and the targeted PCI of 70 is estimated to widen such that in 7 years the PCI will have fallen into the Poor category.



Appendix B: FRESNO COUNTY, CALIFORNIA, AND U.S. CENSUS BUREAU 2025 (Vers 2 Data)

POPULATION

	Fresno County, California	U.S.
Population estimates, July 1, 2025, (V2025)	1,035,456	341,784,857
Population estimates, July 1, 2024, (V2024)	1,024,125	340,110,988
Population estimates base, April 1, 2020, (V2025)	1,008,661	331,516,113
Population estimates base, April 1, 2020, (V2024)	1,008,649	331,515,736
Population, percent change - April 1, 2020 (estimates base) to July 1, 2025, (V2	2.70%	3.10%
Population, percent change - April 1, 2020 (estimates base) to July 1, 2024, (V2	1.50%	2.60%
Population, Census, April 1, 2020	1,008,654	331,449,281
Population, Census, April 1, 2010	930,450	308,745,538

Source: U.S. Census Bureau Community Survey (V2025) Estimates

AGE & SEX

	Fresno County, California	U.S.
Persons under 5 years, percent	6.80%	5.50%
Persons under 18 years, percent	27.20%	21.50%
Persons 65 years and over, percent	13.40%	18.00%
Female persons, percent	49.90%	50.50%

Source: U.S. Census Bureau Community Survey (V2025) Estimates

RACE & HISPANIC ORIGIN

	Fresno County, California	U.S.
White alone, percent	74.60%	74.80%
Black alone, percent	5.90%	13.70%
American Indian and Alaska Native alone, percent	3.20%	1.40%
Asian alone, percent	12.40%	6.70%
Native Hawaiian and Other Pacific Islander alone, percent	0.30%	0.30%
Two or More Races, percent	3.50%	3.10%
Hispanic or Latino, percent	55.30%	20.00%
White alone, not Hispanic or Latino, percent	25.80%	57.50%

Source: U.S. Census Bureau Community Survey (V2025) Estimates

POPULATION CHARACTERISTICS		
	Fresno County, California	U.S.
Veterans, 2020-2024	32,718	16,185,883
Foreign-born persons, percent, 2020-2024	20.00%	14.10%

Source: U.S. Census Bureau Community Survey (V2025) Estimates

HOUSING		
	Fresno County, California	U.S.
Housing Units, July 1, 2025, (V2025)	353,491	148,260,882
Owner-occupied housing unit rate, 2020-2024	55.50%	65.20%
Median value of owner-occupied housing units, 2020-2024	$388,800	$332,700
Median selected monthly owner costs - with a mortgage, 2020-2024	$2,065	$1,963
Median selected monthly owner costs - without a mortgage, 2020-2024	$673	$638
Median gross rent, 2020-2024	$1,392	$1,413
Building Permits, 2025	2,271	1,431,616

Source: U.S. Census Bureau Community Survey (V2025) Estimates

FAMILIES & LIVING ARRANGEMENTS		
	Fresno County, California	U.S.
Households, 2020-2024	324,702	129,227,496
Persons per household, 2020-2024	3.07	2.53
Living in the same house 1 year ago, percent of persons age 1 year+, 2020-2024	89.80%	87.70%
Language other than English spoken at home, percent of persons age 5 years+, 2020-2024	43.70%	22.30%

Source: U.S. Census Bureau Community Survey (V2025) Estimates

COMPUTER & INTERNET USE		
	Fresno County, California	U.S.
Households with a computer, percent, 2020-2024	94.40%	95.50%
Households with a broadband Internet subscription, percent, 2020-2024	88.90%	91.00%

Source: U.S. Census Bureau Community Survey (V2025) Estimates

EDUCATION

	Fresno County, California	U.S.
High school graduate or higher, percent of persons age 25 years+, 2020-2024	79.10%	89.60%
Bachelor's degree or higher, percent of persons age 25 years+, 2020-2024	24.30%	35.70%

Source: U.S. Census Bureau Community Survey (V2025) Estimates

HEALTH

	Fresno County, California	U.S.
With a disability, under age 65 years, percent, 2020-2024	9.60%	9.30%
Persons without health insurance, under age 65 years, percent	8.30%	9.60%

Source: U.S. Census Bureau Community Survey (V2025) Estimates

ECONOMY

	Fresno County, California	U.S.
In civilian labor force, total, percent of population age 16 years+, 2020-2024	61.50%	63.00%
In civilian labor force, female, percent of population age 16 years+, 2020-2024	56.60%	58.80%
Total accommodation and food services sales, 2022 ($1,000)	2,679,390	1,196,315,575
Total health care and social assistance receipts/revenue, 2022 ($1,000)	9,473,385	3,330,304,719
Total transportation and warehousing receipts/revenue, 2022 ($1,000)	3,453,014	1,316,303,546
Total retail sales, 2022 ($1,000)	15,435,333	6,974,691,329
Total retail sales per capita, 2022	$15,202	$20,928

Source: U.S. Census Bureau Community Survey (V2025) Estimates

TRANSPORTATION

	Fresno County, California	U.S.
Mean travel time to work (minutes), workers age 16 years+, 2020-2024	23.5	26.4

Source: U.S. Census Bureau Community Survey (V2025) Estimates

INCOME & POVERTY		
	Fresno County, California	U.S.
Median households income (in 2024 dollars), 2020-2024	$74,201	$80,734
Per capita income in past 12 months (in 2024 dollars), 2020-2024	$32,963	$44,673
Persons in poverty, percent	18.20%	10.60%

Source: U.S. Census Bureau Community Survey (V2025) Estimates

BUSINESSES		
	Fresno County, California	U.S.
Total employer establishments, 2023	19,144	8,361,342
Total employment, 2023	301,731	139,831,742
Total annual payroll, 2023 ($1,000)	16,686,744	9,556,351,319
Total employment, percent change, 2022-2023	2.70%	3.00%
Total non-employer establishments, 2023	65,587	30,427,808
All employer firms, Reference year 2023	14,464	5,934,950
Male-owned employer firms, Reference year 2023	8,655	3,638,693
Female-owned employer firms, Reference year 2023	Not Available (S)	1,356,990
Minority-owned employer firms, Reference year 2023	5,426	1,400,775
Nonminority-owned employer firms, Reference year 2023	7,317	4,202,325
Veteran-owned employer firms, Reference year 2023	514	261,330
Nonveteran-owned employer firms, Reference year 2023	12,465	5,343,976

Source: U.S. Census Bureau Community Survey (V2025) Estimates

GEOGRAPHY		
	Fresno County, California	U.S.
Population per square mile, 2020	169.3	93.8
Population per square mile, 2010	156.2	87.4
Land area in square miles, 2020	5,958.38	3,533,038.28
Land area in square miles, 2010	5,957.99	3,531,905.43
FIPS Code	"06019"	"1"

NOTE: FIPS Code values are enclosed in quotes to ensure leading zeros remain intact.

Source: U.S. Census Bureau Community Survey (V2025) Estimates

End of Study

ITEM #7.1
07/14/2026

From: Lauren Lowe <lauren.lowe@scccd.edu>
Sent: Friday, July 10, 2026 10:54 AM
To: Magsig, Nathan <nmagsig@fresnocountyca.gov>; District 5 <District5@fresnocountyca.gov>
Cc: Carole Goldsmith <carole.goldsmith@scccd.edu>
Subject: Thinking of You Before Tuesday's Vote [Sent on behalf of Dr. Carole Goldsmith]

CAUTION!!! - EXTERNAL EMAIL - THINK BEFORE YOU CLICK

Report Suspicious

This message is being sent on behalf of Chancellor Goldsmith

Hi Supervisor Magsig,

I just wanted to let you know I've been thinking about you. I know Tuesday's decision regarding the citizen-led ballot initiative to extend the half-cent transportation sales tax is an important one, and I'm sure you're hearing from people on all sides of the issue.

As a fellow educator, I know you've always cared deeply about students and the opportunities education can create. That's something I've always admired about your public service. I think it's important to consider the impact this could have on the lives of our young people...especially students for whom transportation is the one barrier standing between them and a college class, a career pathway, or a brighter future. Even a relatively small investment in helping students get where they need to go can make an extraordinary difference in the course of a young person's life.

I wanted to share my perspective because I hope you'll support allowing this measure to go before the voters in 2026. Whatever someone's position on the measure itself, I believe there's real value in letting the people have their say. In the spirit of representative government, this feels like the kind of question that belongs before the voters.

There are also several aspects of the measure that I believe are especially worthwhile. Its emphasis on improving local streets and neighborhood infrastructure is something Melissa and I both care deeply about. As a real estate agent, she sees every day how the condition of neighborhood streets affects resale values, families and communities.

I'm also especially supportive of the provision providing free transportation for students. While the cost of that program is relatively modest, the impact can be life-changing for students who depend on reliable transportation to reach community college classes and other educational opportunities. Sometimes a simple bus ride can be the difference between a student pursuing a better future or missing that opportunity altogether.

From my perspective, this isn't an investment we should postpone. As you know, if the measure doesn't move forward now, it will almost certainly return in 2028. My concern is that delaying it could create

competing measures, which might divide support and ultimately jeopardize both. That seems like an unnecessary risk when the voters could weigh in now.

Thank you for taking the time to consider my thoughts. I know this isn't an easy decision, and I appreciate the care you put into serving Fresno County. If there's ever anything I can do to help, please don't hesitate to let me know.

Respectfully,
Carole

Dr. Carole Goldsmith

Chancellor

STATE CENTER COMMUNITY COLLEGE DISTRICT

CONFIDENTIALITY NOTICE: The information in this email, including attachments, may be confidential and/or privileged and may contain confidential information. This email is intended to be reviewed only by the individual or organization named as addressee. If you have received this email in error, please notify State Center Community College District (SCCCD) immediately - by return message to the sender and destroy all copies of this message and any attachments. Please note that any views or opinions presented in this email are solely those of the author and do not necessarily represent those of SCCCD. Confidential information is protected by state and federal law.

ITEM # 7.1
07/14/2026

From: Dezmarie Hedrick <dez@fresnorealtors.com>
Sent: Friday, July 10, 2026 12:05 PM
To: Magsig, Nathan <nmagsig@fresnocountyca.gov>; District 5 <district5@fresnocountyca.gov>; Kyle Chaney <kc@fresnorealtors.com>
Subject: Support for Better Roads, Safe Streets Measure and placement on the November 2026 Ballot

CAUTION!!! - EXTERNAL EMAIL - THINK BEFORE YOU CLICK

Report Suspicious

***Sent on Behalf of Fresno Association of REALTORS®*
*LCRC Committee***

The Honorable Nathan Magsig, Supervisor, District 5
County of Fresno
2281 Tulare Street
Fresno, California 93721

Re: Support for Better Roads, Safe Streets Measure and Placement on the November 2026 Ballot

Dear Supervisor Magsig:

On behalf of the Fresno Association of REALTORS®, I am writing in support of the Better Roads, Safe Streets measure and to urge your support of its placement on the November 2026 ballot.

The Fresno Association of REALTORS® was one of the first civic organizations in Fresno County to endorse this proposed ballot measure. We are now one of nearly four dozen civic and community organizations that are supporting the measure, in addition to dozens of elected officials and over 22,000 Fresno County registered voters who signed a petition indicating their support for placing this measure before the voters in November 2026.

The Fresno Association of REALTORS® represents over 3,500 REALTORS® who work with homebuyers and renters every day in every part of Fresno County. We support the Better Roads, Safe Streets measure because it nearly doubles the amount of funding available from the current measure for local streets and roads. For the first time since our County enacted a half-cent sales tax for our transportation system 40 years ago, this measure focuses on local streets and roads, includes performance metrics that require our streets to be maintained in good condition, and gives local governments the flexibility they need to handle all aspects of road repair and maintenance. This measure puts local dollars to work in local neighborhoods, which helps improve neighborhood quality and property values. In doing so, the measure will generate more than $13.5b in economic activity over the life of the measure and create more than 65,000

jobs. For all these reasons and more, the Fresno Association of REALTORS® is proud to support this ballot measure.

However, as you know, that is not the issue in front of your board next week. Instead, the issue is simply whether you will allow this measure to be placed on the November 2026 ballot for the voters to make the decision. Delaying the vote for any reason puts our County's transportation funding at risk resulting in further degradation of neighborhood streets, a lack of basic services, and cuts to local governments across Fresno County.

On behalf of the people who are working every day to promote Fresno County, we urge you to support the democratic process and allow voters to make the decision on the Better Roads, Safe Streets measure.

Sincerely,
Brian Domnigos 2026 LCRC Chair, Kyle Chaney Government Affairs Director, Jason Farris 2026 President, Dezmarie Hedrick Cheif Executive Officer

DEZMARIE HEDRICK
CHIEF EXECUTIVE OFFICER
PHONE 559.490.1000
CELL 559.713.4267
FRESNOREALTORS.COM

FRESNO
REALTORS

FRESNO ASSOCIATION OF REALTORS

July 9, 2026

The Honorable Nathan Magsig, Supervisor, District 5
County of Fresno
2281 Tulare Street
Fresno, California 93721

Re: Support for Better Roads, Safe Streets Measure and Placement on the November 2026 Ballot

Dear Supervisor Magsig:

On behalf of the Fresno Association of REALTORS®, I am writing in support of the Better Roads, Safe Streets measure and to urge your support of its placement on the November 2026 ballot.

The Fresno Association of REALTORS® was one of the first civic organizations in Fresno County to endorse this proposed ballot measure. We are now one of nearly four dozen civic and community organizations that are supporting the measure, in addition to dozens of elected officials and over 22,000 Fresno County registered voters who signed a petition indicating their support for placing this measure before the voters in November 2026.

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However, as you know, that is not the issue in front of your board next week. Instead, the issue is simply whether you will allow this measure to be placed on the November 2026 ballot for the voters to make the decision. Delaying the vote for any reason puts our County's transportation funding at risk resulting in further degradation of neighborhood streets, a lack of basic services, and cuts to local governments across Fresno County.

On behalf of the people who are working every day to promote Fresno County, we urge you to support the democratic process and allow voters to make the decision on the Better Roads, Safe Streets measure.

Sincerely,

Jul 10, 2026 — Brian Domingos
Brian Domingos (Jul 10, 2026 10:09:51 PDT)
Date — Brian Domingos, 2026 LCRC Chair

Jul 10, 2026 — JASON FARRIS
Date — Jason Farris, 2026 President

Jul 10, 2026
Kyle Chaney (Jul 10, 2026 17:49:18 GMT+1)
Date — Kyle Chaney, Government Affairs Director

Jul 10, 2026
Date — Dezmarie Hedrick, Chief Executive Officer

Item 7.1
7/14/2026 BOS Meeting

LWV LEAGUE OF WOMEN VOTERS

July 12, 2026

The Honorable Garry Bredefeld, Chair
The Honorable Luis Chavez, Vice-chair
The Honorable Nathan Magsig
The Honorable Buddy Mendes
The Honorable Brian Pacheco
c/o Clerk of the BOS
County of Fresno
Hall of Records
2281 Tulare St., Rm 301
Fresno, CA. 93721

Sent via email

Dear Members of the Board:

Last Wednesday, the Better Roads-Safe Streets Initiative, the replacement for Fresno County's Measure C, qualified for the ballot. Over 22000 County residents have asked to put this measure, created with the input of 3000+ resident voices, on the November, 2026 ballot. You may object to this measure, and as a voter, you surely can vote against it come election time. However, if you pursue denying this initiative it's place on this November's ballot for no reason other than your own opinion, you confirm that you are unwilling to listen to your constituents, many of whom signed petitions for this issue.

If you and other Fresno County residents agree that this measure which directs 65% of it's expenditures to local road repairs, is not a worthy use of tax revenue, then defeat it at the ballot box. Do not use procedural non-issues to deny County residents the right to weigh in on this measure in November.

Further, your decision to delay the vote on this measure will cost the County upwards of $1M while the current Measure C expires, as well as missed opportunities to use our County transportation tax revenue to open additional state and federal funding opportunities.

Sincerely,

Marianne Kast, Director

1345 BULLDOG LANE FRESNO 93710 INFO@LWVFRESNO.ORG (559)226-8384

Item 7.1
7/14/2026 BOS Meeting

From: andrea De Zubiria <afarberdezub@gmail.com>
Sent: Monday, July 13, 2026 6:53 AM
To: Clerk/BOS
Subject: Better Roads Initiative

CAUTION!!! - EXTERNAL EMAIL - THINK BEFORE YOU CLICK

Report Suspicious

To the Fresno County Board of Supervisors,

I'll keep this short and sweet: as a resident and homeowner in Fresno County I think it is appalling that you would consider wasting our time and money on a study, preventing a ballot initiative with lots of community input from getting onto the November ballot.

Andrea De Zubiria
Fresno

Item 7.1
7/14/2026 BOS Meeting

From: Stetler Brown <stetlerbrown@gmail.com>
Sent: Monday, July 13, 2026 9:38 AM
To: District 5; Clerk/BOS
Cc: Ashley Swearengin
Subject: Better Roads Safer Streets Public Comment

CAUTION!!! - EXTERNAL EMAIL - THINK BEFORE YOU CLICK

Report Suspicious

Dear Supervisor Magsig,

I am reaching out to request that you vote to approve the Fresno County Transportation Plan "Better Roads Safer Streets" at tomorrow's Board of Supervisors meeting. This is the product of years of organizing, working with coalition groups, elected officials, and businesses in the area. Since 2020, Fresno County has seen population growth driven by our comparatively affordable housing, strong K-12 education districts, and recreation opportunities. Because of this population growth through the county, it is imperative that our transportation infrastructure have a funding mechanism to support this growth.

The Better Roads Safer Streets initiative supports local goals for transportation, ensures that road quality can meet the needs of residents and tourists, and that projects have future funding in the midst of federal and state uncertainty.

I ask that the citizens who put this initiative together be able to have this voted on by the county in the November election.

Cordially,
Stetler Brown
District 5

Stetler Brown, MA / CWY/ [redacted]rono[redacted] : He/Him/His (what is this?)
stetlerbrown@gmail.com
(559) 905-4650

Clovis, CA - Indigenous Residence: Yokuts

Item 7.1
7/14/2026 BOS Meeting

From: District 5
Sent: Monday, July 13, 2026 10:13 AM
To: Clerk/BOS
Subject: FW: Better Roads Safer Streets

From: Patricia Duvet <duvetpatricia54@gmail.com>
Sent: Monday, July 13, 2026 9:56 AM
To: District 5 <District5@fresnocountyca.gov>
Subject: Better Roads Safer Streets

CAUTION!!! - EXTERNAL EMAIL - THINK BEFORE YOU CLICK

Report Suspicious

Hello,

Please, allow the Better Roads Safer Streets initiative on the ballot in November .

Thank you,

Patricia Duvet
27888 Burrough north road
Tollhouse, Ça 93667

Item 7.1
7/14/2026 BOS Meeting

From: Andy Levine <andy@betterroadssafestreets.com>
Sent: Monday, July 13, 2026 11:24 AM
To: Clerk/BOS
Subject: Letter from Mayors re: Fresno County Transportation Improvement Act ballot measure
Attachments: Mayors letter 071326.pdf

CAUTION!!! - EXTERNAL EMAIL - THINK BEFORE YOU CLICK

Report Suspicious

Good Morning, Clerk of the Board-

On behalf of the Mayors listed, I am attaching here a letter from them regarding the July 14th agenda item on the Fresno County Transportation Improvement Act measure ballot placement.

Thank you,

Andy

July 13, 2026

The Honorable Fresno County Board of Supervisors
County of Fresno
2281 Tulare Street, Suite 301
Fresno, CA 93721

RE: Support for Placement of the Fresno County Transportation Improvement Act on the November 2026 Ballot

Dear Board of Supervisors:

Fresno County residents understand the importance of safe, reliable roads and transportation infrastructure because they experience its challenges every day. Whether commuting to work, taking children to school, operating a business, transporting agricultural products, or simply driving across town, people throughout our county rely on roads and transportation infrastructure that are increasingly strained by age, growth, and years of deferred investment.

Today, we respectfully request your vote to advance the Fresno County Transportation Improvement Act to the November 2026 ballot. The action before you is simply the next step in the democratic process - a process we all believe in as elected officials ourselves. This measure is before you today because voters participated in and followed our democratic process - they gathered the necessary signatures from registered voters to qualify this measure for the November ballot. That's democracy at work.

This is not the time to relitigate the merits of the measure. It is up to the voters to debate and decide the future of this measure at the ballot box. We must respect their voice and participation in the democratic process.

Voters have spoken. The Fresno County Transportation Improvement Act deserves to be placed on the November 2026 ballot.

Respectfully,

Mayor Vong Mouanoutoua
City of Clovis

Mayor Nathan Vosburg
City of Coalinga

Alfred Valdez
Mayor Freddy Valdez
City of Firebaugh

Mayor Jerry Dyer
City of Fresno

Mayor Rey León
City of Huron

Victor Martinez
Mayor Victor Martinez
City of Mendota

Gilbert Garcia

Mayor Gilbert Garcia
City of Orange Cove

Mayor Alma Beltran
City of Parlier

Mayor Adam Flores-Cornejo
City of San Joaquin

Maria Pacheco

Mayor Maria Pacheco
City of Kerman

Mayor Juan Mejia
City of Fowler

Item 7.1
7/14/2026 BOS Meeting

From: Nathan Vosburg <nvosburg@coalinga.com>
Sent: Tuesday, July 14, 2026 12:34 AM
To: District 1; District 2; District 3; District 4; District 5
Cc: Clerk/BOS; Victor@CITYOFMENDOTA.COM; almabeltran95@yahoo.com; vgaribay@leadershipcounsel.org; Robert R. Phipps
Subject: Let the Voters Decide: Place the Better Roads, Safe Streets Initiative on the Ballot

CAUTION!!! - EXTERNAL EMAIL - THINK BEFORE YOU CLICK

Report Suspicious

To the Fresno County Board of Supervisors:

Today, I respectfully ask you to support the democratic process and allow the Better Roads, Safe Streets Initiative, a proposed replacement for Measure C, to be placed on the ballot so the voters of Fresno County can decide its future.

This initiative represents years of work and is supported by a majority of the mayors throughout Fresno County—including the mayors of Fresno and Clovis—who represent many of the same residents you do. Thousands of Fresno County residents also participated in the democratic process by signing petitions to put this measure before the voters.

We can agree to disagree on the merits of the measure. But disagreement should not be used as a reason to prevent the public from voting on it.

The Board may have the legal authority to request additional information and reports, but the timing and consequences cannot be ignored. If requesting a report pushes the initiative beyond the ballot deadline, then it is no longer simply an informational tool—it becomes the mechanism that prevents voters from deciding.

And respectfully, if those requesting the report are already likely to oppose the initiative regardless of what the report says, then the delay begins to look less like a search for information and more like a procedural way to stop the measure from reaching the ballot.

Everyone should have the opportunity to make their case to the voters, whether in support of or opposition to this measure. But the initiative has met the requirements to move forward. Let the people vote, hear both sides, and make their own decision.

The Better Roads, Safe Streets Initiative would significantly increase funding for local roads, prioritize fixing the infrastructure we already have, support safer routes to schools, and provide greater accountability for how transportation dollars are spent.

You do not have to support this measure to support the public's right to vote on it.

Respect the process. Trust the voters. Put the measure on the ballot and let the people of Fresno County decide.

Respectfully,

Nathan Vosburg
Mayor of Coalinga

Coalinga City Council - District 3
Email : nvosburg@coalinga.com
Phone: 559-935-1533 ext. 403

CITY OF COALINGA
The Sunny Side of the Valley

Item 7.1
7/14/2026 BOS Meeting

From: District 5
Sent: Tuesday, July 14, 2026 8:15 AM
To: Clerk/BOS
Subject: FW: Fresno COG "Better Roads, Safe Streets" memo to County of Fresno Supervisors and staff
Attachments: 7-13-26 Better Roads memo to County.pdf

From: Robert R. Phipps <robert@fresnocog.org>
Sent: Monday, July 13, 2026 5:09 PM
To: Nerland, Paul <pnerland@fresnocountyca.gov>; District 5 <District5@fresnocountyca.gov>
Cc: Buck, Samantha <sbuck@fresnocountyca.gov>; District 1 <District1@fresnocountyca.gov>; Mendes, Buddy <bmendes@fresnocountyca.gov>; Bredefeld, Garry <gbredefeld@fresnocountyca.gov>; Chavez, Luis <lchavez@fresnocountyca.gov>; Victor Martinez <victor@cityofmendota.com>
Subject: Fresno COG "Better Roads, Safe Streets" memo to County of Fresno Supervisors and staff

CAUTION!!! - EXTERNAL EMAIL - THINK BEFORE YOU CLICK

Report Suspicious

Supervisor Magsig and Mr. Nerland:

I have crafted a memo explaining Fresno COG's interpretation and analysis of several key concerns expressed to our staff over the last several days, leading up to tomorrow's meeting. Hopefully, it speaks for itself, although I'm sure there will be many other questions or concerns that will need to be addressed.

Please reach out at your convenience if I can provide any more information or assistance whatsoever.

Thanks.

Robert R Phipps
Executive Director

Phone:
559-233-4148 ext. 210

Address:
2035 Tulare Street
Suite 201
Fresno, CA 93721

Websites:
www.fresnocog.org
www.planfresno.com
www.valleyrides.com

FRESNO
Council of Governments

FRESNO
Council of Governments

2035 Tulare St., Ste. 201 tel 559-233-4148
Fresno, California 93721 fax 559-233-9645
www.fresnocog.org

July 13, 2026

TO: COUNTY OF FRESNO BOARD OF SUPERVISORS
FROM: ROBERT PHIPPS, Executive Director
SUBJECT: Questions/clarifications, re: "Better Roads, Safe Streets" Initiative

Honorable Supervisors:

Fresno Council of Governments (Fresno COG) is aware of multiple concerns surrounding the "Better Roads, Safe Streets" citizens initiative to be considered at your Tues., July 14 regular meeting. This memo intends to address those concerns to the extent possible at this time.

Broadly speaking, from the perspective of Fresno COG staff who worked closely with all stakeholders and interested parties in negotiating the funding formulas and implementing guidelines, the "Better Roads, Safe Streets" initiative was a long process and exercise in balancing a desire for more local transportation revenue – and the flexibility to spend that revenue – with a desire for greater accountability on the part of local jurisdictions.

As presented, the initiative language fundamentally mirrors implementing guidelines approved by a 36-member steering committee at Fresno COG, as well as the Fresno COG Board itself. While no document is perfect, our staff believes the initiative – as written – includes the essential elements necessary to further refine and define those guidelines into a "strategic implementation plan" or SIP. That SIP is a considerably larger reference document that addresses any points of ambiguity.

This approach follows precedent from the two, prior Measure C sales tax initiatives that relied on similar SIP documents, developed only after the previous Measures were adopted, to clarify and strengthen language in the guidelines that formed the basis of the proposal for voters. While it is a public document, the SIP is primarily intended as a reference guide for jurisdiction planners, engineers and administrators to address voter intent, allowances, guardrails and restrictions in how local transportation funding is to be spent – with the ordinance itself serving as the inspiration and intent.

Nevertheless, Fresno COG understands and appreciates the angst that comes with deciding whether to approve an initiative for the ballot while relying on "guidelines" that will clearly require more refinement. In that vein, Fresno COG staff attempt here to address some of the most often-cited concerns, particularly for County of Fresno elected officials and their staff.

***No. 1**: Under the "Better Roads, Safer Streets" initiative, the County of Fresno will bring in less revenue than the current Measure C allocates.*

Answer: This concern is categorically unfounded even when accounting for the "regional" program that was reduced to allow for more funding to flow directly to the jurisdictions. As the table labeled Attachment A to this memo demonstrates, by virtue of its emphasis on local road repairs, the "Better Roads" initiative is anticipated to provide $454,821,383 more funding over its 30-year lifespan than the County would be expected to receive under the current Measure C's allocation formula.

While it is true that much of that money came from a reduction in anticipated major capital expenditures and improvements in what we call the "regional" program, even when accounting for "regional" funding the County received directly through that program, the difference is still a net positive of approximately $350 million over 30 years.

There are also concerns that much of that difference will not be realized until the last 10 years of the new initiative; however, this point is offset by the percentage – 65 vs. 34 – that the County and other jurisdictions will be receiving directly. So, while the current Measure C generated approximately $113 million for FY 25-26 (not including interest) – a number not expected to grow substantially through June 2027 – under the 65 vs. 34 percent formula, the Fresno region's 15 incorporated cities and the County can anticipate directly receiving $73.4 million vs. $38.4 million in Year One.

***No. 2:** Multiple restrictions in the guidelines make it difficult for the County of Fresno to spend the funding it will receive.*

Answer: In response to jurisdictions' collective refrain for flexibility, the steering committee's intent was to grant as much flexibility as practical to the cities and County staff, while also introducing greater transparency and accountability measures to ensure voter intent was addressed. Consequently, the initiative's "guidelines" are often far more specific than in previous Measure iterations.

The notion of flexibility is demonstrated most readily by the listing of eligible expenses beginning on Page 7 under Section B and continuing throughout Page 8. This list includes more expenses and eligibility than in the current Measure, which specifies particular suballocations for some of these programs or projects.

Also, many of the accountability measures, or restrictions, include caveats or exceptions under certain conditions. For example, Page 9, Section 3, specifies that "Each jurisdiction may spend no more than 5 percent of its allocation under the Existing Neighborhood Streets and Roads Repair and Maintenance Program on road expansion or capacity-increasing projects per year." It goes on to call for a minimum pavement condition index (PCI) of 65 or higher for each local street or road before the 5 percent for expansion efforts may be accessed.

However, while highly specific, the guidelines further explain (also Page 9) that Item No. 3 shall NOT be prohibited if projects "involve significant safety or mobility benefits, as supported by traffic studies that demonstrate reductions in fatalities and serious injuries of all road users." Section 4 includes the conditions eligible for capacity-increasing projects, including: 1) dedicated public transportation lanes, 2) dedicated and protected Class I or Class IV (bicycle) facilities or 3) "safety-motivated turn lanes or intersection improvements that protect all road users and that do not impede bicycle or pedestrian facilities."

These three examples are not intended to be read in a collective fashion requiring that all three be met before undertaking a project but rather at least one of the three. Fresno COG anticipates this ambiguity is one of the issues that will have to be addressed through the SIP document.

No. 3: *Determining whether a project element is "feasible"*

Answer: There are at least 15 references across 34 pages of the expression "where feasible" or "if feasible" regarding mandates across multiple sections. Concerns about this expression and its intent are best addressed under Section 4.60.130 Design and Implementation Elements beginning on Page 21.

Under Item G on Page 22, the proposed ordinance states: "Jurisdictions or agencies shall use best efforts to implement projects consistent with the intent of this Act. In the event a jurisdiction or agency determines that a proposed project or project requirement is not feasible, the jurisdiction or agency shall, following a duly noticed public hearing, formally declare and document the reasons for such infeasibility."

Another example occurs on Page 10, Section C, which states: "Every street or road constructed or reconstructed in whole or in part with revenue from the Fund pursuant to this subsection shall include sidewalks, paths, walkways or equivalent facilities, where feasible and according to the Adopted Transportation Plan in each jurisdiction."

These two citations support Fresno COG staff's understanding that the intent of "where feasible" clauses in the initiative pointed directly to jurisdictional staff to make that determination. This is another issue that will need to be further clarified and supported in the SIP.

In conclusion, this memo has attempted to address just a few of the specific concerns of which Fresno COG staff are aware from the Board of Supervisors itself, as well as County of Fresno personnel and others. While we anticipate multiple other points that will need to be answered and clarified through the SIP process, we look forward to addressing other issues regarding intent or otherwise that we are able.

Thank you for your time and consideration.

Sincerely,

Robert Phipps Executive Director
Fresno Council of Governments

Attachment A

	Current Measure C Roads + Active 2007-2027* (34.6%)	30-Year Future Measure C Roads + Active at Current % (34.6%)	30-Year Future Measure C Total Roads at 65%	Difference (34.6% vs. 65%)
Fresno County	$129,456,852	$630,279,319	$1,085,100,702	**$454,821,383**
Clovis	$48,838,161	$284,796,757	$542,286,175	**$257,489,418**
Coalinga	$9,200,714	$39,836,463	$81,331,354	**$41,494,891**
Firebaugh	$5,342,918	$20,866,793	$45,660,858	**$24,794,065**
Fowler	$4,878,118	$20,516,549	$44,154,635	**$23,638,086**
Fresno	$225,892,496	$1,193,955,179	$2,263,210,175	**$1,069,254,996**
Huron	$4,803,401	$17,144,635	$36,685,625	**$19,540,990**
Kerman	$8,223,929	$40,576,717	$83,491,043	**$42,914,326**
Kingsburg	$7,381,677	$31,595,236	$66,067,293	**$34,472,057**
Mendota	$6,936,550	$29,095,895	$61,376,751	**$32,280,856**
Orange Cove	$6,035,900	$24,240,637	$51,420,104	**$27,179,467**
Parlier	$8,010,725	$33,200,249	$69,658,882	**$36,458,633**
Reedley	$12,774,582	$60,832,333	$119,637,116	**$58,804,783**
San Joaquin	$3,796,142	$10,995,756	$27,182,214	**$16,186,458**
Sanger	$12,899,275	$66,276,046	$120,247,925	**$53,971,879**
Selma	$12,370,470	$55,711,596	$111,587,723	**$55,876,127**
Total	**$506,841,910**	**$2,559,920,160**	**$4,809,098,575**	**$2,249,178,415**

*Actual Revenues 2007-2024, projected revenue 2025-2027 based on average annual revenue by jurisdiction

Appendix I. California Elections Code, Section 9111

2025 California Code
Elections Code - ELEC
DIVISION 9 - MEASURES SUBMITTED TO THE VOTERS
CHAPTER 2 - County Elections
ARTICLE 1 - Initiative
Section 9111

(a) During the circulation of the petition or before taking either action described in subdivisions (a) and (b) of Section 9118, the board of supervisors may refer the proposed initiative measure to a county agency or agencies for a report on any or all of the following:

(1) Its fiscal impact.

(2) Its effect on the internal consistency of the county's general and specific plans, including the housing element, the consistency between planning and zoning, and the limitations on county actions under Section 65008 of the Government Code and Chapters 4.2 (commencing with Section 65913) and 4.3 (commencing with Section 65915) of Division 1 of Title 7 of the Government Code.

(3) Its effect on the use of land, the impact on the availability and location of housing, and the ability of the county to meet its regional housing needs.

(4) Its impact on funding for infrastructure of all types, including, but not limited to, transportation, schools, parks, and open space. The report may also discuss whether the measure would be likely to result in increased infrastructure costs or savings, including the costs of infrastructure maintenance, to current residents and businesses.

(5) Its impact on the community's ability to attract and retain business and employment.

(6) Its impact on the uses of vacant parcels of land.

(7) Its impact on agricultural lands, open space, traffic congestion, existing business districts, and developed areas designated for revitalization.

(8) Any other matters the board of supervisors requests to be in the report.

(b) The report shall be presented to the board of supervisors within the time prescribed by the board of supervisors, but no later than 30 days after the county elections official certifies to the board of supervisors the sufficiency of the petition.

(Amended by Stats. 2018, Ch. 92, Sec. 62. (SB 1289) Effective January 1, 2019.)

Appendix J. Questions & Answers

The following section includes questions asked by the Board of Supervisors at the July 14, 2026 Board Meeting. While the questions were largely directed to members of the public, PWP has taken the opportunity to reply from the County's perspective.

Questions were taken from reviewing the recording on YouTube and a closed captioning transcript provided in Appendix K was processed using AI tools to remove timestamps. All content was reviewed thoroughly and question responses were provided by staff. While an extensive list of questions was generated, staff cannot guarantee that all questions were captured below.

Garry Bredefeld

1. ***What are the conditions that restrict the County of Fresno as a jurisdiction, specifically?***
   The Initiative includes the following restrictions specifically for the County as a jurisdiction on Initiative funds:
   - *Disadvantaged Unincorporated Community Set-Aside*
   - *Class I and Class IV bicycle facilities*
   - *SRTS projects*

2. ***Will it keep its promises?***
   This was a rhetorical question in the Supervisor's remarks regarding a report.

3. ***What will it actually cost the taxpayers for the 3 decades?***
   It is estimated that the Initiative will cost/generate $5.584 billion over the 30 years through the proposed sales tax.

4. ***What will it do for regional transportation and leveraging state and federal money?***
   The Initiative provides 4% of the total allocation for regional projects selected on a competitive basis. Based on the calculations provided in Section 1, approximately $223 million is available over the lifetime of the Initiative. The State and other agencies may submit applications in addition to the 15 cities and County of Fresno.

   This regional funding is further restricted only to projects that benefit transit, bikes, or pedestrians. Adding capacity is precluded. The Regional need is more than $4.5 billion.

   The first Measure C leveraged about $9 for every Measure C $1. The second Measure C leveraged about $4 per $1. Much of this decline was due to a

reduction in regional spending from 75% to 30%. Reducing regional funding to 4% will reduce both the ratio and amount of matching funds available. It is impossible to accurately predict the loss of matching fund potential but is likely not to exceed a few hundred million.

5. ***Will the measure address streets and roads maintenance?***
   In short, yes. The Initiative's stated purpose is to provide funding for road maintenance. However, obligations to improve roads through Complete Streets, Class I and IV bike lanes, Safe Routes to Schools decreases that overall effectiveness. Additionally, the County's share of funding for maintenance through the NSR program is only $6 million more per year than what Measure C provided ($16 million vs. $10 million). The discussion of the Initiative and those impacts are discussed within this report.

6. ***How does the measure's funding and oversight work, what representation or control does the County have in the process, and where can the County's discretion over its allocation be overruled?***
   The lead agency for administration and oversight of the Initiative would be FCOG, which is overseen by a Policy Board consisting of the Mayors of each of the incorporated cities, and the Chairman of the County Board of Supervisors, or their designated alternates. FCOG weighs each member agency's voting power by population proportion, and utilizes a double-weighted voting system that requires any action to obtain votes of agencies representing more than 40% of the population to be in favor of an action, as well as a majority of members (nine of the sixteen members). The Initiative would also maintain a Citizens Oversight Committee for oversight reporting and review of agency expenditures.

   In contrast, the existing measure is led by FCTA, which is overseen by a board of nine members, consisting of two members of the public (one rural and one urban), two members from the County Board of Supervisors, two members from the City of Fresno, one member from the City of Clovis, and two members from the other cities in the county (one from the westside and one from the eastside). The FCTA Board operates on a simple majority vote principle, without any weighting for jurisdictional proportionality.

   In practice for the County, this will reduce agency leadership control to approximately 15.5% weighted, from the present weighted 22.2% weighted control, and would require more cooperative engagement with other board

members in order to facilitate County desired policy and cooperative project outcomes.

The Initiative and Measure C have similar oversight structure, but the Initiative is much more explicit on how the money is spent. Both have a Citizen Oversight Committee and Policy Board. However, the County's Policy Board representation is dramatically smaller as mentioned above. The Initiative itself prescribes specific funding programs, rules regarding where the money may be spent, and metrics for evaluation of performance. Measure C established similar requirements after it was passed by the voters when the Strategic Implementation Plan was written.

7. ***How might the plan impact the $1.5B deferred maintenance for the County? $1.5B deferred maintenance – what does the fiscal impact look like for our roads and streets?***

   Based upon the analysis in Section 1, Fresno County could receive $806 million within the Neighborhood Roads and Streets Program over the lifetime of the Initiative. As the response to Question 5 mentions, the potential revenue increase to Fresno County's annual Road Fund budget is approximately 5.5%. While this Initiative will increase funding for maintenance, it does not provide the significant revenue necessary to offset the past deferred maintenance.

   The NCE report indicates that at a funding level of $112.5 million per year, the county can maintain their current average PCI of 65/66. Under the Initiative, total County funding for road repairs should increase from its current $110 million to $116 million which would indicate that the existing PCI can be maintained. Under this scenario, NCI predicted the deferred maintenance would be about $1.3 billion, a slight decrease from the current $1.5 billion.

8. ***Are there vulnerabilities for corruption?***

   Vulnerabilities for corruption are possible in virtually every funding model. Increased controls and tracking mechanisms, and more explicit intent spelled out within the legal framework, would tend to increase watchfulness and decrease vulnerabilities for corruption. In comparison to the current existing Measure C, it appears that the controls and oversight contained in the Initiative are at least on par, and the use-intent seems explicit.

9. ***Impacts on streets and road maintenance (non-fiscal)***

   The impacts of the Initiative on street and road maintenance will largely depend on the classification, usage, and proximity to prioritized communities under the Initiative. While it's important to note that the majority of the Department's Roads' funding comes from sources other than the local tax, each of those funding sources comes with significant limitations and restrictions. Directing prioritization of funding into a relatively small portion of roads, towards a "worst first" prioritization of roads where repairs are significantly more expensive and neglecting traffic rates, and restricting the primary local source of funds from being used for capacity increasing roads over a thirty year period is very likely to result in long term degradation and congestion along the major thoroughfares and connectors that our communities rely upon, even while streets in neighborhoods prioritized by this Initiative will be significantly improved. Ultimately, the only way to meet the goals of this Intiative *and* solve all the deferred maintenance and transportation needs in the County would be to increase available transportation allocation by something approaching an order of magnitude over what the Initiative would provide.

10. ***Study to measure's fiscal impact***
    - ***effect on internal consistency of the county's general plan.***
    - ***consistency between planning and zoning and its effect on land use and the availability and location of houses***
    - ***impact on infrastructure funding, including whether if the Initiative is likely to increase infrastructure cost or savings and maintenance to residence and businesses***
    - ***impact on retaining and attracting county businesses and employment***
    - ***impact on uses of vacant parcels of land, agricultural land, open space, traffic congestion, existing business districts, and developed areas designated for revitalization***

      Why would we not want to have that information?

    Assumed rhetorical.

Luis Chavez

11. ***What are consequences of not passing?***

    Measure C will expire without a new funding source to replace it. The Road Fund revenues would be reduced by between $10-13 million. See Question 14 for a continuation of this discussion.

12. ***How much in general fund?***

    Refer to question 20 for a discussion of that topic.

13. ***How much [is generated for the County as a jurisdiction] from the current measure?***

    The annual direct and indirect Measure C impacts on the County's Roads Fund are estimated at approximately $10 million annually, as of 2026-27. The County's estimated apportionment from Measure C for FY 2026-27 equates to $9,433,475, based on the total estimated $113,956,920 annual revenues for the Regional measure. Additionally, Measure C moneys are allocated to local transit agencies – particularly Fresno County Rural Transit Agency, and to a lesser extent Clovis Transit and Fresno Area Express – which results in reduced Transportation Development Act funded obligations to those other agencies from the County's allocation. According to staff estimates, this has allowed the County to allocate an additional estimated $1-2 million annual state allocations into road maintenance, which will otherwise be required passthrough pursuant to the requirements of the funding source, bringing the overall impact to the approximate $11 million annually. Refer to Questions 5 & 7 for additional information.

14. ***What contingency do we have if we have no [future dedicated] funds?***

    Without the allocation of other funds to transportation infrastructure, contingencies for expiration of measure/initiative funding resources might include some combination of the following:

    - Delay or eliminate some construction contracts for maintenance projects;
    - Reduced material and supply allocations for road maintenance by crews, which might result in smaller force-account projects;
    - Reduced leverage capacity for future grant-funded improvements;
    - Layoffs, as a last resort

    All of these contingencies will reduce the amount of transportation infrastructure the County will be able to maintain and construct from current levels with Measure C Funding. With no replacement income to the Measure C funding, the level of service the Public Works and Planning Department is able to provide will be scaled down.

15. ***In Public Works and Planning, how many layoffs will there be? What positions will they be?***

    The Supervisor answered his own question stating 90 jobs would be at risk. That number might be possible if the budget decrease were mitigated using only

layoffs. The County Human Resources Department would have to speak to specific procedures for layoffs. As mentioned above, the Department of Public Works & Planning would use a combined plan including decreases in contracting, purchasing, and match funding grant programs before resorting to layoffs.

Brian Pacheco

16. **How *much money will not be made available/possible for regional funding if this measure does not pass?***
    The analysis provided in Section 1 of this report states that the Regional Streets portion of the Initiative could provide $223 million over its lifetime. Also refer to Question 4.

Ernest "Buddy" Mendes

17. ***What is missing in the study provided by activists? [I] mistrust the numbers on 4% gain - the growth of economy assumptions are probably rosy - what is the amount received really going to be?***
    Section 1 of this report provides analysis of both the percentage gain and review of the outside report. In short, the amount gain is not certain and could possibly range from 3-4%. At the quoted 3% rate, the Initiative would produce $5.584 billion.

18. ***What if the County must return funds?***
    If an audit finding is made that results in a requirement to reimburse improperly expended funds, the Initiative mechanism is to withhold future funding until recompense has been satisfied. It should be noted that the County could be subject to funding withholds or reimbursement requirements with virtually every one of the County's Road Fund sources, from gas taxes to federal grant funds, if sources are misapplied or misused. The Department is already cognizant of such requirements and regularly handles projects and funds in a manner which is designed to mitigate potential serious findings.

19. ***What is required for complete streets? Some houses in the County are built low elevation relative to the roads. What are the implications for stormwater basins, for example?***
    The Initiative has a number of sections requiring Complete Streets elements to be integrated onto existing roads. Those elements may include sidewalks and travel lanes for bikes, transit, trucks, and passenger vehicles. Possible design challenges are drainage, existing landscaping and improvements, public and district utilities, and inadequate right of way. Those challenges may make the improvements infeasible due to excessive costs or the lack of available space to

provide them. As the Supervisor suggests, street drainage to accommodate curb and gutter may be complicated by properties at a lower elevation than the adjacent roadways. It is unclear if the Initiative would fund storm water basins.

20. ***How much of the general fund is currently used on roads? Where does our current money come from [for transportation infrastructure]? What was spent last year?***

Since 2017, the County has allocated an annual $212,959 to Roads from General Fund resources. This is the minimum Maintenance of Effort allocation required for the County to access state gas tax allocations under the Road Repair & Accountability Act of 2017 (SB-1 – Road Maintenance and Rehabilitation Account). That allocation covers approximately 0.2% of the County's annual Road Fund budget, as expenditures reached $101,716,080 for FY 2025-26.

The vast majority of funding has come from dedicated gas taxes (California's Highway User Tax Account and Road Maintenance and Rehabilitation Account); the dedicated local sales tax that's due to expire at the end of FY 2026-27 (Measure C); state sales taxes (Transportation Development Act: including both Local Transportation Fund and State Transit Assistance allocations); from services to other agencies (reimbursements for work completed); and from leveraging dedicated sources to access federal, state and regional grant funds for an approximate 4:1 return ratio on those leveraged sources (through programs such as Highway Safety Improvement Program, Congestion Mitigation and Air Quality Improvement Program, Surface Transportation Block Grant, Active Transportation Program, and Highway Bridge Program).

21. ***How does this affect funding?***

If adopted, the Initiative would be expected to increase County funding allocations from the local sales tax by approximately $6.5-7 million annually (using 2027-28 dollars) over the current measure, for a roughly $16 million starting year County allocation. That works out to approximately 70% more annual appropriation, over the current measure.

However, the addition of complete street element considerations into maintenance projects and improvements utilizing these moneys would result in substantially higher costs per mile, which would complicate projects and mitigate much of the funding increase for County road improvements, except where feasibility issues limit their applicability. Road maintenance projects cost approximately $67,000/mile, $670,000/mile, or $2.2 million/mile depending on

whether the treatment needed is a seal, overlay or full reconstruction without those elements. Approximately $3.7 million in additional costs per mile may be needed to add these elements, as more right of way and protection elements have to be incorporated into the project, and additional design efforts are required.

Additionally, the reduction in the regional program will lead to fewer large projects in comparison to the expiring measure, which are difficult to aggregate to an annualized basis. The Golden State Boulevard (GSB) project, for instance, accounted for roughly $35 million in revenues spread over several years, but it had been over a decade since the County last led a major regional project. GSB also provided much needed maintenance in addition to the trail expansion and intersection upgrades. Regional projects address maintenance along with increases in capacity.

There would also be connected budgetary impacts, such as lower required Transportation Development Act funded pass throughs to local transit agencies (Fresno County Rural Transit Agency, for instance), who would be receiving a higher annual allocation from the Initiative and therefore have a lower unmet transit need claim. Staff estimates that TDA passthrough savings could allow an extra $0.5-1 million to be used for County roads, annually.

Nathan Magsig

22. ***A stated objective of the Initiative is to reduce traffic while opposing expanding capacity – how would traffic congestion be impacted by this measure?***

The Initiative attempts to reduce congestion by investing in public transit and other modes of transportation. Its goal is to reduce Vehicle Miles Traveled (VMT). However, it appears that the Initiative provides less funding for capacity-increasing road projects compared to future traffic needs driven by population growth.

23. ***What if funds are used for capacity increasing projects?***

If the funds are used for capacity increasing projects that are safety-related intersection improvements, turning lanes, addition of transit lanes, or class I or IV bike lanes, the objectives of the measure would be implemented.

Project funds for regional projects are on a reimbursement basis, which means a non-eligible project would not be approved or funded.

If the allocation by the County were used for capacity increasing projects that were not in compliance, the annual independent audit submitted to the Council of Governments would reveal the use and COG may find the agency out of compliance and withhold program funds until cured. The remedy listed is withholding of future funding allocations until recompense has been satisfied.

24. ***What happens if there are misappropriated funds or if someone votes for a project that is then ruled out of bounds? Will they face criminal prosecution?***
The Initiative does not define any specific actions that would be subject to criminal prosecution. It is possible that this is an implied reference to existing state law Penal Code 424, et al., regarding misuse of public funds. It's important to note that neither FCOG nor the COC have prosecutorial powers, that a prosecutor would need to vet any allegations made before charges would be filed, and that it is unlikely that one would bring such a charge absent malicious intent or gross negligence. The immediate program remedies stated in the Initiative are reimbursement, correction, and withholding of funds. Legal opinions are outside the scope of this report.

25. ***What is the full impact of the prescriptive nature of the Initiative as it relates to how the County must expend its allocation?***
Section 4 of this report discusses various points of the Initiative and their fiscal impacts.

26. ***How does the concept of neighborhood in the act interact with definitions of urban, rural, and suburban areas?***
The Initiative refers to neighborhoods in regards to their connection to roads and transportation services. There are several references to rural in the Initiative, but rural areas are mostly included with urban areas to be all inclusive aside from the mention of rural trails. Most of the complete street measures better fit within an urban or suburban area. There are no provisions within the Initiative to address the differences between needs in a rural and urban area.

27. ***All streets and roads in whole or in part with revenue from the fund shall include complete street features to create complete street features for neighborhoods. Who determines definition of "where feasible"?***
The Initiative itself has a dozen references to potential feasibility concerns throughout. The last set, found in 4.60.130(G) Design and Implementation Elements, includes the only mechanisms for infeasibility findings, and requires

"Jurisdictions or agencies shall use best efforts to implement projects consistent with the intent of this Act. In the event a jurisdiction or agency determines that a proposed project or project requirement is not feasible, the jurisdiction or agency shall, following a duly noticed public hearing, formally declare and document the reasons for such infeasibility." This guidance appears to be the sole mechanism, applicable to the entirety of "this Act" (the Initiative), and does not appear to be contradicted or superseded elsewhere, or include any mechanism designed specifically for overruling a finding made in compliance with that section.

28. ***How can the complete street requirement be fixed so a routine road-overlay project does not expose the county to litigation for failing to build additional infrastructure?***

At this point the Initiative cannot be fixed. It can only proceed to the ballot as written. The current language can be clarified through the development of the Strategic Implementation Plan by defining which project types trigger added infrastructure, expressly exempting routine maintenance treatments that do not change roadway geometry, establishing objective urban and rural feasibility criteria, allowing corridor-level or programmatic findings, identifying a licensed engineer's role, and creating a binding review and appeal process.

The Ordinance already encourages maintenance and repair to include Complete Streets elements that do not require additional pavement width, but this encouragement does not clearly override the more specific Class I/Class IV language. Fresno COG procedures may clarify administration, but County Counsel must determine whether a safe harbor can be created through guidelines or requires amendment of the Ordinance.

29. ***Millerton road is dangerous - > as I read document, no regional projects. why is county punished?***

Regional Streets are funded with 4% of the Initiative's revenues. It is awarded on a competitive basis. Neighborhood Streets and Roads funds are not eligible for road expansion or capacity increasing projects unless the PCI score of every road increases above 65 or the project includes transportation lanes, Class I or IV Bike lanes, or turn lanes necessary to increase safety.

30. ***Why can't we use money for things like that?***

See previous response.

31. ***Why exclude recreational trails when county trails - such as those near Shaver Lake and Highway 168 - also move pedestrians and cyclists and improve roadway safety?***
    The Initiative states that trails designed strictly for recreational purposes are ineligible. It also treats Class I shared-use paths, including certain canal-bank facilities, as eligible and allows maintenance of bicycle and pedestrian facilities, adjacent trailheads, or parks. Therefore, a trail near Shaver Lake or Highway 168 could potentially qualify if it has a documented transportation, safety, school, community-connectivity, or active-transportation function rather than being strictly recreational. The Initiative does not define the line between recreational and mixed transportation/recreation use, so disputes are possible.

    It should be noted that this restriction will likely preclude use of these funds to maintain recreational trails already built on the County.

32. ***Does "every road" include dirt and private roads?***
    No. Only maintained, paved milage is included in FCOG's Pavement Management Program or may be utilized for PCI performance metrics. Milage outside of the agency's legal responsibility cannot be tied to the agency or used against it.

33. ***Will this apply only to County-maintained roads?***
    This would only apply to projects funded with Initiative-derived funds on County-maintained roads.

34. ***What would it cost to bring the County's PCI to 65?***
    The average County (jurisdictional) PCI was at 66 for the 3,388.7 miles of maintained public roadway, according to the 11/7/2025 FCOG Pavement Condition Survey. The County's current PCI is 65. Maintaining the 3388.7 miles of County roads at an average PCI of 65 would take approximately $112.5 million per year (as per NCE report).

    Bringing all county road segments to 65 or higher would take approximately $7 billion.

35. **Can the proponents definitively assure the County that the pavement-condition requirement applies only to County-maintained roads?**
    The requirement is not expressly limited to County-maintained roads; it says every local street and road within the jurisdiction. Other parts of the Initiative refer to maintained public roadway miles, which supports a narrower interpretation, but

the difference in wording prevents a definitive assurance. A proponent statement would not by itself amend the enacted text. While Initiative proponents claim it only applies to County maintained roads, that isn't clear from the Initiative itself.

36. ***Will Regional Transportation Mitigation Fees [levied on new development] increase because of this act?***

State law requires that any mitigation fee like the Regional Transportation Mitigation Fee (RTMF) must be limited to addressing the impacts of growth on the transportation system. RTMF funds cannot be utilized to address existing deficiencies. A nexus study is preformed every five years to determine growth's impact on transportation facilities. That fee amount may increase, or decrease, depending on planned growth and potential impacts. As a result, the RTMF cannot be increased as a direct result of this act. The RTMF cannot be increased simply to make up for a shortage of funds caused by the minimal 4% allocation of the Initiative to regional connectivity.

An sample of current RTMF fees is provided in the table below.

RTMF Fee Structure

Rates below are effective from March 1, 2020 and thereafter.

Land Use Category	Regional Transportation Mitigation Fee
Residential Development Categories	
Single-Family Dwelling (market rate)	Dwelling unit @ $2,118
Single-Family Dwelling (affordable)	Dwelling unit @ $1,059
Multi-Family Dwelling (market rate)	Dwelling units @ $1,642
Multi-Family Dwelling (affordable)	Dwelling units @ $821
Accredited Public Education	Exempt from RTMF
Non-Residential Development Categories	
Government	Exempt from RTMF
Commercial/Retail	Square feet @ $1.85
Commercial/Office/Service	Square feet @ $1.18
Light Industrial	Square feet @ $0.30
Heavy Industrial	Square feet @ $0.18
Other Non-Residential	Square feet @ $0.80
Processing Fee	$25 per application

Source: Regional Transportation Mitigation Fee - Fresno Council of Governments

37. ***Can we do non bus/bike/safety turning lane road-capacity increasing projects, such as a road that is 2 lanes, moves to 1 lane, then returns to 2 lanes?***
    Not with the Neighborhood Streets and Roads maintenance funds until the PCI criteria requirements are met.

38. ***Regarding the 4.60.070(B)(4) exception for capacity to dedicated public transportation lanes, dedicated Class I or Class IV facilities, or safety-motivated turn lanes or intersection improvements, do we have to do all three? Might we have to do all three?***
    As represented by the authors of the Initiative in open session at the 7/14 Board of Supervisors meeting at which the Initiative was certified and this report was requested by the Board, the capacity prohibition exemption is intended to be contingent on any – not all – of the three exemptions.

39. ***Regarding prioritization of disadvantaged and low PCI roads over more travelled, can this funding be used on the major road? Example: Roads with 100-200 daily trips per day vs 5,000 trips per day.***
    In general, the prioritization of most of the funds with this Initiative prioritizes lowest PCI and disadvantaged communities, along with safety, transit, and lowering GHG emissions. Four percent of the annual revenue is allocated to regional street, road and highway improvement projects across the County's jurisdictions which are *not* subject to the prioritization of low PCI or DUC locations, specifically prioritizing projects that leverage matching state and federal funding, provide accommodation of bike travel via a striped four-foot shoulder. (4.60.090(B)(5))

40. ***How do the active transportation clauses mean allotment can actually be spent (illustrative example, 14mil to construct a bridge, with over 400 bridges in a district; do we have to rebuild bridges to include bike lanes?)***
    The Initiative does not provide sufficient detail to make this determination. The active transportation clauses do not require the rebuilding of bridges to include bike lanes where doing so would not be feasible as determined by a licensed engineer. The exception listed is when a road is being reconstructed using these funds that also includes widening. (4.60.070(C)(4))

41. ***What recourse / options for overturning are there if the County makes a non-feasible declaration?***

There appear to be no direct recourse/options included in the Initiative for overturning if an agency makes a compliant non-feasible declaration. There is, however, a possibility that an audit compliance finding might be made if it's determined that an agency is found to be out of compliance with spending within "the requirements of this Act" (4.60.150(A)). Such a finding could result in withholding of program funds until appropriate reimbursements are made and/or compliance is achieved.

While the possibility that an adversarial audit with a withholding action does exist, the likelihood that such a finding would be made as a result of a feasibility determination is assessed to be low, for the following reasons: such a finding would result in litigation, which would almost certainly require funding (including associated damages) be returned to the subject agency, if it could be determined that such a finding were made inappropriately; and most of the other incorporated cities that would be a party to the Initiative are grouped with the County for purposes of performance metrics and could therefore be found non-compliant via cascade failure should the County's funding be unreasonably withheld (which would prevent completion of necessary projects).

42. ***How are the oversight bodies formed (who picks the members and what impact does the County have on the oversight bodies)?***

The Initiative requires in 4.60.170 that an eleven member Citizens Oversight Committee (COC) be formed within six months of passage (Section A), and grants the FCOG Policy Board the role of selectors (Section E) subject to eligibility and geographic residency requirements contained within Sections C & D. The County (entity's) impact on selection would be limited to the 15.5% weighted power on the FCOG Policy Board. The FCOG Policy Board selects the members of the COC. The geographic residency requirements require that six of the members be selected 'at large,' that all five Fresno County supervisorial districts be represented within that group, and that at least three of those members reside outside of the Fresno-Clovis Metropolitan Area, and three reside within it. The remaining five members of the COC are required to represent "the diversity of the county region, providing a balance of viewpoints." The Initiative appears to be relatively silent on the intent of that ambiguous phrasing.

43. ***Can money from this be used to build affordable housing?***

The Initiative does not provide funding for the direct construction of "affordable" dwelling units. However, the funds may be used "to support transportation and

other costs" (4.60.070(D)(1)) to enable housing, which could range in interpretation from other transportation-related costs to any "other" cost, exclusive of transportation costs or inclusive, expanding on the meaning of transportation costs to mean other transportation-related costs. The interpretation that constructing homes would count as "and other costs" would directly contradict the initial declaration that all the funding is to go "directly to Fresno County transportation priorities and nothing else" as stated in Section 2, Part L of the Initiative. Nevertheless, it should be clarified in implementation guidance documentation are adopted as to whether and to what extent transportation-related "other costs" might include project components that might benefit or enable housing in mixed-use zone districts, such as wastewater processing for gutter run-off or laying conduit for future projects to ensure there is no confusion.

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1. A jurisdiction that receives funds under this section may expend the funds to support transportation and other costs to enable housing in mixed-use zone districts within existing neighborhoods. The jurisdiction shall ensure the developments are mixed income and include deed-restricted units affordable to lower-income households.

2. For the purpose of this subsection D, lower-income means 80 percent or less of Area Median Income (AMI), including low-income (50 to 80 percent of AMI), very low-income (30 to 50 percent of AMI), and extremely low-income (below 30 percent of AMI).

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44. *Can the money be used for parks, trees, and anything related to reducing greenhouse gas emissions?*

The Initiative specifies that "Funding from this Act is guaranteed to go directly to Fresno County transportation priorities and nothing else" (Section 2, Part L). This appears to preclude spending on parks. It *does* point towards allowable landscaping management and tree canopy installation as it specifically relates to adjoining transportation elements. The Initiative mentions landscaping, tree-care, and beautification as components that may be included in programmatic transportation improvements such as traffic calming, road maintenance, transit-oriented development projects, and for consideration for establishment along transportation routes (specifically "along pedestrian walkways, bicycle facilities, local and major roads, highways, and trails in the public right-of-way", per

4.60.130 parts B.1 and C). Further, reducing greenhouse gas emissions is one of the Initiative's stated goals. As such, any of the competitive programs could fund projects determined to reduce greenhouse gas.

45. ***Could it be understood that under H. Design and Implementation that "funds may be used in whole or in part to be used …" all the funds or a portion of the funds can be used as matching funds for eligible state and federal programs in order to increase benefits to residents of the county region… could [the County] just not use any of the dollars at all for roads – use the money for public health, department of social services to provide benefits to the public?***
    No. Transportation funds raised by the Initiative are stated to be for "transportation investments and programs to fix and maintain roads, improve neighborhood infrastructure, enhance public transit and rideshare options, and support active transportation." 4.60.030 part (E)

46. ***Identify the authors for determination of intent? Who were the stakeholders? COG? Others?***
    In the Board meeting, Robert Phipps and Veronica Garibay both stated they were coauthors. Other authors have not been identified in published materials, though the Initiative's Proponents have been identified on the promotion website at betterroadssafestreets.com.

47. ***Will we need to install conduit whenever we do an overlay project? (4.60.140(F))***
    No, for two primary reasons. Firstly, there is typically minimal excavation associated with overlay and other preventative maintenance projects, usually limited to sectional surface regrading – certainly insufficient to install conduit. The vast majority of surfaced asphalt remains in place for these treatments and a conduit install would require substantial asphalt disturbance and reconstruction efforts that otherwise wouldn't be called for. Secondly, the section requires that we "accommodate the installation" of conduit to support community needs, even when "dig once" is triggered. It doesn't require installation or directly facilitating the installation of conduit. Additionally, the Department already employs a "dig once" principle including coordination with various utilities for non-emergency projects that include excavation in order to prevent disturbing the overall condition of the road.

48. ***Are there other concerns with how this measure is structured?***
    Implementation concerns are addressed in Section F.

49. ***Are there any concerns for Public Works and Planning with how this measure is structured? Will this be workable? What are your thoughts and observations?***
    The Department has compiled a listing of areas where implementation guidance or amendment clarifications would be helpful, and included suggestions for how ambiguities might be addressed, included in Section F.

Additional (From Discussion)

50. ***What is it going to cost to bring the County's PCI to 65 PCI?***
    See response to Question 34.

51. ***Whose general plan would be used? Example: SEDA & areas of influence***
    This is not specifically addressed within the Initiative. It is assumed that each agency would use their general plan for transportation infrastructure within the jurisdictional boundaries set through Fresno LAFCO.

52. ***When there are new growth areas under the sphere of influence of the cities, but the roads are within the County of Fresno, does this measure require us to build complete streets? When a school district adds new schools in County unincorporated areas, what responsibilities does the County have for providing Safe Routes to School (SRTS)?***
    California Complete Streets Act of 2008 requires counties and cities to build complete streets. The Initiative provides funding which may be used to fulfill this requirement if complete street elements are feasible, as in other neighborhoods.

    The obligation of the Initiative will be to coordinate SRTS efforts with school districts within jurisdictional boundaries. The Initiative does not specify the exact responsibilities in terms of size or complexity of the projects, which means that exact projects for each district would be determined through coordination with each district. However, as new schools are constructed, school districts may request prioritization of projects near the new-school locations, contingent on the available facilities and perceived needs associated with the new school as a part of ongoing coordination requirements.

53. ***If the County builds a safe route to school and a city annexes the infrastructure, who gets the credit, the City or the County?***
    This question is applicable only to SRTSs annexed specifically by the cities of Clovis or Fresno. Dual "credit" for projects with other incorporated cities is

already in place in the Initiative, through grouped jurisdictional metrics. The agency responsible for completing the project would claim credit for any SRTS projects constructed under their purview during the reporting year, and there is no mechanism within the Initiative to reassign credit for projects, post completion, between jurisdictional groups. (4.60.070(G)(3)(c)(i)&(ii)).

54. *How much money will not be made available/possible for regional funding if this measure passes?*

If this Initiative passes, the County and region will experience a significant decrease in the amount of funding that is set aside for regional infrastructure, in comparison to the current level of the expiring Measure C (from 36% of Measure C allocations, to 4% under this Initiative). Funds to maintain regional transportation infrastructure would largely – though perhaps not completely given the set-asides and restrictions laid upon the Initiative funds – come from other sources, such as RMRA, HUTA, etc. However, most of those other sources also restrict capacity expansion activities. Please see Question 4 for additional information.

55. *What [regional project] money, if any, could become available to the County through this measure?*

The County and all other regional transportation agencies would be eligible for the competitive Regional Streets Program funding, which is estimated to receive a first-year allocation of approximately $4.69 million, and to be allocated approximately $223 million over the lifespan of the Initiative.

56. *What is the impact on jobs, employment, and business activity if the initiative is approved? If it fails?*

Regional impacts are estimated in Section 5 of the report.

If the Initiative were to be approved, the Department would work toward the goals of the Initiative under the constraints provided within the Initiative and the adjoining implementation guidance that FCOG's Policy Board adopts to assure that the goals and requirements are adhered to. Staff expect that would require increased levels of coordination with incorporated cities (especially those other than Fresno and Clovis), and the various school districts within our jurisdiction, increased public meetings, increased time and efforts to implement or document infeasibility for projects, and increased costs of projects overall. The funding from the Initiative would be applied on the proposed "worst first" and DUC set-aside required prioritization, which would require gas-tax resources to be shifted to more industry-typical preventative treatment applications and regional road focuses.

The effects of the Initiative not passing are addressed in responses to Questions 11, 12, 14, 15, and 20 above.

Appendix K. Board Meeting Transcript

Fresno County Board of Supervisors

Meeting Transcript — July 14, 2026

The following Section includes a transcript from YouTube livestream captions of the Fresno County Board of Supervisors meeting relating to Board Agenda Item. Content was originally generated by Artificial Intelligence tools, and has been reviewed by staff, attributed to identified speakers, and corrected where errors were found. While exhaustive efforts were employed, staff cannot guarantee that all content was captured below.

Timestamps have been removed except for approximate time markers inserted roughly every 15 minutes.

1 hour, 27 minutes

Bernice Seidel: We now return to your regular agenda. under county clerk register of voters received the certified statement of vote for the June 2nd 2026 consolidated statewide primary election.

Gary Bredefeld: Mr. Kus

James Kus: Good morning, Chairman Bredefeld and supervisors. I'm James Kus, your Fresno County Clerk, registrar voters, and I'm here today to report on the successful certification of the June 2nd, 2026 consolidated statewide primary election. On April 7th of this year, the department came to this board for permission to consolidate the June 2nd election, as we do with all elections where a local jurisdiction wishes to receive consolidation services in conjunction with a statewide election. On June 26th of 2026, we provided official certification of the June 2nd election results to the California Secretary of State. Those certified results are attached to this board item. We respectfully request that the board declares the results of this election for those contests and measures under the board's jurisdiction per California election code section 15,400. This was a rather remarkable primary election. Over 184,000 voters cast ballots in Fresno County, a turnout of 35%. This percentage may not sound high, but was actually the highest turnout in a gubernatorial primary since 1998. An excellent start for the four-year cycle. We have had over 60 candidates for governor. Not the highest ever, but when combined with modern legibility rules, the governor's contest did require the complete front of a ballot card. Combined with seven contested judicial races and multiple other statewide races with uh double digit candidates, the overgorged governor's race led to Fresno County having its first two card ballot ever. The two-card ballot was a major concern for the department. When I was last before this board, we spoke of those concerns and efforts we're making to offset potential issues. Some of those concerns ended up being overblown. Others were even

more impactful. Fewer than 100 voters returned multiple ballots in one envelope, but the effort to make sure this didn't occur doubled the time it took to extract ballot cards from return envelopes.

Fewer than 5,000 voters returned only one card and only a handful asked to return the other card later. Not allowed, by the way. But this meant that we received over 365,000 total ballot cards to tabulate. Fresno County has received that many ballot cards only once before, and we had to scramble to adjust resources to ensure timely tabulation. This also impacted our in-person voting locations where the lower turnout compared to the last two November elections meant fewer and shorter check-in lines, but the longer ballot and tabulation times meant that lines would form at the tabulator in the vote center itself. We can safely assume that Fresno County will have a two card ballot in the November general election and we will need to take forward the lessons learned from this primary election to help ensure a smooth pro process for all voters.

1 hour, 30 minutes

29 contests from our June ballot move forward to November. 14 state propositions will be on the November ballot as well as multiple local measures and 254 local contests. If turnout trends just follow historic patterns, we could easily see over 500,000 cards requiring tabulation this November, a full 33% increase over this June. Even with starting tabulation earlier and expanding processing on Sundays and election day, we can anticipate that post election day tabulation will require longer than ever if Fresno County voters continue to wait until election day to return their ballots. Election activities have not ended with the certification of the June 2026 primary election. Fresno County is preparing for a manual recount of the governor's contest and has already opened candidate filing for the November 2026 general election. The department has received a voter's request to conduct a manual recount of the governor's race. While it is unlikely that this recount will move forward due to the cost and scale of the request, the department must legally prepare for the possibility should the requester pay the required deposit on time. At the same time, the department opened candidate filing for the November general election yesterday, and we had over 30 candidates already file. Candidates interested in applying for one of the many local contests up for election can find information regarding candidate filing on the department website at votefresnocounty.com. We strongly encourage candidates to make a filing appointment available online at that website to ensure a smooth and convenient process for all. I would like to thank the board for its continuous support of our election processes and I'm happy to answer any questions at this time.

Gary Bredefeld: Okay. Any uh comments from the board? Yes, Supervisor Magsig.

Nathan Magsig: How many ballots uh in the primary, if you recall, needed to be cured?

James Kus: We challenged more than 3,000 and had over a thousand cured. We did end up with over 2,000 still challenged at the end of the process primarily for signature challenges and for signatures not being placed on the envelope.

Nathan Magsig: Okay. And uh the uh what percentage of automatic um recount did you do? Because typically we do I think the state requires 1% sometimes we'll do as much as 5%. What percent uh were you targeting?

James Kus: Uh for this election we actually began at basically 2%. We expanded from the very start based on available time that we had in staff. We then doubled that amount and actually ended up over at 3.2% 2% of all ballots included in the manual tally process.

Nathan Magsig: And uh were there any what was the error rate that our counting machines made?

James Kus: Our counting machines, our tabulators had a 0% error rate in that manual tally review. We did identify one human error that did require us to rescan a ballot.

Nathan Magsig: Thank you.

Gary Bredefeld: Any other comments from the board? Any comments? Any comments from the public? Okay, seeing none. Uh any anybody on the phone? No. Okay, I'll I'll bring it back uh to the board. Uh I would like to congratulate my colleagues uh who won their races. Congratulations. Um is there a motion and a second?

Nathan Magsig: Make the motion.

Gary Bredefeld: All those in favor say I.

All other Board Members: I.

Gary Bredefeld: Motion passes unanimously. Right. The main event.

Bernice Seidel: We now move to item 7.1. Receive certificate of sufficiency dated July 8th, 2026 with respect to the initiative petition entitled Fresno County Transportation Improvement Act filed with the county of Fresno Fresno County Clerk Register of Voters on January 26, 2026 pursuant to elections code section 9115.

Gary Bredefeld: Thank you.

James Kus: Good morning again chairman and supervisors and James Kus Fresno County Clerk Register of Voters. I'm here to today to deliver the certificate of sufficiency for

the Transportation Improvement Act Initiative. The proponents of the initiative filed a notice of intent to circulate the petition on January 26th of this year. Following completion of the statutory requirements, petition circulation was begun in mid February of this year and completed petition sections were handed into my department on April 14th, 2026. A total of 2,114 petition sections with 32,852 raw signatures were turned in. Per California Election Code 9,115 subsection A, a random sample was conducted to determine if sufficient valid signatures were collected in the petition process. On May 18th, the random sample process was completed and the petition could not be certified as sufficient primarily due to the identification of two duplicate signatures in the random sample. Per election code 9115B, a full count of all collected signatures was begun. On July 8th of 2026, the full count review of the petition found at least 21,909 valid signatures, the minimum required for a countywide initiative, had been collected. Per election code 9118, a certificate of sufficiency is hereby provided to your board for the Transportation Improvement Act initiative. Per election code 9118, your board may either submit the initiative ordinance to the voters of Fresno County at the next statewide election, a resolution for which is attached to the board item, or your board may order a report on the effect of the proposed initiative pursuant to election code section 911 to be heard within 30 days, at which time you must submit the initiative ordinance to the voters of Fresno County at the next statewide election. I would be happy to answer any questions at this time.

Gary Bredefeld: Any questions from the board?

Buddy Mendes: Just curious, how many uh signatures did you have left in the pile that you hadn't gone through?

James Kus: At the time that we stopped, which by law we're allowed to do once we reach that minimum, we had 2,810 signatures that had not been reviewed

Buddy Mendes: out of a total of what 30

James Kus: 32,562.

Buddy Mendes: Okay.

James Kus: Just under 10% still remaining.

Buddy Mendes: Yeah. So that was a pretty high rejection.

James Kus: Um, we had a 25% uh invalid rate, which actually is the lowest invalid rate out of the petitions that we have been reviewing this election uh or this year. Uh we've actually done 16 state propositions and the uh validity rate for this petition was actually higher than any of those

Buddy Mendes: by the one for the secretariat.

James Kus: Yes.

Buddy Mendes: Yeah. But our re our re rejection rates way higher than the state averages.

James Kus: Uh when we look at other counties, Fresno County oftentimes does have a higher rejection rate.

Buddy Mendes: You're doing you do a pretty thorough job. That's that's that's all that mean.

James Kus: I appreciate we work our best for every everyone who turns in a petition in Fresno County.

Gary Bredefeld: Yeah. Okay. Any other any other questions? Not yet. No. Okay. Yeah. Uh, County Council, you had something you wanted to read in?

County Council: Yes. I have one change to read into the record. In the, uh, resolution where it describes the ballot question, uh, where it says approximately $110 million, that should be changed to approximately $113 million.

Gary Bredefeld: Okay.

County Council: And that will be subject to the board approval.

Gary Bredefeld: Okay. Thank you. Uh, county clerk. Uh, the way we're going to do this, I know there are a lot of people who want to speak. Uh we have now a new system where we have to go to the phones as well. But what we're going to do is uh the pro side will have 10 minutes, two minutes each, five people. The opposition will have same thing, five people, two minutes each, 10 minutes. Uh then we will uh whoever's on the phone allow them 20 minutes. That's by state law what we have to do now. So if you have your five people, please the the podium is yours and we'll get started. Please state your name. We're not familiar with you. [laughter]

Jerry Dyer: Fresno Mayor Jerry Dyer. Uh good morning uh Supervisor Chairman Bredefeld and members of the of the board. I'm here today as a proud proponent of the better road safe streets initiative and as a mayor who represents more than 53% of the population of Fresno County. Today is a very big day for the people who live, work, and play in the county of Fresno. In fact, it is a $7.3 billion day. The five of you will decide today whether or not Fresno County residents will be given an opportunity to vote on the future of their neighborhoods. You will also decide whether you will honor the 2,000 registered

voters who sign the better road safe streets initiative. And that is how it should be decided, not by a body of elected officials. Even though elected bodies representing over 80% of the county population have already voted in support of this measure. The Better Road Safe Streets initiative represents an investment in every part of Fresno County, urban and rural alike. 30 years of sustained funding that will help us repair neighborhood streets and alleyways, improve major corridors, strengthen public transportation, and make our roads safer. These investments are needed in the city of Fresno, but they are also needed in Clovis, Mendota, Firebaugh, and communities throughout our county. Private and public transportation is what connects us. It allows our residents to travel between cities every day for work, school, healthc care, shopping, and to visit family. That is why this cannot be about one city, one neighborhood, or one political perspective. We all have transportation needs, some greater than others. In the city of Fresno, that's $1.2 million a deferred street maintenance and another 300 million in sidewalk repair. That is represent a very city in the county as well as our rural communities. It is time to fix our roads, repair our sidewalks, pro prepare our protect our residents, and invest in Fresno County's future.

Gary Bredefeld: Thank you. Thank you, Mayor.

[applause]

Kay Bertken: Good morning. My name is Kay Bertken. I represent the Fresno League of Women Voters. The Fresno League, especially in the person of Mary Savala, is proud to have helped craft and support each of the county transportation tax measures since the original in 1986. And we are pleased to have supported this one and to be here with the validated signatures that qualify this new version for the ballot. The benefits to Fresno County of these tax measures and this new one specifically are huge. According to a recent impact analysis, this new one will sponsor 68,000 new jobs and bring the county billions of new financial benefits, not to mention its direct effect on our local transportation accessibility and safety. This measure is an object lesson in the sort of democratic participation that the league has stood for for 200 years. First engaging many of our county residents along with elected officials in the development of the measure and then having more than 20,000 more signing petitions reflecting their desire to vote on the product. It's your turn to acknowledge the voices of your voters and send this back to the elections office to put it on the ballot in November. Thank you for what you do in serving the community. And let's see if the voters will once again decide to tax themselves for what they said they want.

Gary Bredefeld: Thank you. [applause]

Victor Martinez: Good morning, chairman and members of the board. My name is Victor Martinez, mayor of the city of Mendota and chairman for Fresno Council of Governments, one of the 11 mayors who signed a letter and submitted to you requesting better roads safe streets to be placed in the ballot. I want to acknowledge the mayors that are here today present. Mayor Rey Leon from Huron, Mayor Freddy Valdez from Firebaugh, Mayor Adam Cornejo from San Joaquin, Mayor Maria Pacheco from the city of Kerman, all of them who are supporting this uh measure. I am here today to respectfully ask you to allow the better roads safe street measure to be placed in the November ballot and let the democratic process continue. Mendota has some of the worst roads in the county. The firm maintenance continues growing similar to other cities including Fresno which some of you guys serve. For far too long, roads throughout Fresno County have been neglected, especially in rural communities, incorporated and unincorporated. Like Cantua, Tranquility, Biola, Mendota, families, business, farmers, emergency responders, and school buses depend on safe, reliable roads every single day. Preventing this measure from appearing on the ballot denies the public the opportunity to make that decision for themselves. When government decides that the public should not have the chance to vote on on an issue that directly affects their communities, that is a form of government overreach and we don't want that. As an elected official, we are here to represent the people, not to replace their voice with our own.

1 hour, 45 minutes

Voters have spoken and more than 22,000 signatures were collected. Today, I respectfully ask you to place uh the measure on the ballot. This is not about left or right politics. It is about doing the right thing for Fresno County, the entire county. Thank you very much.

Gary Bredefeld: Thank you.

Name Not Stated: Thank you, Mr. Chairman, honorable members of the board. This process is probably the most democratic process I've participated in. placing a plan on the ballot, one literary shape through the input of thousands of residents and qualified for the ballot with well over 21,000 registered voters from across the county. But today's action before you is not about the merits of the measure. That is for county voters to decide for themselves this November. No, today's vote is about whether you support or oppose isn't about whether you support or oppose the measure. It is about process. As soon as the register of voters confirmed last week the sufficiency of the signature submitted, it meant this measure was guaranteed to be on the ballot. The county's job is to serve the most vulnerable amongst us, those that are facing tough economic times, those in need of most services. Yet, you are willing to risk losing $1.08 billion, which is $454 million more than the

current the current measure. Should the current measure expire without today's option, all cities along with the county will lose critically important revenues. Clovis will lose 6.3 million annually, 4.1 for road maintenance and 2.3 million in transit. Clovis approved this on a 4 to one vote. The Clovis chamber approved this. This morning you have a simple procedure vote to support the next step in the democratic process by formally placing the measure on the ballot without unnecessary delay. That is why econom an economic study was provided by Mr. Pimea Paris. He did this for measure E and this board did not require an 30-day extension of study. telling Fresno County residents they should not be involved in determining their transportation future would be the opposite of de democracy. The public participated, the public should be allowed to vote. Thank you.

Gary Bredefeld: Thank you. [applause]

J.P> Shamshoian: Good morning, Chairman Bredefeld and members of the board. My name is J.P. Shamshoian. I'm the CEO of Realty Concepts, Fresno's largest real estate brokerage and a past president of the Fresno Association of Realtors. I'm here today to make sure that you know how important it is to see the citizens petition move forward on the November 26th ballot. Our 500 plus realtors are in every neighborhood across the county, representing thousands of families each year who are looking for their next place to call home. Realtors are painfully aware of the conditions of our local streets and roads. We are firsthand witnesses uh uh firsthand witnesses to the difference that well-maintained roads, safe intersections, trees, trails, and bike lanes all make in people's decisions about where they want to live. We rely on our local governments to deliver these services, and we know that you need the resources to do so. We cannot delay and risk these critical investments. Thousands of voters played a part in getting us to this moment with plenty of input from local governments and that input was clear. Local streets should be our priority over the next 30 years. So the measure almost doubles the amount of money available for that from 34% to 65. Local government should have the flexibility to fix what needs to be fixed. So a lot more expenses are eligible in the new proposed measure. In exchange for nearly twice the money and more flexibility, there are performance metrics in this measure. And yes, it's the first time in 40 years, but for my perspective, it's not soon enough for there to be added accountability. I understand that some government managers feel that this is too prescriptive. But that's why the words where feasible are listed throughout the measure. And while the COG still has implementation details to develop, one important point is already clearly spelled out in the measure and cannot be changed. Each local agency is responsible for determining what's feasible in their own jurisdiction. The above points are important, but the only policy question before you today is whether you should study this for 30 more days. And we all know that 30 more days is the whole ball game.

You've had this measure since January. That's plenty of time to study it. Let the voters decide. Give democracy a chance. Thank you.

Gary Bredefeld: Thank you. [applause] Thank you. and those who uh are opposed to it or want uh a study uh please come forward.

Brandon Pursell: Morning chair uh Brandon Pursell, mayor pro tem for the city of Kingsburg and vice chair of COG. Uh I'm here today, no notes, no no great speech written. It's just a common sense approach to this. So for the city of Kingsburg, it shows on paper that it looks like we're going to get more more money for our streets. But if you really unpack this, my issue is with the regional dollars. There's not regional dollars and majority of my constituents leave that town. We come up to Fresno, we shop, we travel, and those regional roads are not going to be taken care of in this bill. They're not funded. So, my other part of that is our Kingsburg Fire Department and all of our EMS that we have in this county, all of our police and deputy sheriffs that we have in this county, we use those roads. And we're not here today to figure out whether or not you support it or not support it. It's about whether or not you're going to do the study to get more of an impact. My question to you is, have you done the impact for that? You have a 6,200 square mile county and that's a lot of roads and that's going to be worse roads for our fire department responding to our fires and our wildfires. That's going to be worse roads for our deputy sheriffs and our police officers going to and from the jail and responding to calls. It's a long enough response time as it is. So my my question to you is, have you have you evaluated those things? If you haven't, please take the time because one thing that is consistent in this measure is it's done hastily. They have pushed this in the 11th hour at every single aspect. It went from Measure C renewal to this new measure. We need to take time, sit back, evaluate it. If you have those answers, vote on it today. If you don't, I'm asking that you do take the time to do it. For me, it appears that there is a neglect in public safety here and an emphasis on public transportation. Public transportation is important, but from my perspective, this is about public safety and not about public transportation. Thank you.

Gary Bredefeld: Thank you very much.

Diane Pearce: Good morning, Chairman Bredefeld and members of the board. I'm Diane Pearce, mayor pro tem for the city of Clovis. This is a critical decision before you today, but I do not see it as a particularly complex or difficult one. The proponents of this measure are coming before you today, essentially asking you to bail them out and forego your responsibility to the people of the county of doing your due diligence with a county study on the impacts of this measure. They are in this position because of a string of decisions they made. There were multiple requests made by the county's representatives

and other groups with concerns about aspects of this proposal to sit down and discuss points of disagreement. Each request was met with an unwillingness to collaborate or compromise. Not to mention that previous versions of this proposal were met with a response from Mohammad Alimi, a highly respected 24-year veteran of the county's public works and planning department describing language in the measure as absurd, makes no sense, not fair, and made it clear we strongly oppose. Now, the proponents want this board to just trust them in their economic analysis and put a 30-year tax on the ballot without the county's own study. Apparently, the backers of this measure expect you to pass it to find out what's in it. If the tables were turned, would this group trust the board's word or study and forego their own study to put your measure on the ballot? Not a chance. I'll even give them the benefit of the doubt and say they have the best of intentions. But the road to hell is paved with good intention. But if this measure were to pass, that road wouldn't get paved at all.

Gary Bredefeld: Thank you.

Matthew Tuttle: Good morning, chair and supervisors. I have to write down or else I'll forget. My name is Matthew Tuttle, mayor of the city of Reedley. I'm here to ask you to be thorough in your review of the 30-year tax. It's critical that we get the next steps right before asking voters to decide on a measure that will impact them for the next 30 years. Good governance and appropriate due diligence is what I'm asking this morning. [clears throat] This is a 34-page technical document. Studies can provide data to the public that understand what impact it will actually have. Section three of this document tells voters that thousands of quality jobs with health care and retirement benefits will be created. This is quite a lofty statement that thousands of lucrative jobs will come with this. At the least, this needs to be evaluated. Buried on page 22, it states that funds can be used for landscaping and irrigation. Proponents of this measure will say that Measure C hasn't done enough for their local roads. [clears throat] Will the voters know that their road monies will be going to towards landscaping and irrigation lines? Are we going to be transparent with the voters or will we be hasty and push this through like the process has done since last year? At a COG meeting on December 18th last year, our hired legal council BB&K advised against approving this document. They said it needed revision and inconsist for inconsistencies and that it needed to be used as a goals and guidelines document. Moreover, they said that this is too prescriptive and opens possibility to litigation. In in a section in this document, it states that jurisdictions receiving funds shall maintain a 70 PCI. That is quite descriptive. What happens when Reedley or other jurisdictions don't maintain that shall maintain a 70 uh PCI? Are we going to have to pay back millions in 30

years? Voters proponents will say no. But this leaves room for uh litigation. Voters deserve better than unclear and cons inconsistent language. Thanks.

Gary Bredefeld: Thank you.

Alex Tavlian: Good morning, Chairman Bredefeld, supervisors. Alex Tavlian here on behalf of the San Joaquin Valley Taxpayers Association. Uh today I want to talk about terms. The biggest element in these measures is the terms under which they operate. Uh yesterday you were all in receipt of a letter from the Fresno Council of Government regarding some of the provisions of this measure that I argue are the most problematic and requ warrant further study that cannot be contemplated on an economic analysis. They are on a functional and and effective government status that the county needs to review itself using its own study. In this letter from Robert Phipps from Fresno Cog, it details in rather clear-cut language that jurisdictions, including the county of Fresno, will be unable to expand capacity on critical county roads unless the county, the entire county, which again is the size greater than the state of Rhode Island, has a pavement condition index north of 65. This county hasn't had a PCI north of 65 since World War II. So, we're asking a lot of the county of Fresno in order to make sure that we can deliver critical upgrades in the county. And so, I want you to imagine for a moment that we are in a situation similar to the litany of wildfires that have hit eastern Fresno County where people are facing life and death. And the county of Fresno has no ability to increase capacity on Dinky Creek Road or any of the other roads surrounding Shaver Lake or Huntington Lake. And they're trying to escape and get home. and we're trying to get CalFire in to protect those communities and avoid an absolute catastrophe on the east edge. They're not going to be able to because Measure C will not have the funding available or whatever we're going to call this will not have the funding available. The only way you're going to know what the effective outcome of this measure is is to conduct an actual operational research and and analysis that you can do and not anyone else can do because only you will be the ones who are capable of administering. And so I implore you, please consider conducting a study and review what measure this measure can do. Thank you.

Gary Bredefeld: Thank you. Um I think that's it for those folks. Uh anybody on the phone? Nobody's on the phone. Then I'm going to close the public portion. Bring it back to the dais. Uh anybody wishing to speak? Go ahead, Supervisor Chavez.

Luis Chavez: Let me kick it off, Mr. Chair. Sure. Um, so this has been probably one of the most contentious issues that we've discussed in the last couple of years and I heard right now from heard from Republicans, heard from Democrats, from from business, heard from all walks of life here. And I think I don't want this to get framed as just being a

conservative versus a progressive issue because I don't think that's the case. And I don't think that's the case because it's very simple. I think everybody wants their damn roads fixed. That's the bottom line. Nobody likes potholes. Doesn't care what party you are. Everybody's had the flat tire. As a council member, I spent over a decade at city hall trying to nickel and dime pods of funding, whether it was measure C, state, federal grants just to pave one neighborhood that the late uh George Husteder deemed the canyons of southeast Fresno. as many of you uh recall. And so for me, it's a very simple uh question here today. We will probably get into the merits of what the details and the minutia and everything that that entails, how much money the county gets, how much money each city gets, but at the end of the day, to me, this is about about people. It's how do we make our roads safer for people? How do we make sure that that kid doesn't get hit at the corner and dies or ends up paralyzed? or how do we make sure that we have public transportation that's

2 hours, 0 minutes

reliable for the seniors that go to their doctor's appointments? We know for a fact that public transportation is used by seniors, by students, by folks that don't have the means to to own a car. And we know that this has been one of the funding pots that has kept that going for a lot of folks. So, when we talk about this conversation here today, I want to paint that picture. And as we go down this uh conversation about policies and and details, what often time gets missed is what's the what's the consequence of us not having this next year. We know that for the county, it's laying off 90 people. And I want folks to understand that. I'm sure all 15 cities have done their own analysis with regards to what that looks like. um not just with laying off folks, but with making sure that you maintain a minimum level of standard for those roads as a body here. And I know many of uh my colleagues across the county have settled lawsuits for people that have trip and falls or potholes where a vehicle got damaged. And so I want to paint that picture because we're talking about an initiative here that's going to provide dollars going forward. But if we don't have those dollars, they're going to be real consequences to our community. older neighborhoods that as one constituent uh told me about a week ago, his neighborhood hasn't been repaved since Jimmy Carter was in office. For the kids out there watching, Jimmy Carter was a president in the late 1900s. That uh was really great. Um but I say that because that's the constituents that we represent, right? We want to make sure that we have the resources in making their lives better. And the last thing I'll say before we get into this conversation is we've now gone through several versions of this ballot initiative. And to be quite honest, I was on that other side last year and I was really begging folks to get in the room and negotiate a compromise. And now we we're past that. I very well past that that conversation now. So right now for me

um I'm going to be supportive of this today and I want to make sure that folks understand what the consequences of not having this ballot initiative will be out there. Nine of the 15 cities have voted to support this, including Clovis, right? I think four to one uh got voted. The city of Fresno unanimously supported this. And I think it's because they understand the consequences of not having these funds for our constituents that we represent. And for us to have this conversation now and ask for an analysis or a study, um I think we can do that. And I think we can get all those questions answered here today. Part of our role is to make sure that we facilitate democracy. And there's no more pure form of democracy than participatory, which was the thousands and thousands of people that signed their name asking for us to have a conversation. There's no assurance that this is going to pass. And I think the people that are up here that are opposing, I think they've been very clear uh and loud uh about their opposition, and they're more than free to do that. But to not allow folks to vote, I think to me is the most form of overreach for our government. And I hope we don't go on that. And and let me just wrap up. Our our role should be to facilitate and encourage democracy, not put up roadblocks or speed bumps. I've been waiting all week to say that, by the way. [laughter]

Gary Bredefeld: You done?

Luis Chavez: Done.

Gary Bredefeld: Uh, good buddy. Go.

Buddy Mendes: Anyway, I want to hear Magsig's questions. Uh, you know, one thing, this thing has been contentious before we even started. you know, uh I can remember meeting with uh the what was Ashley's group. What the heck's your group's name? Your group, it's the Central Valley Community, right? I met with a board and we talked about the measure that didn't pass in 22. And the only thing they could tell me was, well, it's a 30-year measure. We thought we thought that was too long. So, what do they do? Go fund a 30-year measure. So, I mean, this thing has been contentious from day one. Originally met with uh Carrie and a few people and um and it was about expanding the the group that that actually participated in the to start laying down, you know, the rule the rules I think it was that that group had like 20 28 and ended or 26 ended up with 38 and I refer to those people as the 12 apostles made 38 because they just wanted them there. I said no I don't think that's right that's not the process. You can't come in a smoke filled room and just start saying hey we're going to name these people and we're going to add add people to this. So going from there, you know, one of the things that needs to be studied is the regional. Now, in the last measure, the regional has been paired down to 4% and 1%. 4% for regional and 1% for the for the airport. And uh so [clears throat] we have to look at the money. That's different

money that comes in here than the money that we put to fixed roads. Fixed roads is basically SP1 money and the different road funds that you know that the state has out there that you can use. You get you know they deal them out to every county. It's not really applicable but you know it's it's done. And then you use the measure C dollars to actually do projects with that money. Now regional, you get a different pot of money. Uh some from the state, in fact, most from the state, but you get some from the federal government, you know, and there's uh anyway, the the last measure brought in $1.1 billion dollar that month. Okay. So, if you look at the the regional and the new one, which if you take a 20-year, you know, average, that's only going to actually produce 244 million, which the you just say if you got a one for one match, that's 250. So, that's about almost 800 million dollars that this county is not get getting. And there's no study. You know, when you do a study, you know, this this one has, you know, Pam Bar study, anytime you do an initiative now is you go out and get an economic study. So obviously who's paying the bill is the people that want to that are putting the initiative. So they get what they pay for. They get this really rosy economics. And I that always reminds me of uh a Mark Twain quote. There's liars, damn liars, and statistitians. So, you know, that's the only reason that, you know, that deal is almost worthless. And another thing is this thing was put on a 4% gain because we looked back and I think it was between three and four that the measure grew. That's a growth in sales tax. So, that means that's what you you will get more per year. But that was an awful rosy deal because the state average is just a is just a little over 1%. And if you do not do the regional, what's going to happen is you you're you're going to slow the growth down of your economy. So your growth of the sales tax is going to slow down. So, you know, that's why I think uh you know, we put in the initi in the deal, that's where you come up with that 113 million because that's actual numbers and we don't know what the growth is because even in the 2006, you that's good thing about being an old guy, you know, been around a lot of this stuff. In fact, uh Jimmy Carter got elected in 76 and he left office in 81. I voted for Ford and I voted for Reagan, which probably isn't going to surprise you. Yeah. So, you know, anyway, it the growth during the recession actually went down. It reversed itself. So, sales tax revenues [clears throat] went down and then as we went farther during uh COVID, they were way up. So, then we that's how we got the average that we got today. So, you know, it just anytime you're dealing with with statistics, you know, you can easily manipulate them. So, I really think we need to study this to see what we're missing with this money. And then the this deal was written by activists and not transportation. And we need to look at okay we need to look at a series of whatifs because the actual rules aren't written as you just get a format of how we want the rules to look like. So if we end up with municipalities happen to give back money, you know, and even the it's kind of funny even the the deal with with auditing and you got to come up with uh you know u annual reports, you know, each each

municipality does. Well, the transportation authority has that embedded now. And some of the same people that are uh favoring this initiative are the ones that are two and three years behind on their financial statements. We're one of them. We actually had to tell them that, you know, which we've never had and we weren't 100% sure if we had the the latent powers to do it to say, "Hey, we're going to hold your money back until you get these uh financial statements in." These are some of the same municipalities that are supporting this thing. So, you know, I don't know how they're going to do it. So, I think we really need to study the language and and do a at least do a study on whatifs. So, anyway, that's what I got to say.

Gary Bredefeld: Yes, Supervisor Pacheco.

Brian Pacheco: Yeah, I'll give um my colleague Supervisor Magsig the last say before the chairman because the way I see it, he'll be he'll be the the deciding vote. So, we'll get his questions answered. There's a lot for the study. The study will answer questions, but it will still bring the issue back to us. So, we can delay and do the study. It obviously it will increase the threshold. So, that's one way to slow this down um if we don't move it forward today. But for me, it's it's it's pretty simple. It's not whether we support or oppose this transportation measure. For me, this is to ratify that the county clerk did his job and that we as a board recognize that and put it on the ballot. For me, [applause] I believe in Fresno County, we are very fortunate to have an individual like James Kus that oversees our election department. I think he does it unbiased. [applause] Um, I'm very proud of the fact that Supervisor Mendes and I when we had that vacancy, we vetted a lot of candidates, we brought him forward to the board and the board moved him forward to fill that void and the voters have twice since then elected him um because of the job that he has done. Now, of course, it's not perfect. There's not one of us up here that is perfect or has not made a mistake on our own. and we're responsible for every county employee just like he is for his department, but he can't be there every minute of the day. So, I'm not saying there's not issues, but as a registered voter of Fresno County, I feel our elections are accurate. I feel every vote is counted and I feel we have a great deal of integrity. Um, and I don't worry about what we hear all the rest of the country because of you, Mr. Kus. And I think that should be recognized today. So based on that, I'm not here to debate the merits of the issue. I personally believe there are some serious issues with this. I fully understand that the mayors of most cities want it because they're going to get more money than what they've had in the past. And that's what this initiative does. And the only way to get more money is you're going to take it from somewhere else. So, we're going to forgo all the regionalness. Um, the last measures built our freeways. So, maybe now's the time that we're going to focus on our cities and let them have have their turn. U, but again, I would believe like my colleague, Supervisor Chavez, again, I'm not here to discuss the merits. I'm

here to follow through on what I was elected for, to review it. I believe through our county clerk, all the conditions have been met and I too will support to put it on the ballot and let the people of Fresno County who elected each one of us up here, again, put my trust and confidence in them, [clears throat] let them decide if it's the right thing or not. And I'll just simply leave it at that.

Gary Bredefeld: Okay. Thank you. [applause] I I I have some I have some comments too and I I think it's not only that we have the obligation now that this is qualified, we have an obligation to one either a put it on the ballot as it is or b uh request further analysis before it goes on the ballot. Uh so it's one of the two. Let let me let me start by reminding people, you know, why we're here today. Instead of a month ago, a group of citizens funded by uh very well rich out of town elites paid for signatures to be collected to get this measure on the ballot. Not surprisingly, they were successful in paying people to get the signatures. They submitted the signatures to the clerk, but the clerk found errors with those signatures. If there were no errors, this issue would have been

2 hours, 15 minutes

brought before the board perhaps a month ago. I still would have requested the county to do a study because it is imperative that we do our due diligence and we have a professional analysis of what this measure will do over the next 30 years. Three decades. Will it keep its promises? How much will it actually cost the taxpayers of three decades? That analysis would have been would have been done. it would have been brought before the board and the board would have likely moved it forward without any concern for the timelines being met to get it on the ballot. We're here today because this group had problems with the signatures they collected which delayed the whole process. Because they delayed the process does not mean we as a board should abdicate our very critical import and important duties to ensure that we have professional professionals analyze this 30-year measure and provide the information to our board and the public as to how this measure will impact development. That analysis is not just for us, it's for our constituents. They will provide fiscal issues, taxes to our citizen, and essentially the future of our roads for 30 years. To not do this analysis and refer to our professional staff is abdicating our duties as elected officials and leaders of Fresno County to protect our constituents, provide them with the most comprehensive and honest information regarding this 30-year tax measure. It would be absolute political malfecence to just ignore getting additional information that would go out to the public. And frankly, doing the analysis in no way stops it from going on the ballot. It would still go on the ballot. We can't prevent it from going on the ballot. It would still be on the ballot in March of 2028, but our citizens would have important information on what they're actually voting on. Our responsibilities and loyalties belong to

our constituents, not to people pushing a tax measure that has serious problems with it and that, in my opinion, will hurt this community for the next 30 years. That is why the independent study is imperative. Measure C existed for 40 years and it's now except set to expire in 2027. It did the job the voters approved. It built our local freeway system. It le leveraged federal and state dollars to build critical infrastructure. It was 20 years and approved twice for 20 years, [clears throat] not 30 years like this measure. Now, the majorities of mayors of this county through the council of governments abandoned their efforts in my opinion to extend measure C and instead gave to a group of residents led by a former mayor and her foundation which is funded by out of town rich radicals. her group. If that keeps up, you're going to be out the door. You were treated with respect. I expect the same thing. I'll repeat it since uh you found it laughable. It was funded by rich out of town radicals. Her group told Cog early in the process that if they didn't develop the measure these folks wanted, they'd do a citizens initiative, which is exactly what they did. And here we are. Now, this tax scam will screw taxpayers for 30 years. There is right now $1.5 billion in deferred street maintenance and repairs needed in the city of Fresno and $1.5 billion in deferred street maintenance and repairs needed in the county of Fresno. This measure will not seriously address the problem. Their measure is full of promises about street and road repair that will not happen. It's really a public transportation tax disguised as a roads tax. It dramatically funds buses and requires 120 mi of bike lanes throughout Fresno County. The way they have destroyed the tower district with bike lanes is the way they will destroy other neighbors neighborhoods throughout the county. It's really an effort to get people to stop driving their cars and ride buses, scooters, and bicycles to work. Complete environmental wacko insanity. What this measure also does is dangerously eliminate any real oversight of the $7 billion it would generate. How do they do that? They eliminate the Fresno County Transportation Authority made up of elected leaders throughout the county who for 40 years have effectively had oversight of Measure C funds. Instead, they replace these elected leaders who are accountable to the citizens with 11 unelected people chosen by the same COD board that gave to this radical group. None of them are accountable to anyone and will make decisions regarding billions of dollars. Anybody concerned about the fact that Fresno County Transportation Authority elected officials will no longer oversee Measure C funds. It'll be put in the hands of the same radical people that drove this. We saw how that failed with measure P funds and theft of money from the arts community that was recently discovered. This is fraught with potential corruption and should be voted down for this stupidity alone. Lastly, in our own staff report from the county, it indicates that such a study should discuss and review the following. It says it should study the measures fiscal impact, the effect on the internal consistency of the county's general plan, the consistency between planning and zoning, and its effect on land use and the

availability and location of housing. It should study the impact on infrastructure funding, including whether the initiative measure would be likely to increase infrastructure costs or savings and maintenance to residents and businesses. The impact on retaining attracting county businesses and employment. The impact on uses of vacant parcels of land, agricultural land, open space, traffic congestion, existing business districts, and developed areas designated for revitalization. Why would we not want to have that information and provide that to the public on a 30-year tax measure? We would. And that's our that's our responsibility. And that's part of democracy, too. We have that choice to either just put it on the ballot, hope for the best, accept the radicals point of view, or do a professional analysis and study. And with that information presented to the public, if we don't do this analysis and study, we will have clearly abdicated our rules to protect our citizens, provide them honest information to make an informed decision on whether or not to support this measure. Whether it's on the ballot in November or it's on the ballot in March 2028, it's still going to be on the ballot. Voting to put this on the ballot will mean we have absolutely right now without a study screwed our constituents who gave us their trust to protect their interests and make wise decisions. I choose to protect them and honor my commitment to to them to look out for their interests and do our due diligence. have our professional staff give us the study and the analysis and provide it to the public and then we will have a campaign and see whether this really passes or not. To do otherwise is truly abdicating our role as responsible elected leaders and our constituents expect us to do that. With that, Supervisor Magsig, the floor is yours.

Nathan Magsig: I want to thank my colleagues and uh as the public knows all of us serve on I don't know there's like 50 different committees. We split those up actually even more than that. I sit on 19 boards but um I know that Buddy and Gary uh both are involved with COG and or the Fresno County Transportation Authority. So I appreciate their their efforts there. What I would like to do at this point, I've got a number of questions I'm going to go through that's in the report and I see one of my former professors out there, Dr. Pimea, who I appreciate. So, thank you for being here, doctor. But I would like to ask Mr. Phipps to come forward uh with COG. I see him in the audience. And anyone else who uh was one of uh who can speak on behalf of the proponents slash the author of uh of the measure. Um, I' I'd like uh an individual to come forward cuz I do have uh some questions uh in regards to the measure itself and how it was structured. And really for me [clears throat] since Wednesday of last week, my phone has been blowing up, you know, from people who are in support of the measure or against the measure. And I'll tell you, for for me, it's not a matter of where I stand in support or against it. It is uh you know, looking at the measure. What options do we have as a board? And I've told everybody the same thing that my decision on how I vote, I'm going to make that decision after I hear all information. And uh if the

questions to my uh or the answers to the questions that I ask, if they're not answered in a way that uh provides relief to me, then I'm going to have to ask for an economic study. And I know that there were about 32,000 signatures gathered, which I very much appreciate. Um, but one of the things I don't know is, you know, we've got exhibit A in front of us here, which I've gone over numerous times, reading through it with attorneys, reading through it with, uh, with COG staff. And Mr. Phipps, thank you for spending uh, two hours with me, as well as, uh, your staff member, uh, two hours with me on Friday just going through the document and [clears throat] then preparing this document yesterday that you sent to our board trying to answer some of the questions that I had. But all of this is, you know, uh is very relevant. So I'm just going to I'll just kick it off and we'll start from here. So looking at exhibit A under find findings and declarations, one of the findings in here, finding H says uh we need to keep Fresno County safe, livable, and thriving. We need to invest in projects to reduce traffic, fix crumbling streets, roads, and improve transportation countywide. So that portion about the reason that this uh this measure is important is we need to reduce traffic as I read through this document um it there's buses uh that's talked about there's bike lanes that are talked about but anything that expands capacity um is really um it's shied away from in the document. So how do you reduce traffic based upon how this measure currently is structured?

Robert Phipps: Uh the answer to that uh supervisor and and again uh my name is Robert Phipps. I'm the uh executive director with Fresno Council of Governments. I also have with me uh today my deputy director Paul Herman who worked on many of the financial aspects of uh this while it was at Fresno COG. Uh so thank you for inviting us up here and uh for the opportunity to speak. uh Supervisor Magsig to address your concerns. Um uh the regional program is uh funded at you know a considerably smaller rate but the programs generally uh mirror those of previous measures. Right? the the that is to say the the broad sub allocations or allocations uh in the programs as they're divided uh do uh mirror the uh more or less the the the last two iterations of the measure. And so uh the there is a recognition in the um in the uh initiative as we have discussed uh previously uh that uh regional pro projects to some degree will continue uh and we do believe that based on uh other funding sources that uh you know as as has already been mentioned uh are being leveraged today. uh but you know we we uh will have an opportunity to leverage those further uh federal and state sources including uh programs like uh the state transportation improvement program um the uh importantly uh the state's uh LPP program under um uh SB1 which is only available uh to those uh counties that have a local

Nathan Magsig: and and Mr. Mr. Phipps, the reason I asked that question is I go to page 14 on exhibit A, which says, "Road expansion or capacity increasing project project shall

not be prohibited by paragraph 3 if they involve significant safety or mobility benefits as supported by traffic studies that demonstrate reductions in fatalities and serious injuries for all road users." But then it says this, so I'm on page 14. Eligible road expansion or capacity increasing projects shall only include the following. Only include the following. Ready? Dedicated public transportation lanes and then dedicated and protected class one or class 4 facilities. So basically um uh bike lanes and pedestrian lanes that have some kind of physical barrier separating them from traffic. The reason I bring this up is looking at findings and declarations. If if under the finding and declaration section uh we're indicating that you know a major concern is you know really to reduce traffic this measure is going to reduce traffic and looking at capacity building I'm limited only to bike lanes and also to um uh dedicated bus lanes if I do any capacity building I'm very concerned. I look about I look at things like uh you know like uh Shepard Avenue. I look at academy um on the west side, you know, I look at different roads and routes that are maintained by the county where we may need to add an additional lane. But the way I read this is that I can't really add capacity for cars but only for buses.

Robert Phipps: Well, it also specifies safety motivated turn lanes or intersection improvements, which is a fairly broad categorization, right? So there the intersection improvements are eligible by virtue of widening. That is that is the potential there. But yes, that that is the and that was the intent at the steering committee uh was uh to to limit uh the the uh capacity increasing projects.

Nathan Magsig: I hear the term road diets. So basically roads that may have you know two lanes. They eliminate one of those lanes. you go down to just one lane for traffic and then like a dedicated lane for bicycles and pedestrians.

2 hours, 30 minutes

That does not reduce traffic. That actually increases traffic. Is that correct? Even though you're able to slow speeds down, I mean, you're able to slow speeds down, but I don't know how that um relieves

Robert Phipps: o over time the intent is to is to encourage more uh uh alternative transportation options such as bicycling. you know, we're seeing an increase in uh the number of electric bikes, electric scooters, especially as uh affordability becomes a bigger issue. And so, um, you know, the the, uh, certainly on a statewide level, you're seeing policy that that kind of embraces this concept that, uh, you know, uh, greater efforts at, uh, uh, transit, uh, ridership, um, uh, ride sharing, uh, things like car pooling, van pooling, uh, all of these alternative uh, transportation options. uh over time would help decrease both the uh

the the the speeds uh leading to greater safety and also uh encourage um you know uh reduced traffic.

Nathan Magsig: So going all the way back to ' 86, the first Measure C helped to build 41. It helped to build a portion I think of 168 or at least uh acquire right of way. the second iteration of Measure C. Um, you know, I look at Veterans Boulevard uh was helped uh to be constructed using Measure C funds. So, um, and I can appreciate, uh, assigning more funds to fix local roads, but where I'm hardpressed a little bit is I find the measure where it speaks to for health and safety reasons, you can, you know, maybe expand capacity on roadways, but when I look at other sections in here, it says I'm limited when I do uh, capacity uh, um, expanding projects to making sure that one of those lanes is dedicated for buses. This is important because uh I see this measure potentially being litigated and in the past former or or previous Measure C's uh allowed more flexibility in there and of course the transportation authority was there and uh in your letter you indicated that there's going to be um kind of a uh an additional operating statement that comes out about how to really apply and uh how we can operate to spend these funds. But this document is what's going to be going before the voters. This is what was turned into James Kus. So, um I want to make sure that I'm crystal clear on a lot of this language before I vote one way or another because if the if the language is not clear, then it's going to be tied up in litigation in in my opinion. Another question I have is under findings and declarations under I um it says uh funding from this act is guaranteed to go directly to Fresno County Transportation Priorities yada yada yada. It doesn't say that, but I'm going to move forward. If the funds are misused, violators will be subject to possible criminal prosecution by the Fresno County District Attorney and State Attorney General. I asked this question because right now uh as I understand it, COG and this independent 11 body authority, they are going to make sure that the proceeds of this fund um are spent in accordance with the priorities that they have laid out in this document. So the way I read this is if somebody chooses to vote on a project that later during an audit process it's found that it's outside the bounds of what this document expressly allows that you may be prosecuted criminally. Am I reading that correctly?

Robert Phipps: I do not believe that that was the intent of that uh provision. I think we're talking about intentional uh mis you know criminal uh misuse and criminal conduct criminal intent that is to say uh and so uh you know however you are correct in that uh there is a we anticipate the need for a strategic implementation plan uh you know that will uh build as I mentioned in my memo and and in our conversations that will uh address a lot of uh the ambiguities that you may find in the document so The document clearly has places where it's much more specific, much more detailed in its approach than others. Uh and

and of course, you know, where there are ambiguities, vague language, uh that will have to be further vetted and and we anticipate doing that. In addition,

Nathan Magsig: and and Mr. Fipp, so just so I hear you correctly, you do admit that there is ambiguity in the document and there are sections that absolutely need additional clarity.

Robert Phipps: There's no perfect document. Yes, there there there there will be clarity required and I think it's very important to understand the intent behind the formula funding uh and the uh you know the steering committee's intent was to focus on uh road repair and maintenance clearly and and that you know comes in this case at the expense of expansion. That is you know that that was clearly the number one priority. uh it was a priority. It was the priority as we looked uh uh did our own uh public opinion uh research and and surveying uh among the public our outreach uh you know and that that was the value and and I'm happy to defer to the mayor.

Jerry Deyer: Just yeah, if I might just a couple of uh clarifying points. I think the strategic implementation plan language that's consistent with the um current measure C as well. After the measure C went to the vote of the people, afterwards there had to be a strategic implementation plan that was developed to eliminate as much as you could some of the nebulous uh language. And so this would be very consistent with that. No measure, as you know, can be perfect. uh and there's always going to be things that are discussed at a later time after it's approved by the voters. Um but that's the purpose of that strategic implementation plan. And then secondly, in terms of criminal prosecution, it really doesn't matter what is put into a document like this. If it doesn't meet the elements of a crime, federally or state, a violation of law, uh you can't prosecute. Uh, so this is really specific to anytime the funds are used in a way that would violate the law, similar to what happened with the arts council.

Nathan Magsig: And Mr. Mayor, you were one of the authors, correct?

Jerry Deyer: Yes. Involved in the process. I didn't actually write it, but yeah, involved in the process for the entire year.

Nathan Magsig: And the reason I think this is important is uh so COG what initially COG had kind of constructed and then voted on but it never made it out uh to the board of supervisors to look at. Um out of that there was a group that kind of came together to help author I think what's in front of us today which some would argue that a lot of the components in here is what Cog looked at but there were components that were taken out as well. Correct.

Jerry Deyer: Right.

Nathan Magsig: So um there were a number of mayors that were a part of the committee um postcog that helped to construct this. Correct.

Jerry Deyer: Yes.

Nathan Magsig: Wh who was the representative representing the county who was a part of this committee?

Jerry Deyer: Uh I believe initially and I wasn't part of it at that time. I believe initially uh it was supervisor Mendes and then um and then he left stepped away for um some reasons. I think he felt that there was a Brown Act violation perhaps

Buddy Mendes: because you were meeting in in uh you were having a public meeting in private.

Nathan Magsig: Yeah.

Jerry Deyer: So

Buddy Mendes: yeah, but uh that was never about what Nathan's talking about. That's about the representation of who was going to be on the committee for COG to review well going through the traditional process.

Jerry Deyer: So, initially I wasn't part of that committee. Yeah. Um but recognized there was not a city voice and I owed it to the people that elected me to be a part of that group uh to make sure the city of Fresno feelings were heard and I did and the same held true with Clovis and the same held true with some of the other cities uh for example Victor Martinez from Mendota and so we you know I wanted to be at the table to be able to if something's going to be designed that's going to have a 30-year impact I want to make sure I have my input known and so I did

Nathan Magsig: with the document. Um, and I can appreciate you being at the table. Why is it so prescripted prescriptive to the county? And what I mean by that, like there's language in here saying that when it comes to our our road dollars at 65% pot, we have to focus first on disadvantaged communities. And I think we need to use at least 12 to 15% of our local pot on disadvantaged communities which on its face that seems okay until when you look at the number of miles of roadway we maintain there it's limited I think it's 55 miles yet um a disproportionate amount of the funds must be spent there until they reach a pavement management index of of 70. Um, so I mean, why why did the authors think it was so important to put so much prescription on the county when the county wasn't even there to help craft it?

Robert Phipps: And the the answer to that question, uh, supervisor, is the, uh, belief and recognition, uh, among the majority of the steering committee members at the COG at this time that, uh, you know, disadvantaged communities had been overlooked. Uh, that they they hadn't been considered. uh and this is this is one of the reasons again I think with regard to the widening question you know the the uh laser focus that was intended on maintenance right and so the the intent was uh I believe that you know a recognition that uh previously there was uh maintenance funding uh uh by jurisdictions generally had focused primarily on arterials on you know uh wider uh roads uh you know carrying more traffic at the expense of uh what the category is titled which is neighborhood streets and roads. The road in front of your school. This was repeated you know and also was in line with guiding principles that the steering committee established very early on. Uh one of which uh top priorities was uh focus on the worst first. And so it was it was following those guiding principles that um uh that these accountability measures, some some call them restrictions, but the you know that they were arrived at was was a dedication to focusing on uh roads uh uh of course in disadvantaged communities but elsewhere that you know people felt had not been addressed in decades at the expense of other priorities uh that you know that they wanted to change that. That was something that as we've seen through now three uh you know uh or at least potential iterations of uh the measure. Um it has evolved over time. The first measure 1986 uh you know 75% of the funding went into uh regional uh as was pointed out to expand the the freeway highway system. That was the value at the time. uh in 2006 that amount was cut down to uh about 30% and transit public transit was introduced as an eligible expense uh for the first time. Uh also a reflection of the times and the values of the times. This is uh simply the next iteration in that same process as as our staff sees.

Buddy Mendes: Just excuse me for a second. You know what you mentioned though? That was a compromise because the initiative failed first. I'm talking about the second one. And that was a compromise from everybody. Hey, we've got to change these numbers around and then it went forward again. That's how the transit went up.

Robert Phipps: A sir, respectfully there and you weren't. Absolutely. 100%. I I do understand exactly what you're saying. Respectfully, I would argue that this is the same process. The the the measure failed in 2022 and has returned and is that's what we are debating today. That is what you were debating.

Buddy Mendes: No,

Robert Phipps: is whether it is whether this evolution is worthwhile.

Buddy Mendes: No, this was a slam through process to get a 50% instead of having to have the 66 and a third threshold.

Robert Phipps: I understand

Nathan Magsig: some other questions I have. Um, now I'm on page 12 and uh the measure does talk about, you know, the importance of safe routes to school, um, improving neighborhoods and and you know, completing infrastructure, roads, uh, sidewalks, stuff like that around uh, neighborhoods. the definition of a neighborhood in the rural parts of the county. Uh you have farmlands, homes, you have kids that go to schools. Is there anything that truly defines what a neighborhood is or does it apply uh does that definition apply to both um urban, rural, and suburban areas?

Robert Phipps: I I I believe that the uh intent again and you can and you can speak with the project proponents on this uh perhaps more specifically but it's it's my understanding that the intention was uh to to treat them equally neighborhoods you know in in terms of uh those areas that host these uh uh services uh you know schools um uh sidewalks you know where where do you see this where do people uh walk and travel. Uh you know that these are neighborhoods where they live. And so whether it's in the rural area or in uh the urban uh that's how it was defined where people live.

Nathan Magsig: So Fresno County, it could be anywhere in the 6,000 square miles. And I appreciate that because really you've got I think 32 school districts. Some are uh in the metro area, some are not. Some are in the mountains. Uh you know, some are on the west side. So I uh I can appreciate that. But a concern I have is on page 12 number six it says all streets and roads constructed or improved in whole or in part with revenue from um the fund shall include com complete street features. Now even though it says whenever feasible complete street features whenever feasible to create an overall complete street system for neighborhoods. The reason I bring this up is as I look at this and read this, um, I want to know who gets to determine, you know, uh, where feasible because I look at more specifically on the west side of the county. East side, it's a little bit more challenging, but

2 hours, 45 minutes

on the west side, uh, the county may have right of way, um, off of a roadway, which extends uh, several feet beyond the pavement area. And uh to build a complete street um you're looking at a class one or class 4 bike lane, right? So anytime a dime of major [clears throat] C funds would be spent where you have where it's feasible if you have an adequate right of way, you need to completely build out in accordance to what uh what's identified in this document to build a complete street. So, I see the county uh being sued over this because if we do an overlay project using measure C based upon how this document is written and

we don't build a complete street, we go to court and then you have engineers saying whether or not it's feasible to build a complete street and it just comes down to well, you know, you should have spent more money instead of just doing an overlay project with measure C. How is this fixed?

Robert Phipps: Right. And and again, so I can I can speak only to the intent as I understand it. I addressed this in the memo that I provided to you that there's at least 15 references uh over the 34 pages of the initiative that use the expression where feasible or if feasible. Uh and and of course it's not just uh complete streets, it's not just safer schools, it touches on multiple aspects of uh several uh uh funding uh programs. And so uh the you know under uh item G on page 22 uh the ordinance states jurisdictions or agencies shall use best efforts to implement projects consistent with the intent of this act. In the event a jurisdiction or agency determines that a proposed project or project requirement is not feasible. The jurisdiction or agency shall follow following a duly noticed public hearing formally declare and document the reasons for such infeasibility. Uh, also page 10, section C, every uh, street or road constructed or reconstructed in home in the park. And I think this is what

Nathan Magsig: Mr. Phipps, I'm going to stop you right there. You do realize that um, like public works will bring a document to us very regularly where we're doing overlay projects throughout the county and uh, where three or four of our districts are being impacted by overlay projects. So, what I'm hearing you say is we would have to have a separate hearing where we couldn't do a complete street making findings um to satisfy this measure.

Robert Phipps: I think that that the the the specific process which again the how how do you do this is what is has to be implemented in the or has to be addressed in the SIP in the in the strategic implementation plan. So that's one of those issues uh that there may be some ambiguity that has to be and so uh uh uh you know a regular board meeting could suffice potentially.

Nathan Magsig: Okay. Yeah. If if because this is so prescriptive to the county um it puts uh tremendous onus on us. And again, Mr. Mr. Mayor, I appreciate you appreciate you being here and I I hate to continue to lean on you a little bit, but again looking at this the the county we maintain just under 3,500 road miles, second only to Kern County in the whole state, all 58 counties. And so we are using Measure Currently all the time to do overlay projects. um not expand anything, but the way this is written um it it it says that we've gota, you know, we we really have to build out these streets and and take all these extra efforts

that really um urban areas do right now, which I appreciate, but I think city of Fresno is about 170 square miles. Maybe it's approaching two square mile

Jerry Deyer: about 120 in the city.

Nathan Magsig: Okay, so 120 square miles and the county is 6,000 square miles. So um do you understand some of the concerns that I have just in regard to how I'm reading this document?

Jerry Deyer: Not not only do I understand the concern, but those were discussed in our meetings um by uh Mayor Monu and I uh and that's why we have the exceptions in there in terms of feasibility. Had to be compliant with certain state laws on what a bike lane was as well as the the the safety feature. And that was discussed during those meetings and that's why language was inserted about public safety and feasibility. We wanted to provide increased flexibility to the jurisdictions to include the county even though the county was not there during those meetings. So, I do understand it completely, but I also want um if I can, much of this is going to be vetted during the strategic implementation plan language and you know, which I'm sure the county would be at the table every step of the way. Um and so that that's where just like the last measure, that's where most of that um language in terms of specificity was included.

Nathan Magsig: On page 14, it says, "Funds shall not be used for street or roadway construction in new growth areas or new town developments." So, all of us uh cities, counties, we face regional housing needs assessment. We have to add housing.

Jerry Deyer: Yeah.

Nathan Magsig: So, um why as an author, why would you allow for language like this in here when as a region we have to grow? And uh I mean, how is the county going to balance this? When I take a look at, you know, I take a look at projects which currently are underway but not fully built out like Millerton New Town. Um I know that Friant Ranch at some point is going to come back to this board. Um why prelude these areas which uh have been um master planned uh and in the works for decades?

Jerry Deyer: Well, from a general feeling, I can speak to Fresno and I believe also to Clovis. Um, any type of new construction that requires roads generally is accompanied by a developer impact fee where the developer who is building that project is responsible for the for increasing the the either building uh lanes or expanding lanes to include signal lights. And so that is a developer responsibility in the city of Fresno.

Jerry Deyer: Then why did Measure C pay for Veterans Boulevard?

Jerry Deyer: Um, Measure C was one of the contributors to Veterans Boulevard. It was also by highspeed rail and there were some other funding sources. There was a combination of funds that that went into that. Uh, but Veterans Boulevard uh was something that quite frankly um was in was was needed for the last 25 30 years as you know just from general traffic all over Fresno. But so it wasn't necessarily specific to a particular development uh in terms of a neighborhood, just to the overall expansion.

Nathan Magsig: Well, I look at Millerton Road right now, which runs from Friant all the way out to Auberry Road. It's dangerous. It's about, I think, 4 miles long, and uh Table Mountains expanded it, uh but only a portion. And again, I look at I look at the Millerton New Town development, which going from memory, I think Ben Ule developed that, and it was approved by the county in the 1980s. So, I can make a very similar argument about Millerton Road, but as I read this document, um, because we don't have, uh, regional projects listed in there and then looking at anything that's capacity building building, I'm limited. There is a public safety need out there.

Jerry Deyer: Yes.

Nathan Magsig: Why, you know, why is the county being punished uh, when in the past other cities have been able to again utilize measure C dollars for things like that?

Jerry Deyer: You want to answer that or do you want I I I personally don't believe that the count there was never an intent to punish the county or to to hold the county separate because what's in the measure it really applies to everyone in terms of road expansion capacity and uh there's one part in there that talks about um you can't expand beyond a certain percentage unless your PCI is at a above 65. Well, the COG study of the county of Fresno's PCI averaged 66. So at that time you were already, as I recall, about that level, 66. So you already meet that standard today to be able to expand. And again, the public safety expansion uh or the public safety exception is what would allow you to expand a roadway if in fact uh engineers determined that it was uh some type of a hazard.

Nathan Magsig: Um I look at uh on page 17 um item 11. It says trails designated strictly for recreational purposes shall be ineligible for expenditures under this act. So why I look at again Fresno County very large. You've got uh trails that are associated with parks. You've got trails in Shaver which move people off of the roadway. and uh 168 which runs through Shaver, the whole goal is to really get people off that roadway and create more opportunities for them. But some of these trails or some of these areas are designated as trails. Why why would you specifically eliminate the ability of the county to use Measure C for trails when where a lot of areas throughout the county do move move pedestrians and and cyclists on areas that are designated as trails?

Robert Phipps: there there would be no prohibition uh for the county or any other jurisdiction uh under the condition that um the trail that we're talking about uh moves people from point A to point B. That is to say, it was not intended to uh serve recreational trails because the committee, the steering committee's intent was that this would be a transportation measure intended to get uh residents uh and and taxpayers from a point A to a point B, from home to work, from home to school, from home to uh rec uh shopping or recreational activities or uh any number of other services offer. throughout the community and then back to home uh you know or or from the job to these services or vice versa. So the intent of the measure was that of of getting people to move efficiently from point A to point B from place to place as opposed to uh a system to build recreational activities.

Nathan Magsig: Going back to page 14. Um, item three, I'm just going to read a portion of it. Before a juris the last sentence, before a jurisdiction can expend funds pursuant to this paragraph, every local street and road within the jurisdiction shall reach a pavement condition index score of 65 or above. And this is under uh bear with me. This is under repair, maintenance, and construction construct local streets and roads program. So this is the 65% allocation that the county would get. The reason I raised this up is I'm sure you are aware in the county we have county main street uh maintained streets and then we have private streets that are not countymaintained. But the way this is written it says every local street and road within the jurisdiction shall reach a pavement condition index score of 65. The reason I raised this up is since this is not identified as only countymained roads. Um, and I heard as well that during debate other people wanted it to apply to everything. So there is you've created a conundrum for the county because if you include dirt roads and non-countymaintained roads that the county has approved for over a hundred years throughout Fresno County, we would not be able to spend our dollars really anywhere. this this provision alone gets us into court. So, can you speak to why um that the language was uh put in here this way to require the county to have to um deal with all roads?

Robert Phipps: I well I think that it might be also helpful to hear from the proponents on this but it is our understanding that and it was in our economic analysis that we were looking at county first of all county maintained roads. Okay. And so uh and and that is to say paved you know so this analysis was occurring simultaneously with our uh pavement condition index uh analysis pavement management system update. uh and so it was the same consultant who was providing data for both and and we looked at uh in terms of fun for funding purposes and and formula allocation what was considered was uh county paved roads. So this did not envision funding going onto a road that is technically within the county system but let's say is gravel or dirt. that was not necessary, although that was raised, that potential for uh adding uh uh roads to the system that weren't already there

was discussed. Um and so again, any ambiguity there I think uh can be worked out in the the SIP and we can address some of these points where you know the language may have fallen a little short in the guideline.

Nathan Magsig: Is there an author of this measure that's here that can speak to this question for me?

Veronica Garibay: Thank you, supervisor. And I'm happy to if I'm able to can I continue? Thank you. Uh my name is Veronica Garibay and I'm one of the proponents of the measure along with Mayor Jerry Dyer.

Nathan Magsig: Are you an author as well?

Veronica Garibay: Yes.

Nathan Magsig: Okay.

Veronica Garibay: Helped participate as part of the process. Yes.

Nathan Magsig: Thank you.

Veronica Garibay: Um the point that you're bringing up on page around before a jurisdiction can expend funds pursuant to the paragraph every local street or road within the jurisdiction shall reach a pavement condition index core 65 or above. That's because for a couple of reasons starting with one the need to repair local streets and roads is so big across the county including county only but also the jurisdictions. This requirement applies to all 16 jurisdictions in the county not just the county alone. Um it was also we heard very loud and clear through the process starting from when the previous the 2022 measure failed that local streets were the priority and people want to see their potholes, sidewalks, crosswalks, excuse me, um improved in their neighborhoods near homes, school streets, parks, etc. So that came um at the point was one of the reasons why that was done in order to make it easier to improve street conditions. Third, the county, as Mayor Dyer just noted, according to the study that was commissioned by the COG that does a PCI analysis of every jurisdiction in this county, every three or five years or so.

3 hours, 0 minutes

Yeah, five years. Um, the county's current PCI is at 66. So, your 25 your 2025 pavement condition standard is 66 across the county. That includes all 3,000 plus miles in your maintained road system. when we uh during the steering committee process and the questions arose about what streets are covered in the county. You know, I' I've worked with many communities and disadvantaged unincorporated areas that some roads are not um included in the official countymaintained road system. So, there was a lot of questions

about which roads qualify or not. Where that landed was and I in the measure, you know, private roads owned privately are not eligible for funding from this measure. That said, this allows in this in the strategic implementation plan. It will allow the county, which the county has a seat at the table through the council of governments process and your staff through participation in the technical transportation committee and the policy advisory committee which meets every month to be able to weigh in and help shape that implementation plan so that those questions that you're asking for are clarified. If I'm able to, I'd love to be able to answer your questions around regional and capacity increasing if that's okay.

Nathan Magsig: Yes, please. And then also too, but what I want to hear you say is I've recognized there's a steering committee, but if that steering committee places a requirement on the county to do things which I personally don't believe are are possible or could completely exhaust all of um the county's allotment to have to deal with roadways that currently aren't maintained. I've got to call for an economic study. You have not given me assurance yet that no, that is not the intent. It's only going to apply to county maintained roads. And yeah,

Veronica Garibay: this is only going to apply to county maintained roads because that is what we heard from your county public work staff during the process. That was also reported to the to the policy board of the Fresno Council of Governments, which Supervisor Bredefeld sits on. um throughout the process. That was made clear by your staff because at the time there were also a lot of questions coming from the public about including roads that are not currently included in the maintained road system and whether or not those roads would be eligible to receive investment from a future measure. And the answer was no. If they are not included in the county from staff, county staff, if they're not included in the maintained road system, that is not possible.

Nathan Magsig: Uh and you were going to share a little bit.

Veronica Garibay: Yes. On the regional and the capacity increasing project in the same vein um around the current the county's current PCI to the reference the paragraphs that you were referencing around capacity increasing the county would almost immediately have access to that paragraph because your current PCI is at 66 um should voters approve this measure. Um secondly the the regional category there is a regional category it is at 4%. Um that however well it's 4% because 1% is for the airport. Um there also is SB1 state transportation improvement project dollars that um the state pays for and for major highways and freeways the state of California is responsible for maintaining and operating those and taxpayers already pay funds to to to make that happen. So we should be

expecting state and federal government to also participate and support in the development of major highways, freeways and major roads. Um second in the measure for to your point about additional capacity um the measure also talks about the regional transportation mitigation fee program which is new from um the pro it's not new I'm sorry it has existed me

Nathan Magsig: RTMF was implemented under measure C reauthorization I think in 2006

Veronica Garibay: yes correct um that program is maintained in this measure there will be a nexus study that looks at regionwide that the COG will conduct the council government staff or a consultant that will be reported to your policy advisory comm the COG's policy advisory committee technical transportation committee and the policy board that an that nexus study in here is slated to be completed by 2028 I believe which will identify the fees that are needed from industrial commercial and residential new development to be able to pay for new capacity that program has existed it will continue to exist and the Revenues from the RTMF that are included in this measure can be used to help pay for, contribute, construct new capacity where it is needed as long as it meets those nexus requirements where new capacity is needed.

Nathan Magsig: What I as I read between the lines, what you're saying is the RTMF is going to increase exponentially

Veronica Garibay: in terms of revenue generation.

Nathan Magsig: Yeah. So that means fees on industrial projects, fees on housing are going to go up significantly. Affordability,

Veronica Garibay: the current fees that will be determined by you. The fees will be determined with the support by the elected officials in this county with the support of a consultant or the COG staff which will deviate

COG Employee: in a nexus study. It will then be brought before the COG and there is a member of the county board of supervisor sits on that on that body that would then vote on if any fees are increased. That is not that is something that will be determined by the COG board through the Nexus study in 2028.

Nathan Magsig: But the fees would go up

COG Employee: potentially. We don't know. That's really at the determination of the board at that time.

Nathan Magsig: All right. And so a couple other questions. Um you indicated that uh uh because the county's pavement management index on county maintained roads is at

66%. We can you know do uh capacity expanding but it's we still run into the problem on page 14 which says eligible road expansion or capacity increasing projects shall only include the following dedicated public transportation lanes. So that's for buses, right? Dedicated and protected class one or class 4 facilities. And so and there's C, which is, you know, safety motivated turn lanes. But to me, I'm not worried about the turn lanes. I'm worried about a thoroughar. If I have an expressway that right now uh is two lane, one lane, two lane, and I need to uh complete that street that that's going to add capacity to that system, which really needs to be expanded. I can only have a dedicated bus bus lane based upon how this is written.

Veronica Garibay: No, the intent of the way that is written, the let eligible road or capacity increasing shall only include the following. That what that should read is or either one of those A, B, or C, not all three. So what in the scenario that you're talking about a safety motivated turnling or intersection improvements that protect all road users that would qualify under that. This section is not intended to read. You have to meet all do all three things. It's one of those.

Nathan Magsig: So, but so, but you would admit the way it's presented to us, the language then is wrong. But the voters are getting the language this way that you would have to do potentially all three. So, the language was was pres prepared wrong.

Veronica Garibay: I don't believe that the language is prepared wrong. I think it's an interpretation and intent of the program. And the intent of the program is to um allow or eligible road expansion or capacity increasing projects. The let the term or um cap uh shall only include the following and that's where A, B or C and it is an excellent point that you bring up supervisor around uh further explaining in the strategic implementation plan guidelines to make that clear and you may also use the additional right up above the paragraph. You may use 5% every jurisdiction, all 16 of you can use up to 5% of your allocation for capacity increasing projects. Um, after every local street or road within the jurisdiction reaches a 65 PCI or above, as um has been shared, the county's current PCI is 66.

Nathan Magsig: Understood. And again, if if it only includes one of the three, we still can't add I still can't um add that additional lane based upon A, B, or C.

Veronica Garibay: That would be in that would all would come in two places. One in your um that could come up as part of your traffic studies that demonstrate reduction in fatalities are serious, but it also comes from your 5% in the paragraph right up above.

Nathan Magsig: Okay.

Veronica Garibay: And um the additionally the regional category um the the in the measure um gives the policy board in this case every jurisdiction in the county the opportunity to weigh um which regional projects should be funded and how should they should be prioritized. So, it gives you another opportunity to in addition to any additional dollar, state or federal funding that you may have access to um to be able to fund large regional projects.

Nathan Magsig: On page 14, item seven, it says jurisdictions shall prioritize funding for existing neighborhood roads with the lowest pavement condition index score or in project areas in need of improvement in disadvantaged neighborhoods and communities. My question is on this uh there's no um uh emphasis given on I know that we can spend these dollars differently based upon public safety concerns but sometimes roads that have low uh pavement uh condition index um are in very low traveled areas. So maybe they have a 100red or 200 trips a day where you might have an equal road with the same uh pavement condition index that is has 5,000 trips a day. So how this is written, I've got to do the road that's in a disadvantaged community first before I can address the road that maybe is more heavily traveled.

Veronica Garibay: You know, I may be confused about what can you which section that says jurisdictions to clarify that says jurisdictions shall prioritize funding for existing neighborhoods road roads with the lowest pavement condition index. So the worst or in project areas in need of improvement in disadvantaged neighborhoods and communities. That is an ore and that was a change at the request of the mayors at the policy uh board

when this went early on in the process that um initially I believe that was an and was changed to an or to give you flexibility to be able to direct your dollars to where it's needed the most.

Nathan Magsig: The well it it it doesn't help the the county per se um even with that or in there. The reason I say that is again back to um if I have two equal streets, one's in a disadvantaged community that has a pavement management index that's the same of another street, one street's more heavily traveled. I would have to spend those dollars in the disadvantaged community first based upon how I'm I'm reading it.

Vernoica Garibay: I would not read it that way. I would read it you could spend it in the area that needs it the most or in a disadvantaged community. What's that? 12 to 15. Yeah, the 12 are you're referring to just the 12 to 15%. I think you're referring to the general language, right?

Nathan Magsig: Well, the 12 to 15% specifically says of the 65, 12 to 15% has to be spent uh

Veronica Garibay: disadvantaged communities

Nathan Magsig: first. So again, to me that's it's confusing and it really causes some challenges at the county level. Um um so active transportation page 15 item C number five. Um second sentence down it says this 4ft shoulder may be provided as a bike lane or cycle track. Uh if an existing expressway, super arterial or collector road is reconstructed and reconstruction includes pavement widening, that project shall be subject to this requirement which um is specific to a bicycle travel lane. So a type one or type four facility. What I identified here is a challenge. My district alone, I've got over 400 bridges and sometimes there are projects where you do have to expand a roadway. And as I read this, I would have to continue this dedicated bike lane, even through a bridge, which would require me to deconstruct bridges and actually build wider bridges so I could have uh a class one or class 4 bike lane. That is a problem. Some of the bridges, I mean, we I look at Italian Bar Bridge, which we built over the San Joaquin River, that was $14 million. So, how can I spend uh this allotment if requirements like this are placed on the county where again just my district alone 400 plus bridges?

Veronica Garibay: I I think can you clarify which section you're speaking to because we may be looking at different um doc versions.

Nathan Magsig: Yes. Yeah. So, it's under active transportation. It's number five.

Veronica Garibay: Okay.

Nathan Magsig: Page 15.

Veronica Garibay: That language there says where feasible and as was pre the that starts where where it's feasible and in as Robert noted earlier on page 22 you the county will make the determination whether that's feasible or not as in you and your public works staff.

Nathan Magsig: The audits though that come looking at how dollars were spent. What happens if the audits determine that it was feasible and we said it's not?

Veronica Garibay: You're in your audits you're just reporting how you're spending your funds.

Nathan Magsig: Oh, no, no, I'm talking about COG and then the 11 member independent board.

Robert Phipps: Right. And again, this this is something that would have to be further vetted through the SIP through the strategic implementation plan to clarify and ensure that the language is is very clear to uh to all parties. But uh you know a a mistake I think the intent was a mistake would be treated differently than an overt action that was intended to

deceive. I think that that is what that as I understood it that was that what that language was intended to avoid.

Veronica Garibay: And additionally on the steering committee the oversight committee both iteration previous iteration the 86 and 2006 uh version of measure C both included an oversight committee that has a membership. It requires uh members to be appointed by the Fresno Council of Governments. Um it does require that at least five of those members are from a one of uh five of those members come from each of your supervisorial district.

Nathan Magsig: Yeah. Cog picks them I think right cogp picks those those members or is it the

Veronica Garibay: council of governments and where the board of supervisors does have a seat and that has been the same as the 86 and 2006 measure that is not a departure from past practice members of the oversight committee have always been selected by the council of governments

Nathan Magsig: so the measure itself as I looked at different language in here. The measure, these dollars can also be used for building affordable housing. Is that correct?

Veronica Garibay: No, it it can be used to support infrastructure in areas that have been designated as in in um it's only permissible only if each jurisdiction wants to. similar to the current program in the current measure C

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the transit oriented development program that it's currently that currently exists it is in the same manner as that and it is permissible it is not a required expenditure um under the language it is allowed a jurisdiction you can decide this isn't a COG decision this is a county or a city of Mendota or a city of Fresno or a city of Clovis decision only and that was done to maintain consistency between the um to ensure that the current measure which does allow for transit oriented development um to to be able to maintain those programs.

Nathan Magsig: There's a section in here I need some clarification uh from you on. So I now am design and implementation elements. So page 26 and page 27. So this measure funds can also be used for parks, for trees, for irrigation systems, anything that's related to uh reducing greenhouse gas emissions. Correct.

Veronica Garibay: Not parks. It is for parks. For I'm sorry, it is for trees and shade around trails, walking paths, uh transportation networks, safe routes to school. Um where you are looking at page which subsection um uh 46130 design implementation elements and you're looking at which specific [snorts] sub

Nathan Magsig: C says funds may be used for the maintenance of landscaping along pedestrian walkways bicycle facilities local and major roads highways trails in the public rightway including but not limited to irrigation systems operation repair pruning landscaping tree canopy preservation and litter and weed removal.

Veronica Garibay: Yeah. Along those trails. So from point A to point B to make it safer and easier for people to walk, bike or ride or drive to where they are going. Yes.

Nathan Magsig: So um item H. So I look design and implementation elements. So this this is specific to the overall uh program. Yeah. Item H says this funds made available under this act may be used in whole or in part. So, as I read that, all the funds or a portion of the funds as matching funds for eligible state and federal programs in order to increase benefits to residents of the county region. Do you agree that's what that says?

Veronica Garibay: Yes.

Nathan Magsig: So, my question is this. Could I just not use any of the dollars at all for roads? use these dollars for state and federal programs that we receive through public health, department of uh social services to provide benefits to the public.

Veronica Garibay: No, you cannot. The way the ordinance is structured is um each section each major category of the measure has its requirements. So, existing neighborhood roads, you know, etc. This is what 46130 where subsection H is speaking to the design and implementation to offer some guidance. What this reads is that you may use your funds that are allocated to each of the 16 jurisdictions to leverage state and federal funding. And the intent here is that there are various state and federal funding programs that do require matchfort in order to compete um be more competitive in your application or it's a requirement period to provide a matching component for a regional project. What this subsection gives you is the ability to use the funds for transportation under for the allowable project types under this measure only to leverage state and federal funding.

Nathan Magsig: I only asked that question because it doesn't say that. It's very broad and open. It says any state or federal funds uh for the benefits to residents of the county region.

Veronica Garibay: It's the way the measure is constructed. So the way so sub the subsection titled design and implementation elements is attached to all funds referenced in this only in this measure. So it would only be for programs in the transportation section. And then additionally right up above it there is um uh the that that's the jurisdictions or agency section shall use best efforts to implement projects concerned with the intent of

the act. That's related to the feasibility issue. Um but the intent here and the way this was written and the way the ordinance is structured legally structured is that this only applies to the categories and the and eligible types of projects in each of the category only.

Nathan Magsig: So again we keep talking about intent and really if if we ended up in court the authors of this measure would be asked what was your intent? Who were the authors of the measure? I know four of them were mentioned, four of the proponents in here. Who else were authors of the measure?

Veronica Garibay: The there you're right that there are four proponents. This measure was crafted um with strong participation from all 70 of the 72 zip codes in Fresno County. There were 34 meetings countywide. There were over four uh just over 4,000 comments and um public comments that were reported to um that were provided. It's part of the public process to help shape the plan. Um that this was also discussed through the 38 member steering committee. It was also discussed every month at the policy board. So every month staff at the council of governments was providing updates to the policy board about the what the steering committee was doing, what the steering committee was recommending, what the steering committee was doing. That process was followed. Um and this is how this measure came to be.

Nathan Magsig: But again the what COG did this is not what what COG the finished product of COG this is there's modifications

Veronica Garibay: yes there is modifications so this was drafted by interested stakeholders including members of the public uhation

Nathan Magsig: stakeholders were that helped draft this there were the reason this is important is if at some point we end up in court over it I want to know you know what the intent what the intent was by the people who helped draft it I think That's important. The

Veronica Garibay: I it's really hard to categorize that because there were thousands of people who provided public input and those public input that the public input that was provided including the data that we received from the COG permission commission poll informed the drafting. A lot of this language also comes from the previous iterations of measure C's. This measure is more prescriptive. You were right about that and I want to be honest about that. And the reason that incl that that is included is because in the process there are two things that we were trying to balance one is providing jurisdictions with flexibility. In this case the majority of the measure $4.8 billion over 30 years can be used for an expanded amount of project types that you currently can't do with the current measure C. This gives you the ability to fund sidewalks, crosswalks, bridge repair in your district,

wildfire management, which I heard you emphasize when this board considered the TOT tax about the importance of investing in infrastructure to protect against more frequent

Nathan Magsig: removal.

Veronica Garibay: Exactly. Um that this measure allows you to do that. That is why $4.8 billion. So while we were trying to manage flexibility for each jurisdiction, including the transit agencies, to determine how to use the funds, there was also a strong desire by taxpayers and voters for accountability. Voters and residents want their to know exactly how their hard-earned tax dollars are going to spent. And this measure balances the need for flexibility while also calling for accountability for taxpayer dollars. that is fiscal responsibility and allows us to remain accountable to voters who are entrusting you to implement if if they were to approve this measure because this comes down this isn't whether I support it or I I can vote for it. Um but it's not up to me. This is a decision that the voters will make whether they support this. um they do want to see that their tax dollars are spent according to how they voted and this measure does that and speaks to what residents have said fix our local streets but the but give us the ability to make the improvements how regardless of whether we walk, ride, bike or ride a bus.

Nathan Magsig: Okay, [applause] another question I have for you. Thank you. On page 27 at the top, item F, it says, "It's the intent of the people of Fresno County that each jurisdiction that receives funding under this act adopt and follow dig once uh construction project principles requiring public and private roadway projects to accommodate the installation of conduit to support community needs, including but not limited to broadband fiber optics, storm water systems, and sidewalks. So, I can appreciate this, but a question I have is, uh, if so, at the county level, if we adopt something like this, um, how do we carry that forward? Because, again, anytime we do an overlay project, I've got to, you know, do we put down conduit in the ground somewhere to allow for fiber to be pulled later? Because there's many areas in the county that need fiber, many areas in the county that don't have sidewalk. um many areas in the county that don't have storm water systems. But as I read this, all of us would be required to adopt this and um basically install systems. So I mean, help me.

Veronica Garibay: I'm trying to find the specific subsection. I'm sorry.

Nathan Magsig: Page 27

Veronica Garibay: huh? Um which page was it, supervisor?

Nathan Magsig: Yeah, page 27, item F.

Victor Martinez: Let me just Can I say the comments? Sure. If this applies to cities like [clears throat] the city of Mendota, the east side of the city of Mendota was county before and there's a lot of areas in there that where we're trying to fix the the roads, we still have to install the drain system because it doesn't have that. So, I see it as you know that we can utilize that money to fix the infrastructure because we're not going to go there and tape the top and not fix what's underneath it. So that's what this section applies to cities like the city of Milo.

Veronica Garibay: And thank you just to add further clarity to that. The way that the the the way dig once works is you notify other pro. So for example in um if you have a project where you're going to replace resurface or redo the asphalt in a jurisdiction um that you notify other departments or other potential project proponents that may also be looking at say a storm water installing a new storm water drain or new water system line to improve water. that that is happening so that if it's possible to be able to coordinate that. It does not require that and that's in an effort to make sure that if you're ripping up the streets to put in infrastructure that you're allowing others to do at the same time to minimize cost and save taxpayer dollars.

Nathan Magsig: Yeah.

Veronica Garibay: Thank you.

Nathan Magsig: I I I appreciate the clapping, but again the concerns that I have um it says adopt and follow the dig once construction project principles. So I use like uh here we've got Southern California Edison and P Gen two utilities. Sometimes they underground lines, but sometimes they're um projects where yes, they would want to participate in the dig once uh could be years in the future. So um are

Veronica Garibay: you not required to hold off on your project to allow for PG&E or um Southern California Gaset, for example, to complete their project. This is just a principle. it for you to notify them that you're moving this project forward in case they're ready to move too um and move a project forward at the same time.

Nathan Magsig: Okay. All right. Yeah. So, I want to say again, Mr. Phipps, thank you for uh providing and thank you for your comments as an author of the of the measure. I appreciate uh some of those clarifying comments.

Robert Phipps: Thank you, supervisor.

Nathan Magsig: Yes. [applause]

???: Members of the board.

Nathan Magsig: So, Mr. Phipps, I appreciate you spending so much time with me. Um, uh, and, uh, providing this letter. And I know that our staff, uh, back in November or December, uh, there was a Muhammad, I think he since has retired, uh, provided a number of, uh, issues and concerns that he laid out. Um, I don't know that specifically some of those concerns that he had were uh were addressed, but I do appreciate what's that. Yeah. And I'm going to I'm actually going to have forward next. Um, uh, but I appreciate you taking time with me kind of drop of the hat both Thursday night and then Friday. So, thank you for that.

Robert Phipps: Thank you, Supervisor.

Nathan Magsig: And here we also have Bernard and other members from public works. So, uh, whoever's here from public works, if you can step forward. [clears throat] So, appreciate uh you guys having an opportunity to be here. I'm sure that you also have looked at exhibit A. Um, are there other concerns that you have with how this measure um is structured? Do you feel that your department it's going to be workable? So just share some of uh your thoughts and observations on

Bernard Jimenez: Yeah. First for just for clarification, there was quite a bit of discussion over PCI and and how the county currently meets that. I just want to make sure the board understands that that that's an

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average PCI and I think the measure indicates that every road in the county needs to meet that standard. So when you have a brand new road, you have 100% PCI. Uh we don't have that obviously throughout the county. And also to your point supervisor could and the reason for that is one we just don't have enough money to bring those road up to that standard. Uh and secondly we we have a lot of rural roads that don't have a lot of traffic. Um and so we put our money where it could be best used. So I just want to make sure you understand that that's that's an average PCI number. Uh but but the way the measure is written every road has to meet that standard. Um, in terms of the overall standard, I will say that, you know, I don't disagree that the uh measure has the opportunity to provide the county uh more dollars than what the the prior measures do. Uh, but there are some strings attached and I think this discussion um can illustrates that there's some uncertainty and some um things that need to be clarified. Um and so you know if if we're if the measure passes we'll do our best to work with the folks involved to clarify those items so that way it is clear as to how we operate. Um so that that's just a general observation we have.

Gary Bredefeld: Could I ask a question super? So when you say it needs to be clarified would it be clarified if this board uh initiated the study? Is that what you're talking about in terms of getting the clarification?

Bernard Jimenez: So some of the implementation stuff wouldn't be clarified until after the measure is passed. I think that that's what has been articulated here. My concern, probably the biggest fiscal concern I have is the measures uh provision about every road having to meet the standard. We have not evaluated what it would cost Fresno County to bring every road in this county up to that to that standard.

Buddy Mendes: Um I just want to ask you, you know, another question. like that, you know, and I'm just gonna talk about, you know, some of the rural communities like uh I use like right now Riverdale is actually is a disadvantaged community and we're doing the main street right now, but u the main street into getting to Lenire is Mount Whitney and the PCI of that road is it's 100, right?

Bernard Jimenez: Yeah, because it's a brand new road, right?

Buddy Mendes: Okay. Okay. You go to Cantua Creek. The main road there, I think, is CAM.

Bernard Jimenez: Yes.

Buddy Mendes: Okay. Didn't we just do CAM?

Bernard Jimenez: We did.

Buddy Mendes: So, the PCI on that road is

Bernard Jimenez: 100.

Buddy Mendes: 100. Okay. Now, the roads, I don't know if that's Brian's district. The roads inside are those private roads or does a county have any

Bernard Jimenez: those are those I'm going to clarify those are public those are publicly maintained roads correct right and and then again you you take a look at our unincorporated communities um we have invested I I just want to make sure that you know for the public's concern the county has invested millions of dollars measure C and other other um monies uh into these communities and we continue to do that and we will continue to do that right not just road but sidewalks um um sewer and water infrastructure um so we'll continue to do that but but taking a look at um tranquility I think supervisor u you know we went through great efforts because of the soils conditions out there and the cost to improve those roads I mean that those are just segments of roads we we focused on

where folks were traveling to and from to get to schools for example but there are roads out there that do not meet the 65 u uh PCI I and

Buddy Mendes: some of those roads you just can't overlay because

Bernard Jimenez: No, you have to reconstruct. They're they're too far.

Buddy Mendes: Places like Tranquility Mandota San you got they're on black dirt that you have to bring road base in a lot base.

Bernard Jimenez: Yeah, those are total reconstructions.

Buddy Mendes: Yeah. And here's another thing about complete streets and tell me if I'm wrong or not on uh you know a lot a lot of communities you can't do complete streets because the houses themselves their elevation is too low compared to the street. It's not like they're a foot and a half above the street. Correct. On the older homes.

Bernard Jimenez: Correct. Correct. So when you when you look at putting in uh curb, gutter, sidewalk where there where there does not exist today, you have to look at the the entire community to see where that water is going to drain to. And then you're talking about capturing those waters and developing basically a storm water system with basins. So it it's more than just putting physically in the road. You got to look at how that affects other areas of the community.

Buddy Mendes: So I don't know some people might not think that's pra might think it's practical when you don't have elevation it makes it impractical.

Bernard Jimenez: Yeah. And there's frankly parts of this community you take Fig Garden for example where they have fought very hard to not have sidewalks in their community because of of that semi-ural nature that they're accustomed to.

Luis Chavez: Magsig just real quick follow since we have Bernard. Um, okay. Bernard, um, what we've talked about the quality index of of the road and and how it's an average and there's different areas that have a different designation. Um, how much how much money in general fund do we put in for roads at the county level every year?

Bernard Jimenez: Uh, no money.

Luis Chavez: No general fund.

Bernard Jimenez: General fund money.

Luis Chavez: How much money do we get from the current measure on a yearly basis?

Bernard Jimenez: It's approximately $8 million.

Joe Harrell: This year will be 9 million.

Bernard Jimenez: 9 million

Luis Chavez: $9 million. And so next year we don't have any money on there. What's the contingency for doing that road maintenance that we have been doing with the millions of dollars if we have nothing on?

Bernard Jimenez: I think the measure expires in 27 and obviously there'll be a windown period because those there's been monies that are still in those accounts. But but to your point, you know, we're going to we'll we'll improve whatever monies we have available. So obviously we'll have to scale back dramatically if we don't have that funding and we'll focus on whatever we can do.

Luis Chavez: And how many layoffs are we projected to do?

Bernard Jimenez: I think that what you heard was about 90 and and that's based on the information we have available.

Luis Chavez: And what positions would those be?

Bernard Jimenez: It's wide ranging. Uh it would be our road crews who are kind of our boots on ground. Um and then it goes all the way up to our engineers uh inspectors who design for these future projects.

Luis Chavez: Thank you.

Buddy Mendes: Okay. How much how now there's other what other funds do you have to do?

Bernard Jimenez: We have multiple funds. Um I don't know them all but it it is the gas tax. It is SB1. Um

Joe Harrell: yeah we get transportation uh taxes sorry we we get a number of funds both just in tax taxes themselves uh transportation development act taxes. We get a portion of that that we get to use on our roads.

Buddy Mendes: Yeah.

Joe Harrell: um SP1 as he said, HUTA, some of the toll uh toll road taxes and those type of things are shared across the state. So those are all the tax pieces that we get and then we also leverage that with a lot of grant funding that we put into for every year.

Buddy Mendes: So like this last year, what did we spend on roads, the road division?

Joe Harrell: I think our ballpark number was about $120 million.

Buddy Mendes: Okay. So we're ba basically losing 10%.

Joe Harrell: We're losing 10%, but it's it's it's the the 10% that hurts us the most because this is all locally funded and and that's what our our staff is

Buddy Mendes: latitude to get some of the grants that you have.

Joe Harrell: Right. Correct. Correct.

Gary Bredefeld: Can can I ask question please? Uh so if the board uh gave you the direction to do the study, what would what information would you be doing? What analysis would you be providing uh to this board and to the community?

Bernard Jimenez: So I I I think generally and and I'll be frank, we have never done a study like this before, but my understanding is looking at the fiscal impacts of this measure on on Fresno County. So um somewhere I heard that there was a category of items that should be considered including consistency with the general plan. Um you know what I mentioned right now, one definite analysis would be what is it going to cost Fresno County to bring up all of our roads to the 66 PCI uh standard. um that's probably going to be the most critical aspect of it in order to continue to be eligible to use these dollars. Um and so obviously your board can help craft what that scope should look at, but you know based on my understanding, we'll be looking at what is the impact.

Gary Bredefeld?: Okay,

Luis Chavez: Bernard, there's nothing that prevents us from doing a study and putting it on the ballot, right? That information could be available to the public.

Bernard Jimenez: I'm sorry. Say that again.

Luis Chavez: I want to make sure we would do the study. just mentioned, but we could also put this on the ballot and then have other conversations um after. That's an option for us. Not asking you to address the ballot part, but the the study, how long would it take you to do this study?

Bernard Jimenez: So, my understanding we have 30 days. Is that correct? I I don't

Buddy Mendes: Yeah,

Luis Chavez: would you need the 30 days?

Bernard Jimenez: Sitting standing here today, I would say yes because again, this is not something that we've done before. Um and and frankly, we've not even talked about the actual scope of it. So standing here today, I would say 30 days, obviously shorter if if we can pull that off.

Luis Chavez: I don't think there's anything that prevents us from doing the study and putting it on the ballot and then let the public decide, but just food for thought.

Nathan Magsig: Couple other questions. You brought up consistency with the general plan. What do you do? I mean, we have tax sharing agreements. There are areas in the county. We have county islands and then we have we have city general plans that are over overlaid over the county general plan. So, um, whose general plan would we use if we're within a like SEDA, you know, the the city of Fresno SEDA SEDA growth area and we are looking to do a project because the county still has jurisdiction there. You have zoning which is completely different in each jurisdiction. I mean, how is that handled? Have you thought about that?

Bernard Jimenez: Well, the way the way it's handled today is you're right, the county has jurisdictions over all of the areas that are outside of the cities, including those areas that are within each of the spheres of influence. Our we do have a general plan that directs growth to the city. So, when it comes to like urban development, um under our general plan policies and under our tax sharing agreements, we are obligated to try to direct that growth to the cities. Um there are some uh of the tax sharing agreements that go beyond that. So for example, the city of Fresno. Um if we were if we were to refer a project, we could only process that project provided it was consistent with their general plan. Um so there there are and again the intent is to try to concentrate the growth within each of the cities um and allow the county to focus on on you know preservation of natural resources.

Nathan Magsig: I look at Clovis South right now, which is in the uh sphere of influence of the uh city of Fresno, but it's completely in the jurisdiction of the county because it hasn't been annexed out there. We have a number of intersections that have been impacted that the school district needs to bring, you know, bring to bear, but until they fully improve that, if the county needs to spend Measure C dollars on those roadways, does this measure require us to basically build city streets because it's in the city of Fresno's sphere of influence? These are the things which concern me um as I look at the measure because sometimes you have um city and county general plans that are supposed to uh instruct us and as I look at this and even the complete streets when you spend these dollars you need to build complete streets are we also taking on the burden of uh completely building out

areas that are future growth areas for you know the the 15 cities that are throughout the county

Bernard Jimenez: potentially I I mean when when you talk about the school district, you know, if Fresno um doesn't ever grow out there and we start having issues years down the line because of the school and the traffic that's being generated as a result of the school, uh I could see a scenario where we're going to have to step up. Uh hopefully we can partner with the school to address those things, but but frankly ultimately these are our roads, so we have responsibility for them. So if there's a hazardous condition, we could find ourselves having to make improvements to to in that scenario. for example. But in general, I I would hope that either the cities are partnering in those those types of of situations or developers are are being conditioned to participate in those improvements. But that's why I say potentially.

Joe Harrell: If I could if I could add one more thing to that is we're already in the process the safe routes to school process. We've already done a walk audit of 40 schools and we have candidate lists for different approvements and that's uh both within the um the city sphere of influence and outside of it. Uh you know inside the uh county islands and especially the the half streets um and so those are things that are already ongoing and and we're participating in um and then this would potentially fund it. Um but that's that's part of our normal process already.

Nathan Magsig: If we build a safe route to school and then that's annexed into the city, who gets credit for that? Is it the city or is it the county?

Bernard Jimenez: I Yeah, I don't know that there's credit to be gained or lost. I mean, it's an improvement that uh in that scenario, the city would would take over and be responsible for long-term maintenance.

Nathan Magsig: I'll wait for uh our chairman. I think we're good to go.

Gary Bredefeld: Okay.

Nathan Magsig: Thank you.

Gary Bredefeld: Sure.

Nathan Magsig: We could keep going. I got more questions.

Brian Pacheco: Sure. Nothing else.

Joe Harrell: We done?

Buddy Mendes: No, I could have called most.

Brian Pachecho: I I mean, yeah. [laughter]

Gary Bredefeld: Do you have a motion on the table that you'd like to put forward, Mr.

Nathan Magsig: I'll let the two of you make the motions, but I will say this. Um, I've been studying this since Wednesday, and I have a number of concerns as it relates to this particular measure. I wish the the one issue if I were to call it a fatal flaw as I see it that's uh that's in the measure that really caused pause for me is it was so prescriptive to the county. I don't know exactly how the county is going to be able to fully expend its portion which is coming to us. I will admit that going from a 34% local roads um amount to deal with uh maintenance of roadways to 65% overall will give the county access to more dollars. but it's so prescriptive on how the dollars have to be spent. I'm concerned that we open ourselves up to litigation. Um there's potentially the county could have impact not being able to fully follow what's laid out um in the document which is much more detailed than the former Measure C's that were put together. I wish a county representative would have been a part of writing this and I don't think we would have been here today. But that's neither here nor there and so um I'll leave it at that.

Gary Bredefeld: I'd like to make a motion to um uh for B um refer the act to uh the county agency or agencies for report on the effect of the proposed ordinance that and

Nathan Magsig: and put it on the ballot.

Gary Bredefeld: No,

Nathan Magsig: not put it on the ballot.

Gary Bredefeld No.

3 hours, 45 minutes

Buddy Mendes: Well, it has to be on the

Gary Bredefeld: Well, it'll be on the ballot

Nathan Magsig: for 26.

Gary Bredefeld: But this is

Nathan Magsig: and with that report, so to me, what I'd like to see in that report is specifically the prescriptive nature of the measure as it relates to how the the county has to expend its portion of dollars. I want to know the full impact of that. Um, so that's where I really want that report to zero in on. So, if you're willing to include that.

Gary Bredefeld: Absolutely. And I and I outlined also some of the other important things uh that I mentioned before. Uh, could we do a roll call, please? Yes.

Bernice Seidel: Chairman Bredefeld.

Gary Bredefeld: Yes.

Bernice Seidel: Supervisor Mendes.

Buddey Mendes: Yes.

Bernice Seidel: Supervisor Chavez.

Luis Chavez: No.

Bernice Seidel: Supervisor Magsig

Nathan Magsig: I.

Bernice Seidel: Supervisor Pacheco.

Brian Pacheco: No.

Bernice Seidel: 3-2. Motion passes.

Appendix L. FCTIA Consistency Matrix

Detailed Fresno County General Plan - FCTIA Consistency Matrix

General Plan Provision	Policy Direction	Initiative Relationship	Finding	Planning Consideration
General Plan Vision and Themes, Part 1, pp. 1-3 to 1-5	Urban-centered growth; service efficiency; multimodal mobility; economic and freight needs; air quality; health, safety, and environmental justice.	Existing-neighborhood repair, transit, active transportation, regional connectivity, DUC priorities, and performance requirements.	Generally consistent;	Confirm that project selection balances rural, unincorporated, freight, emergency, and equity needs.
LU-F, Urban Development Patterns, pp. 2-53 to 2-55	Mixed-use, transit-oriented, higher-density and infill development; Complete Streets guidelines.	Transit, active transportation, TOD funding in existing mixed-use districts, and existing-neighborhood focus.	Generally consistent	Verify TOD eligibility against zoning and the current Housing Element.
LU-G, City Fringe and Unincorporated Communities, pp. 2-63 to 2-66	Orderly growth, city coordination, adequate services and road access, community-plan consistency.	No local-street funding for defined new growth areas/new towns; regional funds may remain available.	Conditional / potentially inconsistent /project-selection dependent	Map definitions against SOIs, planned urban boundaries, community plans, specific plans, reserve areas, and housing sites.
TR-A.1, Roadway Design Standards	County standards incorporate Complete Streets and allow exceptions for extraordinary cost, traffic calming, and environmental constraints.	Complete Streets where feasible; engineering and public-hearing infeasibility documentation.	Generally consistent	Use objective County feasibility criteria coordinated with ordinance procedures.
TR-A.2 and TR-A.25, VMT	VMT evaluation and mitigation for plan changes and discretionary development.	Regional selection includes VMT reduction; active transportation and transit may reduce VMT.	Generally consistent	Do not treat Initiative funding as project-level CEQA compliance; apply County VMT procedures.

TR-A.3, Level of Service	Plan and design for LOS objectives; prioritize maintenance but program capacity based on total needs.	Five-percent capacity cap and jurisdiction-wide PCI 65 prerequisite under local-street program.	Likely inconsistent	Identify affected LOS, freight, emergency, and growth projects and alternative eligible funding.
TR-A.5 and Implementation Program TR-A.B	Use technical tools and maintain a five-year Road Improvement Program covering maintenance, capacity, operations, and safety.	Lowest-PCI/DUC priority; five-year analyses and plans.	Conditional	Integrate Initiative priorities into the RIP without displacing network-level PMS and safety analysis.
TR-A.7-.8, Regional Coordination	Coordinate with Fresno COG, Caltrans, cities, and adjacent jurisdictions; maintain RTP and funding priorities.	Fresno COG program administration and regional project-selection process.	Generally consistent	Define County role, representation, project submittal, dispute, and prioritization procedures.
TR-A.12-.13 and PF-B.2-.7, Funding	Pursue grants and matching funds; use equitable, feasible financing and allocate costs among beneficiaries.	Bonding, five-year accumulation, match authority, formula funds, cooperative reimbursement agreements.	Generally consistent / conditional	Verify cash flow, match availability, cost responsibility, reimbursement timing, and administrative costs.
TR-A.14-.15; TR-A.23-.24; TR-D.1-.9	Multimodal streets, urban and rural Complete Streets, bikeway and trail network, gap closure, maintenance, and funding.	Complete Streets, ATP linkage, facility standards and targets, SRTS, maintenance eligibility.	Generally consistent	Reconcile required facilities with ATP networks, right-of-way, rural context, drainage, utilities, and maintenance.
TR-B.1-.7, Transit	Responsive, cost-effective transit; transit corridors;	25 percent transit allocation, fixed agency shares,	Generally consistent / conditional	Evaluate long-term adequacy of fixed shares

	funding; special needs; transfers; Safe Routes to School.	paratransit, service expansion, performance metrics, five-year plans.		and rural/unincorporated service outcomes.
TR-C.2, Transportation System Management	Consider operational measures before new traffic lanes.	Signal, ITS, traffic-calming, multimodal and operational improvements are eligible.	Generally consistent	Program lower-cost operational solutions before capacity projects where appropriate.
PF-A.1-.2, Infrastructure and Service Availability	Infrastructure plans, phasing, finance, and adequate facilities for new development.	Local-street funds are unavailable for defined new growth areas/new towns.	Potentially inconsistent	Identify alternative financing for adopted growth areas and state-mandated housing sites.
EJ-A.11, EJ-A.16, and EJ-B.1-.5	Prioritize disadvantaged communities; document deficits; support walking, biking, SRTS, and facility access.	12-15 percent County DUC set-aside, needs assessment, low-PCI priority, active transportation and SRTS targets.	Generally consistent	Confirm DUC boundaries, needs, project eligibility, cost, PCI baselines, and redirect conditions.
Part 3, General Plan Consistency in Implementation	County capital projects and other actions must remain consistent with the General Plan.	Initiative creates funding and procedural rules but does not amend the General Plan.	Conditional	Each Initiative-funded County project and five-year plan requires a separate consistency review.

DISADVANTAGED UNINCORPORATED COMMUNITY MAPS WITH PAVEMENT CONDITION INDEX

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

Legend

- Disadvantaged Unincorporated Communities - SB 244
- Incorporated Cities
- Fresno County

ID	DUC NAME
1	ASHLAN AVENUE COMMUNITY
2	BIOLA COMMUNITY
3	BRITTEN AVENUE/CHERRY AVENUE COMMUNITY
4	BURREL COMMUNITY
5	CAMDEN AVENUE COMMUNITY
6	CARILLO AVENUE COMMUNITY
7	CARUTHERS COMMUNITY
8	CHESTNUT AVENUE COMMUNITY - SHADY LAKES
9	CHURCH AVENUE/FLOYD AVENUE COMMUNITY
10	CORNELIA/FLORAL AVENUE COMMUNITY
11	CSA 30 COMMUNITY - EL PORVENIR
12	CSA 32 COMMUNITY - CANTUA CREEK
13	CSA 39 ZONE A COMMUNITY
14	CSA 39 ZONE B - WEST PARK
15	CSA 43 COMMUNITY - RAISIN CITY
16	CSA 49 - O'NEILL FARMS
17	DEL REY COMMUNITY
18	EAST ADAMS AVENUE COMMUNITY
19	EASTON COMMUNITY
20	FIVE POINTS COMMUNITY
21	FLAMINGO MOBILE HOME COMMUNITY
22	HAYES ROAD COMMUNITY
23	HUGHES AVENUE/MAGNOLIA AVENUE COMMUNITY
24	LANARE COMMUNITY
25	LATON COMMUNITY
26	LOST HILLS COMMUNITY
27	MADERA AVENUE COMMUNITY
28	MALAGA COMMUNITY
29	MONMOUTH COMMUNITY
30	PARLIER AVENUE/ELM AVENUE COMMUNITY
31	RIVERDALE COMMUNITY
32	RUSSELL AVENUE COMMUNITY
33	TOMBSTONE TERRITORY
34	TRANQUILLITY COMMUNITY
35	WHITESBRIDGE COMMUNITY
36	YUBA AVENUE COMMUNITY

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Miles

0 5.5 11

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

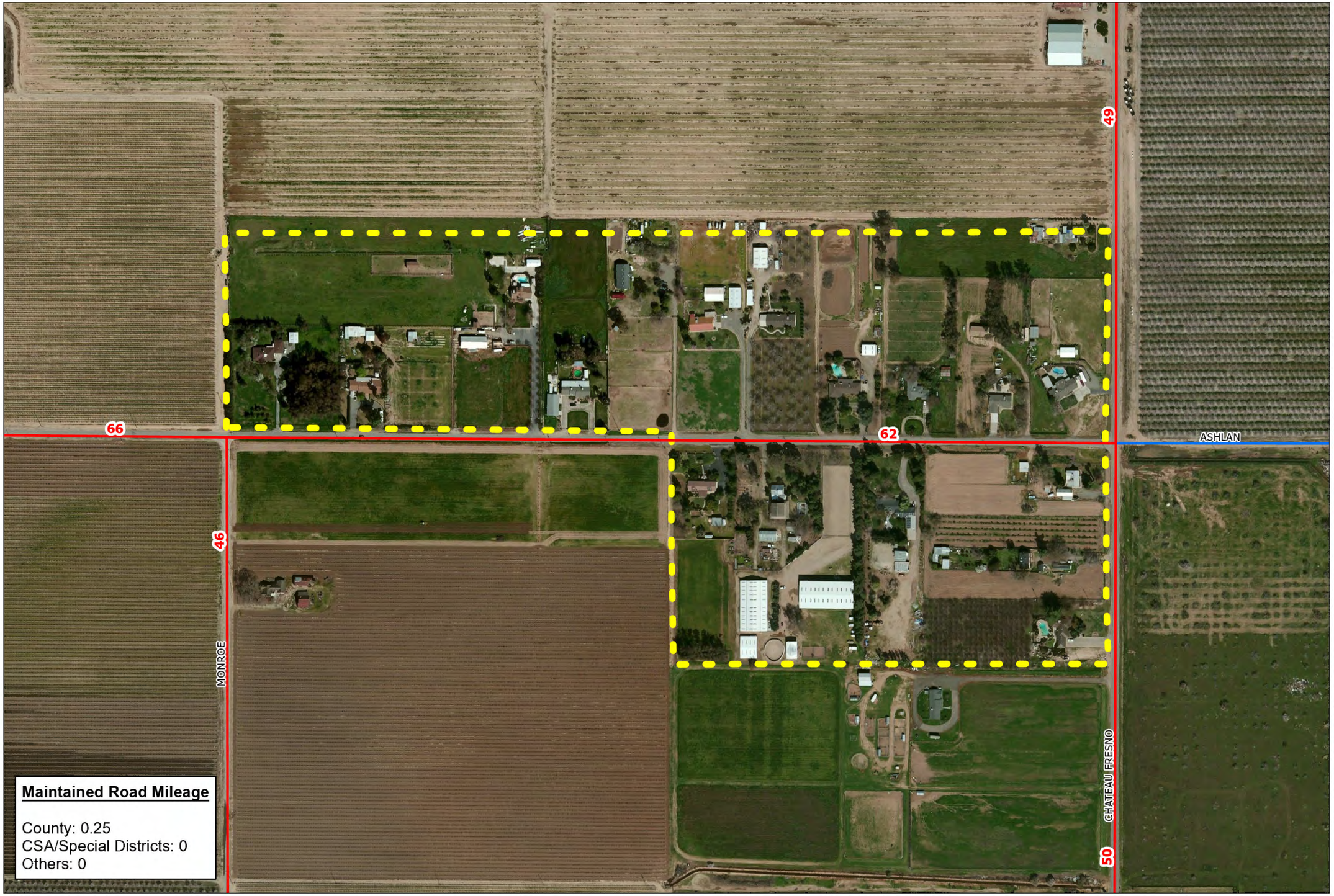
Legend

Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI



Maintained Road Mileage

County: 0.25
CSA/Special Districts: 0
Others: 0

N
W E
S

Miles

0 0.04 0.07

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
ASHLAN AVENUE COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

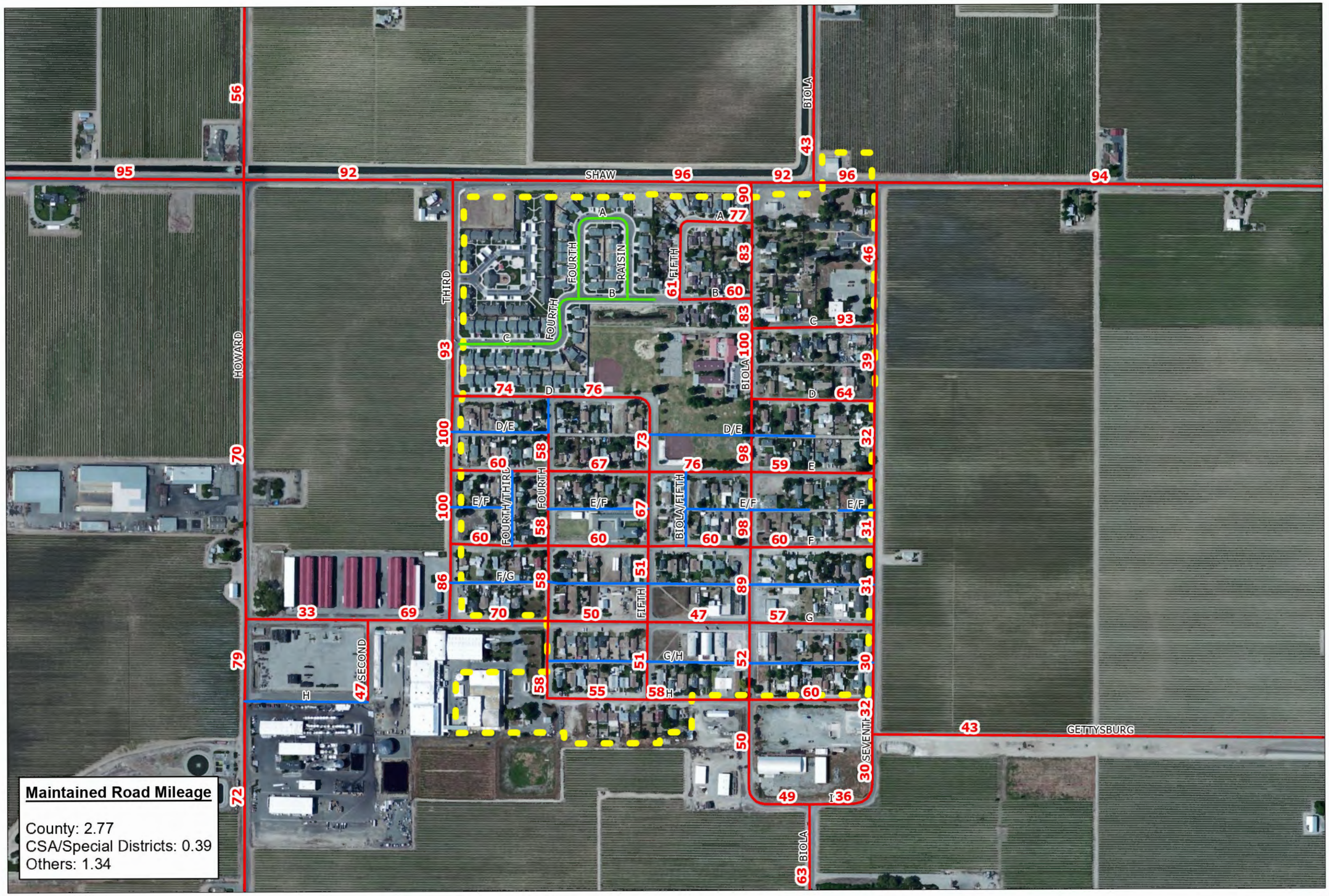
Legend

Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI



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Miles

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DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
BIOLA COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

Legend

Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI

Maintained Road Mileage

County: 0
CSA/Special Districts: 0
Others: 0.25

N
W E
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Miles

0 0.01 0.03

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
BRITTEN AVENUE/CHERRY AVENUE COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

Legend

Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI

Maintained Road Mileage

County: 0.96
CSA/Special Districts: 0
Others: 0.24

N
W E
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Miles

0 0.02 0.04

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
BURREL COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

Legend

Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI

Maintained Road Mileage

County: 0
CSA/Special Districts: 0
Others: 0

N
W E
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Miles

0 0.03 0.05

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
CAMDEN AVENUE COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

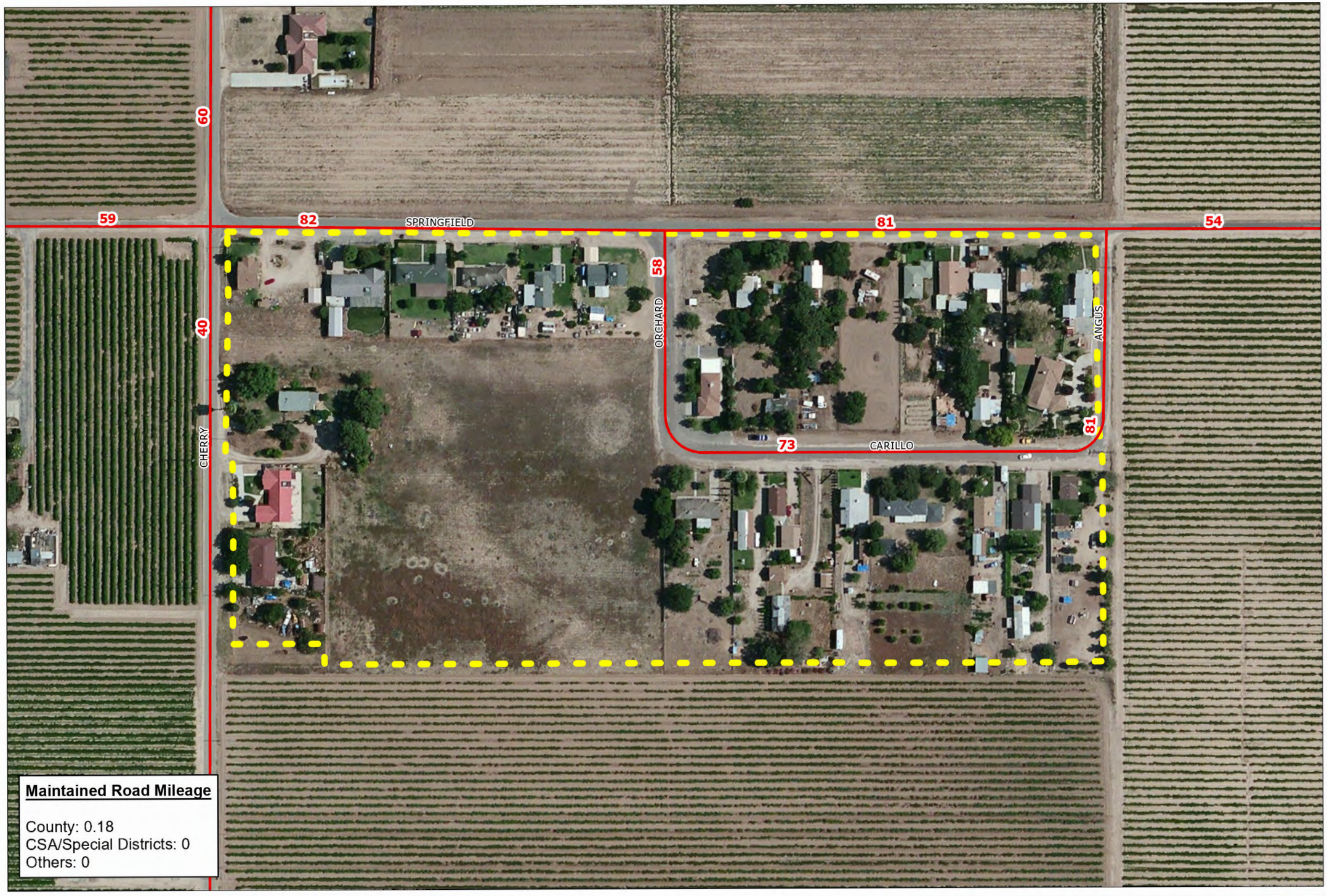
Legend

- Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI



Maintained Road Mileage

County: 0.18
CSA/Special Districts: 0
Others: 0

N
W E
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Miles
0 0.01 0.03

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
CARILLO AVENUE COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

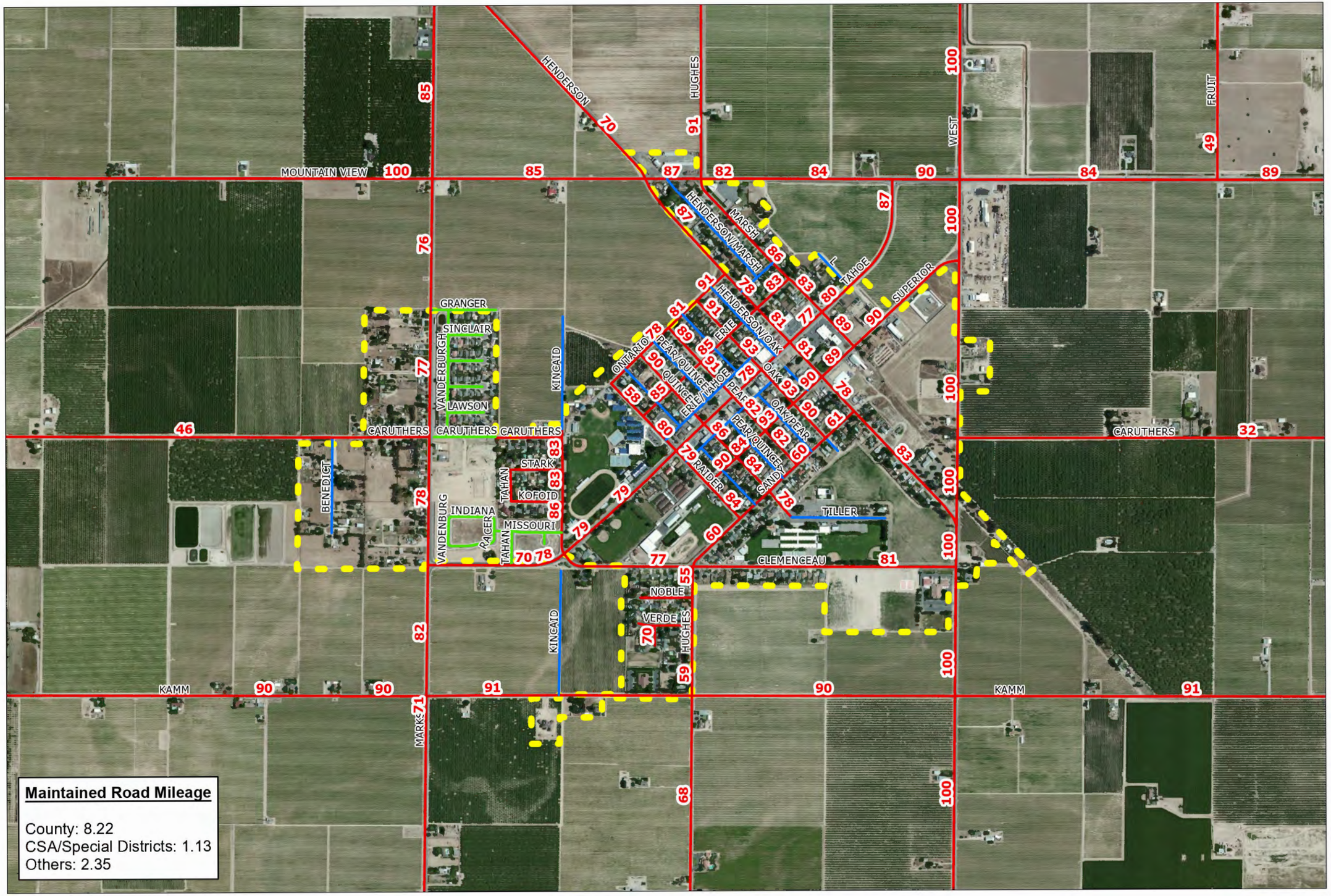
Legend

- Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI



Maintained Road Mileage

County: 8.22
CSA/Special Districts: 1.13
Others: 2.35

N
W E
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Miles
0 0.1 0.2

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
CARUTHERS COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

Legend

Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI

Maintained Road Mileage

County: 0
CSA/Special Districts: 0
Others: 0

N
W E
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Miles

0 0.03 0.05

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
CHESTNUT AVENUE COMMUNITY - SHADY LAKES - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

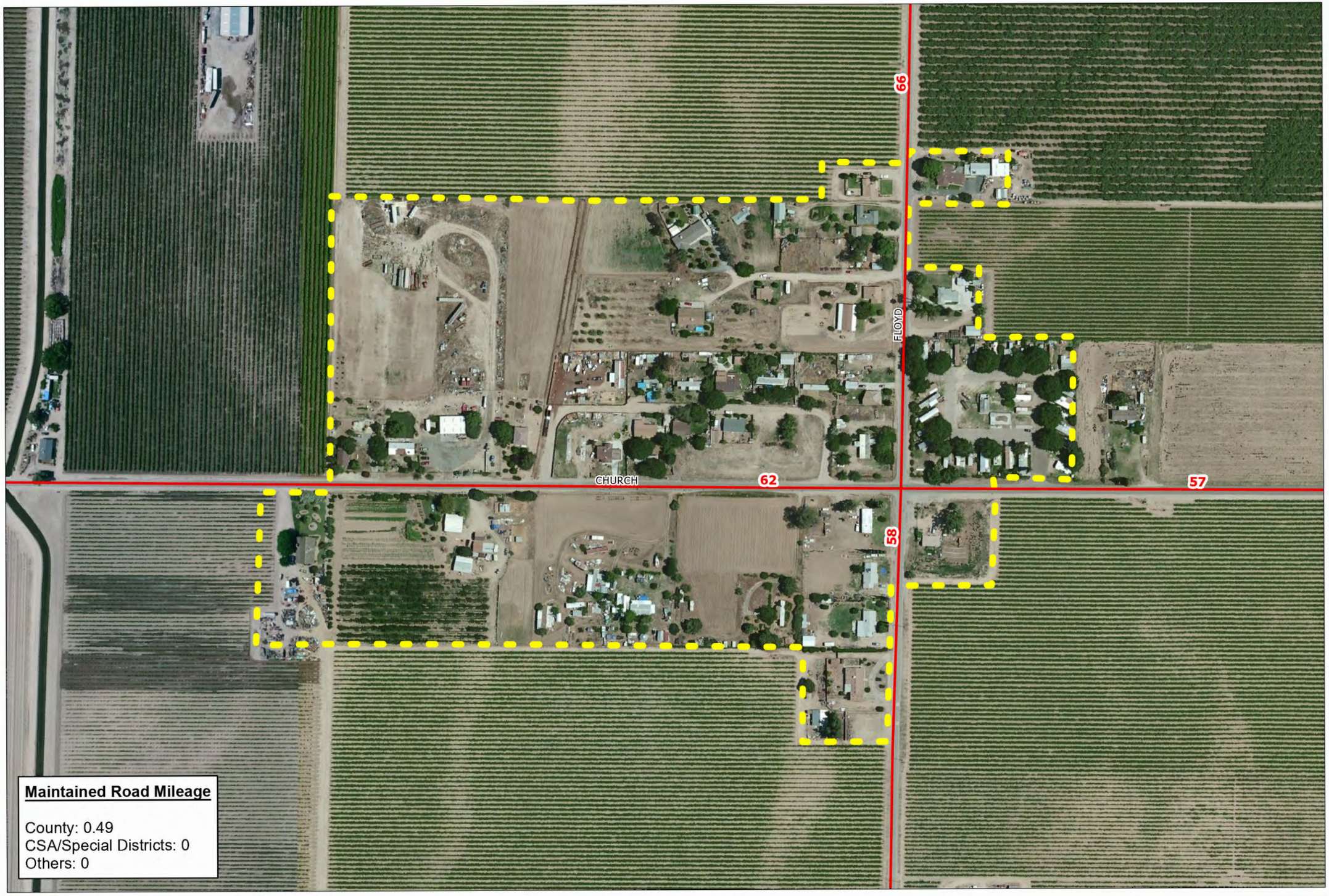
Legend

Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI



Maintained Road Mileage

County: 0.49
CSA/Special Districts: 0
Others: 0

N
W E
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Miles

0 0.03 0.06

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
CHURCH AVENUE/FLOYD AVENUE COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

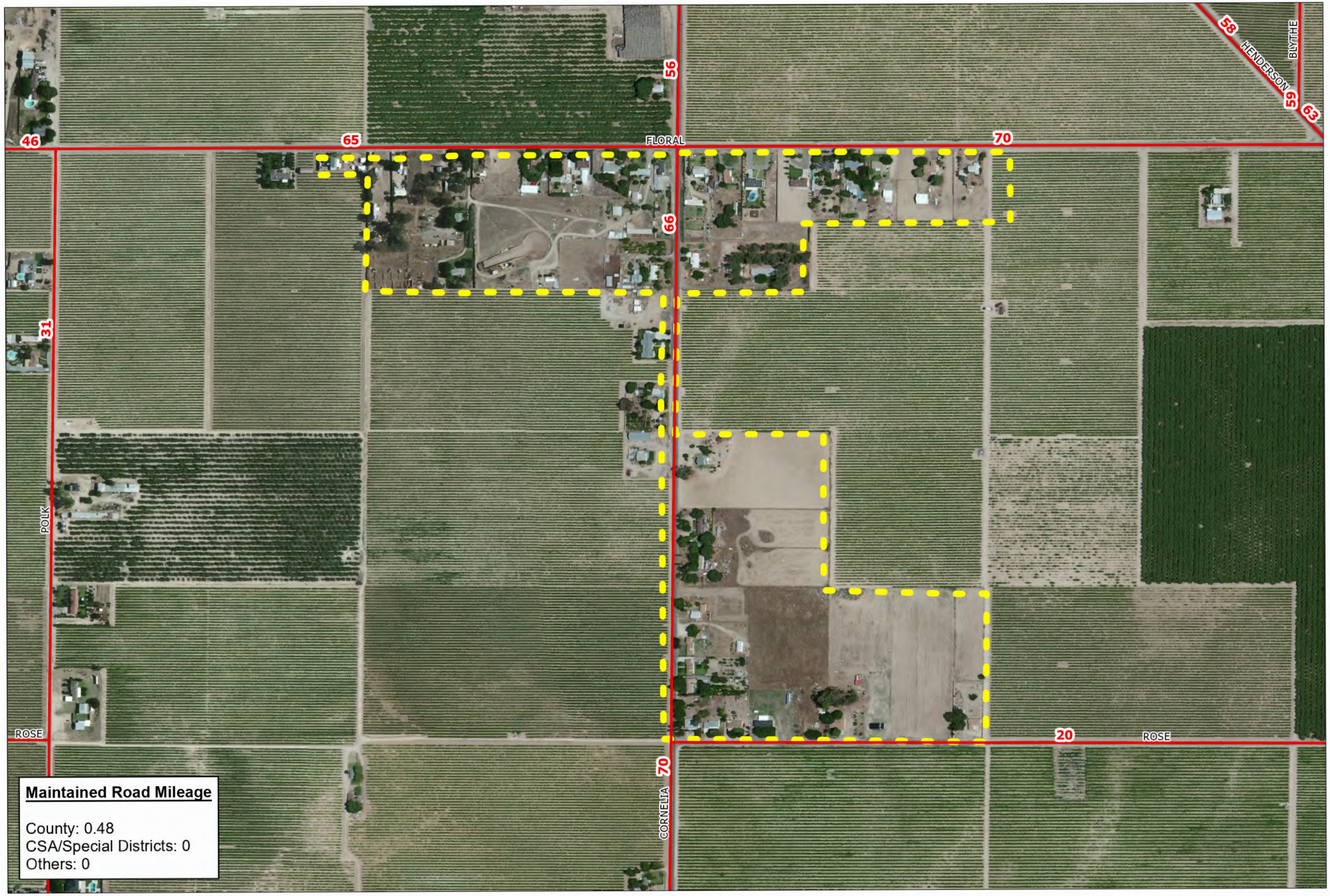
Legend

- Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI



Maintained Road Mileage

County: 0.48
CSA/Special Districts: 0
Others: 0

N
W E
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Miles

0 0.06 0.11

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
CORNELIA/FLORAL AVENUE COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

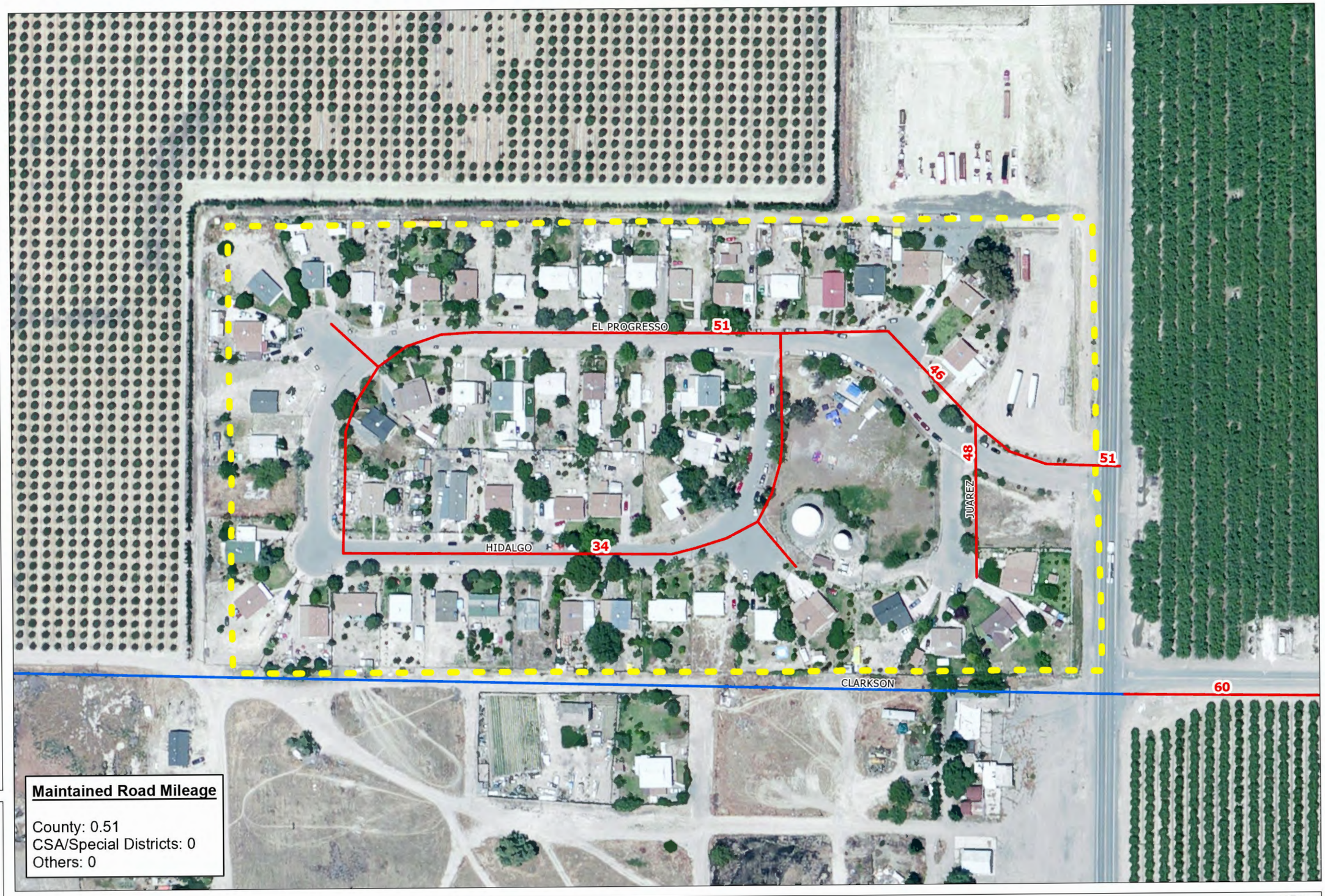
Legend

- Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI



Maintained Road Mileage

County: 0.51
CSA/Special Districts: 0
Others: 0

N
W E
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Miles

0 0.01 0.03

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
CSA 30 COMMUNITY - EL PORVENIR - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

Legend

- Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI

Maintained Road Mileage

County: 0.64
CSA/Special Districts: 0
Others: 0

N
W E
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Miles

0 0.02 0.04

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
CSA 32 COMMUNITY - CANTUA CREEK - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

Legend

- Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI

Maintained Road Mileage

County: 0.22
CSA/Special Districts: 0
Others: 0

N
W E
S

Miles

0 0.01 0.03

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
CSA 39 ZONE A COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

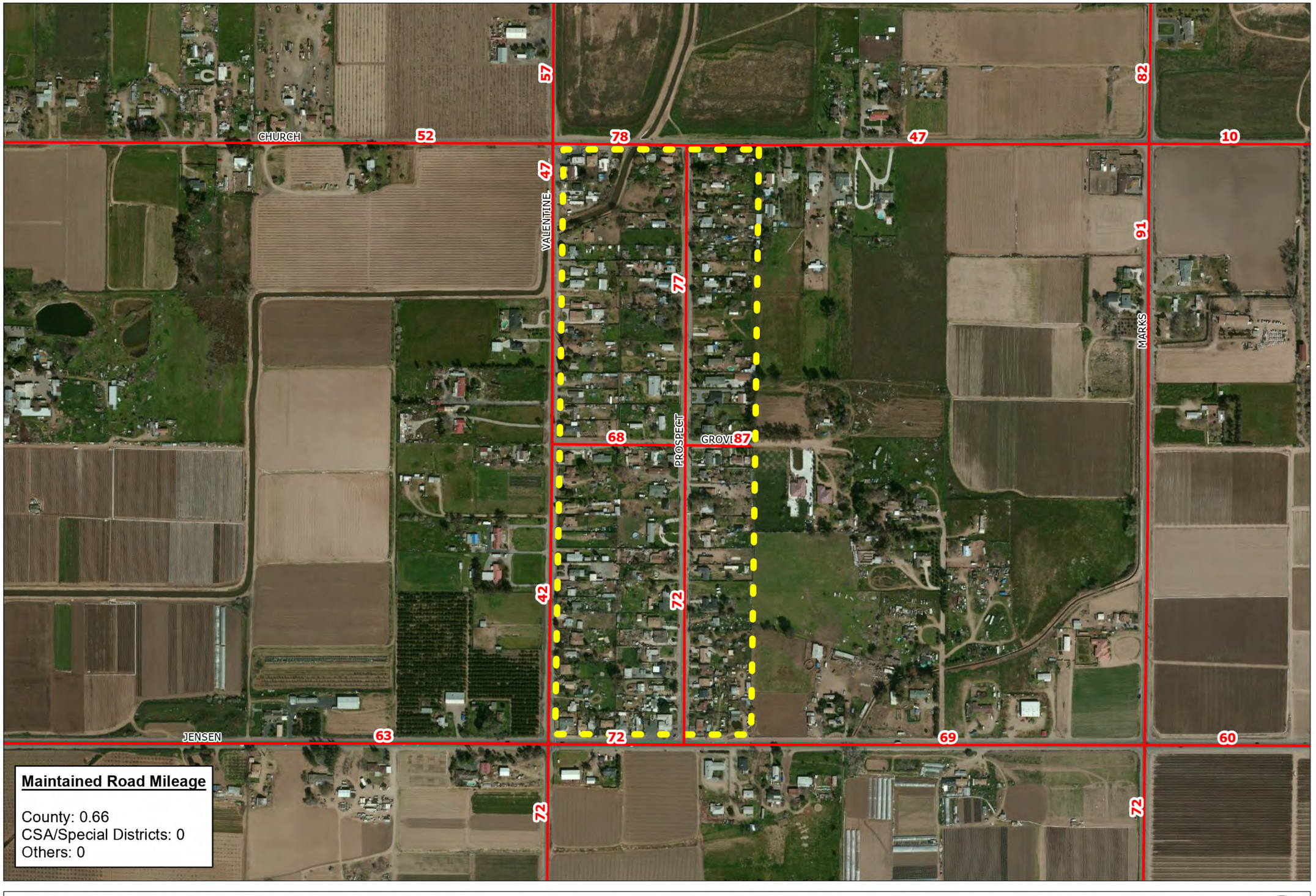
Legend

Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI



Maintained Road Mileage

County: 0.66
CSA/Special Districts: 0
Others: 0

N
W E
S

Miles

0 0.06 0.11

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
CSA 39 ZONE B - WEST PARK - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

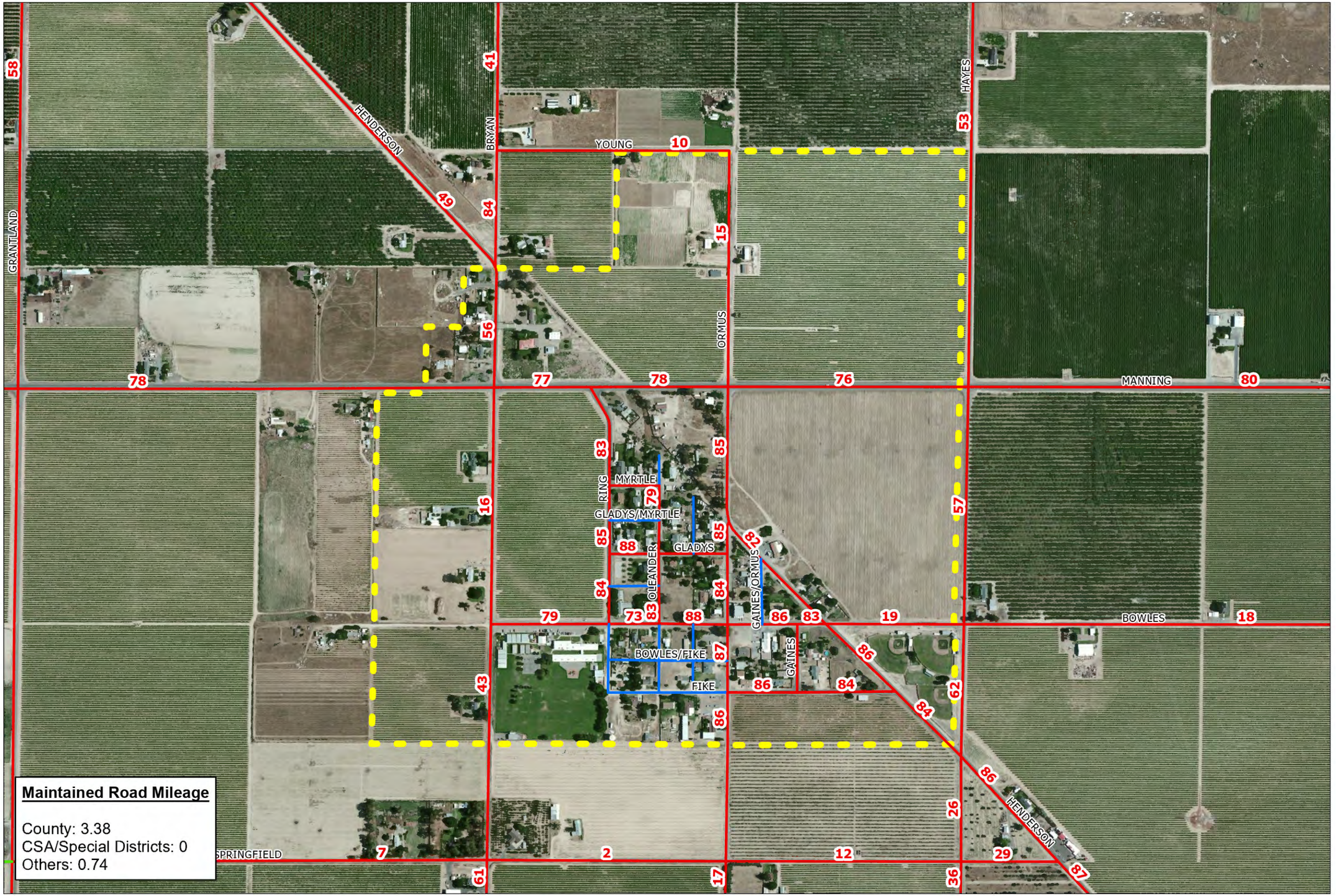
Legend

Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI



Maintained Road Mileage

County: 3.38
CSA/Special Districts: 0
Others: 0.74

N
W E
S

Miles

0 0.07 0.14

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
CSA 43 COMMUNITY - RAISIN CITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

Legend

Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI

Maintained Road Mileage

County: 0.3
CSA/Special Districts: 0
Others: 0.18

N
W E
S

Miles

0 0.1 0.2

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
CSA 49 - O'NEILL FARMS - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

Legend

- Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI

Maintained Road Mileage

County: 2.77
CSA/Special Districts: 0.6
Others: 1.18

N
W E
S

Miles

0 0.07 0.13

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
DEL REY COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

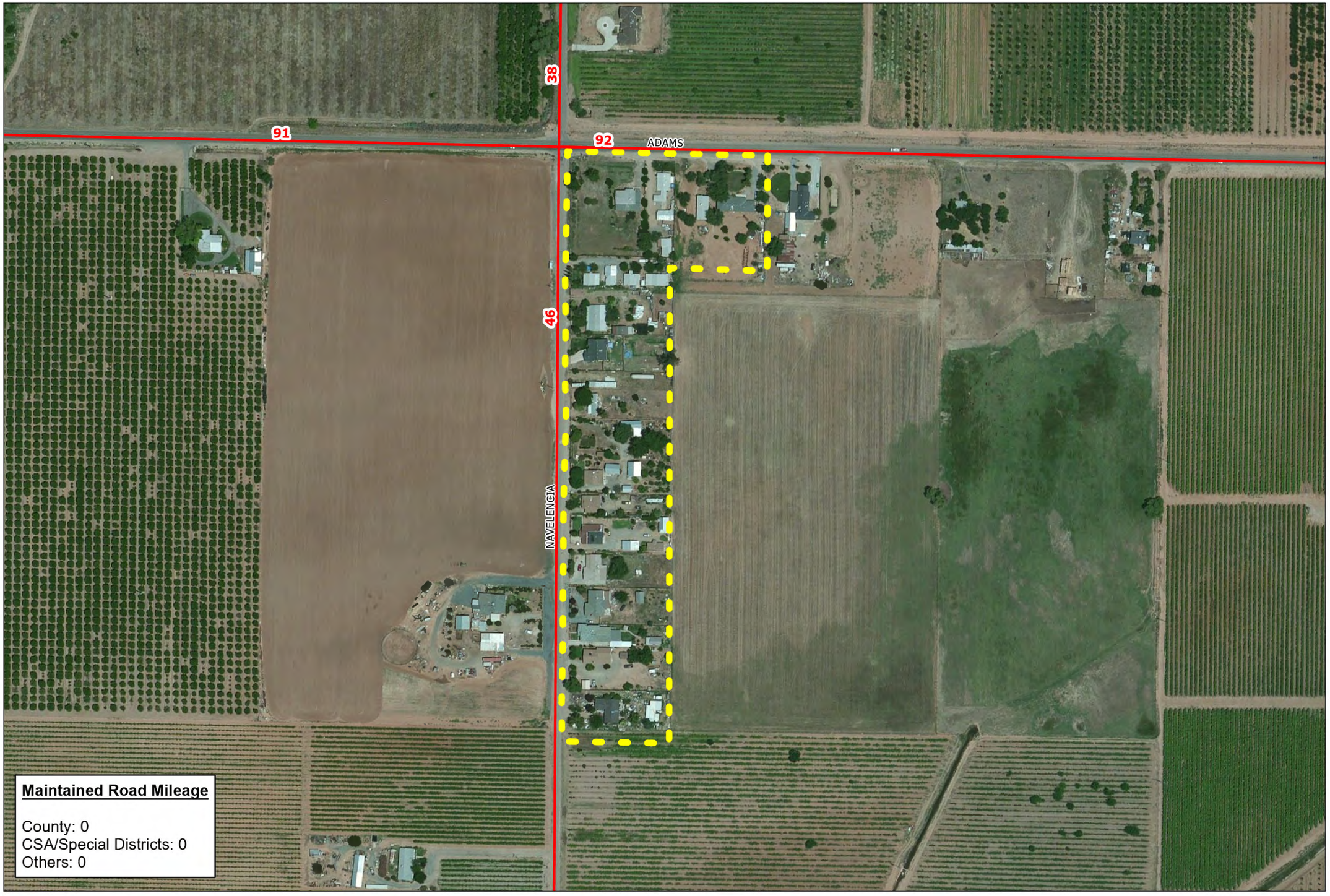
Legend

Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI



Maintained Road Mileage

County: 0
CSA/Special Districts: 0
Others: 0

N
W E
S

Miles

0 0.03 0.05

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
EAST ADAMS AVENUE COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

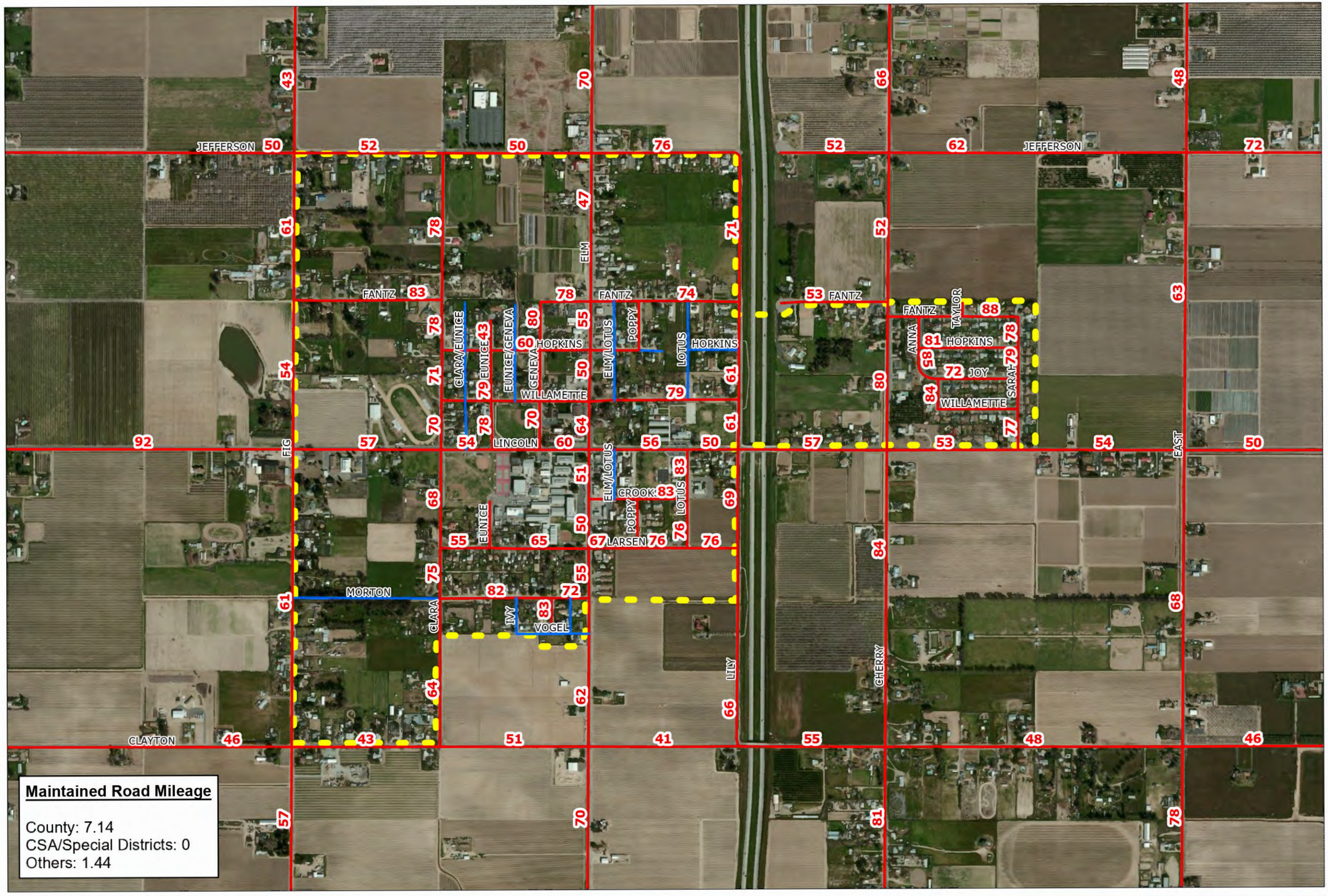
Legend

Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI



Maintained Road Mileage

County: 7.14
CSA/Special Districts: 0
Others: 1.44

N
W E
S

Miles
0 0.1 0.2

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
EASTON COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

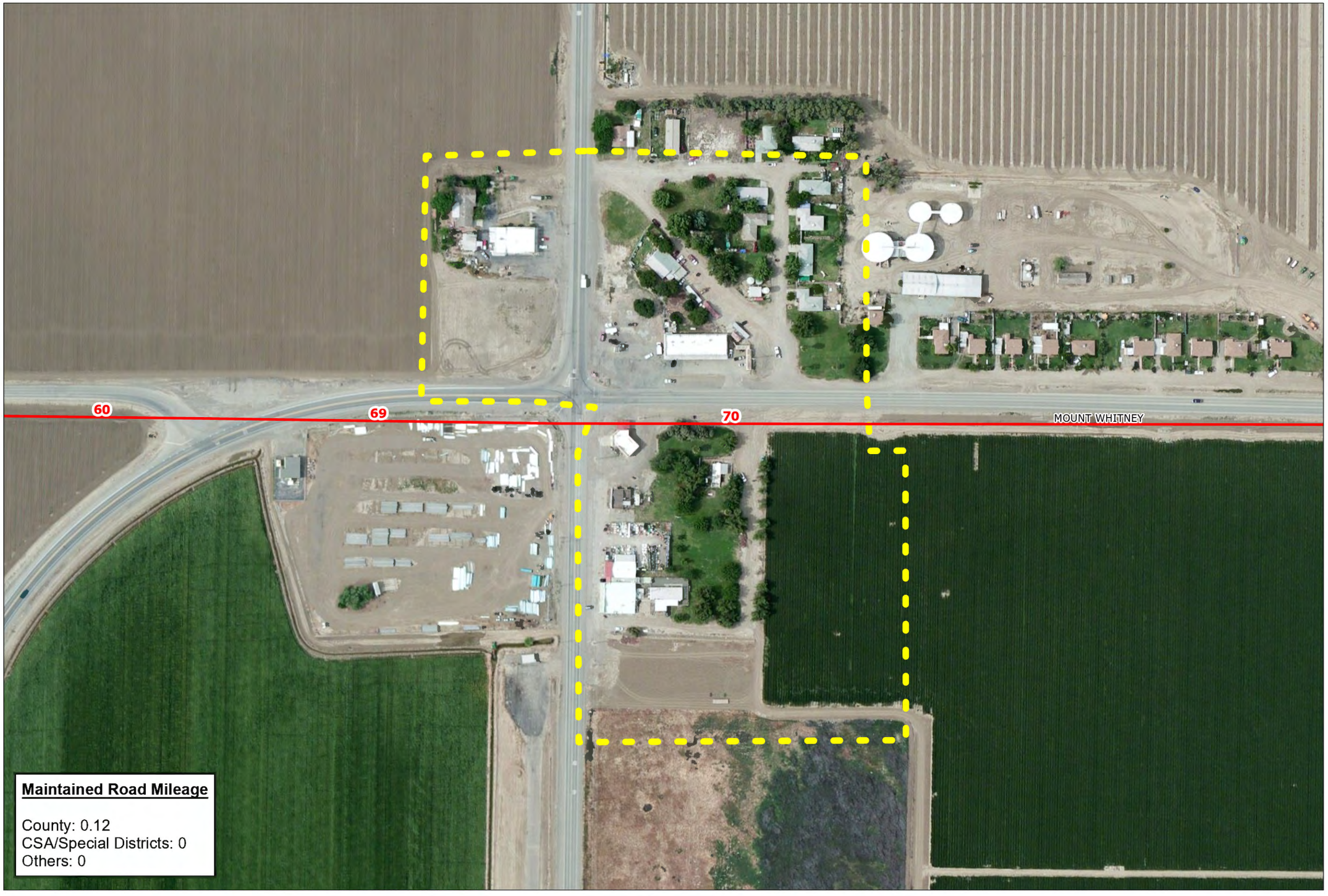
Legend

Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI



Maintained Road Mileage

County: 0.12
CSA/Special Districts: 0
Others: 0

N
W E
S

Miles

0 0.03 0.05

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
FIVE POINTS COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

Legend

Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI

Maintained Road Mileage

County: 0
CSA/Special Districts: 0
Others: 0

N
W E
S

Miles

0 0.02 0.04

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
FLAMINGO MOBILE HOME COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

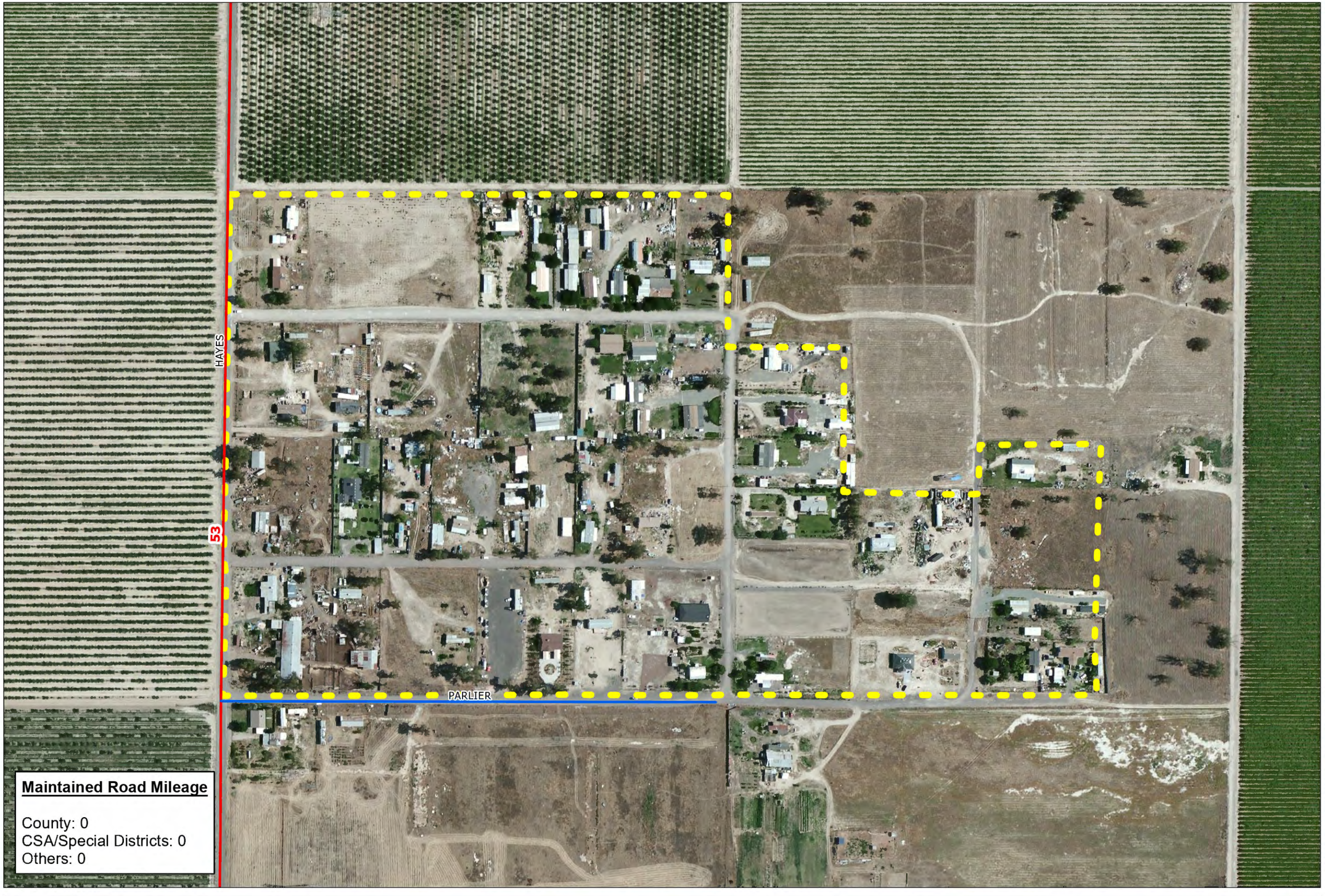
Legend

Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI



N
W E
S

Miles

0 0.03 0.06

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
HAYES ROAD COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

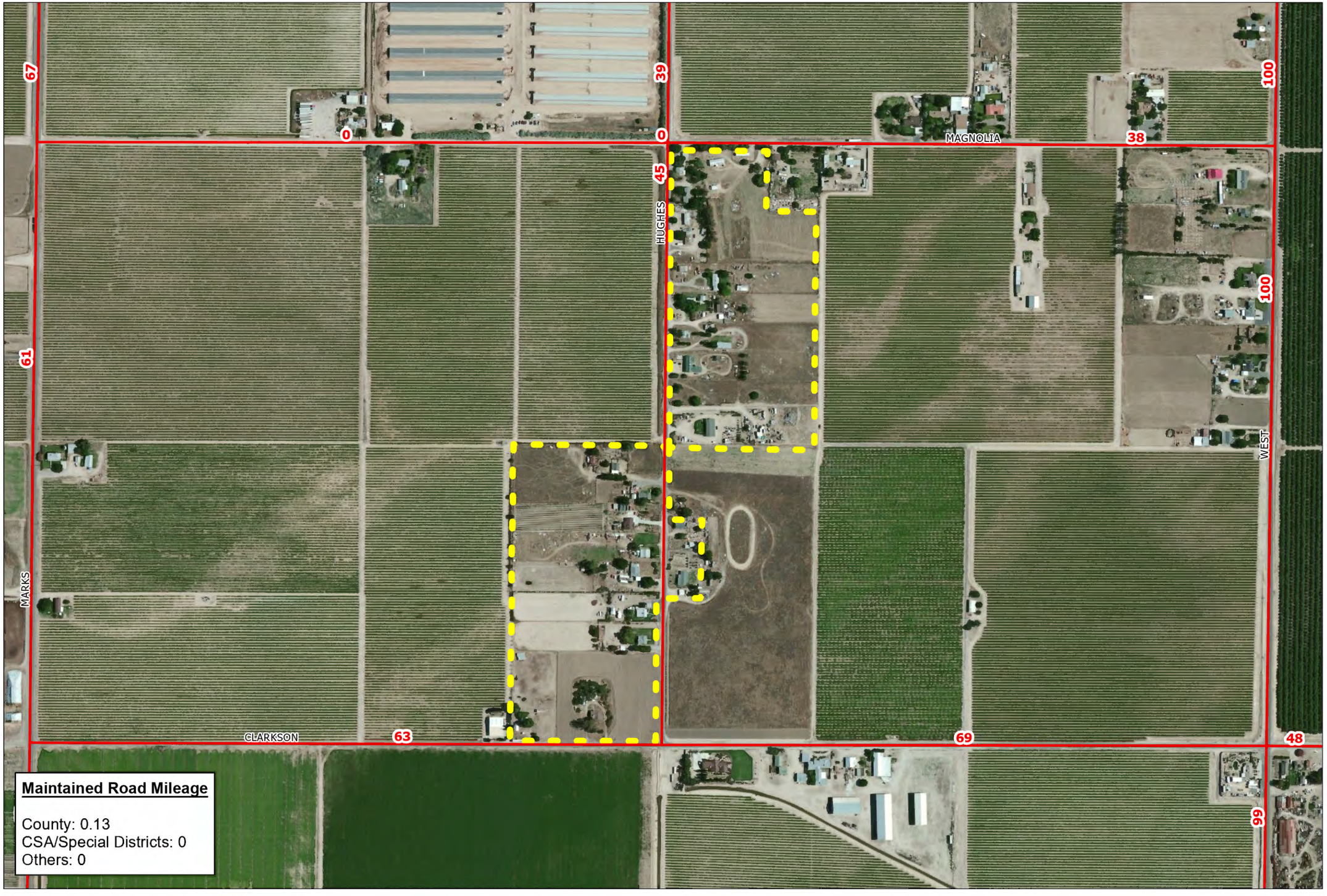
Legend

- Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI



Maintained Road Mileage

County: 0.13
CSA/Special Districts: 0
Others: 0

N
W E
S

Miles

0 0.06 0.11

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
HUGHES AVENUE/MAGNOLIA AVENUE COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

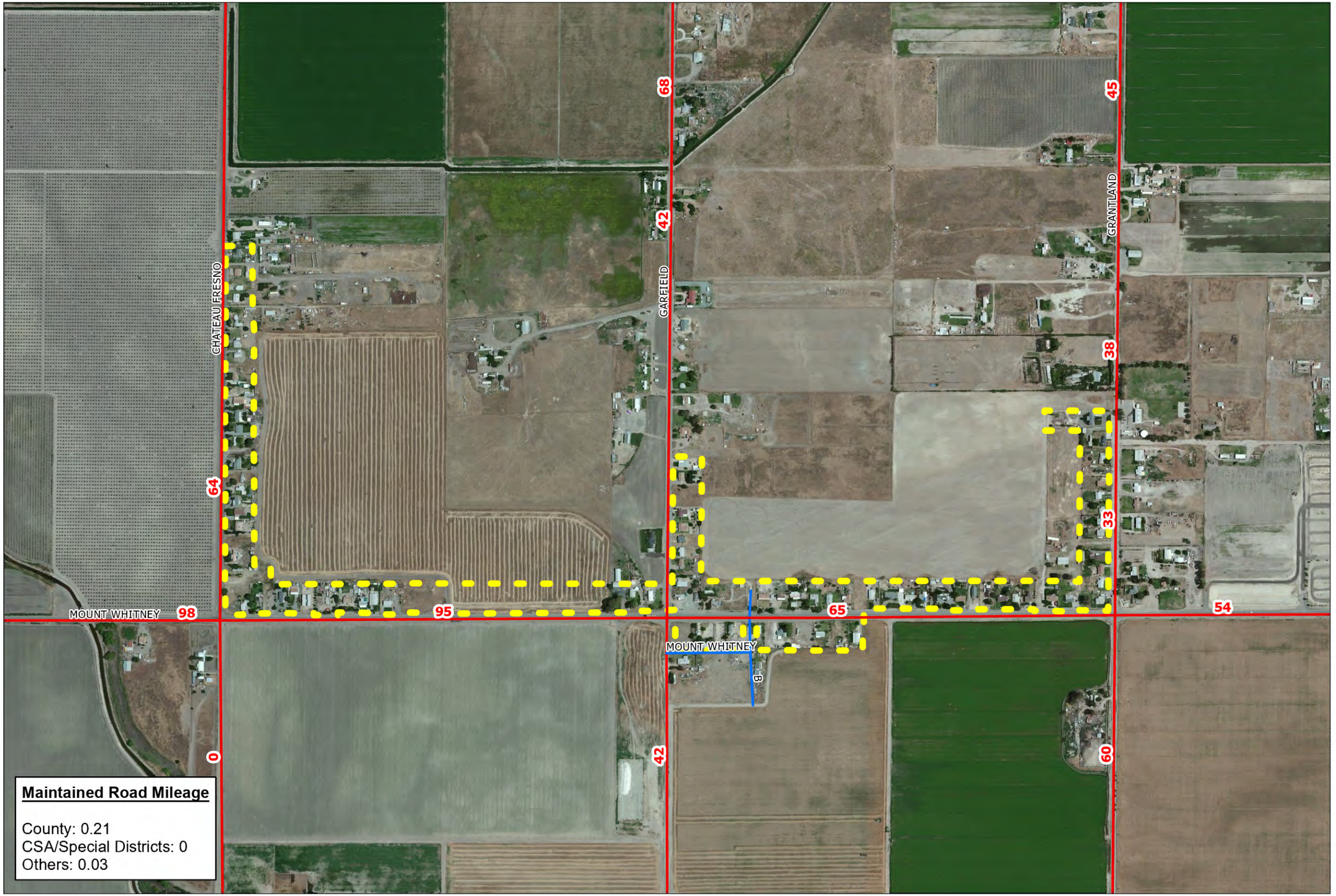
Legend

- Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI



N
W E
S

Miles

0 0.07 0.15

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
LANARE COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

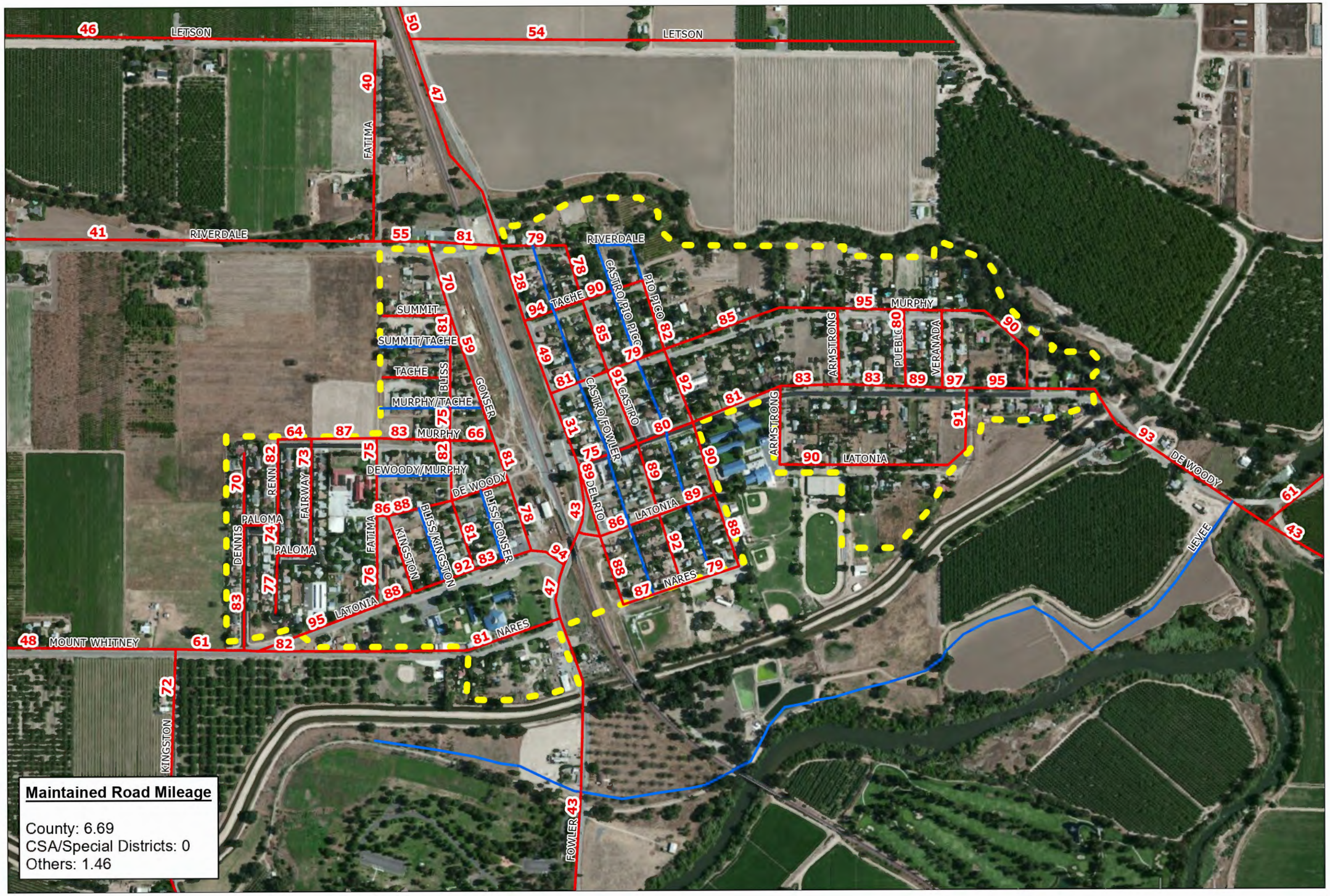
Legend

- Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI



Maintained Road Mileage

County: 6.69
CSA/Special Districts: 0
Others: 1.46

N
W E
S

Miles

0 0.09 0.17

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
LATON COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

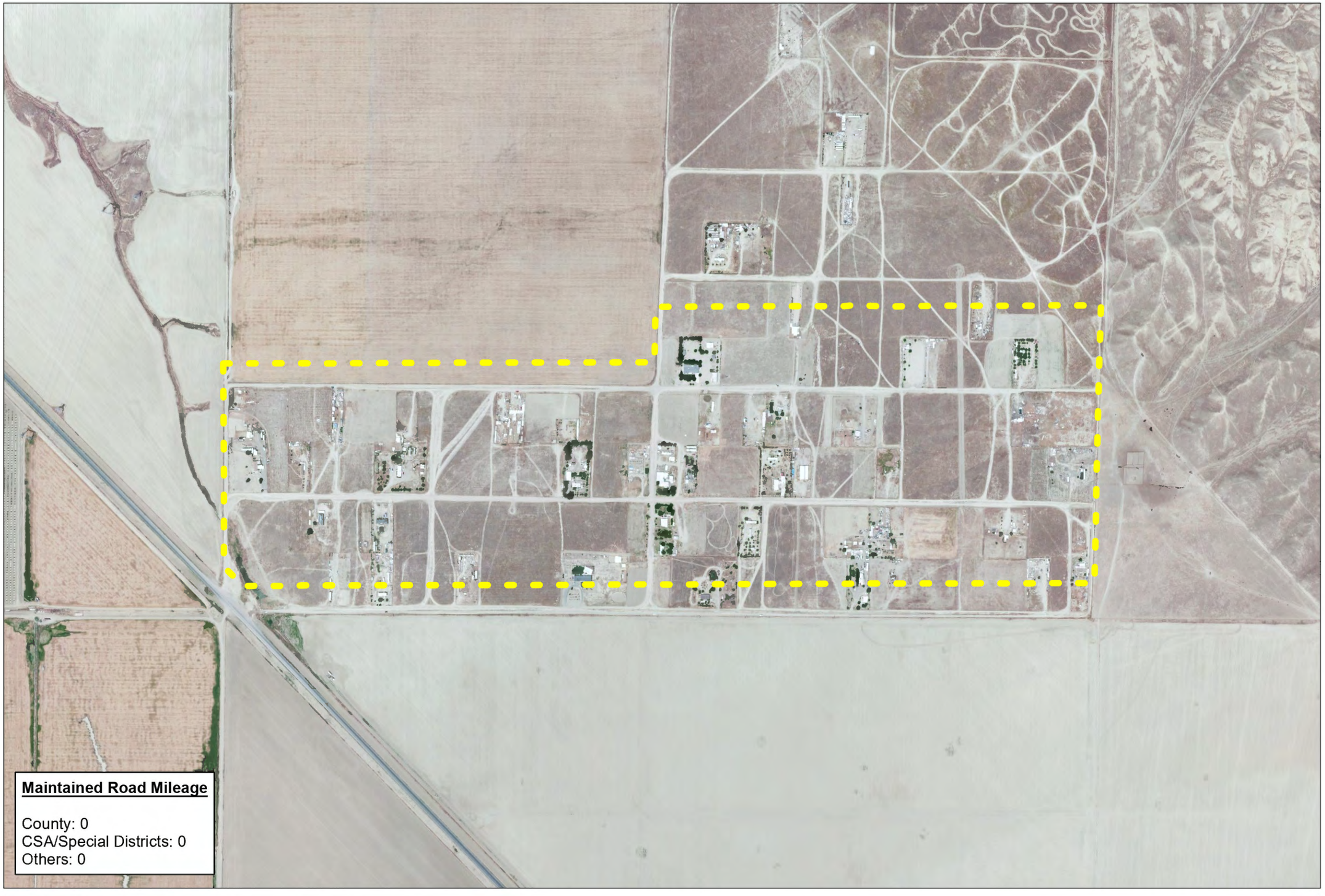
Legend

- Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI



Maintained Road Mileage

County: 0
CSA/Special Districts: 0
Others: 0

N
W E
S

Miles

0 0.07 0.15

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
LOST HILLS COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

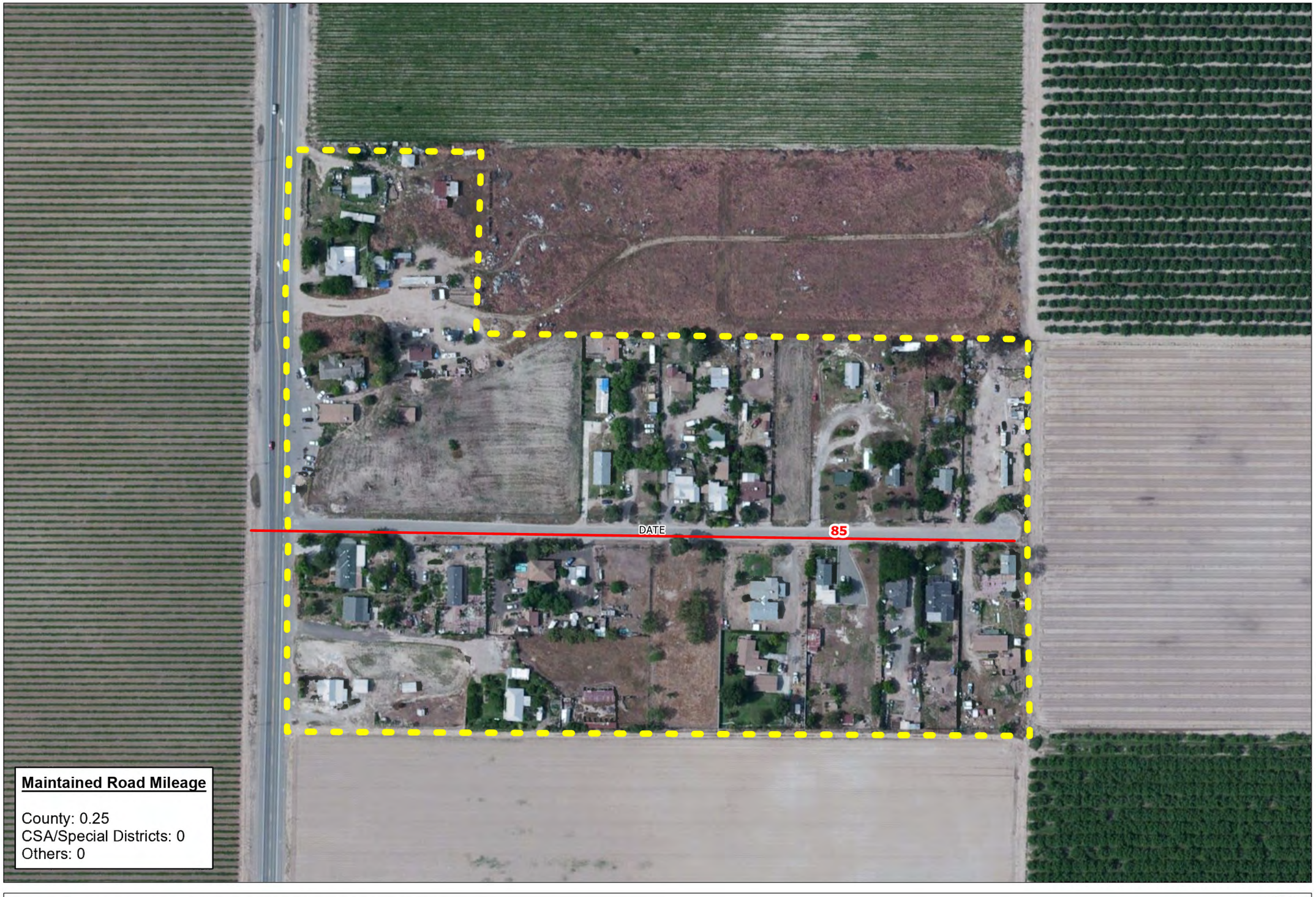
Legend

Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI



N
W E
S

Miles

0 0.02 0.04

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
MADERA AVENUE COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

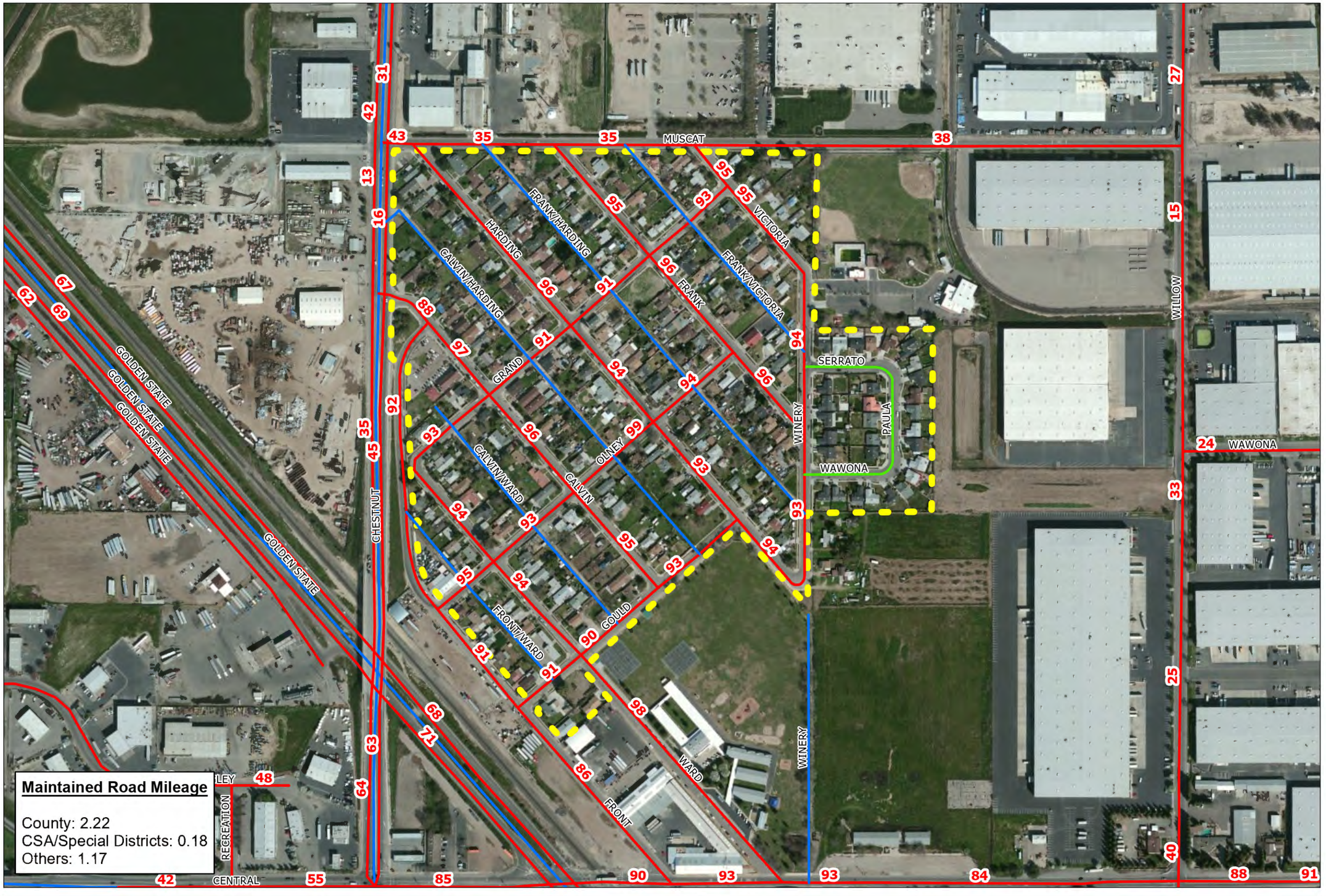
Legend

- Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI



N
W E
S

Miles

0 0.04 0.09

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
MALAGA COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

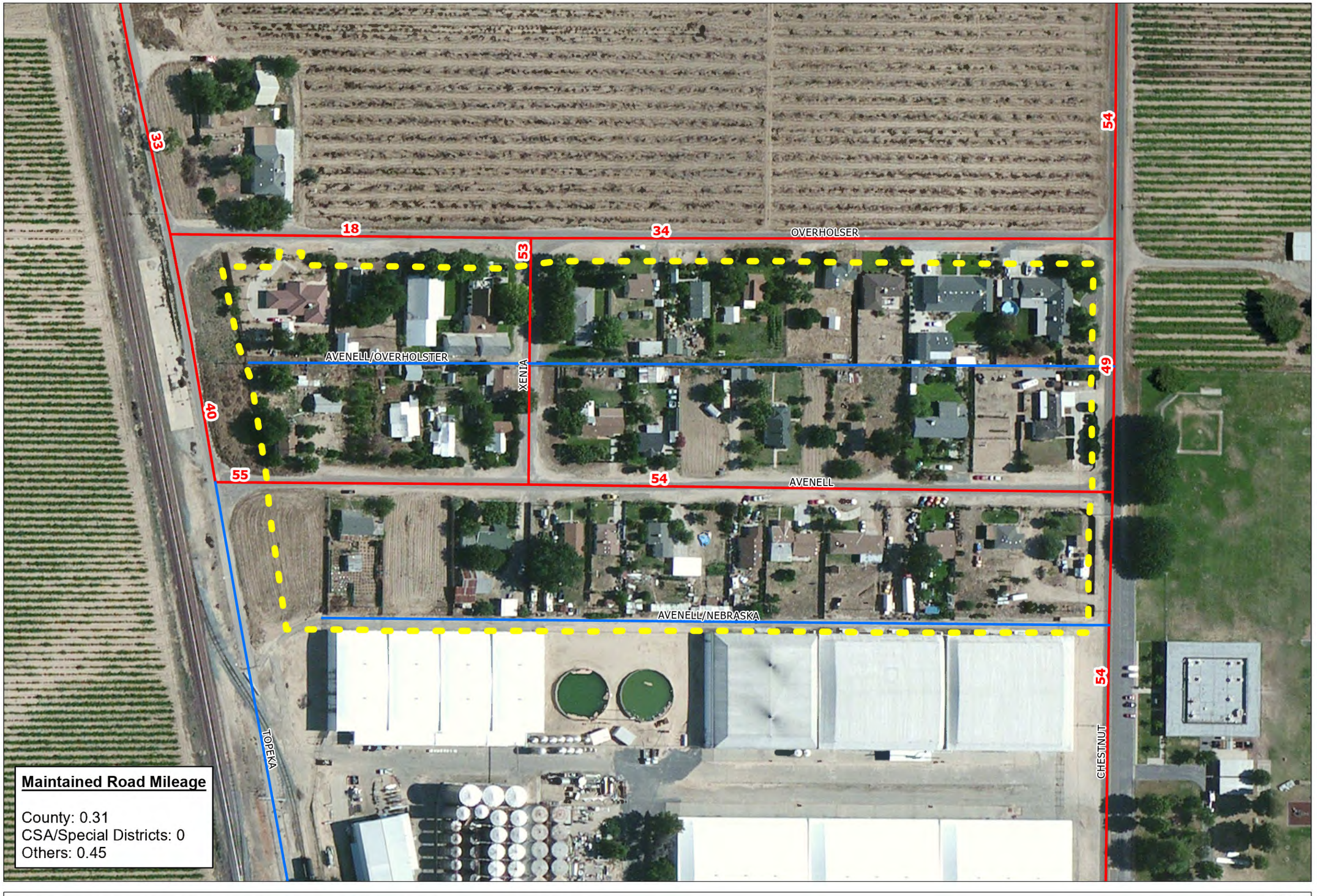
Legend

Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI



Maintained Road Mileage

County: 0.31
CSA/Special Districts: 0
Others: 0.45

N
W E
S

Miles

0 0.01 0.03

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
MONMOUTH COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

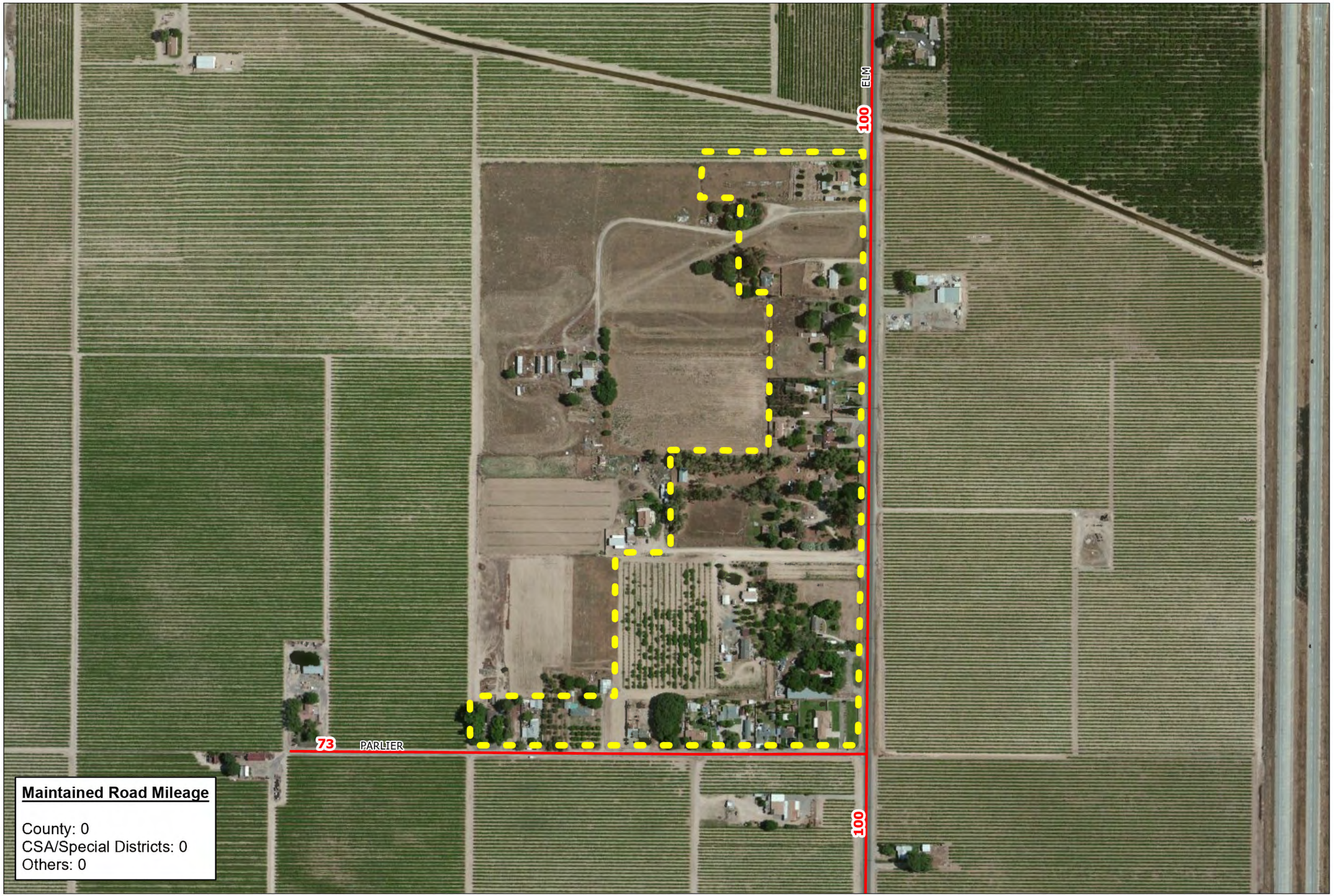
Legend

Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI



Maintained Road Mileage

County: 0
CSA/Special Districts: 0
Others: 0

N
W E
S

Miles

0 0.04 0.08

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
PARLIER AVENUE/ELM AVENUE COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

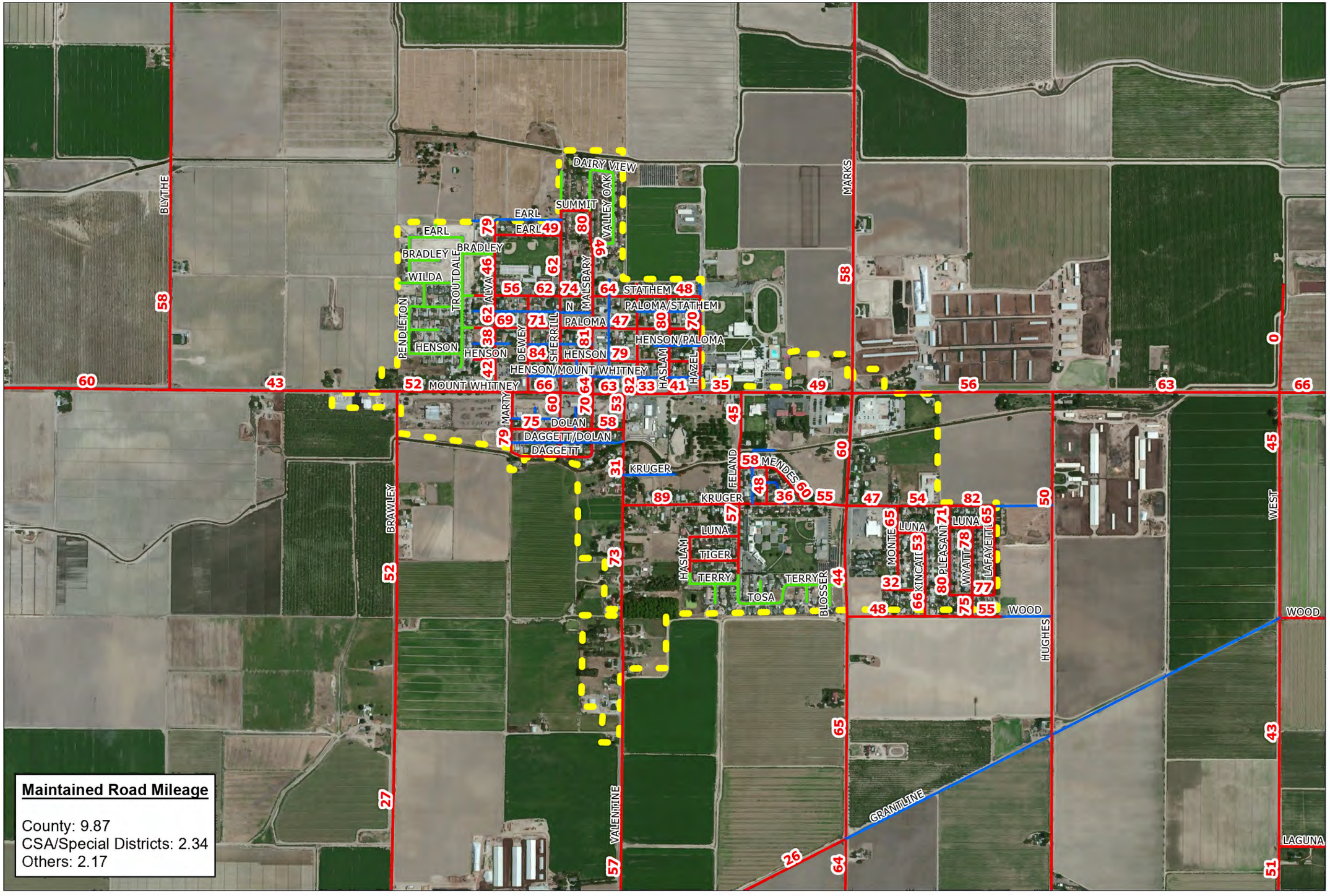
Legend

- Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI



Maintained Road Mileage

County: 9.87
CSA/Special Districts: 2.34
Others: 2.17

N
W E
S

Miles

0 0.15 0.3

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
RIVERDALE COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

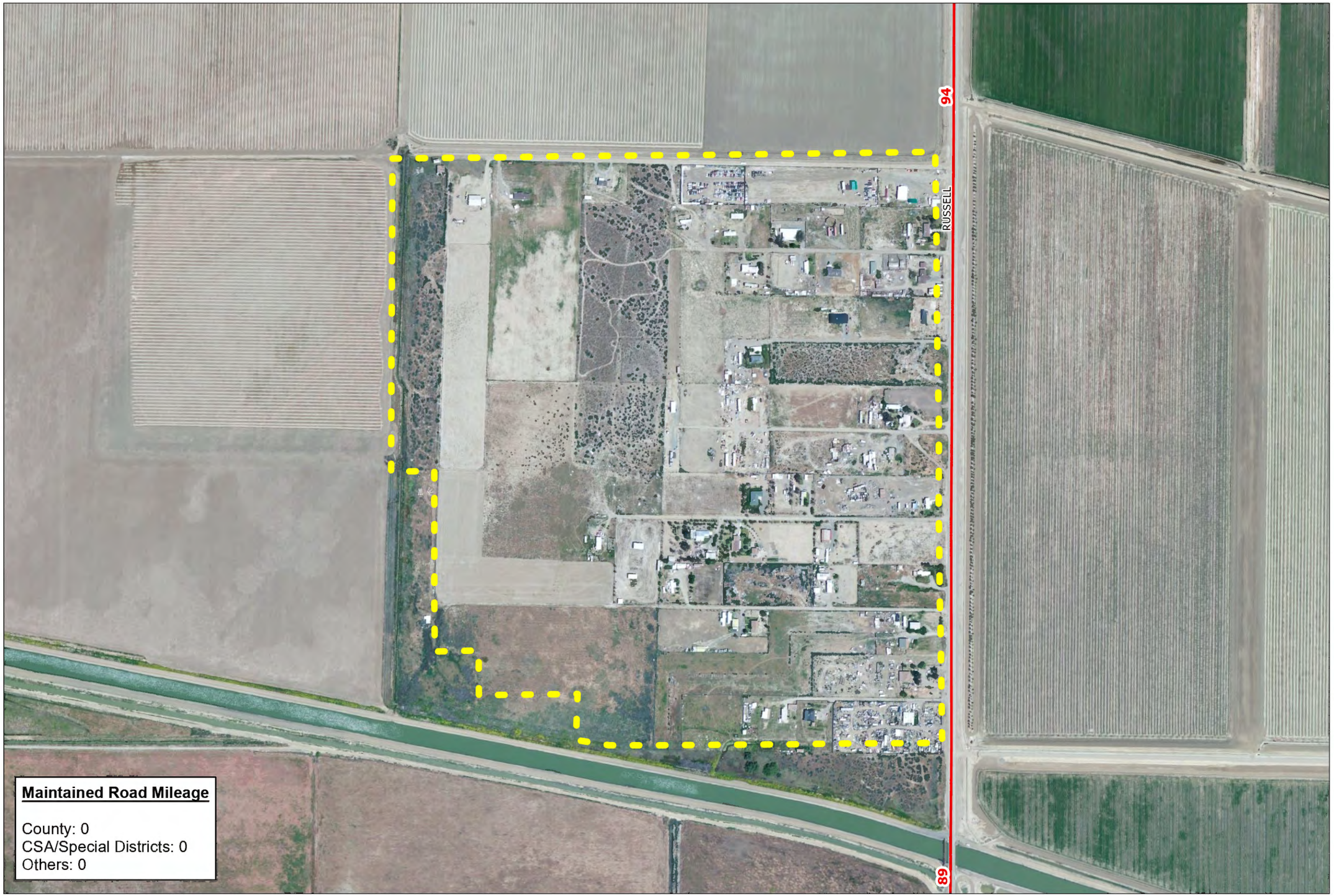
Legend

Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI



Maintained Road Mileage

County: 0
CSA/Special Districts: 0
Others: 0

N
W E
S

Miles

0 0.06 0.12

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
RUSSELL AVENUE COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

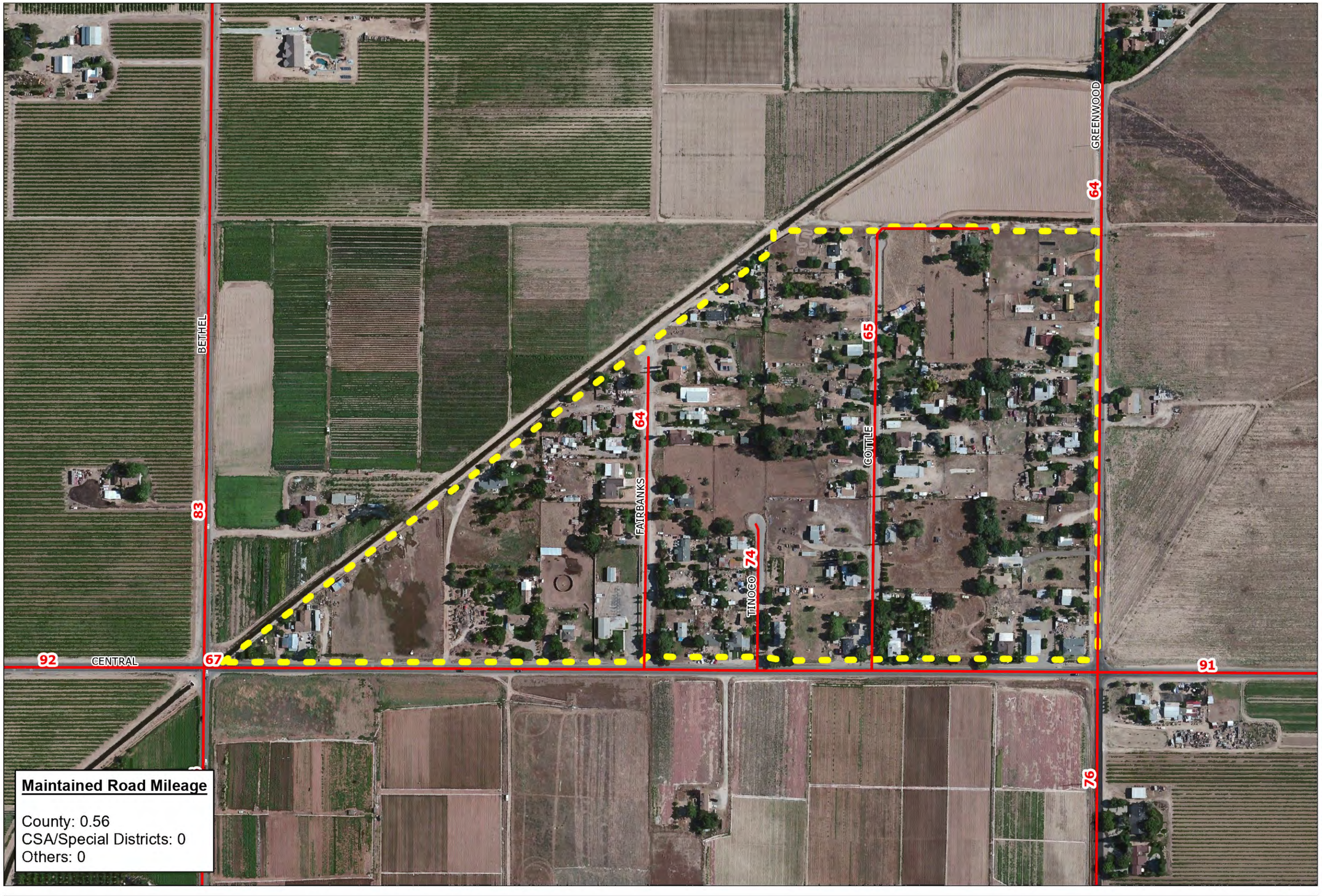
Legend

Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI



Maintained Road Mileage

County: 0.56
CSA/Special Districts: 0
Others: 0

N
W E
S

Miles

0 0.04 0.07

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
TOMBSTONE TERRITORY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

Legend

- Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI

Maintained Road Mileage

County: 3.88
CSA/Special Districts: 0
Others: 0.48

N
W E
S

Miles

0 0.07 0.15

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
TRANQUILLITY COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

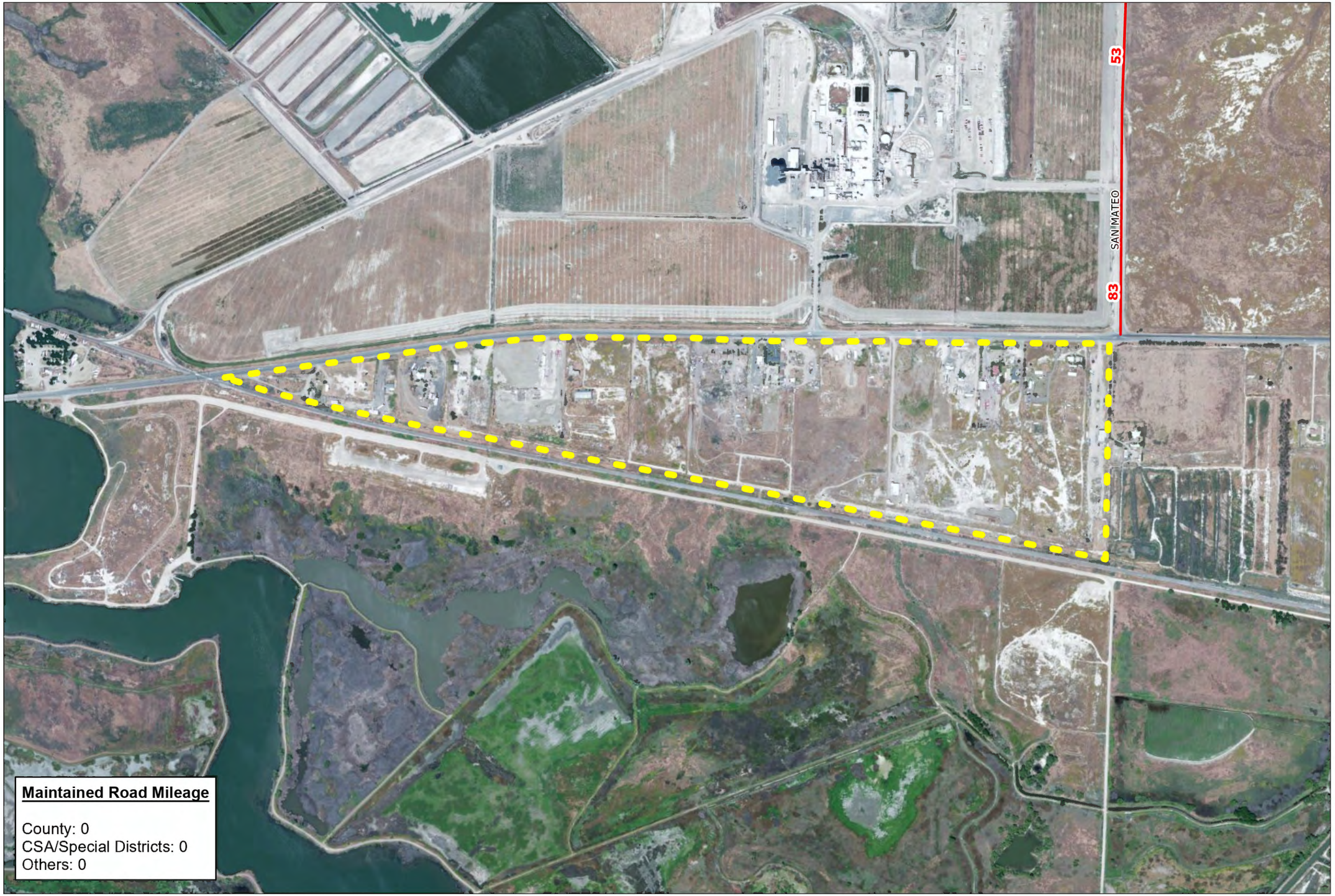
Legend

Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI



N
W E
S

Miles

0 0.1 0.2

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
WHITESBRIDGE COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

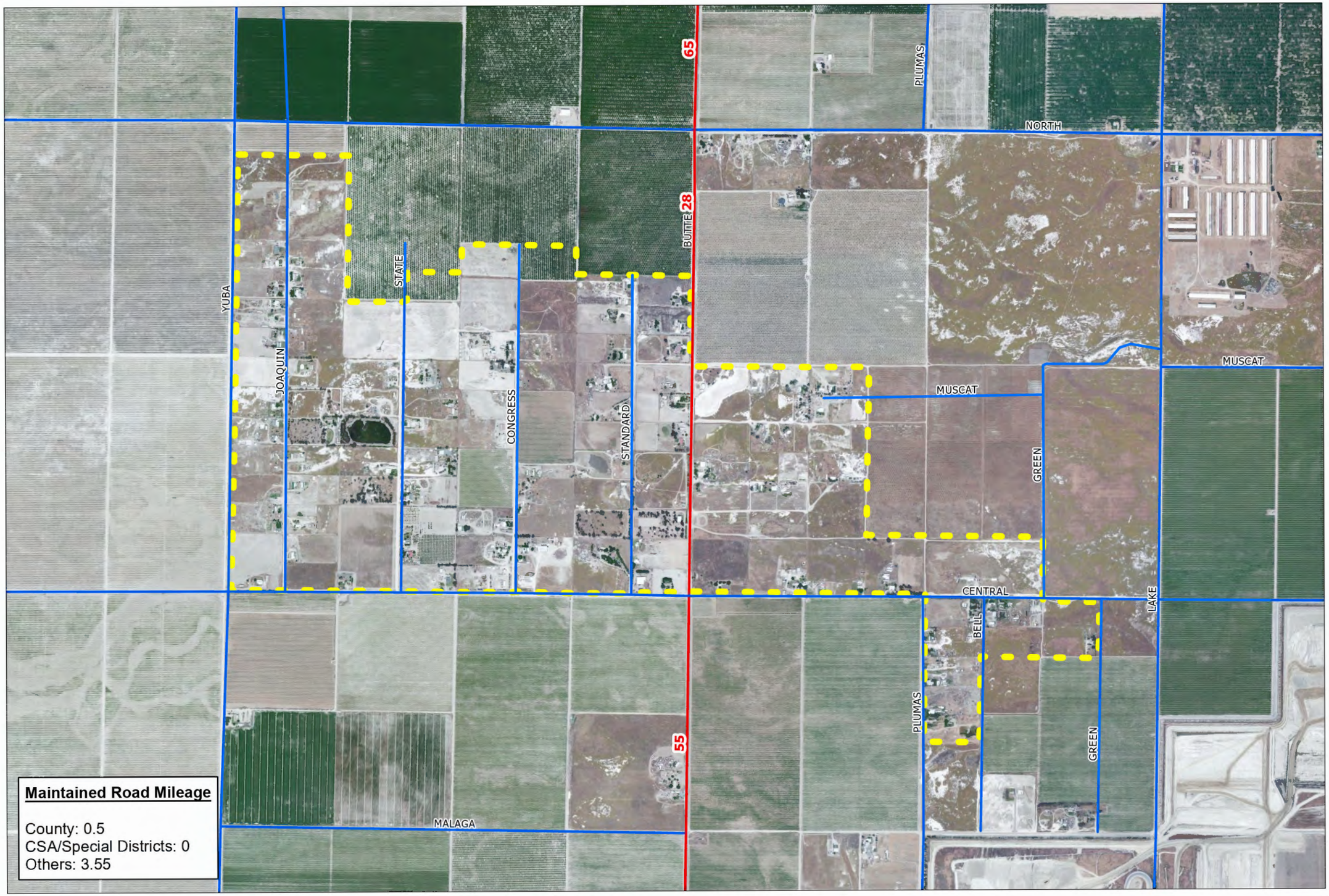
Legend

- Disadvantaged Unincorporated Communities - SB 244

Roads

- Others
- County Maintained Roads
- CSA Maintained Roads

= PCI



Maintained Road Mileage

County: 0.5
CSA/Special Districts: 0
Others: 3.55

N
W E
S

Miles

0 0.15 0.3

DISADVANTAGE UNINCORPORATED COMMUNITIES - SB 244
YUBA AVENUE COMMUNITY - COUNTY-MAINTAINED ROADS WITH PCI

SUPERVISOR DISTRICT 1 PAVEMENT CONDITION INDEX

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

Legend

- Supervisorial District
- Incorporated Cities
- Grid #
- Non-County-Maintained Roads
- Highways

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+

Supervisor District 1

Miles of	Expressway	Roads	101.498	75.5 Weighted Average PCI
Miles of	Arterial	Roads	184.088	69.2 Weighted Average PCI
Miles of	Collector	Roads	138.435	67.3 Weighted Average PCI
Miles of	Local 400 ADT Plus	Roads	223.554	68.7 Weighted Average PCI
Miles of	Local Under ADT 400	Roads	397.278	56.8 Weighted Average PCI
	Total Miles in District 1		**1044.853**	**31 % Miles from Total County Mileage**
				65.9 Weighted Average PCI

1st Supervisorial Dist

Supervisorial District 1 - Measure C Overall Study Map

Miles
0 5 10

N

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

COUNTY OF FRESNO

Supervisorial District 1 - Measure C Overall Study Map

Legend

- Supervisorial District
- Incorporated Cities
- Non-County-Maintained Roads
- Highways
- Grid #

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+

N
W E
S

Miles
0 4.25 8.5

1st Supervisorial Dist

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

COUNTY OF FRESNO

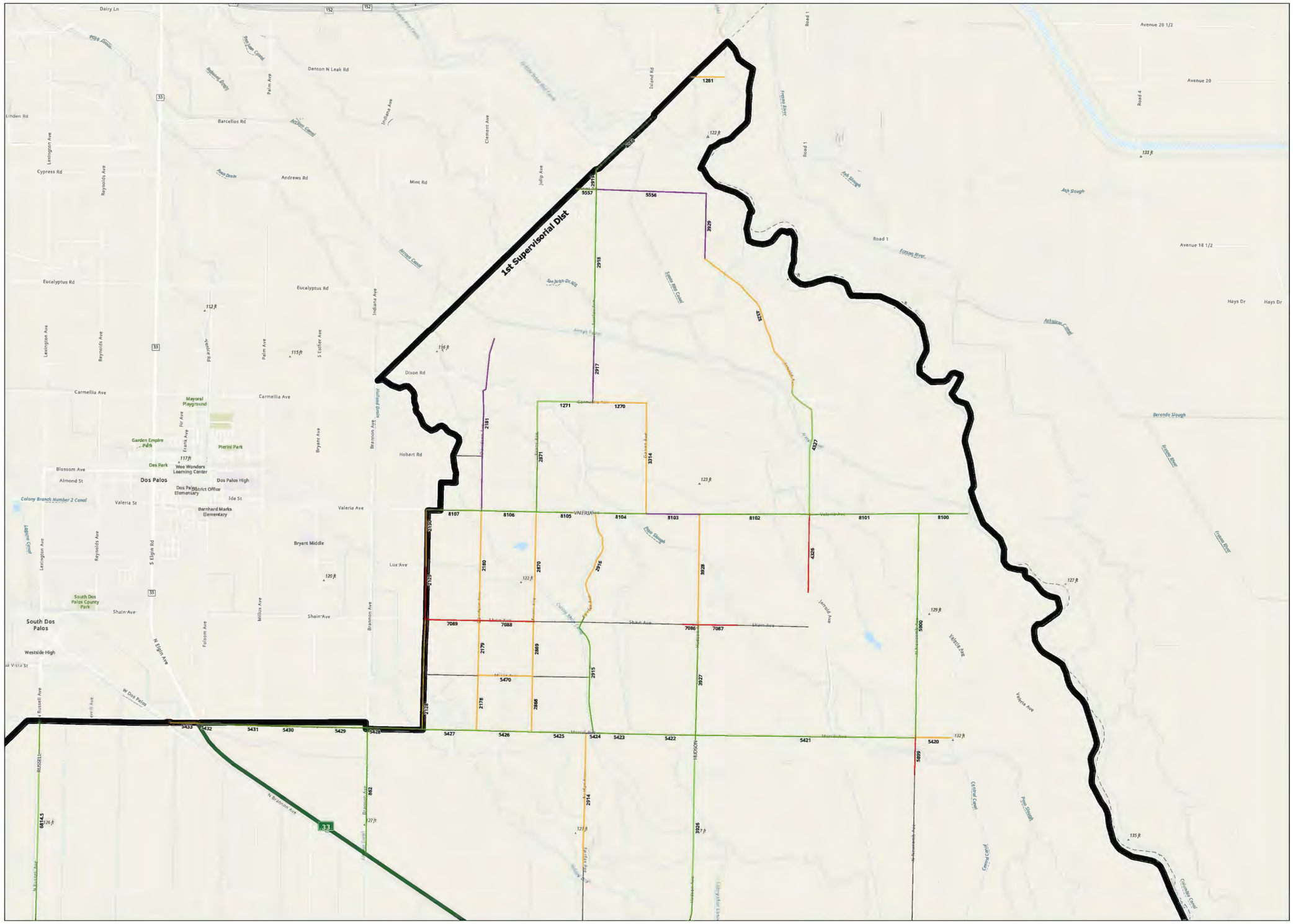
Supervisorial District 1 - Measure C Study Map - Grid 1

Legend

- Supervisorial District
- Non-County-Maintained Roads
- Highways

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+



N
W E
S

Miles
0 0.75 1.5

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

COUNTY OF FRESNO

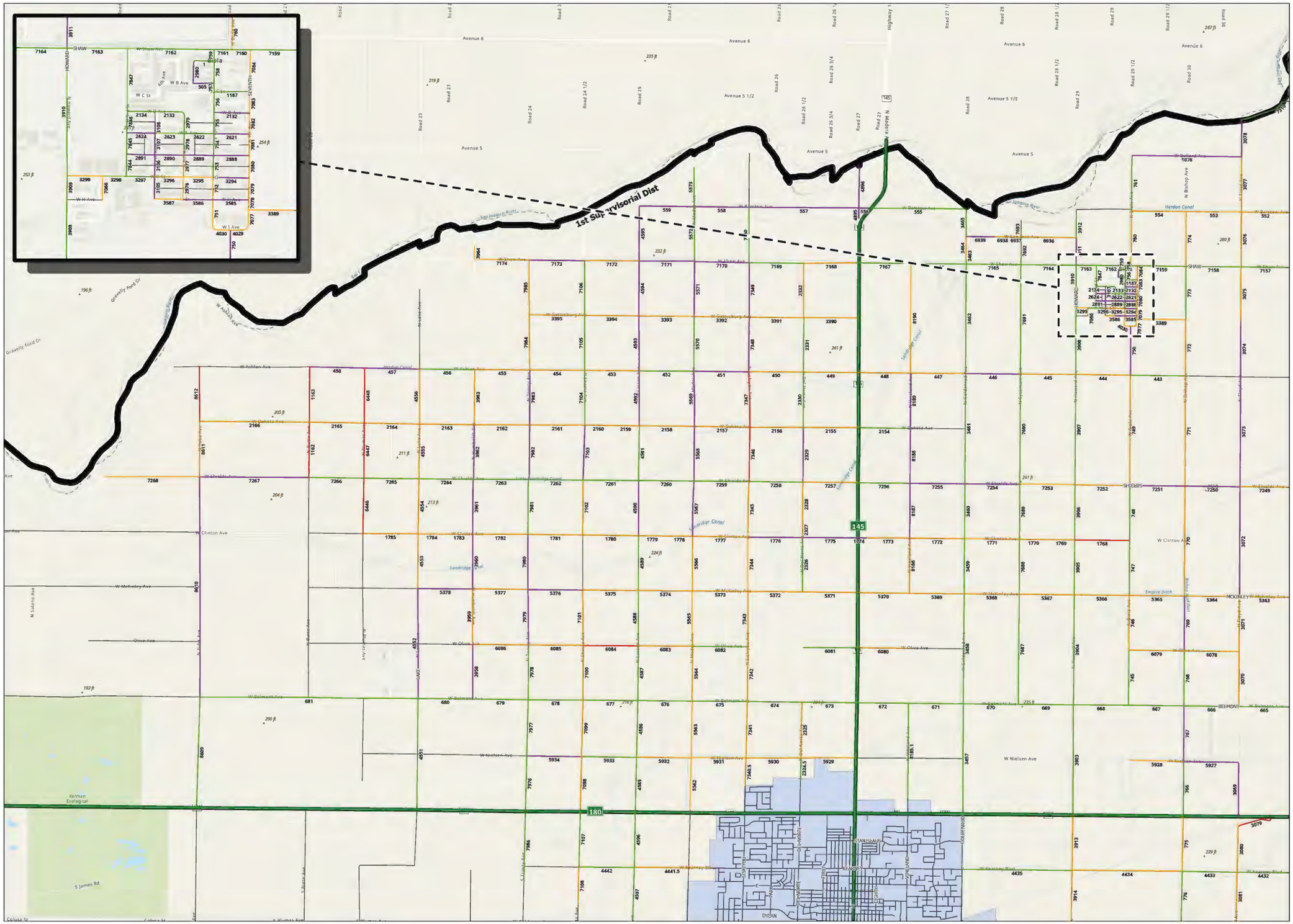
Supervisorial District 1 - Measure C Study Map - Grid 2

Legend

- Supervisorial District
- Incorporated Cities
- Non-County-Maintained Roads
- Highways

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+



N
W E
S

Miles
0 0.75 1.5

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

COUNTY OF FRESNO

Supervisorial District 1 - Measure C Study Map - Grid 3

Legend

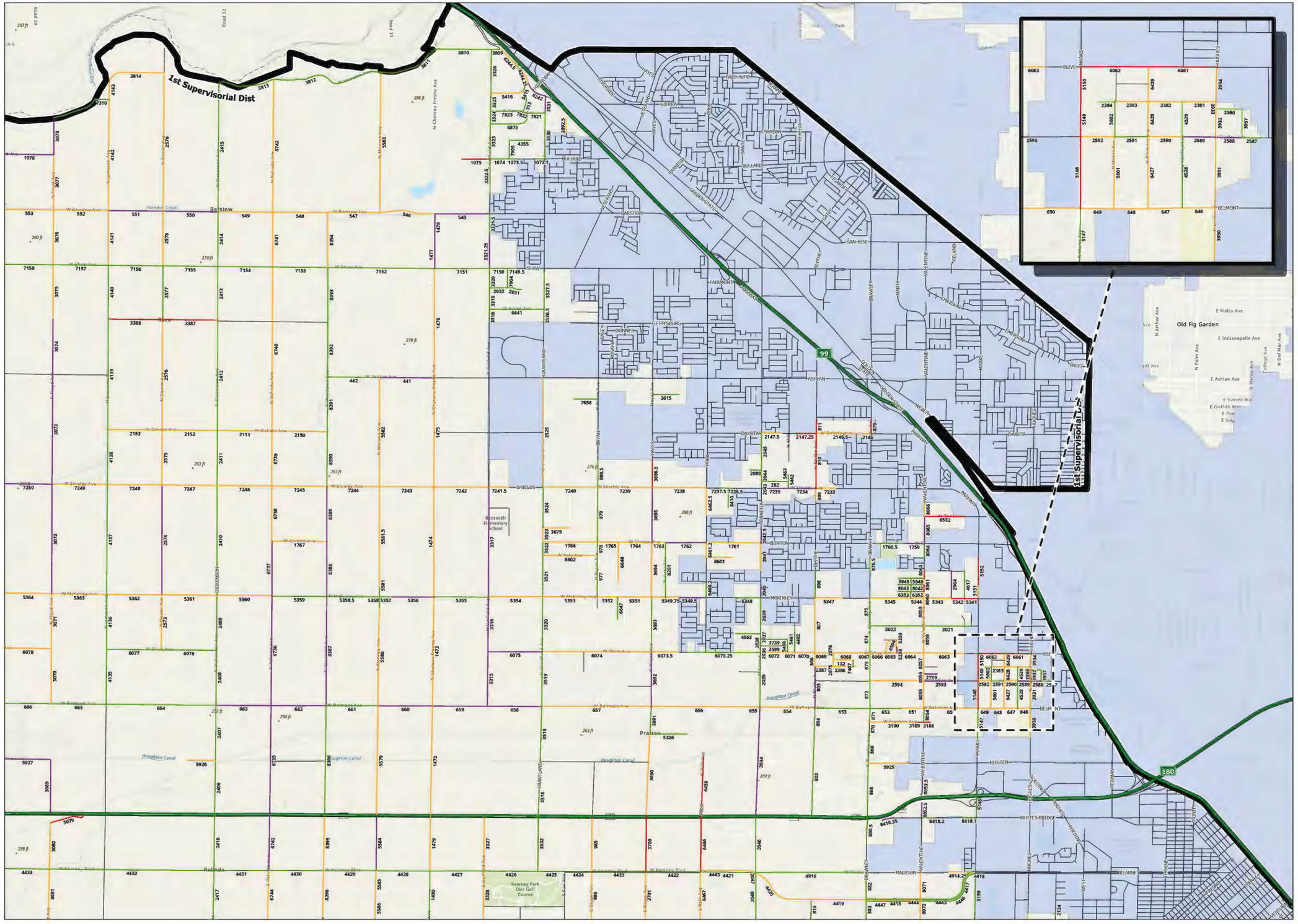
- Supervisorial District
- Incorporated Cities
- Non-County-Maintained Roads
- Highways

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+

N
W E
S

Miles
0 0.75 1.5



PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

COUNTY OF FRESNO

Supervisorial District 1 - Measure C Study Map - Grid 4

Legend

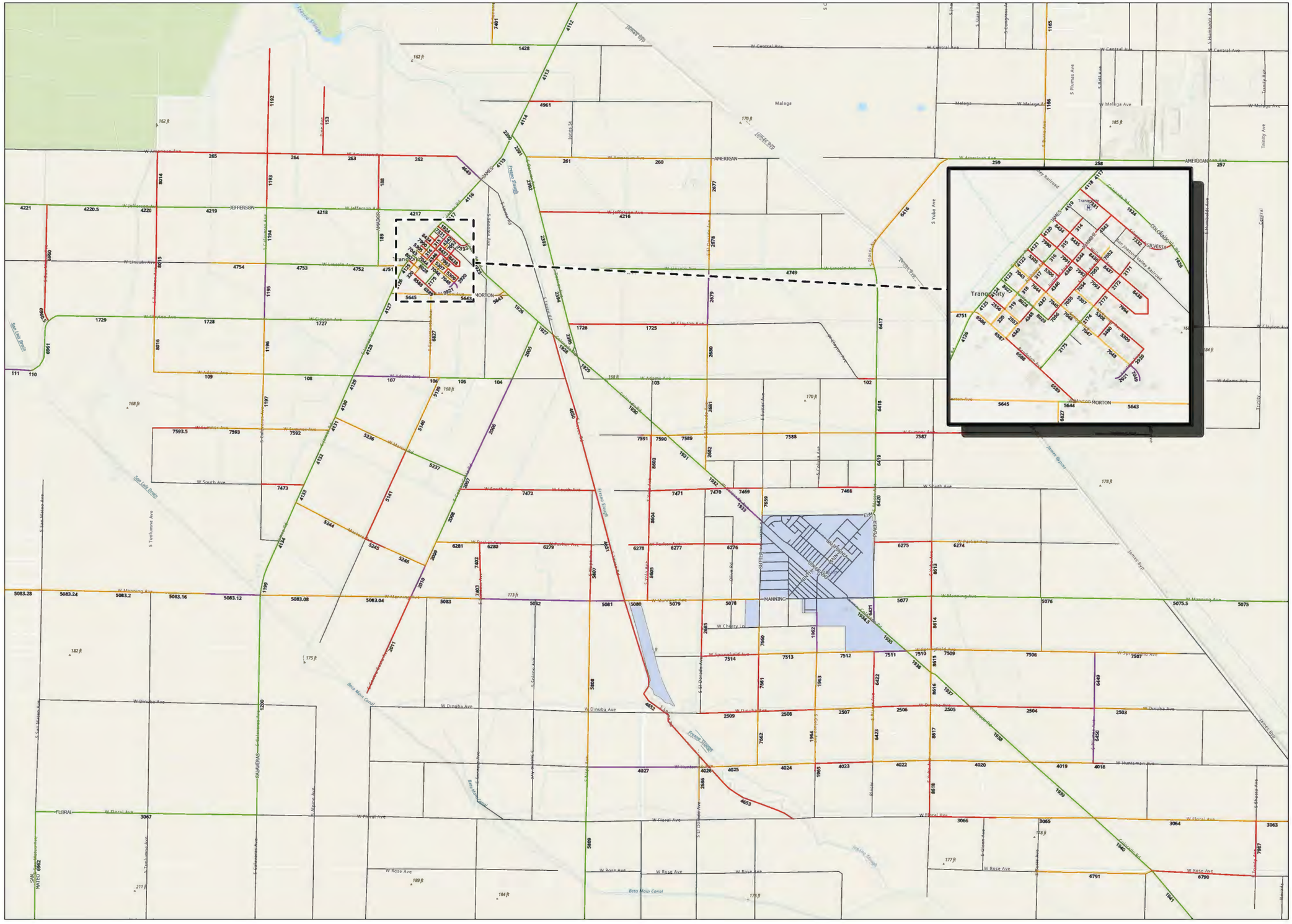
- Supervisorial District
- Incorporated Cities
- Non-County-Maintained Roads

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+

N
W E
S

Miles
0 0.75 1.5



PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

COUNTY OF FRESNO

Supervisorial District 1 - Measure C Study Map - Grid 5

Legend

- Supervisorial District
- Incorporated Cities
- Non-County-Maintained Roads
- Highways

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+

N
W E
S

Miles
0 0.75 1.5

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

COUNTY OF FRESNO

Supervisorial District 1 - Measure C Study Map - Grid 6

Legend

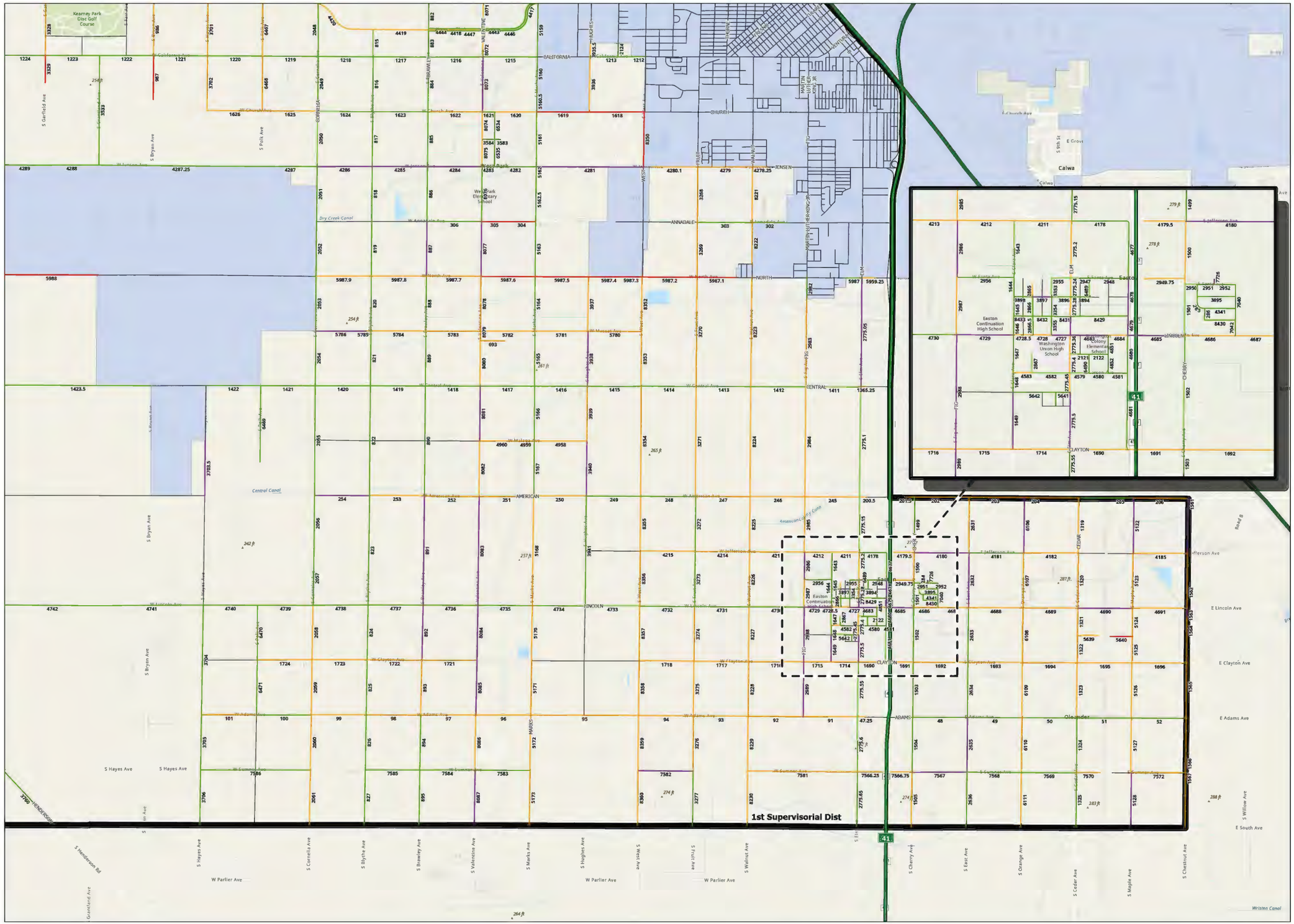
- Supervisorial District
- Incorporated Cities
- Non-County-Maintained Roads
- Highways

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+

N
W E
S

Miles
0 0.75 1.5



SUPERVISOR DISTRICT 2 PAVEMENT CONDITION INDEX

THE COUNTY OF FRESNO 1856

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

Supervisor District 2

Miles of	Super Arterial	Roads	1.040	91.0	Weighted Average PCI
Miles of	Expressway	Roads	3.273	84.0	Weighted Average PCI
Miles of	Arterial	Roads	7.341	82.7	Weighted Average PCI
Miles of	Collector	Roads	10.625	56.4	Weighted Average PCI
Miles of	Local 400 ADT Plus	Roads	29.436	76.4	Weighted Average PCI
Miles of	Local Under 400 ADT	Roads	59.183	70.4	Weighted Average PCI
	Total Miles in District 2		**110.898**	**3**	**% Miles from Total County Mileage**
				72.2	**Weighted Average PCI**

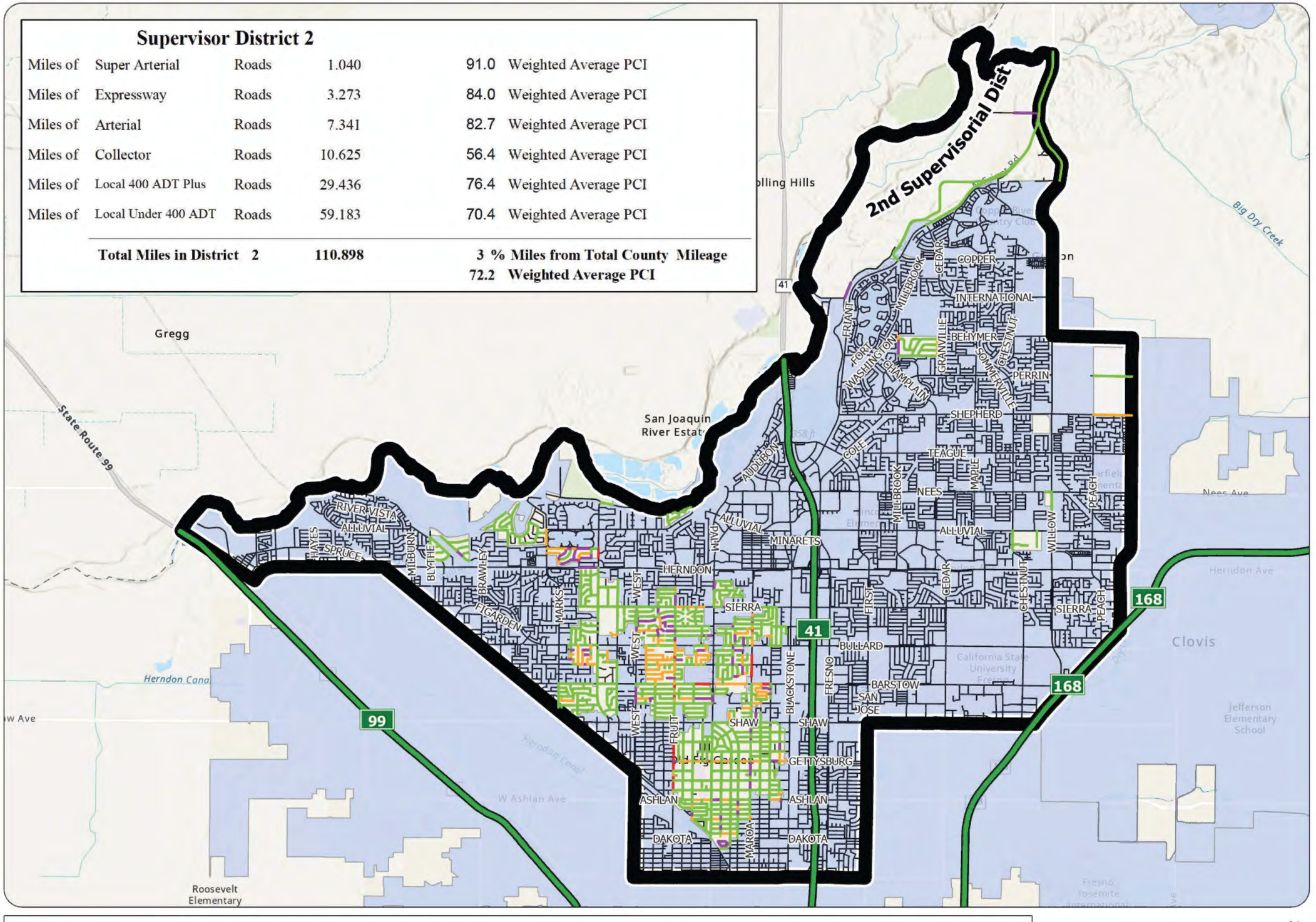
Legend

- Supervisorial District
- Incorporated Cities
- Non-County-Maintained Roads
- Highways

County Maintained Roads

PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+



Supervisorial District 2 - Measure C Overall Study Map

Miles
0 1 2

N

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

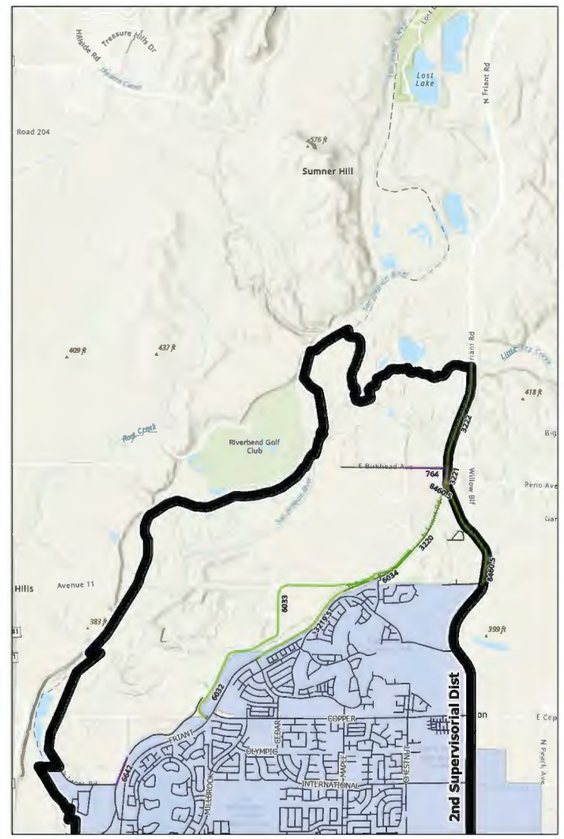
COUNTY OF FRESNO - SUPERVISORIAL DISTRICT 2
INCLUDING GARFIELD, HERNDON, AND FIG GARDEN COUNTY ISLANDS

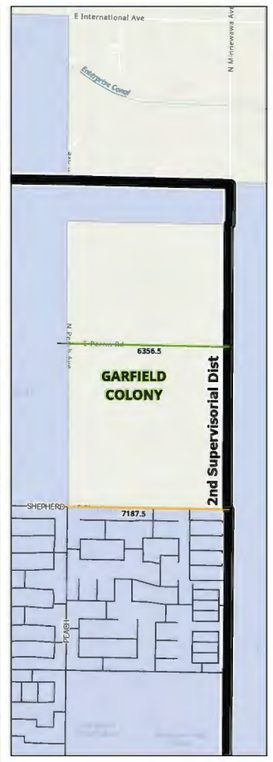
Legend

- Supervisorial District
- Incorporated Cities
- Non-County-Maintained Roads

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+





PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

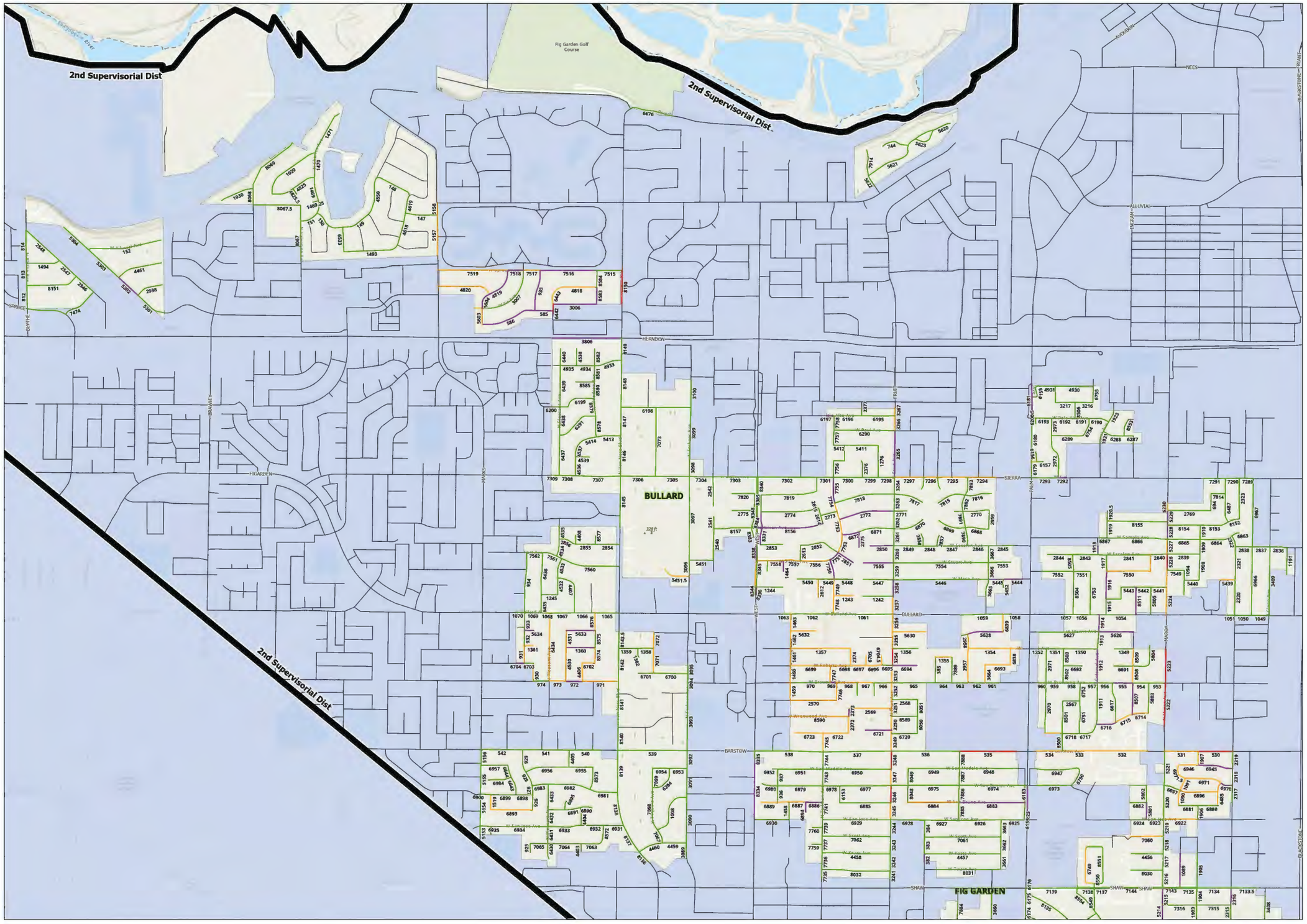
COUNTY OF FRESNO - SUPERVISORIAL DISTRICT 2
BULLARD COUNTY ISLAND

Legend

- Supervisorial District
- Incorporated Cities
- Non-County-Maintained Roads

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+



N
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S

Miles
0 0.3 0.6

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

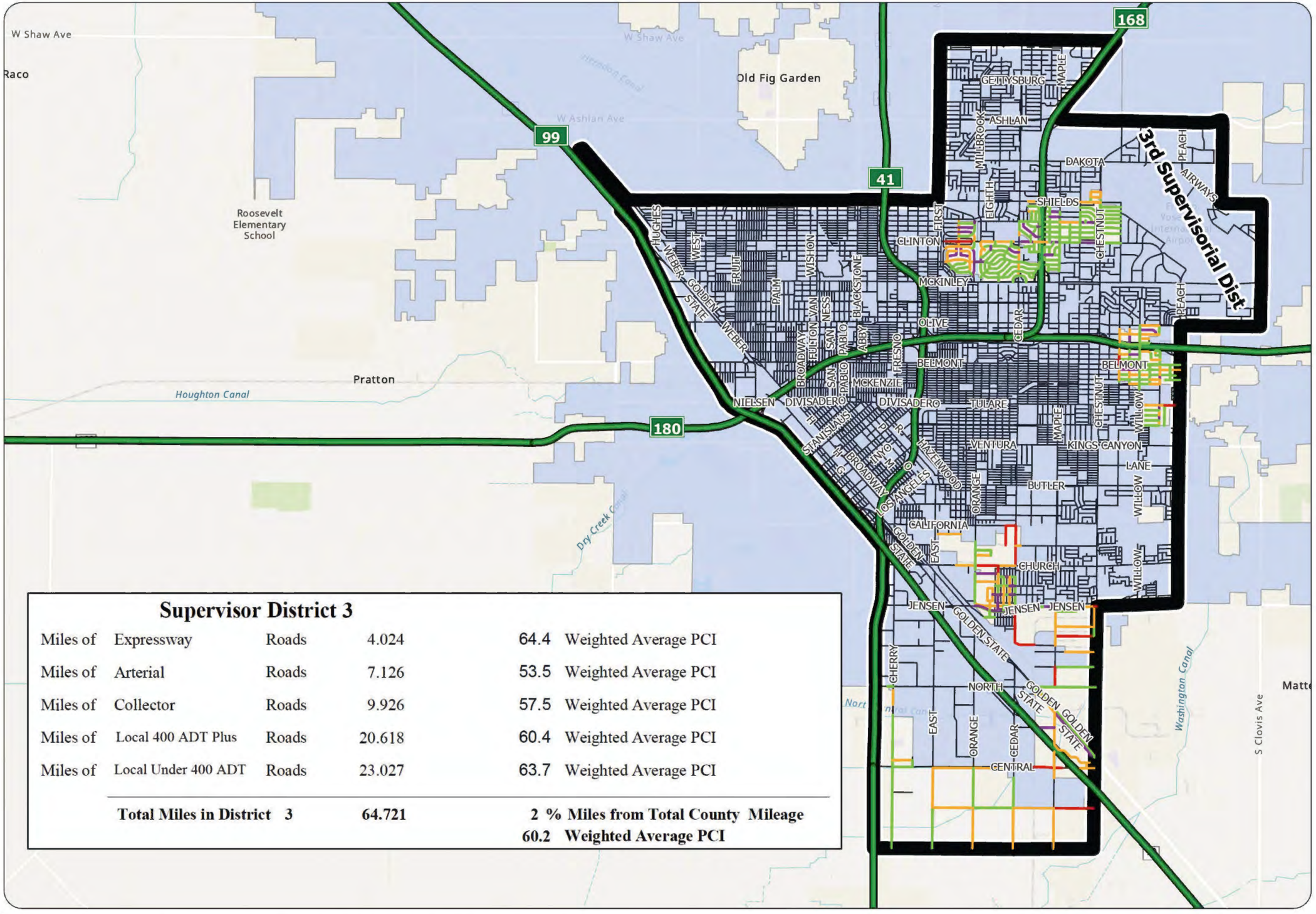
Legend

- Supervisorial District
- Incorporated Cities
- Non-County-Maintained Roads
- Highways

County Maintained Roads

PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+



Supervisor District 3

Miles of	Expressway	Roads	4.024	64.4 Weighted Average PCI
Miles of	Arterial	Roads	7.126	53.5 Weighted Average PCI
Miles of	Collector	Roads	9.926	57.5 Weighted Average PCI
Miles of	Local 400 ADT Plus	Roads	20.618	60.4 Weighted Average PCI
Miles of	Local Under 400 ADT	Roads	23.027	63.7 Weighted Average PCI
	Total Miles in District 3		**64.721**	**2 % Miles from Total County Mileage**
				60.2 Weighted Average PCI

Supervisorial District 3 - Measure C Overall Study Map

Miles
0 1 2

N

SUPERVISOR DISTRICT 3 PAVEMENT CONDITION INDEX

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

COUNTY OF FRESNO

Supervisorial District 3 - Measure C Study Map

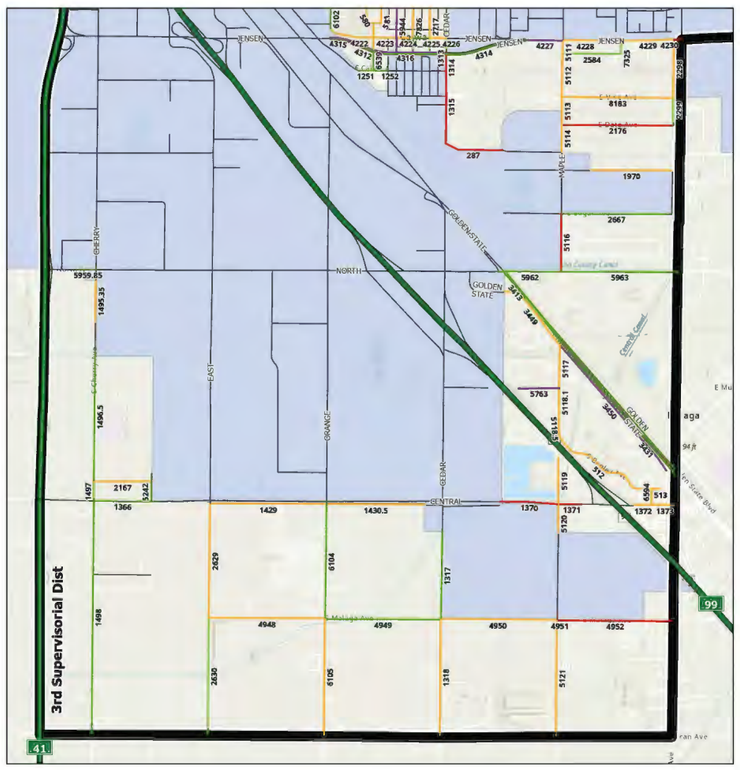
Legend

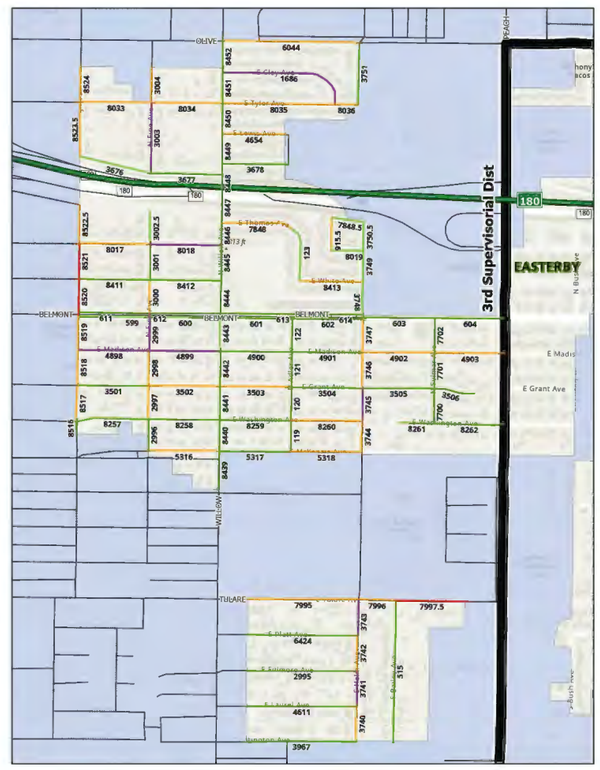
- Supervisorial District
- Incorporated Cities
- Non-County-Maintained Roads
- Highways

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+

N
W E
S





THE COUNTY OF FRESNO 1856

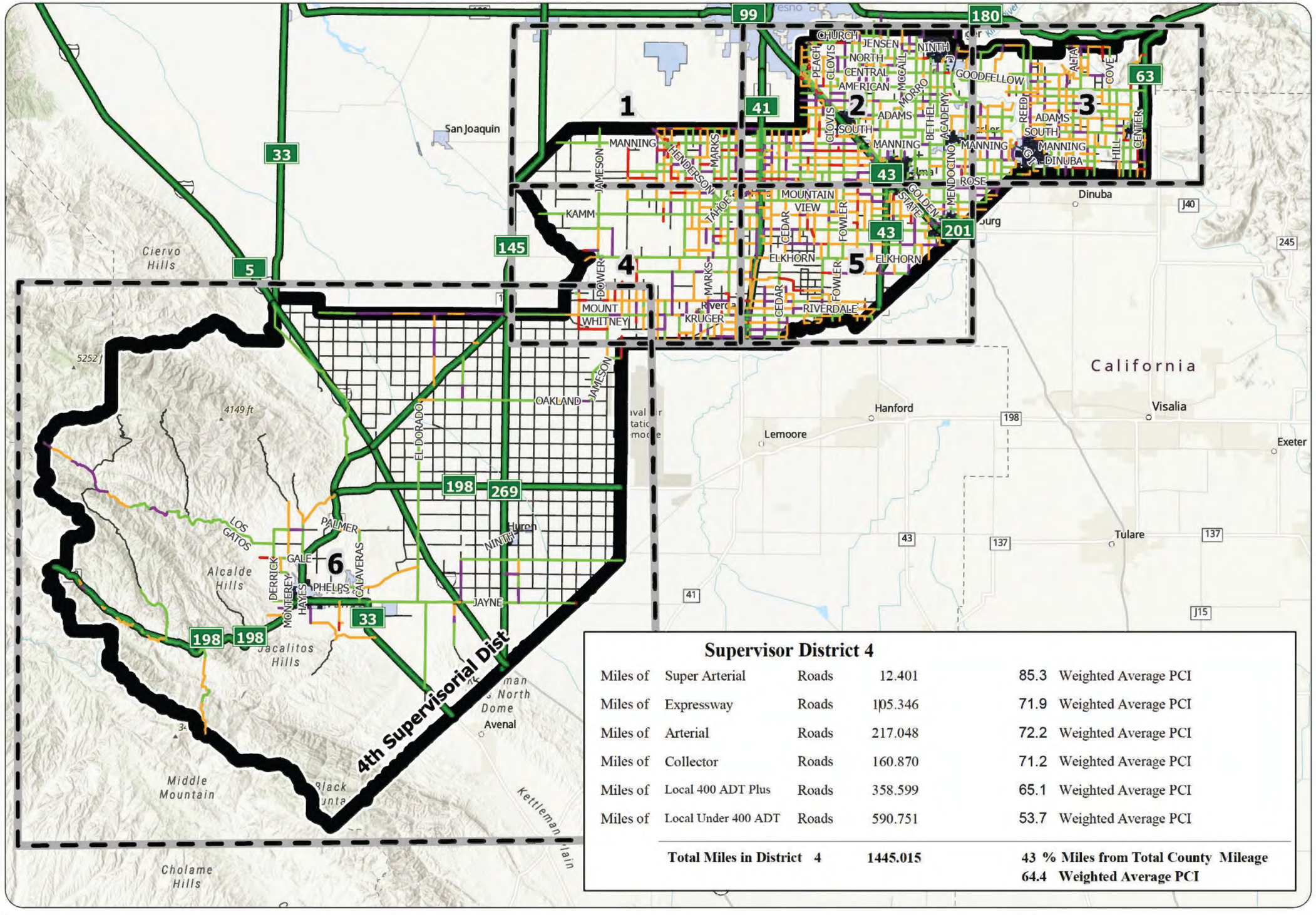
PWP
PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

Legend

- Supervisorial District
- Incorporated Cities
- Grid #
- Non-County-Maintained Roads
- Highways

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+



Supervisor District 4

Miles of	Super Arterial	Roads	12.401	85.3	Weighted Average PCI
Miles of	Expressway	Roads	105.346	71.9	Weighted Average PCI
Miles of	Arterial	Roads	217.048	72.2	Weighted Average PCI
Miles of	Collector	Roads	160.870	71.2	Weighted Average PCI
Miles of	Local 400 ADT Plus	Roads	358.599	65.1	Weighted Average PCI
Miles of	Local Under 400 ADT	Roads	590.751	53.7	Weighted Average PCI
	Total Miles in District 4		**1445.015**	**43**	**% Miles from Total County Mileage**
				64.4	**Weighted Average PCI**

Supervisorial District 4 - Measure C Overall Study Map

Miles
0 6 12

N

SUPERVISOR DISTRICT 4 PAVEMENT CONDITION INDEX

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

COUNTY OF FRESNO

Supervisorial District 4 - Measure C Study Map - Grid 1

Legend

- Supervisorial District
- Incorporated Cities
- Non-County-Maintained Roads
- Highways

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+

N
W E
S

Miles
0 1 2

4th Supervisorial Dist

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

COUNTY OF FRESNO

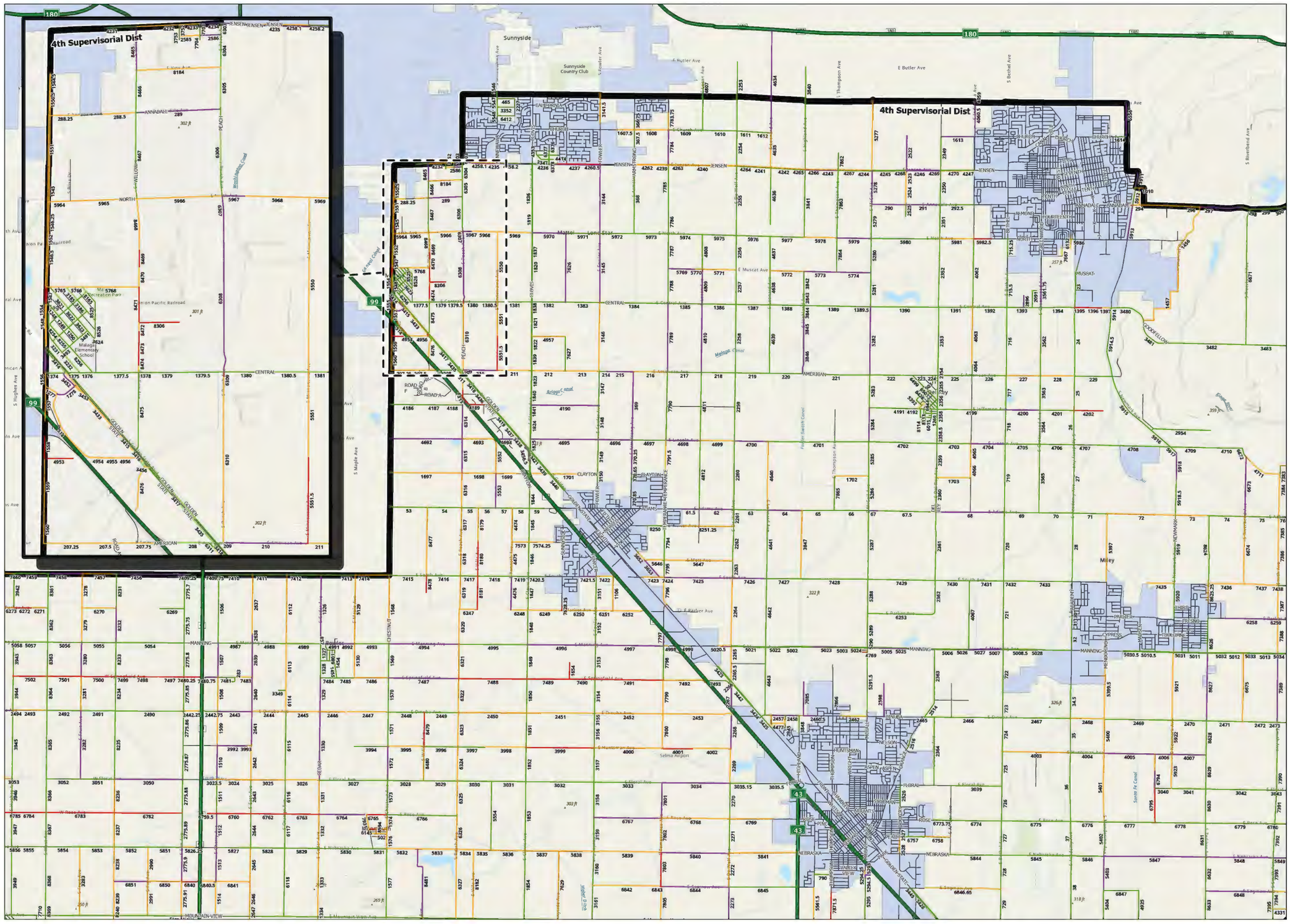
Supervisorial District 4 - Measure C Study Map - Grid 2

Legend

- Supervisorial District
- Incorporated Cities
- Non-County-Maintained Roads
- Highways

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+


4th Supervisorial Dist
4th Supervisorial Dist
Sunnyside
Sunnyside Country Club
Malaga Elementary School
Malaga Creation Park
Union Pacific Railroad
Selma Airport
Miley
Belmont
Laton
Monmouth
Fresno Canal
Fowler Switch Canal
Briggs Canal
Malaga Canal
Floral Canal
Garfield Canal
Mountain View Canal
Valley Pipeline
Santa Fe Canal
Fresno River
Dry Creek
Brush Hollow Canal
E Butler Ave
E Muscat Ave
E Floral Ave
E Manning Ave
E Kings Canyon Rd
E Belmont Ave
E Jensen Ave
E Mountain View Ave
E Rose Ave
E Nebraska Ave
E Clayton Ave
E Adams Ave
E Madison Ave
E Monroe Ave
E Harding Ave
E Kamm Ave
E Olive Ave
E Cypress Ave
E Fairmont Ave
E Kearney Blvd
E Whitesbridge Ave
E Church Ave
E Central Ave
E Caldwell Ave
E Conejo Ave
E Springfield Ave
E Parlier Ave
E Sussex Ave
E Huntsman Ave
E Lincoln Ave
E Hamilton Ave
E Lorena Ave
E Sierra Ave
E Sumner Ave
E Tulare Ave
E Ventura Ave
E Wellbarn Ave
E Whitson Ave
E Yale Ave
E Yorkshire Ave
E Yosemite Ave
E Zediker Ave
S Bechtel Ave
S Bethel Ave
S Biverbend Ave
S Chestnut Ave
S Fowler Ave
S Higbee Ave
S Maple Ave
S Thompson Ave
S Walnut Ave
S Winery Ave
Golden State
Union Pacific Railroad
Road A
Road B
Road C
Road D
Road E
Road F
Road G
Road H
Road I
Road J
Road K
Road L
Road M
Road N
Road O
Road P
Road Q
Road R
Road S
Road T
Road U
Road V
Road W
Road X
Road Y
Road Z
Road 1
Road 2
Road 3
Road 4
Road 5
Road 6
Road 7
Road 8
Road 9
Road 10
Road 11
Road 12
Road 13
Road 14
Road 15
Road 16
Road 17
Road 18
Road 19
Road 20
Road

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

COUNTY OF FRESNO

Supervisorial District 4 - Measure C Study Map - Grid 3

Legend

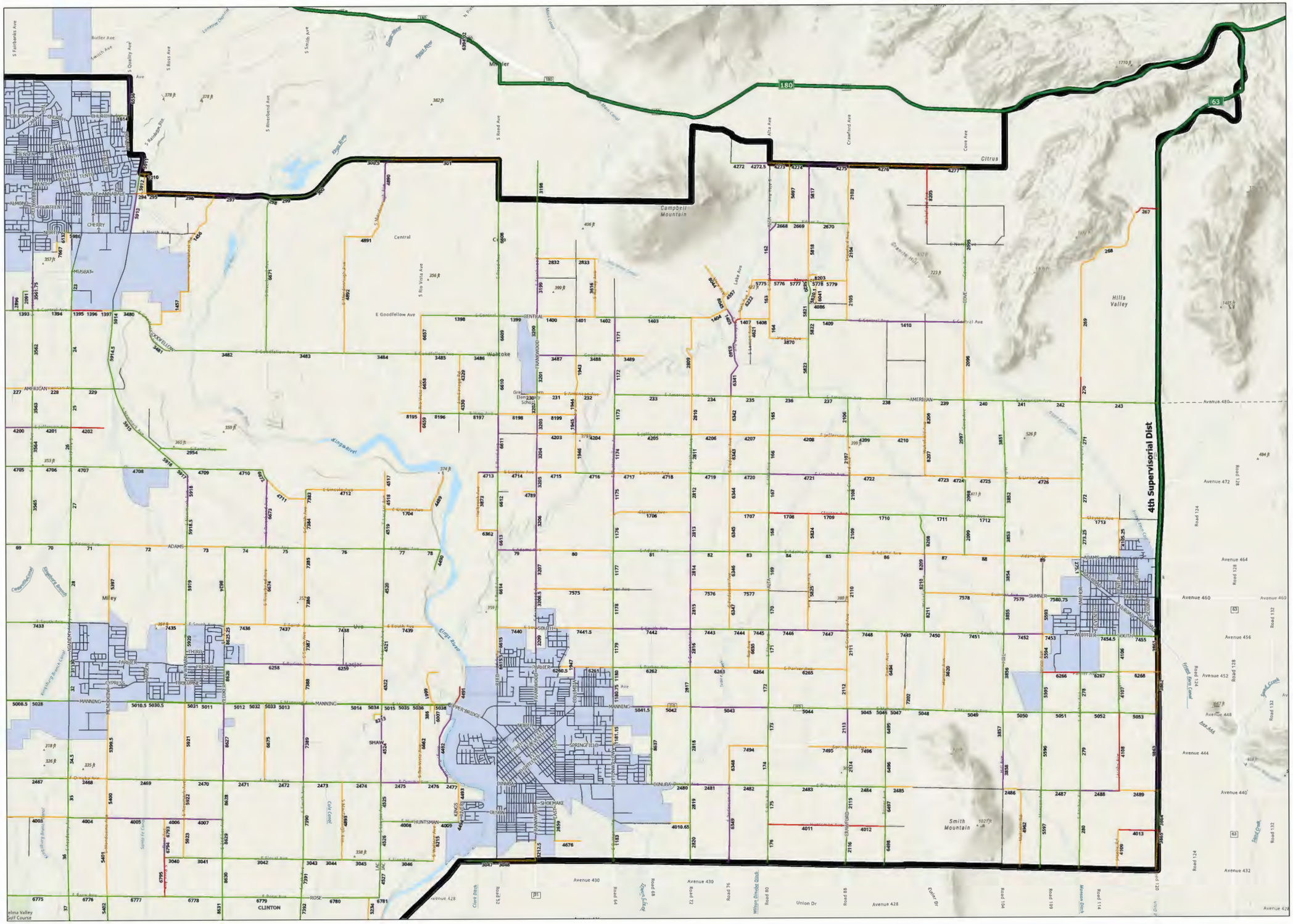
- Supervisorial District
- Incorporated Cities
- Non-County-Maintained Roads
- Highways

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+

N
W E
S

Miles
0 1 2



PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

COUNTY OF FRESNO

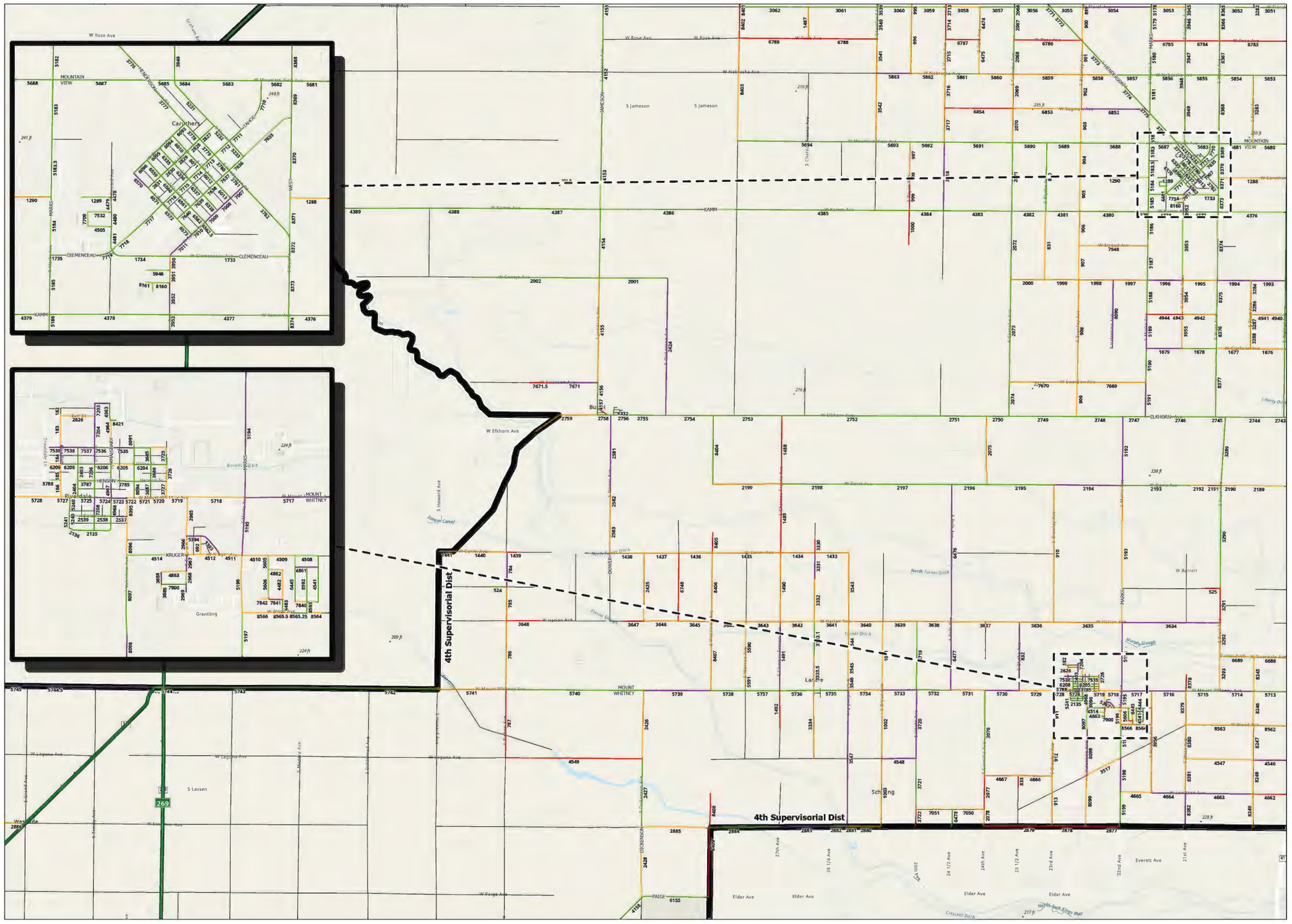
Supervisorial District 4 - Measure C Study Map - Grid 4

Legend

- Supervisorial District
- Non-County-Maintained Roads
- Highways

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+



N
W E
S

Miles
0 1 2

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

COUNTY OF FRESNO

Supervisorial District 4 - Measure C Study Map - Grid 5

Legend

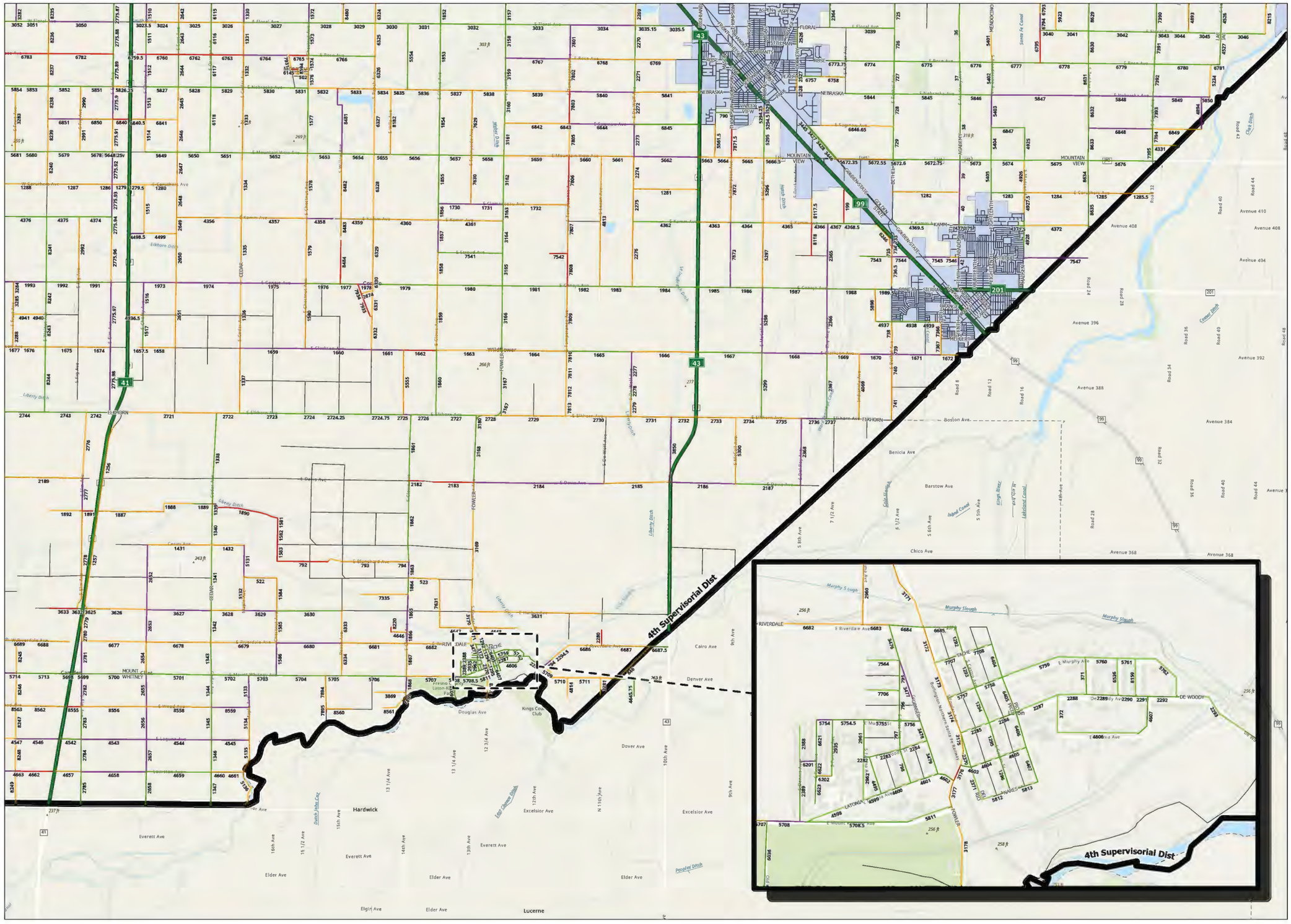
- Supervisorial District
- Incorporated Cities
- Non-County-Maintained Roads
- Highways

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+

N
W E
S

Miles
0 1.25 2.5



PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

COUNTY OF FRESNO

Supervisorial District 4 - Measure C Study Map - Grid 6

Legend

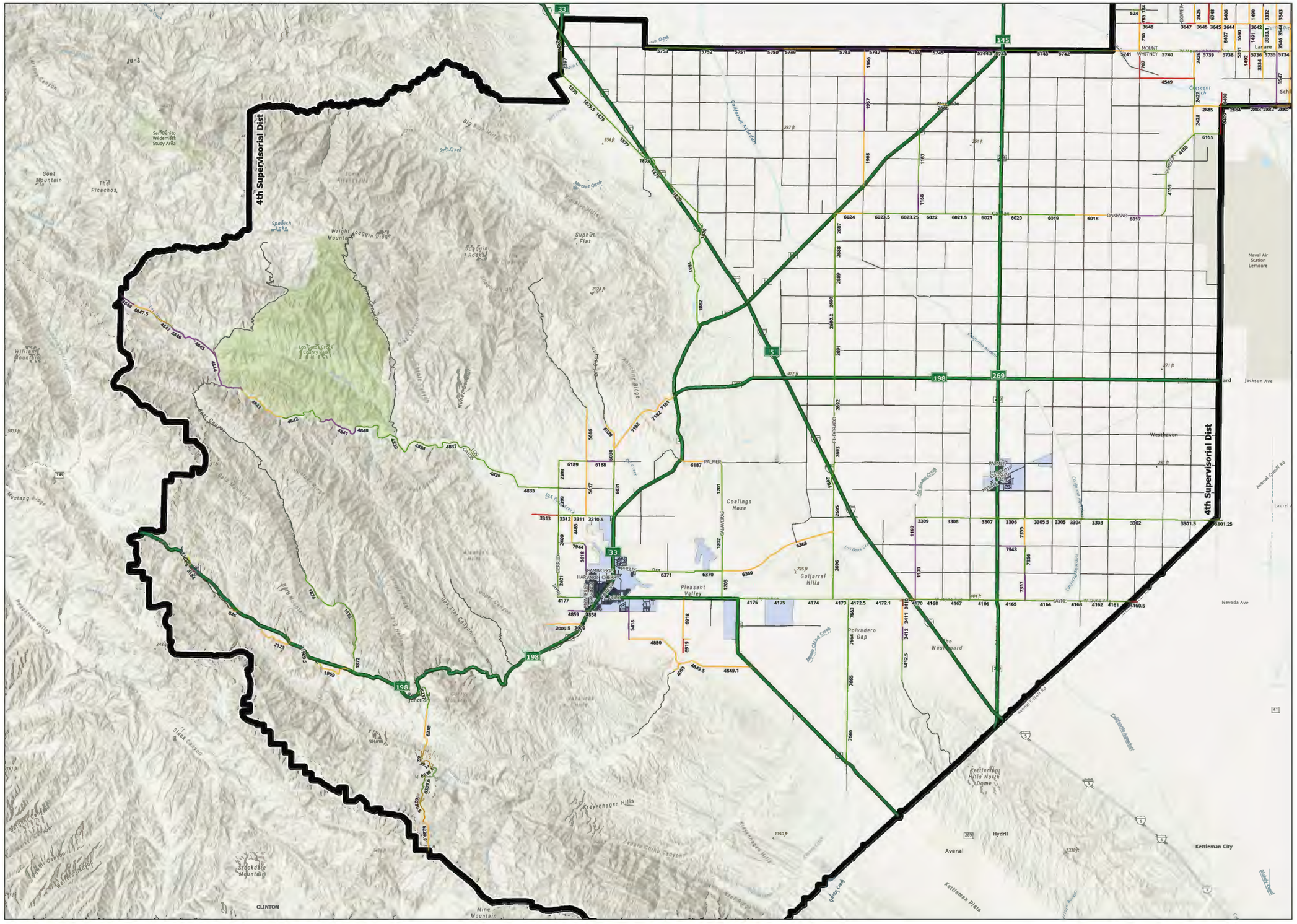
- Supervisorial District
- Incorporated Cities
- Non-County-Maintained Roads
- Highways

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+

N
W E
S

Miles
0 2.75 5.5


4th Supervisorial Dist
4th Supervisorial Dist
33
145
5
198
269
Lanare
Naval Air Station Lemoore
Westhaven
Nevada Ave
Jackson Ave
Avenal
Kettleman City
Hydril
CLINTON
PALMER
GAMBRIDGE
HARVARD
ORBERT
Pleasant Valley
Coalinga Nose
Guijarral Hills
Polvadero Gap
Kettleman Hills North Dome
Kreyenhagen Hills
Stockdale Mountain
Mine Mountain
Wright Mountain
Sugarloaf Ridge
Sulphur Flat
Goat Mountain
The Picachos
Williams Mountain
Mustang Ridge
Stack Canyon
Prairie Valley
Kettleman Plain
Avenal Cutoff Rd
Avenal Cutoff
Laurel Ave
Nevada Ave
Jayne Ave
Oakland
Whitney
Mount
Crescent View
Schl
Fresno Canyon
Spanish Lake
Soda Lake
Soda Mountain
Shell Canyon
Los Gatos Creek County Park
Los Gatos Creek
Big Blue Hills
Soil Creek
Marsh Creek
Fox Creek
Cottonwood Creek
Cantua Creek
Glass Creek
Black Creek
Cantua Arroyo
Cantua Creek
Kreyenhagen Creek
Kettleman Hills
Kettleman Hills
Kettleman Hills

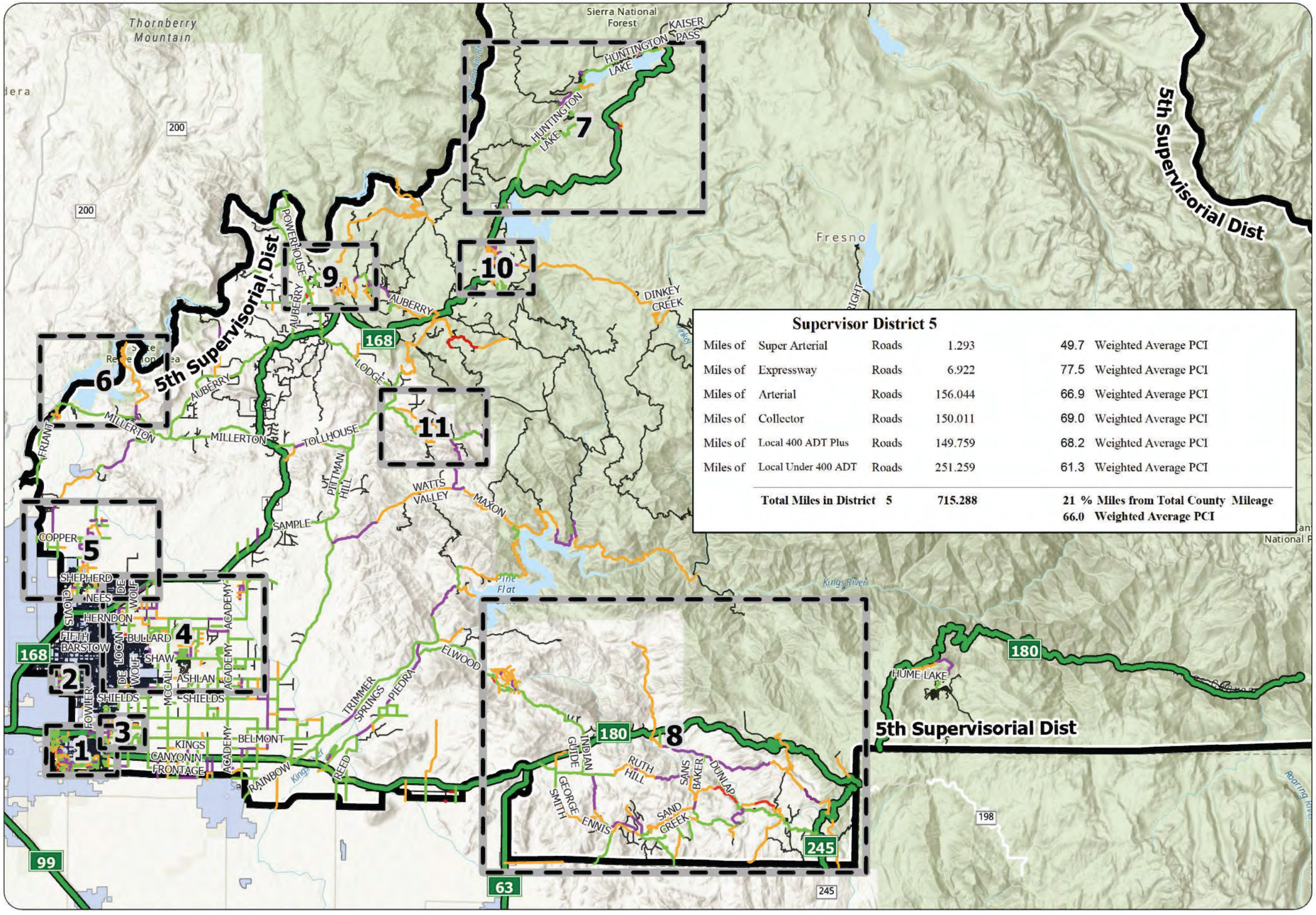
PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

Legend

- Supervisorial District
- Incorporated Cities
- Grid #
- Non-County-Maintained Roads
- Highways

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+



Supervisor District 5

Miles of	Super Arterial	Roads	1.293	49.7 Weighted Average PCI
Miles of	Expressway	Roads	6.922	77.5 Weighted Average PCI
Miles of	Arterial	Roads	156.044	66.9 Weighted Average PCI
Miles of	Collector	Roads	150.011	69.0 Weighted Average PCI
Miles of	Local 400 ADT Plus	Roads	149.759	68.2 Weighted Average PCI
Miles of	Local Under 400 ADT	Roads	251.259	61.3 Weighted Average PCI
Total Miles in District	**5**		**715.288**	**21 % Miles from Total County Mileage**
				66.0 Weighted Average PCI

Supervisorial District 5 - Measure C Overall Study Map

Miles
0 4.5 9

N

SUPERVISOR DISTRICT 5 PAVEMENT CONDITION INDEX

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

COUNTY OF FRESNO

Supervisorial District 5 - Measure C Overall Study Map

Legend

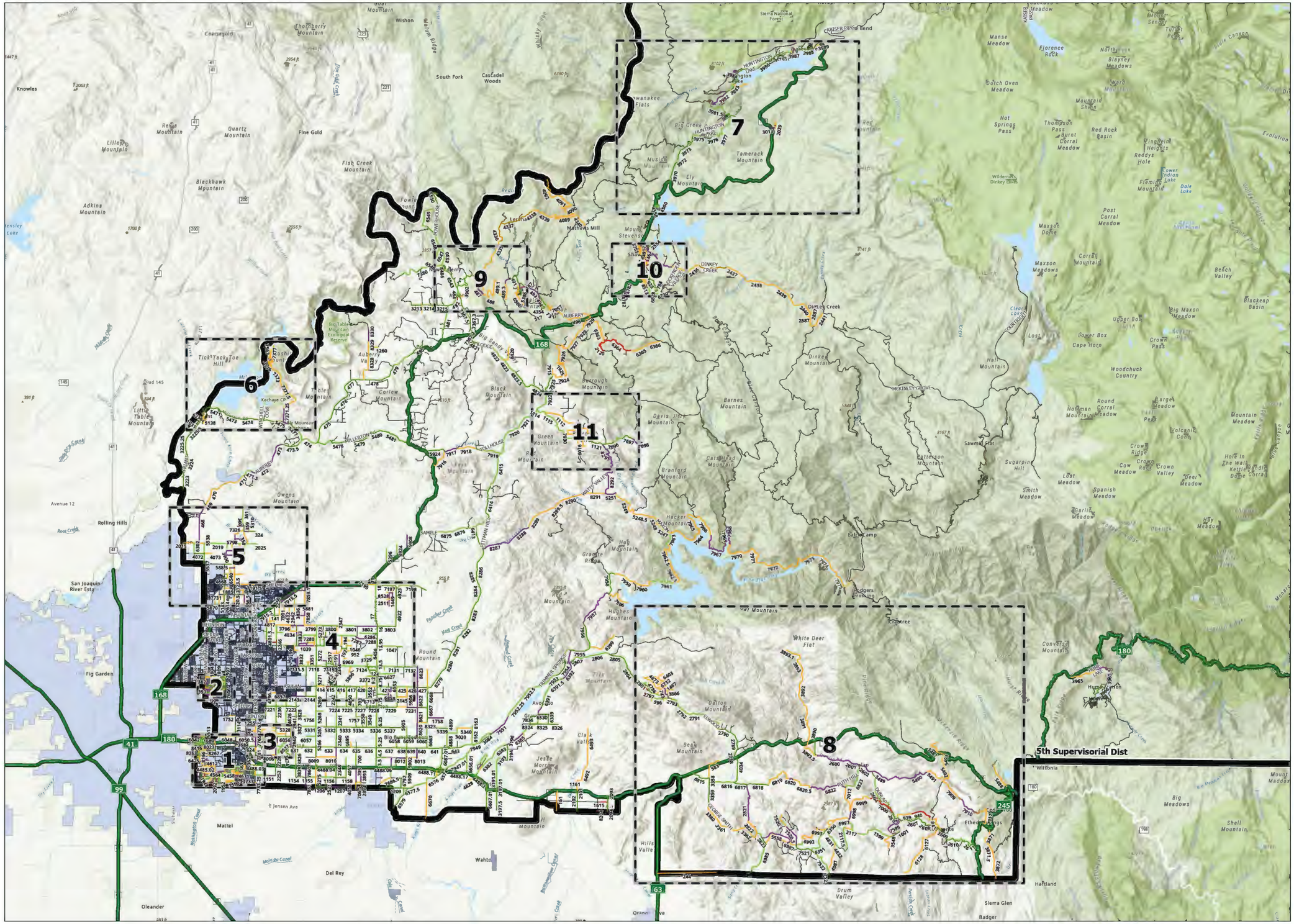
- Supervisorial District
- Incorporated Cities
- Grid #
- Non-County-Maintained Roads
- Highways

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+

N
W E
S

Miles
0 4 8



PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

COUNTY OF FRESNO

Supervisorial District 5 - Measure C Study Map - Grid 1

Legend

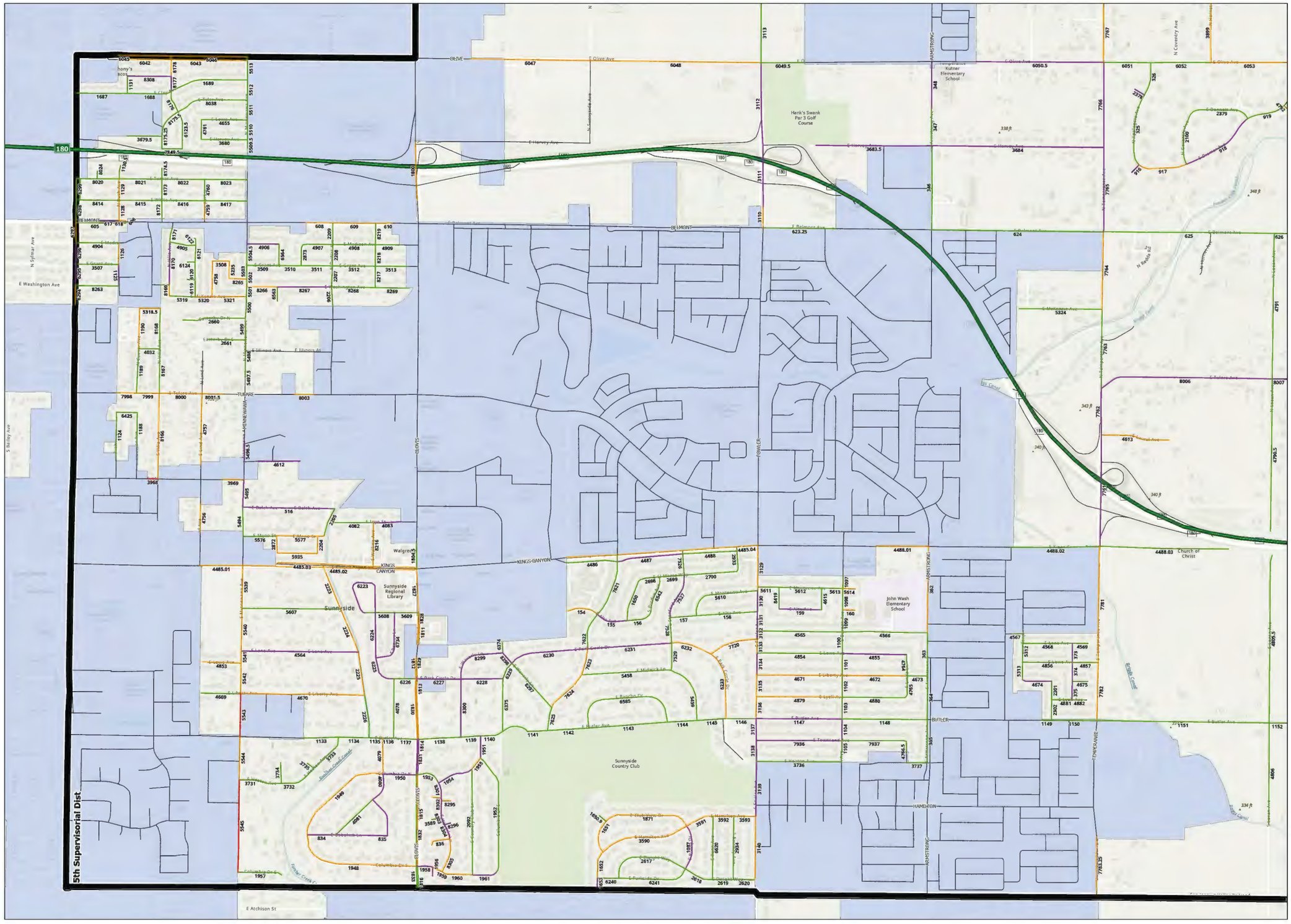
- Supervisorial District
- Incorporated Cities
- Non-County-Maintained Roads
- Highways

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+

N
W E
S

Miles
0 0.23 0.45



PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

COUNTY OF FRESNO

Supervisorial District 5 - Measure C Study Map - Grid 2

Legend

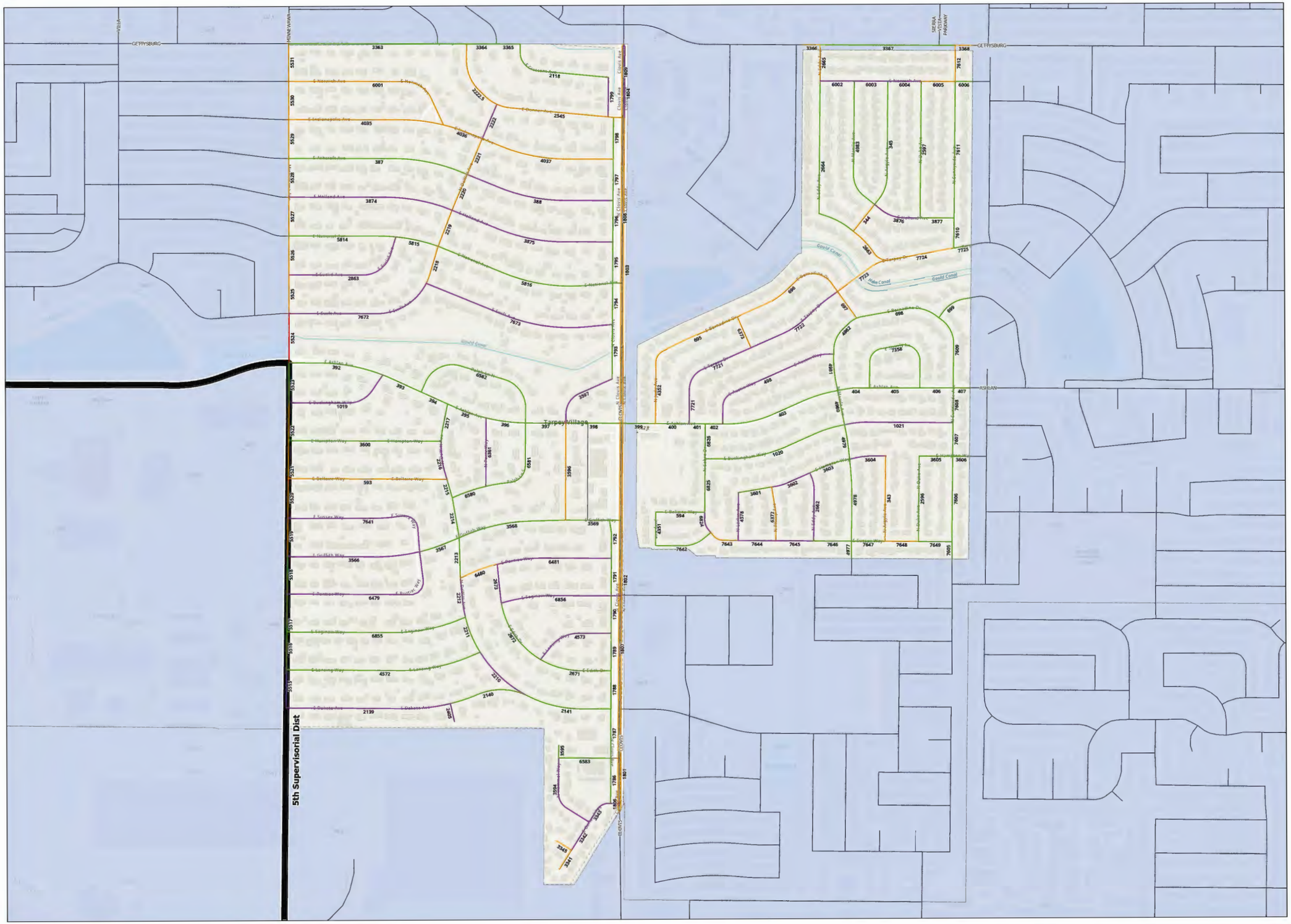
- Supervisorial District
- Incorporated Cities
- Non-County-Maintained Roads

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+

N
W E
S

Miles
0 0.1 0.2



PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

COUNTY OF FRESNO

Supervisorial District 5 - Measure C Study Map - Grid 3

Legend

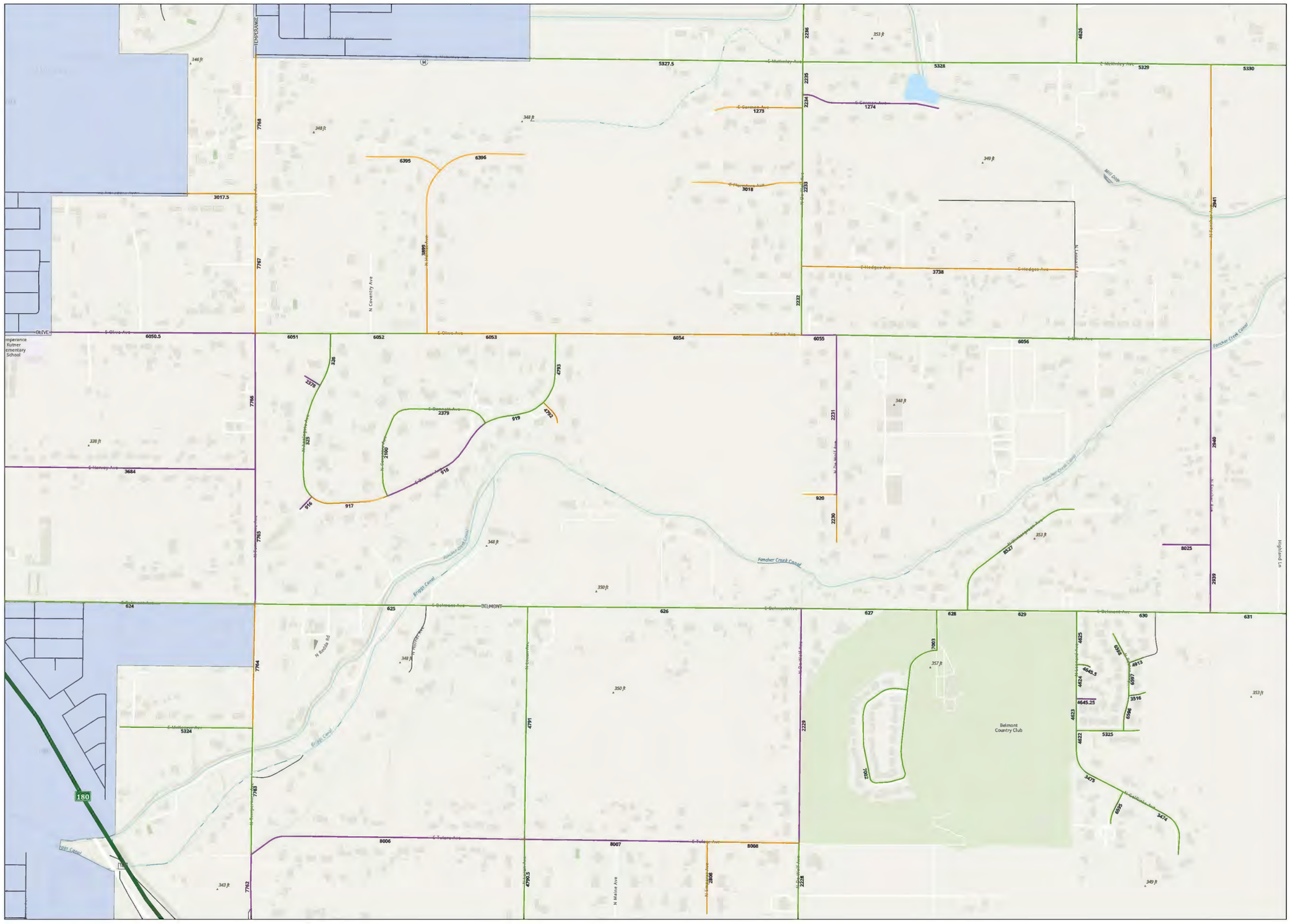
- Supervisorial District
- Incorporated Cities
- Non-County-Maintained Roads
- Highways

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+

N
W E
S

Miles
0 0.13 0.25


C Mckinley Ave
5327.5
5328
5329
5330
C Gettysburg Ave
1273
1274
C Pierpont Ave
3018
N Cedar Ave
N Maple Ave
N Peach Ave
N Cornelia Ave
N Crawford Ave
N Chestnut Ave
N Fowler Ave
N Temperance Ave
N Valentine Ave
N Coventry Ave
N Recreation Ave
N Clovis Ave
N Chestnut Ave
N Willow Ave
N Marks Ave
N Maple Ave
N Academy Ave
N Del Mar Ave
N Del Rey Ave
N Del Mar Ave
N Del Rey Ave
N Del Mar Ave
N Del Rey

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

COUNTY OF FRESNO

Supervisorial District 5 - Measure C Study Map - Grid 4

Legend

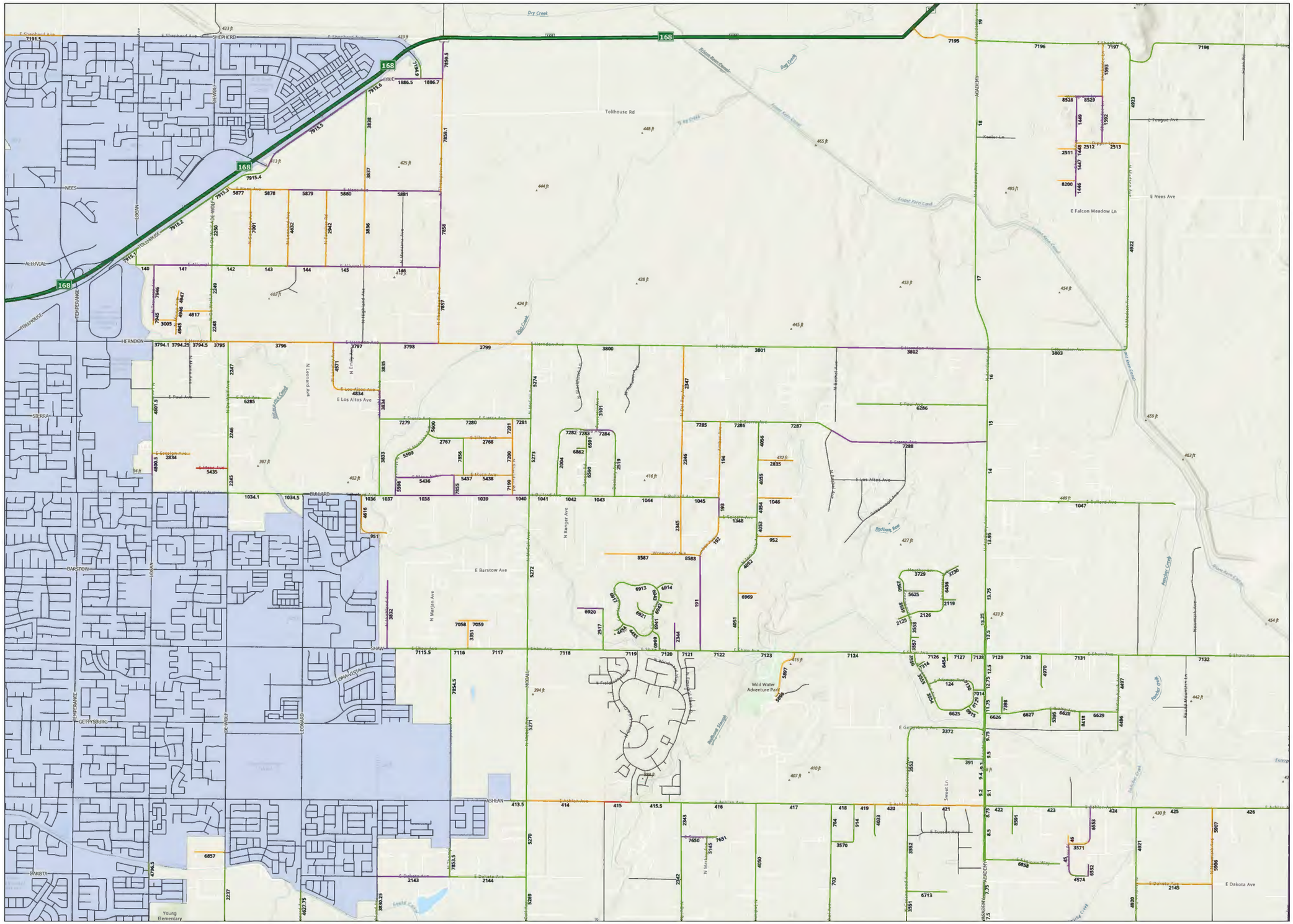
- Supervisorial District
- Incorporated Cities
- Non-County-Maintained Roads
- Highways

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+

N
W E
S

Miles
0 0.5 1



PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

COUNTY OF FRESNO

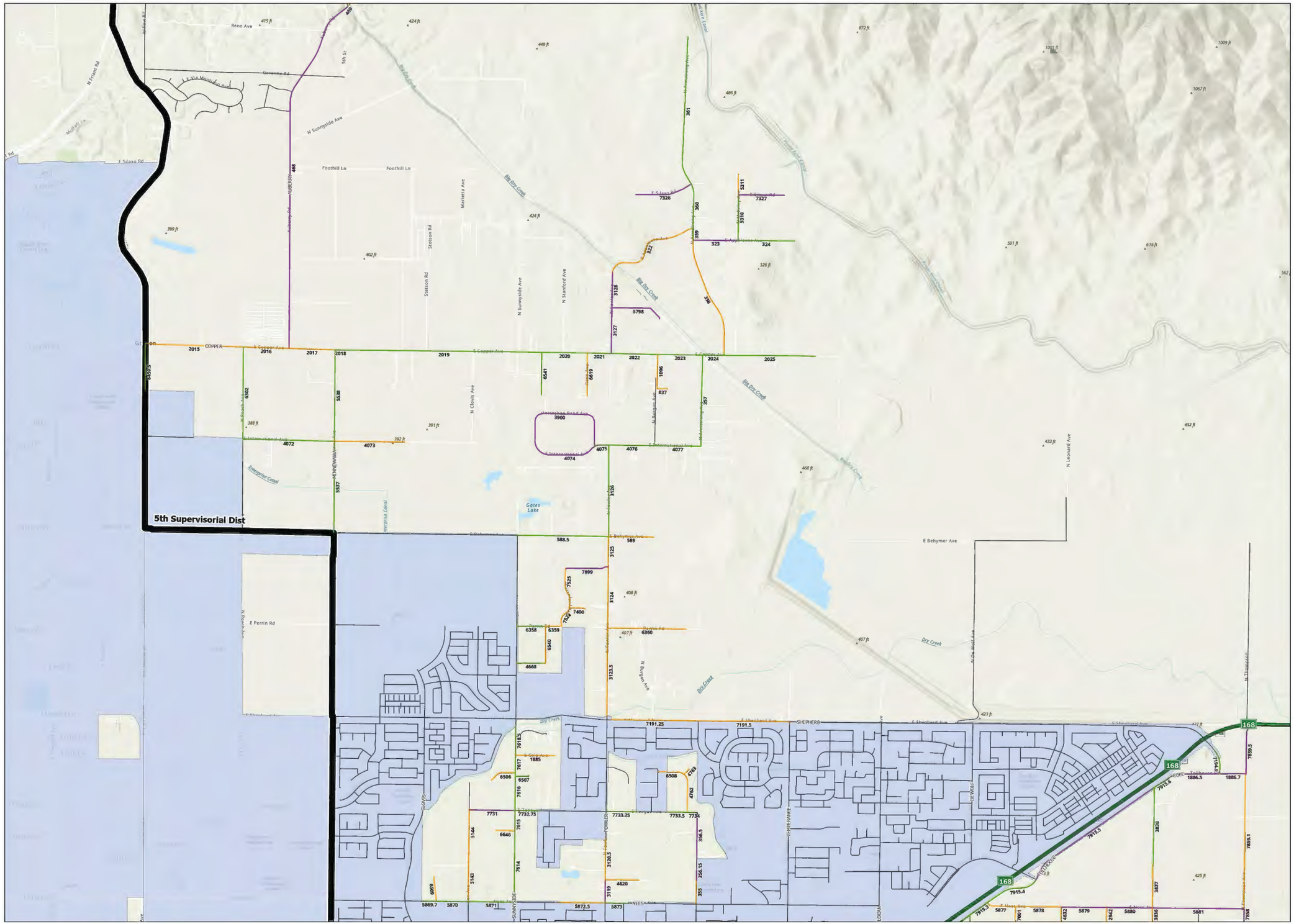
Supervisorial District 5 - Measure C Study Map - Grid 5

Legend

- Supervisorial District
- Incorporated Cities
- Non-County-Maintained Roads
- Highways

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+


5th Supervisorial Dist
Reno Ave
Sierra Ave
N Fruit Ave
N Fruit Ave
N Fruit

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

COUNTY OF FRESNO

Supervisorial District 5 - Measure C Study Map - Grid 6

Legend

- Supervisorial District
- Non-County-Maintained Roads

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+

N
W E
S

Miles
0 0.4 0.8

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

COUNTY OF FRESNO

Supervisorial District 5 - Measure C Study Map - Grid 7

Legend

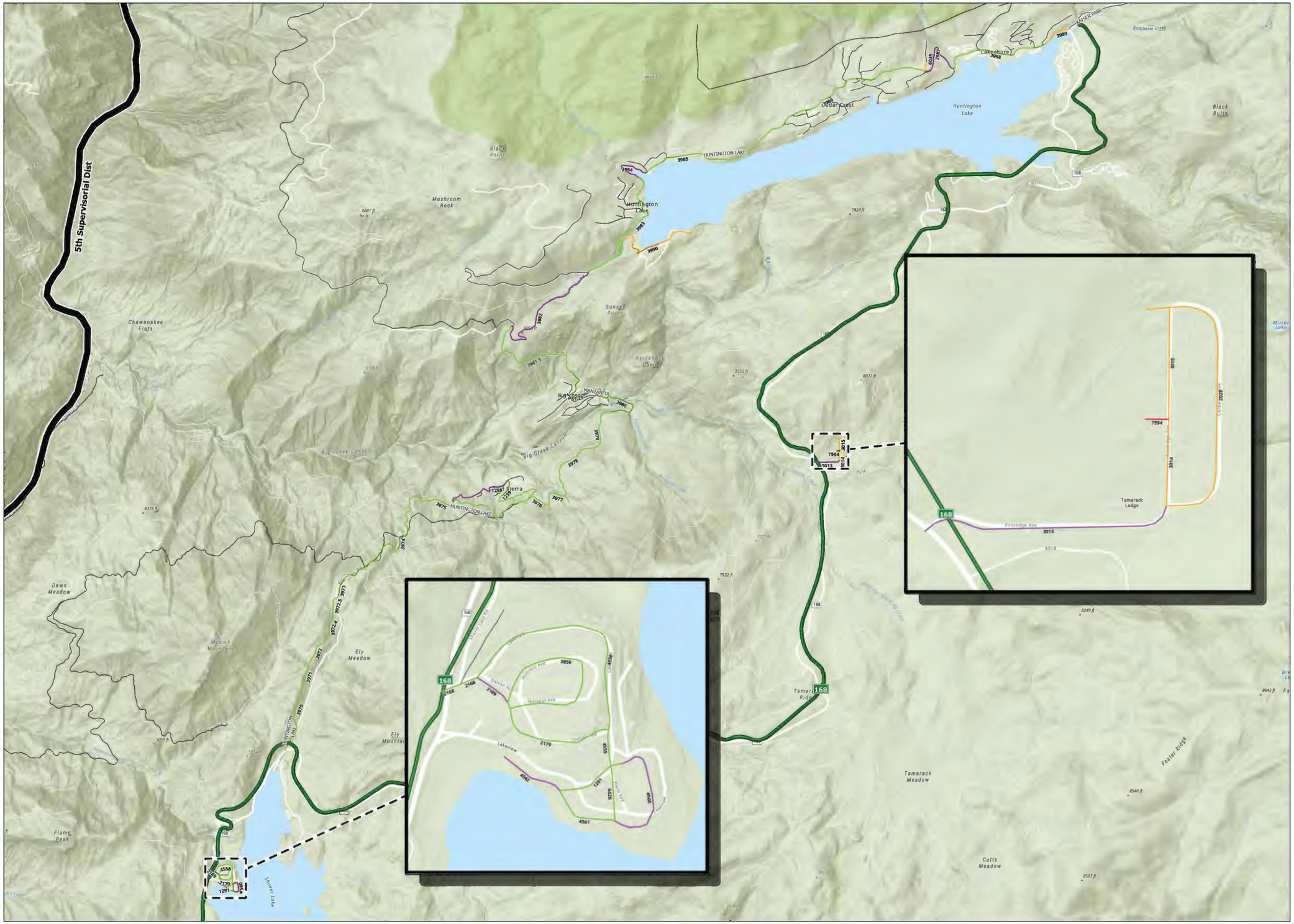
- Supervisorial District
- Non-County-Maintained Roads
- Highways

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+

N
W E
S

Miles
0 0.5 1



PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

COUNTY OF FRESNO

Supervisorial District 5 - Measure C Study Map - Grid 8

Legend

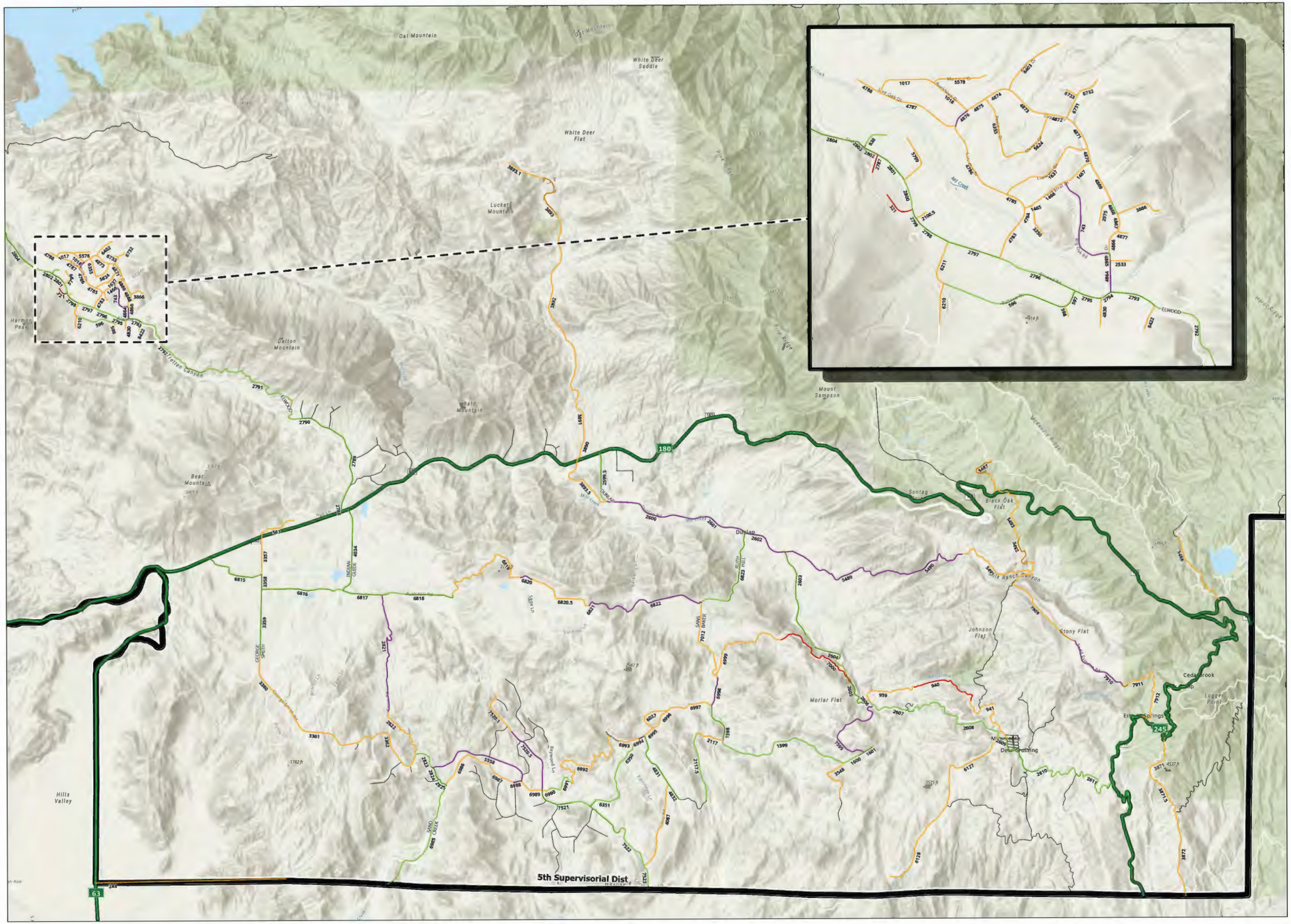
- Supervisorial District
- Non-County-Maintained Roads
- Highways

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+

N
W E
S

Miles
0 1.25 2.5



PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

COUNTY OF FRESNO

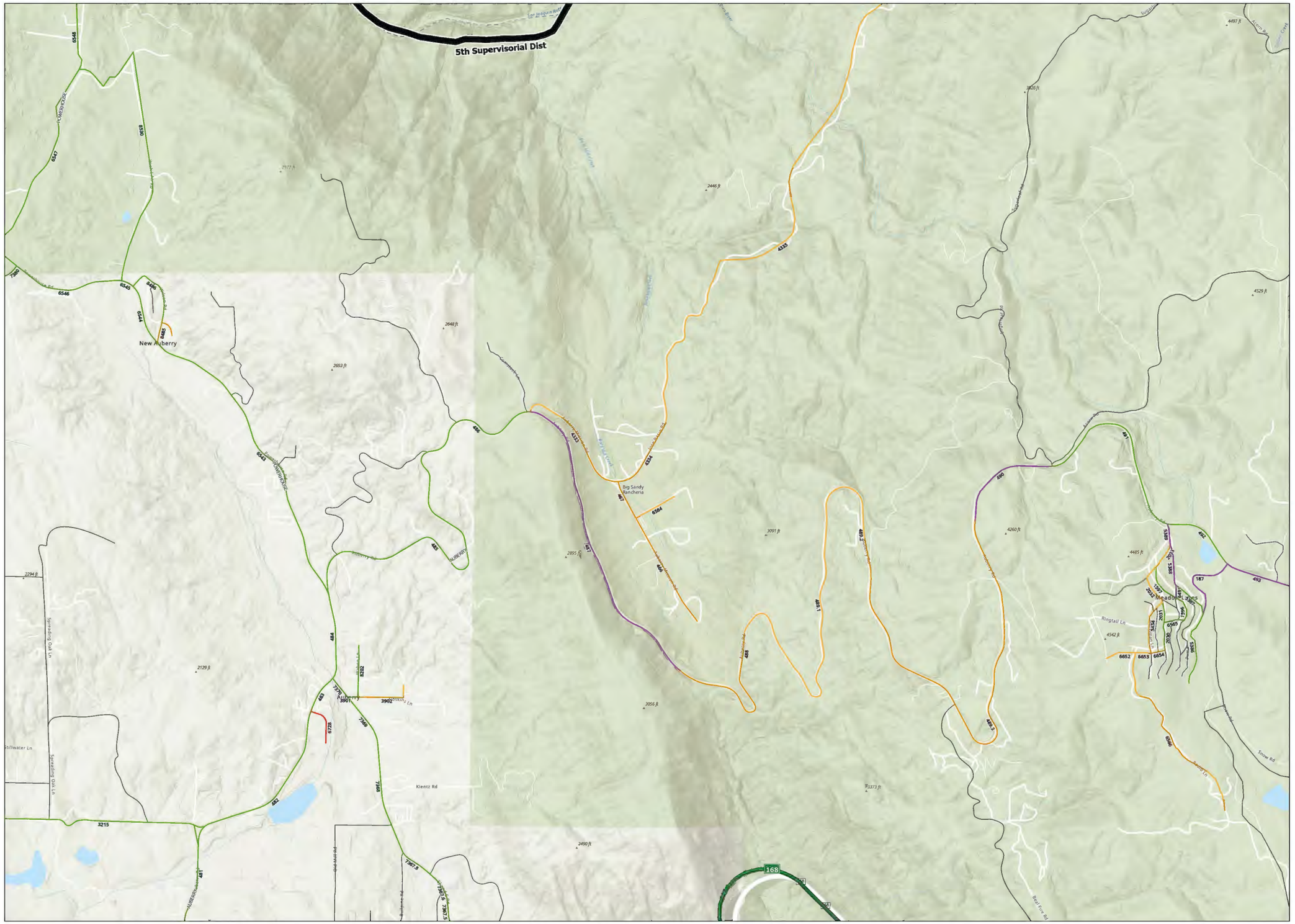
Supervisorial District 5 - Measure C Study Map - Grid 9

Legend

- Supervisorial District
- Non-County-Maintained Roads
- Highways

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+



N
W E
S

Miles
0 0.23 0.45

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

COUNTY OF FRESNO

Supervisorial District 5 - Measure C Study Map - Grid 10

Legend

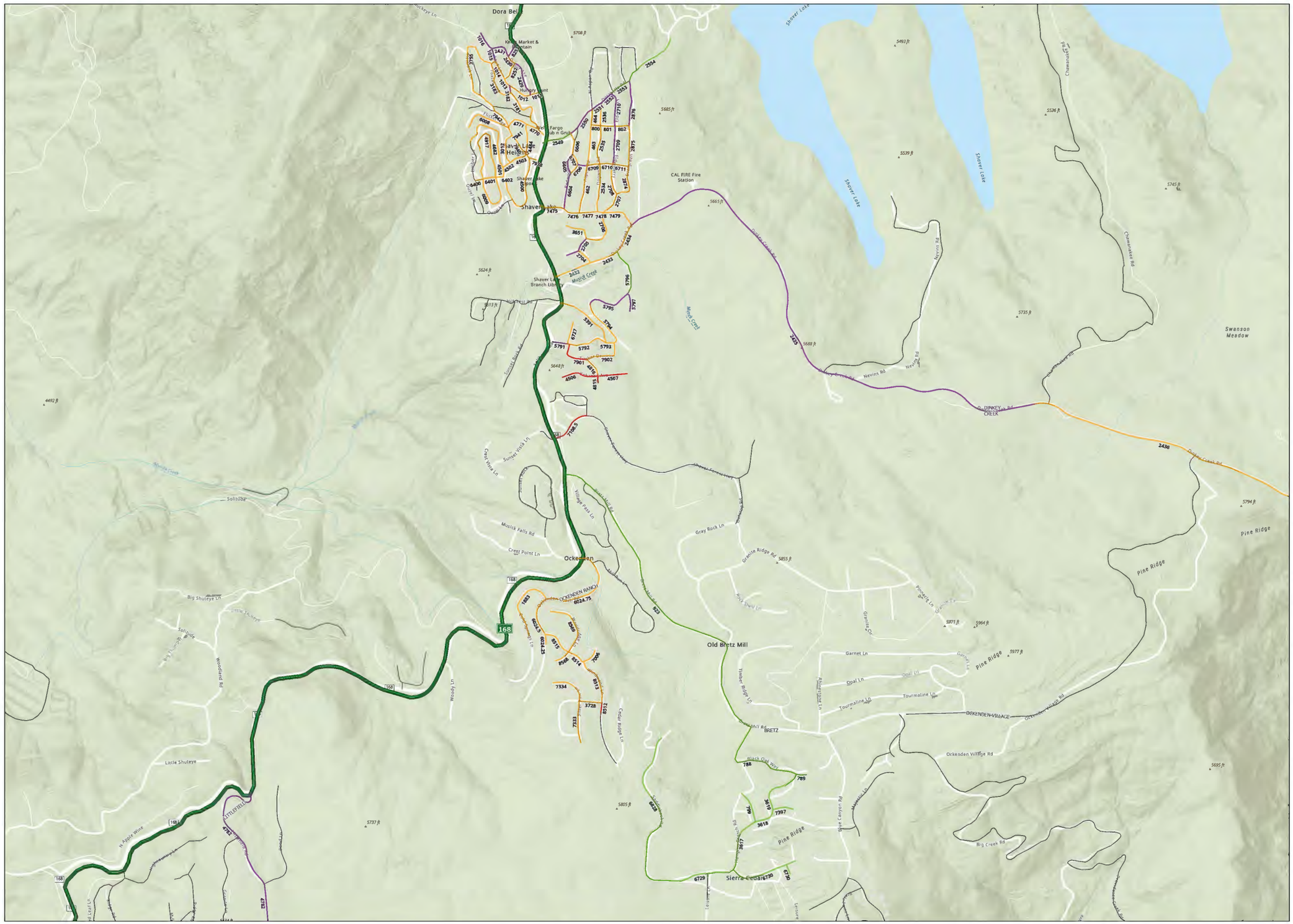
- Supervisorial District
- Non-County-Maintained Roads
- Highways

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+

N
W E
S

Miles
0 0.25 0.5


Dora Bell
Shaver Lake
Helipad
Shaver Lake
Shaver Lake Branch Library
CAL FIRE Fire Station
Shaver Lake
Shaver Lake
Shaver Lake
Mono Creek
Nevins Rd
Chawanakee Rd
Swanson Meadow
DINKEY CREEK
Dinkey Creek Rd
Pine Ridge
Pine Ridge
Pine Ridge
Ockenden
OCKENDEN RANCH
Old Bretz Mill
BRETZ
OCKENDEN-VILLAGE
Ockenden Village Rd
Sierra Cedar
Solitude
Musick Falls Rd
Creek Point Ln
Granite Ridge Rd
Garnet Ln
Opal Ln
Tourmaline Ln
Black Oak Way
Big Creek Rd
Big Shuteye Ln
Little Shuteye
Woodland Rd
Woody Ln
Cedar Ridge Ln
Timber Ridge Ln
Gray Rock Ln
Village Pass Ln
Sunset Vista Ln
Cross Vista Ln
Mono Creek
Dinkey Creek
Little Dinkey Creek
LITTLEFIELD
168
168
168
168
168
168
2438
2438
2438

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

COUNTY OF FRESNO

Supervisorial District 5 - Measure C Study Map - Grid 11

Legend

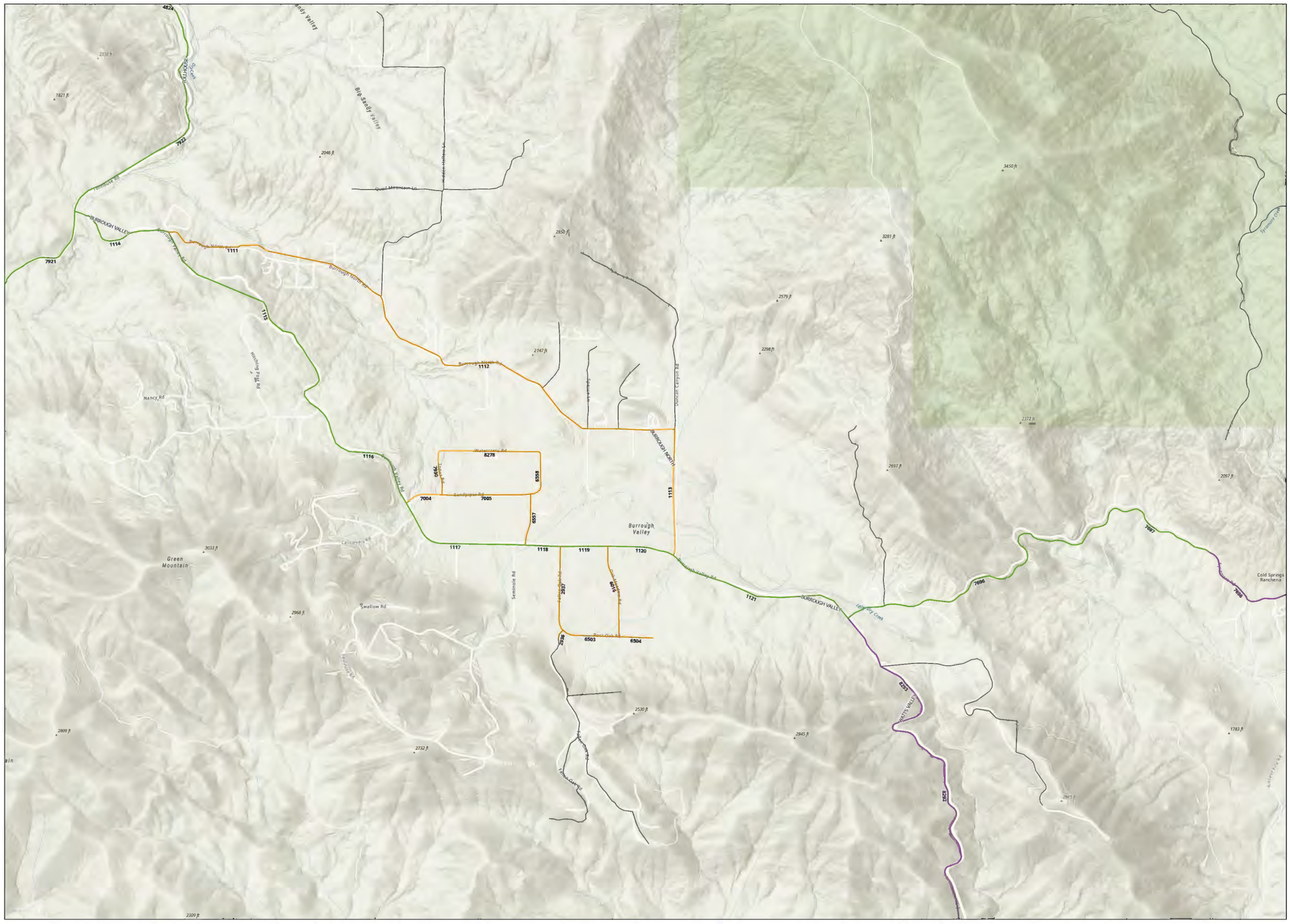
- Supervisorial District
- Non-County-Maintained Roads

County Maintained Roads
PCI

- 0 - 25
- 25 - 55
- 56 -64
- 65+

N
W E
S

Miles
0 0.25 0.5

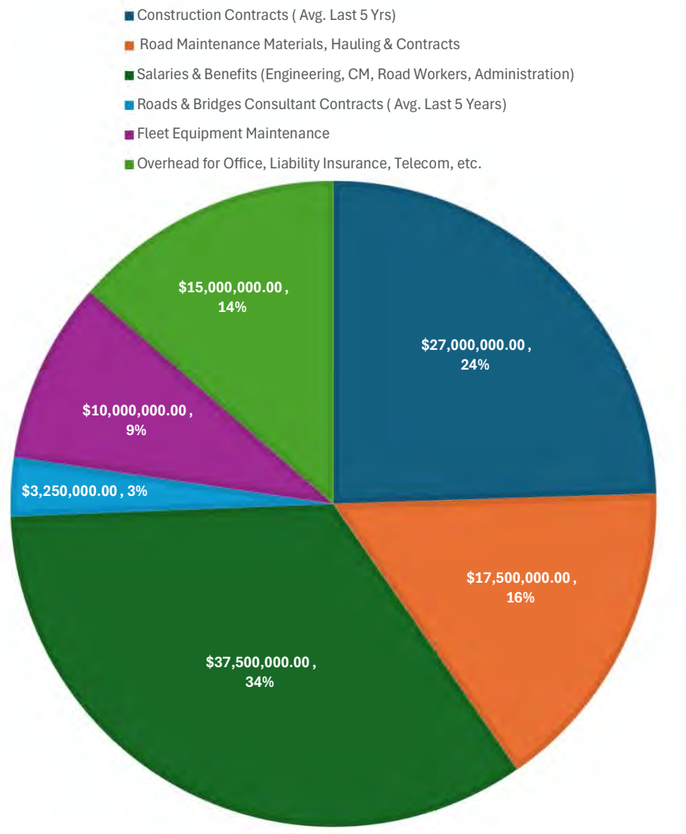


5-YEAR COUNTYWIDE ROAD MAINTENANCE AND IMPROVEMENT MAP

5-YEAR CONSTRUCTION PROJECTS REPORT

Project Type	Contract Number	Title	Notice Of Completion	Awarded Date	Awarded Amount	Funding Source
Pavement Maintenance	25-16-M	2025-2026 Bituminous Seal Coats		5/19/2026	$ 1,532,205.22	RMRA SB-1
Bridge Maintenance	25-17-M	BPMP Scour Mitigation		5/19/2026	$ 2,408,622.60	BPMP
Pavement Maintenance	25-15-M	Slurry Seals		4/7/2026	$ 1,141,222.70	RMRA SB-1;County CSA
Road Reconstruction	25-06-C	Mt. Whitney Ave. Road Reconstruction and Shoulder Improvements		12/9/2025	$ 5,062,274.60	CMAQ;STBG
Road Reconstruction	25-02-C	El Porvenir Community Road Improvements	3/2/2026	7/8/2025	$ 1,574,954.00	State Earmark
Bridge Replacement	25-03-C	Houghton Canal Bridge over N Chateau Fresno Avenue		6/24/2025	$ 3,099,414.80	HBP
Road Reconstruction	24-02-C	Jensen Avenue Improvements		6/10/2025	$ 6,084,522.50	STBG;RSTP
Pavement Maintenance	24-27-M	Lincoln Avenue Overlay	10/17/2025	6/10/2025	$ 1,579,072.75	RMRA SB-1
Bridge Replacement	24-08-C	Jacalitos Creek Bridge Replacement on Lost Hills Road		5/6/2025	$ 5,818,213.80	HBP
Road Reconstruction	24-18-C	Golden State Boulevard Corridor - Phase 2	4/30/2026	3/11/2025	$ 4,418,170.57	Measure C
Pavement Maintenance	24-06-M	Pavement Preservation Treatments (Slurry & Chips)	8/26/2025	10/8/2024	$ 4,486,318.50	RMRA SB-1
Bridge Replacement	24-07-C	East Reedley Bridge Replacements (Travers on Lincoln, Parlier, and Reedley Main)	5/29/2026	8/20/2024	$ 3,518,357.00	HBP
Signs and Striping	23-10-C	Edge Line Striping	10/3/2025	5/7/2024	$ 378,017.70	HSIP;RMRA SB-1
Shoulders	23-01-C	Jensen Dickenson To Madera Ave	12/20/2024	5/7/2024	$ 3,879,114.00	CMAQ;STBG;Measure C;RMRA SB-1
Shoulders	23-23-C	Adams Avenue Shoulder Improvements and Pavement Overlay	12/20/2024	4/9/2024	$ 3,281,688.00	CMAQ
Intersection	23-04-C	Fowler Ave and Olive Ave Intersection Improvements	10/16/2025	3/19/2024	$ 2,529,711.00	CMAQ;Measure C
Miscellaneous	23-18-C	Fowler and Olive Traffic Signal Tree Removal	3/1/2024	1/2/2024	$ 42,295.00	CMAQ
Pavement Maintenance	23-07-M	RMRA SB-1 Asphalt Concrete Overlays	10/2/2024	8/8/2023	$ 14,570,998.05	RMRA SB-1
Intersection	23-08-C	Millerton Road Striping and Signage Improvements		8/1/2023	$ 183,614.50	Unfunded
Pavement Maintenance	22-11-M	Slurry Seals	1/4/2024	7/18/2023	$ 2,753,382.00	RMRA SB-1
Bridge Replacement	22-05-C	Dry Creek Bridge Replacement on Burrough Valley Road	9/25/2024	3/28/2023	$ 4,864,640.00	HBP
Pavement Maintenance	22-18-M	Crack Seals	9/14/2023	2/28/2023	$ 905,890.00	RMRA SB-1
Intersection	22-09-C	Ashlan and Palm Traffic Signal and Road Improvements	2/24/2025	11/29/2022	$ 963,388.00	HSIP
Pedestrian	22-07-C	West Park Pedestrian Pathway	11/6/2023	11/8/2022	$ 695,964.00	ATP
Road Reconstruction	22-14-C	Golden State Boulevard Phase 1		10/25/2022	$ 28,999,631.00	Measure C;LPP;RMRA SB-1
Bridge Maintenance	22-10-M	BPMP Deck Treatments	5/5/2023	10/11/2022	$ 471,613.50	BPMP
Shoulders	22-02-C	American Avenue Shoulder Improvements - Placer to Madera	11/15/2022	7/12/2022	$ 2,664,020.00	CMAQ
Pavement Maintenance	21-13-M	RMRA Bituminous/Seal Coats	9/15/2022	5/17/2022	$ 2,019,536.28	RMRA SB-1
Pedestrian	21-04-C	Fancher Creek Trail	5/27/2023	9/21/2021	$ 438,489.70	Measure C
Road Reconstruction	21-02-C	Lincoln Avenue Cold Pavement Recycling	8/22/2022	9/7/2021	$ 9,273,640.00	CMAQ;STBG
Pavement Maintenance	21-03-M	Slurry Seals	12/3/2021	9/7/2021	$ 761,503.00	RMRA SB-1
Pavement Maintenance	20-09-C	McCall Avenue Asphalt Concrete Overlay	11/18/2021	8/10/2021	$ 1,789,164.15	STBG
Intersection	20-20-C	American Avenue and Golden State Blvd Intersection Improvements	2/13/2023	5/25/2021	$ 3,148,584.00	RMRA SB-1
Bridge Replacement	20-01-C	Sand Creek Bridge Replacement on Ennis Road	4/28/2023	5/11/2021	$ 2,697,777.00	HBP;Measure C
Bridge Replacement	20-15-C	James Bypass Bridge Replacements on Manning Ave	11/9/2023	4/27/2021	$ 5,260,535.00	HBP
Pavement Maintenance	20-14-M	Bituminous Seal Coats	8/3/2021	4/13/2021	$ 1,264,007.00	RMRA SB-1
					$ 134,560,551.92	

ANNUAL ROAD FUND EXPENDITURES



ANNUAL ROAD FUND EXPENDITURES		
Construction Contracts (Avg. Last 5 Yrs)	$	27,000,000.00
Road Maintenance Materials, Hauling & Contracts	$	17,500,000.00
Salaries & Benefits (Engineering, CM, Road Workers, Administration)	$	37,500,000.00
Roads & Bridges Consultant Contracts (Avg. Last 5 Years)	$	3,250,000.00
Fleet Equipment Maintenance	$	10,000,000.00
Overhead for Office, Liability Insurance, Telecom, etc.	$	15,000,000.00
Total	**$**	**110,250,000.00**

PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

Road Preservation Total Length: 266 Miles

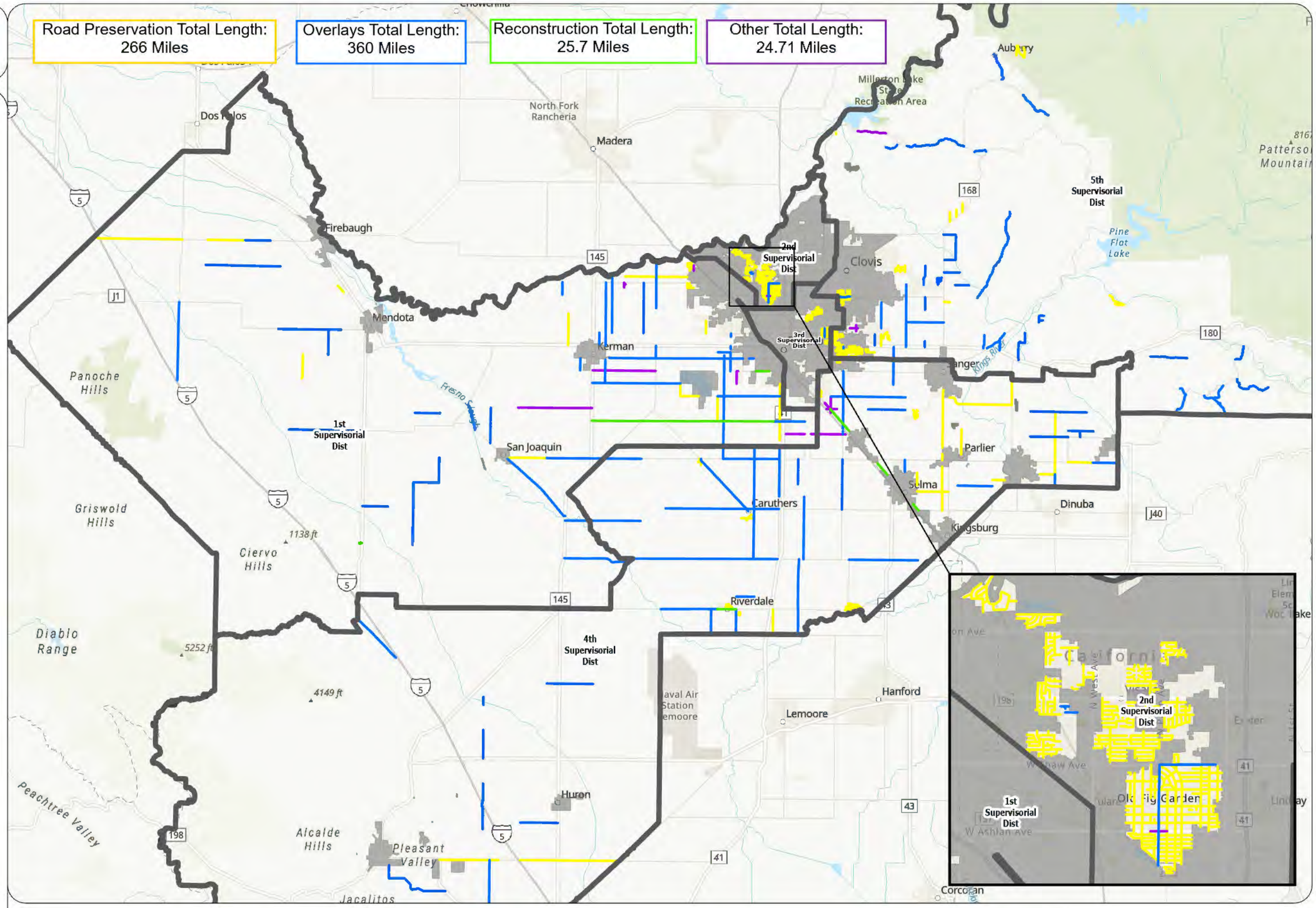
Overlays Total Length: 360 Miles

Reconstruction Total Length: 25.7 Miles

Other Total Length: 24.71 Miles

Legend

- Overlays
- Road Preservation
- Reconstruction
- Other
- Incorporated Cities
- Supervisorial Districts



Projects - Past 5 Years

Miles
0 7 14

N

PROJECT COSTS PER MILE

ESTIMATED PROJECTS COSTS PER MILE OF INITIATIVE IMPROVEMENTS

Road Reconstruction and Complete Street Addition

Percent		Road Related Cost	Complete Street Related Add'l Cost
-	CON	$1,410,000	$2,570,000
20%	PE	$290,000	$520,000
15%	CM	$220,000	$390,000
10%	RW	$0	$260,000
	Subtotals	$1,920,000	$3,740,000
	Complete Street Total	$5,660,000	

Rounded up to nearest ten thousand — per mile constructed

New Class I/IV Trail

Percent		Cost
-	CON	$590,000
20%	PE	$120,000
25%	CE/CM	$150,000
50%	RW	$300,000
	Total	$1,160,000

Rounded up to nearest ten thousand — per mile constructed

Shoulder Widening (6' Ea. Side w/ 10' RW Need)

Percent		Cost
-	CON	$800,000
15%	PE	$120,000
10%	CE/CM	$80,000
50%	RW	$400,000
	Total	$1,400,000

Rounded up to nearest ten thousand — per mile constructed

The calculations represent an estimated cost for each example project.
The actual costs were taken from example projects over the last 5 years, averaged, and brought to present day values when appropriate.

County Sidewalks Map

THE COUNTY OF FRESNO

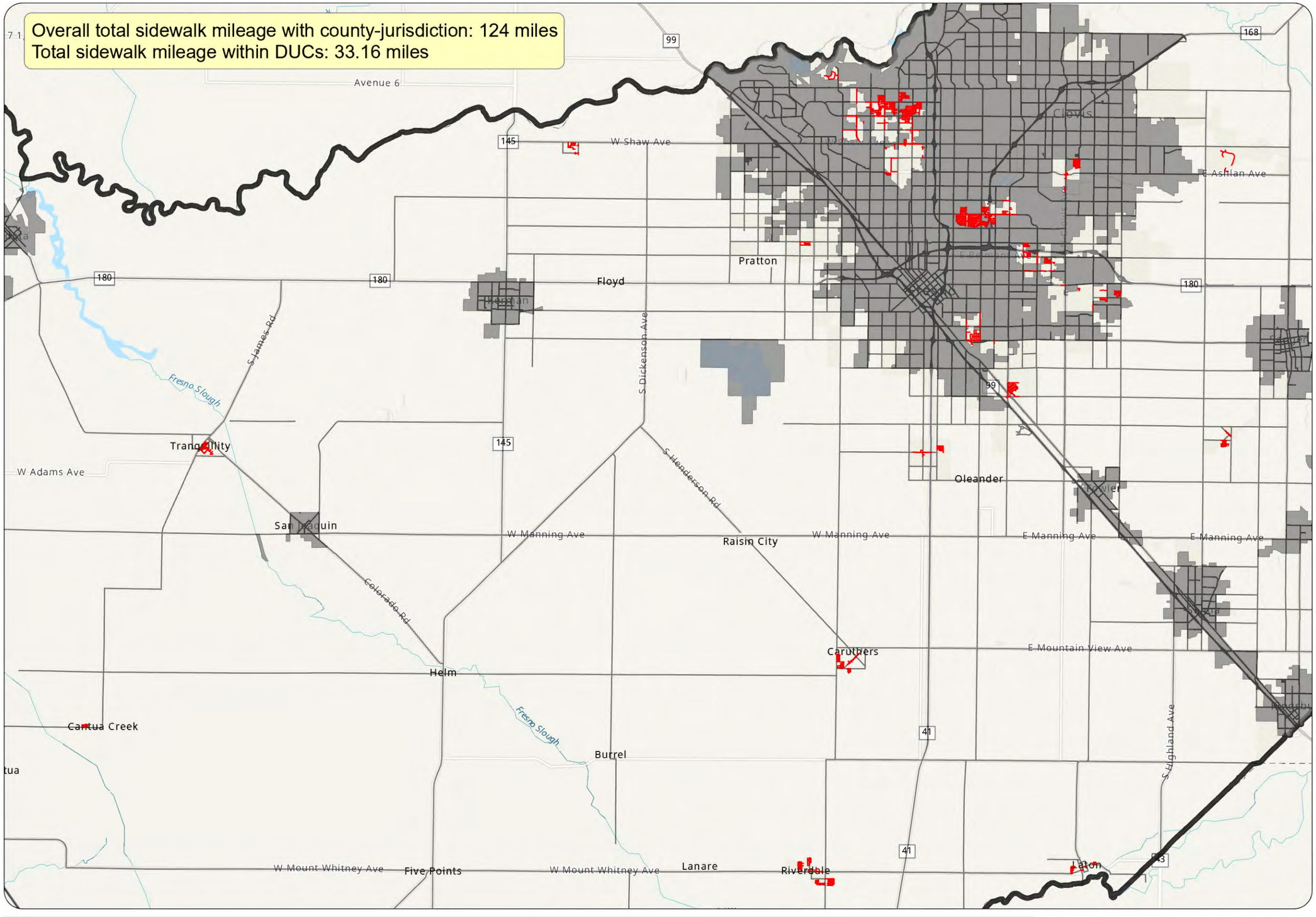
PWP
PUBLIC WORKS AND PLANNING
COUNTY OF FRESNO

Overall total sidewalk mileage with county-jurisdiction: 124 miles
Total sidewalk mileage within DUCs: 33.16 miles

Legend

Sidewalks

Incorporated Cities



Sidewalks within Fresno County Jurisdiction

Miles
0 3 6

N